

SAP ANNEX FOR REGULATORY REQUIREMENTS
SAP DEUTSCHLAND SE & Co. KG
(„FS-Annex “)
- CONFIDENTIAL -



1. Applicability

- 1.1 This annex for regulatory requirements (hereinafter "FS-Annex") applies (subject to section 1.3 below) to the Services agreed between SAP and Customer in the Order Forms / the Software Agreements with contract number 3062560352 (including its annexes / schedules, etc. hereinafter referred to as the "Agreement") if Customer and/or any of its Affiliates is subject to the supervision of a Regulatory Authority (as defined below) and those entities are listed as an FS-Customer in the "List of FS-Customers" in Appendix A to this FS-Annex.
- 1.2 In the event of a conflict between the provisions of the FS-Annex and other parts of the Agreement, the FS-Annex shall prevail.
- 1.3 This FS-Annex applies only for those Services for which it is declared applicable in the Agreement. It only applies to the Services concerning production environments. For non-production systems this FS-Annex does not apply.
- 1.4 The rights granted in this FS-Annex must not be exercised in such a way as to impair the confidentiality or security of the data of other SAP customers or of any subcontractor or its other customers or jeopardize or adversely impact the stability of services of SAP or a subcontractor.
- 1.5 Should the requirements of the Supervisory Law change the Parties will negotiate in good faith for an adoption of this FS-Annex (as amendment to the Agreement) to reflect such change.
- 1.6 In providing these FS Services, SAP agrees to comply with all laws and regulations applicable to SAP.
- 1.7 SAP shall have proper procedures in place to effectively monitor and properly manage or prevent situations that could harm the interest of Customer when delivering the Services due to conflicts of interest.

2. Definitions

Terms have the meaning assigned to them in the Agreement unless they are defined differently in this FS-Annex.

- 2.1 **Auditor** refers to both the internal auditors of FS-Customer as well as its external auditors.
- 2.2 **Examiners** means the FS-Customer, their Auditors and the Regulatory Authorities, including any third- parties appointed by the Regulatory Authorities to carry out the audit.
- 2.3 **Financial Services** are all banking, credit, insurance and payment services (including the issuance of electronic funds), stock exchanges, future trade, and other services relating to investment, lending, trading and management of money and assets.
- 2.4 **FS-Customer** refers to the entity who (1) purchases Services from SAP as a contractual partner (Customer) to the Agreement and (2) provides Financial Services and (3) is subject to mandatory Supervisory Law in relation to the Services. If the aforementioned criteria (2) and (3) apply solely or also to an Affiliate for which the Customer obtains the Services in accordance with the Agreement, then that Affiliate shall be considered a FS-Customer for the purposes of this FS-Annex. Such FS-Customers must be listed in the Appendix A to this FS-Annex for this FS-Annex to apply to them; additional entities may only be added to such list with the prior consent of SAP. Where any entity listed in Appendix A ceases to be an Affiliate of Customer or to meet the requirements of (2) and (3) above, Customer shall promptly notify SAP of this in writing and Appendix A shall be updated to remove such entity.
- 2.5 **FS-Subcontractor** means a subcontractor of SAP or its subcontractor to which a Material Subcontracting takes place. Third parties or their issuing companies operating under the leasing of employees at SAP or at other FS Subcontractors are not FS Subcontractors.
- 2.6 **Hyperscaler** refers to computing networks for achieving massive scalability in the area of Infrastructure as a Service (IaaS), in particular Amazon Web Services (AWS), Microsoft Azure and Google Cloud Platform (GCP).
- 2.7 **Material Subcontracting** means the subcontracting of critical or material functions according to the Supervisory Law by SAP or the FS-Subcontractor. The assessment if a function is critical or material is the sole responsibility of the FS-Customer.

- 2.8 **Outsourcing** means the engagement of SAP by a Financial Services entity that is considered outsourcing under applicable Supervisory Law.
- 2.9 **Regulatory Authority** shall mean any supervisory or regulatory authority that, in accordance with the applicable Supervisory Law, is empowered to supervise the FS-Customer in relation to its use of the Services that constitute an Outsourcing.
- 2.10 **Services:** For the purposes of this FS-Annex, “Services” refer to the services agreed upon between SAP and Customer in the Agreement for which the FS Annex applies, insofar as they are qualified as outsourcing under Supervisory Law.
- 2.11 „**Significant Subcontractors**“ are subcontractors that for SAP are significant for the provision of the Services or have authorized access to customer data in the Cloud Services or SAP Support Services excluding Hyperscalers, data center operators, and employees or their employing companies leased out by temporary employment.
- 2.12 **Supervisory Law** refers to the laws, guidelines, regulations and recommendations insofar as these are mandatory for the FS-Customer in the context of Outsourcing and directly applicable to SAP’s provision of Cloud Services, in particular, but not limited to
- European Union:
 - Commission Delegated Regulation (EU) 2015/35, EIOPA Guidelines on outsourcing agreements
 - Germany:
 - Insurance: VAG, MaGo, VAIT, SOLV-II
 - Switzerland:
 - FINMAG, VAG and the FINMA Circular 2018/3 “Outsourcing – banks and insurers”

3. Standards and IT Security Standards

SAP is obliged to comply with the following standards during the Term for the Services:

- For Software Support and Services: ISO 27001
- For SAP Cloud Services: ISO27001 and ISAE3000-SOC2 Type II

SAP may alternatively comply with newer or other norms and standards that are at least equivalent.

4. Information and audit rights

4.1 Information and audit rights of the Regulatory Authority, the FS-Customer and its Auditors

As described herein in this Section 4 SAP grants the Examiners unrestricted information and audit rights with SAP and -to be exercised through SAP- with FS-Subcontractors for which an FS-Back2Back exists or that are used by an FS-Subcontractor for which an FS-Back2Back exists (cf. Section 5) with respect to the Services. These rights include access rights to the business premises, as well as access to documents, devices, data, and systems, including the right to make copies, as long as they are relevant for the Services. The exercise of information and audit rights is subject to the principles of proportionality. However it is in the sole discretion of the competent Regulatory Authority to decide how these principles are applied.

SAP will cooperate with the regulatory authority. Where appropriate and necessary for supervisory purposes, the supervisory authority may address questions with reference to Allianz directly to SAP.

4.2 Exercise of audit rights

- 4.2.1 Before the FS-Customer requests an audit to be conducted by it or its Auditors, it should perform a risk-based needs assessment of the need for such an audit, in particular, giving due consideration to (i) the possibility (if available) of pooled audits carried out jointly with other SAP customers (as well as the other FS-Customers); (ii) the certifications, reports and other information already provided by or available online from SAP; and (iii) the results of (and any information previously provided by SAP in connection therewith) any previous audits performed by the Customer (or any other FS-Customer) under the DPA or under this FS-Annex.
- 4.2.2 If, as a result of the risk-based needs assessment or on a Regulatory Authority’s request, an on site audit is required, Customer will provide SAP with not less than 60 days’ prior written notice of such an audit. Customer will provide SAP with an audit plan detailing the scope of the onsite audit, the duration, the agenda and the date. SAP will work cooperatively with Customer to agree on a final audit plan with a view towards facilitating Customer’s audit rights, but the exercise of such audit rights in accordance with this FS-Annex is not dependent on SAP agreeing to the plan. On site audits for each Service area as defined in the Agreement should not exceed two business days (however SAP will not unreasonably withhold or delay its consent to an increased period which may be requested by Customer). For clarification Customer has the right to conduct an audit more than two business days. In cases of emergency or if a Regulatory Authority requires that an onsite audit must be carried out on

shorter notice, Customer must inform SAP without delay and SAP will cooperate with Customer to enable Customer to conduct the on site audit when required.

- 4.2.3 The on site audit must take place during regular business hours and in accordance with SAP's or the affected FS-Subcontractor's security guidelines to ensure the security of the persons and entities involved and the security, confidentiality and integrity of their data and the data of third parties.
- 4.2.4 The audit shall be carried out without unreasonable or unnecessary interference with or endanger of the security and integrity of SAP's or the affected FS-Subcontractor's business and may not compromise the intellectual property rights of SAP, of the affected FS-Subcontractor or of third parties.
- 4.2.5 The FS-Customer should not perform more than one audit for each Service area as defined in the Agreement per calendar year. For clarification Customer has the right to conduct more than one audit if requested by the Examiners. Customer shall, so far as is reasonably practicable and unless Supervisory Law requires otherwise, exercise the audit rights on a consolidated basis (ie for all FS-Customers and Services in the same exercise) and is permitted to include representatives of the applicable FS-Customers as participants in any such audit.
- 4.2.6 Customer shall pay to SAP, its efforts in connection with the audit on a time and material basis according to the price matrix in the Änderungsvereinbarung Nr. 1 zur Rahmenvereinbarung LOM dated September 25th 2015 or if terminated according to the then valid SAP Master Services Pricelist for Global Services as well as proven costs. Upon Customer's request, SAP will provide Customer with a estimate of such charges, costs and expenses.
- 4.2.7 Customer shall submit to SAP a copy of the result report from an audit regarding the Services as soon as it is available to the FS-Customer. For justified reasons e.g. confidentiality or data protection, only parts of the results or a partially redacted results can be submitted.
- 4.2.8 Any information and documents provided by SAP or its auditors or the respective FS-Subcontractor with regards to an audit shall be treated as Confidential Information of SAP.
- 4.2.9 If the exercise of the audit rights, after a careful assessment of SAP, may affect the environment of another SAP customer or affected FS-Subcontractor's customer or the service levels, the availability and/or confidentiality of data or rights of third parties, SAP may interrupt such exercise. In this case, SAP will immediately agree with the Examiners on appropriate measures and/or alternatives regarding the audit rights.
- 4.2.10 Examiners must be subject to appropriate confidentiality obligations. If an Examiner violates SAP's or the respective FS-Subcontractor's security guidelines in the exercise of the audit rights, SAP reserves the right to terminate the exercise.
- 4.2.11 SAP reserves the right to reject third party auditors on objective grounds if third party auditors are direct competitors of SAP or if there is reasonable doubt that confidentiality is not ensured. Each Auditor must sign a confidentiality agreement with the FS-Customer, which may be enforced by SAP and contains provisions for the protection of SAP's Confidential Information, at least at the same level, as defined in the Agreement. In each case, SAP may request a copy of this confidentiality agreement. The Customer shall be liable to SAP for the behavior of the Auditors and other FS-Customers as if their actions were those of the Customer.

4.3 Information rights after the end of the provision of Services

In relation to Services, FS-Customer may retain such Confidential Information of SAP that it received under this FS Annex and represent documents that are necessary for the FS-Customer to comply with its obligation under section 25a (1) para 6.2 KWG (policies and audit evidence) for a period of five (5) years after the end of the financial year of the FS-Customer in which the provision of the respective Service was terminated, without prejudice to other legal retention periods.

5. Use of subcontractors

SAP may use subcontractors in the provision of Services subject to the requirements set out in this section

5. It is clarified that SAP is liable for any act or omission of one of its subcontractors as for its own act or omission.

5.1 List of FS-Subcontractors

SAP identifies potential FS-Subcontractors out of its subcontractors, that are pre-qualified by SAP based on SAP's criteria for Material Subcontracting. Based on the criteria used by SAP in any case data center providers and Hyperscalers qualify as FS-Subcontractors where they are used for the provision of the Services to the Customer. The FS-Subcontractors that are pre-qualified at the time of the conclusion of the Agreement are listed with their name, address/place of performance, and the assigned activities in the "**List of FS-Subcontractors**" in Appendix [B] below. The Customer shall have the right to request reasonable further information about an FS-Subcontractor necessary for its evaluation. Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to additional FS-Customers. This list may be updated by SAP from time to time during the terms of the applicable Services in accordance with the following terms of this section 5. To the extent that the List of FS-Subcontractors, which includes at least all FS-Subcontractors agreed with Customer until then,

notwithstanding any removal according to section 5.3.5, is provided by SAP in general form via the Support Portal and Customer is informed thereof by e-mail or via the Support Portal, such list apply and possible updates (see Section 5.3 of this FS-Annex) of the same shall be made by SAP so that no updates of the List of FS-Subcontractors attached to the Agreement (Appendix [B]) are required anymore.

5.2 Significant Subcontractors

- 5.2.1 SAP shall inform Customer about the Significant Subcontractors currently in use by SAP in the performance of the Services, which are listed by SAP as Subprocessors, via the subprocessor list for the respective SAP Cloud Service or SAP Support Service in the SAP Support Portal (currently <https://support.sap.com/en/my-support/trust-center.html>) ("**Subprocessor List**"). Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to additional FS-Customers.
- 5.2.2 If SAP intends to replace a Significant Subcontractor or to use additional Significant Subcontractors for the agreed Cloud Services or Support Services that constitute an Outsourcing, SAP shall inform ("**Initial Information**") Customer 30 days in advance (except in the case of an Emergency Replacement, Section 7.4 of the DPA, which shall also apply to those subcontractors that are not Subprocessors) about such changes by informing Customer about changes to the respective Subprocessor List as described in the DPA. The Customer shall have the right to request reasonable further information about the new Significant Subcontractor necessary for its evaluation of whether to add it to the List of FS-Subcontractors. Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to additional FS-Customers.
- 5.2.3 SAP is entitled to use the new Significant Subcontractor after the expiration of 30 days from the date of notification of the Initial Information (except in the case of an Emergency Replacement pursuant to Section 7.4 of the DPA, in which case SAP may use the new Significant Subcontractor immediately).
- 5.2.4 If Customer evaluates the Significant Subcontractor as an FS-Subcontractor, Customer may terminate the Agreement in accordance with Section 13, for the reasons set forth therein, limited to the Service for which the new Significant Subcontractor is used by giving written notice to SAP within 30 days from the date of receipt of the Initial Information, effective as of a date specified by Customer.

5.3 Updates to FS-Subcontractors.

- 5.3.1 If Customer assesses additional Significant Subcontractors as FS-Subcontractors that were not previously included in the List of FS-Subcontractors, SAP shall align in good faith with Customer on the inclusion of these in the List of FS-Subcontractors. If such an agreement is reached, the Parties shall agree on a corresponding contractual amendment to update the List of FS-Subcontractors (or SAP shall amend the List of FS-Subcontractors provided on the Support Portal accordingly). The contractual amendment shall also include such changes according to sections 5.3.2 and 5.3.5 that have occurred in the meantime. If the Parties cannot agree on the inclusion of a Significant Subcontractor as FS-Subcontractor in the List of FS-Subcontractors, Customer shall have a special termination right within 30 days of SAP's final rejection of such an agreement in accordance with Section 13 for the reasons set forth therein and limited to the Service for which the FS-Subcontractor in question is used.
- 5.3.2 If SAP or an FS-Subcontractor intends to replace an FS-Subcontractor or change its assigned activity or place of performance or use an additional FS-Subcontractor (that is pre-qualified by SAP as relevant for the List of FS-Subcontractor) for the agreed Cloud Services or Support Services that constitute an Outsourcing, SAP will inform Customer in advance (except in case of an Emergency Replacement according to Section 7.4 of the DPA, which shall also apply to those subcontractors that are not Subprocessors) by e-mail or via the Support Portal ("**Initial FS-Notification**"). Insofar SAP uses the option to provide the Initial FS-Notification via posting on the Support Portal, Customer will have the option to register to receive information by email (opt-in). The Initial FS-Notification shall include reasonable information about the change or new FS-Subcontractor, especially the assigned activity going forward and the place of performance. Customer is entitled to request reasonable additional information about the change / new FS-Subcontractor that is necessary for its assessment. Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to additional FS-Customers.
- 5.3.3 SAP is entitled to implement the change / use the new FS-Subcontractor 30 days after providing the Initial FS-Notification to the Customer (except in the case of an Emergency Replacement, Section 7.4 of the DPA, which shall also apply to those subcontractors that are not Subprocessors, where SAP is entitled to start using the new FS-Subcontractor immediately).
- 5.3.4 Within 30 days of receipt of the Initial FS-Notification, Customer may terminate the Agreement, limited to the Service for which the change applies / the new FS-Subcontractor is used, pursuant to section 13, for the reasons set forth therein, by given written notice to SAP with effect from a date specified by Customer.
- 5.3.5 SAP may remove an FS-Subcontractor no longer used to perform the Services from the List of FS-Subcontractors at any time.

5.4 Contractual terms between SAP and subcontractors listed on the List of FS-Subcontractors.

5.4.1 SAP shall agree with its subcontractors listed on the List of FS-Subcontractors or pre-qualified by SAP as FS-Subcontractors on contractual terms necessary to enable SAP to fulfill its obligations under this FS-Annex ("**FS-Back2Back**"). In such an FS-Back2Back, these FS-Subcontractors are obliged to enter into respective contracts with their subcontractors listed on the List of FS-Subcontractors.

5.4.2 If SAP has not yet fulfilled its obligations under section 5.4.1 at the time of the inclusion of such FS-Subcontractor in the List of FS-Subcontractors or at the time of the Initial FS-Notification in case of its own pre-qualification of a subcontractor as FS-Subcontractor ("**Date of Decision**"), SAP will endeavor to meet these obligations within 12 months after the Date of Decision. If SAP fails to do so, Customer has the special termination right according to Section 13 limited to the Service for which the relevant FS-Subcontractor is used. As an alternative to fulfilling the obligations under section 5.4.1, SAP shall also be permitted to refrain from using the relevant FS-Subcontractor within the same period.

5.4.3 The exercise of the rights according to section 4 in relation to an FS-Subcontractor listed on the List of FS-Subcontractors is only possible if there is an FS-Back2Back (at least with the first-tier FS-Subcontractors) and the FS-Subcontractor is actually used to provide the Services.

6. Rights to issue instructions

If required by Supervisory Law, the FS-Customer is granted a corresponding right of issuing instructions to SAP, which does not exceed the right of issuing instructions by Supervisory Law in the European Union, Germany and Switzerland which can only be exercised by the Customer. SAP will follow these instructions to the extent that they are reasonable, in particular technically feasible and possible without changing the Services or essential terms of the Agreement. Instructions whose implementation lies outside the scope of Services and is not unreasonable will be complied with subject to Customer and SAP executing separate orders or amendments to the Agreement, which may be subject to additional fees.

7. Exit Management - Continuation and Migration Support Services

7.1 Customer request for Continuation Services.

Should Customer require assistance to ensure that he is able to exit the Services without disruption to its business activities, Customer may request an extension to the Agreement and any of the Services, and SAP will agree to continue the Agreement beyond the date that the Agreement would otherwise have been terminated, and continue to provide the applicable requested Services thereunder ("**Continuation Services**"), without prejudice to the rights and remedies of either party for damages for the breaches (if any) by the other party of the Agreement. In case of termination of the Agreement due to a reason stipulated in the Agreement relating to the manner in which the Services are provided by SAP or to reasons mentioned in sections 5 or 13, Customers agrees to the provision of the Continuation Services with and despite the continuation of such reason and to consider the Continuation Services as in accordance with the Agreement with respect to such reason. SAP does not provide Continuation Services if this would constitute a violation of applicable law or regulation.

Such request for Continuation Services must be received by SAP not less than 30 days prior to the date the Services would otherwise be terminated (save where the Services are being terminated immediately on notice then (a) if termination is by Customer - such request shall be made as part of the Customer's termination notice; or (b) if termination is by SAP - such request shall be made promptly following receipt of SAP's termination notice), and should identify the requested period, which shall not be more than 12 months ("**Exit Period**"). In such a case SAP will issue a respective amendment to the Agreement to reflect the terms of the provision of the Continuation Services during the Exit Period, which Customer will promptly execute and return to SAP. For the avoidance of doubt the Agreement will (unless terminated earlier) terminate at the end of the Exit Period, without renewal, unless the Parties agree in writing to a further extension of the Agreement. Remuneration for the Continuation Services shall be in accordance with the remuneration rules in the Agreement. However, as of the 7th month after the beginning of the Continuation Services, SAP may charge Customer additionally with an uplift of 3,3% on the respective remuneration according to the remuneration terms of the Agreement for the performance of the Continuation Services. Additionally, during the Exit Period, the continued provision of the Continuation Services shall be subject to the Customer complying with the terms of the Agreement at all times, which shall (notwithstanding any other terms of the Agreement) include the Customer paying the applicable fees to SAP for the Continuation Services. Otherwise SAP would be entitled to exercise its rights and terminate the Agreement in accordance with its terms or for good cause by law.

7.2 Migration Support Services.

Furthermore, if requested by Customer, SAP will (acting reasonably) agree to provide the Customer at the Customer's expense, on a time and material basis, and under the terms of any services agreement and rates then in place between the Parties or, where none are applicable, under SAP's then-current standard consulting services terms and conditions and/or rates (as applicable) unless the Parties agree otherwise, with consulting services and other termination assistance (including, without limitation, assistance for the transfer of Customer Data back to the Customer and/or its replacement service provider). For the avoidance of doubt, the scope and costs of such consulting services and other assistance will need to be set out in a mutually agreed statement of work prior to SAP providing such services and assistance. Any services or assistance from SAP will be subject to availability of SAP personnel having the technical ability to provide the same. SAP can refuse to transfer knowledge or make Confidential Information available to a direct competitor.

8. Certifications and Audit Reports

With regard to Services and on Customer's request, SAP undertakes to provide Customer with the latest available SAP certificates (related to ISO27001) / reports (related to ISAE3000-SOC2 Type II) on the standards according to section 3 in electronic form, which SAP will update at least annually.

For this purpose, the Customer must request the relevant certificates (related to ISO27001) and reports (related to ISAE3000-SOC2 Type II) via the SAP Trust Center (currently under <https://www.sap.com/about/trust-center.html>).

The Customer is entitled to provide the above certificates / reports - subject to appropriate confidentiality obligations, unless there is a statutory confidentiality obligation - to the FS-Customers and their respective Examiners, again subject to the confidentiality obligations and declarations required by the SAP's auditor.

9. Risk Reports

With regard to the Services, SAP undertakes to provide Customer with the following in electronic form:

- a) SAP Integrated Report
- b) SAP's half-year report

For this purpose, the Customer can download these reports via the SAP website (currently under <https://www.sap.com/investors>).

These reports as well as the certificates / reports according to section 8 may be used for the purpose of risk reporting.

10. Information about developments

SAP will inform Customer within a reasonable period of time if it becomes aware of any development which it reasonably believes will have a material adverse effect on SAP's proper performance of the Services in accordance with the Agreement. Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to FS-Customers.

11. Business Continuity and Emergency Management

SAP will take appropriate measures for business disruptions that ensure the timely availability of alternative solutions for the purpose of continuing the provision of Services and also to return to the normal operation. SAP shall provide Customer with reasonable information to assist the FS-Customer with the adjustment of its Business Continuity Management (BCM) / Disaster Recovery (DR) processes. Subject to confidentiality obligations that are not less protective than those agreed in the Agreement, Customer is entitled to provide this information to FS-Customers. In case of need SAP agrees to align with the Customer to a reasonable extent.

12. Bank Recovery and Resolution Directive

This section only applies insofar as this is required for the FS-Customer according to Supervisory Law.

To the extent that national law transposing the Directive no. 59/2014/EU (Bank Recovery and Resolution Directive ("BRRD Law")) so requires and in order to ensure the operational continuity of any FS- Customer regarding the Services, SAP undertakes to reasonably cooperate (at the Customer's expense and on Customer's request) with the Customer in relation to any FS- Customer if the latter should be the subject of a recovery or resolution procedure, in order to allow the competent authority(ies), including a resolution authority, to exercise all the powers conferred on such authority(ies) by BRRD Law and to take all the measures deemed useful or necessary by such authority(ies) for the effective implementation of the and terms and conditions unless otherwise agreed between the Parties. SAP acknowledges and

accepts in advance that the competent authority and its representatives may replace the FS- Customer and its representatives in such a context.

13. Termination

In addition to the termination provisions of the Agreement, in the following cases, Customer may terminate the Agreement either completely or the affected Services immediately on written notice to SAP in any of the following cases:

- a. to the extent that termination is necessary for Customer or an FS-Customer to comply with Supervisory Law or administrative or judicial requirements or orders (for example, because SAP is not able to make adjustments to the Services and/or the Agreement according to the Supervisory Law), subject to the conditions / limitations set forth in Section 5 in the cases set out therein;
- b. to the extent that a Regulatory Authority requires termination of the Agreement or the affected Service;
- c. in the event of SAP's refusal to cooperate with the Regulatory Authority or its orders due to unreasonableness and there is no reasonable alternative solution for the Customer addressing the means of the Regulatory Authority orders;
- d. to the extent that SAP does not comply with Customer's instructions according to section 6 due to unreasonableness and there is no reasonable alternative solution for the Customer addressing the matter;

Termination pursuant to this Section (and according to Section 5) shall be regarded by both Parties as termination without fault. Termination pursuant to any other contractual provisions of the Agreement and mandatory termination rights at law remain unaffected.

14. Additional Terms for the use of Hyperscalers

SAP may provide the Services leveraging Hyperscalers as FS-Subcontractors, to the extent they are subject to the then current List of FS-Subcontractors or if 30 days have passed since the corresponding Initial FS-Notification in the case of SAP's own pre-qualification of a subcontractor as an FS-Subcontractor (as well as immediately in the case of an Emergency Replacement). In this case the following special conditions apply for such FS-Subcontractors:

14.1 For the Hyperscaler Amazon Web Services (AWS)

14.1.1. Regulatory Authority

In general and to the extent AWS is used by SAP as FS-Subcontractor for the provision of Services and the FS-Customer is subject to the supervision of the Regulatory Authority, information and audit rights towards AWS under Section 4 can only be exercised by the respective Regulatory Authority. Such information and audit rights towards AWS are further subject to Section 14.1.4.

14.1.2. Information and audit right of FS-Customers towards AWS in specific countries and regions

In addition to Section 14.1.1, the information and audit rights under Section 4 can also be exercised by FS-Customer, including by its internal and external auditors, if AWS is used by SAP as FS-Subcontractor for the provision of Services and the FS-Customer is subject to the supervision of the Regulatory Authority of (i) the European Union, (ii) a member state of the European Union, (iii) Switzerland, or (iv) the United Kingdom. Such information and audit rights towards AWS are further subject to Section 14.1.4.

14.1.3. Certifications and reports of AWS

Upon request by a Regulatory Authority or third parties engaged by a Regulatory Authority, SAP will make the then current System Organization Controls 2, Type 2 report and the then current certification under ISO 27001 available to a Regulatory Authority. AWS will make the foregoing certifications and reports available to FS-Customer via its AWS Artifact tool or an alternative method selected by AWS. Such reports will be provided to a Regulatory Authority, a third party engaged by a Regulatory Authority, or to FS-Customer subject to Section 14.1.4 and is limited to the extent necessary for FS-Customer to comply with requirements of the Supervisory Law of the European Union, Switzerland and United Kingdom.

14.1.4. AWS may require FS-Customer or a Regulatory Authority to comply with applicable policies, including non-disclosure and confidentiality terms, and reasonable limits related to safety, preserving the security and confidentiality of content and intellectual property of AWS, its affiliates and customers, and maintaining the integrity of the AWS network prior to granting access to FS-Customer or a Regulatory Authority to information or to conduct any on site audit. Any visit granted will be conducted in a manner that reasonably minimizes the disruption on the operations of AWS and its affiliates.

14.2 For the Hyperscaler Microsoft Azure

14.2.1 Without prejudice to the rights under section 4, the FS-Customers only have a direct audit right against Microsoft if they participate in Microsoft's optional "Customer Compliance Program". For this purpose, the FS-Customer must independently seek to conclude a corresponding contract with Microsoft.

14.3 For the Hyperscaler Google Cloud Platform (GCP)

14.3.1 GCP reports created by independent auditors may be requested by Customer via SAP. SAP shall keep accurate records of the SOC Reports it has shared with Customer and when it has shared SOC Reports with Customer and may make such records available to Google.

Customer Obligations regarding the handling of such reports:

(a) the SOC reports may not be altered in their original form or integrated or embedded in another medium, except for the obligation of 14.3.2 (e.g. B. to a separate document or presentation).

(b) SOC reports must be password protected and reports and passwords must be exchanged in separate communications.

(c) With regard to the handling of such reports, SAP may issue further instructions to be followed in so far as they are not unreasonable.

(d) These reports must be treated as confidential as Confidential Information of SAP (cf. Section 4.2.8).

14.3.2 Customer is entitled to make available materials (initially) originating from Google, including information provided during an audit, only to the extent necessary (need to know), only under the imposition of appropriate confidentiality obligations (including obligations under Section 14.3.1), and only to the following persons/entities: its employees, other FS-Customers, auxiliary persons, supervisory authorities or persons called by supervisory authorities in the conduct of an audit, and – to the extent , there is a statutory confidentiality obligation stipulated by a professional secrecy - , to consultants. Prerequisite of the disclosure of material to supervisory authorities and persons called by the supervisory authorities in the conduct of an audit, is that the FS-Customer must first inform the aforementioned bodies, that such material is Google's Confidential Information and that all entries that are not relevant for the supervision by the regulatory authority must be blackened.

14.3.3 Data Center Location: SAP or Customer will configure a Cloud Service to store Customer Data at a specific GCP location. The location of the Google data centers for the services is specified at <https://cloud.google.com/about/locations>. Customer may request the address of such data centers online (currently at <https://support.google.com/cloud/contact/dpo>) or via other communication channels provided by Google.

Appendix A – List of FS-Customers.

AUSTRIA

Allianz Elementar Versicherungs-AG, Wiedner Gürtel 9-13, 1100 Wien
Allianz Elementar Lebensversicherung, Wiedner Gürtel 9-13, 1100 Wien
Allianz Investmentbank AG, Wiedner Gürtel 9-13, 1100 Wien

BELGIUM

Allianz Benelux SA, Koning Albert II Laan 32, 1000 Brüssel, Belgien

BRASIL

Allianz Seguros S.A., Rua Eugénio de Medeiros 303, São Paulo - SP

COLOMBIA

ALLIANZ SEGUROS S.A., Carrera 13a 29-24 Local 102, Torre Allianz - Bogota D.C.
ALLIANZ SEGUROS DE VIDA S.A., Carrera 13a 29-24 Local 102, Torre Allianz - Bogota D.C.

CROATIA

Allianz Hrvatska d.d., Heinzelova 70, 10000 Zagreb

CZECH REPUBLIC

Allianz Pojistovna, a.s., Ke Stvanici 656/3, 186 00 Praha 8
Allianz penzijní společnost a.s., Ke Stvanici 656/3, 186 00 Praha 8

FRANCE

Allianz France S.A., 1 Cours Michelet – CS 30051, 92076 Paris La Défense Cedex, France
Allianz Partners SAS 7, Rue Dora Maar, 93400 Saint Quen
Euler Hermes France SAS, 1 Place des Saisons, 92048 Paris La Défense Cedex
ALLIANZ IARD S.A., 1 Cours Michelet – CS 30051, 92076 Paris La Défense Cedex

GERMANY

Allianz Technology SE, Dieselstrasse 8, 85774 Unterföhring
Allianz Deutschland AG, Königinstraße 28, 80802 München
Allianz Global Investors GmbH Munich, Seidlstraße 24-24a, 80335 München
Allianz Global Corporate & Specialty SE, München office, Dieselstrasse 8, 85774 Unterfoehring
Allianz Private Krankenversicherungs-Aktiengesellschaft, Königinstr. 28, 80802 München
Allianz SE, Königinstraße 28, 80802 München,
Allianz Lebensversicherungs-AG, 10850 Berlin
Allianz Versicherungs-AG, Königinstraße 28, 80802 München
Deutsche Lebensversicherungs-AG, An den Treptowers 3, 12435 Berlin
Allianz Investment Management SE, Königinstraße 28, 80802 München

Allianz SE Reinsurance, Königinstraße 28, 80802 München
PIMCO Prime Real Estate GmbH, Seidlstrasse 24-24a, 80335 München

GREECE

Allianz Hellas Single Member, Athinon Ave. 110 Building C, 104 42 Athens

HUNGARY

Allianz Hungária Biztosító Zrt., Könyves Kálmán krt. 48-52, 1087 Budapest

INDONESIA

PT Asuransi Allianz Life Indonesia, World Trade Centre 3, 10th-15th floor, Jl. Jenderal Sudirman Kav. 29-31, Jakarta Selatan 12920

PT Asuransi Allianz Utama Indonesia, World Trade Centre 3, 10th-15th floor, Jl. Jenderal Sudirman Kav. 29-31, Jakarta Selatan 12920

PT Asuransi Allianz Life Syariah, World Trade Centre 3, 10th-15th floor, Jl. Jenderal Sudirman Kav. 29-31, Jakarta Selatan 12920

IRELAND

Allianz p.l.c., Allianz House, Elmpark, Merrion Road, Dublin 4

ITALY

Allianz S.p.A., Registered office: Piazza Tre Torri, 3 – 20145 Milano, Italy

LITHUANIA

Allianz Lithuania Life Insurance, Lvivo g. 25-701, LT-09320 Vilnius

LUXEMBURG

Allianz Insurance Luxembourg, 14 bld F.D. Roosevelt, 2450 Luxembourg

Allianz Life Luxembourg S.A, 14 bld F.D. Roosevelt, 2450 Luxembourg
AZ Euro Investments S.A., 14 Boulevard Franklin D. RooseveltL-2450 Luxembourg

Allianz Debt Fund SCSp SICAV-SIF, 14 Boulevard Franklin D. RooseveltL-2450 Luxembourg

Vanilla Capital Markets S.A., 14 Boulevard Franklin D. RooseveltL-2450 Luxembourg

MALAYSIA

Allianz Life Insurance Malaysia, Level 29, Menara Allianz Sentral, 203, Jalan Tun Sambanthan, Kuala Lumpur Sentral, 50470 Kuala Lumpur

Allianz General Insurance Company, Level 29, Menara Allianz Sentral, 203, Jalan Tun Sambanthan, Kuala Lumpur Sentral, 50470 Kuala Lumpur

NETHERLANDS

Allianz Nederland Groep NV, P.O. Box 761, 3000 AT Rotterdam, Nederlande

Allianz Europe B.V., Keizersgracht 484, 1017EH Amsterdam

PHILLIPINES

Allianz PNB Life Insurance, Inc, 9th Floor, Allied Bank Center, 6754 Ayala Avenue corner Legaspi Street, Makati City, MAKATI CENTRAL OFFICE, P.O. BOX 3191

POLAND

PTE Allianz Polska S.A. ul. Rodziny Hiszpanskich 1, 02-685 Warszawa

TFI Allianz Polska S.A., ul. Rodziny Hiszpanskich 1, 02-685 Warszawa

TU Allianz Zycie Polska S.A., ul. Rodziny Hiszpanskich 1, 02-685 Warszawa

TUIR Allianz Polska S.A, ul. Rodziny Hiszpanskich 1, 02-685 Warszawa

Allianz Polska Services Sp. z o.o., ul. Inflancka 4b, 00-189 Warsaw

Allianz Sp. z o.o., ul. Inflancka 4b, 00-189 Warsaw

Santander Allianz TU na Życie SA, ul. Inflancka 4b, 00-189 Warsaw

Santander Allianz TU SA; ul. Inflancka 4b; 00-189 Warsaw

PORTUGAL

Companhia de Seguros Allianz, Rua Andrade Corvo 32, 1069-014 Lisboa

ROMANIA

Allianz Tiriac Asigurari SA, 82-94 Buzeşti St., Floors 3, 4, 12, District 1, Zip Code 011 017 Bukarest

SLOWAKIA

Allianz-Slovenská Poistovna a.s., Dostojevského rad 4, 815 74 Bratislava

SPAIN

Allianz Compañía de Seguros y Reaseguros S.A., C/ Ramírez de Arellano 35, 28043 Madrid,

Allianz Popular SL, C/ Ramírez de Arellano 35, 28043 Madrid

Fénix Directo, Compañía de Seguros y Reaseguros, S.A., C/ Ramírez de Arellano 35, 28043 Madrid

SWITZERLAND

Allianz Suisse Versicherungs-Gesellschaft AG, PO Box 8010 Zürich, Richtiplatz 1, 8304 Wallisellen, Schweiz

THAILAND

Allianz Ayudhya Capital PCL, 1st Floor, Ploenchit Tower, 898 Ploenchit Road, Bangkok 10330

Allianz Ayudhya Assurance Public, 1st Floor, Ploenchit Tower, 898 Ploenchit Road, Bangkok 10330

TURKEY

Allianz Sigorta A.S., Allianz Tower, Kucukbakkalkoy Mahallesi, Kayisdagi Cad. No: 1, 34750 Atasehir Istanbul

Allianz Hayat ve Emeklilik A.S., Allianz Tower, Kucukbakkalkoy Mahallesi, Kayisdagi Cad. No: 1, 34750 Atasehir Istanbul

Allianz Yaşam ve Emeklilik A.S, Allianz Tower, Kucukbakkalkoy Mahallesi, Kayisdagi Cad. No: 1, 34750 Atasehir Istanbul

TAIWAN

Allianz Taiwan Life Insurance, 110 5F, No. 100, Sec. 5, Xin-Yi Road, Taipei

United Kingdom

Allianz Insurance plc, 57 Ladymead, Guildford Surrey GU1 1DB, Vereinigtes Königreich

Allianz Holdings plc, 57 Ladymead, Guildford Surrey GU1 1DB, Vereinigtes Königreich"

Appendix B – List of FS-Subcontractors.

FS-Subcontractor	Location/ -region / -geography of performance	Duty	EU Access ¹⁾	FS-Back2Back ²⁾	Use in Service area ³⁾
SAP SE Kampus Walldorf Dietmar-Hopp-Allee 16, 69190 Walldorf, Germany	https://www.sap.com/about/company/office-locations.html Data center at Kampus Walldorf Dietmar-Hopp-Allee 16, 69190 Walldorf, Germany and SAP-Allee, 68789 St. Leon-Rot, Germany	SAP SE provides the SAP Cloud Services and the SAP Support. SAP operates own data center at the locations Walldorf and St. Leon-Rot	(X)	Internal commitments	All service areas
Hyperscaler					
Microsoft Cooperation Inc., One Microsoft Way, Redmond, WA 98056, USA	https://azure.microsoft.com/de-de/global-infrastructure/geographies/#overview Selected geography is detailed in the relevant order form	Azure (IaaS)	(X)	X	SAP S4 Hana Private Cloud Edition (PCE)
Further FS-Subcontractors					
EPAM System, Inc.	41 University Drive, Suite 202, Newtown, PA 18940, USA	Project Management, support to SAP, administration of SAP internal systems, analytics of customer net promoter score and analytics of SAP business data		X	SAP S/4HANA Private Cloud Edition (PCE)

1) EU-Access Option according to Order Form, if agreed in the Agreement is

- X: available
- (X): available only for selected Service areas
- Otherwise not available

2) An FS-Back2Back agreement with the FS-Subcontractor is

- X: in place
- (X): in place with limitations to specific use cases
- O: under negotiation
- Sub: Subject to the agreement with the direct FS-Subcontractor

Internal commitments: equivalent to FS-Back2Backs agreements within SAP group

3) The Use in the Service area is subject to the customer specific deployment and the effective use of an optional component by the Customer according to the Agreement. Accordingly, FS-Subcontractors may not apply to specific case.



ORDER FORM for SAP Cloud Services

between SAP Deutschland SE & Co. KG
Hasso-Plattner-Ring 7
69190 Walldorf
(hereinafter "SAP")

and Allianz Technology SE
Dieselstrasse 8
85774 Unterföhring
(hereinafter "Customer/Licensee")

SAP Customer Number 1115304
SAP Contract Number 3062560352
SAP Reference Number 0221379455

1. Order Form

The parties agree on the provision of SAP Cloud Services subject to the provisions set out below (herein: Order Form).

All defined terms in the Cloud GTC and applicable Attachments or Supplements which are used in this Order Form shall have the same meaning as set forth in the Cloud GTC or applicable Attachments or Supplements.

2. Cloud Services

2.1. Cloud Service Order

As further described in the applicable Attachments, the table shows the purchased Cloud Services, Start Date and initial Subscription Term.

2.2. Scope

Cloud Service	Initial Subscription Term
RISE with SAP S/HANA Cloud, private edition, tailored option and SAP ERP, private cloud edition, tailored option "PTO" incl. Disaster Recovery incl. Enhanced Operations Service for Large Enterprises for RISE with SAP S/4HANA Cloud, private edition, tailored option	60 months, commencing on 01.06.2024 and ending on 31.05.2029
SAP Cloud Application Services Packages ("CAS Package(s)")	60 months, commencing on 01.06.2024 and ending on 31.05.2029 (See CAS Services Attachment)

3. Term and Renewal

3.1. Term

Customer's Initial Subscription Term for the Cloud Services shall begin on the start date indicated in the table in section 2.2 above and shall be effective the period set forth therein.

3.2. Renewal

3.2.1. The Subscription Term of the Order Form is set forth in chapter 2.2. "Scope" (running from the earliest Product Start Date until the latest Product End Date set forth therein) SAP and Customer may agree



to renew the Subscription Term, with a length of one year for every Renewal Subscription Term, at least two months prior to the end of the current Subscription Term. Customer must notify SAP in writing of its wish to renew this Order Form, no later than three months before the end of the Subscription Term. Relevant for the compliance with the deadline requirement is the time SAP receives the Customer's Renewal intent notice.

- 3.2.2. Notwithstanding section 3.2.1, the first renewal term for CAS services shall be coterminous with the first renewal term for the Tailored Option Service.

4. Fees, Payment and Invoices

4.1. Fees

Customer agrees to pay to SAP a recurring fee as set forth below for the Cloud Services described in this Order Form ("Service Fee"). Customer agrees that the Service Fee shall be charged starting on the first day of the Initial Subscription Term. SAP and Customer agree that such Service Fee may be changed as a result of changes agreed upon by Customer and SAP and documented in a Change Request. Fees for partial months, if any, will be prorated.

4.1.1. RISE with SAP S/HANA Cloud, private edition, tailored option and SAP ERP, private edition, tailored option (includes Disaster Recovery)

Customer shall pay all fees due to SAP within 30 days of date of invoice.

RISE with SAP S/HANA Cloud, private edition, tailored option and SAP ERP, private edition, tailored option – Service Fee indicated below:

Year 1: 1.489.050,68 EUR

Year 2: 3.705.417,47 EUR

Year 3: 3.700.563,95 EUR

Year 4: 3.700.563,95 EUR

Year 5: 3.700.563,95 EUR

RISE with SAP S/HANA Cloud, private edition, tailored option SAP ERP, private edition, tailored option will be invoiced annually in advance.

For the first contract year, RISE invoices are sent quarterly in advance.

4.1.2. Cloud Application Services (CAS)

In addition to the Service Fees for SAP Cloud Services stated above in section 4.1.1, Customer shall pay SAP the following fees for Cloud Application Services ("CAS Service Fees"), which shall be invoiced in advance:

Year 1: 20.502,20 EUR

Year 2: 183.232,69 EUR

Year 3: 183.232,69 EUR

Year 4: 183.232,69 EUR

Year 5: 183.232,69 EUR

For the first contract year, CAS invoices are sent quarterly in advance.

CAS Package	Number of Packages	Annual Fee:	Start Date	End Date
SAP CAS for Application Operations	1	20.502,20	01.06.2024	31.05.2025
SAP CAS for application security updates	2	21.963,13	01.06.2025	31.05.2029

CAS Package	Number of Packages	Annual Fee:	Start Date	End Date
SAP CAS for Application Operations	3	61.506,60	01.06.2025	31.05.2029
SAP CAS for Application Monitoring	1	99.762,96	01.06.2025	31.05.2029

In the event that the CAS start date commences after the subscription start date for RISE with SAP S/4HANA Cloud, private edition, tailored option or SAP ERP, private cloud edition, tailored option, as appropriate (each a "Tailored Option Service"), the first contract year for CAS will be less than twelve (12) months and made co-terminous with the first contract year of the Tailored Option Service ("Pro-rated CAS Contract Year").

4.2. Service Fee Increases

The fee for the Cloud Services shall increase by 3,3% at the beginning of each Renewal Subscription Term. To the extent that the parent company of SAP, SAP SE decides not to increase it as an exception, SAP shall notify the Customer in writing (e-mail sufficient) and the increase will not be made for that date.

For clarification: The fee for the Cloud Services shall not be increased during the initial Subscription Term.

5. Authorized Administrators

Customer Contacts Information:

Order Confirmation recipient name: Wolfgang Moses
 Order Confirmation recipient e-mail: Wolfgang.Moses@allianz.com
 System Provisioning Notification recipient name: Dominik Sälzler
 System Provisioning Notification recipient e-mail: Dominik.Saelzler@allianz.com

6. Customer Location

Customer has provided the following Primary Access Location:

Allianz Technology SE
 Dieselstrasse 8, 85774 Unterföhring

This is the primary (but not the only) location from which Customer will access the Cloud Service. The Primary Access Location is used by SAP for the determination of any applicable taxes. If Customer does not provide a primary access location, SAP will incorporate a default primary access location to Customer's sold-to address.

7. Change Request

During the Subscription Term, Customer can request Cloud Services and either party can request changes to the Cloud Services. Such changes shall be documented in a Change Request. When one party initiates a Change Request (the "Requesting Party"), the other party ("Responding Party") will use reasonable efforts to respond to such Change Request within ten (10) business days of receipt. Further, both parties will use reasonable efforts to either fully execute such Change Request, or mutually agree to abandon such Change Request, within fifteen (15) business days of the Responding Party's receipt of the Change Request. SAP will not perform under a Change Request until agreed to and signed by the parties.

8. Amount of Fees

Customer acknowledges and agrees that the fee for Cloud Services (and other fees as may be agreed in a written Change Request) have been established based on information provided to SAP by

Customer, and SAP has relied on the accuracy of this information provided by Customer as a material factor in performing the initial sizing/scoping and calculating the fee for Cloud Services. The fees for the Cloud Services are subject to change in accordance with the terms of this Agreement as a result of any errors or omissions in Customer provided information or Customer changes made or requested to be made to the original information used to derive the initial sizing/scoping, including but not limited to changes to the Cloud Services, Computing Environment, data center locations, Subscription Software, and/or Service Levels.

9. Data Privacy and Data Security

SAP and Customer agree on the provisions of the “Data Processing Agreement for SAP Cloud Services” in Schedule D for the Cloud Services agreed hereunder. Schedule D is part of the Agreement by way of reference and forms a written agreement for commissioned data processing. For certain Cloud Services, obligations that extend beyond Schedule D can be included in the product-specific Supplement in Schedule A.

In the case of electronic contract conclusion, SAP recommends that after entering into this present Order Form, Customer documents in writing for Customer’s records the commissioned data processing agreement referring to this present Order Form, as follows: Customer may, citing the contract number for this present Order Form, request, and SAP will thereupon provide, a hard copy, signed by SAP, of the content of this present Order Form, which Customer will countersign and return to SAP.

10. General Provisions

This Order Form is governed by and incorporates the following documents in effect as of the effective date. All documents are listed in order of precedence:

Agreement	Location
Annex for Regulatory Requirements (“ FS-Addendum ”), as far as declared applicable in the Order Form	Attached to begin of this Order Form
Order Form including Cloud Services Attachment	Each attachment is attached to this Order Form (“Attachment(s)”)
Schedule 1 of this Order Form RISE with SAP S/4HANA Cloud, private edition, tailored option – Roles and Responsibilities”	Attached to this Order Form
Schedule 2 Enhanced operations service for large enterprises for RISE with SAP S/4HANA Cloud, private edition, tailored option Service Description (“Enhanced operations service”	Attached to this Order Form
Schedule 3 of this Order Form: Disaster Recovery Services and Customer Invoked Failover Services for Private Cloud Edition Services and Tailored Option Services – Service Description Documentation	Attached to this Order Form
Schedule 4 of this Order Form Service description Cloud Application Services “Application Operations”	Attached to this Order Form
Schedule 5 of this Order Form Service description Cloud Application Services “Application Monitoring”	Attached to this Order Form
Schedule 6 of this Order Form Service description Cloud Application Services “Application Security Updates”	Attached to this Order Form

Agreement	Location
Schedule A1 of this Order Form: RISE with SAP S/4HANA Cloud and SAP ERP, private edition, tailored option - Supplemental Terms and Conditions ("Supplement")	Attached to this Order Form
Schedule A2 of this Order Form: RISE with SAP S/4HANA Cloud, private edition, tailored option - Service Description Guide SAP ERP, private edition, tailored option - Service Description Guide	Attached to this Order Form
Schedule A3 of this Order Form: SAP Cloud Application Services - Supplemental Terms and Conditions	Attached to this Order Form
Schedule B of this Order Form: List of Prices and Conditions - SAP Enterprise Support – Part 3	Attached to this Order Form
Schedule C of this Order Form: SERVICE LEVEL AGREEMENT FOR PRIVATE CLOUD EDITION SERVICES AND TAILORED OPTION SERVICES ("SLA" or "Service Level Agreement")	Attached to this Order Form
Schedule D of this Order Form: Data Processing Agreement for SAP Cloud Services ("DPA") The DPA will serve as a commissioned written data processing agreement.	Attached to this Order Form
Schedule E of this Order Form: General Terms and Conditions for SAP Cloud Services ("GTC") version 10_2021	Attached to this Order Form

Customer has had the opportunity to review the GTC and the other incorporated documents prior to executing this Order Form. SAP recommends the Customer prints copies of the documents for Customer's own records. All defined terms in the GTC, applicable supplements and the other incorporated documents used in this Order Form shall have the same meaning as set forth in the GTC, applicable supplements or other incorporated documents. Capitalized terms used in this Order Form but not defined in the Agreement are defined in the applicable Documentation.

This Agreement contains the entire legal binding statement between the parties concerning the object of this Agreement.

11. Additional Terms

11.1. Data Processing Agreement; Extension of DPA Applicability; Amendment to existing Cloud Order Forms

The parties agree that the provisions of the Data Processing Agreement for Cloud Services Version 8-2021 ("DPA") are incorporated into this Order Form.

11.2. Financial Services Annex

The Annex for Regulatory Requirements ("FS-Annex") will only apply to the Cloud Services listed below:

Cloud Services, to which the FS Annex is applied to	
Service area	Name of Cloud Service

PTO	8012062: SAP S/4HANA Cloud for Treasury and Risk Management, impairment accounting extension for expected losses, priv ed, tailored op
PTO	8012341: SAP ERP, private edition, tailored option
PTO	8014796: SAP S/4HANA Cloud for financial asset management, loans add-on, priv ed, tailored op
PTO	8014816: SAP S/4HANA Cloud for financial asset management, priv ed, tailored op
PTO	8014881: SAP S/4HANA for financial asset management, statutory reporting add-on, priv ed, tailored op
PTO	8015641: RISE with SAP S/4HANA Cloud, private edition, core, tailored option
PTO	8017139: SAP ERP for financial asset management, priv ed, tailored op
PTO	8017140: SAP ERP for financial asset management, loans add-on, priv ed, tailored op
PTO	8017211: SAP ERP for financial asset management, statutory reporting add-on, priv ed, tailored op
PTO	8017212: SAP Treasury and Risk Management Cloud, impairment accounting extension for expected losses, priv ed, tailored op

11.3. **Amendment to existing agreements on the license and support of standard-software ("Software Agreements"): Option to permanently cease use of software and partially terminate SAP Support.**

11.3.1. In accordance with the following provisions in Sections 11.3.1 and 11.3.2, Licensee has the option, taking effect on 30.06.2025 and / or on 30.06.2026 and / or on 30.06.2027 and / or on 30.06.2028 (hereinafter comprehensively "Cessation/Termination Dates") to permanently cease use of certain parts of the software acquired under the Software Agreements as follows, and to agree with SAP on the termination of the respective SAP Support.

As a prerequisite the minimum term of the last support agreement must have expired for the products affected by the termination.

All cessations/terminations together may only be carried out to a total maximum extent that leads to an overall reduction of the maintenance base by 12.745.512,00 Euros in the SAP Support contracts affected by the cessation/termination. As a prerequisite the minimum term of the last support agreement must have expired for the products affected by the termination.

Reconfiguration rights as well as rights to acquire additional licenses that may have been or will be agreed are neither applicable for the Disused Products nor for further volume of these products (where purchased under the Agreement(s) and/or under other Agreements).

Licensee must notify SAP of its intention to terminate use in writing at least 3 months before the Cessation/Termination Date. This notification must contain a list of the products and volumes for which Licensee requests the cessation/termination. In addition to that, Licensee must provide an up-to-date license audit report showing the usage of the software products to be terminated (the report shall not be older than 6 months on the planned termination date).

The cessation/terminations shall then be agreed in an amendment to the Software Agreements concerned.

In this amendment, for every product that Licensee intends to cease using and for which the usage rights were acquired in multiple software agreements ("license parts"), Licensee shall cease using the most heavily discounted parts first and thereafter the remaining parts in descending order, until the agreed cessation/termination volume is reached. Important: Use of certain software products (especially third-party software) can only be subject to cessation/termination in full per product. SAP will inform Licensee whether the product it intends to cease using falls within this category, on request.

As of the Cessation/Termination Dates, all of Licensee's rights of use with regard to the permanently discontinued software ("Disused Products") shall expire. The cessation/termination is permanent and Licensee retains no option to continue using the product. The Disused Products cannot be reactivated.

No subsequent change is made to the software license fee for the Disused Products. Licensee is not entitled to any reimbursement of fees.

The SAP Support agreements affected by the termination will be reduced by the Disused Products with effect from the Cessation/Termination Date. After the Cessation/Termination Date, Licensee is not entitled to make use of contracted support services in respect of the Disused Products, in particular. As of the Cessation/Termination Date, the support pricing base amounts stipulated in the support agreements affected by the termination and relevant to the support fee will be reduced by the value of the usage volume of the Disused Products as determined in accordance with the above provisions of 11.3.1 and the support fee for the support agreements will be recalculated for the remaining software products.

11.3.2. A cessation/termination will only be granted under the following additional conditions:

Licensee will regularly meet all of its main obligations under the software agreements and be fully paid up on all open invoices; and Licensee will, in addition to the agreed measurement and audit rights, authorize SAP to conduct a license audit after termination to confirm that use of the Disused Products has ceased permanently and that Licensee is no longer receiving SAP Support services.

11.4. For the purpose of this Order Form the following deviations to the Private Cloud SLA are agreed:

11.4.1. Section 1.4.1 is clarified as follows:

The calculated result of a Service Level Failure is based on accounting rounding rules (either up or down).

For each 1% of failure, a penalty of 2 % is paid. Example:

Target SLA PCE	Reported SLA	Failure	Result according rounding rules	Penalty
99,7 %	99,3 %	0,4 %	Factor 0	no payout
99,7 %	99,1 %	0,6 %	Factor 1	1 x 2 % of the monthly subscription fee
99,7 %	98,1 %	1,6 %	Factor 2	2 x 2 % of the monthly subscription fee

11.4.2. Section 1.7 is changed as follows:

"Excluded Downtime" means the Total Minutes in the Month attributable to: Scheduled Downtime; Agreed Down- time; Emergency Downtime; downtime caused by factors outside of SAP's reasonable control (whereby all infrastructure components used by SAP for the provision of the Cloud Services shall be considered as being under SAP's reasonable control) such as unpredictable and unforeseeable events that could not have been avoided even if reasonable care had been exercised (see examples in Section 2); or downtime of a NON-PRD system caused by using the NON-PRD for failover/to repair to a PRD system. "

11.5. For the purpose of this Order Form the following deviations to the Cloud GTC are agreed:

11.5.1. Section 3.5.1 is clarified as follows:

"For clarification sentence 2 is also applicable for modifications."

11.5.2. Section 3.5.3 is clarified as follows:

"If Customer would like to terminate this Order Form by providing written notice to SAP within 1 month of the respective SAP notice, the relevant termination effective date of such termination can be in the future, latest with effect to the next renewal date."

11.5.3. Section 4.3 sentence 2 is changed as follows:

"Annual application penetration tests of SAP Cloud Services by Customer can only be performed upon prior written request and mutual agreement after the Subscription has begun. The Subscription Term must be active prior to any such testing. The request and proposed test will be reviewed with SAP's operational teams and considered for approval. SAP reserves the right to deny or reschedule any testing requests, depending on other maintenance or operational activities or perceived risks to SAP systems or the Cloud Service. In the event a material security issue is identified during such testing and has been notified to SAP, SAP shall provide to a plan for the remediation of such security issue to Customer."

11.5.4. Section 5.2 is changed as follows:

"No cash discounts shall be granted. Payments are due 30 calendar days from the date of the invoice. SAP may send invoices in electronic format. If Customer is still in default of payment after a reasonable extension period set by SAP has passed, SAP may suspend Customer's use of the applicable Cloud Service until payment is made.

SAP will notify Customer in advance of the suspension of use with a notice period of 14 days. It is clarified that the Customer has the possibility to settle the payment within the period. Any fees not paid when due shall accrue interest at the applicable statutory interest rate. Customer is entitled to offset only claims that are uncontested or ordered by a court of law and to withhold payment or retain possession only to secure claims that are uncontested or ordered by a court of law."

11.5.5. Section 6.2 sentence 3 is changed as follows:

"SAP may terminate an Order Form by giving notice at least thirty (30) months prior to the expiration of the Initial Subscription Term or current Renewal Term."

11.5.6. Section 7.5 sentence 2 shall not apply.

11.5.7. Section 8 sentence 1 is changed as follows:

"If a third party claims that Customer's use of the Cloud Service or SAP Materials in accordance with the terms and conditions of the Order Form infringes its intellectual property rights, Customer must fully inform SAP in writing without undue delay."

11.5.8. Section 9.1. is changed as follows:

"Except in Section 2.4 either Party is liable in contract, tort, or otherwise for loss or wasted expenditure subject always as follows:

9.1.1 In cases of intent, the Party's liability extends to the full loss; in cases of gross negligence, liability is limited to the amount of foreseeable loss that would have been prevented through the exercise of due care; in cases of absence of a guaranteed quality, liability is limited to the amount of foreseeable loss that would have been prevented by the presence of the guaranteed quality.

9.1.2 In other cases, neither is liable except for breach of a major obligation (Kardinalpflicht) and only up to the limits in the following subsection. A breach of a major obligation in the meaning of this Section 9.1 .2 is assumed where the duty itself is a necessary prerequisite for the contractual performance, or where the breach of the relevant duty jeopardizes the purpose of the contract and where the other Party could legitimately rely upon its fulfillment".

9.1.3. In no event shall either Party's total and cumulative liability for all claims arising out of this Agreement per year exceed 100 % of the annual cloud value paid or payable by the Customer."

11.5.9. Section 9.3 shall be changed as follows:

"All claims against either Party in contract, tort, or otherwise for loss or wasted anticipatory expenditure are barred after a period of one year. That period begins at the point in time specified in the German Civil Code, Section 199 (1). The foregoing provisions in this section notwithstanding, the time bar comes into effect not later than five years after the claim arises. The provisions in sentences 1 to 3 in this subsection 9.3 do not apply to liability for intent or gross negligence, liability for personal injury, defects in title or liability under the German Product Liability Act. The provisions in this section do not affect the other time bar for claims arising out of defects as to quality and defects in title in section 7 (Warranties by SAP)".

11.5.10. Section 11.4 sentences 3, 4 and 5 shall not apply.

11.6. Prevention of Corruption and Bribery

11.6.1. No Breach of Anti-Corruption Laws

The Parties shall not commit, authorize or permit any action in connection with the negotiation, conclusion or the performance of the Order Form and which would cause the Parties and/or the Parties' Affiliates to be in violation of any applicable anti-corruption or anti-bribery laws or regulations. This obligation applies in particular to illegitimate payments including facilitation payments to government officials, representatives of public authorities or their associates.

11.6.2. No Unwarranted Benefit

Each Party agrees that it will not either offer, or give, or agree to give, to any employee, representative or third party acting on behalf of the other Party or accept, or agree to accept from any employee, representative or third party acting on behalf of the other Party, any undue gift or benefit, be it monetary or other, with regard to the negotiation, conclusion or the performance of the Order Form.

11.6.3. Notification Duty

Each Party shall promptly notify the other Party, if it becomes aware of or has specific suspicion of any corruption with regard to the negotiation, conclusion or the performance of the Agreement.

11.6.4. Termination Right

In case any undue gifts or benefits with regard to the negotiation, conclusion or the performance of an Order Form are made by the Contractor in violation of this Section 11.8. Prevention of Corruption and Bribery, or if Customer has reasonable cause to believe that such payments or gifts have been or are being made, Customer may terminate the respective Order Form with immediate effect.

11.7. Human Rights

As of January 1, 2023 Customer reserves the right to verify in accordance with § 6 (5) LkSG once a calendar year, either itself or through qualified third parties instructed by it and to which SAP has agreed to, the effectiveness of SAP's prevention measures of the LkSG by way of audit controls and only if Customer can substantiate that SAP's annual reporting in the Human Rights and Labor Standards chapter of the SAP Integrated Report (available at www.sapintegratedreport.de) or a separately published report on SAP's human rights due diligence is not sufficient for an evaluation. For that purpose, Customer will provide SAP with reasonable prior written notice of such audit of at least 14 calendar days. Customer will conduct such audits only by reviewing additional documentation to the Integrated Report requested by Customer from SAP to adequately demonstrate the effectiveness of SAP's prevention measures required under the LkSG. Onsite audit rights at SAP's premises are not granted.

SAP and Customer have both established and agree to maintain during the Order Form Term Rules and Policies to secure human rights also across their supply chains, fair labour practices, environmental progress and sustainability. In this regard the Parties also abide to laws applicable to them.

SAP Policies and statements in that regard are published under the following Links:

- Sustainability Policies:
<https://www.sap.com/about/company/purpose-and-sustainability/reporting-and-policies.html#policies>
- SAP Global Human Rights Commitment Statement:
<https://www.sap.com/about/company/purpose-and-sustainability/reporting-and-policies.html?pdf-as-set=a8c6d366-577c-0010-82c7-eda71af511fa&page=1&source=social-atw-mailto#policies>
- Human Rights on sap.com:

www.sap.com/human-rights

And the chapter on Human Rights in the integrated report:

<https://www.sap.com/integrated-reports/2021/en.html?pdf-asset=903be721-1b7e-0010-bca6-c68f7e60039b&page=129>

11.8. Transformation Incentive

“Cloud Credit” is a credit in the amount set forth in Section 11.8.2 that is applied to future invoices issued under this Order Form or to invoices that are issued under any other order form(s) for SAP Cloud Services with an order form effective date that is either the same as or is subsequent to this Order Form Effective Date. Subject to Section 11.10.3 below, the Cloud Credit shall be applied to such future invoices for SAP Cloud Services of this Order Form until the Cloud Credit has been fully consumed. Any remaining balance of the Cloud Credit after the termination or expiration of Customer's subscription to SAP Cloud Services shall be forfeited.

Credit Issuance and Forfeiture:

- 11.8.1. SAP shall issue, starting with the first invoice of this Order Form, the following Credit in the first contract year of this Order Form, starting 01.06.2024 till 31.05.2025 at latest. This credit can be fully used in 2024 against invoices of this Order Form.
- 11.8.2. Cloud Credit in the amount of EUR 1.129.000,00
- 11.8.3. Customer must use the Credit within the timeframes set forth in Section 11.8.1., after which the Credit shall expire, and SAP shall have no obligation to provide any credit, reduction, refund or remuneration.

11.9. Deviation from Schedule A1 “Supplement”

11.9.1. Section 5.1.2. is clarified as follows:

The customer can use the Bundled Cloud Services listed in chapter 5.1.

The Bundled Cloud Services are free of charge. Respectively supplements can be downloaded from the link added to chapter 5.1.2.

11.10. Deviation to Schedule C “SLA”

11.10.1. Section 5.1.3 is clarified as follows:

“The Credit referred to in this Section of the SLA is a contractual penalty (“Vertragsstrafe”, German Civil Code section 339) as stated in Section 3.3.1. of the Cloud GTC. As explained in the Cloud GTC, the service credits paid will be offset against any damages claims and any claims for wasted expenditures the Customer may have against SAP. Section 3.3.1. of the Cloud GTC shall prevail over section 5.1.3. of the SLA.”

12. Validity of Offer

This offer is open for acceptance until 29.03.2024.

Walldorf, _____

SAP Deutschland SE & Co. KG

DocuSigned by:
ppa. Anja Langhoff
02BBDBAFE6B41D...

Unterföhring, 27/03/2024 _____

Allianz Technology SE

DocuSigned by:
ppa. Gabriele Spiess
8FBF8A5C6430407...

CLOUD SERVICES ATTACHMENT

1. System Set-Up

SAP will provide virtual and/or physical servers and other computing equipment at the data center facilities listed in section 1.2 below. SAP reserves the right to change or substitute server models of equivalent or better performance ratings dependent upon changes in scope and availability of hardware.

1.1. System Set-up Table

The system provisioning is planned in 12 phases:

Phase 1 starts on 01.06.2024 and ends on 31.05.2029.

Phase 2 starts on 01.08.2024 and ends on 31.07.2025.

Phase 3 starts on 01.01.2025 and ends on 31.05.2029.

Phase 4 starts on 01.01.2025 and ends on 31.01.2026.

Phase 5 starts on 01.02.2025 and ends on 31.05.2029.

Phase 6 starts on 01.02.2025 and ends on 28.02.2026.

Phase 7 starts on 01.04.2025 and ends on 30.04.2025.

Phase 8 starts on 01.05.2025 and ends on 31.05.2029.

Phase 9 starts on 01.06.2025 and ends on 31.05.2029.

Phase 10 starts on 01.02.2026 and ends on 31.05.2029.

Phase 11 starts on 01.03.2026 and ends on 31.05.2029.

Phase 12 starts on 01.04.2026 and ends on 31.05.2029.

System-setup table of phase 1:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ADS - DEV	NW JAVA on ASE (DB server)	DEV	DB	32	896	98,0%	
1	ADS - DEV	JAVA Application Server (complex)	DEV	App	32	200	98,0%	
1	ADS - DEV	Additional Storage - Filesystem	Non-PRD	Storage		2048	98,0%	
3	LB	Loadbalancer v2 package including 1TB traffic (primary DC)		Service				
1	LB	Advanced Load Balancing Package (incl. 1TB traffic, 200Mbit/s) (primary DC)		Service				
1	WTS	Unmanaged IaaS WTS (primary DC)						
1		LogServ 50 host package (primary DC)		Service				
1		Blob storage hot GRS 1GB (primary DC)		Storage		2048		

System-setup table of phase 2:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - SBX	SAP HANA for SAP Enterprise Resource Planning (ERP)	SBX	DB	2048	4876	98,0%	
2	ERP - SBX	SAP ERP AppServer incl. TBC AddOn	SBX	App	64	200	98,0%	
1	WD - Fiori	SAP Webdispatcher	Non-PRD	App	16	128	98,0%	
1	ERP - SBX	Additional Storage - Filesystem	Non-PRD	Storage		2048	98,0%	

System-setup table of phase 3:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	WD - WS1	SAP Webdispatcher	Non-PRD	App	16	128	98,0%	

System-setup table of phase 4:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - DEV	SAP HANA for SAP Enterprise Resource Planning (ERP)	DEV	DB	2048	4876	98,0%	
2	ERP - DEV	SAP ERP AppServer incl. TBC AddOn	DEV	App	64	200	98,0%	

System-setup table of phase 5:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	WD - WS2	SAP Webdispatcher	Non-PRD	App	16	128	98,0%	

System-setup table of phase 6:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - QAS	SAP HANA for SAP Enterprise Resource Planning (ERP)	QAS	DB	2048	4876	98,0%	
2	ERP - QAS	SAP ERP AppServer incl. TBC AddOn	QAS	App	128	200	98,0%	
1		7/24 support for NonPRD weekend service requests		Service				

System-setup table of phase 7:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - PRD	SAP HANA for SAP Enterprise Resource Planning (ERP)	PRD	DB	2048	4876	99,7%	
5	ERP - PRD	SAP ERP AppServer incl. TBC AddOn	PRD	App	128	200	99,7%	
2	ERP - PRD	SAP ERP AppServer incl. TBC AddOn (ASCS,ERS)	PRD	App	16	200	99,7%	
2	WD - WS3/WS4	SAP Webdispatcher	PRD	App	16	128	99,7%	
1	ERP - PRD	Additional Storage - Filesystem	PRD	Storage		2048	99,7%	
1	ERP - PRD	Additional Storage - HANA DB	PRD	Storage		1024	99,7%	
1	ADS - PRD	NW JAVA on ASE (DB server)	PRD	DB	32	896	99,7%	
3	ADS - PRD	JAVA Application Server (complex)	PRD	App	32	200	99,7%	

System-setup table of phase 8:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - PRD	SAP HANA for SAP Enterprise Resource Planning (ERP)	PRD	DB	2048	4876	99,7%	DR_12h_30m
5	ERP - PRD	SAP ERP AppServer incl. TBC AddOn	PRD	App	128	200	99,7%	DR_12h_30m
2	ERP - PRD	SAP ERP AppServer incl. TBC AddOn (ASCS,ERS)	PRD	App	16	200	99,7%	DR_12h_30m
1	ERP - PRD	Additional Storage - Filesystem	PRD	Storage		2048	99,7%	DR_12h_30m
1	ERP - PRD	Additional Storage - HANA DB	PRD	Storage		1024	99,7%	DR_12h_30m
1	ADS - PRD	NW JAVA on ASE (DB server)	PRD	DB	32	1408	99,7%	DR_12h_30m
3	ADS - PRD	JAVA Application Server (complex)	PRD	App	32	200	99,7%	DR_12h_30m
2	WD - WS3/WS4	SAP Webdispatcher	PRD	App	16	128	99,7%	DR_12h_30m
2	LB	Loadbalancer v2 package including 1TB traffic (secondary DC)		Service				
1	LB	Advanced Load Balancing Package (incl. 1TB traffic, 200Mbit/s) (secondary DC)		Service				
1	WTS	Unmanaged IaaS WTS (secondary DC)						
4		long distance DR package per SID (primary DC)						

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1		long distance DR package per SID (primary DC)						

System-setup table of phase 9:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - SBX	SAP HANA for SAP Enterprise Resource Planning (ERP)	SBX	DB	512	2572	98,0%	
2	ERP - SBX	SAP ERP AppServer incl. TBC AddOn	SBX	App	64	200	98,0%	
1	WD - Fiori	SAP Webdispatcher	Non-PRD	App	16	128	98,0%	

System-setup table of phase 10:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	S4 - DEV	SAP HANA for SAP S/4HANA	DEV	DB	2048	4876	98,0%	
2	S4 - DEV	SAP S/4HANA AppServer incl. Fiori AddOn	DEV	App	64	200	98,0%	

System-setup table of phase 11:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	S4 - QAS	SAP HANA for SAP S/4HANA	QAS	DB	2048	4876	98,0%	
2	S4 - QAS	SAP S/4HANA AppServer incl. Fiori AddOn	QAS	App	128	200	98,0%	
1		7/24 support for NonPRD weekend service requests		Service				

System-setup table of phase 12:

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
-1	ERP - PRD	SAP HANA for SAP Enterprise Resource Planning (ERP)	PRD	DB	2048	4876	99,7%	DR_12h_30m
-5	ERP - PRD	SAP ERP AppServer incl. TBC AddOn	PRD	App	128	200	99,7%	DR_12h_30m
-2	ERP - PRD	SAP ERP AppServer incl. TBC AddOn (ASCS,ERS)	PRD	App	16	200	99,7%	DR_12h_30m
1	S4 - PRD	SAP HANA for SAP S/4HANA	PRD	DB	2048	4876	99,7%	DR_12h_30m
5	S4 - PRD	SAP S/4HANA AppServer incl. Fiori AddOn	PRD	App	128	250	99,7%	DR_12h_30m
2	S4 - PRD	SAP S/4HANA AppServer incl. Fiori AddOn (ASCS,ERS)	PRD	App	16	200	99,7%	DR_12h_30m

1.2. SAP Connectivity Option

SAP Connections	Type of connection	Start	Quantity
Connection #1	CPC Azure VPN package 1Gbit/s including 1TB traffic (primary DC)	01.06.2024	1
Connection #2	CPC Azure 1TB additional internet traffic package (primary DC)	01.06.2024	1
Connection #3	CPC Azure Expressroute 1Gbit/s gateway package (primary DC)	01.06.2024	2
Connection #4	CPC Azure Expressroute 100Mbit/s port speed package (primary DC)	01.06.2024	1
Connection #5	CPC Azure VNet Peering 1TB traffic package (primary DC)	01.06.2024	1
Connection #6	CPC Azure VPN package 1Gbit/s including 1TB traffic (secondary DC)	01.05.2025	1
Connection #7	CPC Azure 1TB additional internet traffic package (secondary DC)	01.05.2025	1
Connection #8	CPC Azure Expressroute 1Gbit/s gateway package (secondary DC)	01.05.2025	1
Connection #9	CPC Azure Expressroute 100Mbit/s port speed package (secondary DC)	01.05.2025	1
Connection #10	CPC Azure VNet Peering 1TB traffic package (secondary DC)	01.05.2025	1

SAP will permit the outlined number of connections at the Point of Demarcation to access the Computing Environment. SAP and its subcontractors utilize data center facilities in different locations. SAP shall decide on the location, design, deployment, maintenance, and management of the data center facilities used to provide the Cloud Services. A listing of current data center locations can be found at: <http://sap.com/agreements-cloud-services-data-centers>

SAP will install and provide a secured local area network (LAN) and network monitoring tools in the SAP managed data center facilities based on a Customer defined private IP address and IP range that supports no fewer than 254 usable IP addresses. Customer must provide such IP details to SAP on or before the Order Form effective date. Customer is responsible for installing and maintaining a connection from Customer's user location via the Internet to the Point of Demarcation. SAP will provide the Cloud Services within the data center facilities from the Point of Demarcation.

1.3. Optional Managed Services

For the first 48 months of the initial term, the customer is entitled to request the following additional Managed Services by change request at the listed conditions. The right of subsequent purchase for these Managed Services is subject to the general availability of these Managed Services.

Option: additional sandbox environment.

Anzahl	System-Name	Service	Umgebungsart	Server-Typ	RAM (GiB)	Speicherplatz (GB) pro Server	SLA	DR Services
1	ERP - SBX	SAP HANA for SAP Enterprise Resource Planning (ERP)	SBX	DB	2048	4876	98,0%	
2	ERP - SBX	SAP ERP AppServer incl. TBC AddOn	SBX	App	64	200	98,0%	
1	WD - Fiori	SAP Webdispatcher	Non-PRD	App	16	128	98,0%	
1	ERP - SBX	Additional Storage - Filesystem	Non-PRD	Storage		2048	98,0%	

With the additional sandbox environment, the annual fee increases by EUR 162.269,00.

2. Scheduled Downtime

SAP may perform maintenance activities during Scheduled Downtime of four (4) hours per month to maintain each system listed below during the selected Maintenance Windows:

Landscape	Occurrence	Concrete day	Time	SID-Type
DEV, SBX	First	Monday each month	08:00am – 12:00 p.m. CET / CEST	NON-PRD
QAS, nonPRD	Second	Saturday each month	08:00am – 12:00 p.m. CET / CEST	NON-PRD
PRD	Third	Sunday each month	06:00 – 10:00 a.m. CET / CEST	PRD

The parties may mutually agree to change the Scheduled Downtime hours through the SAP Cloud service request ticket process.

3. Additional Terms for Subscription Software

3.1. Subscription Software included in Cloud Services

SAP will provide the following Subscription Software during the Initial Subscription Term and any renewal term.

Phases		from 01.06.2024	from 01.01.2025	from 01.02.2025	from 01.04.2025	from 01.05.2025	from 01.06.2025	from 01.06.2026
Subscription Software ^{1 2}	Subscription Software Metric	Units	Units	Units	Units	Units	Units	Units
8015641 – RISE with SAP S/4HANA Cloud, private edition, core, tailored option	Full Use Equivalent	-	-	-	-	-	60	140

¹ Renewal of this Order Form will be cumulative (and the renewal term uniform) for all Subscription Software listed above and any additional Subscription Software hereto added by addendum and the Cloud Services described herein

² Including the required usage rights for SAP HANA, runtime edition for applications & SAP BW - New/Subsequent private edition, tailored option

Phases		from 01.06.2024	from 01.01.2025	from 01.02.2025	from 01.04.2025	from 01.05.2025	from 01.06.2025	from 01.06.2026
Subscription Software ^{1 2}	Subscription Software Metric	Units	Units	Units	Units	Units	Units	Units
8012062 - SAP S/4HANA Cloud for Treasury and Risk Management, impairment accounting extension for expected losses, priv ed, tailored op	1.000.000.000 Assets Under Management	-	-	-	-	-	1	700
8014796 - SAP S/4HANA Cloud for financial asset management, loans add-on, priv ed, tailored op	100.000.000 Assets Under Management	-	-	-	-	-	-	7.000
8014881 - SAP S/4HANA for financial asset management, statutory reporting add-on, priv ed, tailored op	100.000.000 Assets Under Management	-	-	-	-	-	-	7.000
8014816 – SAP S/4HANA Cloud for financial asset management, priv ed, tailored op	100.000.000 Assets Under Management	-	-	-	-	-	1	7.000
8012341 – SAP ERP, private edition, tailored option	Full Use Equivalent	60	60	60	60	60	60	-
8017212 – SAP Treasury and Risk Management Cloud, impairment accounting extension for expected losses, priv ed, tailored op	1.000.000.000 Assets Under Management	1	1	1	1	1	700	-
8017140 – SAP ERP for financial asset management, loans add-on, priv ed, tailored op	100.000.000 Assets Under Management	2.200	3.000	4.000	6.000	7.000	7.000	-
8017211 – SAP ERP for financial asset management, statutory reporting add-on, priv ed, tailored op	100.000.000 Assets Under Management	2.200	3.000	4.000	6.000	7.000	7.000	-
8017139 - SAP ERP for financial asset management, priv ed, tailored op	100.000.000 Assets Under Management	2.200	3.000	4.000	6.000	7.000	7.000	-
8017517 - SAP HANA, runtime edition for applications & SAP BW - New/Subsequent priv ed, tailored option	HSAV	1	1	1	1	1	1	1

3.2. Subscription Software Support included in Cloud Services

SAP will provide SAP Enterprise Support services as described in the Enterprise Support Schedule for the Subscription Software. Notwithstanding the foregoing, the service level credits described in the SAP Enterprise Support Schedule shall not apply. Fees for SAP Enterprise Support are included in the Fee and payable as set forth in this Order Form. SAP Enterprise Support shall commence upon the grant of access to the Subscription Software.

3.3. Optional Subscription Software

Fees for the Managed Services agreed in this Agreement shall apply from the date of entry into force of this Agreement. They are based on a combination of Subscription Software, Infrastructure, and Managed Services as described in Chapters 1 and 3 of the Cloud Services Annex.

The additional fee for an additional purchase of additional FUEs or additional Subscription Software, together with the activation of such subscription software, may include additional infrastructure and additional managed services. If the Contractor requests additional software or additional users for the existing IT environment (see Section 1.1 of Annex Cloud Services), SAP is solely responsible for deciding whether additional infrastructure or managed services are required.

During the first 60 months of the term of this Agreement, Customer may request additional Subscription Software (but limited to the Pro Products initially purchased under this SOW) and unlock such Subscription Software in the Computing Environment. Fees for the Additional Subscription Software are based on the net prices specified in the table below. If the additional Subscription Software requires additional infrastructure and/or managed services, these costs must be agreed upon in the Additional Subscription Software Change Request.



Amount	Subscription Software	Metric	Fee per year (EUR)
1	8015641 – RISE with SAP S/4HANA Cloud, private edition, core, tailored option	Full Use Equivalent	2.007,84
1	8012062 - SAP S/4HANA Cloud for Treasury and Risk Management, impairment accounting extension for expected losses, private edition, tailored option	1.000.000.000 Assets Under Management	772,68
1	8014816 – SAP S/4HANA Cloud for financial asset management, private edition, tailored option	100.000.000 Assets Under Management	191,76
	8012341 – SAP ERP, private edition, tailored option	Full Use Equivalent	2.007,84
	8017212 – SAP Treasury and Risk Management Cloud, impairment accounting extension for expected losses, private edition, tailored option	1.000.000.000 Assets Under Management	772,68
1	8017139 - SAP ERP for financial asset management, private edition, tailored option	100.000.000 Assets Under Management	191,76

In the event that additional infrastructure and/or managed services are required, SAP will charge fees for such additional infrastructure and/or managed services on the commercial terms applicable at the time of the respective post-purchase of the additional infrastructure and/or managed services.

4. Enterprise Cloud Services – Additional Services

Customer may request Additional Services, which are Enterprise Cloud Services that are available for an additional fee, (or the SAP Services Team may request such services on Customer's behalf) through a service request on the SAP Service Request Platform. SAP will inform Customer of the fees that will apply to the requested Additional Service, and Customer shall confirm the purchase of such service. Any Additional Services completed by SAP will be invoiced monthly in arrears.

5. Enterprise Cloud Services - Service Requests

SAP reserves the right to reasonably limit the use of the services set forth in the Roles and Responsibilities Documentation and initiated via a service request if Customer's use is unreasonably excessive. If any such limitation is imposed, Customer's usage shall be reviewed and assessed with Customer.

6. Roles & Responsibilities Service Catalog for Enterprise Cloud Services

The Service Catalog of the Roles & Responsibilities for Enterprise Cloud Services is attached to the Enterprise Cloud Services Attachment as Schedule 1 "SAP Enterprise Cloud Services - RISE with SAP S/4HANA Cloud, private edition and SAP ERP, tailored option".

7. Additional Terms for Disaster Recovery Services

The project to implement DR for the applicable PRD systems will be mutually agreed upon between SAP and Customer which shall entail detailed planning and as part of Customer's Cloud Service implementation project. The DR failover-capability to the secondary DR site for the systems in scope will be available upon completion of the setup based upon this jointly agreed plan.

8. Supplemental Terms for Enhanced Operations service for large enterprises for RISE with SAP S/4HANA Cloud, private edition, tailored option Services

The service hours for the delivery of Service Requests in NON-PRD in Section 6 "Service Requests" of the Service Level Agreement is deleted and replaced with the following: "24x7 subject to Excluded Downtime."

9. Server Provisioning

- 9.1. Server Provisioning is described in the "Server Provisioning" section of the RISE with SAP S/HANA Cloud, private edition, tailored option and SAP ERP, PCE, tailored option roles and responsibilities Documentation ("Server Provisioning"). If Customer purchases Server Provisioning, SAP will provision to Customer one (1) physical server or virtual machine running on a physical device ("Server") without operating such Server or assuming responsibility for managing or providing support for the Subscription Software and Customer-provided software, if applicable ("Server Provisioning"). SAP shall in no event be responsible for any other tasks or services in connection with Server Provisioning.
- 9.2. SAP shall automatically restart such Server when it becomes unavailable. Customer shall submit a support ticket if it requires SAP to shut down the Server (temporarily or permanently).
- 9.3. The Technical and Organization Measures of the DPA shall only apply to the extent of SAP's responsibilities for Server Provisioning as set forth in the RISE with SAP S/4HANA Cloud, private edition, tailored option and SAP ERP, PCE, tailored option roles and responsibilities Documentation.



SAP Enterprise Cloud Services

ROLES AND RESPONSIBILITIES ("R&R")

RISE with SAP S/4HANA Cloud, private edition and SAP ERP, tailored option

v.7-2023

PUBLIC

JULY 2023

© 2023 SAP SE. All rights reserved

© 2023 SAP SE or an SAP affiliate company. All rights reserved.

No part of this publication may be reproduced or transmitted in any form or for any purpose without the express permission of SAP SE or an SAP affiliate company.

The information contained herein may be changed without prior notice. Some software products marketed by SAP SE and its distributors contain proprietary software components of other software vendors. National product specifications may vary.

These materials are provided by SAP SE or an SAP affiliate company for informational purposes only, without representation or warranty of any kind, and SAP or its affiliated companies shall not be liable for errors or omissions with respect to the materials. The only warranties for SAP or SAP affiliate company products and services are those that are set forth in the express warranty statements accompanying such products and services, if any. Nothing herein should be construed as constituting an additional warranty.

FIVE CATEGORIES: For avoidance of doubt, all of the tasks and services itemized in this Roles & Responsibilities document are provided as a catalog of services. However, the relevance and necessity of each individual task or service will be unique to each customer's Computing Environment. Customers are responsible to review and analyze these tasks and make the selection of such tasks/services in collaboration with an SAP Cloud Architect Advisor ("CAA"), with a SAP Client Delivery Manager ("CDM"), or with the Private Cloud customer center team. Additionally, the availability of a specific service may also be limited for sandbox or other test environments.

Standard Services	All tasks/services that are included as part of the Standard Services, covered by the Service Fee and performed by SAP ² , as applicable to customer.
Optional Services	Optional Services: these tasks/services are not covered in the Standard Services, and are not and cannot be covered by the Cloud Application Services ¹ ("CAS"). These tasks/services • may be elected by customer, • are subject to additional service fees, • must be specifically contracted for and itemized in the customer's contract (original contract or via a change request), and • can only be performed by SAP².
Additional Service	Additional Service: Include one-off tasks/services which are not covered by Standard, Optional and/or Cloud Application Services. These tasks/services • may be elected by customer, • are subject to additional service fees and • can only be performed by SAP².
SAP Cloud Application Services¹ ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Cloud Application Services ¹ ("CAS"). Can be performed by customer: Include tasks/services that a customer can perform, but the customer may elect to have SAP ² to deliver. CAS is subject to additional service fees as agreed in a customer's contract.
Excluded Tasks	Excluded Tasks are those tasks/services that can only be performed by the customer and are excluded from Standard Services, Optional Services, Additional Services and/or Cloud Application Services.

¹ **Cloud Application Services ("CAS")** is a category of supplementary services identified as Cloud Application Services ("CAS") in this document. CAS is subject to additional service fees as agreed in a customer's contract. CAS excludes all services involving the extension, reduction, or change of the customer's existing landscape, e.g. provisioning additional infrastructure resources. SAP may provide CAS services in either proactive or reactive mode. For SAP to provide services in a reactive mode, the customer is required to submit CAS service requests to SAP via the ticketing/service request system made available to customer for such purpose.

² The term "**SAP**" when used herein refers to SAP as defined in the customer Order Form, and means either SAP or the relevant SAP third party provider or subcontractor.

Not all tasks or services listed in the R&R are relevant to all customer environments. **Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).** Certain tasks or services may not be available from SAP or certain SAP third party providers, and may not be available in certain regions. The availability of a specific service may also depend on characteristics of the specific customer situation (e. g. system size, solution scope etc.) and must be individually checked and confirmed with an SAP Cloud Architect Advisor ("CAA"), an SAP Client Delivery Manager ("CDM"), or with the Private Cloud customer center team.

All tasks and work efforts not purchased by customer or not provided SAP as part of the standard service but applicable to customer and its Computing Environment are the responsibility of customer.

The PDF version of this **Roles & Responsibilities** document made available by SAP at <https://www.sap.com/about/agreements/policies/hec-services.html> at is the Documentation of record. Customer acknowledges that a non-pdf version of this Roles & Responsibilities document may be made available for task analysis, task planning and overall customer task management purposes, but such version shall not be considered Documentation.

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
			All task descriptions exclusively refer to the execution of the respective task and are exclusive of potentially required hardware or infrastructure capacities (e.g. compute, storage, network connectivity etc.). Any extension to such entities is required to be processed via a contractual change request (CR) and is subject to additional service fees. Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler). Tasks are applicable only to systems managed by the service provider unless otherwise explicitly noted. The availability of a specific service may also be limited for sandbox or other test environments.	Where indicated, additional process flow information is available for selected services and can be viewed on the SAP Help Portal .	.	.
1		A - Service Management	For accounts delivered by a Premium Partner, certain tasks in chapter "A - Service Management" are a joint effort between SAP and that Premium Partner.		.	.
2		Account Management			.	.
3	SM_1.1.01	Conduct Delivery and Operations Kick-Off -Review Support Manual -Landscape Review and Scope Alignment -Detailed Engagement and Operations Review	Standard Services		n/a	n/a
4	SM_1.1.02	Capacity Management Review: Provide data via report and/or self-service reporting tool for review of systems within landscape, monitoring, and reporting of resource usage (e.g. storage capacity, memory and CPU) to prevent operational issues. Review need for service changes and extensions based on technical resource consumption trends.	Standard Services		n/a	n/a
5	SM_1.1.03	Capacity Management Planning: Provide periodic capacity plan based on technical capacity management review	Standard Services		n/a	n/a
6	SM_1.1.04	System outage notification and escalation management	Standard Services	Handling of critical service situations aiming to bring the service back to targeted quality and standards. Provide Root Cause Analysis (RCA) for production environment(s) only.	n/a	n/a
7	SM_1.1.05	Service Performance Review and Report – Periodic - Provide review and suggestions if a high volume of support requests occurs - Service availability and KPIs	Standard Services		n/a	n/a
8		Service Request Management - Technical Support			.	.
9	SM_1.2.01	Service Request Management: - Create service requests via the service request platform - Update and resend service requests back to service provider via the service request platform when additional customer action/attention/information is required	Excluded Tasks	Change Requests (CR) or Change Orders subject to process defined in Agreement. Service requests which require commercial change requests (CR) or which need to be planned and coordinated are performed during customer business hours only.	n/a	n/a
10	SM_1.2.09	Service Request Management - Receive and acknowledge service requests via the service request platform - Assess criticality/priority of service requests, effort and approvals required - Coordinate request approval - Notify requester of approval or rejection - Coordinate service request scheduling - Notification of service request completion	Standard Services	Provider will address service requests during the hours of operations as defined in the Service Level Agreement. Change Requests (CR) or Change Orders subject to process defined in Agreement. Service requests which require commercial change requests (CR) or which need to be planned and coordinated are performed during customer business hours only.	n/a	n/a
11	SM_1.2.11_AE	Create service plan for reoccurring and proactive CAS tasks / Create and maintain service plan for reoccurring and proactive services	Standard Services	Only applicable if CAS packages are part of the contract.	n/a	n/a
12	SM_1.2.12_AE	Create and maintain release plan for managed landscape	Standard Services	Including check for SAP software updates (SAP Release Version, SAP Support Packages, SAP kernel updates, DB version) for contracted landscape.	n/a	n/a
13		Services to support industry regulations	This section does not define a fixed-scope service package but represents an open list of possible services that can be offered to support specific compliance needs; a detailed service scope must be specified in the managed services contract; examples for industry standards that may be addressed with these services are GxP or HIPAA.		.	.
14		Qualifications Services			.	.
15	SM_1.6.02	Qualification deliverables (project and lifecycle documentation)	Optional Services		n/a	n/a
16	SM_1.6.03	Personnel qualification and training as mandatory requirement for administrator access to regulated industries systems	Optional Services		n/a	n/a
17	SM_1.6.04	Onboarding / system set-up with additional Installation Qualification	Optional Services		n/a	n/a
18		Process Services			.	.
19	SM_1.6.06	Documents and records management for regulated industries	Optional Services		n/a	n/a
20	SM_1.6.07	Change and configuration management for regulated industries	Optional Services		n/a	n/a
21	SM_1.6.08	Problem management for regulated industries	Optional Services		n/a	n/a
22	SM_1.6.09	Audits and periodic review	Optional Services		n/a	n/a
23	SM_1.6.10	System decommission for regulated industries	Optional Services		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
24		B - Managed Infrastructure	Section B - Managed Infrastructure describes the infrastructure services provided for components used as part of managed systems; services around "Server Provisioning" (aka IaaS) are described in detail in the respective section. Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).			
25		Data Center Management			-	-
26	INFRA_1.1.01	Manage Data Center	Standard Services	This service is operated either in DC facilities owned by the respective service provider, in rented co-location facilities, public cloud, or on hyperscaler infrastructure platforms.	n/a	n/a
27		Network Management			-	-
28	INFRA_1.2.01	Manage remote connection between the managed system landscape and service provider's support infrastructure	Standard Services	Service initiated after formal transition to service provider.	n/a	n/a
29	INFRA_1.2.03	Move an existing system in a Customer landscape to new subnet for the purpose of network segregation	Additional Service	For moving or reconfiguring existing virtual machines from one subnet to another subnet. Does not include Customer Gateway Servers (CGS) - see INFRA_1.2.06 for CGS.	n/a	n/a
30	INFRA_1.2.03A	Provision additional subnets as part of initial landscape build or after network build to segregate tiers (e.g. PROD, DEV, QA) or move VMs	Additional Service	Up to Two (2) additional subnets are covered as part of standard offering during the initial landscape build. Customers can request more subnets using this Additional Service if more subnets are needed during the initial network build or in an existing landscape. This service covers subnet creation for tiers such as Sandbox, DEV, QA etc. only and does not cover isolation or restrictions between subnets using SG/NSG/Firewall services; for this use INFRA_1.2.03B. Not in scope for application or DB server separation.	n/a	n/a
31	INFRA_1.2.03B	Configure communication restrictions between production and non-production tiers	Additional Service	Can be used if restrictions are needed between tiers or on-premise systems. Customer must provide communication matrix to provision restrictions (e.g. allow trans mount access across tiers; allow port 3299 from prod to QA etc.) Restriction rules (such as ACLs) are limited to Twenty (20) per tier default are exe. Such restrictions between application and DB servers within a tier are not in scope not permitted. Service provider access can't be restricted.	n/a	n/a
32	INFRA_1.2.04	Modify existing customer connectivity (VPN, MPLS, Cloud Peering, ExpressRoute, Direct Connect, Interconnect, VPC/VNET Peering, etc.).	Standard Services	One (1) ticket per each feature change is required (after initial connectivity is established). Service modifications require downtime.	n/a	n/a
33	INFRA_1.2.06	IP address migration of Customer Gateway Servers (CGS) - Change IP addressing of existing network segment to new IP addressing	Additional Service	For use where the original IP range of a network segment (including delivered systems) needs to be changed. Not available for systems in a Hyperscaler environment.	n/a	n/a
34	INFRA_1.2.07	Enable DNS integration of on-premise customer domains into customer DNS servers to resolve on-premise host names	Standard Services	Standard service during initial set-up and onboarding phases only. If required after system handover use INFRA_1.2.11. Supported through DNS forwarding on the DNS server. This task does not add /etc/hosts file entries on individual servers.	n/a	n/a
35	INFRA_1.2.08	Migrate SAP domain (*.sap.biz) to customer domain or customer domain migration	Additional Service	Used in case customer wants to change from internal domain to customer domain or want to migrate existing domain to new domain due to organizational change.	n/a	n/a
36	INFRA_1.2.11	Change DNS Configuration	Additional Service	DNS forwarding to Customer on-premise domains; zone transfers to multiple remote sites; and changes to existing DNS config.	n/a	n/a
37		Hardware Operations	Applies to equipment managed by service provider.		-	-
38	INFRA_1.4.03	Plan and conduct managed service infrastructure maintenance	Standard Services		n/a	n/a
39	INFRA_1.4.05	Monitor critical operations parameters of computing environment	Standard Services		n/a	n/a
40	INFRA_1.4.06	Monitor disk capacity	Standard Services	Subject to additional fees for additional capacity.	n/a	n/a
41	INFRA_1.4.07	Monitor server capacity	Standard Services	Subject to additional fees for additional capacity.	n/a	n/a
42	INFRA_1.4.08	Monitor network utilization	Standard Services		n/a	n/a
43	INFRA_1.4.09	Infrastructure/hardware/system requests; Process commercial change requests as required for hardware upgrades, additions etc.	Standard Services	Subject to reasonable lead time, customer to provide request via tracking system with sufficient detail; additional fees apply; service provided only during office hours (referring only to the commercial part, technical implementation timing will be scheduled based on contractual specifications).	n/a	n/a
44	INFRA_1.4.11	Scale compute capacity (memory and CPU)	Optional Services		n/a	n/a
45		Storage Management			-	-
46	INFRA_1.5.01	Manage data files, file systems and disks per standards and practices	Standard Services	Process flow - additional information available.	n/a	n/a
47	INFRA_1.5.02	Scale storage capacity	Optional Services		n/a	n/a
48	INFRA_1.5.03	Enable SnapLock/WORM/Immutability capability for archiving use cases	Optional Services	Available only for certain storage types on request; activated per volume. Not available on Hyperscaler.	n/a	n/a
49	INFRA_1.5.04_AE	Review and analyze the impact of data volume/load on data environment performance	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Volume Optimization	D6
50	INFRA_1.5.05_AE	Determine if existing hardware can meet growth	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Volume Optimization	D6
51	INFRA_1.5.06_AE	Develop alternative plans (e.g. archiving, consolidation, hardware upgrades)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Volume Optimization	D6
52	INFRA_1.5.07	Encrypt EBS root volumes	Standard Services		n/a	n/a
53	INFRA_1.5.08	Remove SWAP disk from HANA database machines	Standard Services		n/a	n/a
54		Operating System			-	-
55	INFRA_1.6.01	Create and maintain OS users and groups	Standard Services	Service provider access only, no privileged access to operating system by customer.	n/a	n/a
56	INFRA_1.6.04	Inform customer regarding security incidents	Standard Services		n/a	n/a
57	INFRA_1.6.05	Configure OS parameters	Standard Services		n/a	n/a
58	INFRA_1.6.06	Troubleshoot operating system problems, monitor system log and file systems	Standard Services		n/a	n/a
59	INFRA_1.6.07	Work with OS vendor to resolve operating system issues	Standard Services		n/a	n/a
60	INFRA_1.6.08	Monitoring of swap and page areas	Standard Services		n/a	n/a
61	INFRA_1.6.09	Monitoring of memory load	Standard Services		n/a	n/a
62	INFRA_1.6.12	Software Lifecycle Management of operating system	Standard Services	Process flow - additional information available.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
63		System Startup/Shutdown			.	.
64	INFRA_1.7.01	Perform scheduled startup/shutdown of computing environment	Standard Services		n/a	n/a
65	INFRA_1.7.03	Restart computing environment after failure	Standard Services		n/a	n/a
66		Backup/Restore			.	.
67		General			.	.
68	INFRA_1.8.01	Perform standard file system and database backups	Standard Services	Per standards, or according to specific terms of the Agreement.	n/a	n/a
69	INFRA_1.8.10	Perform exceptional ad-hoc backup upon request	Additional Service	Lead time for backup to be aligned in advance. This backup is not applicable for systems which are already fully backed up on a daily basis.	n/a	n/a
70	INFRA_1.8.09	Provide non-standard short-term backup services	Optional Services	This service is intended to provide short-term backups to be used during projects for testing and fallback reference. Maximum One (1) year retention. Change request required to cover extra storage requirements for the retention period. Lead times for change request processing to be factored in when ordering the service, BLOB (binary large object) storage to be factored in as per size requirements.	n/a	n/a
71	INFRA_1.8.11	Monitor backup processes	Standard Services		n/a	n/a
72	INFRA_1.8.07	Test backup/restore procedures periodically	Standard Services	This task cannot be ordered by customers. This task is used to verify procedures and operational readiness; testing is not performed for each individual system but for representative scenarios.	n/a	n/a
73	INFRA_1.8.03	Perform data restore and recovery (file system, database) as required after system failures	Standard Services		n/a	n/a
74	INFRA_1.8.02	Perform data restore and recovery (file system, database) on customer request (other reasons than as a response to system failures)	Standard Services	Up to Six (6) restores per SID, per contract year, are included.	n/a	n/a
75	INFRA_1.8.06	Validate logical integrity and consistency of restored information	Excluded Tasks		n/a	n/a
76		NFS DB Volume Consistent Snapshot and Restore			.	.
77	INFRA_1.13.01	Perform standard NFS DB volume snapshot	Standard Services	SAP HANA and ASE only. Per standards, or according to specific terms of the Agreement.	n/a	n/a
78	INFRA_1.13.02	Perform ad-hoc NFS DB volume consistent snapshot	Additional Service	Lead time to be aligned in advance.	n/a	n/a
79	INFRA_1.13.03	Perform exceptional ad-hoc NFS DB volume consistent snapshot	Additional Service	Example: extend retention period for a snapshot or transfer to secondary system for longer retention. Offered options are described in separate service descriptions and are subject to change; not every theoretically possible combination of snapshot frequency and retention period is offered.	n/a	n/a
80	INFRA_1.13.04	Perform DB NFS volume snapshot restore and recovery (file system, database) - as required after system failures	Standard Services	Extra charges apply for restores if caused by customer error.	n/a	n/a
81	INFRA_1.13.05	Perform DB NFS volume restore and recovery (file system, database) on customer request - reasons other than as a response to system failures	Additional Service		n/a	n/a
82	INFRA_1.13.06	Perform standard flat filesystem NFS volume snapshot (non-DB volumes)	Standard Services	Per standards, or according to specific terms of the Agreement.	n/a	n/a
83	INFRA_1.13.07	Restore standard flat filesystem NFS volume snapshot (non-DB volumes) - on customer request (other reasons than as a response to system failures)	Additional Service		n/a	n/a
84	INFRA_1.13.07A	Restore standard flat filesystem NFS volume snapshot (non-DB volumes) - as required after system failures	Standard Services		n/a	n/a
85		Infrastructure integration			.	.
86	INFRA_1.9.02	Integrate customer Active Directory, Google IdP and other identity management solutions	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
87	INFRA_1.9.04	Provide access to systems/resources within customer infrastructure	Excluded Tasks	If required to fulfil agreed contractual obligations.	n/a	n/a
88		File transfer capabilities: CIFS shares			.	.
89	INFRA_1.10.01	Mount remote customer SMB shares locally on managed landscape Linux clients (aka CIFS)	Standard Services	Within contractually agreed infrastructure capacity.	n/a	n/a
90	INFRA_1.10.01A	Provide Samba Server Share on managed landscape LINUX server for remote SMB clients	Standard Services	Within contractually agreed infrastructure capacity.	n/a	n/a
91	INFRA_1.10.03	User and access management	Standard Services	Once/initially when share is created.	n/a	n/a
92	INFRA_1.10.04	Create and maintain folder structure on shares	Standard Services		n/a	n/a
93	INFRA_1.10.05	Ensure up-to-date anti-virus protection on end user equipment connecting to the provided shares	Excluded Tasks		n/a	n/a
94	INFRA_1.10.06	Implement virus protection on server	Standard Services		n/a	n/a
95	INFRA_1.10.07	Backup of data uploaded to shares to ensure data integrity	Excluded Tasks	Customer must ensure that data which get uploaded to the CIFS shares are kept properly secured at customer end; the shares themselves are only backed up via standard file system backups not allowing point-in-time recovery.	n/a	n/a
96		Managed SFTP Server	To be installed on existing application server in managed system		.	.
97	INFRA_1.11.01	Configure sftp daemon	Standard Services	Only available on Linux.	n/a	n/a
98	INFRA_1.11.02 AE	Create and maintain sftp user accounts and groups	Standard Services	Up to 10 users.	n/a	n/a
99	INFRA_1.11.02A	Create and maintain sftp user accounts and groups - additional requests	Additional Service	Requests for additional users beyond those provided in INFRA_1.11.02 AE	n/a	n/a
100	INFRA_1.11.03	Manage file systems	Standard Services	Within contractually agreed infrastructure capacity.	n/a	n/a
101	INFRA_1.11.04	Provide user list	Excluded Tasks		n/a	n/a
102	INFRA_1.11.05	Create and delete files	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
103		Management of Wide Area Network			.	.
104	INFRA_1.12.01	Provide network infrastructure at customer data center/site	Excluded Tasks		n/a	n/a
105	INFRA_1.12.02	Provide network switching and ports at SAP/Partner data center to customer to connect telco equipment	Standard Services	Per SAP Guidelines, customer must ensure compatible network infrastructure at own site. Note: does not include infrastructure such as rackspace for MPLS or other devices.	n/a	n/a
106	INFRA_1.12.03	Determine appropriate size and purchase network connection between customer and managed system sites; manage telecommunication provider/ISP	Excluded Tasks		n/a	n/a
107	INFRA_1.12.04	SAP Cloud Peering: Establish a virtual connection to an SAP datacenter via a customer's interconnection provider	Standard Services	Can only be used if SAP is connected to same interconnection provider. Monthly subscription fee via Change Request based on bandwidth. Connection of customer on-premise networks to interconnection hub is performed by the customer with their selected interconnect provider. Includes up to Four (4) x 100 Mbit/s cloud peering packages equal to a total of Four Hundred (400) Mbit/s. Customer can substitute cloud peering packages with a maximum of Five (5) VPN tunnels. Redundant VPN tunnels are not available.	n/a	n/a
108	INFRA_1.12.04_PCE	Add additional SAP Cloud Peering packages - 100Mbit/s increments	Standard Services	Add additional SAP Cloud Peering packages in 100) Mbit/s increments. A total of Four (4) x 100 Mbit/s packages equal to a total of Four Hundred (400) Mbit/s is available.	n/a	n/a
109	INFRA_1.2.05_PCE	Deploy customer connectivity options in SAP Datacenters and Hyperscalers	Standard Services	Allotment is based on selected Hyperscaler. VPN Connections: Azure: Maximum of Ten (10) Site-to-site (S2S) tunnels or Five (5) Redundant tunnels; Amazon Web Services (AWS): Maximum Five (5) Site-to-Site VPN connections. By default each AWS VPN connection includes Two (2) tunnels; Google Cloud Platform (GCP): Two (2) High-Availability VPNs. Each HA VPN includes Two (2) tunnels; SAP Datacenter: Maximum One (1) Site-to-Site VPN connections. Private Connectivity: AWS: One (1) Direct Connect 200 Mbit/s package with 2 TB egress traffic; Azure: One (1) ExpressRoute 1 Gbit/s gateway package with 200 Mbit/s port speed and 2 TB egress traffic; GCP: One (1) (redundant) Partner Interconnect 200 Mbit/s package with 2 TB egress traffic; SAP Datacenter: One (1) MPLS local extension link of 1 or 10 G between Customer MPLS routers and SAP ECS internal routers, and One (1) Cloud Peering connection up to 400Mbps. VPN/VNet Peering: One (1) Peering. Applicable only for Hyperscalers (public cloud providers). TGW VPC Attachment: One (1) VPC attachment; applicable for AWS only. In case of S/4HANA Cloud, private edition, base option: Currently applicable for SAP Datacenter only. Allowed options - One (1) redundant Site-to-Site VPN OR One (1) MPLS up to 1Gbps OR One (1) Cloud Peering up to 400Mbps. Customer can purchase additional connections for any connectivity requirements higher than the quantity above.	n/a	n/a
110		Firewall-as-a-Service (FWaaS)	Firewall as a Service (FWaaS) brings UTM-based firewall technology to customer landscapes on Hyperscalers and includes features such as advanced traffic filtering, intrusion prevention (IPS) and bot detection. The service is fully managed by the Service Provider, but customers will have the possibility to request new rules to be added to their firewall or existing rules deleted. Customers can also request an export of their rulebase.	FWaaS does not take over firewalling responsibilities for customers in their respective on-premise landscapes. The scope of FWaaS is to filter traffic within the SAP ECS Private Cloud Landscape where customers cannot do this by themselves. Customer are still required to filter on their side which user/server is allowed to go the landscape. FWaaS usually accepts all connectivity from customer networks as checked and trusted. FWaaS has been designed to fit easily and smoothly into new and existing environments while being as transparent to configuration efforts as possible. Customers may be required to perform some technical reconfigurations on their side.	.	.
111	FWAAS_1.1.01	Install Network Virtual Appliance	Optional Services	Base FWaaS installation.	n/a	n/a
112	FWAAS_1.1.02	Modify firewall rule base	Optional Services	Adding/removing rules or modifying existing rules.	n/a	n/a
113	FWAAS_1.1.03	Export Customer rule base	Optional Services		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
114		C1 - Database Management SAP HANA				
115		SAP HANA (general database operations)	The standard service scope specified by this version of the Roles and Responsibilities includes certain baseline features and functionalities which are part of the SAP HANA database. SAP HANA provides additional or optional features and functionalities for which related services and support are not included in the standard service scope, and may be available on an additional cost basis.	Additional and optional services to support these and future SAP HANA features and the availability of those services will be evaluated and determined by SAP on a case-by-case basis, including the assessment of associated efforts and costs. The respective standard and additional services are shown in separate sections of this document.		
116	HANA_1.1.31	Provide recommendations on database release management	Standard Services	Service provider will provide guidance on recommended database releases based on operational experience and information given by SAP Product Development.	n/a	n/a
117	HANA_1.1.01	Plan and perform file system extensions for e.g. backup activities	Standard Services	Additional infrastructure consumption requires a CR.	n/a	n/a
118	HANA_1.1.02	Monitor database resource consumption to detect issues in technical operations	Standard Services	Task output feeds into capacity management; recommendations for optimization may also be provided via SAP Enterprise Support services.	n/a	n/a
119	HANA_1.1.03	Monitor table growth to proactively prevent operational issues and ensure that the service stays within the contractual sizing boundaries	Standard Services	Storage capacity is specified in the service description. Monitoring and alerting is performed through automated system. Recommendations for limitation of data growth may also be provided via SAP Enterprise Support services.	n/a	n/a
120	HANA_1.1.25	Design table partitioning strategy/architecture	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Only available as part of a Cloud Application Service package and cannot be requested as a standalone task. Requires lead-time for analysis, planning, and coordination between the Customer and Service Provider delivery team.	Data Lifecycle Management	D3
121	HANA_1.1.04	Partition tables (technical execution)	Standard Services	If required as a consequence of extensive table growth; One (1) execution per SID, per year included; any further requests will be charged separately.	n/a	n/a
122	HANA_1.1.35	Partition tables (technical execution) - additional requests	Additional Service	Efforts for additional table partition requests.	n/a	n/a
123	HANA_1.1.36	Database table redistribution based on the table placement rules (Technical Execution)	Standard Services	For requirements involving application dependency (e.g. Moving tables and table partitions manually from one host to another).	n/a	n/a
124	HANA_1.1.05	Perform rowstore / column store migration: technical execution only	Standard Services	Per customer request. Executing party to be mutually agreed between the service provider and customer; migration of larger SAP tables to be done by service provider; customer should perform task on own tables if desired; additional downtime required per customer approval.	n/a	n/a
125	HANA_1.1.37	Database Defragmentation (Data Volume Reclamation)	Standard Services		n/a	n/a
126	HANA_1.1.38	Database Row Store Fragmentation	Standard Services		n/a	n/a
127	HANA_1.1.06	Monitor database for technical issues; analyze and resolve technical database failures	Standard Services		n/a	n/a
128	HANA_1.1.07	Clean-up HANA log and trace files (traces, statistic files etc.) to free up capacity and keep HANA system clean and healthy	Standard Services		n/a	n/a
129	HANA_1.1.08	Maintain technical configuration parameters for SAP HANA and SAP HANA XS based on and standards and recommendations	Standard Services		n/a	n/a
130	HANA_1.1.09	Start/stop database	Standard Services		n/a	n/a
131	HANA_1.1.10	Add/remove SAP HANA node to adjust SAP HANA capacity	Optional Services	For HANA scale-out configurations only.	n/a	n/a
132	HANA_1.1.28	Create additional schema for existing SAP HANA datamart	Standard Services		n/a	n/a
133	HANA_1.1.29	Change of SAP HANA database ID and instance number	Standard Services		n/a	n/a
134	HANA_1.1.26	Change SAP HANA database architecture (single node to multi node or vice versa)	Optional Services	Single node to multi node and vice-versa requires additional steps such as adding/removing HANA services and would be treated as a hardware migration.	n/a	n/a
135	HANA_1.1.11	Manage standby databases (HANA System Replication) for high availability	Standard Services	Performed only for productive systems; only if dedicated standby databases are explicitly included as part of the solution in the contract. Not in scope for multi-node set-ups. Failover tests are not performed on a regular basis per system.	n/a	n/a
136	HANA_1.1.12	Update SAP HANA database software	Standard Services	Additional downtime for maintenance required; Systems with HA nodes include the use of advanced update approaches by default such as ZDO/Downtime Minimization. The term "update" denotes the change to a new minor release of the hosted SAP software, typically focused on bug fixes and small enhancements. DB client updates are merged with the SAP application kernel update method.	n/a	n/a
137	HANA_1.1.12A	Install or Update SAP HANA client	Standard Services	Install or update SAP HANA client software on application instances and non SAP HANA systems. Applicable for Production and Non-Production systems.	n/a	n/a
138	HANA_1.1.33	SAP HANA version upgrade and update of DB Client	Standard Services	HANA systems to HANA MDC system with latest support pack levels, and with replication mode set to CLR. The term "version upgrade" denotes the change to a new major release of the hosted SAP software, typically including functional enhancements.	n/a	n/a
139	HANA_1.1.22	SAP HANA Transports Management Set-up	Standard Services	Limited to the setup of the transport management system and does not include ongoing operation of the transport management system.	n/a	n/a
140	HANA_1.1.14	Implement / maintain additional SAP tools (e.g. SAP HANA Analytics Foundation Browser)	Standard Services	Depending on customer requirements; only for tools in the HANA context delivered by SAP, 3rd party tools not covered.	n/a	n/a
141	HANA_1.1.15	Identify, analyze and optimize expensive SQL-statements to improve application performance	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Performance Optimization or Database Performance Management or Core Performance Management	P2, P3, P4
142	HANA_1.1.16	System troubleshooting, e.g. blocked transactions, to overcome issues and bring SAP HANA back to normal state of operations	Standard Services		n/a	n/a
143	HANA_1.1.17	Create/modify users for HANA modelling in the SAP HANA Studio	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
144	HANA_1.1.18	User, roles, and permissions management for non-technical users	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer has ownership and responsibility for SAP HANA role CUST_USER_ROLE_ADMIN.	Application Operations or Secure Users & Authorizations	A1, S2
145	HANA_1.1.19	User, roles and permissions management for technical and administration users	Standard Services	Process flow - additional information available. Technical users: e.g. users delivered and used by SAP HANA. This service is only for internal Users created by service provider e.g. SAPSID / SAPABAP1 / SAPHANADB.	n/a	n/a
146	HANA_1.1.20	Perform database backups (regular full backups and log backups)	Standard Services	Per backup policy.	n/a	n/a
147	HANA_1.1.21	Restore and recover SAP HANA after technical issues	Standard Services		n/a	n/a
148	HANA_1.1.30	Perform database consistency check (DBCC)	Standard Services		n/a	n/a
149	HANA_1.1.32	Export/Import of database schema	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
150	HANA_1.1.23	Implement SAP HANA database encryption on SAP HANA database already installed during Operations	Optional Services	Enable encryption on systems in operation. Downtime required for re-installation of database; potential additional storage consumption is subject to a change request (CR).	n/a	n/a
151	HANA_1.1.24	Implement SAP HANA database encryption on SAP HANA database already installed during Build	Standard Services	Encryption enabled at system build only if it has been requested.	n/a	n/a
152	HANA_1.1.39	Implement SAP HANA log encryption on SAP HANA database already installed	Standard Services		n/a	n/a
153	HANA_1.1.40	Configure Secure Communication on SAP HANA System Replication (HSR)	Standard Services	Available by default in HANA 2.0. Explicitly required only for HANA 1.0 where EarlyWatch Alert recommends to secure System Replication communication or a Tenant needs to be moved to another system.	n/a	n/a
154	HANA_1.1.41	Activate SAP HANA Fast Restart Option	Standard Services		n/a	n/a
155	HANA_1.1.42	Deactivate SAP HANA Fast Restart Option	Standard Services		n/a	n/a
156	HANA_1.1.43	Install or Update HANA plug-ins	Standard Services	Used for installation or update of HANA plug-ins on the selected HANA database.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
157		SAP HANA XS			-	-
158	HANA_1.2.01	Maintain technical configuration parameters for SAP HANA XS based on SAP standards and recommendations	Standard Services		n/a	n/a
159	HANA_1.2.02	Maintain Application Runtime Configurations	Standard Services		n/a	n/a
160	HANA_1.2.03	Manage Trust Relationships	Standard Services		n/a	n/a
161	HANA_1.2.04	Maintain SAML Providers	Standard Services		n/a	n/a
162	HANA_1.2.05	Maintain SMTP Server Configurations	Standard Services		n/a	n/a
163	HANA_1.2.06	Maintain HTTP Access to SAP HANA	Standard Services		n/a	n/a
164	HANA_1.2.08	Maintain User Self Service Tools	Standard Services		n/a	n/a
165	HANA_1.2.09	Schedule XS Jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
166	HANA_1.2.11	Maintain HTTP Traces for SAP HANA XS Applications	Standard Services		n/a	n/a
167		SAP HANA XSA	SAP HANA XSA is a separate technical component and not part of a standard installation of an SAP HANA database; SAP HANA XSA needs to be explicitly included/scoped in the initial contract or subsequent Change Request (CR).		-	-
168	HANA_1.9.01	Install along with HANA Server	Optional Services		n/a	n/a
169	HANA_1.9.02	Install XSA Components as an add-on for already installed HANA Server	Optional Services		n/a	n/a
170	HANA_1.9.04	Set-up/Configure XSA for HANA Development at customer side	Excluded Tasks		n/a	n/a
171	HANA_1.9.05	Configure XS-CLI Tool for HANA Development	Excluded Tasks		n/a	n/a
172	HANA_1.9.06	User management for HANA Development	Excluded Tasks		n/a	n/a
173	HANA_1.9.07	Monitoring of XSA services and its applications	Optional Services	Super set will be included in monitoring if selected.	n/a	n/a
174	HANA_1.9.08	Set-up Logical database (Register Tenant Database)	Optional Services		n/a	n/a
175	HANA_1.9.10	Backup and restore of XSA specific files	Standard Services		n/a	n/a
176	HANA_1.9.11	Web Dispatcher configuration for the applications installed by service provider and built by customers	Optional Services		n/a	n/a
177	HANA_1.9.13	Support customer built applications	Excluded Tasks		n/a	n/a
178	HANA_1.9.14	Availability monitoring of customer built applications	Excluded Tasks		n/a	n/a
179	HANA_1.9.15	Backup of custom applications if using file system storage	Standard Services		n/a	n/a
180	HANA_1.9.16	Restore of customer built applications using file system storage provided the backup has been enabled prior	Standard Services		n/a	n/a
181	HANA_1.9.17	Post-restore task checking and connection of custom applications	Excluded Tasks		n/a	n/a
182	HANA_1.9.18	HANA XS (XS classic) to XSA model conversion	Additional Service		n/a	n/a
183		SAP HANA: Smart Data Integration (Formerly Enterprise Information Management - EIM)	Extended feature beyond the standard service scope.		-	-
184		Set-up - Technical Set-up Only - Does Not Include Application Set-up			-	-
185	TO_HANA_SDI_1.1.01	Enable Data Provisioning Server	Standard Services	The Data Provisioning Server is a native SAP HANA process. It is built as an index server variant, runs in the SAP HANA cluster, and is managed and monitored just like other SAP HANA services. The Data Provisioning Server is installed with, but must be enabled in, the SAP HANA Server.	n/a	n/a
186	TO_HANA_SDI_1.1.02A	Install, configure, and register Data Provisioning Agents	Standard Services	Two (2) DP Agents are included with the standard service. For additional DP Agents see TO_HANA_SDI_1.1.02.	n/a	n/a
187	TO_HANA_SDI_1.1.02	Install, configure, and register Data Provisioning Agents - Additional Agents	Optional Services	For additional DP Agents.	n/a	n/a
188	TO_HANA_SDI_1.1.04	Set-up Smart Data Quality (SDQ)	Optional Services	Deploy SDQ, download Address and Data Cleansing package from the SAP Service Market Place and configuration from SAP HANA Server. SFTP access will be set-up so that the customer may upload the address directories on their own.	n/a	n/a
189	TO_HANA_SDI_1.1.05	Set-up Agile Data Preparation (ADP)	Standard Services	ADP requires SDQ, ESS and HRF be deployed and set-up with related users and authorizations.	n/a	n/a
190	TO_HANA_SDI_1.1.06	Administration of Agile Data Preparation (ADP)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Setting Export Options, worksheet expiration, password features, warehouse workspace, and size and policy for queues.	Application Operations or Data Integration	A1, D2
191	TO_HANA_SDI_1.1.07	Set-up replications, federation and transformations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Data Integration	A1, D2
192	TO_HANA_SDI_1.1.08	FlowGraph jobs backup	Excluded Tasks	Customer can use SAP SDI Web application interface and/or SDI Fiori Catalog/Tiles for this task.	n/a	n/a
193	TO_HANA_SDI_1.1.09	Replication task backup	Excluded Tasks	Customer can use SAP SDI Web application interface and/or SDI Fiori Catalog/Tiles for this task.	n/a	n/a
194	TO_HANA_SDI_1.1.10	DP Agent - High Availability set-up	Optional Services	DP Agent can be set-up in High Availability set-up by provisioning shadow instances on additional nodes; included only if explicitly mentioned in the contract.	n/a	n/a
195	TO_HANA_SDI_1.1.11	Deploy standard adapters with SAP HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	See the SDI guide on the SAP Help Portal for a list of standard and custom adapters.	Application Operations or Data Integration	A1, D2
196	TO_HANA_SDI_1.1.12	Deploy custom adapters with SAP HANA	Optional Services	See the SDI guide on the SAP Help Portal for a list of standard and custom adapters.	n/a	n/a
197	TO_HANA_SDI_1.1.13	Monitor Data Provisioning tasks and remote subscriptions	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Data Integration	A1, D2
198	TO_HANA_SDI_1.1.14	Process remote subscription exceptions	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Data Integration	A1, D2

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
199		SAP HANA: Streaming Analytics Option (Formerly Smart Data Streaming SDS)	Extended feature beyond the standard service scope.		-	-
200		Operational Set-up			-	-
201	TO_HANA_SA_1.0.01	Install Streaming Analytics option package	Optional Services	SAO package is installed on the SAP HANA DB node/MDC Tenant.	n/a	n/a
202	TO_HANA_SA_1.0.02	Add Streaming Analytics option hosts	Optional Services		n/a	n/a
203	TO_HANA_SA_1.0.04	Configure data source on Streaming Analytics option host	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Configure odbci.ini for SAP HANA connection from each of the SAO hosts.	Application Operations or Data Integration	A1, D2
204	TO_HANA_SA_1.0.05	Set-up streaming authorization	Optional Services	Activate smart data streaming roles, privileges and object access for monitoring and operations.	n/a	n/a
205	TO_HANA_SA_1.0.06	Enable Streaming Analytics related Fiori tiles on existing SAP HANA Cockpit within Customer landscape	Optional Services	Execute tasks for SAP HANA Cockpit activation for operations and monitoring.	n/a	n/a
206	TO_HANA_SA_1.0.07	Configure Streaming Cluster - High Availability set-up	Optional Services	Configure for high availability by adding multiple nodes. Additional Infrastructure required.	n/a	n/a
207	TO_HANA_SA_1.0.08	Provision of Disaster Recovery (Streaming Analytics option nodes)	Optional Services	Provisioning of identical number of nodes at a secondary site to mirror primary site using provisioning tool.	n/a	n/a
208	TO_HANA_SA_1.0.09	Streaming Lite set-up	Excluded Tasks	Streaming Lite is optional and not required as part of a standard SAO installation. The Streaming Lite package is downloadable as a separate component only. Streaming Lite is designed to deploy streaming projects on remote gateway devices	n/a	n/a
209	TO_HANA_SA_1.0.10	Create and deploy Streaming Analytics option streaming projects	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Using SAP HANA Studio, create and deploy project for data streaming to SAP HANA and other external sources.	Application Operations or Data Integration	A1, D2
210	TO_HANA_SA_1.0.11	Monitor Streaming Analytics option objects and projects	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Monitoring SAO objects and projects using SAP HANA/ESP Cockpits.	Application Operations or Data Integration	A1, D2
211		SAP HANA: Multiple Database Containers (MDC)	Extended feature beyond the standard service scope.		-	-
212		Operational Set-up			-	-
213	TO_HANA_MDC_1.1.01	Install HANA MDC (HANA server, Client, AFL, Runtime Libraries and Studio)	Standard Services	MDC is default in SAP HANA 2.0.	n/a	n/a
214	TO_HANA_MDC_1.1.06	Create technical users	Standard Services	MDC is default in SAP HANA 2.0. Customer responsible for user management using CUST_USER_ROLE_ADMIN	n/a	n/a
215	TO_HANA_MDC_1.1.07	Create additional tenants for datamart scenarios on existing infrastructure	Optional Services	For use on existing infrastructure. A change request (CR) is required for backup retention requirements and the set-up of new continuous monitoring.	n/a	n/a
216	TO_HANA_MDC_1.1.08	Create additional tenants for datamart scenarios on new infrastructure	Optional Services	Additional infrastructure consumption requires a change request (CR).	n/a	n/a
217	TO_HANA_MDC_1.1.04	Install additional services for tenant DB containers	Standard Services	Additional services such as dp server, index server, XS engine. By default one of each comes automatically upon creation of a tenant; installation of additional services required for certain use cases is covered under this line item.	n/a	n/a
218	TO_HANA_MDC_1.1.05	Scale out of tenant database	Standard Services	SAP BW systems only.	n/a	n/a
219	TO_HANA_MDC_1.2.17_AE	Tenant Copy/Move Preparation, Checks, Certificates, Pre-Steps, Move/Copy via replication, post processing steps	Standard Services	Move will drop the source database after the task is complete. Copy will keep the source after the task is complete.	n/a	n/a
220	TO_HANA_MDC_1.2.01	Network: Reserve additional ports to one instance to adjust tenant overhead per instance	Standard Services		n/a	n/a
221	TO_HANA_MDC_1.2.03	Auditing: Create and enable audit policies for systemdb and each tenant DB	Standard Services		n/a	n/a
222	TO_HANA_MDC_1.2.04	Data storage: DB-specific encryption keys	Standard Services	SSFS Source Key Change.	n/a	n/a
223	TO_HANA_MDC_1.2.08	Data storage: DB-specific encryption keys (SSFS Source Key) Change	Standard Services	Change some/all keys upon request by customer. Used for Instance SSFS and System PKI SSFS master key, data volume encryption root key, redo log encryption root key, page encryption keys.	n/a	n/a
224	TO_HANA_MDC_1.2.06	Backup of individual tenants	Additional Service	As per standard, backups are performed for the entire database. However, a tenant-individual backup - as a file based dump - is possible on individual request.	n/a	n/a
225	TO_HANA_MDC_1.2.07	Restore backup of individual tenant	Additional Service		n/a	n/a
226	TO_HANA_MDC_1.2.10	Authorization: Manage system privileges and tenant DB privileges	Standard Services		n/a	n/a
227		Active-Active Read Enabled Set-up	Extended feature beyond the standard service scope. Evaluated and reviewed by SAP on a case-by-case basis and pending license availability.		-	-
228	TO_HANA_AAR_1.1.01	Install primary and secondary SAP HANA system	Optional Services	Import delivery units, set-up users and roles.	n/a	n/a
229	TO_HANA_AAR_1.1.03	Establish log replay between both SAP HANA instances	Optional Services	Import delivery units, set-up users and roles.	n/a	n/a
230	TO_HANA_AAR_1.1.04	Establish monitoring for secondary system	Optional Services		n/a	n/a
231		Remote Data Sync (RDS)	Extended feature beyond the standard service scope.		-	-
232		Set-up and Configuration			-	-
233	TO_HANA_RDS_1.1.01	Install Remote Data Sync component on SAP HANA	Optional Services	RDS package is installed on the SAP HANA DB node. It can be installed at the same time as the SAP HANA install or can be installed independently.	n/a	n/a
234	TO_HANA_RDS_1.1.02	Add Remote Data Sync Host	Optional Services		n/a	n/a
235	TO_HANA_RDS_1.1.03	Activate RDS roles, privileges and object access for monitoring and operations	Optional Services		n/a	n/a
236	TO_HANA_RDS_1.1.04	Import of RDS delivery units	Optional Services	This task is required only in MDC set-ups.	n/a	n/a
237	TO_HANA_RDS_1.1.05	Set-up and configure RDS nodes for each tenant DB including service initialization, cockpit access, delivery units and verification	Optional Services	This task is required only in MDC set-ups.	n/a	n/a
238	TO_HANA_RDS_1.1.06	RDS cockpit - Set-up and Configuration	Optional Services	Execute tasks for HANA Cockpit activation for RDS operations and monitoring.	n/a	n/a
239		High Availability Set-up			-	-
240	TO_HANA_RDS_1.2.01	Set-up of additional hosts for high availability	Optional Services	Add and setup RDS for additional nodes, including configuration of single or multi-tenant databases and group setup. For Multi-tenant setup, only a single stand-by node serves all tenant DB(s). For RDS LoadBalancer setup, check R&R Section "LoadBalancer".	n/a	n/a
241	TO_HANA_RDS_1.2.02	High availability configuration	Optional Services	High Availability configuration is performed during initial landscape build when multiple RDS hosts are provisioned. Any additional RDS host setup and configuration after go-live will require additional costs.	n/a	n/a
242	TO_HANA_RDS_1.2.03	Set-up and configure LoadBalancer for High Availability support	Optional Services	High Availability configuration is performed during initial landscape build when multiple RDS hosts are provisioned. Any additional RDS host setup and configuration after go-live will require additional costs. RDS configuration activities can be performed using SAP Fiori Apps in the SAP HANA Cockpit.	n/a	n/a
243		Other Services			-	-
244	TO_HANA_RDS_1.3.01	Set-up and configure synchronization scripts	Excluded Tasks	Configure synchronization script for upload and download of data between remote and consolidate databases.	n/a	n/a
245	TO_HANA_RDS_1.3.02	Monitor synchronization requests, process and status	Excluded Tasks	Monitoring sync status, request and availability using RDS cockpits.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
246		Capture and Replay	Extended feature beyond the standard service scope.		.	.
247	TO_HANA_CR_1.1.01	Prepare capture in source system	Optional Services	Import Delivery units, set-up users and roles.	n/a	n/a
248	TO_HANA_CR_1.1.02	Start capture	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer must ensure sufficient capacity to store capture of workload; capacity extension requires change request (CR).	Database Performance Management	P3
249	TO_HANA_CR_1.1.03	Set-up replay in target system	Optional Services	Import Delivery units, set-up users and roles.	n/a	n/a
250	TO_HANA_CR_1.1.04	Configure replayer service	Optional Services	Configure replayer service.	n/a	n/a
251	TO_HANA_CR_1.1.05	Preprocess and replay in target system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Database Performance Management	P3
252		SAP HANA: Accelerator for SAP ASE (AFA)			.	.
253		Operational Set-up			.	.
254	TO_AFA_1.1.01	Install Accelerator for SAP ASE Package	Standard Services	HANA - AFA package is installed on the SAP HANA DB node.	n/a	n/a
255	TO_AFA_1.1.02	Add Accelerator for ASE Host	Standard Services	Adding Accelerator for ASE host. For multi-tenant set-ups, AFA nodes are added exclusively to each tenant DB.	n/a	n/a
256	TO_AFA_1.1.03	Install and configure SAP Replication Server	Standard Services	SAP Replication server is required when data is replicated from existing SAP ASE OLTP source server to SAP HANA target server. Depending on SAP ASE OLTP server installed location i.e. on on-premise or cloud landscape, replication server can be installed as managed server.	n/a	n/a
257	TO_AFA_1.1.04	Authorization - Set-up	Standard Services	Activate accelerator for ASE roles, privileges and object access for monitoring and operations. Provision specific user and roles.	n/a	n/a
258	TO_AFA_1.1.05	Enable Pushdown Optimization	Standard Services	AFA pushdown optimization is enabled on AFA nodes.	n/a	n/a
259	TO_AFA_1.1.06	Import Delivery Units	Standard Services	Import of AFA Delivery units in HANA multi-container scenarios. This task is required only in MDC set-up.	n/a	n/a
260	TO_AFA_1.1.07	Multitenant Set-up	Standard Services	Configure and set-up AFA nodes for each tenant DB including, service initialization, cockpit access, delivery units and verification.	n/a	n/a
261	TO_AFA_1.1.08	Configure HTTP Access for Multi Database Containers (MDC)	Standard Services	Configure HTTP Access for Multitenant Database Containers for HANA Cockpit Access and monitoring. Note: This task is not required if HTTP Access is already configured for existing MDC set-up.	n/a	n/a
262	TO_AFA_1.1.09	High availability set-up and configuration	Optional Services	High Availability set-up and configuration involving single or multi-tenant DB set-ups including ETS group set-up; only if standby nodes are part of the contractual landscape design.	n/a	n/a
263		SAP ASE AFA - Other Services			.	.
264	TO_AFA_1.2.01	Pushdown Analysis Tool Set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Simulation tool to evaluate pushdown optimization. This is carried out prior to AFA Deployment.	Application Operations	A1
265	TO_AFA_1.2.02	Data Replication for Accelerated Reporting	Excluded Tasks	Set-up ASE OLTP data replication to HANA DB. Identify and set-up DB objects to be replicated.	n/a	n/a
266	TO_AFA_1.2.03	Monitor Accelerator for ASE Pushdown Statements	Excluded Tasks	Monitoring Accelerator for ASE objects including pushdown statements using HANA Cockpits.	n/a	n/a
267		SAP HANA Native Storage Extension (NSE)	NSE is enabled by default on systems running HANA 2.0 SP04 or later. Customer is responsible for evaluating and requesting additional disk space for persistent storage. Additional storage for warm data must be included as part of contract or added as part of a Change Request (CR).		.	.
268	TO_NSE_1.1.01	Change Buffer cache size	Standard Services	Does not include calculating appropriate buffer cache size; Customer must provide buffer cache size. Change Request (CR) required if additional storage is needed.	n/a	n/a
269	TO_NSE_1.1.02	Run/Analyze Advisor Reports	Excluded Tasks		n/a	n/a
270	TO_NSE_1.1.03	Reconfigure load unit for tables	Excluded Tasks		n/a	n/a
271		Pacemaker High Availability Set-up	Optional Service/Change Request (CR) required for Service Level Agreement (SLA).		.	.
272		Installation and Configuration			.	.
273	TO_HANA_PM_1.1.01	Install SUSE Cluster (Pacemaker) package	Optional Services	For HANA 2.0 or SAP NetWeaver application servers.	n/a	n/a
274	TO_HANA_PM_1.1.01A	Convert non-Pacemaker System to Pacemaker based System	Additional Service	Convert existing system to Pacemaker combines all activities to restructure existing system to the target Pacemaker HA architecture and install/configure Pacemaker on top according to the Service Provider standards. Conversion is executed during a Customer provided downtime window. As a prerequisite, Customer needs to order all required infrastructure for the target Pacemaker/HA system deployment as well as the related Pacemaker packages (SBD, Cluster and Majority Maker if required).	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
275		C2 - Database Management	Excluding SAP HANA and Sybase IQ which are described in the respective sections.		.	.
276		Database operations			.	.
277	DB_1.1.17	Provide recommendations on database release management	Standard Services	Service provider will provide guidance on recommended database releases based on operational experience and information given by SAP Product Development.	n/a	n/a
278	DB_1.1.19	Monitor database resource consumption (memory, CPU, storage) to detect issues in technical operations	Standard Services	Task output feeds into capacity management; recommendations for optimization may also be provided via SAP Enterprise Support services.	n/a	n/a
279	DB_1.1.02	Perform database extensions to increase database capacity	Standard Services	Increased consumption will be charged according to contractual Agreement and may be a prerequisite to this task.	n/a	n/a
280	DB_1.1.20	Monitor database for technical issues; analyze and resolve technical database failures	Standard Services		n/a	n/a
281	DB_1.1.24	System troubleshooting, e.g. blocked transactions to overcome issues and bring database back to normal state of operations	Standard Services		n/a	n/a
282	DB_1.1.05	Schedule periodic statistical database collectors to generate statistical performance data	Standard Services		n/a	n/a
283	DB_1.1.06	Perform reorganization to remove database fragmentation	Standard Services		n/a	n/a
284	DB_1.1.07	Maintain/change database parameters	Standard Services	Based on vendor recommendations and standards.	n/a	n/a
285	DB_1.1.21	Start/stop database	Standard Services		n/a	n/a
286	DB_1.1.11	Perform upgrades of database software	Standard Services	Process flow - additional information available.	n/a	n/a
287	DB_1.1.12	Apply database patches	Standard Services	Process flow - additional information available.	n/a	n/a
288	DB_1.1.13	Perform database backups (regular database and log backups)	Standard Services	Per backup policy.	n/a	n/a
289	DB_1.1.14	Restore and recover database after technical issues	Standard Services		n/a	n/a
290	DB_1.1.22	Perform database consistency check (DBCC)	Standard Services		n/a	n/a
291	DB_1.1.23	Export/Import of database schema	Standard Services		n/a	n/a
292	DB_1.1.16	Assist customer in optimizing SQL statements (indexes, selects etc.) for application improvements	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Performance Optimization, Database Performance Management or Core Performance Management	P2, P3, P4
293	DB_1.1.25	Create indexes for application tables	Standard Services		n/a	n/a
294	DB_1.1.26	Shrink database	Additional Service	Valid only for Sybase ASE.	n/a	n/a
295	HANA_1.1.11B	Manage standby application instance for high availability	Standard Services	Performed only for productive systems; only if dedicated standby databases are explicitly included as part of the solution in the contract. Not in scope for multi-node set-ups. Failover tests are not performed on a regular basis per system.	n/a	n/a
296		SAP ASE Database			.	.
297	DB_1.1.18	Implement SAP ASE database encryption on SAP ASE database already installed in cloud	Standard Services	No downtime required.	n/a	n/a
298	HANA_1.1.11A	Manage standby databases (ASE System Replication) for high availability	Standard Services	Performed only for productive systems; only if dedicated standby databases are explicitly included as part of the solution in the contract. Not in scope for multi-node set-ups. Failover tests are not performed on a regular basis per system.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
299		D - Core Technical Operations				
300		System Installation				
301	BASIC_1.8.01	Install cloud solution landscape as specified in the cloud contract, based on SAP and standards and best-practices	Standard Services	If an entirely new customer system is set up as a homogenous copy (no change of database platform) of a customer system already residing in the cloud, the respective effort and costs are covered by the general set-up and there will be no additional charge for a "system copy". Source systems not residing inside cloud is not addressed by this comment and is covered by the separately contracted cloud onboarding and migration service.	n/a	n/a
302	BASIC_1.8.25	SAP system re-installation after system handover	Additional Service	Customer may request a system rebuild on existing infrastructure only. This service is for effort only and does not include any required infrastructure change. This service is not applicable if new or changed infrastructure is required as new or changed infrastructure requires a Change Request.	n/a	n/a
303	BASIC_1.8.02	Technical configuration (installation post-processing) of installed systems (e.g. scheduling of standard batch jobs, backup etc.)	Standard Services	Scope is determined by this Roles & Responsibilities document.	n/a	n/a
304	BASIC_1.8.27	Change license for ABAP or Java system or HANA stand-alone database	Standard Services	Update installation numbers and corresponding license for ABAP or Java system with any database or HANA stand-alone database.	n/a	n/a
305	BASIC_1.8.15	Basic Technical Configuration of SAP BW/4HANA Systems	Standard Services	For ABAP Greenfield set-ups only.	n/a	n/a
306	BASIC_1.8.23	Install a preconfigured system from an SAP delivered template solution in a cloud skeleton system	Standard Services	This service performs a restore of a purchased SAP delivered template into a cloud skeleton system. The build of the template is not included in this service. Service must be requested during the initial provisioning phase. Template solution requests coming after the initial delivery of systems require additional service costs. Validation of the compatibility of different SAP delivered templates is not included in this service. Underlying target infrastructure must be appropriately sized and suited for the preconfigured system. In case of image from SAP Cloud Appliance Library (CAL), the image can only be used to set-up the sandbox system.	n/a	n/a
307	BASIC_1.5.01	Customize and configure application, maintain application, application support and application troubleshooting	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Service provider delivers systems which are technically configured on technical platform (e.g. SAP NetWeaver) level and ready to be operated. Any solution (e.g. SAP BW, SAP CRM, SAP EP) or customer specific configuration task is not included and must be performed by the customer.	Functional Application Management	F1
308	BASIC_1.8.03	Integrate installed systems into cloud operations environment	Standard Services	Performed One (1) time for each entirely new system. If the initial set-up is a migration, One (1) additional test run of the production (PRD) system is included. If the initial set-up is a conversion to S/4HANA, Two (2) additional test runs are included: One (1) for a non-production (QAS, DEV, etc.) system and One (1) for the productive (PRD) system. If the test run is not utilized for a non-production system, then it can be used for a production system with non-production timelines. Additional test runs are available as a billable service.	n/a	n/a
309	BASIC_1.8.03_PCE	Integrate installed systems into cloud operations environment - additional test run requests	Additional Service	For additional test run requests as described in BASIC_1.8.03.	n/a	n/a
310	BASIC_1.8.04	Enable system monitoring	Standard Services	Setup technical monitoring of system components only. Does not include monitoring of solutions, customer configuration, interfaces, connections and jobs which can be covered with additional services.	n/a	n/a
311	BASIC_1.8.22	Data transfer to service provider during onboarding using methods other than the provided standard data copy option	Optional Services	One (1) time service fee. Approach depends on chosen onboarding scenario and individual requirements, either using network connection or physical and encrypted media; shipment of physical media done at customers risk.	n/a	n/a
312	BASIC_1.8.22A_PCE	Download data from BLOB (binary large object) storage to managed server	Standard Services	Used to copy data from on-premise to a target server in the managed environment. Data transfer from cloud storage (e.g. BLOB,S3,GCP) to managed server during onboarding.	n/a	n/a
313	BASIC_1.8.20	Provide special support to customer during onboarding - general	Additional Service	Depending on scope and approach of onboarding project customers may require technical assistance, e.g. whenever OS access is required; this type of onboarding support can be provided under this line item.	n/a	n/a
314	BASIC_1.8.20A	Provide special support to customer during onboarding – Brownfield Post-Migration Downtime Optimization Service	Additional Service	Subject to assessment and approval by Service Provider and provided on a case-by-case basis. Lead time of Two (2) months required. Optimize post processing timelines and activities performed during post migration. Reduce business downtime by using parallelism in manual activities. Includes: 1) Analysis of post migration activities to identify areas which can be optimized resulting in a reduction of business downtime required for typical migrations; 2) Where applicable, deployment of additional resources to perform manual post migration activities; 3) Pre-arranged activities that can reduce the number of action items required during the post processing execution.	n/a	n/a
315	BASIC_1.8.20_HC	Hypercare - project safeguarding service	Additional Service	The Hypercare enhanced service package helps safeguard critical phases of the solution lifecycle and provides a defined and intense suite of services and checks to support customers during critical project periods such as go-live, business cutover, migrations, etc. See separate service description document for details. A lead time of at least Ten (10) business days required.	n/a	n/a
316	BASIC_1.8.20_NP	Active entitlement for Non-Productive Systems weekend support	Additional Service	Availability of service and request to be validated with Service Provider.	n/a	n/a
317	BASIC_1.8.05	Integrate system with other systems and applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create RFC and/or Java connections to satellite systems.	Application Operations	A1
318	BASIC_1.8.14	Implementation of SAP Best Practices and similar packages	Standard Services	Customer to inform SAP of the Best Practice (BP) activation requirement during initial provisioning, otherwise existing business client will be overwritten by the new client copy issued from Best Practices activation. Customer is responsible for defining/selecting Best Practice business of the selected country by providing completed Best Practice questionnaire document. BP activation is restricted to single country only in this service. BP activation can only be requested once per system landscape. All customizing that may be required after activation of the Best Practices content in order to meet requirements that differ from Best Practice scenarios is not part of this service. The implementation of "Best Practices for SAP S/4HANA" includes the activation of required business functions in client 000, the provisioning of a client with the desired client set-up alternative, and Best Practice scope items activation in the systems (if requested in the Best Practice questionnaire document provided by the customer). Best Practices scope items import and activation, if requested during system build, happens after the system is handed-over to the customer. Fiori technical enablement will be done in the (re-)created client. The activation of corresponding SAP Fiori Apps is not covered by this service.	n/a	n/a
319	BASIC_1.8.14A	Implementation of SAP Best Practices and similar packages for additional countries	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer to inform SAP of the Best Practice (BP) activation requirement during initial provisioning, otherwise existing business client will be overwritten by the new client copy issued from Best Practices activation. Customer is responsible for defining/selecting Best Practice business of the selected country by providing completed Best Practice questionnaire document. BP activation is restricted to single country per request only in this service. BP activation can only be requested once per system landscape. All customizing that may be required after activation of the Best Practices content in order to meet requirements that differ from Best Practice scenarios is not part of this service. The implementation of "Best Practices for SAP S/4HANA" includes the activation of required business functions in client 000, the provisioning of a client with the desired client set-up alternative, and Best Practice scope items activation in the systems (if requested in the Best Practice questionnaire document provided by the customer). Best Practices scope items import and activation, if requested during system build, happens after the system is handed-over to the customer. Fiori technical enablement will be done in the (re-)created client. The activation of corresponding SAP Fiori Apps is not covered by this service.	Application Operations	A1
320	BASIC_1.8.19	Configure SAP online help (local installation)	Standard Services	Once (1) per system; subject to contractual change request (CR) to cover increased infrastructure consumption and additional administrative efforts.	n/a	n/a
321	BASIC_1.8.21	Install ODBC Drivers to connect to external databases	Standard Services	On SLT/HANA SDS/BOB; customer needs to provide required software including appropriate usage rights for an installation in cloud; customer needs to provide specification for required connection (e.g. SSL/TLS).	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
322	BASIC_1.8.12	Increase system capacity by adding additional components (nodes, application servers etc.) or moving existing system to larger infrastructure (e.g. larger database server) - requires infrastructure change	Optional Services	Contractual change request (CR) required to reflect higher infrastructure consumption, subject to additional service fees. If this is a software or configuration only type change then task BASIC_1.8.12A should be used.	n/a	n/a
323	BASIC_1.8.10	Data handover from service provider to customer - one time	Standard Services	Delivered One (1) time per contract duration period. Efforts for a One (1) time data handover (creation of export/backup using SAP standard tools and transfer to media) as part of a contract or system termination are included in the service. Planning, coordination, media and logistics of shipment as well as all associated costs are customer responsibility. Any other occurrence of data handover is an additional service.	n/a	n/a
324	BASIC_1.8.13	Data handover from service provider to customer - additional requests	Additional Service	Efforts for additional data handover (creation of export/backup and transfer to media). Planning, coordination, media and logistics of shipment as well as all associated costs are customer responsibility. Note: One (1) time per contract duration period handover is included as a Standard Service per BASIC_1.8.10.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
325		Incident Management			-	-
326	BASIC_1.16.01	Operate Call Center receiving incidents 24x7x365	Standard Services	24x7 support only in English language, local languages where available during business hours and explicitly agreed with the customer. Further details are described in the Support Schedule for Cloud Services available from the SAP Trust Center.	n/a	n/a
327	BASIC_1.16.02	Incident processing - Qualification and prioritization of the incidents - Initiate incident resolution - Track incident resolution progress - Incident escalation as defined by escalation process - Determine incident resolution or workaround - Implement solution or workaround - Verify incident resolution - Inform customer about incident resolution	Standard Services		n/a	n/a
328	BASIC_1.16.03	Sign-off/Approve solution and confirm incident resolution	Excluded Tasks		n/a	n/a
329		Event detection and notification ("monitoring")			-	-
330	BASIC_1.8.17	Monitoring and event detection of SAP system availability and critical system states	Standard Services	Monitoring requirements are defined based on Roles & Responsibilities and SLAs; activated monitoring metrics and used thresholds are subject to constant change and tuning.	n/a	n/a
331	BASIC_1.7.07	Monitor critical business transactions	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Manual monitoring; effort based per execution.	Customer Application Monitoring	M2
332		General Operations			-	-
333	BASIC_1.8.08	Start/Stop managed systems	Standard Services	Used for a variety of scenarios including, but not limited to: daylight saving/standard time adjustment; restarting managed systems with reboot option; restarting additional application servers, restarting SAP Solution Manager diagnostic agent, etc.	n/a	n/a
334		LINE INTENTIONALLY LEFT BLANK				
335	BASIC_1.1.15	Troubleshoot technical issues in managed systems	Standard Services	For technical issues only; application related problems must be resolved by the customer.	n/a	n/a
336	BASIC_1.1.14	Assist customers with tasks in their area of responsibility if OS access is required	Standard Services	In cases where the execution of tasks requires activities to be performed within the OS level and for which the customer is responsible according to this document. Customers will not get OS access to managed servers within cloud. The service provider will support the customer, e.g. by taking over the tasks or by providing other methods to execute tasks. This line item only applies to infrequent/occasional assistance; projects requiring regular, longer and more general OS access for implementation, development and support cannot be supported via this line item.	n/a	n/a
337	BASIC_1.1.16	Regular analysis and maintenance of SAP system profile parameters	Standard Services	Process flow - additional information available. Service provider is responsible for executing this task as it can have an impact on system performance and availability. Provider will provide recommendations for technical system parameters; Provider will also adjust parameters by customer request except for certain standardized settings required to maintain system stability or security.	n/a	n/a
338		SAP Security Management			-	-
339	BASIC_1.2.22	Define and implement security concept for application	Excluded Tasks	Customer may engage other SAP services to define and implement security concept for application.	n/a	n/a
340	BASIC_1.2.23	Define and implement infrastructure security concept	Standard Services		n/a	n/a
341	BASIC_1.2.19	Customer specific Security Audit Log analysis	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Audit Readiness	S4
342	BASIC_1.2.20	Analyze the SAP system and identify relevant SAP security notes	Standard Services	Security notes for installed systems can be evaluated and analyzed to identify critical notes relevant for the ABAP-stack. This task is automatically delivered if Customer has relevant CAS Package(s). Customers without relevant CAS Package(s) can check security notes on SAP for Me (formerly known as the ONE Support Launchpad) and create a Service Request.	n/a	n/a
343	BASIC_1.2.27	Implement SAP Security Notes - SAP Basis / ABAP related	Standard Services	Implement SAP Security Notes for SAP Basis without manual activities - This task is automatically delivered if Customer has relevant CAS Package(s). Customers without relevant CAS Package(s) can check security notes on SAP for Me (formerly known as the ONE Support Launchpad) and create a Service Request.	n/a	n/a
344	BASIC_1.2.28	Implement relevant SAP Security Notes - Application related (ABAP and JAVA stack only)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Relevant SAP Security Notes with and without manual activities will be analyzed and implemented in DEV systems. Perform transport of implemented Notes to QAS and PROD systems (for ABAP stack only). Analyze relevant Security Notes for Java and create service request on behalf of Customer to initiate implementation of required Java components. Testing of implemented Notes is Customer's responsibility.	Application Security Updates	S1
345	BASIC_1.2.18	Administer customer users (e.g. user creation, change, deletion, maintenance of user profiles, roles, authorizations, source data and passwords)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
346	BASIC_1.2.15	Maintain user profiles, roles, authorizations, source data and passwords in client 000	Standard Services		n/a	n/a
347	BASIC_1.2.16	Provide access to client 000 for customer	Standard Services	Restricted, predefined profile only; limited set of users provided; service provided on request only.	n/a	n/a
348	BASIC_1.2.25	Design / Architecture of Single Sign On (SSO) for systems in cloud landscape	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
349	BASIC_1.2.24	Implementation of Single Sign On (SSO) for systems in cloud landscape	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
350	BASIC_1.2.21	Provide audit log information to customers	Standard Services	By request only to support incident investigations, but not on a regular basis e.g. to monitor administrative activities. Format, content and procedure used will be determined by SAP and by general security and data protection policies.	n/a	n/a
351	BASIC_1.2.26_AE	Update Global Change parameters and default system settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
352	BASIC_1.2.30	Security Risk Check	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Provides a detailed profile of the Customer's system landscape related to security risks and initiate remediation to address areas of high risk.	Security Risk Check	S6
353	BASIC_1.2.31	Security for Interface	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Provides guidance for secure access to remote function call (RFC) modules by implementing a secure framework for RFC modules and restricting access to needed modules only.	Security for Interface	S7
354	BASIC_1.2.32	Application Security Monitoring	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Monitor Customer's applications related to security statuses. Report Security KPIs and remediation activities.	Application Security Monitoring	S8

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
355		SAP Infrastructure and Application Logging service (LogServ)			-	-
356	BASIC_1.2.33	Enable SAP Infrastructure and Application Logging service (LogServ) for SAP Business Technology Platform	Optional Services	The SAP Infrastructure and Application Logging service (LogServ) allows for centralization, real-time collection, retention, and recovery of logs for systems, applications and other services.	n/a	n/a
357	BASIC_1.2.34	LogServ activities on Customer SIEM	Excluded Tasks	Service does not include the following activities in Customer SIEM: validation and confirmation of receiving logs; creating correlation rules; or monitoring of offenses.	n/a	n/a
358		Homogeneous system copy (aka System refresh)	A homogenous system copy is defined either as 1) a new system which is built as copy from an existing system in a landscape within the same data center or hyperscaler platform or 2) a "data refresh" overwriting the database of an already existing system in the landscape within the same data center or hyperscaler platform. Copies for non-NetWeaver systems is not possible during initial build phase. After initial build phase copies for non-NetWeaver systems need to be evaluated on a case by case basis and is not possible in all cases.		-	-
359	BASIC_1.3.01	Homogeneous system copy (aka System refresh) for non-Netweaver systems during initial build phase.	Excluded Tasks	Only available after initial build phase is complete.	n/a	n/a
360	BASIC_1.3.11	Pre-processing tasks which are not covered by PCA (Post-Copy Automation) - i.e. export customer defined tables with 'old' configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Additional examples of tasks which are not covered by PCA include but are not limited to: saving configuration for HANA remote connections; implementing "Export Customer Defined Configuration Tables" for use in PCA; and transaction screenshots defined by customer.	Application Operations	A1
361	BASIC_1.3.10	Homogeneous system copy - post build phase (Planning, preparations, checks, database backup, database restore, technical post processing tasks, test of technical system functionality) - Intra-regional (same region) refresh only	Standard Services	Process flow - additional information available . Up to Six (6) refreshes per SID, per contract year, are included; additional refreshes are available as a chargeable request. Only available after initial build phase is complete. Note: copies for non-NetWeaver systems need to be evaluated on a case by case basis and is not possible in all cases. Intra-regional (same region) only (e.g. restore a system in region 2 from backup from region 1 is not possible). Extra-regional (between region) refreshes are available as an Optional Service. Does not include activities such as data masking, scrambling etc.	n/a	n/a
362	BASIC_1.3.10A	Homogeneous system copy - post build phase (Planning, preparations, checks, database backup, database restore, technical post processing tasks, test of technical system functionality) - Extra-regional (between regions) refresh	Optional Services	Process flow - additional information available . Extra-regional (between region) refreshes are available as an Optional Service. Note: This service is not available in all regions and/or datacenters and is not available from all service providers. Does not include activities such as data masking, scrambling etc.	n/a	n/a
363	BASIC_1.3.10_PCE	Homogeneous system copy - additional requests	Additional Service	Process flow - additional information available . Requests for additional refreshes beyond entitlement noted in BASIC_1.3.10. Available after initial build phase is complete. Note: copies for non-NetWeaver systems need to be evaluated on a case by case basis and is not possible in all cases. Intra-regional (same region) only (e.g. restore a system in region 2 from backup from region 1 is not possible). Extra-regional see Optional Service BASIC_1.3.10A.	n/a	n/a
364	BASIC_1.3.07	Post processing tasks e.g. Embedded Search, BDLS - pre-existing systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	For existing/live systems	Application Operations	A1
365	BASIC_1.3.07A	Post processing tasks e.g. Embedded Search, BDLS - new builds, post migration switch back to main instance	Standard Services	For new builds for brownfield system-copy scenarios	n/a	n/a
366		Heterogeneous system copy (aka System migration)			-	-
367	BASIC_1.14.01	Heterogeneous system copy	Standard Services	Scope, approach and price subject to individual planning depending on circumstances and requirements; change request (CR) required for infrastructure changes.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
368		Release Management			-	-
369	BASIC_1.5.13A	Install new software entities in the system after initial customer handover during Onboarding (applies to e.g. add-ons and other sorts of additional solution packages)	Standard Services	Process flow - additional information available. Contractual Change Request (CR) required in case of changed managed service scope or increased infrastructure consumption.	n/a	n/a
370	BASIC_1.5.13B	Install new content in the system after initial customer handover during Onboarding (applies to e.g. languages, content packages etc.)	Standard Services	Process flow - additional information available. Contractual Change Request (CR) required in case of changed managed service scope or increased infrastructure consumption.	n/a	n/a
371	BASIC_1.5.03	Implement SAP Notes, transport-based corrections instructions (TCI), and other types of manual corrections (corrections not provided as software correction package) in managed system (notes and corrections required to fix application related issues)		Fixing issues that fall into the responsibility of the customer per this Roles and Responsibilities document and which are therefore not covered by the respective Standard Service for technical SAP Note implementation are considered "application" related and corresponding SAP Notes would be applied as defined in this task. This would typically belong to the application layer and/or presentation layer of the NetWeaver as well as S/4-stack.	Application Operations	A1
372	BASIC_1.5.04	Implement SAP Notes, transport-based corrections instructions (TCI), and other types of manual corrections (corrections not provided as software correction package) in managed system (notes required to fix issues related to technical SAP components)	Standard Services	Dependent on the criticality of repair and only if no appropriate Support Package is available, fixing issues that fall into the responsibility of Provider per the Roles and Responsibility and/or require activities which cannot be performed by customer are considered "technical" and corresponding SAP notes would be applied as defined in this task. The topic area of the respective note can only serve as a rough indicator, since only a subset of BC-* topic areas are covered by the standard service. The two areas, where the service mostly applies are BC-CST and BC-DB. Any post installation tasks required as per the SAP Note in question which is not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace) need to be performed by the customer.	n/a	n/a
373	BASIC_1.5.05	Apply Application SAP Notes for License Auditing	Standard Services	Automated License Metering allows automatic measurement of user and engine consumption to check compliance against customer licenses. Dependent on the criticality of repair of License Metering functionality, and only if no appropriate Support Package is available; fixing issues that fall into the responsibility of Service Provider per the Roles and Responsibility. This typically belongs to the application layer and/or presentation layer of SAP NetWeaver as well as the S/4-stack. SAP Notes which belong to application components like FI, CO etc. are included. Any post-installation tasks required per the SAP Note in question which is not technical in nature (e.g. application related settings/manual code creation in Customer namespace or manual activities required in SAP namespace) need to be performed by the Customer.	n/a	n/a
374	BASIC_1.5.06	Implementation of patches for system software running on OS level, e.g. SAP kernel	Standard Services	Process flow - additional information available. May require additional system downtime.	n/a	n/a
375	BASIC_1.5.21	Implement kernel patches using Rolling Kernel Update Service	Standard Services	To keep any adverse effects on business operations to a minimum when importing a new kernel version, instances are restarted one after the other. This means that during this procedure at least one application server instance is always available for business operations. Minimum Eligibility: A minimum of Two (2) application servers are required to execute the service automatically and with minimized system downtime. The service can be used as of SAP kernel release 741 and SAP_BASIS equal to or greater than 740 SP5. This service is only for SAP ABAP systems. This service does not include the configuration an additional gateway in the ASCS instance because this gateway will fail when the ASCS instance is restarted.	n/a	n/a
376	BASIC_1.5.09	Implement updates to the managed SAP solution using standard tools and methods	Standard Services	Process flow - additional information available. The term "update" denotes the change to a new minor release of the hosted SAP software, typically focused on bug fixes and small enhancements. The terminology for such events differs within the SAP portfolio, however frequently used terms in this context are "patch", "Support Package" and the like; this line item also includes the implementation of S/4HANA Feature Pack Stacks (FPS) but does not include the upgrade of S/4HANA to the next major release; the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace; if a particular SAP component is not modelled in the PAM, this activity can be considered an "update" for that component unless where explicitly noted; this line item does not include the usage of more sophisticated update approaches like nZDT/IZDO/Downtime Minimization etc.; Requires standard scheduled downtime to implement. Any post installation tasks required which is not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace) need to be performed by the customer. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a
377	BASIC_1.5.11	Implement updates or upgrades to the managed SAP business software - ABAP solution using Zero Downtime Option (ZDO) of SUM which is part of the Maintenance Downtime Minimization Service	Additional Service	The term "update" denotes the change to a new minor release of the hosted SAP software, typically focused on bug fixes and small enhancements. The terminology for such events differs within the SAP portfolio, however frequently used terms in this context are "patch", "Support Package" and the like; this line item also includes the implementation of S/4HANA Feature Pack Stacks (FPS); the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace; Note: any implementation of updates or upgrades may require additional system downtime or pre-requisites for system resources including but not limited to additional memory, CPU, and a QA or Pre-production system to perform testing and validation. If system resources are not available in the existing customer landscape they will need to be provided via a change request (CR) and may result in additional service fees. Requires minimal scheduled downtime to implement. Any post installation tasks required which are not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace) need to be performed by the customer. Supported as per SAP Notes 2163060 and 2707731 - Prerequisites and Restrictions of Zero Downtime Option of SUM for SAP Business Suite and S/4 HANA.	n/a	n/a
378	BASIC_1.5.11B	Implement upgrades of an SAP ABAP based system with Near Zero Downtime Maintenance (nZDM) of Software Update Manager (SUM)	Additional Service	The term "version upgrade" denotes the change to a new major release of the hosted SAP software, typically including functional enhancements; besides upgrades this also includes the implementation of SAP Enhancement Packages; the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace; 3rd Party software excluded. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable. Note: any implementation of upgrades may require additional system downtime or pre-requisite system resources including, but not limited to additional memory, CPU, and a QA or pre-production system to perform testing and validation. If system resources are not available in the existing customer landscape they will need to be provided via a change request (CR) and may result in additional service fees. Requires minimal scheduled downtime to implement. Any post installation tasks required which are not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace) need to be performed by the customer. Supported as per SAP Note 1678565 - Prerequisites and restrictions of nZDM (near-Zero Downtime Maintenance) for ABAP-based solutions.	n/a	n/a
379	BASIC_1.5.10	Ongoing maintenance of system languages, e.g. performing language fill-up	Standard Services	Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
380	BASIC_1.1.01	Version upgrade/update of SAP Software: planning and coordination	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	The term "update" denotes the change to a new minor release of the hosted SAP software, typically focused on bug fixes and small enhancements. The terminology for such events differs within the SAP portfolio, however frequently used terms in this context are "patch", "Support Package" and the like; this line item also includes the implementation of S/4HANA Feature Pack Stacks (FPS). The release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace. The term "version upgrade" denotes the change to a new major release of the hosted SAP software, typically including functional enhancements; besides upgrades this also includes the implementation of SAP Enhancement Packages; the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace; 3rd Party software excluded. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	Release Version Upgrade	RM1
381	MOVE_1.1.06	SAP Readiness Check for SAP S/4HANA upgrades	Standard Services	The service can only be applied to the SAP S/4HANA landscape indicated in the contract. Includes implementation of SAP Readiness Check for SAP S/4HANA upgrades Notes in the corresponding system and generation of the required files with subsequent handover of the export file to the customer. Customer must submit the request for SAP Readiness Check report and dashboard generation or SAP will perform this on behalf of the customer. Target scenario for this service is an SAP S/4HANA upgrade.	n/a	n/a
382	BASIC_1.5.07	Version upgrade of SAP Software: Execute technical upgrade tasks	Standard Services	The term "version upgrade" denotes the change to a new major release of the hosted SAP software, typically including functional enhancements; besides upgrades this also includes the implementation of SAP Enhancement Packages; the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace; 3rd Party software excluded. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a
383	BASIC_1.5.22	Version update of SAP Software: Pre- and Post BASIS Tasks	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	The term "update" denotes the change to a new minor release of the hosted SAP software, typically focused on bug fixes and small enhancements. The terminology for such events differs within the SAP portfolio, however frequently used terms in this context are "patch", "Support Package" and the like; this line item also includes the implementation of S/4HANA Feature Pack Stacks (FPS). The release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace. Examples for this service include: run simplification check; unlock objects; remove inactive objects; implement update related notes; support modification adjustment.	Release Version Upgrade	RM1
384	BASIC_1.5.22A	Version upgrade of SAP Software: Pre- and Post BASIS Tasks	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Examples for this service include, run simplification check; unlock objects; remove inactive objects; implement upgrade related notes; support modification adjustment for technical issues, supporting and monitoring of Silent Data Migration. The term "version upgrade" denotes the change to a new major release of the hosted SAP software, typically including functional enhancements; besides upgrades this also includes the implementation of SAP Enhancement Packages; the release sequence and the categorization of versions for each SAP product is available in the Product Availability Matrix (PAM) in SAP Service Marketplace.	Release Version Upgrade	RM1
385	TO_NWABAP_1.5.08	Adjust repository objects as part of software changes	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Execution of adjustments in SPDD/SPAU for SAP objects. Customer objects in SPDD/SPAU require customers decision during execution.	Release Version Upgrade	RM1
386	BASIC_1.5.08	Execute application related technical error handling tasks as part of the technical execution process for upgrades and updates and for Change Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Troubleshoot and SAP note correction implementation related to technical upgrade or update activities. Functional decisions to be confirmed by Customer's functional team or SAP product support if required during implementation of resolution.	Release Version Upgrade	RM1
387	BASIC_1.5.20 / MOVE_1.3.02	Conversion of SAP ERP and SAP BW systems to SAP S/4HANA and SAP BW4/HANA	Additional Service	"Conversion" process denotes the switch or movement from an older hosted SAP ERP software version to an SAP S/4 release, and typically involves SAP Readiness Check, Simplification Items Catalog, Business function (de)activation with tools like SUM/DMO, Custom code optimization, functional/integration testing etc. This task is limited to services which cannot be performed by the customer e.g. SUM tool, activities in client 000 etc. Overall responsibility for SAP S/4HANA conversion which includes (but not limited to) SAP Readiness check, simplification items, Maintenance planner, Application tasks, custom code adjustment, functional/integration testing etc. for conversion process is the responsibility of the customer. This line item does not include the usage of more sophisticated update approaches like nZDT/ZDO/Downtime Minimization etc. Standard scheduled downtime is required to implement. Any post installation tasks required which is not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace, SPAU/SPDD, simplification items etc.) need to be performed by the customer. Depending on complexity of conversion involvement of other SAP services might be required. This service only applies to managed systems.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
388		Proactive services			.	.
389	BASIC_1.7.02	Prepare SAP service sessions session by maintaining RTCCTOOL	Standard Services	Performed only for productive systems; activities which have to be performed within the customer's SAP Solution Manager are the customer's responsibility.	n/a	n/a
390	BASIC_1.7.03	Analysis of SAP Service Session reports (incl. EarlyWatch Alert) for systems operated in the cloud for findings and recommendations regarding aspects within the service scope of cloud (technical operations)	Standard Services	Performed only for productive systems.	n/a	n/a
391	BASIC_1.7.09	Analysis of SAP Service Session reports (incl. EarlyWatch Alert) for systems operated in the cloud. Provide recommendations for changes related to SAP application (outside technical operations scope of standard service).	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Performed only for productive systems.	Application Operations	A1
392	BASIC_1.7.11_AE	Process chain retriggering or cancellation	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operation or Customer Application Monitoring	A1, M2
393		System performance management			.	.
394	BASIC_1.12.01	Initial assessment of system performance issues	Standard Services	Service provider performs an initial assessment of identified or reported system performance issues to identify potential root causes. The primary scope of this assessment is to quickly check performance relevant technical building blocks of the service. This may include infrastructure, database and technical SAP stack for root causes and based on the result, determine whether the root cause is likely to be technical or application related.	n/a	n/a
395	BASIC_1.12.03	Troubleshoot SAP system performance issues (technical root causes within cloud service scope)	Standard Services	Based on the result of the initial assessment; troubleshooting by service provider is only performed in situations caused by technical issues within the service scope and where the system performance lies outside usual and expectable behavior (e.g. as it has shown in the past in comparable load situations).	n/a	n/a
396	BASIC_1.12.02	Performance and Benchmark Service	Optional Services	Includes the definition of performance metrics and measurements against those to identify deviations in system behavior; a detailed service description is available.	n/a	n/a
397	BASIC_1.12.05	Perform load test execution	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Demonstrate the load capabilities of the target SAP system based on the software and hardware configuration. Identify potential scalability bottlenecks with respect to the target environment. Simulation of end user behavior. Maximum 500 concurrent users.	Performance Testing	P1
398	BASIC_1.12.06	Monitoring standard performance KPI's against SAP Best Practice thresholds	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Alert handling, analysis, recommendation management and remediation initiation.	Core Performance Management	P4
399	BASIC_1.7.06	Analyze and troubleshoot performance issues (root causes outside service scope and application related root causes)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	In some situations service provider might be able to support the customer using Application Management as a CAS service.	Performance Optimization	P2
400	BASIC_1.7.12_AE	Identify the root cause of failing KPIs and define preventive/corrective actions and/or possible countermeasures	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Performance Optimization or Core Performance Management	P2, P4
401	BASIC_1.7.08	Review and optimize customer code to improve system performance and stability	Excluded Tasks	Customer may engage other SAP services.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
402		Certificate Handling			.	.
403	BASIC_1.11.01	Generate Certificate Signing Request (CSR)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Except LoadBalancers, Web Dispatchers, Data Services, SAP Business Technology Platform (formerly SAP Cloud Platform) Integration - Data Services Agent, BO, SAProuter (for SEEBURGER integration only), and other systems; for these systems service provider will generate the CSR and hand it over to the customer for further processing.	Application Operations	A1
404	BASIC_1.11.09	Generate / Renew / Extend Certificate Signing Request (CSR) for LoadBalancers, Web Dispatchers, Data Services and BO systems	Standard Services		n/a	n/a
405	BASIC_1.11.02	Send certificate signing request to Certificate Authority	Excluded Tasks		n/a	n/a
406	BASIC_1.11.08	Create SSL server / client identity with key pair	Standard Services		n/a	n/a
407	BASIC_1.11.04	System (OS Level) configuration to enable SSL/TLS	Standard Services		n/a	n/a
408	BASIC_1.11.05	System (Application Level) configuration to enable SSL/TLS	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Establish the SSL Connection to SAP Business Technology Platform (formerly SAP Cloud Platform) via TA STRUST. In SAP-owned global account. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
409	BASIC_1.11.07	Implement signed certificate for LoadBalancers, Web Dispatchers, Data Services, SAP Business Technology Platform (formerly SAP Cloud Platform) - Data Services Agent and BO systems	Standard Services	Related to Fiori enablement only. Customer has to provide signed certificates	n/a	n/a
410	BASIC_1.11.10	Implement other signed certificate to managed system	Standard Services	Related to Fiori enablement only. Other than LoadBalancers, Web Dispatchers, Data Services, SAP Business Technology Platform (formerly SAP Cloud Platform) - Data Services Agent, BO, and other systems.	n/a	n/a
411	BASIC_1.11.06	Monitor validity period of certificates	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer to provide URL for certificate check (e.g. FLP). Manual monitoring; effort based per execution.	Application Monitoring or Customer Application Monitoring	M1, M2
412	BASIC_1.11.11	Add or Renew of SSL certificate	Standard Services		n/a	n/a
413	BASIC_1.11.12	Renewal of Expiring Certificates	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	For new SAP standard certificate in trust only.	Application Monitoring or Customer Application Monitoring	M1, M2

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
414		Disaster Recovery	Disaster Recovery is an Optional Service and is only provided in the managed service if Disaster Recovery is part of the contract/SOW/Order Form and/or added with a Change Request.		-	-
415	BASIC_1.9.01	Implement disaster recovery set-up according to architecture blueprint and contractual specifications. Test managed service internal data center and technical system infrastructure.	Optional Services	Performed only for productive systems; only included in service if disaster recovery solution is part of the contract/SOW/Order Form. Managed landscape internal testing requires additional downtime.	n/a	n/a
416	BASIC_1.9.02	Develop and use disaster recovery procedures for database and file system replication only	Optional Services	Performed only for productive systems; only included in service if disaster recovery solution is part of the contract/SOW/Order Form.	n/a	n/a
417	BASIC_1.9.03	Ongoing management of disaster recovery architecture: monitoring of data replication to secondary site including troubleshooting	Optional Services	Performed only for productive systems; only included in service if disaster recovery solution is part of the contract/SOW/Order Form.	n/a	n/a
418	BASIC_1.9.04	Ongoing management of disaster recovery architecture: maintenance and change management for systems at secondary site to ensure system consistency including troubleshooting	Optional Services	Performed only for productive systems; only included in service if disaster recovery solution is part of the contract/SOW/Order Form.	n/a	n/a
419	BASIC_1.9.05	Develop and maintain disaster recovery procedures for those areas and aspects of the service which are in customer responsibility	Excluded Tasks	Included customer infrastructure, connectivity to managed system interfaces (including RFC connections, connection details in other integrated systems), organizational measures and processes etc.	n/a	n/a
420	BASIC_1.9.06	Execute failover during disaster recovery test (DB, application and cnames)	Optional Services	Note: This Service is not applicable for Short Distance DR offering, HA/DR architecture scenarios; DB inserts/updates/deletes done during testing will be lost. Performed only for productive system; on request; maximum One (1) per calendar year (any further test will be charged as billable service); only included in service if disaster recovery solution is part of the contract/SOW/Order Form; customer is responsible for creation and execution of functional tests and customer must support in certain technical aspects, e.g. regarding interfaces, connectivity etc.	n/a	n/a
421	BASIC_1.9.10	Execute failover during disaster recovery test (DB, application and cnames) - additional test	Additional Service	Note: This Service is not applicable for Short Distance DR offering, HA/DR architecture scenarios; DB inserts/updates/deletes done during testing will be lost. Performed only for productive system; on request; maximum One (1) per calendar year (any further test will be charged as billable service); only included in service if disaster recovery solution is part of the contract/SOW/Order Form; customer is responsible for creation and execution of functional tests and customer must support in certain technical aspects, e.g. regarding interfaces, connectivity etc.	n/a	n/a
422	BASIC_1.9.09	Execute online disaster recovery tests (data center and technical system infrastructure only); primary systems remain accessible	Additional Service	Note: This Service is not applicable for Short Distance DR offering, HA/DR architecture scenarios; Not available on all Hyperscalers. Also known as fencing. Performed only for productive system; on request; only possible to be delivered if disaster recovery solution is part of the contract/SOW/Order Form; customer must support in certain technical aspects, e.g. regarding interfaces, connectivity etc.	n/a	n/a
423	BASIC_1.9.07	Execute productive failover in case of an officially declared disaster by service provider - all HA/DR architecture scenarios	Optional Services	Note: This Service is applicable for Short and long distance DR; True disaster declaration for all HA/DR architecture scenarios or Short Distance DR. "Disaster" shall describe a catastrophic event causing widespread damage/destruction, typically not restricted to one individual system or landscape but larger parts of the overall infrastructure; therefore disaster recovery is no measure to overcome outages of isolated systems due to hardware or software incidents; performed only for productive systems; only included in service if disaster recovery solution is part of the contract/SOW/Order Form	n/a	n/a
424	BASIC_1.9.11	Mixed High Availability (HA)/Disaster Recovery (DR): Execute productive failover for a specific SID and invert replication vector	Optional Services	Note: This Service is not applicable for long distance DR; Full productive failover. For Mixed HA/DR architecture. Not available on all Hyperscalers. Maximum of One (1) full-cycle, customer requested failover per calendar year, per SID is included ("Flip-flop"). Failovers which are the result of SAP-declared disasters do not count against maximum. Additional customer requested failovers are billable. Only included in service if disaster recovery solution is part of the contract/SOW/Order Form.	n/a	n/a
425	BASIC_1.9.12	Mixed High Availability (HA)/Disaster Recovery (DR): Execute productive failover for a specific SID and invert replication vector - additional customer requests	Additional Service	Note: This Service is not applicable for long distance DR; Full productive failover. For Mixed HA/DR architecture. Not available on all Hyperscalers. Maximum of One (1) full-cycle, customer requested failover per calendar year, per SID is included ("Flip-flop"). Failovers which are the result of SAP-declared disasters do not count against maximum. Additional customer requested failovers are billable. Only included in service if disaster recovery solution is part of the contract/SOW/Order Form.	n/a	n/a
426		Operations Extension	These services provide possible extensions to areas of Incident, Change and Event Management beyond the standard scope of services.		-	-
427	BASIC_1.15.01	Incident Management: Troubleshoot technical/non-functional incidents not included in Standard Services as per R&R Definition	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Only available for managed systems.	Application Operations	A1
428	BASIC_1.15.02	Change Management: Changes of technical system configuration not included in Standard Services as per R&R Definition	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Only available for managed systems.	Application Operations	A1
429	BASIC_1.15.03	Event management: Monitor technical/non-functional event types not included in Standard Service as per R&R Definition	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Only available for managed systems.	Application Operations	A1
430	BASIC_1.15.04	Service Request Fulfillment: Perform Service Request Fulfillment for technical/non-functional task not included in Standard Service as per R&R Definition	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Only available for managed systems.	Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
431		E - NetWeaver Operations (ABAP and Java)	Depending on technical conditions some tasks listed in this section are applicable to only one of the two platforms (NW ABAP or NW Java).			
432		General NetWeaver Operations				
433	TO_NWABAP_1.1.04	Analyze SAP system log and fix technical failures included in scope of services	Standard Services	May require customer assistance.	n/a	n/a
434	TO_NWABAP_1.1.06	Monitor update processes within SAP software to avoid system operations issues	Standard Services	Service provider informs customer of update process problems; RCA methods provided by SAP Enterprise Support may be used to find application related root causes for updates.	n/a	n/a
435	TO_NWABAP_1.1.07	Analyze update terminations, determine business impact and appropriate action	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	With regards to application issues and impact.	Application Operations	A1
436	TO_NWABAP_1.1.08	Clean up terminated updates	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
437	TO_NWABAP_1.1.10	Analyze lock entries, determine business impact and appropriate action	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
438	TO_NWABAP_1.1.11	Check/clear lock entries	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
439	TO_NWABAP_1.1.12	Check for ABAP dumps to detect serious system issues	Standard Services	Service provider informs customer in the event of serious application related issues that need to be resolved by the customer. Dumps relevant to provider's responsibility will be resolved by provider.	n/a	n/a
440	TO_NWABAP_1.1.22	ABAP dump check and classification	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Including application related dumps.	Application Operations	A1
441	TO_NWABAP_1.1.23	Analyze SAP application log and provide recommendations on fixing failures	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
442	TO_NWABAP_1.1.24	Reorganize qRFC/IRFC queues	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
443	TO_NWABAP_1.1.25	Check fastest growing tables in the SAP system and provide recommendations for archiving or reorganization	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Data Lifecycle Management or Data Volume Optimization	A1, D3, D6
444	TO_NWABAP_1.1.13	Administer SAP Logon Groups	Standard Services	The customer may perform this activity; if service provider is requested to perform the task, the design/definition must be provided by customer.	n/a	n/a
445	TO_NWABAP_1.1.26	Create/Update/Change the System-PSE (Personal Security Environment)	Standard Services	Customers may decide to perform this task themselves for convenience.	n/a	n/a
446	TO_NWABAP_1.1.16	Implement/update tools to ensure readiness for SAP support services	Standard Services	Process flow - additional information available.	n/a	n/a
447	TO_NWABAP_1.1.20	Define archiving strategy	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
448	TO_NWABAP_1.1.21	Execution and monitoring of archiving process	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Increased infrastructure consumption is subject to a CR and additional service fees. Manual monitoring; effort based per execution. This task is only for execution of the archiving programs. The archiving set-up, retention configuration, investigate / troubleshooting of the unarchivable documents/objects is customer's responsibility.	Data Lifecycle Management	D3
449	TO_NWABAP_1.1.17	Manage Web Service Runtime (WSRT)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
450	TO_NWABAP_1.1.18	Configure technical RFC connections (TA SM59) to central systems managed by SAP used for system operations	Standard Services	Technical RFC connection = generic RFC connection required for all managed system based systems the same way, e.g. for monitoring configuration.	n/a	n/a
451	TO_NWABAP_1.1.19	Configure RFC connections (TA SM59) to technical systems managed by the customer and any application-related RFC connection	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
452	TO_NWABAP_1.1.27_AE	Termination of User activity related to identified expensive statement	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
453	TO_NWABAP_1.1.28_AE	Temporary change of heap or extended memory allocation using RSMEMORY	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
454	TO_NWABAP_1.1.29_AE	Termination of dialog work processes	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
455	TO_NWABAP_1.1.30_AE	ICM service restart on Non-responsive situation or post SSL certificate renewal	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
456	TO_NWABAP_1.1.31	Work process cancellation; Optimization of Batch Jobs load post analysis	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Monitoring or Customer Application Monitoring	M1, M2
457	TO_J2EE_1.1.01	Troubleshoot SAP J2EE in case of technical issues	Standard Services	For technical issues only; application related problems must be resolved by the customer.	n/a	n/a
458	TO_J2EE_1.1.02	SAP J2EE: adjust/configure Java applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
459	TO_NWABAP_1.1.32	Deactivate critical ICF services in SAP ABAP instance	Standard Services	Recommended that certain critical ICF services (32 ICF Services) must not be active for ABAP application servers in productive managed landscapes.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
460		SAP Client Operations			-	-
461	TO_NWABAP_1.2.01	Copy client within one SAP System (including analysis and resolution of technical issues)	Standard Services	Process flow - additional information available. Process flow - additional information available. 500GB upper limit, above that threshold, only system copies are performed because of technical restrictions. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a
462	TO_NWABAP_1.2.06	Delete client within one SAP System (including analysis and resolution of technical issues)	Standard Services	Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a
463	TO_NWABAP_1.2.02	Perform client export/import or remote client copy between SAP systems (including analysis and resolution of technical issues)	Standard Services	500GB upper limit, above that threshold, only system copies are performed because of technical restrictions. Does not include activities such as data masking, scrambling etc. Available for systems maintained in an SAP Enterprise Cloud Services (ECS) environment for which SAP is the Service Provider. This service can be requested only after completing a migration by a Partner if applicable.	n/a	n/a
464	TO_NWABAP_1.2.07	Pre-processing tasks, i.e. suspend jobs, lock users, export tables with 'old' configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
465	TO_NWABAP_1.2.08	Post processing tasks, i.e. Enterprise Search, Fiori Launchpad, unlock user, release jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
466	TO_NWABAP_1.2.05	Investigate and resolve application related issues (e.g. with certain database tables and fields)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
467	TO_NWABAP_1.2.09	Create new client	Standard Services	Make new entry in transaction SCC4. Filling of the client performed as sperate service request via client copy.	n/a	n/a
468		Interface Administration			-	-
469	TO_NWABAP_1.3.24	Create, execute, monitor, and troubleshoot batch input sessions	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Manual monitoring; effort based per execution.	Application Operations	A1
470	TO_NWABAP_1.3.25	Configure interface related functions (e.g. IDOCs, interface scripts and jobs, qRFC/IRFC/bgRFC, ALE scenarios etc.)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
471	TO_NWABAP_1.3.26	Monitoring of interfaces and interface related functions	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Application Monitoring or Customer Application Monitoring	A1, M1, M2
472	TO_NWABAP_1.6.03	Establish trust relationships between SAP NW ABAP systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Performed for Fiori launchpad enablement only.	Application Operations	A1
473		Job Scheduling			-	-
474	TO_NWABAP_1.4.09	Schedule (via SM36 --> standard jobs), check and monitor standard SAP system batch jobs to facilitate best-practice housekeeping of SAP system	Standard Services	Per SAP guidelines as defined in SAP Note 16083; additional SAP standard jobs to be reviewed and agreed with customer.	n/a	n/a
475	TO_NWABAP_1.4.14	Define production job schedule and dependencies based on business requirements	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
476	TO_NWABAP_1.4.15	Administer application batch jobs: - Monitor jobs - Troubleshoot according to troubleshooting handbook	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Application Monitoring or Customer Application Monitoring	A1, M1, M2
477		Transport Management			-	-
478	TO_NWABAP_1.5.10	Create and maintain transport domain in client 000 and transport directory	Standard Services	Migrating the transport method from HTC to HTA is not included in this task. Limited to a default setup. Customer specific domains or configurations not included.	n/a	n/a
479	TO_NWABAP_1.5.15_AE	Initial set-up of SAP transport management system (TMS) and configure transport routes	Standard Services	Limited to a default setup. Customer specific domains or configurations not included.	n/a	n/a
480	TO_NWABAP_1.5.16	Copy and delete SAP Transport cofiles and data files	Standard Services		n/a	n/a
481	TO_NWABAP_1.5.11	Initial maintenance of SAP transport management system after system build	Standard Services		n/a	n/a
482	TO_NWABAP_1.5.11A	Maintain SAP transport management system incl. configuration of transport routes and any further configuration (automatic import, scheduled import etc.)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Customer Deployment Planning and Execution	A1, DP2
483	TO_NWABAP_1.5.12	Initial configuration of Transport-based correction instructions (TCI) in client 000	Standard Services	Limited to a default setup. Customer specific domains or configurations not included.	n/a	n/a
484	TO_NWABAP_1.5.01	Set-up of CTS+	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations or Solution Manager - ChaRM	A1, DP3
485	TO_NWABAP_1.5.02	Transfer and release of transport orders	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Before importing critical transports the customer should inform service provider and perform the transport as a scheduled activity.	Application Operations or Customer Deployment Planning and Execution	A1, DP2
486	TO_NWABAP_1.5.03	Execute transports to move objects between SAP systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Customer Deployment Planning and Execution	A1, DP2
487	TO_NWABAP_1.5.04	Troubleshoot SAP Transport Management System	Standard Services	Only for technical transport problems, not related to problems due to the content of the transports, e.g. locked objects.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
488	TO_NWABAP_1.5.14	Set-up and configuration of ChaRM in SAP Solution Manager	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Solution Manager - ChaRM	DP3
489	TO_NWABAP_1.5.09	Testing and acceptance of object changes	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
490		Output Management			.	.
491	TO_NWABAP_1.7.01	Create, change and delete printers within SAP solution	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Service provider would only support printer types contained in SAP published guidelines.	Application Operations	A1
492	TO_NWABAP_1.7.02	Analyze faulty output requests (transaction SP01)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
493	TO_NWABAP_1.7.03	Reorganize SAP spool system to keep system clean	Standard Services	Via SAP standard batch job.	n/a	n/a
494	TO_NWABAP_1.7.04	Design and implementation of print forms	Excluded Tasks		n/a	n/a
495	TO_NWABAP_1.7.05	Lock/unlock SAP printers	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
496	TO_NWABAP_1.7.06	Check spooler table consistency to prevent printing issues	Standard Services	Via SAP standard batch job.	n/a	n/a
497	TO_NWABAP_1.7.07	Configure virtual spool (load balancing between spool processes)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
498	TO_NWABAP_1.7.08	Troubleshoot technical spool- and print-problems (within the SAP system)	Standard Services	Problems caused outside the SAP system/solution scope must be solved by the customer.	n/a	n/a
499	TO_NWABAP_1.7.09	Local printing and support	not offered	Creation and support of local OS printers at managed server instances.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
500		F - Server Provisioning (aka IaaS)	Service to provide server platform, e.g. to install and run non-SAP applications (IaaS); this section does not apply to server infrastructure used to run the managed SAP system landscape. Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).			
501		Security Planning			.	.
502	TO_SPROV_1.4.01	Provide application communication requirements	Excluded Tasks		n/a	n/a
503	TO_SPROV_1.4.02	Determine communication and security requirements	Excluded Tasks		n/a	n/a
504	TO_SPROV_1.4.03	Create and maintain security policies	Excluded Tasks		n/a	n/a
505	TO_SPROV_1.4.04	Determine security strategy and implementation plans	Excluded Tasks		n/a	n/a
506	TO_SPROV_1.4.05	Monitor and assess security strategies	Excluded Tasks		n/a	n/a
507		Hardware Operations			.	.
508	TO_SPROV_1.5.03	Plan and conduct cloud infrastructure maintenance	Standard Services		n/a	n/a
509		Server Management			.	.
510	TO_SPROV_1.6.11	Sizing of server infrastructure	Excluded Tasks	Virtual machines provided as specified in the SOW/Order Form; customer must ensure that sizing is accurate and provided VMs fulfil the requirements of the intended use case.	n/a	n/a
511	TO_SPROV_1.6.01	Provide server infrastructure	Standard Services		n/a	n/a
512	TO_SPROV_1.6.02	Provide licenses for OS	Standard Services	Licenses will be provided and charged by provider.	n/a	n/a
513	TO_SPROV_1.6.03	Install basic operating system	Standard Services	Supported OS: SUSE LINUX and MS Windows Server (most up-to-date versions).	n/a	n/a
514	TO_SPROV_1.6.04	Install OS patches and security updates	Excluded Tasks	Server will be shipped with the latest available security patch level, after hand over customer is responsible for updates.	n/a	n/a
515	TO_SPROV_1.6.05	Install antivirus software and patterns updates	Excluded Tasks	Customer is responsible for Antivirus installation and virus pattern updates on a daily basis.	n/a	n/a
516	TO_SPROV_1.6.06	Antivirus software licenses	Excluded Tasks		n/a	n/a
517	TO_SPROV_1.6.07	Perform scheduled startup/shutdown of hardware	Standard Services	Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).	n/a	n/a
518	TO_SPROV_1.6.08	Restart the hardware after failure	Standard Services	Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).	n/a	n/a
519	TO_SPROV_1.6.09	Monitor hardware on hypervisor level	Standard Services	Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler).	n/a	n/a
520	TO_SPROV_1.6.10	Monitor operating system of provided OS instances	Excluded Tasks		n/a	n/a
521		Storage Management			.	.
522	TO_SPROV_1.7.01	Initial set-up and ongoing management of storage	Standard Services	Storage capacity will be provided as contracted based on customer specifications; technical limitations for storage volume that can be provided under this service apply (details specified in the respective service description).	n/a	n/a
523	TO_SPROV_1.7.02	Manage data files/file systems	Excluded Tasks		n/a	n/a
524	TO_SPROV_1.7.03	Request storage area size/ size extensions for the backup storage area. Select and execute backup according to application/ customer needs and store backup data into the designated backup storage area. Ensure housekeeping of the backup storage area.	Excluded Tasks		n/a	n/a
525	TO_SPROV_1.7.04	Provide an NFS or SMB share as backup storage area to allow storage of customer defined backups. Backup storage area sizing is done based on customer input as contracted.	Standard Services		n/a	n/a
526	TO_SPROV_1.7.06	Mount of file system from managed server to an IaaS server	Standard Services	Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler). Applicability to a given customer landscape needs to be checked with the respective SAP Account Manager; customers must not execute tasks using this mount that put a risk to performance or stability of the managed cloud infrastructure (e. g. network services, large volume data syncs etc.).	n/a	n/a
527	TO_SPROV_1.7.05	Scale storage capacity	Optional Services		n/a	n/a
528		Application Management			.	.
529	TO_SPROV_1.8.01	Define application requirements	Excluded Tasks		n/a	n/a
530	TO_SPROV_1.8.02	Provide customer specific software licenses	Excluded Tasks	Customer must make sure that they hold valid licenses to run the installed software in the cloud environment.	n/a	n/a
531	TO_SPROV_1.8.03	Install application	Excluded Tasks		n/a	n/a
532	TO_SPROV_1.8.04	Operate application	Excluded Tasks		n/a	n/a
533	TO_SPROV_1.8.05	Install patches and security updates	Excluded Tasks	Customer is responsible for software lifecycle management.	n/a	n/a
534	TO_SPROV_1.8.06	Application monitoring	Excluded Tasks		n/a	n/a
535		IaaS VM Snapshot (offline image backup)			.	.
536	TO_SPROV_1.10.01	Service Set-up	Optional Services		n/a	n/a
537	TO_SPROV_1.10.02	Request additional storage for copy of block device	Excluded Tasks	This Volume (additional storage) needs to be provisioned to accommodate the block device backup temporarily before moving it to the standard backup solution.	n/a	n/a
538	TO_SPROV_1.10.04	Snapshot of IaaS	Optional Services	Infrastructure related services may be different depending on deployed infrastructure platform (e.g. Hyperscaler). Performed on customer request only; shutdown, rsync block device and copy to the standard backup solution. Maximum of Two (2) snapshots per month. Minimum duration of Three (3) months required for snapshot service and storage (if required). Any storage required can be extended through the contract duration.	n/a	n/a
539	TO_SPROV_1.10.05	Restart server and inform customer	Optional Services	After successful restart of VM, inform customer and update the ticket.	n/a	n/a
540	TO_SPROV_1.10.06	Start required applications on server	Excluded Tasks	Customer needs to make sure that applications are started after the snapshot operation.	n/a	n/a
541		Disaster Recovery			.	.
542	TO_SPROV_1.9.01	Provide VM and related storage in the secondary data center	Optional Services	Only for those IaaS servers explicitly specified in the contract as relevant for DR.	n/a	n/a
543	TO_SPROV_1.9.02	Set-up application on the dedicated VM in the secondary data center. Configure file system replication between primary and the secondary data center across the customer WAN network. Monitor the replication status and perform necessary operation activities.	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
544		G - Cloud Application Services				
545		Cloud Application Services - Reactive Services	Only available for managed systems. Service delivery requires initial scoping for relevant application area before tasks can be delivered; transition to service execution may apply.			
546	CAS_1.1.01	Incident Management: Troubleshoot functional incidents in SAP applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will perform reactive application management for incidents, where the resolution may include: Restoration of the service or resolution of the underlying issue; Provision of a Workaround; Creation of an action plan.	Functional Application Management	F1
547	CAS_1.1.02	Problem Management: root cause analysis and resolution of problems in SAP applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will perform root cause analysis and propose a resolution for problems, which may include: Analysis of the root cause of an incident; Providing an approach to prevent the incident from reoccurring; Resolution of problems; Recommendations on application and system optimization; Request involvement of Product Support as necessary.	Functional Application Management	F1
548	CAS_1.1.03	Service Request Management: Perform Service Request Fulfillment for functional tasks in SAP applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will accept tickets from Key Users to request a service. Service Request Tickets include: Agreed Standard Service Request or Standard Change with implementation; Service Request for non-standard scope, including: Scope definition and commercial validation and approval.	Functional Application Management	F1
549	CAS_1.1.04	Event Management: Monitor functional event types in SAP applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will perform event management activities and create tickets for identified issues, which may include: Monitoring alerts; Categorization of alerts according to criticality; Taking corrective actions in processing the incident tickets; Proactive adjustment to relevant parameters to avoid further issues".	Functional Application Management	F1
550	CAS_1.1.05	Change Management: Changes of functional configuration in SAP applications	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will accept tickets for non-standard scope from Key Users and provide analysis of Requests for change, including: Scope definition and commercial validation and approval.	Functional Application Management	F1
551		Cloud Application Services - Proactive Services				
552	CAS_1.2.01	Continuous Operations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Cloud Optimization	O1
553	CAS_1.2.03	Managed Operations Control Center	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Customer Application Monitoring	M2
554	CAS_1.2.05	Deployment Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Customer Deployment Strategy	DP1
555	CAS_1.2.06	Cloud Optimization	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will assist Customer with establishing cloud operations in the SAP cloud environment solution. This include tasks as provide best practices, support through the start, establishment and optimization, facilitating the identification of issues impacting the cloud-based environment.	Cloud Optimization	O1
556	CAS_1.2.07	Business Improvement Foundation	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Service activates and continuously operates SAP Signavio Process Insights and Business Process Monitoring of Cloud ALM or those tasks which are per product default in responsibility of the Customer. Provides managed integration for both S/4HANA Cloud, private edition and for a single point of access by the Process Analytics Dashboard (PAD) running on BTP as central launchpad by SAP Build Workzone, standard edition.	Business Improvement Foundation	B1
557	CAS_1.2.08	Data Integration and Lifecycle Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
558		Testing Services				
559	CAS_2.1.01	Provide detailed plan for test management execution	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will align with Customer's test strategy and approach and schedule test execution with respect to the Customer defined test scope.	Regression Testing	T2
560	CAS_2.1.02	Perform outcome based functional testing on the defined scope, report defects, and report issues	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will use Customer provided test case documentation for test execution.	Regression Testing	T2
561	CAS_2.1.03	Configure the Test Suite in SAP Solution Manager	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP will leverage Customer's instance of Test Management Tool (e.g. Solution Manager) as system for record of testing.	Regression Testing	T2
562	CAS_2.1.04	Test Execution on SAP Integration Suite	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		SAP S/4HANA Interface Testing	T3
563	CAS_2.1.05	Execution of automated interface test scripts	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		SAP Integration Suite Testing	T4
564		Security Services				
565	CAS_2.2.01	Execute Segregation of Duty check and provide report of risk assessment and recommendations for improvement	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Segregation of Duties Check	S3
566	CAS_2.2.02	Scan Customer SAP productive system for security risks of secure configuration, review authorization concept, and secure configuration of HANA system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Security Risk Check	S6
567	CAS_2.2.03	Continuous management of existing and new RFC enabled function modules	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Security for Interface	S7
568	CAS_2.2.04	Execute monitoring of Customer application for security status for defined security KPIs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Security Monitoring	S8
569	CAS_2.2.05	Prepare regular security audits and identify issues during and after regular audits	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Audit Readiness	S4

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
570		H - SAP S/4HANA Movement Program			.	.
571		Transformation Discovery - Technical Preparation Services			.	.
572	MOVE_1.1.02	SAP Readiness Check for SAP S/4HANA	Standard Services	Service can only be applied to the ECC landscape indicated in the contract. Includes implementation of SAP Readiness Check for SAP S/4HANA; Notes in the corresponding system and generation of the required files with subsequent handover of the export file to the customer. Customer must submit the request for SAP Readiness Check report and dashboard generation or SAP will perform this on behalf of the customer. Target scenario for this service is an SAP S/4HANA conversion from SAP ECC system.	n/a	n/a
573	MOVE_1.1.07	SAP Readiness Check for SAP BW/4HANA	Standard Services	The service can only be applied to the SAP BW landscape indicated in the contract. Includes implementation of SAP Readiness Check for SAP BW/4HANA Notes in the corresponding system and generation of the required files with subsequent handover of the export file to the customer. Customer must submit the request for SAP Readiness Check report and dashboard generation or SAP will perform this on behalf of the customer. Target scenario for this service is an SAP BW/4HANA conversion from SAP BW system.	n/a	n/a
574	MOVE_1.1.03	Custom Code Analysis - Setup	Standard Services	The service can only be applied during an ECC to SAP S/4HANA conversion or upgrade of a SAP S/4HANA solution landscape. The entire ERP system landscape is evaluated to determine the right approach to provide the setup for a custom code analysis. Required SAP Notes will be implemented. Based on the determined approach, at the end of the service, the customer will be handed over a functional SAP S/4HANA custom code analysis setup in the local S/4HANA system, Remote Central ATC system, or the Custom Code Migration App.	n/a	n/a
575	MOVE_1.1.04	SAP Signavio Process Insights	Standard Services	Service can only be applied to the ECC landscape indicated in the contract. Includes implementation of the technical prerequisites for SAP Signavio Process Insights in the corresponding system; and generation of the ZIP file with hand over to customer.	n/a	n/a
576	MOVE_1.1.05	SAP Innovation and Optimization Pathfinder	Standard Services	The service can only be applied to the ECC or SAP S/4HANA landscape indicated in the contract. Includes implementation of the technical prerequisites for SAP Innovation and Optimization Pathfinder in the corresponding system; and generation of the ZIP file with hand over to customer. Target scenario for this service is an ECC or SAP S/4HANA upgrade; or the transition from ECC to SAP S/4HANA.	n/a	n/a
577		Transformation Discovery - Expert Services			.	.
578	MOVE_1.2.01	SAP S/4HANA Functional Roadmap Service	Additional Service	The service can only be applied during an ECC to SAP S/4HANA conversion or upgrade of a SAP S/4HANA solution landscape. Includes review and impact analysis of relevant simplification item from the SAP Readiness Check for SAP S/4HANA (upgrade); evaluation of effort for item handling for high prioritized and uncategorized items; discussion of the action plan for high prioritized items; and evaluation of an action plan for uncategorized items.	n/a	n/a
579	MOVE_1.2.02	SAP S/4HANA Custom Code Analysis	Additional Service	The service can only be applied during an ECC to SAP S/4HANA conversion or upgrade of a SAP S/4HANA solution landscape. Includes review of the Custom Code Impact analysis results (out of ABAP Test Cockpit or Custom Code Migration App) for a SAP S/4HANA conversion or an upgrade, evaluation of the results, and remediation approach.	n/a	n/a
580	MOVE_1.2.03	SAP S/4HANA Technical Roadmap Service	Additional Service	Service can only be applied to the ECC landscape indicated in the contract. Includes review of system landscape, software component, OS, and DB version. A virtual session with the customer will be provided to: present the benefits and drawbacks of the conversion scenario versus a Greenfield scenario; clarify architectural and functional changes; and review preparation tasks.	n/a	n/a
581		Conversion Execution			.	.
582	MOVE_1.3.01	Sandbox Conversion Project environment setup and operations	Optional Services	Used for building sandbox systems in the private cloud landscape. These temporary systems can be used by Customer to successfully carry out S/4HANA conversion projects. Application uses for scenarios such as trial runs of the S/4HANA conversion, testing S/4HANA conversion with production data, executing multiple technical iterations to familiarize with the process, and also to determine realistic S/4HANA conversion duration. These sandbox systems can be ordered for any duration needed according to the Customer project needs.	n/a	n/a
583	MOVE_1.3.02 / BASIC_1.5.20	Conversion of SAP ERP and SAP BW systems to SAP S/4HANA and SAP BW4/HANA	Additional Service	"Conversion" process denotes the switch or movement from an older hosted SAP ERP software version to an SAP S/4 release, and typically involves SAP Readiness Check, Simplification Items Catalog, Business function (de)activation with tools like SUM/DMO, Custom code optimization, functional/integration testing etc. This task is limited to services which cannot be performed by the customer e.g. SUM tool, activities in client 000 etc. Overall responsibility for SAP S/4HANA conversion which includes (but not limited to) SAP Readiness check, simplification items, Maintenance planner, Application tasks, custom code adjustment, functional/integration testing etc. for conversion process is the responsibility of the customer. This line item does not include the usage of more sophisticated update approaches like nZDT/ZDO/Downtime Minimization etc. Standard scheduled downtime is required to implement. Any post installation tasks required which is not technical in nature (e.g. application related settings/manual code creation in customer namespace or manual activities required in SAP namespace, SPAU/SPDD, simplification items etc.) need to be performed by the customer. Depending on complexity of conversion involvement of other SAP services might be required. This service only applies to managed systems.	n/a	n/a
584	MOVE_1.3.03	Functional Conversion and Conversion Project Management	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
585		X1 - 3rd Party Software			.	.
586		3rd Party Software (e.g. partner add-ons, libraries, client software; not applicable to solutions explicitly shown as managed service in other sections of this document and the contract for the customer).	Customer must ensure proper licensing of the respective 3rd party software allowing its usage in the managed system; 3rd party software in the context of the managed system is defined as any software solution for which the intellectual property is not owned by SAP; the technical and operational compatibility of every 3rd Party Solution with SAP has to be individually checked by the customer; service provider will not take responsibility for negative effects on the underlying system and infrastructure platform managed by service provider which are caused by any such 3rd Party Solution.		.	.
587		Managed 3rd Party ABAP add-ons	For selected 3rd party NW ABAP add-ons which are listed on the SAP license price list offers a lightweight managed service, which only includes installation of the add-on and subsequent updates; the list of supported solutions is subject to change; supported add-on needs to be explicitly specified in the cloud contract.		.	.
588	TO_PA_1.1.01	Installation	Standard Services		n/a	n/a
589	TO_PA_1.1.02	Configuration	Excluded Tasks		n/a	n/a
590	TO_PA_1.1.03	Application monitoring	Excluded Tasks		n/a	n/a
591	TO_PA_1.1.04	Apply updates	Standard Services		n/a	n/a
592	TO_PA_1.1.05	Application troubleshooting including engagement with the partners support organization	Excluded Tasks		n/a	n/a
593	TO_PA_1.1.06	Uninstallation of ABAP Add-ons	Standard Services		n/a	n/a
594		Unmanaged 3rd Party ABAP add-ons			.	.
595	TO_PA_1.2.01	Installation	Excluded Tasks		n/a	n/a
596	TO_PA_1.2.02	Configuration	Excluded Tasks		n/a	n/a
597	TO_PA_1.2.03	Application monitoring	Excluded Tasks		n/a	n/a
598	TO_PA_1.2.04	Apply updates	Excluded Tasks		n/a	n/a
599	TO_PA_1.2.05	Application troubleshooting including engagement with the partners support organization	Excluded Tasks		n/a	n/a
600		Other unmanaged 3rd Party Software	Any type of 3rd party software which is requested to be installed in total or in parts on the managed infrastructure is subject to prior evaluation. Details of this process and conditions are documented in the respective 3rd party software policies.		.	.
601	TO_PA_1.3.01	3rd party software evaluation	Standard Services	This task can take several weeks to be completed. Results of previously completed evaluations will be reused and lead to lower process runtimes.	n/a	n/a
602	TO_PA_1.3.02	3rd party software installation that can not be done by Customer	Additional Service	Examples: ODBC driver; OS agents; print driver, Java addons etc.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
603		X2 - Business Connector			.	.
604		Operations			.	.
605	TO_BC_1.1.04	Reorganization of Message Store	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
606		X4 - SAP Data Services (DS)			.	.
607		Operations			.	.
608	TO_DS_1.1.22	Authorization - Users and Rights Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
609	TO_DS_1.1.06	Create/Modify Data Services jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
610	TO_DS_1.1.07	Schedule Data Services jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
611	TO_DS_1.1.08	Configure database connections	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
612	TO_DS_1.1.09	Monitor jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Manual monitoring; effort based per execution.	Application Operations	A1
613	TO_DS_1.1.10	Repository backup DS and BOE	Standard Services		n/a	n/a
614	TO_DS_1.1.11	Delete batch job history	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
615	TO_DS_1.1.12	Verify that job and access servers are running	Standard Services		n/a	n/a
616	TO_DS_1.1.13	Remove obsolete repository contents	Standard Services		n/a	n/a
617	TO_DS_1.1.14	Troubleshoot issues with DS Jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
618	TO_DS_1.1.23	Create/Manage additional repositories	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	System comes with default repositories. OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
619	TO_DS_1.1.26	Backup: On-Demand - BI Database and File Repo Sync	Additional Service		n/a	n/a
620	TO_DS_1.1.27	Restore: On-Demand - BI Database and File Repo Sync	Additional Service		n/a	n/a
621	TO_DS_1.1.28	Authentication set-up and Single Sign On (SSO) configuration	Excluded Tasks	Customer may engage other SAP services for SSO solutions for cloud environment.	n/a	n/a
622	TO_DS_1.1.29	Install and configure Data Services Adapters	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
623	TO_DS_1.1.30	Add and configure additional Job Servers/ Job Groups for load balancing	Optional Services	Depending on sizing, additional infrastructure may be required.	n/a	n/a
624	TO_DS_1.1.31	Configure Runtime Resources	Standard Services		n/a	n/a
625	TO_DS_1.1.32	Configure SMTP Email	Standard Services		n/a	n/a
626	TO_DS_1.1.33	Start/Stop services	Standard Services		n/a	n/a
627	TO_DS_1.1.34	Enhanced Change and Transport System (CTS+) Integration Set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations or Solution Manager - ChaRM	A1, DP3
628	TO_DS_1.1.35	Configure transports via Data Services (DS) Object Promotion Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
629	TO_DS_1.1.36	Backup Data Services Repository using Import/Export Tool	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
630		X6 - SAP BusinessObjects Business Intelligence (BI)			.	.
631		Operations			.	.
632	TO_BI_1.1.06	Backup (Full content backup / BIAR backup)	Standard Services		n/a	n/a
633	TO_BI_1.1.07	Scan / Repair and compact all repository errors	Standard Services		n/a	n/a
634	TO_BI_1.1.11	Clean-up empty directories created for Repository Diagnostic Tool	Standard Services		n/a	n/a
635	TO_BI_1.1.26	Cache Clean-up and Maintenance - Tomcat, Web Intelligence, Log Files	Standard Services		n/a	n/a
636	TO_BI_1.1.17	Program Object Actions: Import and Execution	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Functional Application Management	F1
637	TO_BI_1.1.18	Promote/deploy BI objects between environments	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
638	TO_BI_1.1.19	Create, rename, remove connections and Universes	Excluded Tasks		n/a	n/a
639	TO_BI_1.1.21	Provide user access and maintain authorizations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
640	TO_BI_1.1.47	SAML configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Functional Application Management	F1
641	TO_BI_1.1.27	Deploy templates and system configurations for hardware changes	Standard Services		n/a	n/a
642	TO_BI_1.1.29	Auditing/Monitoring Driver Set-up and configuration for Audit reporting	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Functional Application Management	F1
643	TO_BI_1.1.30	Perform ERP Integration Set-up and Configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Functional Application Management	F1
644	TO_BI_1.1.33	Backup: On-Demand - BI Database and File Repo Sync	Additional Service		n/a	n/a
645	TO_BI_1.1.34	Restore: On-Demand - BI Database and File Repo Sync	Additional Service		n/a	n/a
646	TO_BI_1.1.35	Authentication set-up and Single Sign On (SSO) configuration	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
647	TO_BI_1.1.37	Configure Web Application - reverse proxy settings	Standard Services		n/a	n/a
648	TO_BI_1.1.38	Add and configure additional BI servers for load balancing	Optional Services	Additional infrastructure may be required.	n/a	n/a
649	TO_BI_1.1.39	Manage Server Process and Server Groups	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
650	TO_BI_1.1.40	Set-up/Support technical tasks for BI Report Version Management	Standard Services	Customer responsible for maintaining report versions.	n/a	n/a
651	TO_BI_1.1.41	Enhanced Change and Transport System (CTS+) Integration Set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations or Solution Manager - ChaRM	A1, DP3

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
652		X7 - SAP PI			.	.
653		SAP PI Implementation			.	.
654	TO_PI_1.1.01	Install adapters and software components provided by SAP	Standard Services	Included only for items explicitly specified in the contract/Order Form. This is valid also for additional offerings from SAP such as: ADAPTERS for SAP NW PI 1.1, SAP NW Process Integration, business-to-business add-on 1.0, SAP NW Process Integration Secure Connectivity Add-on 1.0. This does not include efforts for content handling like the import of TPZ files into the ESR.	n/a	n/a
655	TO_PI_1.1.02	Install adapters provided by external partners	Standard Services	Must provide adapter software and licenses. This does not include efforts for content handling like the import of TPZ files into the ESR.	n/a	n/a
656	TO_PI_1.1.03	Configure the required system connections to partner systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Time and material basis for changes in network set-up (routers, firewalls access lists). Customer must provide network connections to target systems.	Functional Application Management	F1
657	TO_PI_1.1.04	Create SSL views and PSEs	Excluded Tasks		n/a	n/a
658		SAP PI Operations			.	.
659	TO_PI_2.1.02	Monitor application-specific PI functions, e.g. messaging, queues etc.	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Monitoring or Customer Application Monitoring	M1, M2
660	TO_PI_2.1.03	Monitor the message processing in PI (success and performance)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
661	TO_PI_2.1.04	Monitor communication channels, queues, backlogs of PI (AEX)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
662	TO_PI_2.1.05	Monitor BPM processes (success and performance)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
663	TO_PI_2.1.06	Configure adapters	Excluded Tasks		n/a	n/a
664	TO_PI_2.1.07	Deal with incorrect messages	Excluded Tasks		n/a	n/a
665	TO_PI_2.1.08	Configure message archiving	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
666	TO_PI_2.1.27	Execute and monitor message archiving	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
667	TO_PI_2.1.11	Role/authorization maintenance (except SAP and initial customer administrator role)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
668	TO_PI_2.1.16	Maintain users (except for the SAP and initial customer administrator role)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
669	TO_PI_2.1.17	Set-up of PI / BPM / AEX housekeeping	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
670	TO_PI_2.1.28	Monitor housekeeping activities of PI / BPM / AEX	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
671	TO_PI_2.1.19	Adjust PO/PI /AEX parameterization and configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	The configuration doesn't cover the realization of integration scenarios (content development).	Application Operations	A1
672	TO_PI_2.1.21	Maintain the system landscape directory (SLD)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Related to PI scenarios.	Application Operations	A1
673	TO_PI_2.1.22	Apply SAP basic application content update to the Enterprise Service Repository (ESR)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
674	TO_PI_2.1.23	Handle errors and analyze root cause for incorrect message processing in PI (AEX)	Excluded Tasks		n/a	n/a
675	TO_PI_2.1.24	Check PI / PO / AEX readiness after changes (upgrades, patches, notes)	Excluded Tasks		n/a	n/a
676	TO_PI_2.1.25	Configure the required system connections to partner systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
677	TO_PI_2.1.26	Transport management of PI objects	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
678		X8 - Enterprise Portal			.	.
679		Operations			.	.
680	TO_EP_1.1.01	Monitoring of application services for Portal, Unifiers, Unification Server, PCD, and CM	Standard Services	Monitors application services only; customer responsible to monitor portal content.	n/a	n/a
681	TO_EP_1.1.03	Maintain LDAP (Novell, ADS, iPlanet and others)	Excluded Tasks		n/a	n/a
682	TO_EP_1.1.04	Analyze Portal System logs and revise failures occurred	Standard Services	Provider to inform customer of required assistance.	n/a	n/a
683	TO_EP_1.1.05	System landscape maintenance, connection of external systems – e.g. SAP	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Port connection required.	Application Operations	A1
684	TO_EP_1.1.07	User mapping	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
685	TO_EP_1.1.08	Role/Channel/iPanel allocation	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
686	TO_EP_1.1.09	Content administration	Excluded Tasks		n/a	n/a
687	TO_EP_1.1.10	Set-up and maintain Portal user source data	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
688	TO_EP_1.1.11	Lock and delete portal user source data	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
689	TO_EP_1.1.12	Release locked portal users	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
690	TO_EP_1.1.13	Define and change Customer specific portal authorization profiles	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
691	TO_EP_1.1.14	Administer Content Repository	Excluded Tasks		n/a	n/a
692	TO_EP_1.1.20	Customize, upgrade POE including all components	Excluded Tasks	Set J2EE passwords, configure Java port, add service packs.	n/a	n/a
693	TO_EP_1.1.22	Upgrade of pages, roles, static html content	Excluded Tasks		n/a	n/a
694	TO_EP_1.1.23	Maintenance of Java services	Standard Services	Customer responsible to develop new Java services, and to customize existing java services.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
695		X9 - Sybase IQ (used as data persistency for NLS, ILM or 3rd party archiving solutions)			.	.
696		Database Installation/Configuration			.	.
697	TO_SIQ_1.1.01	Check/prepare system requirements (BW Release, SAP Notes, Source/target set-up)	Excluded Tasks		n/a	n/a
698	TO_SIQ_1.1.03	Initial configuration / parameter settings	Standard Services		n/a	n/a
699	TO_SIQ_1.1.06	Initialize connection between BW/NLS and Sybase IQ	Standard Services	Provider will perform required set-up. Customer must configure the NLS connection from the BW side.	n/a	n/a
700		Database Operations			.	.
701	TO_SIQ_1.2.02	Database capacity management	Standard Services		n/a	n/a
702	TO_SIQ_1.2.04	Perform database consistency check (DBCC)	Standard Services		n/a	n/a
703	TO_SIQ_1.2.05	Troubleshoot technical database issues	Standard Services		n/a	n/a
704	TO_SIQ_1.2.06	Set-up backup	Standard Services		n/a	n/a
705	TO_SIQ_1.2.07	Restore backup	Standard Services		n/a	n/a
706	TO_SIQ_1.2.08	Monitor database connection	Standard Services	Customer must check connection from BW side.	n/a	n/a
707		Application			.	.
708	TO_SIQ_1.4.01	Create/schedule/restore data archiving requests	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
709	TO_SIQ_1.4.02	Query handling	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
710	TO_SIQ_1.4.03	Install partner add-ons in backend systems	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
711	TO_SIQ_1.5.01	Provision server for the archiving solution server	Optional Services	If partner solution requires extra server; refer to Server Provisioning section in this document for details.	n/a	n/a
712	TO_SIQ_1.4.04	Install partner archiving software	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer must make sure, that they hold valid licenses to run the installed software in the cloud environment.	Data Lifecycle Management	D3
713	TO_SIQ_1.4.05	Configure partner archiving software	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
714	TO_SIQ_1.4.06	Managed services for archiving partner software (issue handling)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
715		SAP Information Lifecycle Management (ILM) for Sybase IQ			.	.
716	TO_SIQ_1.6.01	Check and prepare system requirements (Sizing, SAP Notes)	Excluded Tasks		n/a	n/a
717	TO_SIQ_1.6.02	Activate of ILM Store in NetWeaver	Standard Services		n/a	n/a
718	TO_SIQ_1.6.03	Set parameters in SAP IQ for ILM Store	Standard Services		n/a	n/a
719	TO_SIQ_1.6.05	Set-up ILM Store Authorizations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
720	TO_SIQ_1.6.06	Integrate ILM Store to Archiving Process	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
721	TO_SIQ_1.6.07	Configure of ArchiveLink connection to ILM Store	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
722	TO_SIQ_1.6.08	Configure of Storage Connections	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
723	TO_SIQ_1.6.09	Check ICM Parameters	Standard Services		n/a	n/a
724	TO_SIQ_1.6.10	Set-up Clients and Origins in the ILM Store	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
725	TO_SIQ_1.6.11	Integration to OpenText Storage	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
726	TO_SIQ_1.6.12	Integration to other ILM Certified Storage	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
727	TO_SIQ_1.6.13	Data destruction and data compliance	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
728	TO_SIQ_1.6.14	License generation and deployment for Live Systems	Standard Services		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
729		X11 - SAP Cloud Connector			.	.
730		Installation and Configuration			.	.
731	TO_SCC_1.1.02	Configuration - Enable outbound connection via LoadBalancer	Standard Services	Enable Cloud Connector to connect with SAP Business Technology Platform application domains / IP ranges or SAP Business Network domains / IP ranges (e.g.: Ariba, LBN, AIN)	n/a	n/a
732	TO_SCC_1.1.03	Configuration - Establish connection to SAP Business Technology Platform (formerly SAP Cloud Platform) sub-accounts	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Configure BTP subaccount connection; Connect SAP Business Technology Platform (formerly SAP Cloud Platform) subaccount to the Cloud Connector. RISE integration specific, or Business Network specific Sub-accounts required for default RISE integration. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
733	TO_SCC_1.1.04	Configuration - On-premise resources (OData services) customer wants to use in SAP Business Technology Platform - BTP (formerly SAP Cloud Platform)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Create destination for ABAP backend system (Mapping virtual to internal system); Configure accessible resources /sap/bc/fp and /sap/bc/fpads.	Application Operations or Data Lifecycle Management	A1, D3
734	TO_SCC_1.1.05	Monitoring - SCC service monitoring (Linux / Windows Services)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Can be done in Administrator UI or by executing a manual status check command or via HCP Administrator Cockpit. Manual monitoring; effort based per execution.	Application Operations or Data Lifecycle Management	A1, D3
735	TO_SCC_1.1.06	Define and provide two user groups (Cloud Portal Admin, Cloud Portal User)	Standard Services		n/a	n/a
736	TO_SCC_1.1.07	Tunnel Availability monitoring	Standard Services	For version 2.12 and higher only. Service provider can monitor tunnel availability for informational purposes only but is not covered under the Service Level Agreement.	n/a	n/a
737	TO_SCC_1.1.11	SNC Setup for SAP Cloud Connector	Additional Service	Customer to provide the requirements/details to configure the SNC on SCC and backend systems.	n/a	n/a
738		X12 - SAP Business Technology Platform - BTP (formerly SAP Cloud Platform) Integration - Data Services Agent (BTPI-DS) (Formerly HCI-DS)			.	.
739		Installation and Configuration			.	.
740	TO_BTPI_DS_1.1.01	Install SAP BTPI - Data Service agent	Standard Services		n/a	n/a
741	TO_BTPI_DS_1.1.02	Configuration - Enable outbound connection via LoadBalancer to connect with BTPI	Standard Services		n/a	n/a
742	TO_BTPI_DS_1.1.03	Configuration - Establish connection to customer's cloud account	Standard Services	Need access to BTPI portal or service provider will request the configuration file from customer. Configuration performed at OS level. Provider will verify that agent status is green in BTPI portal.	n/a	n/a
743	TO_BTPI_DS_1.1.04	Configuration - Business backend preparation steps for BTPI consumption	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
744		Monitoring Set-up			.	.
745	TO_BTPI_DS_1.2.01	Monitoring set-up for process level availability - Nagios	Standard Services		n/a	n/a
746		Data Handling and Data Services			.	.
747	TO_BTPI_DS_1.3.01	Migrate or replicate data between data stores	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
748		X13 - SAP Fiori			.	.
749		Installation and Configuration			.	.
750	TO_FIORI_1.1.01	Install application specific packages in respective SAP Systems	Standard Services	Initial set-up in managed system.	n/a	n/a
751	TO_FIORI_1.1.03	Configuration - Web Dispatcher Fiori App redirects	Standard Services	SSL is a prerequisite for this task. Scope during Initial Provisioning includes all systems defined in the initial contract. If more systems are added a Change Request (CR) is required and extra charges may apply. For systems migrated to environments for which SAP is the Service Provider, it is the customer's responsibility to configure the Web Dispatcher for the migrated system; this configuration can be delivered through a separately contracted cloud onboarding and migration service.	n/a	n/a
752	TO_FIORI_1.1.10_AE	Configuration - Web Dispatcher Fiori App redirects - additional requests	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Efforts for additional requests. Includes SSL configuration and certificate handling and is limited to technical SAP Fiori Launchpad enablement for additional clients or products other than SAP S/4HANA only.	Application Operations	A1
753	TO_FIORI_1.1.05	Configuration - HANA XS Engine Web Dispatcher	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SSL is a prerequisite for this task. Scope during Initial Provisioning includes all systems defined in the initial contract.	Application Operations	A1
754	TO_FIORI_1.1.09	Initial enablement of Fiori launchpad including all required connectivity set-up	Standard Services	Includes SAP Fiori Launchpad enablement for One (1) client (client 100) per SAP S/4HANA system for Greenfield deployments. This includes the activation of predefined sample SAP Fiori apps to validate SAP Fiori Launchpad enablement. For systems migrated to environments which use SAP as the service provider, it is customer's responsibility to enable existing SAP Fiori app(s) and is covered by a separately contracted cloud onboarding and migration service.	n/a	n/a
755	TO_FIORI_1.1.06	Re-enable Fiori launchpad including all required connectivity set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Covers additional charge for re-enablement.	Application Operations	A1
756	TO_FIORI_1.1.07	Configuration - Fiori applications	Excluded Tasks	In some situations service provider might be able to support the customer using an Application Management service, however due to the large variety of possible scenarios this item has been generally excluded from the service; customers should seek assistance via other SAP services.	n/a	n/a
757	TO_FIORI_1.1.08	Establish trusted connections from Web Dispatcher to Gateway, backend system (e.g. S/4 HANA) and HANA XS engine of backend system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Access to customer client required.	Application Operations	A1
758	TO_FIORI_1.1.11_AE	Enable Fiori Launchpad for the standard Fiori applications for additional business clients, brownfield / migration deployments or SAP products other than S/4HANA.	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Includes example Fiori Catalog, example Fiori Group and example PFCG role.	Application Operations	A1
759	TO_FIORI_1.1.12_AE	Re-enable technical integration points after system/client copy	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Performed for additional business clients or products other than SAP S/4HANA.	Application Operations	A1
760	TO_FIORI_1.1.13	Activate standard Fiori Applications based on SAP business roles	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
761		X15 - Web Dispatcher			.	.
762		Web Dispatcher Operations			.	.
763	TO_WD_1.1.01	Register/Remove Systems in Web Dispatcher and their options regarding SSL	Standard Services	Scope during initial provisioning includes all systems defined in the initial contract. If more systems are added a Change Request (CR) is required and extra charges may apply.	n/a	n/a
764	TO_WD_1.1.02	General memory management definition	Standard Services		n/a	n/a
765	TO_WD_1.1.03	General security parameter definition	Standard Services		n/a	n/a
766	TO_WD_1.1.04	General Configuration for Support SSL in Parameter File or PSE Maintenance Tool in Admin tool (Handling HTTPS Requests)	Standard Services		n/a	n/a
767	TO_WD_1.1.05	Communication with the message server / application server using SSL	Standard Services		n/a	n/a
768	TO_WD_1.1.06	Modify HTTP requests	Standard Services		n/a	n/a
769	TO_WD_1.1.07	Set-up error handling	Standard Services		n/a	n/a
770	TO_WD_1.1.08	Maintain authentication File	Standard Services		n/a	n/a
771	TO_WD_1.1.09	Changes in client 000 of the backend systems related to Web Dispatcher (HTTPURLLOC)	Standard Services		n/a	n/a
772	TO_WD_1.1.10	Log and trace strategy	Standard Services		n/a	n/a
773	TO_WD_1.1.11	Encryption policy (protocols, ciphersuites, key length)	Standard Services		n/a	n/a
774	TO_WD_1.1.12	Connection counts	Standard Services		n/a	n/a
775	TO_WD_1.1.13	Metadata Exchange Using SSL	Standard Services		n/a	n/a
776	TO_WD_1.1.14	Define port ranges	Standard Services		n/a	n/a
777	TO_WD_1.1.15	LoadBalancer configuration for Web Dispatcher	Standard Services	Configuration details (routing rules, redirection information, backend system details etc.) must be provided by customer. Service provider will be update the Load Balancer and Web Dispatcher accordingly.	n/a	n/a
778	TO_WD_1.1.16	DNS Changes for Web Dispatcher Service	Excluded Tasks	There are no options to have personalized DNS.	n/a	n/a
779		X16 - LoadBalancer			.	.
780		LoadBalancer operation			.	.
781	TO_LRP_1.1.01	Set-up LoadBalancer instance	Standard Services		n/a	n/a
782	TO_LRP_1.1.02	Register/Remove Systems in LoadBalancer	Standard Services		n/a	n/a
783	TO_LRP_1.1.03	Configure load distribution to application servers	Standard Services		n/a	n/a
784	TO_LRP_1.1.04	Provide external IP for Internet facing scenarios	Standard Services		n/a	n/a
785	TO_LRP_1.1.05	Configure SSL offloading (Encryption)	Standard Services		n/a	n/a
786	TO_LRP_1.1.07	Perform DNS handling for customer own Domain	Excluded Tasks		n/a	n/a
787	TO_LRP_1.1.08	Provide X.509 certificate for customer domain to enable SSL	Excluded Tasks		n/a	n/a
788	TO_LRP_1.1.09	Provide X.509 certificate for SAP own URL like *.xxx.ondemand.com domain	Standard Services		n/a	n/a
789	TO_LRP_1.1.10	Install customer X.509 certificate	Standard Services		n/a	n/a
790	TO_LRP_1.1.11	Configure Web Application Firewall	Standard Services		n/a	n/a
791	TO_LRP_1.1.12	Configure persistence handling	Standard Services		n/a	n/a
792	TO_LRP_1.1.14	Configure health checks	Standard Services		n/a	n/a
793	TO_LRP_1.1.15	Configure URL/IP based blocklist and allowlist filtering	Standard Services		n/a	n/a
794	TO_LRP_1.1.16	Configure sorry page function	Standard Services		n/a	n/a
795	TO_LRP_1.1.17	Configure outgoing connections to Internet	Standard Services		n/a	n/a
796	TO_LRP_1.1.18	Enable access from managed system to internet/public domain	Standard Services	Supported using outbound LoadBalancer. Used to integrate managed system with other clouds or customer public services etc.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
797		X17 - OpenText Solutions			.	.
798		Data archiving and document access: ERP + archive + storage			.	.
799		ERP part			.	.
800	TO_OT_1.1.01	Set-up connection to archive server	Standard Services		n/a	n/a
801	TO_OT_1.1.02	Customize archiving solution	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
802		Archive server part (content repository)			.	.
803	TO_OT_1.2.01	Archive server DB installation	Standard Services		n/a	n/a
804	TO_OT_1.2.02	Archive server installation	Standard Services		n/a	n/a
805	TO_OT_1.2.03	Configure the archive storage	Standard Services		n/a	n/a
806	TO_OT_1.2.04	Attaching storage to the Archive server	Standard Services		n/a	n/a
807	TO_OT_1.2.05	Configure the archive server	Standard Services		n/a	n/a
808		Migration of existing archives to private cloud			.	.
809	TO_OT_1.6.01	Data migration of archived data of OpenText archive system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Consulting project required.	Functional Application Management	F1
810	TO_OT_1.6.02	Data migration of archived data of Non-OpenText archive system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Consulting project required.	Functional Application Management	F1
811		Admin Tasks Archive Server			.	.
812	TO_OT_1.7.01	Standard backup (storage handling)	Standard Services		n/a	n/a
813	TO_OT_1.7.02	Standard monitoring	Standard Services		n/a	n/a
814	TO_OT_1.7.03	Administrative tasks (create new archives)	Standard Services	On customer request.	n/a	n/a
815		Archiving: application management			.	.
816	TO_OT_1.8.01	Authorization concept	Excluded Tasks		n/a	n/a
817	TO_OT_1.8.03	Archiving of data	Excluded Tasks		n/a	n/a
818	TO_OT_1.8.04	Deletion of data	Excluded Tasks		n/a	n/a
819		Scanning and Pipeline			.	.
820	TO_OT_1.3.01	Install on-premise (scan client)	Excluded Tasks		n/a	n/a
821	TO_OT_1.3.02	Scan Configuration	Excluded Tasks		n/a	n/a
822	TO_OT_1.3.03	Pipeline installation on-premise	Excluded Tasks		n/a	n/a
823	TO_OT_1.3.04	Pipeline configuration on-premise	Excluded Tasks		n/a	n/a
824		VIM: SAP Component Installation in SAP ERP	In case VIM is part of solution scope		.	.
825	TO_OT_1.4.01	Add-On installation for VIM	Standard Services		n/a	n/a
826	TO_OT_1.4.02	SAP Business Workflow Engine enabling (Basic configuration)	Standard Services		n/a	n/a
827	TO_OT_1.4.03	Business Configuration	Excluded Tasks	RDS available.	n/a	n/a
828	TO_OT_1.4.04	ArchiveLink customizing	Standard Services		n/a	n/a
829		VIM: Invoice Capture Center (ICC)	In case VIM is part of solution scope		.	.
830	TO_OT_1.5.01	Install VIM server	Standard Services		n/a	n/a
831	TO_OT_1.5.02	Basic configuration and connectivity	Standard Services		n/a	n/a
832	TO_OT_1.5.03	Basic business configuration	Excluded Tasks	RDS available.	n/a	n/a
833	TO_OT_1.5.04	Customer specific enhancements	Excluded Tasks		n/a	n/a
834		StreamServe	In case StreamServe is part of solution scope		.	.
835	TO_OT_1.9.01	Install StreamServe	Standard Services	To be done on OS-level.	n/a	n/a
836	TO_OT_1.9.02	Set-up connection to StreamServe server	Standard Services		n/a	n/a
837	TO_OT_1.9.03	StreamServe base configuration	Standard Services	Customer to provide FQDN of OpenText Server.	n/a	n/a
838	TO_OT_1.9.05	Application specific configuration	Excluded Tasks	e.g. Adjust print forms, BAPI functions, etc.	n/a	n/a
839		Cloud Editions			.	.
840		SAP S/4HANA Common Tasks			.	.
841	TO_OT_1.10.1	Install OpenText Cloud Edition Add-On	Standard Services	Includes SAP Archiving and Document Access by OpenText (ADA), SAP Vendor Invoice Management (VIM), SAP Extended Enterprise Content Management by OpenText (xECM).	n/a	n/a
842	TO_OT_1.10.2	Activate/Maintain ICF nodes required for Apps to be enabled/updated	Standard Services		n/a	n/a
843	TO_OT_1.10.3	Activate/Maintain OData Services required for Apps to be enabled/updated	Standard Services		n/a	n/a
844		Vendor Invoice Management for SAP Solutions (VIM)			.	.
845	TO_OT_1.11.1	Establish/Maintain secure connection to OpenText Core Capture for SAP Solutions (IES Cloud)/OT2	Standard Services	Create and maintain connections from S/4HANA SM59. Client ID and secret password from Admin Center need to be provided.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
846		Extended Enterprise Content Management for SAP Solutions (xECM)			.	.
847	TO_OT_1.12.1	Establish/Maintain secure connection to OpenText Cloud (OTK)	Standard Services	Create and maintain connections from S/4HANA SM59, STRUST and in xECM's IMG hierarchy "Create HTTP Connections".	n/a	n/a
848		Archiving and Document Access for SAP Solutions (ADA)			.	.
849		OpenText Core Archive Connector			.	.
850		Operations			.	.
851	TO_OT_1.13.1	Install OpenText Core Archive Connector and Document Pipelines	Standard Services	Application installation only.	n/a	n/a
852	TO_OT_1.13.2	Establish/Maintain secure connection to OpenText Core Archive for SAP Solutions (ADA Cloud)/OT2	Standard Services	Initial configuration and customer tenant registration.	n/a	n/a
853	TO_OT_1.13.3	Add/Maintain SAP S/4HANA systems connection	Standard Services		n/a	n/a
854	TO_OT_1.13.4	Administration of Collections and Data Sources	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
855	TO_OT_1.13.5	Configure scan host and profile	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
856	TO_OT_1.13.6	Configure/Maintain file archive job	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Lifecycle Management	D3
857	TO_OT_1.13.7	Maintain Core Archive Connector setting	Standard Services	Activity includes replacing/generating certificate and private key.	n/a	n/a
858	TO_OT_1.13.8	User Administration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
859		Software Lifecycle Management			.	.
860	TO_OT_1.14.1	Implement customer specific updates to the managed OT Core Archive Connector solution (software packages not commonly available via the SAP Service Marketplace)	Additional Service		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
861		X17A - OpenText Extended Enterprise Content Management (OT xECM)			.	.
862		Installation			.	.
863	TO_OT_XECM_1.1.1	Install OT xECM Components (Content Server, Archive Server, AppWorks, OTDS Server, Database repository)	Standard Services	Content Server, Archive Server, AppWorks, OTDS Server, Database repository.	n/a	n/a
864	TO_OT_XECM_1.1.2	Install OT xECM NetWeaver ABAP Add-on(s)	Standard Services	Install OT xECM , OT ADA and OTA Fiori Add-on on S/4HANA System.	n/a	n/a
865	TO_OT_XECM_1.1.3	Install additional OT xECM application server deployment for HA	Standard Services	May require Change Request (CR) for HA option.	n/a	n/a
866		Set-up and Configuration			.	.
867	TO_OT_XECM_1.2.1	Post install configuration	Standard Services		n/a	n/a
868	TO_OT_XECM_1.2.2	Monitoring	Standard Services		n/a	n/a
869	TO_OT_XECM_1.2.3	Application configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
870	TO_OT_XECM_1.2.4	Data Archiving	Excluded Tasks		n/a	n/a
871	TO_OT_XECM_1.2.5	S/4HANA integration and connectivity	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
872	TO_OT_XECM_1.2.6	SSL/TLS Secure Communication	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
873	TO_OT_XECM_1.2.7	SSO with Windows AD	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
874		X18 - SAP Information Steward			.	.
875		Operations			.	.
876	TO_IS_1.1.02	Add additional IS job servers for load balancing on existing infrastructure	Additional Service	Adding additional server on existing infrastructure. A Change Request (CR) is required If additional infrastructure needs to be deployed.	n/a	n/a
877	TO_IS_1.1.13	Add additional IS job servers for load balancing on new infrastructure	Optional Services	Adding additional server on new infrastructure. A Change Request (CR) is required.	n/a	n/a
878	TO_IS_1.1.03	User and access management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Secure Users & Authorizations	S2
879	TO_IS_1.1.04	Create and manage IS application jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
880	TO_IS_1.1.05	Execute Information Steward utilities	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
881	TO_IS_1.1.06	Data Insight, Metadata, Cleansing Package and Match Review administration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
882	TO_IS_1.1.08	IS repository and file system backup	Standard Services		n/a	n/a
883	TO_IS_1.1.09	IS job server and services monitoring	Standard Services		n/a	n/a
884	TO_IS_1.1.10	IS repository management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
885	TO_IS_1.1.11	Troubleshoot issues with IS jobs and utilities (Data Insight, Rule Tasks, Metadata Management, Data Cleansing)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
886	TO_IS_1.1.12	Execute performance tuning for Data Insight, Data Cleansing, Metadata Management, Metapedia and Match Review	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Management	D4
887	TO_IS_1.1.14_AE	Validate Information Steward set-up and configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Optimization	D5
888	TO_IS_1.1.15_AE	Collect metadata and assess data quality	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Quality Optimization	D5
889		X21 - SAP Identity Management IDM			.	.
890		Configuration			.	.
891	TO_IDM_1.0.01	Assist customer with IDM related tasks that require access to operating system	Standard Services		n/a	n/a
892	TO_IDM_1.0.02	Install IDM dispatchers as part of the initial cloud environment installation	Standard Services		n/a	n/a
893	TO_IDM_1.0.03	Connect IDM UI to IDM system	Standard Services	SSL configuration is not covered by this task.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
894		X22 - SAP Financial Consolidation (FC)			.	.
895		Administration of Data Sources			.	.
896	TO_FC_1.1.01	Start/Stop/Set Administrator Password and activity views for Datasources	Standard Services		n/a	n/a
897	TO_FC_1.1.02	Add Webservices	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
898	TO_FC_1.1.03	Add FC Application Server/Webserver on existing infrastructure	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
899	TO_FC_1.1.15	Add FC Application Server/Webserver on new infrastructure	Optional Services		n/a	n/a
900	TO_FC_1.1.04	Migrate and filter data source	Excluded Tasks		n/a	n/a
901	TO_FC_1.1.05	Install software configuration	Excluded Tasks		n/a	n/a
902	TO_FC_1.1.06	Sending/Broadcasting messages to End-users	Excluded Tasks		n/a	n/a
903	TO_FC_1.1.07	Define log configuration for application servers	Excluded Tasks		n/a	n/a
904	TO_FC_1.1.08	Define commands available for machines and instances	Excluded Tasks		n/a	n/a
905	TO_FC_1.1.09	Activate/Deactivate machine in the FC Admin console	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
906	TO_FC_1.1.10	Start/Stop instances in the FC Admin console	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
907	TO_FC_1.1.11	Create scheduled tasks for starting and stopping servers	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
908	TO_FC_1.1.12	Create/Delete Data Source(s)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
909	TO_FC_1.1.13	Create FC transport folder	Standard Services		n/a	n/a
910	TO_FC_1.1.14	Restart FC platform periodically	Standard Services		n/a	n/a
911		Monitoring			.	.
912	TO_FC_1.2.04	Monitoring one FC application URL per SID	Standard Services	Limited to one URL per SID. Customer needs to provide URL to be monitored.	n/a	n/a
913	TO_FC_1.2.03	Monitoring of further FC application URLs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Customer needs to provide URL to be monitored.	Application Operations	A1
914		Administration of HANA Databases			.	.
915	TO_FC_1.3.01	Prerequisites for creating SAP HANA Modeling Views with Cube Designer	Excluded Tasks	Customer require access to HANA Studio and require HANA Customer Administration authorization.	n/a	n/a
916	TO_FC_1.3.02	Deleting rights created during Cube Deployments	Excluded Tasks	Customer require access to HANA Studio and require HANA Customer Administration authorization.	n/a	n/a
917		Configure SAP Financial Consolidation Web Site			.	.
918	TO_FC_1.4.01	Reconnecting Automatically	Standard Services		n/a	n/a
919	TO_FC_1.4.02	Activate the SAP Financial Consolidation Web Technical Log	Standard Services		n/a	n/a
920	TO_FC_1.4.03	Support long-term HTTP sessions with firewalls	Standard Services		n/a	n/a
921	TO_FC_1.4.04	Publish documents via a URL	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
922	TO_FC_1.4.05	Configure HTTPS	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
923	TO_FC_1.4.06	Customize the SAP Financial Consolidation Web Site Home page	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
924		Configure SAP Financial Consolidation Web HTML5 Site			.	.
925	TO_FC_1.5.01	Configure/Customize SAP Financial Consolidation Web HTML5 site advanced settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
926		Archiving Tool			.	.
927	TO_FC_1.6.01	Install and access the Archiving Tool	Standard Services		n/a	n/a
928	TO_FC_1.6.02	Execute archiving process	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
929		Install and Configure the SAP NetWeaver BW Server to deploy Infocubes with SAP Financial Consolidation Cube Designer			.	.
930	TO_FC_1.8.01	Install the FPM Basis component on the SAP NetWeaver BW server	Standard Services		n/a	n/a
931	TO_FC_1.8.02	Create BW NetWeaver Roles to deploy Infocubes with Cube Designer	Excluded Tasks		n/a	n/a
932	TO_FC_1.8.03	Install SAP EPM Solutions Connection Manager on the BOE platform	Standard Services		n/a	n/a
933	TO_FC_1.8.04	Configure the Central Management Console for SAP Cube Designer	Excluded Tasks		n/a	n/a
934	TO_FC_1.8.05	Configure the Central Management Server for a distributed installation	Additional Service	If requested during initial build, this will be configured as standard service.	n/a	n/a
935	TO_FC_1.8.06	Configure reverse proxy	Standard Services		n/a	n/a
936	TO_FC_1.8.07	Create an EPM Connection for SAP Financial Consolidation with NetWeaver BW Cubes or SAP PCM or SAP SSM or SAP HANA	Excluded Tasks		n/a	n/a
937		Financial Information Management			.	.
938	TO_FC_1.9.01	Configure the number of lines in a Flat File Preview	Standard Services		n/a	n/a
939	TO_FC_1.9.02	Configure Time-out Parameters	Standard Services		n/a	n/a

SAP Enterprise Cloud Services
RISE with SAP S/4HANA Cloud, private edition and SAP ERP,
tailored option

ROLES AND RESPONSIBILITIES

© 2023 SAP SE or an SAP affiliate company. All rights reserved. See Legal Notice on www.sap.com/legal-notice for use terms, disclaimers, disclosures, or restrictions related to SAP Materials for general audiences.

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
940		X28 - GK Software			.	.
941		Set-up and configuration			.	.
942	TO_GK_1.1.01	Set-up and manage GK Software directories	Standard Services		n/a	n/a
943	TO_GK_1.1.02	Create directory for source data file upload (if not already available)	Standard Services		n/a	n/a
944	TO_GK_1.1.03	Assist in copying various files related to GK software configuration to file system directories	Standard Services		n/a	n/a
945	TO_GK_1.1.04	Set-up of dynamic takeovers in the structures	Excluded Tasks		n/a	n/a
946	TO_GK_1.1.05	Set-up of structure level overwrites	Excluded Tasks		n/a	n/a
947	TO_GK_1.1.06	Set-up NetWeaver Config tool directory structure	Standard Services		n/a	n/a
948	TO_GK_1.1.07	Change language after installation	Standard Services		n/a	n/a
949	TO_GK_1.1.08	Set-up system level overwrite (system types)	Excluded Tasks		n/a	n/a
950	TO_GK_1.1.09	Configure customer specific organizational structure	Excluded Tasks		n/a	n/a
951	TO_GK_1.1.10	Configure basic Store Manager node	Standard Services		n/a	n/a
952	TO_GK_1.1.11	Install store templates	Excluded Tasks	Provider to share to copy files on to the OS level.	n/a	n/a
953	TO_GK_1.1.12	Import of store templates into Store Manager	Excluded Tasks		n/a	n/a
954	TO_GK_1.1.13	Assign template to the main Store Manager structure	Excluded Tasks		n/a	n/a
955	TO_GK_1.1.14	Import config into Hybrid InfoServer	Excluded Tasks		n/a	n/a
956	TO_GK_1.1.15	Configure HANA JDBC datasource connection pooling	Standard Services		n/a	n/a
957	TO_GK_1.1.16	Deploy EPA files into SAP NetWeaver Portal	Standard Services		n/a	n/a
958	TO_GK_1.1.17	Create customer store structure	Excluded Tasks		n/a	n/a
959	TO_GK_1.1.18	Configure GK Store Manager	Excluded Tasks		n/a	n/a
960	TO_GK_1.1.19	Import Global Configuration for Store Manager (data container)	Excluded Tasks		n/a	n/a
961	TO_GK_1.1.20	Configure GK Software Store Manager for stores or country level overrides	Excluded Tasks	Example: configuration of the POS Server it points to or LPS.	n/a	n/a
962	TO_GK_1.1.21	Import source data	Excluded Tasks		n/a	n/a
963	TO_GK_1.1.22	Configure GK ECON for Data import (defining the xml file for IDoc imports)	Excluded Tasks		n/a	n/a
964	TO_GK_1.1.23	Create and customize Reference Store (countries, district, stores)	Excluded Tasks		n/a	n/a
965	TO_GK_1.1.24	Create SAP NetWeaver datasource	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
966	TO_GK_1.1.25	Configure and assign data containers (Taxes, work groups, reasons of transactions etc.)	Excluded Tasks		n/a	n/a
967	TO_GK_1.1.26	Configure SDC data containers (assign variants etc.)	Excluded Tasks		n/a	n/a
968	TO_GK_1.1.27	Import templates and activation manually (e.g. EC config template, heartbeat monitor)	Excluded Tasks		n/a	n/a
969	TO_GK_1.1.28	Configure reference customer organizational structure (during installation)	Standard Services	Only the basic structure as per the setup procedures. The detailed functional structures is Customer / Project team responsibility.	n/a	n/a
970		Operations			.	.
971	TO_GK_1.2.01	Assist customers with tasks in their area of responsibility, if OS access is required	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	In cases where the execution of tasks requires activities to be performed within the OS level and for which the customer is responsible according to this document. Customers and GK implementation partners will not get OS access to managed servers within the cloud environment. The service provider will support the customer, e.g. by taking over the tasks or by providing other methods to execute tasks. This line item only applies to infrequent/occasional assistance; projects requiring regular, longer and more general OS access for implementation, development and support cannot be supported via this line item. Extra service charge is calculated per server.	Functional Application Management	F1
972	TO_GK_1.2.02	Configure Application level JDBC Datasources	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Each central application on SAP NetWeaver must be linked to a database by a datasource entry. This entry has to be set via NetWeaver Administrator one time per application and must be available before the first launch of the related application.	Functional Application Management	F1
973	TO_GK_1.2.03	Modify HTTP requests	Additional Service		n/a	n/a
974	TO_GK_1.2.04	Change application server parameters after handover	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Modifying standard settings to changing customer requirements.	Functional Application Management	F1
975	TO_GK_1.2.05	Manage communication with the message server / application server using SSL	Standard Services		n/a	n/a
976	TO_GK_1.2.06	Define port ranges	Standard Services		n/a	n/a
977	TO_GK_1.2.07	GK Host Configuration via Portal Administration	Standard Services		n/a	n/a
978	TO_GK_1.2.08	Update by CDPL tool (Central Deployment update for Store components)	Excluded Tasks		n/a	n/a
979	TO_GK_1.2.09	Rebuild client	Additional Service	OS access required to run the scripts.	n/a	n/a
980	TO_GK_1.2.10	GK Software user management	Excluded Tasks		n/a	n/a
981	TO_GK_1.2.11	Map GK software users to SAP NetWeaver user management	Excluded Tasks		n/a	n/a
982	TO_GK_1.2.12	Backup and Restore - standard HANA and NW	Standard Services		n/a	n/a
983	TO_GK_1.2.13	Backup and Restore - sync after DB restore	Excluded Tasks		n/a	n/a
984	TO_GK_1.2.14	Synchronization of source data after database recovery	Excluded Tasks		n/a	n/a
985	TO_GK_1.2.15	Clean up obsolete content data and templates	Excluded Tasks		n/a	n/a
986	TO_GK_1.2.16	Define and implement log and trace strategy	Standard Services		n/a	n/a
987	TO_GK_1.2.17	Monitor basic technical functions using cloud monitoring environment	Standard Services		n/a	n/a
988	TO_GK_1.2.18	Monitor GK application using Enterprise Cockpit	Excluded Tasks		n/a	n/a
989	TO_GK_1.2.19	GK Business Process Monitoring	Excluded Tasks		n/a	n/a
990	TO_GK_1.2.20	Monitoring solution performance (node level performance using GK Performance Monitor)	Excluded Tasks	Provider to support copying the files into working directories.	n/a	n/a
991	TO_GK_1.2.21	Analyze database using GK PMON, GK STATS	Excluded Tasks		n/a	n/a
992		Software Lifecycle Management for GK			.	.
993	TO_GK_1.3.01	Implement updates to the managed GK solution (software packages commonly available via the SAP Service Marketplace)	Standard Services		n/a	n/a
994	TO_GK_1.3.02	Implement customer specific updates to the managed GK solution (software packages not commonly available via the SAP Service Marketplace)	Additional Service		n/a	n/a
995	TO_GK_1.3.03	Upgrade of managed GK solution to the next higher major software version	Additional Service		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
996		X29 - SAP TREX			.	.
997		TREX operations			.	.
998	TO_TREX_1.1.14	Post-Installation Configuration and Connection TREX with an Application (Java or ABAP)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	This includes activities Post-Installation Configuration and Connection between TREX and an Application (Java or ABAP) as is described in Official Product documentation (help.sap.com)	Application Operations	A1
999	TO_TREX_1.1.15	Administer TREX indices	Excluded Tasks		n/a	n/a
1000	TO_TREX_1.1.16	Administer Taxonomies	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1001		X31 - SAP Solution Manager			.	.
1002		Installation and Configuration			.	.
1003	TO_SOLM_1.1.01	Set-up and configuration of ITSM in SAP Solution Manager	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Functional Application Management	F1
1004	BASIC_1.8.07	Set-up monitoring with Customer Solution Manager located in the cloud: Install additional Diagnostics Agent on customer systems	Standard Services	Connecting an SAP Solution Manager system owned by the customer operated in the cloud (not the central SAP Solution Manager system owned by service provider).	n/a	n/a
1005	BASIC_1.8.18	Set-up monitoring with Customer Solution Manager located in cloud: Configure monitoring within the customers SAP Solution Manager system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Service charge is calculated per server; monitoring set-up is done using only SAP Solution manager standard templates, no customer specific settings and adjustments included.	Application Operations or Customer Application Monitoring	A1, M2
1006	BASIC_1.8.26	Configure Solution Manager: Focused Insight standard dashboard	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	No customer specific settings and adjustments included.	Application Operations or Customer Application Monitoring	A1, M2
1007		X33 - SAP Test Data Migration Server (TDMS)			.	.
1008		Installation and Configuration			.	.
####	TO_TDMS_1.1.01	Set-up of Control System (TDMS server) and set-up of receiver system (target server)	Standard Services		n/a	n/a
####	TO_TDMS_1.1.02	Patching of the sender systems (source system)	Standard Services		n/a	n/a
####	TO_TDMS_1.1.03	TDMS initial configuration, client creation, set-up RFC connections, set-up authorizations, Shell Creation	Standard Services		n/a	n/a
####	TO_TDMS_1.1.04	Set scrambling data, customize, using BPL modeler	Excluded Tasks		n/a	n/a
1013		X34 - SAP PowerDesigner			.	.
1014		Operational Set-up			.	.
####	TO_PWR_1.1.01	Install components (Portal, Repo, Proxy)	Standard Services	Install and set-up SAP PowerDesigner repository including any support package and patch updates. SAP ASE database will be set-up as repository server. Install and configure Apache Tomcat Server on portal server for remote web access. Install and set-up SAP PowerDesigner admin server as staging server for initial deployment. Export/Import of SAP PowerDesigner Web application files to portal server.	n/a	n/a
####	TO_PWR_1.1.02	Install Proxy	Standard Services	Install and set-up SAP PowerDesigner proxy server - will be installed on same server as SAP PowerDesigner admin server. This is an optional component.	n/a	n/a
####	TO_PWR_1.1.03	Set-up and configuration	Standard Services	Install and set-up ODBC drivers for SAP HANA as data source. Additional data sources set-up will incur extra service charge. Set-up and configure authentication for portal and repository servers. Authorization set-up - provision specific user and roles for SAP PowerDesigner portal and repository Access.	n/a	n/a
####	TO_PWR_1.1.04	SSL/TLS Configuration - Portal Set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Set-up secure communication through SSL/TLS configuration.	Application Operations	A1
####	TO_PWR_1.1.05	Single Sign On (SSO) with Windows Active Directory	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
1020		X35 - bowbridge Anti-Virus for SAP Solutions			.	.
1021		Installation and Configuration			.	.
####	TO_BB_AV_1.1.01	Verify files signature or comparing checksum	Standard Services	Check that bowbridge software is original and unmodified.	n/a	n/a
####	TO_BB_AV_1.1.02	Install bowbridge software	Standard Services		n/a	n/a
####	TO_BB_AV_1.1.03	Configure application layer	Excluded Tasks		n/a	n/a
####	TO_BB_AV_1.1.04	Update bowbridge software	Standard Services	Customer must inform provider and provide software update.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1026		X36 - SAP Billing and Revenue Innovation Management			.	.
1027		SAP Convergent Charging			.	.
1028		Installation and Configuration			.	.
####	TO BRIM CC 1.1.01	Install SAP Convergent Charging database	Standard Services		n/a	n/a
####	TO BRIM CC 1.1.02	Install SAP Convergent Charging core server	Standard Services		n/a	n/a
####	TO BRIM CC 1.1.03	Post installation steps - Convergent Charging Cockpit and Core tool installation	Standard Services		n/a	n/a
1032		Operations			.	.
####	TO BRIM CC 1.2.01	Start/stop system	Standard Services		n/a	n/a
####	TO BRIM CC 1.2.02	Apply Updates	Standard Services		n/a	n/a
####	TO BRIM CC 1.2.03	Version upgrade	Additional Service		n/a	n/a
####	TO BRIM CC 1.2.04	Monitoring	Standard Services		n/a	n/a
####	TO BRIM CC 1.2.05	Standard technical parameter setting and activation with restart	Standard Services	If required per SAP Note, the product support team, or a top issue.	n/a	n/a
####	TO_BRIM_CC_1.2.06	Additional parameter settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
####	TO BRIM CC 1.2.07	Additional instance installation	Additional Service		n/a	n/a
####	TO BRIM CC 1.2.08	System refresh	Additional Service		n/a	n/a
####	TO BRIM CC 1.2.09	Configure Transports	Standard Services		n/a	n/a
####	TO BRIM CC 1.2.10	Enable SSL service	Additional Service		n/a	n/a
####	TO BRIM CC 1.2.11	Parameter update	Additional Service		n/a	n/a
1044		SAP Convergent Mediation by DigitalRoute			.	.
1045		Installation and Configuration			.	.
####	TO BRIM CM 1.1.01	Install SAP Convergent Mediation Database	Standard Services		n/a	n/a
####	TO BRIM CM 1.1.02	Install SAP Convergent Mediation Control Zone and Execution Zone set-up	Standard Services		n/a	n/a
####	TO BRIM CM 1.1.03	Post Installation steps	Standard Services		n/a	n/a
####	TO BRIM CM 1.1.04	Install SAP Convergent Mediation Execution Control Standalone (ECSA) set-up	Standard Services		n/a	n/a
1050		Operations			.	.
####	TO BRIM CM 1.2.01	Disaster Recovery procedures and testing for reprocessing of events	Excluded Tasks		n/a	n/a
####	TO BRIM CM 1.2.02	Deletion of collected files after checkpoint batch	Excluded Tasks		n/a	n/a
####	TO BRIM CM 1.2.03	Push Data Records from customer sFTP server to cloud environment sFTP server	Excluded Tasks		n/a	n/a
####	TO BRIM CM 1.2.04	Start/stop system	Standard Services		n/a	n/a
####	TO BRIM CM 1.2.05	Start/stop specific Pico instance	Standard Services		n/a	n/a
####	TO BRIM CM 1.2.06	Monitoring	Standard Services	Availability monitoring only.	n/a	n/a
####	TO BRIM CM 1.2.07	Standard technical parameter setting and activation with restart	Standard Services	If required per SAP Note, the product support team, or a Top Issue.	n/a	n/a
####	TO_BRIM_CM_1.2.08	Additional parameter settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Data Management for BRIM	D7
####	TO BRIM CM 1.2.09	Install, add, and upgrade Pico instances	Additional Service		n/a	n/a
####	TO_BRIM_CM_1.2.10	Import/Export Workflows configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BRIM_CM_1.2.11	Maintain External Reference files	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO BRIM CM 1.2.12	Install license	Standard Services		n/a	n/a
####	TO BRIM CM 1.2.13	System refresh	Additional Service		n/a	n/a
####	TO_BRIM_CM_1.2.14	Perform BRIM data management activities	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Data Management for BRIM	D7
####	TO BRIM CM 1.2.15	Install CA signed certificate on CM	Additional Service		n/a	n/a
####	TO BRIM CM 1.2.16	Configure OAuth2 Service	Additional Service		n/a	n/a
1067		X37 - SAP Manufacturing Integration and Intelligence			.	.
1068		Implementation and Configuration			.	.
####	TO_MII_1.1.01	Set-up Plant Connectivity (PCo) for SAP Overall Equipment Effectiveness (OEE) Functionality	Excluded Tasks		n/a	n/a
####	TO_MII_1.1.02	Set-up ALE user	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_MII_1.1.03	Establish ALE connection to customer's ERP system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_MII_1.1.04	Execute CTC Template for SAP Overall Equipment Effectiveness (OEE) Management: SAP NetWeaver	Excluded Tasks		n/a	n/a
####	TO_MII_1.1.05	Execute CTC Template for SAP Overall Equipment Effectiveness (OEE) Management: Integration Interfaces	Excluded Tasks		n/a	n/a
####	TO_MII_1.1.06	Configure SAP Overall Equipment Effectiveness Management	Excluded Tasks		n/a	n/a
####	TO_MII_1.1.07	Create XMII Users and perform Roles Assignments	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1076		X38 - SAP Manufacturing Execution			.	.
1077		Operational Set-up			.	.
####	TO ME 1.1.01	Execute CTC Template for SAP NetWeaver Engine Configuration	Standard Services		n/a	n/a
####	TO ME 1.1.02	Execute CTC Template for SAP Database Set-up	Standard Services		n/a	n/a
####	TO ME 1.1.03	Execute CTC Template for SAP ME Configuration	Excluded Tasks		n/a	n/a
####	TO ME 1.1.04	Execute SAP ME Scripts	Excluded Tasks		n/a	n/a
####	TO ME 1.1.05	Perform SAP ME and ERP Integration	Excluded Tasks		n/a	n/a
####	TO ME 1.1.06	Install Adobe Document Services	Optional Services		n/a	n/a
1084		X39 - R Integration			.	.
1085		Operational Set-up			.	.
####	TO_RINT_1.1.02	Install R Integration Components	Standard Services	R, R Server, and dependent packages are installed independently from the SAP HANA database.	n/a	n/a
####	TO_RINT_1.1.03	Perform technical post-installation tasks	Standard Services	Set-up SAP HANA configuration for index and XS Engine parameters for R Integration. Set-up R Server authentication and authorization. Provision cloud environment specific user and roles for R Integration. Configure and set-up R Integration nodes for each tenant database including, service initialization, cockpit access, delivery units, and verification.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
####	TO_RINT_1.1.04	R Integration - Additional hosts set-up for High Availability (HA)	Optional Services	Add and set-up R Integration additional nodes. High Availability set-up and configuration involves single or multi-tenant database set-up including R Integration group set-up. For R Integration LoadBalancer set-up, check R&R Section "LoadBalancer".	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1089		X40 - SAP SQL Anywhere - Mobilink			.	.
1090		Implementation and Configuration			.	.
####	TO_SQLA_ML_1.1.01	Install and activate SQLAnywhere Mobilink Services	Standard Services	Install and set-up of SQLA Mobilink Server including any support package and patch updates. Import of Mobilink system object to consolidated database. Note: Prior to Mobilink install, an SAP HANA database should already be provisioned as a consolidated database.	n/a	n/a
####	TO_SQLA_ML_1.1.02	Perform technical post-installation tasks	Standard Services	Activate Mobilink roles, privileges and object access for monitoring and operations. Provision cloud environment specific user and roles. Configure and set-up Mobilink nodes for each SAP HANA tenant database including, service initialization, delivery units and verification.	n/a	n/a
####	TO_SQLA_ML_1.1.03	Mobilink - Single Sign On (SSO) Set-up	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
####	TO_SQLA_ML_1.1.04	Mobilink - Additional Host Set-up for High Availability (HA)	Optional Services	Add and configuring additional hosts for high availability set-up. For multi-tenant set-up, Mobilink nodes are added exclusively to each tenant database. For Mobilink LoadBalancer set-up, check R&R Section "LoadBalancer"	n/a	n/a
####	TO_SQLA_ML_1.1.05	Set-up and configure synchronization scripts	Excluded Tasks	Configure synchronization script for upload and download of data between remote and consolidated databases.	n/a	n/a
1096		X41 - SAP Analytics Cloud			.	.
1097		SAP Analytics Cloud Tenant			.	.
####	TO_SAC_1.1.01	Establish connection between SAP Analytics Cloud and managed system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_SAC_1.1.02	Set-up Single Sign On (SSO) communication with Principle Propagation from SAP Analytics Cloud to SAP S/4HANA	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
####	TO_SAC_1.1.03	Create or change user/roles or SAP as Identity Provider	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1101		SAP Analytics Cloud Agent			.	.
####	TO_SAC_1.2.01	Install SAP Analytics Cloud Agent	Standard Services		n/a	n/a
####	TO_SAC_1.2.02	Configure SAP Analytics agent - Cloud Connector	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_SAC_1.2.02A	Configure SAP Analytics - Java Connector	Standard Services		n/a	n/a
####	TO_SAC_1.2.03	Configure SAP Analytics Cloud with connections requiring SAP Analytics agent such as SAP S/4HANA, ERP	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1106		SAP S/4HANA Tasks for SAP Analytics Cloud			.	.
####	TO_SAC_1.3.01	Configure STRUST for SSL settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_SAC_1.3.02	Activate Embedded BW content (BEx queries etc.)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_SAC_1.3.03	Enable INA for Analytics Cloud	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_SAC_1.3.04	Enable CORS Analytics Cloud and edit allowlist	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1111		X42 - SAP Business Technology Platform - BTP (formerly SAP Cloud Platform)				
1112		Global Account and Subaccount(s)				
####	TO_BTP_1.1.01	Create or change subaccounts related to cloud system (DEV, QAS, PRD etc.)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.01_PCE	Create or change subaccounts related to managed system (DEV, QAS, PRD etc.) - SAP Forms by Adobe (Adobe Document Services/ADS)	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Create sub account for ADS processing in SAP-owned global account. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
####	TO_BTP_1.1.02	Create or change entitlements in the Global Account	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.03	Activate Business Technology Platform service(s)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.03_PCE	Activate Business Technology Platform service(s) - SAP Forms by Adobe (Adobe Document Services/ADS)	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Enable ADS service in BTP subaccount (created in SAP-owned global account). Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
####	TO_BTP_1.1.04	Create or change user/roles	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.04_PCE	Create or change user/roles - SAP Forms by Adobe (Adobe Document Services/ADS)	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: In SAP-owned global account - Perform basic role assignment; Assign relevant user to ADSAdmin role; Assign relevant user to ADSCaller role. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
####	TO_BTP_1.1.05	Create or change connectivity destinations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.05_PCE	Create or change connectivity destinations - SAP Forms by Adobe (Adobe Document Services/ADS)	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only: Create destination for ABAP backend system. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
####	TO_BTP_1.1.06	Manage certificates (issue, import, export)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.07	Create or change custom application domains settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or SAP BTP Core Operations	A1, A3
####	TO_BTP_1.1.08_PCE	Create subaccounts related to S/4 PCE system for BTP starter pack	Standard Services	Limited to One (1) for non-production tier and One (1) for production tier. Includes Cloud Foundry enablement and Default Space creation and core services activation.	n/a	n/a
####	TO_BTP_1.1.09_PCE	Application subscription and subaccount configuration to integrate and establish connectivity with S/4 HANA PCE	Standard Services	Example: LBN shipper, LBN Carrier sub-account related activities.	n/a	n/a
1126		Identity Provider				
####	TO_BTP_1.2.01	Configure local provider settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.2.02	Configure Trust Relationships and Federation Settings for external Identity Providers (e.g. Microsoft, Okta)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.2.03	Configure Trust Relationships and Federation Settings for SAP Identity Authentication Tenant	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.2.04	Configure Principle Propagation Business Technology Platform, SAP Cloud Connector and SAP S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.2.05	Activate CERTRULE for the purpose of client based certificates	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	If an existing SAP S/4HANA system is to be used for the integration.	Application Operations	A1
####	TO_BTP_1.2.06	User Migration to Business Technology Platform Identity Authentication Tenant	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1133		SAP S/4HANA Tasks for SAP Business Technology Platform - BTP (formerly SAP Cloud Platform)			-	-
####	TO_BTP_1.3.01	Configure STRUST for SSL settings	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.01_PCE	Configure STRUST for SSL settings - SAP Forms by Adobe (Adobe Document Services/ADS)	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only. Import the required security certificates into AS ABAP. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
####	TO_BTP_1.3.02	Activate ICF nodes required for sample Apps to be enabled	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.03	Activate OData Services required for sample Apps to be enabled	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.04	Enterprise Search Enablement (ESH)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.05	Create authorization role in backend system for OData processing	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	For relevant sample Apps.	Application Operations	A1
####	TO_BTP_1.3.06	Activate Embedded BW content for Analytical Fiori Apps	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.07	Enable INA for Analytical SAP Fiori Apps	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.3.08	Establish backend connectivity to Business Technology Platform Forms by Adobe	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Enables generation of print and interactive forms using Adobe Document Services (ADS); includes mandatory baseline configuration.	Application Operations	A1
####	TO_BTP_1.3.08_PCE	Establish backend connectivity to Business Technology Platform Forms by Adobe - Create and configure an RFC destination for SAP Forms by Adobe in AS ABAP	Standard Services	For X43 - SAP Forms by Adobe (Adobe Document Services/ADS) only. Create and configure an RFC destination for SAP Forms by Adobe in AS ABAP; Configure ICF Service to enable HTTP communication with SAP Forms by Adobe; Create the service user ADS_AGENT. Limited to S/4HANA and SAP ERP Central Component (SAP ECC) deployments.	n/a	n/a
1144		Portal			-	-
####	TO_BTP_1.4.01	Create or change SAP Fiori Launchpad sites (site directory and site settings)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
####	TO_BTP_1.4.02	Create or change roles	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Secure Users & Authorizations	A1, S2
####	TO_BTP_1.4.03	Create or change groups including role assignment	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Secure Users & Authorizations	A1, S2
####	TO_BTP_1.4.04	Create or change catalogs including role assignment	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Secure Users & Authorizations	A1, S2
####	TO_BTP_1.4.05	Enable SAP Fiori sample apps and perform required connectivity set-up	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1150		Integration Suite			-	-
####	TO_BTP_1.5.01	Test execution for every update of SAP Business Technology Platform - BTP (formerly SAP Cloud Platform) Integration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Perform the automated execution of regression test scripts whenever an update of SAP Cloud Platform takes place.	Cloud Integra	T2
####	TO_BTP_1.5.02	Create test automation scripts for SAP Business Technology Platform - BTP (formerly SAP Cloud Platform)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create automated test scripts based on customer i-Flows with sample input & output messages.	Cloud Integra	T2
####	TO_BTP_1.5.03	Application of changes (Test automation script modification)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Perform modification of test automation scripts.	Cloud Integra	T2
####	TO_BTP_1.5.04	Perform maintenance and update of automated test cases	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		SAP S/4HANA	T3

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1155		X43 - SAP Forms by Adobe (Adobe Document Services/ADS)	SAP Cloud Connector and SAP Business Technology Platform - BTP (formerly SAP Cloud Platform) are prerequisites.		.	.
1156		Installation and Configuration			.	.
####	TO_ADS_1.1.01	Test ADS functionality and create test PDF	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Test and check communications and functionality. Applicable if SAP Forms by Adobe (Adobe Document Services/ADS) is configured in a customer owned BTP account.	Regression Testing	T1
####	TO_ADS_1.1.02	Data Migration from on premise ADS to ADS on BTP - customer account	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Applicable if SAP Forms by Adobe (Adobe Document Services/ADS) is configured in a customer owned BTP account.	Application Operations	A1
####	TO_ADS_1.1.02A	Data Migration from on premise ADS to ADS on BTP - SAP account	Standard Services	Only applicable when SAP Forms by Adobe (Adobe Document Services/ADS) is set up in SAP-owned global BTP account	n/a	n/a
####	TO_ADS_1.1.03	Configure Fonts and Print Information using XDC and XCI Files - customer account	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Applicable if SAP Forms by Adobe (Adobe Document Services/ADS) is configured in a customer owned BTP account.	Application Operations	A1
####	TO_ADS_1.1.03A	Configure Fonts and Print Information using XDC and XCI Files - SAP account	Standard Services	Only applicable when SAP Forms by Adobe (Adobe Document Services/ADS) is set up in SAP-owned global BTP account	n/a	n/a
####	TO_ADS_1.1.04	Configure document security - customer account	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Applicable if SAP Forms by Adobe (Adobe Document Services/ADS) is configured in a customer owned BTP account.	Application Operations	A1
####	TO_ADS_1.1.04A	Configure document security - SAP account	Standard Services	Only applicable when SAP Forms by Adobe (Adobe Document Services/ADS) is set up in SAP-owned global BTP account	n/a	n/a
####	TO_ADS_1.1.05	Configure job profiles- customer account	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Applicable if SAP Forms by Adobe (Adobe Document Services/ADS) is configured in a customer owned BTP account.	Application Operations	A1
####	TO_ADS_1.1.05A	Configure job profiles - SAP account	Standard Services	Only applicable when SAP Forms by Adobe (Adobe Document Services/ADS) is set up in SAP-owned global BTP account	n/a	n/a
####	TO_ADS_1.1.06	End-to-end enablement of SAP BTP service SAP Forms by Adobe for S/4HANA systems	Standard Services	SAP Forms by Adobe (Adobe Document Services/ADS) enablement including all required sub steps and activities: Create and configure an RFC destination for SAP Forms by Adobe in AS ABAP; Configure ICF Service to enable HTTP communication with SAP Forms by Adobe; Create the service user ADS_AGENT.	n/a	n/a
####	TO_ADS_1.1.07	End-to-end enablement of SAP BTP service SAP Forms by Adobe for NetWeaver based systems other than S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	SAP Forms by Adobe (Adobe Document Services/ADS) enablement including all required sub steps and activities: Create and configure an RFC destination for SAP Forms by Adobe in AS ABAP; Configure ICF Service to enable HTTP communication with SAP Forms by Adobe; Create the service user ADS_AGENT. Customer to provide credentials for BTP global / subaccount to be used.	Application Operations	A1
1168		X44 - SAP Enterprise Threat Detection (ETD)			.	.
1169		Build Phase			.	.
####	TO_ETD_1.1.01	Install ETD on SAP HANA	Standard Services	Import ETD delivery unit in HANA and enable mandatory ETD background jobs.	n/a	n/a
####	TO_ETD_1.1.02	Install and configure ETD Streaming solution	Excluded Tasks	Initialize ETD Launchpad; install and configure ETD Streaming applications; install and configure Apache Kafka; initial configuration of ETD Streaming certificates.	n/a	n/a
####	TO_ETD_1.1.03	Configure provisioning logs from SAP NetWeaver ABAP based system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Excludes prerequisite SAP Notes implementation.	Enterprise Threat Detection	S9
####	TO_ETD_1.1.04	Configure provisioning logs from SAP HANA-based system	Excluded Tasks		n/a	n/a
####	TO_ETD_1.1.05	Configure provisioning logs from SAP NetWeaver JAVA-based system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
####	TO_ETD_1.1.06	Configure provisioning logs from other systems including OS	Excluded Tasks		n/a	n/a
1176		Run Phase			.	.
####	TO_ETD_1.2.01	Schedule/Adjust individual ETD HANA background jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Enable optional ETD background jobs.	Enterprise Threat Detection	S9
####	TO_ETD_1.2.02	Adjust individual ABAP source system background jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
####	TO_ETD_1.2.03	Import New ETD Content Packages	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
####	TO_ETD_1.2.04	Define ETD namespaces	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
####	TO_ETD_1.2.05	Define ETD locations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
####	TO_ETD_1.2.06	Basis Alert Monitoring	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Perform ETD security monitoring for the agreed patterns for the logs from customer system.	Enterprise Threat Detection	S9
####	TO_ETD_1.2.07	Enhanced Analyses	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Execute proactive threat hunting and analyze specific suspicion.	Enterprise Threat Detection	S9
####	TO_ETD_1.2.08	Content Adaption	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create/update and implement new/updated and agreed pattern.	Enterprise Threat Detection	S9
####	TO_ETD_1.2.09	Upgrade ETD on SAP HANA	Standard Services	Import new ETD delivery unit in HANA and re-enable mandatory ETD background jobs.	n/a	n/a
####	TO_ETD_1.2.10	Re-enable/re-connect ABAP/Java source system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Reconnect ABAP/Java source systems after source system upgrades/migrations.	Enterprise Threat Detection	S9
####	TO_ETD_1.2.11	ETD Streaming certificate handling	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1188		X44 - SAP Enterprise Threat Detection (ETD)			.	.
1189		Build Phase			.	.
1190	TO_ETD_1.1.01	Install ETD on SAP HANA	Standard Services	Import ETD delivery unit in HANA and enable mandatory ETD background jobs.	n/a	n/a
1191	TO_ETD_1.1.02	Install and configure ETD Streaming solution	Excluded Tasks	Initialize ETD Launchpad; install and configure ETD Streaming applications; install and configure Apache Kafka; initial configuration of ETD Streaming certificates.	n/a	n/a
1192	TO_ETD_1.1.03	Configure provisioning logs from SAP NetWeaver ABAP based system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Excludes prerequisite SAP Notes implementation.	Enterprise Threat Detection	S9
1193	TO_ETD_1.1.04	Configure provisioning logs from SAP HANA-based system	Excluded Tasks		n/a	n/a
1194	TO_ETD_1.1.05	Configure provisioning logs from SAP NetWeaver JAVA-based system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
1195	TO_ETD_1.1.06	Configure provisioning logs from other systems including OS	Excluded Tasks		n/a	n/a
1196		Run Phase			.	.
1197	TO_ETD_1.2.01	Schedule/Adjust individual ETD HANA background jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Enable optional ETD background jobs.	Enterprise Threat Detection	S9
1198	TO_ETD_1.2.02	Adjust individual ABAP source system background jobs	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
1199	TO_ETD_1.2.03	Import New ETD Content Packages	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
1200	TO_ETD_1.2.04	Define ETD namespaces	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
1201	TO_ETD_1.2.05	Define ETD locations	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Enterprise Threat Detection	S9
1202	TO_ETD_1.2.06	Basis Alert Monitoring	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Perform ETD security monitoring for the agreed patterns for the logs from customer system.	Enterprise Threat Detection	S9
1203	TO_ETD_1.2.07	Enhanced Analyses	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Execute proactive threat hunting and analyze specific suspicion.	Enterprise Threat Detection	S9
1204	TO_ETD_1.2.08	Content Adaption	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create/update and implement new/updated and agreed pattern.	Enterprise Threat Detection	S9
1205	TO_ETD_1.2.09	Upgrade ETD on SAP HANA	Standard Services	Import new ETD delivery unit in HANA and re-enable mandatory ETD background jobs.	n/a	n/a
1206	TO_ETD_1.2.10	Re-enable/re-connect ABAP/Java source system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Reconnect ABAP/Java source systems after source system upgrades/migrations.	Enterprise Threat Detection	S9
1207	TO_ETD_1.2.11	ETD Streaming certificate handling	Excluded Tasks		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1208		X45 - Zscaler ZPA Connector			.	.
1209		Implementation and Configuration			.	.
1210	TO_ZPA_1.1.01	Install ZPA Connector and required OS packages	Optional Services		n/a	n/a
1211	TO_ZPA_1.1.02	Configure ZPA Connector	Optional Services		n/a	n/a
1212	TO_ZPA_1.1.03	Allowlist ZPA Connector IP addresses in LoadBalancer	Optional Services		n/a	n/a
1213	TO_ZPA_1.1.04	Configure connector in ZPA Admin Console	Excluded Tasks		n/a	n/a
1214	TO_ZPA_1.1.05	Provision ZPA Connector provisioning keys	Excluded Tasks		n/a	n/a
1215	TO_ZPA_1.1.06	Install client software	Excluded Tasks		n/a	n/a
1216	TO_ZPA_1.1.07	Client and end-user support	Excluded Tasks		n/a	n/a
1217	TO_ZPA_1.1.08	Sizing of required number of connectors	Excluded Tasks		n/a	n/a
1218	TO_ZPA_1.1.09	Integration with customer's IDP (SAML)	Excluded Tasks		n/a	n/a
1219	TO_ZPA_1.1.10	Install provisioning keys	Optional Services		n/a	n/a
1220		X46 - SAP Omnichannel Banking (OCB)			.	.
1221		Implementation and Configuration			.	.
1222	TO_OCB_1.1.01	Install Tomcat	Optional Services		n/a	n/a
1223	TO_OCB_1.1.02	Install OCB software Retail Banking or Business Banking (Digital)	Standard Services		n/a	n/a
1224	TO_OCB_1.1.03	Deploy Business Central and deploy Platform with customized WAR files	Excluded Tasks	Provider performs task for customer for SAP product WAR files and Customer provided customized WAR files	n/a	n/a
1225	TO_OCB_1.1.04	Develop WAR files	Excluded Tasks		n/a	n/a
1226		X48 - Redwood RunMyJobs			.	.
1227		Installation and Configuration			.	.
1228	TO_RMJ_1.1.01	Install Redwood platform agent and configure as Secure gateway	Standard Services	Installation and configuration of the agent on dedicated VMs. Installation of agents on servers running on managed systems is not allowed.	n/a	n/a
1229	TO_RMJ_1.1.02	Monitor agent	Standard Services		n/a	n/a
1230	TO_RMJ_1.1.03	Restart agent	Standard Services		n/a	n/a
1231	TO_RMJ_1.1.04	Scheduling of jobs	Excluded Tasks		n/a	n/a
1232	TO_RMJ_1.1.05	Manual design and implementation of process definitions	Excluded Tasks		n/a	n/a
1233	TO_RMJ_1.1.06	Integrate SAP system to Redwood RunMyJobs Cloud	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Connect business client to the Customer tenant. Technical user for communication needs to be provided by Customer.	Advanced Job Management	M3
1234		X49 - SMTP Relay to Office365			.	.
1235		Installation and Configuration			.	.
1236	TO_SMTP_1.1.01	Install smtp relay and required OS packages	Standard Services		n/a	n/a
1237	TO_SMTP_1.1.02	Configure smtp relay servers and LoadBalancers	Standard Services		n/a	n/a
1238	TO_SMTP_1.1.03	Allowlist of smtp relay IP's/FQDN in LoadBalancer and NSG	Standard Services		n/a	n/a
1239	TO_SMTP_1.1.04	Provisioning of certificates for TLS and authentication	Excluded Tasks		n/a	n/a
1240	TO_SMTP_1.1.05	Configure systems to use smtp relay server	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1241	TO_SMTP_1.1.06	Configure O365 connector in O365	Excluded Tasks		n/a	n/a
1242	TO_SMTP_1.1.07	Install certificates	Standard Services		n/a	n/a
1243	TO_SMTP_1.1.08	Restart after failure	Standard Services		n/a	n/a
1244	TO_SMTP_1.1.09	Monitor smtp relay service	Standard Services		n/a	n/a
1245		X50 - SAP Data Custodian (SDC) - Integration Service	Subject to availability on a case-by-case basis. SDC provides a subset of components which are each ordered separately.		.	.
1246		Transparency and Control Service (SAP S/4 HANA, ECC)			.	.
1247	TO_SDC_1.1.01	Install on SAP S/4 HANA or ECC	Standard Services	Install on existing SAP S/4 HANA or ECC system with required version provided by customer for SDC integration.	n/a	n/a
1248	TO_SDC_1.1.02	SAP system profile parameters	Standard Services	Service Provider is responsible for executing this task as it can have an impact on system performance and availability. Includes recommendations for technical system parameters. Provider will also adjust parameters by customer request except for certain standardized settings required to maintain system stability or security. For SAP Data Custodian Transparency and Control to work, Service Provider needs to set profile parameter - downtime is required due to system restart.	n/a	n/a
1249	TO_SDC_1.1.03	Enable outbound connection via LoadBalancer	Standard Services	Allow outbound connection to SDC tenant. Customer to provide the URL for SDC tenant to allow outbound connection; customer will get this from customer's SDC team during the onboarding process.	n/a	n/a
1250		Transparency and Control Service for Infrastructure (Hyperscaler)			.	.
1251	TO_SDC_1.1.04A	Create infrastructure components on respective hyperscaler	Standard Services	There are infrastructure components (EventHub, PUB/SUB,S3 etc.) for each Hyperscaler which are required to enable the integration service.	n/a	n/a
1252	TO_SDC_1.1.04	Onboarding activities including configuring tenant with principal masking, and assessments/questionnaires	Excluded Tasks	Performed by customer's SDC team.	n/a	n/a
1253	TO_SDC_1.1.05	Configure the tenant with the SAP S/4HANA system	Excluded Tasks		n/a	n/a
1254	TO_SDC_1.1.06	Configure application synchronization for Principal[User] attributes	Excluded Tasks		n/a	n/a
1255	TO_SDC_1.1.07	Maintain use case policies in the Data Custodian tenant	Excluded Tasks		n/a	n/a
1256	TO_SDC_1.1.08	Remediate incidents for unauthorized accesses in the tenant	Excluded Tasks		n/a	n/a
1257	TO_SDC_1.1.09	Generate access log and other reports	Excluded Tasks		n/a	n/a
1258		External Key Management (KMS) Integration			.	.
1259		Enabling HANA LSS and Keys Migration			.	.
1260	TO_SDC_1.2.01	Installation HANA LSS and Key Migration	Additional Service	Requires HANA 2.0 SP06 or later and HANA encryption to be enabled.	n/a	n/a
1261		Integration to Data Custodian			.	.
1262	TO_SDC_1.3.01	Integrate HANA to Data Custodian KMS	Additional Service	Customer should have subscription to Data Custodian KMS and completed their on-board. HANA LSS should be installed.	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1263		X51 - SAP Disclosure Management (DM)				
1264		Installation			.	.
1265	TO_SDM_1.1.01	Install DM components	Standard Services	IIS Web Server, DM Application Server, Task Engine, XBRL Service, and MS-SQL DB.	n/a	n/a
1266	TO_SDM_1.1.02	Install DM BW Connector	Standard Services		n/a	n/a
1267	TO_SDM_1.1.03	Install DM content packages	Standard Services	Scenario based.	n/a	n/a
1268		Set-up and Configuration			.	.
1269	TO_SDM_1.2.01	Post-install configuration	Standard Services		n/a	n/a
1270	TO_SDM_1.2.02	Configure BW connector	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1271	TO_SDM_1.2.03	Configure DM Application Server SSL/TLS Secure Communication	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
1272	TO_SDM_1.2.04	Configure DM Application Server SSO with Windows AD	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
1273		X52 - SAP 3D Visual Enterprise Generator (VEG)			.	.
1274		Installation			.	.
1275	TO_VEG_1.1.01	Install VEG components	Standard Services	IIS Web Server, MSMQ Server, Application Server (Source) with Embedded MS-SQL Express DB.	n/a	n/a
1276	TO_VEG_1.1.02	Install additional VEG subordinate host	Standard Services		n/a	n/a
1277		Set-up and Configuration			.	.
1278	TO_VEG_1.2.01	Post-install configuration	Standard Services		n/a	n/a
1279	TO_VEG_1.2.02	Configure VEG SSL/TLS Secure Communication	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
1280	TO_VEG_1.2.03	Integration with ERP/ECC/S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	OS access required. Assistance can be requested via task BASIC_1.1.14.	Application Operations	A1
1281	TO_VEG_1.2.04	Configure SSO with Windows AD	Excluded Tasks	Customer may engage other SAP services pertaining to SSO solutions for cloud environment.	n/a	n/a
1282		X53 - SAP Content Server			.	.
1283		Installation and Operation			.	.
1284	TO_SCS_1.1.01	Install Content Server	Standard Services		n/a	n/a
1285	TO_SCS_1.1.02	Install specific parameter definition	Standard Services		n/a	n/a
1286	TO_SCS_1.1.03	Content Server - System Copy	Standard Services	Up to Six (6) refreshes per SID, per contract year, are included. Additional refreshes are available on chargeable basis via TO_SCS_1.1.03A. Only available after initial build phase is complete. Note: Customer must provide additional information which will be aligned during request processing.	n/a	n/a
1287	TO_SCS_1.1.03A	Content Server - System Copy - Additional Requests	Additional Service	Additional refreshes beyond entitlement described in TO_SCS_1.1.03. Only available after initial build phase is complete. Note: Customer must provide additional information which will be aligned during request processing.	n/a	n/a
1288		Configure repositories			.	.
1289	TO_SCS_1.2.01	Generate server certificate (in case of SSL enablement)	Standard Services	After CA signing of SAPSSLs pse, certificate should be generated.	n/a	n/a
1290	TO_SCS_1.2.02	Add server certificate to SYSTEM PSE, SSL Server standard PSE in Strust transaction (in case of SSL enablement)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Per customer request.	Application Operations	A1
1291	TO_SCS_1.2.03	Technical configuration of repositories in OAC0	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Strategic/conceptual decisions to be made by customers/consulting.	Application Operations	A1
1292	TO_SCS_1.2.04	Connection test via RSCMST	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1293	TO_SCS_1.2.05	Set SAPR3 password in customer's backend system	Standard Services		n/a	n/a
1294		Patch Update			.	.
1295	TO_SCS_1.3.01	SP update for content server version	Standard Services		n/a	n/a
1296	TO_SCS_1.3.02	SP update for MaxDB database	Standard Services		n/a	n/a
1297		Version Upgrade			.	.
1298	TO_SCS_1.4.01	Pre-checks for repository connection	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Connection test via RSCMST for all given repositories needs to be done.	Application Operations	A1
1299	TO_SCS_1.4.02	Technical Upgrade procedure - for releases up to 7.53	Additional Service	For upgrades up to release 7.53.	n/a	n/a
1300	TO_SCS_1.4.02A	Technical Upgrade procedure	Standard Services	For upgrades from 7.53 to 7.54 and beyond.	n/a	n/a
1301	TO_SCS_1.4.03	Post-upgrade configuration changes for repositories - for releases up to 7.53	Additional Service	For upgrades up to release 7.53.	n/a	n/a
1302	TO_SCS_1.4.03A	Post-upgrade configuration changes for repositories	Standard Services	For upgrades from 7.53 to 7.54 and beyond.	n/a	n/a
1303	TO_SCS_1.4.04	Technical post-checks for repository connection	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Connection test via RSCMST for all given repositories needs to be done.	Application Operations	A1
1304	TO_SCS_1.4.05	Functional validation of repositories	Excluded Tasks		n/a	n/a
1305		X54 - SAP HANA Cockpit 2.0			.	.
1306		Installation and Configuration			.	.
1307	TO_HANA_CP_1.1.03	Add and Maintain resources (ex: HANA Systems) and resource groups	Excluded Tasks	Configure HANA cockpit deployed on managed landscape to manage HANA systems at customer premises. Customer can perform this task with a user provided by service provider.	n/a	n/a
1308	TO_HANA_CP_1.1.04	Monitor database resource consumption of HANA Cockpit	Standard Services	To detect issues in technical operations.	n/a	n/a
1309	TO_HANA_CP_1.1.05	User management	Excluded Tasks	Customer must maintain their users for HANA Cockpit.	n/a	n/a
1310	TO_HANA_CP_1.1.06	Update and upgrade of HANA Cockpit	Standard Services		n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1311		X55 - SAP Focus Run for Solution Manager (FRUN)			.	.
1312		Configuration			.	.
1313	TO_FRUN_1.1.01	Allowlist IP addresses of customer's FRUN through managed system's firewall	Standard Services		n/a	n/a
1314	TO_FRUN_1.1.02	Create dedicated SSL client PSE in STRUST (self signed or signed by certificate authority) in FRUN	Excluded Tasks		n/a	n/a
1315	TO_FRUN_1.1.03	Import customer provided certificate into the SAP Host Agent	Standard Services		n/a	n/a
1316	TO_FRUN_1.1.04	Enable certificate based authentication to simple diagnostic agent	Standard Services		n/a	n/a
1317	TO_FRUN_1.1.05	Configure outside discovery to connect the managed system's Host Agent with customer FRUN system and maintain SLDR	Standard Services		n/a	n/a
1318	TO_FRUN_1.1.06	Configure SSL and monitoring in FRUN	Excluded Tasks		n/a	n/a
1319		X56 - SAP S/4 HANA Integration Tasks for RISE with SAP PCE			.	.
1320		Configuration			.	.
1321	TO_S4H_1.1.01 PCE	Configure Outbound internet proxy setting	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1322	TO_S4H_1.1.02 PCE	Integration of users and standard business roles	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1323	TO_S4H_1.1.03 PCE	SSL configuration	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1324	TO_S4H_1.1.04 PCE	Webservices activation - SICF, odata, SOAMANGER, RFC	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1325	TO_S4H_1.1.05 PCE	IMG/SPRO activities	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1326	TO_S4H_1.1.06 PCE	Fiori enablement tasks	Standard Services	Default integration tasks during provisioning only.	n/a	n/a
1327	TO_S4H_1.1.07 PCE	SLD configuration - RZ70 and Business system configuration	Standard Services	For Ariba Integration starter pack only. Default integration tasks during provisioning only.	n/a	n/a
1328		X57 - SAP Cloud Application Lifecycle Management (CALM)			.	.
1329		Installation and Configuration			.	.
1330	TO_CALM_1.1.01	Request and provision	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Core Operations for SAP Cloud ALM	A1, O2
1331	TO_CALM_1.1.02	Basic setup	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations	A1
1332	TO_CALM_1.1.03	Set-up connectivity to CALM	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Core Operations for SAP Cloud ALM	A1, O2
1333	TO_CALM_1.1.04	Set-up connectivity to Cloud TMS	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Application Operations or Core Operations for SAP Cloud ALM	A1, O2
1334	TO_CALM_1.1.05	Set-up Change and Deployment Management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Customer Deployment Planning and Execution	DP2
1335	TO_CALM_1.1.06	Set-up test management	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Regression Testing	T1

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1336		X58 - SAP Teamcenter by Siemens				
1337		Installation and Configuration				
1338	TO_TC_1.1.03	CAD integration (Solidworks, NX etc.)	Excluded Tasks	Client builds of CAD integration are not included. Installation of the CAD integrations are included as part of the License Feature Extension Service as these are additional add-ons to the base build.	n/a	n/a
1339	TO_TC_1.1.04	Build client	Excluded Tasks	All 4-Tier client builds on customer desktops are excluded.	n/a	n/a
1340	TO_TC_1.1.05	BMIDE client	Excluded Tasks	Customer responsible for managing the BMIDE installation on their desktop.	n/a	n/a
1341	TO_TC_1.1.08	Restart Teamcenter infrastructure	Standard Services	As part of planned maintenance or issue resolution.	n/a	n/a
1342	TO_TC_1.1.09	Rebuild indexing service	Additional Service	If indexes need to be rebuilt or repaired. Can be triggered to rebuild itself from the command line utility.	n/a	n/a
1343	TO_TC_1.1.12	Update / patch Teamcenter components - minor components only	Standard Services	Minor version/patch update of the Teamcenter application. (E.g.: X.2.1 to X.2.2, X.2.1 to X.3.2). Technical upgrade only.	n/a	n/a
1344	TO_TC_1.1.13	Revision upgrade of Teamcenter components - major components only	Additional Service	Major version upgrade of the Teamcenter application. (E.g.: Teamcenter 13.3 to 14.1/14.2). Technical upgrade only.	n/a	n/a
1345	TO_TC_1.1.14	License Feature Extension	Additional Service	Extend the installed features of the Teamcenter application to include elements purchased by the customer outside those of the standard build.	n/a	n/a
1346	TO_TC_1.1.19	Create new users	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Creation of new client user in the system. For bulk population of the Teamcenter system using the Make_user scripts and Excel based User / Role / Group definition template. Customer is responsible for the population of the template; Service Provider will execute the scripts.	Application Operations for SAP Teamcenter by Siemens	A4
1347	TO_TC_1.1.20	Create new groups	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Creation of new client groups in the system. For bulk population of the Teamcenter system using the Make_user scripts and Excel based User / Role / Group definition template. Customer is responsible for the population of the template; Service Provider will execute the scripts.	Application Operations for SAP Teamcenter by Siemens	A4
1348	TO_TC_1.1.21	Create new roles	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Creation of new client role groups in the system. For bulk population of the Teamcenter system using the Make_user scripts and Excel based User / Role / Group definition template. Customer is responsible for the population of the template; Service Provider will execute the scripts.	Application Operations for SAP Teamcenter by Siemens	A4
1349	TO_TC_1.1.22	Apply ADA license configuration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Manage user license assignment within the application. ADA licenses are required for complex data access scenarios where specific licenses are required to be able to view and consume information. Requires user administration and license assignment.	Application Operations for SAP Teamcenter by Siemens	A4
1350	TO_TC_1.1.23	Teamcenter license assignment	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Management and application of licenses to users within Teamcenter.	Application Operations for SAP Teamcenter by Siemens	A4
1351	TO_TC_1.1.24	Activate/de-activate users	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Activating and deactivating user accounts. A deactivated account will no longer be able to login to Teamcenter, however data owned or records about the user are retained in the system. Unused licenses are returned to the pool.	Application Operations for SAP Teamcenter by Siemens	A4
1352	TO_TC_1.1.25	Deploy BMIDE template	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	A deployment package is created by the customer for deployment following the configuration extension of Teamcenter. The BMIDE application is used to trigger a deployment of the configuration in to the specific environment required. This action should be preceded with a system backup.	Application Operations for SAP Teamcenter by Siemens	A4
1353	TO_TC_1.1.26	Deploy development configuration to production system	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Copy the development environment and deploy configuration to PRD as part of Release Management.	Application Operations for SAP Teamcenter by Siemens	A4
1354	TO_TC_1.1.27	Manage BMIDE template	Excluded Tasks	Customer responsibility to manage and maintain the source BMIDE template and to verify the template being deployed.	n/a	n/a
1355	TO_TC_1.1.29	Create new volume	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create a Teamcenter volume for data storage.	Application Operations for SAP Teamcenter by Siemens	A4
1356	TO_TC_1.1.30	Setup volume access	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Enable user access to Teamcenter volume.	Application Operations for SAP Teamcenter by Siemens	A4
1357	TO_TC_1.1.31	Change group volume access	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Change group access to Teamcenter volume.	Application Operations for SAP Teamcenter by Siemens	A4
1358	TO_TC_1.1.34	Administrate locked workflows	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Resolve locked workflows.	Application Operations for SAP Teamcenter by Siemens	A4
1359	TO_TC_1.1.36	Troubleshoot Teamcenter system performance issues (technical root causes within cloud service scope)	Standard Services	Based on the result of an initial assessment. Troubleshooting by Service Provider is only performed in situations caused by technical issues within the service scope and where the system performance lies outside usual and expectable behavior (e.g. as it has shown in the past in comparable load situations).	n/a	n/a

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1360	TO_TC_1.1.37	Create classification hierarchy	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create structure inside Teamcenter that enable the user to associate a business object for the purpose of reuse, easy identification or definition of common parts structures.	Application Operations for SAP Teamcenter by Siemens	A4
1361	TO_TC_1.1.38	Create new classification attribute	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Create information required about business objects being classified under this branch of the hierarchy.	Application Operations for SAP Teamcenter by Siemens	A4
1362	TO_TC_1.1.39	Classify information	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Ability to associate and populate the business object to the classification structure.	Application Operations for SAP Teamcenter by Siemens	A4
1363	TO_TC_1.1.40	Remove classified data	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Removal of an object classification.	Application Operations for SAP Teamcenter by Siemens	A4
1364	TO_TC_1.1.41	Remove classified hierarchies	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Remove branches of the classification structure.	Application Operations for SAP Teamcenter by Siemens	A4
1365	TO_TC_1.1.42	Workflow import	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Import workflows.	Application Operations for SAP Teamcenter by Siemens	A4
1366	TO_TC_1.1.43	Workflow export	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.	Export workflows.	Application Operations for SAP Teamcenter by Siemens	A4

Row	Identifier	Task	Responsibility	Remarks	CAS Package	Package Code
1367		X59 - SAP Signavio Process Insights				
1368		Installation and Configuration			.	.
1369	TO_SBPi_1.1.01	Provision Signavio Process Insights on BTP in the respective Subaccount	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1370	TO_SBPi_1.1.02	Manage required technical users in S/4HANA for Signavio Process Insights integration	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1371	TO_SBPi_1.1.03	Manage integration with S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1372	TO_SBPi_1.1.04	Manage the Data Collector Jobs in S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1373	TO_SBPi_1.1.05	Manage the PUSH Data Provider in S/4HANA	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1374	TO_SBPi_1.1.06	Onboard Users in Identity Authentication Service related to Signavio Process Insights	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1375	TO_SBPi_1.1.07	Assign Roles to Users related to Signavio Process Insights	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1376	TO_SBPi_1.1.08	Activate standard predefined business process Key Performance Indicators (KPIs)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1377	TO_SBPi_1.1.09	Configure of thresholds for standard predefined business process Key Performance Indicators (KPIs)	SAP Cloud Application Services ("CAS") available at additional charge. Needs to be performed by customer if applicable and if the SAP CAS Service is not used.		Business Improvement Foundation	B1
1378		X60 - SAProuter for Integration Scenarios				
1379		Installation and Configuration			.	.
1380	TO_SR_1.1.01	Install SAProuter	Standard Services		n/a	n/a
1381	TO_SR_1.1.02	Configure saprouttab file	Standard Services	Configure saprouttab entries based on integration scenarios: SAP SuccessFactors Employee Central Payroll or SAP GTS SEEBURGER Cloud Integration.	n/a	n/a
1382	TO_SR_1.1.03	SAProuter availability monitoring	Standard Services		n/a	n/a
1383	TO_SR_1.1.04	Non-SNC communication monitoring	Standard Services	Communication apart from integration scenarios: SAP SuccessFactors Employee Central Payroll or SAP GTS SEEBURGER Cloud Integration will generate alert.	n/a	n/a
1384		X61 - SEEBURGER Cloud Integration for SAP Global Trade Services (GTS)				
1385		Installation and Configuration			.	.
1386	TO_SEE_1.1.01	SEEBURGER tenant creation	Excluded Tasks	Customer must make request to the SEEBURGER Team to create tenants in the SEEBURGER Cloud. This includes coordination with the SEEBURGER team to obtain necessary IPs to be allowlisted, SNC name, and certificates, etc.	n/a	n/a
1387	TO_SEE_1.1.02	Establish communication with backend	Standard Services	Post installation of SAProuter refer TO_SR_1.1.01 and TO_SR_1.1.02. Update the SNC name and SEEBURGER IPs in saprouttab file to allow communication with backend SAP GTS system.	n/a	n/a
1388	TO_SEE_1.1.03	Establish communication between load balancer and SAProuter	Standard Services	Add SAProuter in backend pool of LoadBalancers (Application LoadBalancer & Network LoadBalancer) and allowlist the SEEBURGER tenant IPs which is provided by customer to facilitate communication. To setup LB refer to TO_LRP_1.1.01	n/a	n/a
1389	TO_SEE_1.1.04	ABAP System tasks	Excluded Tasks	Customer will be enable SNC (with recommended parameters for security hardening), creating RFC in the backend SAP GTS system and maintaining partner profiles as per business need. Customer will also update the certificates on the ABAP side received from SEEBURGER end and allow SAProuter host to register program on gateway in gateway ACL files (secinfo and reginfo). SOAManager configuration will be done by Customer. Customer should exchange ABAP system certificate with SEEBURGER and share ABAP system SNC name for the configuration. SEEBURGER Team will provide required templates.	n/a	n/a
1390		X62 - SAP SuccessFactors: Employee Central Payroll - Integration				
1391		Installation and Configuration			.	.
1392	TO_SF_1.1.01	SAProuter Registration at SuccessFactors	Standard Services	Post SAProuter installation, create a ticket under component XX-SER-NET-NEW to register managed SAProuter. Refer to "Setting Up an SNC-Based SAProuter Connection for Employee Central Payroll Systems" guide for the template. Customer must ensure that the public IP is assigned to SAProuter via LoadBalancer.	n/a	n/a
1393	TO_SF_1.1.02	Allowlist SuccessFactors ECP IP	Standard Services	Refer to "Setting Up an SNC-Based SAProuter Connection for Employee Central Payroll Systems" guide to get the SuccessFactors ECP IP addresses based on regions.	n/a	n/a
1394	TO_SF_1.1.03	Import PSE to SAProuter	Standard Services	Download generated PSE from SAP For Me - saproutercertificate (formerly known as ONE Support Launchpad).	n/a	n/a

Service Cluster	SAP Cloud Application Services (SAP CAS) Package Scope	Package Name	Package Code	Link to SAP.com
Continuous Operations	SAP CAS for application operations	Application Operations	A1	Service Description
	SAP CAS for SAP BTP core operations	SAP BTP Core Operations	A3	Service Description
	SAP CAS for application operations for SAP Teamcenter by Siemens	Application Operations for SAP Teamcenter by Siemens	A4	Service Description
Business Improvement	SAP CAS for customer - specific scope	Business Improvement Foundation	B1	Service Description
Data Management	SAP CAS for customer - specific scope	Data Integration	D2	Service Description
	SAP CAS for customer - specific scope	Data Lifecycle Management	D3	
	SAP CAS for customer - specific scope	Data Quality Management	D4	
	SAP CAS for customer - specific scope	Data Management for BRIM	D7	
	SAP CAS for data quality optimization	Data Quality Optimization	D5	Service Description
	SAP CAS for data volume optimization	Data Volume Optimization	D6	Service Description
Deployment Management	SAP CAS for customer - specific scope	Customer Deployment Strategy	DP1	Service Description
	SAP CAS for customer - specific scope	Customer Deployment Planning and Execution	DP2	
	SAP CAS for customer - specific scope	Solution Manager - ChaRM	DP3	
Functional Application Management	SAP CAS for customer - specific scope	Functional Application Management	F1	Service Description
Advanced Monitoring	SAP CAS for application monitoring	Application Monitoring	M1	Service Description
	SAP CAS for customer - specific scope	Customer Application Monitoring	M2	Service Description
	SAP CAS for customer - specific scope	Advanced Job Management	M3	
Operations Improvement	SAP CAS for customer - specific scope	Cloud Optimization	O1	Service Description
	SAP CAS for core operations for SAP Cloud ALM	Core Operations for SAP Cloud ALM	O2	Service Description
Performance Management	SAP CAS for customer - specific scope	Performance Testing	P1	Service Description
	SAP CAS for customer - specific scope	Performance Optimization	P2	
	SAP CAS for customer - specific scope	Database Performance Management	P3	
	SAP CAS for core performance management	Core Performance Management	P4	Service Description
Release Management	SAP CAS for release version upgrades	Release Version Upgrades	RM1	Service Description
Advanced Security and Compliance	SAP CAS for application security updates	Application Security Updates	S1	Service Description
	SAP CAS for customer - specific scope	Secure Users & Authorizations	S2	
	SAP CAS for customer - specific scope	Segregation of Duties Check	S3	
	SAP CAS for customer - specific scope	Audit Readiness	S4	
	SAP CAS for customer - specific scope	Security Risk Check	S6	
	SAP CAS for customer - specific scope	Security for Interface	S7	
	SAP CAS for customer - specific scope	Application Security Monitoring	S8	
	SAP CAS for customer - specific scope	Enterprise Threat Detection	S9	
Test Management	SAP CAS for regression testing	Regression Testing	T1	Service Description
	SAP CAS for cloud integration testing	Cloud Integration Testing	T2	Service Description
	SAP CAS for customer - specific scope	SAP S/4HANA Interface Testing	T3	Service Description
	SAP CAS for customer - specific scope	SAP Integration Suite Testing	T4	Service Description

**ENHANCED OPERATIONS SERVICE FOR LARGE ENTERPRISES
FOR RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION
SERVICE DESCRIPTION DOCUMENTATION**

Enhanced operations service for large enterprises for RISE with SAP S/4HANA Cloud, private edition, tailored option applies to Customers that have purchased these optional services, to the extent available, in connection with its subscription to RISE with SAP S/4HANA Cloud, private edition, tailored option Cloud Services under an applicable Order Form. The services described herein either enhances or expands “Standard Services” in the Roles and Responsibilities Documentation and, for clarity, will not apply to any SAP Cloud Application Services subscribed to by Customer.

1. DEFINITIONS

Definitions used but not defined in this Service Description shall have the meaning ascribed to them in the agreement under which Customer purchased the services.

“**System**” means one or more interrelated and interdependent components such as databases, servers, networks, load balancers, web dispatchers, tenants, etc. which are used to operate a tier. Each combination of components used within each tier is equivalent to one System.

2. ENHANCED ENGAGEMENT, GOVERNANCE AND COLLABORATION MODEL

2.1. SAP will establish an ECS Customer Core Team (“CCT”) that consists of the following roles:

- One dedicated Technical Service Manager who is familiar with the technical landscape
- One dedicated Client Delivery Manager
- One named SAP Architect
- One named Database Engineer
- One named Infrastructure Engineer

2.2. Each dedicated role is staffed with personnel that has only one customer assignment, and these resources will work with Customer on an ongoing basis. Each named role is staffed with personnel that have multiple customer assignments; however, these named roles have less customer assignments than personnel in the same unnamed role. All dedicated resources will have an availability during Local Time on Business Days (each, as defined in the Service Level Agreement).

2.3. The CCT will assist Customer with planning and coordinating tasks that are marked as “Standard Services” in the Roles and Responsibilities Documentation while factoring in Customer’s specific business requirements and the SAP solution landscape.

2.4. The CCT will also deliver or facilitate several additional deliverables not included in the Standard Services. These are described in subsequent sections of this Service Description Documentation.

2.5. **Scope of Dedicated Landscape Ownership Services.** The CCT is responsible for the following additional tasks:

- Maintain close communication with Customer, the migration consultants, and internal teams during the system/landscape migration phase.
- Assist Customer with responsibility matrix.
- Notify Customer of the ECS contacts responsible for upcoming operations and migration-related events.
- Supervise the completion of dependent tasks for Dry RUN, MOCK cutover & Go-Lives.
- Plan critical activities and assist Customer with these activities through completion, (e.g., pre- and post-validation inspections for the Brownfield migration (for example, SAP note 3089798)).
- Provide migration documentation, which may include observations and lessons learned.
- Advise Customer on typical technical and service requirements that may arise during migration projects such as: storage provisioning, file transfer options, BLOB access, network configuration, ad hoc backups and restores, and other subjects during the migration process.
- Oversee the migration server throughout its life cycle, from procurement through decommissioning.

3. ENHANCED KPI FRAMEWORK

The Service Quality Framework will include additional KPIs and KPI objectives as set forth in the table immediately below. SAP shall track and report to Customer the KPIs set forth herein in a monthly summary report.

KPI	Description	KPI Objectives
Root Cause Analysis Delivery Time	Delivery time for root cause analysis for a production System outage	Delivered within 10 Business Days of a production System outage
Incident Resolution Time	Resolution time for Incidents (as defined in the Service Level Agreement) classified as Very High	Provide a resolution within 4 hours for 80% of Incidents classified as Very High
Initial Customer Communication	Delivery time for notifications after a confirmed production System outage	Within 15 minutes after a confirmed production System outage
OS Online Security Patch Compliance	Percentage of available online security patches for the operating system that are implemented within 4 weeks after release by the SAP Security team in the monthly patch list	90%
Adherence to Schedule	Performance of service requests in adherence to agreed-upon start time and within the Agreed Downtime (as defined in the Service Level Agreement) and Maintenance Windows (as defined in the Order Form)	80% of service requests
First Time Right	Achieve reasonably expected outcome given the nature of the service request in the first attempt to deliver the service request	80% First Time Right Rate
Landscape-wide System Availability	System Availability Percentage (as defined in the Service Level Agreement) of the entire SAP solution landscape measured at the end of each subscription year (excluding Excluded Downtime, as defined in the Service Level Agreement) and in accordance with the System Availability Percentage calculation in the Service Level Agreement	99,95% for production Systems
Adherence to Plan and Schedule	Deliver service requests and maintenance activities within Agreed Downtimes and Maintenance Windows	90% of service requests and maintenance activities
Change Success Rate	Successfully implement changes	90% changes

3.1. If one or more of the KPIs set forth above are not met, Customer may notify the assigned SAP account manager and request to analyze the KPI metric statistics based on the monthly summary report provided by SAP.

3.2. SAP will then promptly:

3.2.1. determine the root cause or possible root cause of the failure (if known) to meet the KPI; and

3.2.2. unless failure is excused, develop a corrective action plan, and submit such plan to Customer for written approval (which will not be unreasonably withheld or delayed) and, following Customer's written approval implement the plan within a reasonable period (and in accordance with any agreed timescales).

4. ENHANCED SECURITY THROUGH LOGSERV

4.1. LogServ enables Customer to collect and centralize logs generated by the Cloud Service from all Systems and applications that are in use. LogServ provides the following capabilities:

- Near real-time log collection,
- Ability to integrate with Customer's SIEM or Log Management system, and
- Log recovery.

4.2. The standard retention policy is one year; however, this retention policy may be extended via a Change Request (as described in the Order Form) and subject to additional fees.

5. PERFORMANCE BENCHMARKING SERVICE

5.1. **Performance Benchmarking Service.** Customer and SAP will jointly determine the scope for the Performance Benchmarking Service. Customer may select up to 5 business transactions for each System, and where such transactions are limited to SAP solutions on an SAP NetWeaver ABAP platform. Customer and SAP will jointly determine the appropriate timeframe to conduct the actual benchmark measurements. The approach includes three types of benchmark measurements called check points:

- Check Point 1 ("CP1"): CP 1 is applicable to new brownfield Customers only. This report includes the initial assessments of Customer's landscape based on the mutually agreed metrics between Customer and SAP. CP1 will be measured at the legacy data center before the migration to the Cloud Service starts. CP1 serves as a comparison after onboarding to the Cloud Service is completed.
- Check Point 2 ("CP2"): This report is generated using the method like CP1; however, the benchmark measurement will be performed in the Cloud Service after onboarding is completed. CP2 serves as the actual reference point for all subsequent check points in the Cloud Service.
- Check Point 3 ("CP3"): CP3 consists of a quarterly benchmark measurement and a report, which allows a comparison between CP2 and previously conducted CP3 benchmarks. Deviations from past benchmark measurements will be investigated and, depending on the identified root cause and significance, countermeasures can be proposed either by Customer or SAP.

5.2. The following services are out of scope:

- Performance optimization
- Benchmarks for non-SAP solutions and business transactions beyond the functionality that is delivered with the Cloud Service by SAP out of the box

5.3. The following are key deliverables for the Performance Benchmarking Service:

- Initial and quarterly benchmark measurement of selected transactions
- Quarterly report on benchmark measurement outcomes
- Joint evaluation of results
- Root cause analysis in case of deviations for the technical stack only
- The Performance Benchmarking Service will be delivered for up to 3 productive systems

5.4. Roles and Responsibilities

Task	SAP	Customer
Determine scope and scheduling of benchmark measurement	R	R
Perform benchmark measurements and document results	R	
Discuss outcomes with Customer	R	
Identify root causes in case of deviations for the technical stack	R	
Identify root causes in case of deviations for SAP application, usage and user behavior		R
Implement changes**	Depending on nature of identified root cause	Depending on nature of identified root cause

** Capacity changes are subject to a Change Request and additional fees

6. HYPERCARE SERVICE

6.1. The HyperCare service requires a lead time of 3 weeks, and includes 1 HyperCare service period, which is a period of 4 consecutive weeks, ("HyperCare Service Period") per production system per subscription year. Additional hours for the HyperCare Service Period may require a Change Request and be subject to additional fees. Only the following technical components are in scope for the HyperCare service:

- SAP NetWeaver,
- Database (SAP HANA, SAP ASE), and

- Underlying operating system and infrastructure.

6.2. The HyperCare service includes the following deliverables:

Hypercare Service	Description of HyperCare Service Deliverables
System Health Assessment	Perform system health assessment checks once per day in the System, document findings and discuss the corrective actions with Customer.
HANA Mini Check	If requested by Customer, the SAP HANA Mini checks/Sybase Check is included for critical systems as part of the HyperCare service. SAP will perform a periodic run of the SAP HANA Mini/Sybase Check to provide a clear and consistent view of improvements needed to achieve better performance.
Sizing Improvement & Guidance	Provide capacity planning data based on system checks to support Customer's decision-making process regarding system health and sizing. This is in addition to the quarterly report delivered to Customer as part of the underlying Cloud Service. A System Initial Check is the starting point for this analysis, and this requires sufficient lead time.
Basis Performance Assessment	Provide system assessment and recommendations at the SAP NetWeaver, SAP HANA, and operating system levels. This is performed up to 3 times during the HyperCare Service Period.
End-User Performance	Perform joint analysis and assessment of end user performance issues with Customer and involve required SAP support organizations.
Support & Ticket Analysis	Evaluate all OSS/Support messages that were submitted during a period of twelve to sixteen consecutive weeks prior to the commencement of the HyperCare service to determine, analyze, and identify issues for any SID or complete landscape, and subject to the scope selected by Customer.
Support Volume Stress Test	For any volume stress tests performed by Customer, SAP will support Customer with special monitoring at specific intervals and with SAP-relevant requests. SAP will provide recommendations based on its monitoring.

7. PROACTIVE OPERATIONS SERVICES

SAP will also deliver a set of proactive services as set forth in the table immediately below.

Proactive Operations Services	Description of Proactive Operations Services Deliverables
Proactive Monitoring & Alerting	• Perform a weekly in-depth analysis of alerts raised by the monitoring tool, and • Establish a timely alert reduction program with key stakeholders and operation teams.
Enhanced capacity planning and management	• Conduct weekly inspections to identify important resources with a resource ceiling ahead of time and to provide additional resources to push the bottleneck to higher demand levels. Additional resources require a Change Request and is subject to additional fees. • On a monthly basis, provide Customer with a summary of its data growth and trend analysis. • Examine cost-saving options for data cleansing and shrinking after determining the largest objects in the database.
Weekly service review and planning session	SAP will conduct a weekly service review and planning session with Customer. Such topics may include service performance review, alignment of service needs and requests, project planning and coordination, and discussion of Change Requests.

8. MAINTENANCE DOWNTIME MINIMIZATION

This service makes use of advanced tools and methods to implement updates to the Cloud Service to minimize required downtime. The applicability and feasibility must be individually determined for each System. The optimal approach will then be aligned with Customer.

9. SERVICE LANGUAGE

The services are provided in English only.

DISASTER RECOVERY SERVICES AND CUSTOMER INVOKED FAILOVER SERVICES FOR PRIVATE CLOUD EDITION SERVICES AND TAILORED OPTION SERVICES SERVICE DESCRIPTION DOCUMENTATION

The following services apply to Customers that have purchased these optional services, to the extent available, in connection with its subscription to SAP ERP, private cloud edition, RISE with S/4HANA Cloud, private edition, SAP ERP, private cloud edition, tailored option, or RISE with S/4HANA Cloud, private edition, tailored option under an applicable Order Form.

1. DISASTER RECOVERY SERVICES

1.1. Definitions

Definitions used but not defined in this Service Description shall have the meaning ascribed to them in the agreement under which Customer purchased the services.

“Disaster” means an event of substantial extent causing significant disruption of the delivery of the Cloud Services and may include physical damage or destruction, to the SAP data center or Computing Environment (as defined in the SLA). Disasters can be natural disasters (such as floods, hurricanes, tornadoes or earthquakes) and/or human-induced disasters (including hazardous material spills, infrastructure failure, and bio- terrorism). A Disaster is typically not limited to one individual system or landscape but larger parts of an infrastructure.

“Disaster Recovery Services” (or “DR Services” or “DR”) means the disaster recovery service, process, policies and procedures initiated by SAP that are related to preparing for recovery or continuation of technology or infrastructure identified in the applicable Order Form as included in the DR Services. DR is not a process to overcome outages of isolated systems due to hardware or software incidents (i.e., DR is not a substitute or replacement for System Availability Service Levels (as defined in the SLA).



“Short Distance DR” means a Disaster Recovery Service in which SAP uses synchronous replication (if possible) between primary and failover systems. This typically means that the secondary data center is less than 50 to 80km away from the primary data center, providing lower cost and smaller RPO but more risk regarding a local disaster impacting both data centers.¹

“Long Distance DR” means a Disaster Recovery Service in which SAP uses asynchronous replication only between primary and failover systems. This typically means that the secondary data center is over 50 to 80km away from the primary data center, to minimize risk of a local disaster affecting both data centers.¹

“RPO” (or “Recovery Point Objective”) means the maximum period in which Customer data may be lost due to a Disaster (i.e. time between last backup or last data replication and point in time a Disaster occurred). RPO mainly depends on the replication mechanism between primary and failover systems. Synchronous replication results in RPO=0 but is only applicable for Short Distance DR. Asynchronous replication, typically for Long Distance DR, will result in RPO=30 minutes.

“RTO” (or “Recovery Time Objective”) means the duration of time in which the PRD system is unavailable in the event of a Disaster (i.e. time between a Disaster and point in time the systems are available again).

- 1.2. If purchased by Customer, SAP will provide Disaster Recovery Services as outlined herein for PRD systems, and for Tailored Option Services (as defined in the Supplement), specifically for those PRD systems indicated in the

¹ Unless otherwise indicated herein, the distances/regions and conditions can be different if a hyperscale service such as Amazon Web Services, Microsoft Azure or Google Cloud is used to provision the Cloud Service. See <https://aws.amazon.com/compliance/data-center/data-centers/>, <https://azure.microsoft.com/global-infrastructure> or <https://cloud.google.com/compute/docs/regions-zones/> for additional information.

System Set-Up Table of Customer's Order Form. SAP's provisions of the DR Services are contingent upon Customer fulfilling certain prerequisites and conditions. SAP shall be excused from its DR Services obligations to the extent (and for the duration during which) Customer fails to fulfill any of the following pre-requisites and such failure prevents SAP from performing the applicable DR Services:

- 1.2.1. The applicable components are technically used as provided by SAP; any custom or third party developments or modifications affecting applicable components are not covered (excluding development/modifications done in ABAP only systems using SAP ABAP standard development tools, and excluding any third party products embedded in the SAP software).
- 1.2.2. The applicable systems stay within boundaries regarding size and layout as set forth in the Agreement.
- 1.2.3. Interfaces in DR scope are limited to interfaces/protocols supported by SAP systems out of the box (e. g. RFC, web service calls, Flat Files, XML and IDocs) for components located in the data center. Any interfaces that require additional solutions or components within the Computing Environment, as well as external connectivity, are outside of the DR Services scope.
- 1.2.4. All repositories containing Customer Data that need to be replicated to the DR site are databases; otherwise, RPO times can be substantially longer, thus does not fall under the definition of standard DR Services.
- 1.3. For Tailored Option Services, the DR Services RTO/RPO options are set forth in the table below. Generally, the standard RTO is 12 hours, but RTO of 4 hours may be available for defined scenarios if agreed by the parties in the Order Form. For Tailored Option Services, the DR Services option purchased for the respective components is stated in the relevant column of the System Set-Up Table in the Order Form via the applicable designation set forth in the table below.

DR designation in Order Form*	RTO	RPO
Blank	none	none
DR_12h_30m	12h	30 min
DR_4h_30m	4h	30 min
DR_12h_0m	12h	0 min
DR_4h_0m	4h	0 min

*The former DR designations for those listed in the table above are the following respectively: blank, DR_12h_30, DR_4h_30, DR_12h_0, and DR_4h_0.

- 1.4. If Customer has purchased the optional Disaster Recovery services for RISE with S/4HANA Cloud, private edition or SAP ERP, private cloud edition, the RTO is 12 hours and RPO is 30 minutes for Long Distance DR, and the RTO is 12 hours and the RPO is 0 minutes for Short Distance DR. For Google Cloud and Microsoft Azure, Short Distance DR is only available in selected regions and for Amazon Web Services, Short Distance DR is available in SAP enabled regions. If Customer has purchased the optional SAP S/4HANA Cloud, 4 hour recovery time objective, private edition or SAP ERP, 4 hour recovery time objective, private cloud edition the RTO is 4 hours (instead of 12 hours) and the RPO remains unchanged as indicated in this section.
- 1.5. While operating under DR Services, the System Availability Service Level (as defined in the SLA) for the PRD environment is 99%. If SAP fails to meet this System Availability Service Level, Customer is entitled to claim a Credit as described in the SLA.
- 1.6. **Other DR services are not in the scope of SAP's standard DR Services.** For Tailored Option Services, if requested by the Customer, such additional DR Services ("Additional DR Services") would need to go through a further DR assessment based on Customer architecture and requirements. Details on the implementation of any such Additional DR Services would be agreed upon with Customer, including revised estimated failover times and maximum data loss, and the parties would mutually agree to the applicable RPO and RTO for such Additional DR Services as result of the implementation in a Change Request or an amendment to the Order Form. As part of this process, SAP would use reasonable efforts to bring RTO/RPO for the System Setup as defined in the Order Form

in a similar range as for the defined packages. These Additional DR Services are not available for SAP ERP, private cloud edition, and RISE with S/4HANA Cloud, private edition.

- 1.7. **Regular DR Testing.** SAP offers one annual DR failover-test as part of the DR Services to test the DR Services. SAP shall promptly re-perform any DR recovery tests that fail to achieve the applicable standards and report any failures to Customer. For DR Services readiness, Customer will fulfill its infrastructure and business preparation as set forth in the Order Form, and as may be further mutually agreed between the parties in a Change Request or amendment to the Order Form. Customer business continuity objectives may require additional Customer efforts in addition to and beyond the scope of the Cloud Services and/or DR Services hereunder. Each Disaster Recovery Service implementation requires Customer's testing and causes additional Agreed Downtimes (as defined in the SLA). The System Availability calculation for the affected month(s) shall exclude these additional Agreed Downtimes.
- 1.8. **Disaster Recovery Services for SAP Content Server.** DR Services for SAP Content Server ("CSDR") is an optional service available only for Tailored Option Services. If purchased by Customer, SAP will provide DR Services for SAP Content Server with an RTO of 12 hours and an RPO of 90 minutes. CSDR is stated in the relevant column of the System Set-Up Table in the Order Form using the CSDR designation DR_12h_90m or DR_12h_90. SAP Content Server is only available with the SAP MaxDB database.
- 1.9. **Disaster Recovery Services for Convergent Mediation by DigitalRoute.** DR Services for SAP Convergent Mediation by DigitalRoute ("CMDR") is available for RISE with SAP S/4HANA Cloud, private edition; SAP ERP, private cloud edition; and Tailored Option Services. SAP will provide CMDR with an RTO of 12 hours and an RPO of 24 hours. For Tailored Option Services, CMDR is stated in the relevant column of the System Set-Up Table in the Order Form using the CMDR designation DR_12h_24h.

2. **OPTIONAL CUSTOMER INVOKED FAILOVER ("CIF") SERVICES FOR TAILORED OPTION SERVICES**

CIF services is an optional service available only for Tailored Option Services which can be agreed between SAP and Customer for certain components as set forth in the System Set-Up Table of the Order Form in addition to DR Services (DR Services is a pre-requisite for CIF services). For components for which Customer purchases CIF services, Customer may initiate the failover/failback between the primary data center and secondary data center (normally used for DR Services) without the occurrence of a Disaster.

The respective components for which CIF services is purchased will be marked with the "CIF" designation appended to the DR designation in the System Set-up Table. By way of example, a CIF services designation of "DR_12h_0m_CIF" or "DR_12h_0_CIF" means that Customer may invoke CIF services without the occurrence of a Disaster for that component and for which the agreed upon DR Services has an RTO of 12 hours and an RPO of 0 minutes.

CIF services is only available for select configurations and data centers. Pre-requisites, technical requirements and scenarios for which CIF services can apply depend on the concrete technical solution for the DR Services and are described in additional documentation.

For clarity, while operating under CIF services, the System Availability Service Level for the PRD environment is 99%. If SAP fails to meet this System Availability Service Level, Customer is entitled to claim a Credit as described in the SLA.

**CLOUD APPLICATION SERVICES FOR SAP HANA ENTERPRISE CLOUD ADVANCED EDITION;
RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION;
SAP ERP, PRIVATE CLOUD EDITION, TAILORED OPTION;
RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION; AND
SAP ERP, PRIVATE CLOUD EDITION
SERVICE DESCRIPTION DOCUMENTATION***

Application Operations

1. SCOPE OF CLOUD APPLICATION SERVICES (CAS)

SAP will provide CAS services as described herein for the SAP cloud environment systems and related system landscape in scope subject to the usage metric volume purchased by Customer as set forth in the applicable order form.

Solution Scope

SAP will provide support of application operations in the SAP Cloud environment.

Approach and Activities

SAP will conduct this service as follows:

- SAP will provide continuous administrative support of systems in the SAP Cloud environment, including investigation and resolution of technical application related issues.
- SAP will provide incident resolution and troubleshooting for technical incidents as detailed in the RACI Matrix for items not included as Standard Services per R&R definition.
- SAP will perform changes to technical system configuration as detailed in the RACI Matrix for items not included as Standard Services per R&R definition.
- SAP will perform service request fulfillment for application operations tasks as detailed in the RACI Matrix for items not included as Standard Services per R&R definition.

Exclusions

The following services are not included:

- Application implementation services are not in scope.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

2. USAGE METRIC OF CLOUD APPLICATION SERVICES (CAS)

<u>Service Scope item</u>	<u>Usage Metric</u>
Application Operations	Ticket (A Ticket is the electronic documentation of any support request addressed by Customer to SAP. Each Ticket is given a number at the point of time it is created. The Ticket number will be the single reference to the Customer's request.)

3. CUSTOMER RESPONSE LEVELS

CAS Service Hours and Service Language

Service Desk	English: 24 x7 Japanese: Mon-Fri, 9.00 a.m - 6.00 p.m. JST (UTC +9)
Service Delivery	Inherits service hours from parent contract for PRD and NON-PRD systems

CAS Initial Reaction Time ("IRT")

Initial Reaction Time SLA for reactive Ticket based services can be agreed as and only if specified in the applicable Order Form.

CAS Ticket Priority	Service Level – Initial Reaction Time (within Service Hours set forth above)
Priority Very High (only applicable for PRD)	20 min
Priority High	2 hours
Priority Medium	4 hours
Priority Low	1 Business Day Local Time

- Ticket priority Very High and High are reserved for Incidents only.
- Service Requests will be opened by default with ticket priority Medium (Standard) or Low.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

Incident Priorities

The following priority levels apply to all Incidents. Priority is assigned by Customer and may be re-assigned by SAP based on the criteria below.

- **Very High** – An Incident should be categorized with the priority "Very High" if the incident reported has very serious consequences for normal business processes or IT processes related to core business processes, and urgent work cannot be performed. This is generally caused by the following circumstances:
 - A production system is completely down.
 - The imminent go-live or upgrade is jeopardized.
 - The core business processes of Customer are seriously affected.
 - A Workaround is not available.
 - The incident requires immediate processing because the malfunction may cause serious losses.
- **High** – An Incident should be categorized with the priority "High" if normal business processes are seriously affected. Necessary tasks cannot be performed. This is caused by incorrect or inoperable functions in the CAS Environment required immediately. The Incident is to be processed as quickly as possible because a continuing malfunction can seriously disrupt the entire productive business flow.
- **Medium** – An Incident should be categorized with the priority "Medium" if normal business processes are affected. The problem is caused by incorrect or inoperable functions in the CAS Environment. The Customer orders a change to or a service for an existing critical business process.
- **Low** – An incident should be categorized with the priority "Low" if the problem has little or no effect on normal business processes. The problem is caused by incorrect or inoperable functions in the CAS Environment that are not required daily or are rarely used. This priority is also used for any other Service Request.

4. CUSTOMER'S RESPONSIBILITIES, COLLABORATIVE AND COOPERATIVE DUTIES

- a) SAP's provision of the CAS service is subject to Customer fulfilling its responsibilities described in the applicable RACI Matrix Documentation.
- b) Customer must provide a shared support user (via SAP Secure Store) to their business clients to enable delivery of the related items in the applicable RACI Matrix Documentation.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

Roles & Responsibilities for Cloud Application Services

Version: 2023/07



Legend	
	The goal of the Responsibility Matrix is to define the roles and the responsibilities within the service provision.
R	Responsible person(s) for the provision or <u>execution</u> of the identified service / task.
R*	Responsibility has to be clarified and agreed, usually during Transition phase.
A	Accountable person(s) for <u>approval of tasks</u> . Signs off on work done by <i>responsible</i> and is ultimately answerable for correct and thorough completion of the service / task. There must be only one accountable specified for each service / task.
C	Consulted person(s). They support in the execution of the identified service and <u>advise, assist, support</u> and participate in the relevant tasks as required; typically subject matter experts (two way communication).
I	Informed . Information is provided for those who are kept up-to-date on progress and / or completion of the service / task (one way communication).
Note 1	Service available for an additional fee and may be requested via the Change Request procedure (Order Form Exhibit 2).

Roles & Responsibilities for Cloud Application Services					
Version: 2023/07					
Services			SAP	Cus- tomer	Remarks
1. Application Operations					
1.1	Engagement	Create a ticket in SAP ONE Support Launchpad	C	R	
		Provide detailed description of the interruption or service request	C	R	
		Analyze the interruption and propose a solution to resolve the issue	R	C	
		Forward non-CAS related ticket to SAP Product Support	R	I	If applicable.
1.2	Service Operations				
	BASIC_1.15.01	Incident Management: Troubleshooting of technical/non-functional incidents not included in HEC Standard Services as per R&R Definition	R	C	
	BASIC_1.15.02	Change Management: Changes of technical system configuration not included in HEC Standard Services as per R&R Definition	R	C	
	BASIC_1.15.03	Event management: Monitor technical/non-functional event types not included in HEC Standard Service as per R&R Definition	R	C	
	BASIC_1.15.04	Service Request Fulfillment: Perform Service Request Fulfillment for technical/non-functional task not included in HEC Standard Service as per R&R Definition	R	C	
1.3	SAP HANA				
1.3.1	SAP HANA General Database Management				
	HANA_1.1.17	Create/modify users for HANA modelling in the SAP HANA Studio	R	C	
	HANA_1.1.18	User, roles, and permissions management for non-technical users	R	C	
1.3.2	HANA XS				
	HANA_1.2.09	Schedule XS Jobs	R	C	
1.3.3	HANA Smart Data Integration				
	TO_HANA_SDI_1.1.06	Administration of Agile Data Preparation (ADP)	R	C	
	TO_HANA_SDI_1.1.07	Set up replications, federation and transformations	R	C	
	TO_HANA_SDI_1.1.11	Deploy standard adapters with SAP HANA	R	C	
	TO_HANA_SDI_1.1.13	Monitor Data Provisioning tasks and remote subscriptions	R	C	
	TO_HANA_SDI_1.1.14	Process remote subscription exceptions	R	C	
	TO_HANA_SA_1.0.04	Configure data source on Streaming Analytics option host	R	C	
	TO_HANA_SA_1.0.10	Create and deploy Streaming Analytics option streaming projects	R	C	
	TO_HANA_SA_1.0.11	Monitor Streaming Analytics option objects and projects	R	C	
1.3.5	Capture and Replay				
	TO_HANA_CR_1.1.02	Start capture	R	C	
	TO_HANA_CR_1.1.05	Preprocess and replay in target system	R	C	
1.3.6	SAP HANA Accelerator for SAP ASE				
	TO_AFA_1.2.01	Pushdown Analysis Tool Setup	R	C	
1.4	Core Technical Operations				
1.4.1	System Installation				
	BASIC_1.8.05	Integration of system with other systems and applications	R	C	
	BASIC_1.8.18	Setup monitoring with Customer Solution Manager located in HEC: Configuration of monitoring within the customers SAP Solution Manager system	R	C	
	BASIC_1.8.08A	Rolling restart of application servers	R	C	
	BASIC_1.8.26	Configure Solution Manager: Focused Insight standard dashboard	R	C	
	BASIC_1.8.14A	Implementation of SAP Best Practices and similar packages for additional countries	R	C	
1.4.2	SAP Security Management				
	BASIC_1.2.26	Update Global Changes parameters and Default system settings	R	C	
1.4.3	Homogeneous system copy (aka System refresh)				
	BASIC_1.3.11	Pre-processing tasks, i.e. export tables with 'old' configuration	R	C	
	BASIC_1.3.07	Post processing tasks e.g. Embedded Search, BDLS	R	C	
1.4.4	Release Management				
	BASIC_1.5.03	Implement SAP Notes and other types of manual corrections (corrections not provided as software correction package) in managed system (notes and corrections required to fix application related issues)	R	C	
1.4.5	Proactive Services				
	BASIC_1.7.09	Analysis of SAP Service Session reports (incl. EarlyWatch Alert) for systems operated in SAP HEC. Provide recommendations for changes related to SAP	R	C	
	BASIC_1.7.11	Process chain retriggering or cancellation	R	C	
1.4.6	Certificate Handling				
	BASIC_1.11.01	Generate / Renew / Extend Certificate Signing Request (CSR)	R	C	
1.5	NetWeaver Operations				
1.5.1	General				
	TO_NWABAP_1.1.07	Analyze update terminations, determine business impact and appropriate action	R	C	
	TO_NWABAP_1.1.08	Clean up terminated updates	R	C	
	TO_NWABAP_1.1.10	Analyze lock entries, determine business impact and appropriate action	R	C	
	TO_NWABAP_1.1.11	Check/clear lock entries	R	C	
	TO_NWABAP_1.1.22	Regular ABAP dump check and classification	R	C	
	TO_NWABAP_1.1.23	Analyze SAP application log and provide recommendations on fixing failures	R	C	
	TO_NWABAP_1.1.24	Reorganize qRFC/IRFC queues	R	C	
	TO_NWABAP_1.1.25	Regularly check fastest growing tables in the SAP system and provide recommendations for archiving or reorganization	R	C	
	TO_NWABAP_1.1.17	Management of Web Service Runtime (WSRT)	R	C	
	TO_NWABAP_1.1.19	Configure RFC connections (TA SM59) to technical systems managed by the customer and any application-related RFC connection	R	C	
	TO_NWABAP_1.1.27	Termination of User activity related to identified Expensive Statement	R	C	
	TO_NWABAP_1.1.28	Temporary change of Heap or extended memory allocation using RSMEMORY	R	C	
	TO_NWABAP_1.1.29	Termination of dialog work processes	R	C	
	TO_NWABAP_1.1.30	ICM service restart on Non-responsive situation or post SSL certificate renewal	R	C	
	TO_J2EE_1.1.02	SAP J2EE: adjust/configure Java applications	R	C	
1.5.2	SAP Client Operations				
	TO_NWABAP_1.2.07	Pre-processing tasks, i.e. suspend jobs, lock users, export tables with 'old' configuration	R	C	
	TO_NWABAP_1.2.08	Post processing tasks, i.e. Enterprise Search, Fiori Launchpad, unlock user, release jobs)	R	C	
	TO_NWABAP_1.2.05	Investigate and resolve application related issues (e.g. with certain database tables and fields)	R	C	
1.5.3	Interface Administration				
	TO_NWABAP_1.3.24	Creation, execution, monitoring and troubleshooting of batch input sessions	R	C	
	TO_NWABAP_1.3.25	Configuration of interface related functions (e.g. IDOCs, interface scripts and jobs, qRFC/IRFC/bgRFC, ALE scenarios etc.)	R	C	
	TO_NWABAP_1.3.26	Monitoring of interfaces and interface related functions	R	C	
	TO_NWABAP_1.6.03	Establish trust relationships between SAP NW ABAP systems	R	C	
1.5.4	Job Scheduling				
	TO_NWABAP_1.4.14	Define production job schedule and dependencies based on business requirements	R	C	Done via SAP Tools (e.g. transaction SM36/SM37)
	TO_NWABAP_1.4.15	Administration of application batch jobs: - Job monitoring - Troubleshooting according to troubleshooting handbook	R	C	Done via SAP Tools (e.g. transaction SM36/SM37)

Roles & Responsibilities for Cloud Application Services						
Version: 2023/07						
Services			SAP	Cus- tomer		Remarks
1 Application Operations						
1.5.5	Transports					
	TO_NWABAP_1.5.11	Maintain SAP transport management system and configure transport routes and any further configuration (automatic import, scheduled import etc.)	R	C		
	TO_NWABAP_1.5.13	Implement SAP Note Transport-based correction instructions (TCI)	R	C		
	TO_NWABAP_1.5.01	Setup of CTS+	R	C		
	TO_NWABAP_1.5.02	Transfer and release of transport orders	R	C		
	TO_NWABAP_1.5.03	Execute transports to move objects between SAP systems	R	C		
1.5.6	Output Management					
	TO_NWABAP_1.7.01	Create, change and delete printers within SAP solution	R	C		
	TO_NWABAP_1.7.02	Analyze faulty output requests (transaction SP01)	R	C		
	TO_NWABAP_1.7.05	Lock/unlock SAP printers	R	C		
	TO_NWABAP_1.7.07	Configuration of virtual spool (load balancing between spool processes)	R	C		
1.6	Business Connector					
	TO_BC_1.1.04	Reorganization of Message Store	R	C		
1.7	SAP Data Services (DS)					
	TO_DS_1.1.22	Authorization - Users and Rights Management	R	C		Limited to system users and initial Customer administrator roles
	TO_DS_1.1.06	Create/Modify Data Services jobs	R	C		
	TO_DS_1.1.07	Schedule Data Services jobs	R	C		
	TO_DS_1.1.08	Configure database connections	R	C		
	TO_DS_1.1.09	Monitor jobs	R	C		
	TO_DS_1.1.11	Delete batch job history	R	C		
	TO_DS_1.1.14	Troubleshooting issues with DS Jobs	R	C		
	TO_DS_1.1.23	Create/Manage additional repositories	R	C		
	TO_DS_1.1.29	Installation and Configuration of Data Services Adapters	R	C		
	TO_DS_1.1.34	Enhanced Change and Transport System (CTS+) Integration Setup	R	C		
	TO_DS_1.1.35	Configure transports via Data Services (DS) Object Promotion Management	R	C		
	TO_DS_1.1.36	Backup Data Services Repository using Import/Export Tool	R	C		
1.8	SAP BusinessObjects Business Intelligence (BI)					
	TO_BI_1.1.18	Promote/deploy BI objects between environments	R	C		
	TO_BI_1.1.21	Provide user access and maintain authorizations	R	C		Limited to system users and initial Customer administrator roles
	TO_BI_1.1.39	Manage Server Process and Server Groups	R	C		
	TO_BI_1.1.41	Enhanced Change and Transport System (CTS+) Integration Setup	R	C		
1.9	SAP PI Operations					
	TO_PI_2.1.08	Configure message archiving	R	C		
	TO_PI_2.1.27	Execute and monitor message archiving	R	C		
	TO_PI_2.1.17	Setup of PI / BPM / AEX housekeeping	R	C		
	TO_PI_2.1.28	Monitor housekeeping activities of PI / BPM / AEX	R	C		
	TO_PI_2.1.19	Adjust PO/PI /AEX parameterization and configuration	R	C		
	TO_PI_2.1.21	Maintain the system landscape directory (SLD)	R	C		
	TO_PI_2.1.22	Apply SAP basic application content update to the Enterprise Service Repository (ESR)	R	C		
	TO_PI_2.1.25	Configure the required system connections to partner systems	R	C		
	TO_PI_2.1.26	Transport management of PI objects	R	C		
1.10	SAP Enterprise Portal					
	TO_EP_1.1.05	System landscape maintenance, connection of external systems – e.g. SAP	R	C		
	TO_EP_1.1.07	User mapping	R	C		
	TO_EP_1.1.08	Role/Channel/iPanel allocation	R	C		
1.11	SAP Cloud Connector					
	TO_SCC_1.1.04	Configuration - On-premise resources (OData services) customer wants to use in SAP Cloud Platform (SCP)	R	C		
	TO_SCC_1.1.05	Monitoring - SCC service monitoring (Linux / Windows Services)	R	C		
1.12	SAP Business Technology Platform - BTP					
	TO_BTPIIDS_1.1.04	Configuration - Business backend preparation steps for BTPI consumption	R	C		
	TO_BTPIIDS_1.3.01	Migrating or replicating data between data stores	R	C		
1.13	SAP Fiori					
	TO_FIORI_1.1.10	Configuration – Web Dispatcher Fiori App Redirects	R	C		Includes SSL configuration and certificate handling and is limited to technical Fiori Launchpad enablement for additional clients or products other than S/4HANA only
	TO_FIORI_1.1.05	Configuration - HANA XS Engine Web Dispatcher	R	C		Includes SSL configuration and certificate handling and is limited to technical Fiori Launchpad enablement for additional clients or products other than S/4HANA only
	TO_FIORI_1.1.06	Re-enable Fiori launchpad including all required connectivity setup	R	C		
	TO_FIORI_1.1.08	Establish trusted connections from Web Dispatcher to Gateway, backend system (e.g. S/4 HANA) and HANA XS engine of backend system	R	C		Related to Fiori launchpad enablement only
	TO_FIORI_1.1.11	Enable Fiori launchpad for the standard Fiori applications for additional business clients or SAP products other than S/4HANA	R	C		Includes example Fiori Catalog, example Fiori Group and example PFCG role
	TO_FIORI_1.1.12	Re-enable technical integration points after system/client copy.	R	C		Performed for additional business clients or products other than S/4HANA
	TO_FIORI_1.1.13	Activate standard Fiori Applications based on SAP business roles	R	C		
1.14	OpenText Extended Enterprise Content Management (OT xECM)					
	TO_OT_XECM_1.2.3	Application Configuration	R	C		
	TO_OT_XECM_1.2.5	S4HANA Integration and Connectivity	R	C		
	TO_OT_XECM_1.2.6	SSL/TLS Secure Communication	R	C		
1.15	SAP Financial Consolidation (FC)					
	TO_FC_1.1.02	Adding Webservices	R	C		
	TO_FC_1.1.03	Adding FC Application Server/Webserver on existing infrastructure	R	C		
	TO_FC_1.1.09	Activation/Deactivation Machine in the FC Admin console	R	C		
	TO_FC_1.1.10	Starting/Stopping Instances in the FC Admin console	R	C		
	TO_FC_1.1.11	Creating scheduled tasks for starting and stopping servers	R	C		
	TO_FC_1.1.12	Create/Delete Data Source(s)	R	C		
	TO_FC_1.2.03	Monitoring of further FC application URLs	R	C		
	TO_FC_1.4.04	Publishing documents via a URL	R	C		
	TO_FC_1.4.05	Configuring HTTPS	R	C		
	TO_FC_1.4.06	Customizing the SAP Financial Consolidation Web Site Home page	R	C		

Roles & Responsibilities for Cloud Application Services					
Version: 2023/07					
Services			SAP	Cus- tomer	Remarks
1 Application Operations					
	TO_FC_1.5.01	Configuring/Customizing SAP Financial Consolidation Web HTML5 site advanced settings	R	C	
	TO_FC_1.6.02	Execute archiving process	R	C	
1.16	TREX				
	TO_TREX_1.1.14	Post-Installation Configuration and Connection TREX with an Application (Java or ABAP)	R	C	
1.17	SAP Billing and Revenue Innovation Management				
	TO_BRIM_CM_1.2.10	Import/Export Workflows configuration	R	C	
	TO_BRIM_CM_1.2.11	Maintain External Reference files	R	C	
1.18	SAP Manufacturing Integration and Intelligence				
	TO_MII_1.1.02	Setup ALE user	R	C	
	TO_MII_1.1.03	Establish ALE connection to customer's ERP system	R	C	
	TO_MII_1.1.07	Create XMII Users and perform Roles Assignments	R	C	
1.19	SAP Analytics Cloud				
1.19.1	SAP Analytics Cloud tenant				
	TO_SAC_1.1.01	Establish connection between SAP Analytics Cloud and HEC managed system	R	C	
	TO_SAC_1.1.03	Creation or change of user/roles or SAP as Identity Provider	R	C	
1.19.2	SAP Analytics Cloud agent				
	TO_SAC_1.2.02	Configure SAP Analytics agent, Cloud Connector, Java Connector	R	C	
	TO_SAC_1.2.03	Configure SAP Analytics agent connection with other systems like SAP S/4HANA, ERP	R	C	
	TO_SAC_1.2.04	Configure SAP Analytics Cloud with SAP Analytics agent	R	C	
1.19.3	SAP S/4HANA Tasks for SAP Analytics Cloud				
	TO_SAC_1.3.01	Configure STRUST for SSL settings	R	C	
	TO_SAC_1.3.02	Activate Embedded BW content (BEx queries etc.)	R	C	
	TO_SAC_1.3.03	Enable INA for Analytics Cloud	R	C	
	TO_SAC_1.3.04	Enable CORS Analytics Cloud and edit white Listing	R	C	
1.20	SAP Business Technology Platform				
1.20.1	Account and Subaccounts				
	TO_BTP_1.1.01	Create or change of subaccounts related to HEC landscape (DEV, QAS, PRD etc.)	R	C	
	TO_BTP_1.1.02	Create or change of entitlements in the Global Account	R	C	
	TO_BTP_1.1.03	Activate Cloud Platform service(s)	R	C	
	TO_BTP_1.1.04	Create or change of user/roles	R	C	
	TO_BTP_1.1.05	Create or change of connectivity destinations	R	C	
	TO_BTP_1.1.06	Manage of certificates (issue, import, export)	R	C	
	TO_BTP_1.1.07	Create or change Custom Application Domains Settings	R	C	
1.20.2	Identity Provider				
	TO_BTP_1.2.01	Configure Local Provider Settings	R	C	
	TO_BTP_1.2.02	Configure Trust Relationships and Federation Settings for external Identity Providers (e.g. Microsoft, Okta)	R	C	
	TO_BTP_1.2.03	Configure Trust Relationships and Federation Settings for SAP Identity Authentication Tenant	R	C	
	TO_BTP_1.2.04	Configure Principle Propagation SAP Cloud Platform, SAP Cloud Connector and SAP S/4HANA	R	C	
	TO_BTP_1.2.05	Activate CERTRULE for the purpose of client based certificates	R	C	
	TO_BTP_1.2.06	User Migration to Cloud Platform Identity Authentication Tenant	R	C	
1.20.3	SAP S/4HANA Tasks for SAP Business Technology Platform				
	TO_BTP_1.3.01	Configure STRUST for SSL settings	R	C	
	TO_BTP_1.3.02	Activate ICF nodes required for sample Apps to be enabled	R	C	
	TO_BTP_1.3.03	Activate OData Services required for sample Apps to be enabled	R	C	
	TO_BTP_1.3.04	Enterprise Search Enablement (ESH)	R	C	
	TO_BTP_1.3.05	Create authorization role in backend system for OData processing	R	C	
	TO_BTP_1.3.06	Activate Embedded BW content for Analytical Fiori Apps	R	C	
	TO_BTP_1.3.07	Enable INA for Analytical SAP Fiori Apps	R	C	
	TO_BTP_1.3.08	Establish backend connectivity to SAP Cloud Platform Forms by Adobe	R	C	
1.20.4	Portal				
	TO_BTP_1.4.01	Create or change SAP Fiori Launchpad sites (Site Directory & Site Settings)	R	C	
	TO_BTP_1.4.02	Create or change roles	R	C	
	TO_BTP_1.4.03	Create or change groups including role assignment	R	C	
	TO_BTP_1.4.04	Create or change catalogs including role assignment	R	C	
	TO_BTP_1.4.05	Enable SAP Fiori sample apps and perform required connectivity setup	R	C	
1.21	Adobe Document Services				
	TO_ADS_1.1.02	Data Migration from on premise ADS to ADS on SCP	R	C	
	TO_ADS_1.1.03	Configure Fonts and Print Information using XDC and XCI Files	R	C	
	TO_ADS_1.1.04	Configure document security	R	C	
	TO_ADS_1.1.05	Configure job profiles - customer account	R	C	
	TO_ADS_1.1.07	End to end enablement of Business Technology Platform service "SAP Forms by Adobe" for Netweaver based systems other than S/4HANA	R	C	SAP Forms by Adobe (Adobe Document Services/ADS) enablement including all required sub steps and activities: Create and configure an RFC destination for SAP Forms by Adobe in AS ABAP; Configure ICF Service to enable HTTP communication with SAP Forms by Adobe; Create the service user ADS_AGENT. Customer to provide credentials for BTP global / subaccount to be used.
1.22	SAP Enterprise Thread Detection (ETD)				
1.22.1	Configuration				
	TO_ETD_1.2.03	Schedule individual background jobs	R	C	
1.22.2	Connecting new source systems to ETD				
	TO_ETD_1.6.05	Configure provisioning logs from SAP NetWeaver ABAP based system	R	C	
	TO_ETD_1.6.06	Configure provisioning logs from SAP HANA-based system	R	C	
	TO_ETD_1.6.07	Configure provisioning logs from SAP NetWeaver JAVA-based system	R	C	
	TO_ETD_1.6.08	Configure provisioning logs from other systems including OS	R	C	
1.22.3	Secure communications with new source system				
	TO_ETD_1.7.01	Encrypt communications between new source system(ABAP/HANA/JAVA) and HANA Streaming Analytics	R	C	
	TO_ETD_1.7.02	Encrypt communications between new source system(ABAP/HANA/JAVA) and ETD Streaming	R	C	
	TO_ETD_1.7.03	Updating ETD with the new content packages	R	C	
1.22.3	Content delivery				
	TO_ETD_1.8.01	Import New Content Packages	R	C	
1.23	SMTP Relay to Office365				
	TO SMTP_1.1.05	Configure systems to use smtp relay server	R	C	
1.24	SAP Disclosure Management (DM)				
	TO_SDM_1.2.02	Configure BW connector	R	C	

Roles & Responsibilities for Cloud Application Services					
Version: 2023/07					
Services		SAP	Cus- tomer	Remarks	
1	Application Operations				
	TO SDM 1.2.03	Configure DM Application Server SSL/TLS Secure Communication		R	C
1.25	SAP 3D Visual Enterprise Generator (VEG)				
	TO VEG 1.2.02	Configure VEG SSL/TLS Secure Communication		R	C
	TO VEG 1.2.03	Integration with ERP/ECC/S4HANA		R	C

**CLOUD APPLICATION SERVICES FOR SAP HANA ENTERPRISE CLOUD ADVANCED EDITION;
RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION;
SAP ERP, PRIVATE CLOUD EDITION, TAILORED OPTION;
RISE WITH SAP S/4HANA, PRIVATE CLOUD EDITION; AND
SAP ERP, PRIVATE CLOUD EDITION
SERVICE DESCRIPTION DOCUMENTATION***

Application Monitoring

1. SCOPE OF CLOUD APPLICATION SERVICES (CAS)

SAP will provide CAS services as described herein for the SAP cloud environment systems and related system landscape in scope subject to the usage metric volume purchased by Customer as set forth in the applicable order form.

Solution Scope

SAP will perform application-level health monitoring and respond to technical exceptions on the customer application layer as described herein.

Approach and Activities

SAP will conduct this service as follows:

- SAP will perform application monitoring 24/7 for production systems in scope for the following service elements:
 - Standard/Custom ABAP Job Monitoring
 - Interface & Connection Monitoring (ABAP Web, Service, BDoc, Gateway, HTTP(s), IDoc, Process Integration, RFC/ bgRFC/ qRFC/ trRFC, SAP AIF, SLT, SAP Cloud Integration - IFlows)
 - Public cloud integration monitoring using Cloud Integration - IFlows or Process Integration
 - URL Certificate + URL Availability
- SAP will maintain standard operating procedures for remediation of exceptions for each service element to being monitored.
- SAP will perform remediation per best practices for the service elements monitored, including:
 - Batch job retriggering
 - RFC parameters changes – Credentials & destinations only
 - Renewal of valid certificate
 - Cancellation and termination of work processes
 - Clearance or reprocessing of failed updates
- All remediation tasks will be executed through the CAS Service Request Process with necessary approvals, pre-requisite information and access provided by customer.
- SAP will maintain Incident procedures for system availability critical (P1) issues.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

Exclusions

The following services are not included:

- Scheduling of jobs is out of scope of this service.
- Remediation activities other than mentioned above are the responsibility of the Customer.
- Any other priority incident ticket creation will be the responsibility of customer.
- Any additional monitoring scenarios other than above mentioned service elements.
- Non-SAP Systems or Middleware as part of the Integration monitoring

2. USAGE METRIC OF CLOUD APPLICATION SERVICES (CAS)

<u>Service Scope item</u>	<u>Usage Metric</u>
Application Monitoring	Service Element*

*Each service element corresponds to one monitoring element (One Job, Interface, or Certificate/URL availability).

- A Custom Job service element is defined as a single job with a unique name in a single application.
- An Interface service element is defined as a unique combination of interface name, source system, target System and communication channel type.
- A URL availability and Certificate monitoring service element is defined as a unique identifiable URL provided for monitoring, such that it can be monitored through Diagnostic agent.

3. CUSTOMER'S RESPONSIBILITIES, COLLABORATIVE AND COOPERATIVE DUTIES

- a) SAP's provision of the CAS service is subject to Customer fulfilling its responsibilities described in the applicable RACI Matrix Documentation.
- b) Customer will provide relevant system access to the customer applications in scope as requested for delivering the monitoring service, which includes definition of new roles as needed.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

Roles & Responsibilities for Cloud Application Services

Version: 2023/07



Legend	
	The goal of the Responsibility Matrix is to define the roles and the responsibilities within the service provision.
R	Responsible person(s) for the provision or <u>execution</u> of the identified service / task.
R*	Responsibility has to be clarified and agreed, usually during Transition phase.
A	Accountable person(s) for <u>approval of tasks</u> . Signs off on work done by <i>responsible</i> and is ultimately answerable for correct and thorough completion of the service / task. There must be only one accountable specified for each service / task.
C	Consulted person(s). They support in the execution of the identified service and <u>advise, assist, support</u> and participate in the relevant tasks as required; typically subject matter experts (two way communication).
I	Informed . Information is provided for those who are kept up-to-date on progress and / or completion of the service / task (one way communication).
Note 1	Service available for an additional fee and may be requested via the Change Request procedure (Order Form Exhibit 2).

Roles & Responsibilities for Cloud Application Services

Version: 2023/07



Services			SAP	Cus-tomer	Remarks
5.1	Application Monitoring				
5.1.1	Governance and Process Alignment				
		Create service plan for monitoring the Customer production environment in scope	R	C	
5.1.2	Onboarding				
		Define Service elements and relevant parameters to be monitored	R	C	Customer to provide the list of service elements and relevant thresholds to be monitored
		Configuration of monitoring for Identified service elements in SAP Monitoring Tool	R	I	Related to monitoring components in scope only Business go-live of SAP application is a pre-requisite for start of setup
5.1.3	Monitoring Activities				
		Coordinate with Incident Management, Problem Management and Engagement Management	R	R	
		Monitor service elements and coordinate ongoing Operations activities	R	I	The onboarding period is required before start of productive monitoring. As a part of the Monthly Report
	BASIC_1.11.06	Monitor validity period of certificates	R	I	
	TO_NWABAP_1.3.26	Monitoring of interfaces and interface related functions	R	I	
	TO_NWABAP_1.4.15	Administer application batch jobs: - Monitor jobs - Troubleshoot according to troubleshooting handbook	R	C	Restricted to monitoring of Jobs
		Monitor SAP Cloud Integration (Iflows)	R	I	
		Monitor trends for recommended changes or threshold adjustments	R	I	As a part of the recommendation for Continuous improvement which is a part of the Monthly report
		Adjust service plan to realign for inscope service elements to be monitored and related to metrics and threshold levels	R	C	Review of service elements to make metrics or threshold adjustments limited to twice yearly
5.1.4	Event/Incident Handling & Issue Resolution				
		Perform remediation activities according to the SAP Best Practices.	R	C	Reference to documented solutions for an alert in the standard operating procedure(SOP)Customer to provide approvals for remediation post due-diligence
		Create an Incident for the alert in SAP Launchpad	R	I	Applicable for system availability critical (P1) issues only.
		Monitor and track Incident and Event resolution activities for critical (P1) issues only	R	C	
		Maintain Continual Improvement Register (CSI)	R	I	
		Remediation for Alert "Batch Job Errors" : Batch job retriggering or termination; Changes of job variant or job user ids	R	C	Customer to provide approval for remediation
		Remediation for Alert "Errors for RFC Connection status": RFC parameters changes - Credentials, destinations only for RFC Connections	R	C	Customer to provide approval for remediation
		Remediation for Alert "Expiring URL certificates" : Renewal of valid certificates	R	C	Customer to provide approval for remediation. Applicable for New SAP Standard Certificates in STRUST only.
		Remediation for Alert "Not Enough Batch Resources" : Work process cancellation; Optimization of Batch Jobs load post analysis	R	C	Customer to provide approval for remediation

**CLOUD APPLICATION SERVICES FOR SAP HANA ENTERPRISE CLOUD ADVANCED EDITION;
RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION;
SAP ERP, PRIVATE CLOUD EDITION, TAILORED OPTION;
RISE WITH SAP S/4HANA, PRIVATE CLOUD EDITION; AND
SAP ERP, PRIVATE CLOUD EDITION
SERVICE DESCRIPTION DOCUMENTATION***

Application Security Updates

1. SCOPE OF CLOUD APPLICATION SERVICES (CAS)

SAP will provide CAS services as described herein for the SAP cloud environment systems and related system landscape in scope subject to the usage metric volume purchased by Customer as set forth in the applicable order form.

Solution Scope

SAP will keep the systems in scope on the current security patch level.

Approach and Activities

SAP will conduct this service as follows:

- SAP will proactively identify analyzed security notes for installed based systems to identify critical notes.
- SAP will implement the identified SAP Security notes with and without manual activities for ABAP based systems.
- SAP will initiate the implementation of required JAVA components for identified Security Notes.
- SAP will transport changes to production as a Standard Change.

Standard Change Process (SAP Activities)

- Centrally managed identification of relevant Security Note(s) and monthly documentation in a customer ticket, including background information.
- If no system re-start is required, immediate implementation of relevant Security Note(s) in DEV and QAS systems will take place.
- If no system re-start is required, implementation of relevant Security Note(s) will take place in the PRD system. Implementation of Security Note(s) will take place in the PRD system after 30 days (testing period).
- Notification to the customer about implemented Security Notes, completion status and further background information will be provided in the customer ticket.
- SAP will notify to customer about the implemented security notes and the implemented JAVA components.
- SAP will apply downtime relevant adjustments within the defined SAP contractual maintenance period (CMP).

Assumptions and Customer Responsibilities

- Customer is responsible for any testing of implemented notes.
- The transport of the implemented security notes based on standard change process is not applicable if customer is using Enhanced Change and Transport System in SAP Solution Manager (CTS+).

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

2. USAGE METRIC OF CLOUD APPLICATION SERVICES (CAS)

<u>Service Scope item</u>	<u>Usage Metric</u>
Application Security Updates	Productive system

3. CUSTOMER'S RESPONSIBILITIES, COLLABORATIVE AND COOPERATIVE DUTIES

- a) SAP's provision of the CAS service is subject to Customer fulfilling its responsibilities described in the applicable RACI Matrix Documentation.
- b) Customer will provide relevant system access as requested.
- c) SAP release version / support pack stack of customers system may not be older than 1 year.
- d) Customer is responsible for any testing of implemented security notes.

*For SAP HANA Enterprise Cloud Advanced Edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option only. For RISE with SAP S/4HANA Cloud, private edition; and SAP ERP, private cloud edition, this document is deemed a CAS Service Description Guide.

Roles & Responsibilities for Cloud Application Services

Version: 2023/07



Legend	
	The goal of the Responsibility Matrix is to define the roles and the responsibilities within the service provision.
R	Responsible person(s) for the provision or <u>execution</u> of the identified service / task.
R*	Responsibility has to be clarified and agreed, usually during Transition phase.
A	Accountable person(s) for <u>approval of tasks</u> . Signs off on work done by <i>responsible</i> and is ultimately answerable for correct and thorough completion of the service / task. There must be only one accountable specified for each service / task.
C	Consulted person(s). They support in the execution of the identified service and <u>advise, assist, support</u> and participate in the relevant tasks as required; typically subject matter experts (two way communication).
I	Informed . Information is provided for those who are kept up-to-date on progress and / or completion of the service / task (one way communication).
Note 1	Service available for an additional fee and may be requested via the Change Request procedure (Order Form Exhibit 2).

Roles & Responsibilities for Cloud Application Services

Version: 2023/07



Services			SAP	Customer	Remarks
1	Advanced Security and Compliance Services				
1.1	Application Security Updates				
1.1.1	Security Service Planning				
	BASIC_1.2.20	Analyze the SAP system and identify relevant SAP security notes	R	I	Analysis of installed based systems only
		Manage User credentials for SAP CAS Delivery	R	I	
1.1.2	Implement SAP Security Notes				
	BASIC_1.2.28	Implement relevant SAP Security Notes - Application related (ABAP stack only)	R	I	
		Transport implemented notes to Quality system as standard change or after customers process/approval	R	I	
		Testing of implemented notes	I	R	Expected within 30 days
		Transport implemented notes to Prod system as standard change or after customers process/approval	R	I	
		Inform about applied patches	R	I	
	BASIC_1.2.28	Request implementation of JAVA components	R	I	
		Testing of implemented notes	I	R	Expected within 30 days
		Inform about applied patches	R	I	

**RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION
SAP ERP, PRIVATE CLOUD EDITION, TAILORED OPTION
SUPPLEMENTAL TERMS AND CONDITIONS**

This Supplement is part of an Agreement for SAP Cloud Services between SAP and Customer and applies only to RISE with SAP S/4HANA Cloud, private edition, tailored option and SAP ERP, private cloud edition, tailored option, and each of its optional add-ons, to which Customer is subscribed. Any documents referenced in this Supplement are available upon request. “**Tailored Option Services**,” refers to RISE with SAP S/4HANA Cloud, private edition, tailored option and SAP ERP, private cloud edition, tailored option, either individually or collectively, as the context may require.

1. DEFINITIONS

Definitions used but not defined in this Supplement shall have the meaning ascribed to them in the Order Form or in documents incorporated therein.

- 1.1. “**Documentation**” means SAP’s then-current (i) Service Descriptions identified as Documentation, (ii) roles and responsibilities descriptions, and (iii) technical and functional documentation for Subscription Software, as applicable, made available to Customer by SAP.
- 1.2. “**Service Description**” means written description of certain aspects of the Cloud Service such as Disaster Recovery, as made available to Customer by SAP and identified as Documentation.
- 1.3. “**Subscription Software**” means software provided and hosted in the Computing Environment, as defined in the SLA, by SAP on a subscription basis.

2. TAILORED OPTION SERVICES

- 2.1. The additional terms that apply to the Subscription Software are described in the respective Tailored Option Services document made available at https://www.sap.com/about/trust-center/agreements/cloud/cloud-services.html?tag=agreements:product-use-support-terms/service-description-guides&sort=latest_desc (“Service Description Guide”). The Cloud Services are described in the applicable Service Description and roles and responsibilities Documentation made available to Customer at SAP’s website or upon request.
- 2.2. Certain features integrated in the Cloud Service and described as “Cloud Features” in the then-current Documentation may be provisioned on the SAP Business Technology Platform, a multi-tenant cloud platform. Such Cloud Features, and any additional terms applicable to the Cloud Features, are set forth in the Service Description Guide.
- 2.3. Subscription Software may only be accessed and used as part of the Tailored Option Services subscribed to by Customer. Except as set forth in Section 3.6 below, Customer is responsible for having the Subscription Software installed, including upgrades and new releases. In the event such installation requires changes to Customer’s Computing Environment as reflected in the “Systems Set-Up Table” in the Order Form, such changes will be agreed upon in a Change Request pursuant to the Change Request procedure.
- 2.4. Use of Subscription Software may occur by way of an interface delivered with or as a part of the Subscription Software, a Customer or third-party interface, or another intermediary system. Customer must hold the required licenses as stated in the Service Description Guide for any individuals that use the Subscription Software (directly or indirectly). Business Partners may use the Subscription Software only through screen access and solely in conjunction with Customer’s use and may not use it to run any of Business Partners’ business operations.

3. ADDITIONAL TERMS FOR TAILORED OPTION SERVICES

3.1. Maintenance Activities.

- 3.1.1. SAP performs regular scheduled maintenance activities to maintain OS security patch levels, database and application patches, infrastructure (network, compute, storage) maintenance and other scheduled proactive activities. Such maintenance activities will be reasonably scheduled for a date, time and duration mutually agreed (in the Order Form or in advance of such activities) between SAP and Customer based on requirements and resources. If Customer fails to cooperate with the scheduling and/or performance of such maintenance

activities in a timely manner as recommended by SAP, Customer shall be solely responsible for any issues in the Cloud Service, including unexpected downtime.

- 3.1.2. Notwithstanding the foregoing, SAP reserves the right to perform Emergency Maintenance activities at any time without Customer's prior consent. SAP will use reasonable efforts to provide Customer with forty-eight (48) hours advance notice regarding performance of Emergency Maintenance. In case of downtime during such Emergency Maintenance, the parties agree that such downtime will be considered to be "Emergency Downtime," as defined in the SLA. "Emergency Maintenance" are maintenance activities required to address an unforeseeable circumstance aiming to prevent significant impact to the Cloud Service. Such situations may include application of emergency application patches and operating system security patches (security patches with priority "Emergency") and/or performing emergency critical operating system activities (urgent upgrades and/or refresh of shared components).
- 3.1.3. Customer is responsible for requesting and coordinating with SAP the application of security patches (all security patches with priorities "critical," "high," "medium," or "low") by way of a service request ticket. Such patches will be performed during Scheduled Downtime or other Agreed Downtime, each as defined in the SLA.
- 3.2. **Subscription Software Modifications and Add-Ons.** Customer has the right to develop and use Modifications and/or SAP-provided Add-Ons, Customer ABAP Add-Ons and Additional Add-ons with SAP's Subscription Software in furtherance of its permitted use of the Cloud Service under this Agreement.

Customer is responsible for all installation, management and support for any Modifications, Customer ABAP Add-ons and Additional Add-ons. Customer is responsible for testing and resolving source code issues, compatibility issues, security vulnerabilities or other conflicts that may arise from Modifications, Customer ABAP Add-ons, and/or Additional Add-ons permitted under this Agreement and any patches or workarounds, or other changes provided by SAP for the Subscription Software, in a timely manner. Modifications, Customer ABAP Add-ons, and Additional Add-ons must not enable the circumventing of any restrictions set forth in the Agreement, nor impair or degrade the performance, system availability, operability or security of the Cloud Service. Customer will inform SAP without undue delay about any issues or vulnerabilities with the Modifications, Customer ABAP Add-ons, or Additional Add-ons that may impair or degrade the Cloud Service. For the avoidance of doubt, SAP reserves the right to restrict or require the removal of any Add-ons that it determines may pose any such risk to the Cloud Service.

Customer ABAP Add-ons and all rights associated therewith, shall be the exclusive property of Customer subject to SAP's rights in and to the Cloud Service and Cloud Materials as indicated in this Agreement; provided Customer shall not commercialize any such Customer ABAP Add-ons developed under this Agreement. Customer grants to SAP (including SAP SE, its Affiliates, and subcontractors) a non-exclusive right to process, use, and display Customer ABAP Add-ons to provide and support the Cloud Service and as set out in the Agreement. In exchange for the right to develop Customer ABAP Add-ons under the Agreement, Customer covenants, on behalf of itself, successors, and assigns, not to assert against SAP SE, their Affiliates or licensors, any rights in Customer ABAP Add-on, or any claims of any rights, against any SAP product, service, or future SAP development.

"Add-on" means any development that adds new and independent functionality to the SAP Subscription Software, but does not modify existing SAP functionality, and is developed using SAP application programming interfaces or other SAP code that allows other software products to communicate with or call on SAP Subscription Software. All Add-ons developed by SAP, independently or jointly with Customer, shall be considered Cloud Material and as such, all intellectual property rights in and related to the Add-ons developed by SAP (independently or jointly with Customer) including any derivatives thereof are owned by SAP, SAP SE, their Affiliates, or licensors.

"SAP-provided Add-on" means any Add-on that is not a Customer ABAP Add-on and is an Add-on made available for Tailored Option Services.

"Additional Add-on" means any Add-on that is published by SAP as an SAP certified Add-on on the SAP Certified Solutions Directory.

"Customer ABAP Add-on" means an Add-on developed in the ABAP programming language by or on behalf of Customer without SAP's participation.

"Modification" means (i) a change to the delivered source code or metadata; or (ii) any development, other than a change to the delivered source code or metadata, that customizes, enhances or changes existing functionality of the SAP Subscription Software. For the purposes of this Cloud Service, Cloud Materials include all Modifications. For the avoidance of doubt, all intellectual property rights in and related to the Modifications and derivatives thereof are owned by SAP, SAP SE, their Affiliates, or licensors.

- 3.3. **Customer-Provided Software.** Except as set forth above in connection with Add-ons, Customer may not use any other Customer-provided software in the Cloud Service, including on the operating system. If SAP, on an exceptional basis, permits Customer to use any such Customer-provided software, each of the requirements and restrictions applicable to Add-Ons set forth above shall apply to such Customer-provided software. Additionally, Customer acknowledges that additional fees may apply in connection with management and support of such Customer-provided software in the Cloud Service.
- 3.4. **Customer Data Return.** Prior to termination or expiration of the Subscription Term, at Customer's request, SAP shall provide to Customer, within a reasonable time period in a reasonable backup media format utilized by SAP, a final export of the Customer Data stored in the Computing Environment. Customer must verify the usability of this export within two (2) weeks of receipt. If Customer does not provide verification within the two-week period, the exported Customer Data shall be deemed usable.
- 3.5. **Additional Services.** Customer may request Additional Services (or the SAP Services Team may request such services on Customer's behalf) through a service request on the SAP Service Request Platform. SAP will inform Customer of the fees that will apply to the requested Additional Service, and Customer shall confirm the purchase of such service. Any Additional Services completed by SAP will be invoiced monthly in arrears. "Additional Services" are specific tasks related to the Cloud Service systems identified in the RISE with SAP S/4HANA Cloud, private edition, tailored option and SAP ERP, PCE, tailored option Roles and Responsibilities Documentation (made available to Customer on SAP's website or upon request) as "Additional Service."
- 3.6. As part of the Cloud Service, SAP will (i) provide the initial installation of the Subscription Software in the Computing Environment, (ii) setup and configure relevant hardware/ software and monitoring/managing tools for the Computing Environment and Customer Systems, and (iii) introduce Customer to SAP's support and communications procedures. "**Systems**" means one or more interrelated and interdependent components such as databases, servers, networks, load balancers, web dispatchers, tenants, etc. which when taken as a whole are used to operate a tier. Each combination of components used within each tier is equivalent to one System.
- 3.7. To the extent that the Computing Environment provided by SAP includes Microsoft software products (e.g. specified in Section "System Set-up Table" in the Order Form), Customer agrees to the comply with the following conditions in connection with the Microsoft software products:
 - 3.7.1. Customer may not remove, modify or obscure any copyright, trademark or other proprietary rights notices that appear on the Microsoft software products or that appear during use of the Microsoft software products;
 - 3.7.2. Customer may not reverse engineer, decompile, or disassemble the Microsoft software products, except and only to the extent that applicable law, notwithstanding this limitation expressly permits such activity;
 - 3.7.3. any warranties, liability for damages and remedies, if any, are provided solely by SAP and not by Microsoft or its affiliates or subsidiaries;
 - 3.7.4. any product support for the Microsoft software products included in the Computing Environment is provided to Customer by SAP and is not provided by Microsoft or its affiliates or subsidiaries;
 - 3.7.5. all title and intellectual property rights in and to the Microsoft software products are owned by Microsoft or its suppliers. Microsoft software products are protected by copyright laws and international copyright treaties, as well as other intellectual property laws and treaties. Customer's possession, access, or use of the Microsoft software products does not transfer any ownership of the Microsoft software products or any intellectual property rights to Customer;
 - 3.7.6. SAP may disclose Customer's information regarding the use of Microsoft software products to Microsoft or Microsoft affiliates or subsidiaries in case of audits;

- 3.7.7. Customer acknowledges that the Microsoft software products are not fault-tolerant and is not guaranteed to be error free or to operate uninterrupted and shall not be used in any application or situation where such Microsoft software products failure could lead to death or serious bodily injury of any person, or to severe physical or environmental damage ("High Risk Use"). Examples of High Risk Use include: aircraft or other modes of human mass transportation, control of nuclear or chemical facilities, life support systems, implantable medical equipment, motor vehicles, or weaponry systems. High Risk Use does not include utilization of Microsoft software products for administrative purposes, to store configuration data, engineering and/or configuration tools, or other non-control applications, the failure of which would not result in death, personal injury, or severe physical or environmental damage.
- 3.8. **SAP Content Server Disaster Recovery Services.** SAP Content Server Disaster Recovery Services performs optimally within certain database storage limits. If purchased by Customer, Customer will reasonably cooperate with SAP to optimize Customer's use of the SAP Content Server Cloud Service, including the storage of Customer Data in such Cloud Service. SAP may suspend or limit use of the SAP Content Server Cloud Service in the event Customer fails to reasonably cooperate.
- 3.9. **SAP Convergent Mediation by DigitalRoute Disaster Recovery Services.** Customer is responsible for restarting, reconfiguring and re-executing all functional workflows once SAP Convergent Mediation by DigitalRoute is restored. Additional storage may be required.

4. CUSTOMER RESPONSIBILITIES FOR TAILORED OPTION SERVICES

- 4.1. SAP's provision, operation and support of the Cloud Service is subject to Customer's reasonable cooperation and providing, no later than five (5) business days from the effective date of this Order Form, necessary information (including any on-boarding documentation), authorizations and qualified resources for such activities, and maintaining such cooperation during the Subscription Term. Customer authorizes SAP to set up and use an administrative user in the Cloud Service systems as needed to provision and confirm Customer's subscribed usage and technical compliance of the Cloud Service. SAP shall be permitted to audit (at least once annually and in accordance with SAP standard procedures, which may include an on-site and/or remote audit) the Customer's use of the Cloud Service to verify compliance with Usage Metrics (scope), volume, and the Agreement. Customer shall cooperate reasonably in conducting such audits.
- 4.2. Customer is responsible for the definition, documentation and execution of its business processes in the context of the Cloud Service, including, but not limited to, configuration of systems management and application and data security policies, batch processing requirements, and compliance with other governmental or regulatory requirements. Customer is responsible to provide SAP necessary and sufficient documentation of its applicable processes and Customer Add-ons in order for SAP to perform its responsibilities under the Agreement.
- 4.3. Customer is responsible for the connection to the Cloud Service, including the Internet connection to the Point of Demarcation, and the disconnection from the Cloud Service upon expiration or termination of the Agreement. Customer shall reimburse SAP for any costs that SAP incurs due to Customer's failure to disconnect from the Cloud Service. This section survives expiration or termination of the Agreement. "**Point of Demarcation**" means for MPLS, the port on the provider switch or, in case of a VPN for access, the external interface to the Internet of the VPN device of SAP's Computing Environment.
- 4.4. Customer shall use commercially reasonable efforts to ensure that Customer Data is free of all viruses, Trojan horses and comparable elements which could harm the computer systems or software used by SAP or its subcontractors to provide the Cloud Service.
- 4.5. In the event that any SAP equipment is required at the Customer's facility, Customer shall provide a physically secure and conditioned environment for any such equipment, and Customer bears all risk for damages. SAP shall not be responsible for any damages to the extent resulting from Customer's failure to provide a physically secure and conditioned environment.
- 4.6. In connection with Customer's obligations related to Customer Data under the Agreement, Customer Data includes all Customer-provided Software used in the Cloud Service environment.
- 4.7. Customer is responsible for obtaining all necessary rights from third parties required for SAP to run and host any Customer-provided software in the Cloud Service environment. Customer will, at SAP's request, provide

written verification of such rights. Customer grants to SAP the nonexclusive right to use the Customer-provided software for the sole purpose of and only to the extent necessary for SAP to provide the Cloud Service.

- 4.8. If Customer fails to fulfil any Customer obligations set forth in this Supplement, Customer is responsible for the ramifications of such failure including delays, subsequent costs, and any performance, availability, functionality, support, and/or security issues experienced with the Cloud Service.
- 4.9. For avoidance of doubt, support and maintenance services provided under this Agreement are solely for the Subscription Software and must not be used to support any third-party solutions or other SAP products, including SAP products purchased under a separate agreement between an affiliate of Customer and SAP (or a distributor of SAP products). Customer acknowledges that if Customer uses any such services for other SAP products or third-party solutions without a separate valid SAP support agreement for such products, SAP will invoice Customer the applicable accrued fees associated with such time period of use plus a reinstatement fee for support for such products.

5. ADDITIONAL TERMS FOR RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

In addition to Sections 1 through 4 above, the following additional terms apply to RISE with S/4HANA Cloud, private edition, tailored option:

5.1. Bundled Cloud Services.

- 5.1.1. Customer will receive access to the following additional multi-tenant cloud services subject to the limitations indicated herein (collectively, “Bundled Cloud Services”) and based on the Core Subscription Software to which Customer is subscribed. Core Subscription Software is set forth in the Order Form and further described in the section entitled “Core” in the Service Description Guide.
 - 5.1.1.1. If Customer subscribes to RISE with SAP S/4HANA Cloud, private edition, core, tailored option, Customer will receive access to the following Bundled Cloud Services for which Customer does not have an existing subscription: SAP Process Insights, base package; SAP Signavio Process Manager; and SAP Signavio Process Collaboration Hub
 - 5.1.1.2. For RISE with SAP S/4HANA Cloud, private edition, tailored option, Customer is entitled to the Bundled Cloud Services and subject to the Bundled Cloud Services limitations as referenced in the RISE with SAP S/4HANA Cloud, private edition, tailored option, SAP ERP, private cloud edition, tailored option Supplemental Terms and Conditions in effect on the effective date of Customer’s Initial Order Form.
- 5.1.2. Use of each Bundled Cloud Service is subject to the supplemental terms located at <http://www.sap.com/agreements-cloud-supplement> and the following limitations:
 - 5.1.2.1. for SAP Process Insights, base package, access is limited to one production tenant, to a one-time data upload of a maximum of 50GB of Storage, and supports the connection to one ERP system;
 - 5.1.2.2. for SAP Signavio Process Manager, access is limited to 3 Users; and
 - 5.1.2.3. for SAP Signavio Collaboration Hub, access is limited to 10 Users.
- 5.1.3. The Support Schedule for Cloud Services applies to the Bundled Cloud Services.
- 5.1.4. The Service Level Agreement for SAP Cloud Services applies to the Bundled Cloud Services.
- 5.1.5. The EU Access option is not available for Bundled Cloud Services.
- 5.1.6. At Customer’s option and with a subscription to RISE with SAP S/4HANA Cloud, private edition, tailored option, Customer may access the following additional services made available at the following web links below. These additional services may be subject to additional legal terms and conditions. Where there is a conflict between the additional legal terms and conditions and the Agreement, the additional legal terms and conditions shall control.
 - 5.1.6.1. For SAP Custom Code Migration App (formerly, “Custom Code Analyzer”), access is made available at <https://blogs.sap.com/abap-custom-code-analysis-using-sap-cloud-platform>;
 - 5.1.6.2. For Process Discovery by SAP, access is made available at <http://www.s4hana.com>; and
 - 5.1.6.3. For SAP Readiness Check, access is made available at <http://www.sap.com/readinesscheck>.

5.2. Currently Supported Version of Subscription Software.

- 5.2.1. Customer shall use, and all installations including the initial install of Subscription Software in the Computing Environments shall be, a version or release of the Subscription Software for which software maintenance and user support are current, as provided by the software vendor as specified in the relevant license agreement with such vendor. For SAP Subscription Software such support (which is set forth in the applicable Order Form) is provided according to the current maintenance phases of SAP software releases as stated in <https://support.sap.com/releasestrategy> ("Release Strategy"). For the purposes of SAP Subscription Software, "current" herein relates to "Mainstream Maintenance" or, where identified in the Release Strategy, "Extended Maintenance."
- 5.2.2. Customer acknowledges that if Customer is not on a version of the Subscription Software under current maintenance (or if SAP is not able to perform such upgrades due to the lack of Customer's cooperation), (i) SAP's abilities for the provision of support may be limited and SAP shall assume no responsibilities for such limitations, and (ii) the System Availability Service Levels shall not apply.
- 5.3. **Limited Maintenance.** If Customer is (i) not using a current release of the Subscription Software or (ii) has less than nine (9) months remaining (as of the start date of the Order Form) until the release is no longer current, Customer shall upgrade its production environment of the Subscription Software to the current release as described in SAP's RISE Limited Maintenance Policy available at <https://www.sap.com/about/agreements/policies.html>. As such, use of Subscription Software that is not current is at the Customer's own discretion and risk.

Notwithstanding the foregoing, SAP's obligations under this Agreement and its Documentation are dependent on Customer maintaining the Subscription Software for which the release is current. In particular, SAP is not responsible for the reliability, performance, availability, functionality, security, or any other related issues experienced with the Subscription Software that may result from running a release that is not current and is not liable to Customer for any loss or damage that might arise from a Subscription Software's inoperability or unavailability because it is not current.

6. ADDITIONAL TERMS FOR SAP ERP, PRIVATE CLOUD EDITION, TAILORED OPTION

In addition to Sections 1 through 4 above, the following additional terms apply to SAP ERP, private cloud edition, tailored option:

- 6.1. The Cloud Service will be discontinued and no longer available after December 31, 2030, and notwithstanding any terms to the contrary in the Agreement, Customer's subscription to the Cloud Service shall not extend beyond December 31, 2030.
- 6.2. Unless otherwise indicated in the Service Description Guide, the Subscription Software will be supported under Mainstream Maintenance through December 31, 2027. Thereafter, Extended Maintenance will apply for the Subscription Software from January 1, 2028 through December 31, 2030 ("Extended Maintenance Term"). Such support is provided according to the current maintenance phases of SAP software releases as described in the SAP Release and Maintenance Strategy, available at <https://support.sap.com/releasestrategy>. Additionally, during the Extended Maintenance Term, the System Availability Service Level shall not apply to the Cloud Service.
- 6.3. **Currently Supported Version of Subscription Software.**
- 6.3.1. Subject to 6.2 above, Customer must use a version or release of the Subscription Software for which software maintenance and support are current, as provided by the software vendor as specified in the relevant license agreement with such vendor, or as provided by SAP. For purposes of SAP Subscription Software, "current" means it is covered by Mainstream Maintenance or Extended Maintenance as it's made available by SAP. SAP may make available Mainstream Maintenance or Extended Maintenance through a single Subscription Software version or a sequence of Subscription Software versions.
- 6.3.2. All Customer Add-ons, simplification and incompatibility checks must be executed by Customer. Customer is responsible for evaluating the results of such checks to ensure that implemented business processes, backend and frontend applications and integrations are running after changes to the Subscription Software. If SAP is not able to perform such upgrades due to the lack of Customer's cooperation, (i) SAP's ability to provide support may be limited and SAP assumes no responsibilities for such limitations and (ii) the System Availability Service Levels in the SLA shall not apply.

SAP's obligations under this Agreement and its Documentation are dependent on Customer maintaining the Subscription Software for which the release is current. In particular, SAP is not responsible for the reliability, performance, availability, functionality, security, or any other related issues experienced with the Subscription Software that may result from running a release that is not current and is not liable to Customer for any loss or damage that might arise from a Subscription Software's inoperability or unavailability because it is not current.

RISE with SAP S/4HANA Cloud, private edition, tailored option
Service Description Guide ("SDG")

1. DEFINITIONS

In addition to the Usage Metrics Definitions, certain Subscription Software in this SDG may include additional explanations on the applicable usage metric.

- 1.1. **"Active User"** is any individual who accesses the Subscription Software.
- 1.2. **"Assets under Management"** of the asset manager which uses the product, means the sum of all relevant financial assets as disclosed in the latest annual statement of the legal entity in a fiscal year. If the Customer does not disclose a comprehensive annual statement, Customer will report on an annual basis the respective information to SAP. If the product shall be licensed only for a subdivision of the insurance company, the respective license contract requires an explicit definition. For non-Insurance companies, the revenue of the company should apply as the basis for the calculation of the price.
- 1.3. **"Barrel of Oil Equivalent per Day" or "BOEPD"** is a unit of measure used in the oil and gas industry that allows aggregating the produced, scheduled or sold quantities of hydrocarbons from both conventional and unconventional sources, which are managed by the Subscription Software in a contract year.
- 1.4. **"Concurrent Session"** is the aggregated numbers of sessions accessing the service at any one time. A session refers to the time between logon and logoff or time out where a unique user, application or platform accesses the service either directly or indirectly via a custom application. The number of sessions accessing each deployment must be limited by corresponding license key mechanisms. The maximum number of sessions enabled on a Deployment (as defined below) by such limitations may not exceed the usage metric limit for the number of Concurrent Sessions assigned to that Deployment for such licensed Subscription Software. The aggregate number of sessions enabled on all Deployments may not exceed the licensed level of Concurrent Sessions. Users in deployments with an unlimited number of sessions require a Named User license for the Subscription Software. There is no license limit on number of processors or servers used. Customer may not utilize any program or system to cache or queue report requests. SAP BusinessObjects Enterprise, private edition users accessing any Deployment using a Concurrent Session license may be entered into the SAP NetWeaver BW system for the purposes of maintaining security.
- 1.5. **"Connections"** are unique identified linkages between the Subscription Software and external systems.
- 1.6. **"Contacts"** are the number of unique records of customers, prospects, employees, business partners, and constituents within the context of the Subscription Software.
- 1.7. **"Contracts"** are individual legal agreements between a company and its customers for services provided, which are managed by the Subscription Software.
- 1.8. **"Core"** is the number of cores in CPUs that are available for use by the licensed Subscription Software. The number of Core licenses must be an integer. When counting physical Cores, each Core of a physical CPU that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is considered and counted. When counting virtual Cores, each virtual Core that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is counted. If the licensed Subscription Software will run in a pure virtual environment, physical Cores will not be counted. For purposes of clarification, "Core" as defined in this metric definition is different from "core" as referenced in the metric definition for any other Subscription Software licensed on a CPU basis (if any), and therefore is not applicable in that context.
- 1.9. **"Cost of Goods"** is all expenses associated with the production and/or procurement of goods processed via the Subscription Software.
- 1.10. **"Deployments"** are single installations of the system repository component within the SAP BusinessObjects BI Platform Software (for which Licensee must obtain a license), or the Crystal Reports runtime engine (for which Licensee must obtain a license). When the multi-tenancy feature of the BI Platform is enabled, each individual tenant is considered a separate deployment for licensing purposes.

- 1.11. **"Document"** is uniquely identified objects processed by the Subscription Software in a twelve-month period (or a contract year).
- 1.12. **"Employee"** is individuals, working for a company or legal entity that is licensing the functionality of the package, regardless of employment status (e.g., part time, full time, leave of absence or contract worker).
- 1.13. **"Entitlements Package"** is a defined set of entitlements for the Subscription Software.
- 1.14. **"Entities"** are the total number of legal entities processed by the Subscription Software.
- 1.15. **"Flat Fee"** is a fixed fee for the Subscription Software.
- 1.16. **"Full Use Equivalent" or "FUE"** is the aggregation method by which Customer may allocate individuals access to the Subscription Software in accordance with the ratios set forth in the respective Cloud Supplement, Service Description Guide or Service Use Description.
- 1.17. **"Gigabyte"** is the amount of capacity in the Subscription Software.
- 1.18. **"GB of Memory"** is an amount of memory.
- 1.19. **"HANA SAP Application Value" or "HSAV"** is the sum of prices for licensed Subscription Software, excluding those items identified in the list of prices and conditions that do not contribute to the HANA SAP Application Value.
- 1.20. **"Installations"** are instances of the software installed at a designated device.
- 1.21. **"Items"** are document line items stored in the Subscription Software.
- 1.22. **"Objects"** are all unique records stored or managed in the Subscription Software.
- 1.23. **"Monitored Individuals"** are unique individuals being managed by the Subscription Software or who use the reporting console of the Subscription Software.
- 1.24. **"Point of Delivery"** are the points of delivery (**"PoDs"**) at which a utility service is supplied or determined. When a utility installation is created in the Subscription Software, a unique PoD is automatically generated. All PoDs in the system are counted where a device or device info record is assigned to utilities installation with an ending date later or equal to the system date; technical and virtual PoDs are not considered.
- 1.25. **"Premiums"** are the total gross premiums of the insurance company which uses the Subscription Software as disclosed in the latest annual statement of the legal entity in a fiscal year. If the Customer does not disclose a comprehensive annual statement, the Customer must report the respective information to SAP on an annual basis. If Customer does not disclose the information publicly, Customer must deliver and explain it to SAP. If the product shall be licensed only for a subdivision of the insurance company the respective license contract requires an explicit definition.
- 1.26. **"Products"** are the number of products managed with the Subscription Software.
- 1.27. **"Record"** is uniquely identified objects that are active and maintained in the Subscription Software.
- 1.28. **"Resource"** is unique individuals or non-human assets accessing or being managed by the Subscription Software.
- 1.29. **"Revenue"** is the total amount of revenue processed via the Subscription Software.
- 1.30. **"Revenue & Expense"** is the sum of revenues received and annual expenses paid which are processed through the Subscription Software in a contract year.
 - 1.30.1.1. **"Revenues"** is the sum of annual monetary amounts invoiced by Customer and its Affiliates to third parties for services provided (or to be provided) by Customer and/or its Affiliates to such third parties and processed through the Subscription Software;
 - 1.30.1.2. **"Expenses"** is the sum of annual expenses (commissions, royalties, revenue shares etc.) for services performed (or to be performed) by Customer or its Affiliates for Customer's and/or its Affiliates' own organization(s) that are processed through the Subscription Software.
- 1.31. **"Spend"** is the total expenditures processed via the Subscription Software.
- 1.32. **"Spend Volume"** is the total monetary amount of Customer's spend value per year, in purchase orders and call-offs against contract, that are processed in the Subscription Software.

- 1.33. **"Tenant"** is a customer-specific instance of the Subscription Software.
- 1.34. **"Ton"** is a measure of total weight, in 1,000-kilogram units, of goods managed via the Subscription Software.
- 1.35. **"Total Annual Budgets"** is the total annual public sector budgets of Customer (i.e. agency, institution, program or department) based on current budget period.
- 1.36. **"Transaction"** is messages, jobs, or tasks processed by the Subscription Software in a twelve-month period (contract year).
- 1.37. **"User"** is an individual authorized to access the Subscription Software.
- 1.38. **"Units"** are rental objects that are managed with SAP Real Estate Management.

2. GENERAL

- 2.1. This Service Description Guide was last updated on December 11, 2023. It is effective between Customer and SAP as of the effective date of the ordering document.
- 2.2. This Service Description Guide applies only to the SAP S/4HANA Cloud, private edition, tailored option services to which Customer is subscribed. Any documents referenced herein are available upon request. For the avoidance of doubt, all non-productive development ("DEV"), testing, and quality assurance ("QA") may only be conducted in non-production environments.
- 2.3. SAP reserves the right to reasonably limit the use of the services set forth in the Roles and Responsibilities Documentation (made available to you upon request or on the SAP website) initiated via a service request if Customer's use is unreasonably excessive. If any such limitation is imposed, Customer's usage shall be reviewed and assessed with Customer.
- 2.4. Block Size
 - 2.4.1. Block Size is 1 unless otherwise indicated.
- 2.5. All references to "Licensee" in this Service Description Guide shall mean "Customer."

3. SAP HANA RUNTIME

- 3.1. SAP HANA, runtime is a runtime database licensed for use with certain SAP S/4HANA Cloud, private edition, tailored option packages ("**HANA Runtime**"). All SAP S/4HANA Cloud, private edition, tailored option packages licensed with HANA Runtime are subject to the following terms. HANA Runtime and the additional Subscription Software components included in HANA Runtime may only be used in conjunction with Customer's use of SAP S/4HANA Cloud, private edition, tailored option packages.

HANA Runtime includes the limited use of the following additional Subscription Software components:

- 3.1.1. SAP HANA Platform;
- 3.1.2. SAP ASE and MaxDB databases;
- 3.1.3. SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- 3.1.4. SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud;
- 3.1.5. SAP HANA Rules Framework;
- 3.1.6. SAP HANA, data privacy option;
- 3.1.7. SAP HANA, predictive option;
- 3.1.8. SAP HANA, spatial and graph option;
- 3.1.9. SAP HANA, search and text option;
- 3.1.10. SAP HANA, Smart Data Quality ("**SDQ**");
- 3.1.11. SAP Smart Data Integration ("**SDI**"); and
- 3.1.12. SAP HANA, native storage extension.

- 3.2. SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA Runtime must be performed via the SAP S/4HANA Cloud, private ed, tailored option Cloud Service. Use of SDI is limited solely to loading data into HANA Runtime or the SAP S/4HANA Cloud, private edition, tailored option Cloud Service. Data may be loaded from an appropriately licensed Data Source via SDI or via SAP S/4HANA Cloud, private edition, tailored option Cloud Service interfaces. SDI may also be used with Smart Data Access in a data federation scenario. Notwithstanding anything to the contrary, data may not be distributed from one SAP S/4HANA Cloud, private edition, tailored option package to another at the HANA database level.
- 3.3. SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud includes a runtime license of SAP IQ. Use of SAP IQ is limited solely for use with SAP BW NetWeaver Cloud, private ed, tailored option or SAP BW/4HANA Cloud, private ed, tailored option. This runtime license of SAP IQ is also available for use as a cold store for data tiering optimization in SAP BW/4HANA Cloud.
- 3.4. Customer may export data, using licensed SAP tools, to be used solely within one or more of the following:
 - 3.4.1. SAP HANA, enterprise edition;
 - 3.4.2. SAP HANA, standard edition;
 - 3.4.3. SAP Cloud Platform, SAP HANA service;
 - 3.4.4. SAP HANA Cloud;
 - 3.4.5. SAP HANA, EE Cloud; and/or
 - 3.4.6. SAP Datasphere.
- 3.5. Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the HANA Runtime database instance. All reporting must be performed via the SAP S/4HANA Cloud, private edition, tailored option Cloud Service or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP business intelligence ("SAP BI") tools or non-SAP business intelligence tools that are certified by SAP, as set forth in the SAP Certified Solutions Directory (See: https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020)
- 3.6. HANA Runtime includes the optional, limited use of the following on-premise components: SAP Data Integrator ("DI") and SAP Landscape Transformation replication server ("SLT"). Use of DI and SLT is limited solely to loading data into HANA Runtime or the SAP S/4HANA Cloud, private edition, tailored option Cloud Service.

4. SUBSCRIPTION SOFTWARE

- 4.1. The Subscription Software to which Customer is subscribed is subject to the Release Strategy, available at <https://support.sap.com/releasestrategy>. Customers must use a version or release of the Subscription Software, which is covered by Mainstream Maintenance or Extended Maintenance, if applicable.
- 4.2. The Subscription Software listed below are grouped by sub-titles: Core, Finance, Digital Supply Chain, Procurement, Human Experience Management, Enterprise Information Management, Oil and Gas, Insurance, Banking, Automotive, Defense & Security, Utilities, Consumer Products, Retail, Higher Education and Research, Public Sector, Analytics, Middleware, Databases & Data Management, Native HANA, Non-Standard, Focused Business Solutions, and Repeatable Custom Solutions.

CORE

5. RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION (FORMERLY, "SAP S/4HANA FOR ENTERPRISE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION"), RISE WITH SAP S/4HANA CLOUD, PRIVATE EDITION, CORE, TAILORED OPTION

- 5.1. Usage Metric: Full Usage Equivalent ("FUE"): Full Use Equivalent is the aggregation method by which Customer may allocate individuals access to the Subscription Software in accordance with the ratios set forth below:
 - 5.1.1. 1 FUE = 0.50 SAP S/4HANA Cloud, Developer Access
 - 5.1.2. 1 FUE = 1 SAP S/4HANA Cloud for advanced edition use

5.1.3. 1 FUE = 5 SAP S/4HANA Cloud for core use

5.1.4. 1 FUE = 30 SAP S/4HANA Cloud for self-service use

Customer may allocate each FUE to any one of the use types and may change the allocation during the subscription term. A Full Usage Equivalent cannot be divided between or among different use types. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

5.2. S/4HANA Cloud for self-service use

5.2.1. Authorized Users (as defined in the GTC) are permitted to use the following solution capabilities of RISE with SAP S/4HANA Cloud, private edition, tailored option: Available to Promise; Batch Management; Delivery Management; Goods Movement; Empties Management ; Handling Unit Management; Maintenance Execution; Maintenance Demand Processing; Material Requirements Planning; Organizational Structure Management; Physical Inventory; Production Control; Production Execution; Self-Service Requisitioning; Serial Number Management; Time Sheet; Transportation Management; Warehouse Management

5.2.2. The S/4HANA Cloud for self-service use also covers display use rights and approval use rights for all solution capabilities of RISE with SAP S/4HANA Cloud, private edition, tailored option.

5.3. SAP S/4HANA Cloud for core use

5.3.1. Authorized Users (as defined in the GTC) are permitted to use the following solution capabilities of RISE with SAP S/4HANA Cloud, private edition, tailored option: Account and Contact Management; Activity Management; Available to Promise; Customer Engagement; Batch Management; Business Solution Portfolio; Capacity Planning; Claims, Returns and Refund Management; Delivery Management; Empties Management; External Processing; Goods Movement; Handling Unit Management; Incentive and Commissions Management ; In-House Repair; Inventory Analytics and Control; Just-in-time Processing; Kanban; Maintenance Execution; Maintenance Planning; Maintenance Demand Processing; Manufacturing Analytics; Master Data Maintenance; Material Requirements Planning, Opportunity Management; Organizational Structure Management; Physical Inventory; Price Management; Product Development Foundation; Production BOM Management; Production Control; Production Execution; Project Financial Control; Project Logistics Control; Quality Improvement; Quality Inspection; Quality Planning; Recipe/Routing Management; Repetitive Manufacturing; Returnable Packaging Logistics; Sales Billing; Sales Contract Management; Sales Lead Management; Sales Master Data Management; Sales Monitoring and Analytics; Sales Order Management and Processing; Sales Quotation Management; Sales Rebates Management; Self-Service Requisitioning; Serial Number Management; Service and Maintenance Plan; Service Billing ; Service Contract Management; Service Fulfilment; Service Monitoring and Analytics; Service Order Management; Service Parts Fulfillment; Service Request Management; Subcontracting; Solution Billing; Solution Quotation Management; Technical Assets, Structure and History; Time Sheet; Transportation Management; Variant Configuration; Warehouse Management; Warranty Management.

5.3.2. The S/4HANA Cloud for core use also covers display use rights and approval use rights for all solution capabilities of RISE with SAP S/4HANA Cloud, private edition, tailored option.

5.4. SAP S/4HANA Cloud for advanced use

Authorized Users (as defined in the GTC) are permitted to use all solution capabilities of RISE with SAP S/4HANA Cloud, private edition, tailored option, inclusive of display and approval use rights.

5.5. SAP Developer Access

Use is allowed by the number of individuals included in the licensed level (or usage metric limitation) who are authorized to access the development tools provided with the licensed RISE with SAP S/4HANA Cloud, private edition, tailored option Software for the purpose of making ABAP Addons to any S/4HANA Cloud, private edition, tailored option packages.

5.6. Additional Terms and Conditions

5.6.1. RISE with S/4HANA Cloud, private edition, tailored option includes use rights to the following software components, subject to infrastructure being licensed separately:

5.6.1.1. SAP Cloud Connector (installed on separate servers, 2x8GB for production and 1x8GB for non-production, available on customer request).

- 5.6.1.2. SAP Data Services Agent (installed on separate servers, 2x8GB for production and 1x8GB for non-production, available on customer request)*
- 5.6.1.3. SAP Web Dispatcher (installed on separate servers, 2x8GB for production and 1x8GB for non-production).
- 5.6.1.4. SAP Fiori embedded (installed on the S/4HANA Cloud System only).
- 5.6.1.5. SAP Data Provisioning Agent (installed on separate servers, 2x16GB for production and 1x16GB for non-production, available on customer request).
- 5.6.1.6. SAP Analytics Cloud Agent (installed on separate servers, 1x8GB for production and 1x8GB for non-production, available on customer request)*

*Customer is required to obtain a subscription to the associated SAP cloud service separately to use the integration agent provided with RISE with SAP S/4HANA Cloud, private edition, tailored option.

- 5.6.2. Subject to the infrastructure being licensed separately:

- 5.6.2.1. Forms as a Service by Adobe. Customer may make up to 2,000,000 Forms Requests per year in Forms as a Service by Adobe for no additional fee. A single Form Request is counted for each document with up to five (5) pages created using this Cloud Feature. The number of Form Requests for a document created with more than five (5) pages is calculated by dividing the total pages of the document by five (5). If the result of the calculation is not a whole number, the remainder shall be counted as a single Form Request. Form Requests for which a number of pages cannot be determined (e.g., digital signature request) are counted as a single Form Request. A contract year is a 12-month period beginning on the first day of the Subscription Term or its annual anniversary.

A subscription to the Cloud Service includes an on-premise component, Adobe Lifecycle Designer, that can be downloaded and installed by the Customer. The System Availability Service Level does not apply to Adobe Lifecycle Designer. Customer may only use the on-premise component during the Subscription Term. Adobe Lifecycle Designer is not eligible for EU Access.

- 5.6.2.2. For the avoidance of doubt, (i) Cloud Features are provisioned on the SAP Cloud Platform or other multi-tenant cloud platform in a separate cloud instance/environment and in a different data center location, from S/4HANA Cloud, private edition, tailored option Systems, (ii) Cloud Features do not include the same service elements that apply to the S/4HANA Cloud, private edition, tailored option Systems and (iii) the Service Level Agreement does not apply to Cloud Features.

- 5.6.2.3. Each Cloud Feature is subject to its own supplemental terms and conditions, available here: <http://sap.com/agreements-cloud-services-product-supplement> (also available from SAP upon request).

5.7. S/4HANA Compatibility Pack

- 5.7.1. **"S/4HANA Compatibility Pack"** means an S/4HANA compatible copy of classical (non-S/4HANA) SAP ERP software (**"classical use"**). Only the S/4HANA Compatibility Pack provided as a part of the SAP ERP software is available as a part of this package as further described in Part 4 of the SAP S/4HANA Compatibility Scope Matrix referenced in SAP Note 2269324. The S/4HANA Compatibility Pack may be used by Customer until the earlier of:

- 5.7.1.1. any termination or expiration of the RISE with SAP S/4HANA, private edition, tailored option subscription or;
- 5.7.1.2. the date referenced in SAP Note 2269324.

- 5.7.2. Certain features are not included as a part of S/4HANA Compatibility Pack as further described in the SAP S/4HANA Feature Scope Description.

5.7.3. Central User Administration.

Where Customer has multiple systems, Customer shall utilize Central User Administration to monitor and maintain individual user IDs consistently across those systems. Alternatively, Customer shall manually monitor user IDs across its various systems. Customer shall remain within the Usage Metric and volume limitations indicated in the Order Form and any use outside of this scope as a result of duplicated individual user IDs may subject Customer to additional fees.

5.8. Single Sign-On.

RISE with SAP S/4HANA Cloud, private edition, tailored option supports authentication/single sign-on features integrated with the Customer's existing Microsoft Active Directory. If the Customer is using SAP GUI, Secure Login Client has to be activated for use with SAP GUI to enable the integration.

6. SAP TRAVEL MANAGEMENT FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION

6.1. Usage metric: Document. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, expense reports are counted. The Document (expense report) will be counted only once, for the period in which they are settled for the first time.

6.2. Block size: 7 tiers with minimum of 3,000/year

7. SAP S/4HANA CLOUD, DIGITAL ACCESS, PRIVATE EDITION, TAILORED OPTION

7.1. Usage Metric: Documents. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, the types of records that are counted as Documents are set forth below:

7.1.1.1. Sales Document means: (i) a line item record that represents the material and/or service being sold or quoted; and/or (ii) a record that represents an individual order/release against a scheduling agreement which indicates the material and/or service being sold.

7.1.1.2. Purchase Document means: (i) a line item record that represents the material and/or service being ordered or requested; and/or (ii) a record that represents the release against a scheduling agreement which indicates the material and/or service being procured.

7.1.1.3. Invoice Document means: a line item record that represents the material and/or service being billed. For SAP S/4HANA Cloud, Digital Access only, an Invoice Document shall also include a line item record that represents a description of the material being purchased, including the material name, number and quantity of the material.

7.1.1.4. Manufacturing Document means: (i) a record which represents the production-related details associated with manufacturing a material, including: the type, quantity and color of what to produce, when to produce it, where to produce it and/or other distinguishing characteristics; and/or (ii) a record that represents a confirmation which indicates the status of the processing activities associated with manufacturing orders.

7.1.1.5. Material Document means: a line item record that represents a specific material being received, issued or transferred to, from or within a storage location or plant.

7.1.1.6. Quality Management Document means: (i) a record that represents the details of a nonconformance being reported including the information required for problem solving; and/or (ii) a record that represents results of an inspection. For SAP S/4HANACloud Digital Access edition only, a Quality Management Document shall also include a record that represents the details of a nonconformance.

7.1.1.7. Service & Maintenance Document means: (i) a record that represents the details of work to be performed including the information needed to plan, execute and bill for a service or maintenance request; and/or (ii) a record that represents the details of a problem being reported including the information required for problem solving; and/or (iii) a record that represents the status of the processing associated with service orders and maintenance orders; and/or (iv) a record that represents a claim by a customer for repair or replacement or compensation for under -performance, pursuant to terms in a warranty document.

7.1.1.8. Financial Document means a record that represents accounting information in a financial journal.

7.1.1.9. Time Management Document means: (i) a record that represents an employee's time worked and assigned to business related objects; and/or (ii) a record that represents deviations from an employee's assigned work schedule and/or pay rate.

7.1.1.10. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

7.2. Block size: 1000

7.3. Additional Terms and Conditions

- 7.3.1. This Service grants (a) humans a right to use RISE with SAP S/4HANA Cloud, private edition, tailored option through Non-SAP Application(s) that is/are directly integrated to RISE with SAP S/4HANA Cloud, private edition, tailored option without the need to be licensed as a “FUE”; (b) non-humans (e.g. bots, sensors, chips, devices, etc.) a license to use RISE with SAP S/4HANA Cloud, private edition, tailored option directly or through Non-SAP Application(s) that is/are directly integrated to RISE with SAP S/4HANA Cloud, private edition, tailored option and without the need to be licensed as a FUE.
- 7.3.2. Solely for purposes of SAP S/4HANA Cloud Digital Access:
 - 7.3.2.1. RISE with SAP S/4HANA Cloud, private edition, tailored option shall not include SAP Business Warehouse Software.
 - 7.3.2.2. **“Non-SAP Application(s)”** means: (a) any technologies for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors (excluding when used solely as a Connectivity App between an SAP Application and RISE with SAP S/4HANA Cloud, private edition, tailored option and further excluding when used as a User Interface for RISE with SAP S/4HANA Cloud, private edition, tailored option); and/or (b) SAP Technology Solutions.
 - 7.3.2.3. **“User Interface(s)”** means any technology that (a) Customer owns and/or for which Customer has secured appropriate rights to use and (b) is used to develop/manage user interaction features and characteristics for RISE with SAP S/4HANA Cloud, private edition, tailored option. For the avoidance of doubt, User Interfaces for RISE with SAP S/4HANA Cloud, private edition, tailored option shall be deemed part of RISE with SAP S/4HANA Cloud, private edition, tailored option and therefore require human users using RISE with SAP S/4HANA Cloud, private edition, tailored option via such User Interfaces to have a “Named User” and/or “User” license for RISE with SAP S/4HANA Cloud, private edition, tailored option, as applicable.
 - 7.3.2.4. **“SAP Technology Solution(s)”** means SAP NetWeaver Foundation for Third Party Applications, SAP Business Technology Platform (excluding when used solely as a Connectivity App between an SAP Application and RISE with SAP S/4HANA Cloud, private edition, tailored option), SAP Signavio Solutions and SAP Process Insights [including any renamed and/or successor versions of any of the foregoing made generally available by SAP (if any)].
 - 7.3.2.5. **“Connectivity App(s)”** means any integration technology whose primary function is to directly connect disparate applications to enable the direct communication and/or management of data between such disparate applications by/through such integration technology.
 - 7.3.2.6. **“SAP Application(s)”** means all Packages (i.e., all Software and Third-Party Software) licensed under an SAP agreement and/or SAP Cloud Services for which Customer has a valid subscription, excluding SAP Technology Solutions and all database Packages.
- 7.3.3. All Digital Access of RISE with SAP S/4HANA Cloud, private edition, tailored option will be subscribed based exclusively upon the number of Documents created annually by such Digital Access of RISE with SAP S/4HANA Cloud, private edition, tailored option. Each Document shall count as one (1) Document, except for Material Documents and Financial Documents which shall each count as two tenths (0.2) of a Document. However, where the automated processing in RISE with SAP S/4HANA Cloud, private edition, tailored option of a Document from one Document Type results in the subsequent creation in RISE with SAP S/4HANA Cloud, private edition, tailored option of one or more additional Documents of different Document Type(s), such additional Documents shall not be counted.
- 7.3.4. Where a Non-SAP Application is connected to RISE with SAP S/4HANA Cloud, private edition, tailored option via a Connectivity App, such Non-SAP Application is still deemed directly integrated to RISE with SAP S/4HANA Cloud, private edition, tailored option for purposes of this provision. Any humans and/or non-humans using RISE with SAP S/4HANA Cloud, private edition, tailored option through application(s) that is/are integrated to a Non-SAP Application that is directly integrated to RISE with SAP S/4HANA Cloud, private edition, tailored option does not need to be licensed as a “FUE”.

8. SAP HANA, EE CLOUD, PRIVATE EDITION, TAILORED OPTION

- 8.1. Usage Metric: Gigabyte. For this Subscription Software, the definition in Section 1 is supplemented as follows: Gigabytes of memory capacity is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 8.2. Block size: 256
- 8.3. Additional Terms and Conditions
 - 8.3.1. SAP HANA, EE Cloud, private edition, tailored option ("**HANA Enterprise**") is an SAP HANA database. The required number of blocks is based on system size.
 - 8.3.2. "**Data Sources**" means any software product(s) and/or database instance(s) for which a user has secured an appropriate license.
 - 8.3.3. HANA Enterprise may be used with an unlimited number of Data Sources, subject to the applicable licensed level. HANA Enterprise includes the following Runtime Software:
 - 8.3.3.1. SAP HANA Operation Process Intelligence
 - 8.3.3.2. SAP HANA Data Warehousing Foundation
 - 8.3.3.3. SAP HANA, information management option
 - 8.3.3.4. SAP HANA, data privacy option
 - 8.3.3.5. SAP HANA, spatial and graph option
 - 8.3.3.6. SAP HANA, predictive option
 - 8.3.3.7. SAP HANA, search and text option
 - 8.3.3.8. SAP HANA native storage extension (Use of HANA Native Storage Extension Buffer Cache component is subject to the applicable usage metric limitation)
 - 8.3.3.9. SAP ASE and MaxDB databases
 - 8.3.3.10. SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud
 - 8.3.4. A user may use Smart Data Access to query data from any data sources, provided a user's subscription to HANA Enterprise has been appropriately sized for all such data that is queried and joined with other data sources via Smart Data Access.
 - 8.3.5. SAP ASE and MaxDB databases are runtime databases limited solely for use with SAP S/4HANA Cloud, private edition, tailored option packages.
 - 8.3.6. SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud includes a runtime license of SAP IQ. Use of SAP IQ is limited solely for use with SAP BW NetWeaver Cloud, private ed, tailored option or SAP BW/4HANA Cloud, private ed, tailored option. This runtime license of SAP IQ is also available for use as a cold store for data tiering optimization in SAP BW/4HANA Cloud.
 - 8.3.7. SAP HANA, information management option includes SAP HANA Smart Data Integration and Smart Data Quality.
 - 8.3.8. Use of SAP HANA, data privacy option is limited solely to the SAP HANA Data Masking Engine, SAP HANA Data Anonymization Engine, Column Encryption, and Shared SAP Business Application Authorizations.
 - 8.3.9. Use of SAP HANA, predictive option is limited solely to the HANA PAL/R engine, Automated Predictive Library (APL), and TensorFlow integration.
 - 8.3.10. Use of SAP HANA, search and text option is limited solely to the SAP HANA Search Engine and Text Analysis Engine.
 - 8.3.11. Use of SAP HANA, spatial and graph option is limited solely to the SAP HANA Spatial Engine and Graph Engine. Use of SAP HANA Spatial Engine is governed by the following HERE "MAP DATA BY HERE" terms:

The data ("**Data**") is provided for Licensee's internal use only and not for resale. It is protected by copyright and is subject to the following terms and conditions which are agreed to by you, on the one hand, HERE and HERE Suppliers on the other hand.

© 2008 HERE. All rights reserved.

The Data for areas of Canada includes information taken with permission from Canadian authorities, including: © Her Majesty the Queen in Right of Canada, © Queen's Printer for Ontario, © Canada Post Corporation, GeoBase© Department of Natural Resources Canada

HERE holds a non-exclusive license from the United States Postal Service® to publish and sell ZIP+4® information.

©United States Postal Service® 2008. Prices are not established, controlled or approved by the United States Postal Service®. The following trademarks and registrations are owned by the USPS: United States Postal Service, USPS, and ZIP+4.

Scope of Use. Licensee agrees to use this Data together with SAP Applications solely for your internal business operations purposes for which Licensee was licensed, and not for service bureau, time-sharing or other similar purposes. Accordingly, but subject to the restrictions set forth in the following paragraphs, Licensee may copy this Data only as necessary for Licensee's business use to (i) view it, and (ii) save it, provided that Licensee does not remove any copyright notices that appear and do not modify the Data in any way. Licensee agrees not to otherwise reproduce copy, modify, decompile, disassemble or reverse engineer any portion of this Data, and may not transfer or distribute it in any form except to your affiliates, for any purpose, except to the extent permitted by mandatory laws. Multi-disc sets may only be transferred or sold as a complete set as provided by SAP and not as a subset thereof.

Restrictions. Except where Licensee has been specifically licensed to do so by SAP, and without limiting the preceding paragraph, Licensee may not (a) use this Data with any products, systems, or applications installed or otherwise connected to or in communication with vehicles, capable of vehicle navigation, positioning, dispatch, real time route guidance, fleet management or similar applications; or (b) with or in communication with any positioning devices or any mobile or wireless-connected electronic or computer devices, including without limitation cellular phones, palmtop and handheld computers, pagers, and personal digital assistants or PDAs.

Warning. The Data may contain inaccurate or incomplete information due to the passage of time, changing circumstances, sources used and the nature of collecting comprehensive geographic data, any of which may lead to incorrect results.

No Warranty. This Data is provided to you "as is," and Licensee agrees to use it at its own risk. HERE and HERE SUPPLIERS make no guarantees, representations or warranties of any kind, express or implied, arising by law or otherwise, including but not limited to, content, quality, accuracy, completeness, effectiveness, reliability, fitness for a particular purpose, usefulness, use or results to be obtained from this Data, or that the Data or server will be uninterrupted or error-free.

Disclaimer of Warranty. HERE and HERE SUPPLIERS DISCLAIM ANY WARRANTIES, EXPRESS OR IMPLIED, OF QUALITY, PERFORMANCE, MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. Some States, Territories and Countries do not allow certain warranty exclusions, so to that extent the above exclusion may not apply to you.

Disclaimer of Liability. HERE and HERE SUPPLIERS SHALL NOT BE LIABLE: IN RESPECT OF ANY CLAIM, DEMAND OR ACTION, IRRESPECTIVE OF THE NATURE OF THE CAUSE OF THE CLAIM, DEMAND OR ACTION ALLEGING ANY LOSS, INJURY OR DAMAGES, DIRECT OR INDIRECT, WHICH MAY RESULT FROM THE USE OR POSSESSION OF THE INFORMATION; OR FOR ANY LOSS OF PROFIT, REVENUE, CONTRACTS OR SAVINGS, OR ANY OTHER DIRECT, INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF LICENCEE'S USE OF OR INABILITY TO USE THIS INFORMATION, ANY DEFECT IN THE INFORMATION, OR THE BREACH OF THESE TERMS OR CONDITIONS, WHETHER IN AN ACTION IN CONTRACT OR TORT OR BASED ON A WARRANTY, EVEN IF CLIENT OR ITS LICENSORS HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. Some States, Territories and Countries do not allow certain liability exclusions or damages limitations, so to that extent the above may not apply to Licensee.

Indemnification. Licensee shall indemnify and save harmless HERE and HERE Suppliers, including Her Majesty The Queen, The Canada Post and the Department of Natural Resources Canada, and their officers, employees and agent: from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data.

Government End Users. If the Data is being acquired by or on behalf of the United States government or any other entity seeking or applying rights similar to those customarily claimed by the United States government, the Data is a "commercial item" as that term is defined at 48 C.F.R. ("FAR") 2.101, is licensed in accordance with these Pass Through Terms, and each copy of Data delivered or otherwise furnished shall be marked and embedded as appropriate with the following "Notice of Use," and shall be treated in accordance with such Notice:

Notice of Use

Contractor (Manufacturer/ Supplier) Name: HERE

Contractor (Manufacturer/Supplier) Address: 425 W. Randolph Street, Chicago, Illinois 60606

This Data is a commercial item as defined in FAR 2.101 and is subject to these End-User Term under which this Data was provided.

© 2008 HERE – All rights reserved.

The Data may include or reflect data of licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada. Such data is licensed on an "as is" basis. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, make no guarantees, representations or warranties respecting such data, either express or implied, arising bylaw or otherwise, including but not limited to, effectiveness, completeness, accuracy or fitness for a particular purpose.

The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in respect of any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action alleging any loss, injury or damages, direct or indirect, which may result from the use or possession of the data or the Data. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in any way for loss of revenues or contracts, or any other consequential loss of any kind resulting from any defect in the data or the Data.

End User shall indemnify and save harmless the licensors, including Her Majesty the Queen, the Canada Post and the Department of Natural Resources Canada, and their officers, employees and agents from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data.

If Data for additional countries is included or distributed in connection with software products of SAP, or if Licensee uses data from relevant countries the following supplier terms/copyright notices shall be included in the Licensee Terms as applicable:

Territory Notice

Australia "Copyright. Based on data provided under license from PSMA Australia Limited (www.pdma.com.au)."

Austria "© Bundesamt für Eich- und Vermessungswesen"

Croatia, Cyprus, Estonia, Latvia, "© EuroGeographics"

Lithuania, Moldova, Poland,

Slovenia and/or Ukraine

France The following notice must appear on all copies of the Data, and may also appear on packaging:

"source: © IGN 2009 – BD TOPO ®"

Germany "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen" or "Die Grundlagendaten wurden mit Genehmigung der zustaendigen Behoerden entnommen."

Great Britain "Based upon Crown Copyright material."

Greece "Copyright Geomatics Ltd."

Hungary "Copyright © 2003; Top-Map Ltd."

Italy “La Banca Dati Italiana è stata prodotta usando quale riferimento anche cartografia numerica ed al tratto prodotta e fornita dalla Regione Toscana.”

Norway “Copyright © 2000; Norwegian Mapping Authority”

Portugal “Source: IgeoE – Portugal”

Spain “Información geográfica propiedad del CNIG”

Sweden “Based upon electronic data National Land Survey Sweden.”

Switzerland “Topografische Grundlage: Bundesamt für Landestopographie.”

FINANCE

9. SAP S/4HANA CLOUD FOR CONTRACT ACCOUNTING AND INVOICING, PRIVATE EDITION, TAILORED OPTION

- 9.1. Usage Metric: Revenues & Expenses. In lieu of the definition in Section 1, Revenues & Expenses is the total amount of revenues and expenses processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

10. SAP GLOBAL TRADE SERVICES, EDITION FOR HANA, PRIVATE EDITION, TAILORED OPTION

- 10.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

11. SAP S/4HANA CLOUD FOR RECEIVABLES MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 11.1. Usage Metric: Revenue. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

12. SAP S/4HANA CLOUD FOR CASH MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 12.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 12.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)

13. SAP S/4HANA CLOUD FOR CASH MANAGEMENT, VERSION FOR CHINA, PRIVATE EDITION, TAILORED OPTION:

- 13.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 13.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)

14. SAP EXTENDED SINGLE SIGN-ON, PRIVATE EDITION, TAILORED OPTION

- 14.1. Usage Metric: Flat Fee. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

15. SAP PROCESS CONTROL, PRIVATE EDITION, TAILORED OPTION

- 15.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

16. SAP RISK MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 16.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

17. SAP IDENTITY MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 17.1. Usage Metric: Monitored Individuals
- 17.2. Block size: 100

18. SAP S/4HANA CLOUD FOR IN-HOUSE CASH, PRIVATE EDITION, TAILORED OPTION

18.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software.

18.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)

19. SAP S/4HANA CLOUD FOR ADVANCED PAYMENT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

19.1. Usage Metric: Revenue. The Usage Metric entitlement in the Order Form is based on a monthly entitlement.

19.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)

20. SAP S/4HANA CLOUD FOR TREASURY AND RISK MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

20.1. Usage Metric: Assets under Management. In lieu of the definition in Section 1, Assets Under Management is the total value of all assets managed via the Subscription Software, and of the total value of all assets, the total amount of all treasury positions is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

20.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)

20.3. Additional Terms and Conditions

20.3.1. Use of SAP S/4HANA Cloud Finance for treasury and risk management is limited to a maximum of one hundred active, investment-related security classes in the securities area.

20.3.2. In the SAP system each security (e.g., stocks) is a class. The class data includes all the structure characteristics of a security. Since the creation of transactions and the management of positions in the transaction manager are based on product types, each class needs to be assigned to a product type.

21. SAP S/4HANA CLOUD FOR TREASURY AND RISK MANAGEMENT CLOUD, IMPAIRMENT ACCOUNTING EXTENSION FOR EXPECTED LOSSES, PRIVATE EDITION, TAILORED OPTION

21.1. Usage Metric: Assets under Management. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

21.2. Block size: € 1 billion (converted to local currency using SAP standard exchange rates)

21.3. Additional Terms and Conditions:

21.3.1. This Subscription Software is limited to the following language versions.

21.3.1.1. Available Log-On Languages: Arabic, Bulgarian, Catalan, Chinese, Croatian, Czech, Danish, Dutch, English, Finnish, French, German, Greek, Hebrew, Hindi, Hungarian, Italian, Japanese, Korean, Norwegian, Polish, Portuguese, Romanian, Russian, Slovak, Slovenian, Spanish, Swedish, Thai, Turkish, Ukrainian, Vietnamese.

21.3.1.2. Available Documentation Languages: English

21.3.2. To report support incidents, please use message component: XX-PROJ-CDP-534

22. SAP S/4HANA CLOUD FOR FINANCIAL CLOSING COCKPIT, PRIVATE EDITION, TAILORED OPTION

22.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

22.2. Block size: 500

22.3. Maximum Usage: 208 Blocks

22.4. Additional Terms and Conditions

There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.

- 23. SAP S/4HANA CLOUD FOR CENTRAL FINANCE FOUNDATION, PRIVATE EDITION, TAILORED OPTION**
- 23.1. Usage Metric: Revenue. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 23.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 23.3. Maximum Usage: 1,000 Blocks
- 23.4. Additional Terms and Conditions
- 23.4.1. S/4HANA Cloud for central finance foundation, private edition, tailored option includes SAP Application Interface Framework. Use of SAP Application Interface Framework is limited to use in conjunction with S/4HANA Cloud for central finance foundation, private edition, tailored option.
- 23.4.2. There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.
- 24. SAP S/4HANA CLOUD FOR REAL ESTATE MANAGEMENT CLOUD, RESIDENTIAL PROPERTY MGMT, PRIVATE EDITION, TAILORED OPTION**
- 24.1. Usage Metric: Object. In lieu of the definition in Section 1, an Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, rental units are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 24.2. Block size: 1,000
- 25. SAP S/4HANA CLOUD FOR FINANCIAL SHARED SERVICE FRAMEWORK, PRIVATE EDITION, TAILORED OPTION**
- 25.1. Usage Metric: Transaction. In lieu of the definition in Section 1, Transaction is any message, job, action, response, and/or task processed via the Subscription Software.
- 25.2. Block size: 10,000
- 26. SAP S/4HANA CLOUD FOR GROUP REPORTING, PRIVATE EDITION, TAILORED OPTION**
- 26.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, the total number of entities (entities correspond to the consolidation unit) are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 26.2. Block size: 25
- 26.3. Additional Terms and Conditions
- 26.3.1. 50 entities of SAP S/4HANA Cloud for group reporting, private edition, tailored option are included in each subscription of SAP S/4HANA Cloud for RISE with SAP S/4HANA Cloud, private edition, tailored option, regardless of the number of FUEs or Documents subscribed. This does not include use rights for SAP Group Reporting for Data Collection.
- 27. SAP S/4HANA CLOUD FOR FINANCIAL ASSET MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 27.1. Usage Metric: Assets under Management. In lieu of the definition in Section 1, Assets Under Management is the total value of all assets managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 27.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 27.3. Additional Terms and Conditions: This Subscription Software provides usage rights to administrate securities, money market, foreign exchange and derivative instruments and performs corresponding subledger accounting activities according to several legislations in parallel. Loans Management and Statutory Reporting is not included in the solution and has to be subscribed to as separate add-ons.

28. SAP S/4HANA CLOUD FOR FINANCIAL ASSET MANAGEMENT, LOANS ADD-ON, PRIVATE EDITION, TAILORED OPTION

- 28.1. Usage Metric: Assets under Management. In lieu of the definition in Section 1, Assets Under Management is the total value of all assets managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 28.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 28.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution. This Subscription Software requires SAP S/4HANA Cloud for financial asset management, private edition, tailored option as a prerequisite. This Subscription Software provides usage rights to administrate loans for the purpose of insurance asset management or corporate treasury. It performs corresponding subledger accounting activities according to several legislations in parallel. This Subscription Software does not provide use rights for the banking business.

29. SAP S/4HANA CLOUD FOR FINANCIAL ASSET MANAGEMENT, STATUTORY REPORTING ADD-ON, PRIVATE EDITION, TAILORED OPTION

- 29.1. Usage Metric: Assets under Management. In lieu of the definition in Section 1, Assets Under Management is the total value of all assets managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 29.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 29.3. Additional Terms and Conditions: This Subscription Software is a Pioneer Solution. This Subscription Software requires SAP S/4HANA Cloud for financial asset management, private edition, tailored option as a prerequisite.

30. SAP S/4HANA CLOUD FOR ACCOUNTING INTEGRATION, PRIVATE EDITION, TAILORED OPTION

- 30.1. Usage Metric: Record. For this Subscription Software, Records are the number of active contracted items / assets and services. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 30.2. Block size: 10,000
- 30.3. Maximum Usage: 154 Blocks
- 30.4. Additional Terms and Conditions:
 - 30.4.1. There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.
 - 30.4.2. This solution is limited to the following language versions:
 - 30.4.2.1. Available Log-On Languages: English
 - 30.4.2.2. Available Documentation Languages: English

31. SAP S/4HANA CLOUD FOR FINANCIAL THREE LINES OF DEFENSE, PRIVATE EDITION, TAILORED OPTION

- 31.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

32. SAP S/4HANA CLOUD FOR TAX COMPLIANCE, PRIVATE EDITION, TAILORED OPTION

- 32.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 32.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 32.3. Maximum Usage: 1,000 Blocks
- 32.4. Additional Terms and Conditions

There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.

33. SAP DOCUMENT AND REPORTING COMPLIANCE FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

- 33.1. Usage Metric: Object. In lieu of the definition in Section 1, each company code and country combination is counted as an individual Object. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

34. SAP S/4HANA CLOUD FOR PUBLIC SECTOR FOR TAX, SOCIAL SERVICES AND PAYMENT PROCESSING, PRIVATE EDITION, TAILORED OPTION

- 34.1. Usage Metric: Contact. In lieu of the definition in Section 1, Contact is each individual data object for each customer, prospect, business partner, or constituent profile managed via the Subscription Software. For this Subscription Software, total number of legal entities are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 34.2. Block size: 10,000

35. SAP S/4HANA CLOUD FOR ACCESS CONTROL, PRIVATE EDITION, TAILORED OPTION

- 35.1. Usage Metric: Resource. In lieu of the definition in Section 1, Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 35.2. Block size: 100

36. SAP S/4HANA CLOUD FOR BUSINESS INTEGRITY SCREENING, PRIVATE EDITION, TAILORED OPTION

- 36.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 36.2. Additional Terms and Conditions

Customer is allowed to create new tables and new views (database views, analytical views, projection views, attribute views, calculation views, etc.) on the database as long as they are used in the context of the SAP Business Integrity Screening for S/4HANA Cloud, private edition, tailored option solution (e.g., to setup rules which access these tables/views).

37. SAP S/4HANA CLOUD FOR CONTRACT, LEASE AND REAL ESTATE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 37.1. Usage Metric: Object. In lieu of the definition in Section 1, an object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 37.2. Block size: 100

38. SAP S/4HANA CLOUD FOR GOODS AND INVOICE RECEIPT RECONCILIATION, PRIVATE EDITION, TAILORED OPTION

- 38.1. Usage Metric: Entities

- 38.2. Block size: 25

39. SAP COMMODITY RISK MANAGEMENT FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

- 39.1. Usage Metric: Document. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software, and for this Subscription Software, the number of new and active commodity derivatives and exchange traded lot positions are counted. The Usage Metric entitlement in the Order Form is based on a monthly entitlement.

- 39.2. Block size: 100

40. SAP S/4HANA CLOUD FOR BILLING AND REVENUE INNOVATION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

40.1. Usage Metric: Revenue & Expense. In lieu of the definition in Section 1, Revenue & Expense is the total amount of revenue and expenses processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

40.2. Block size: €50 million (converted to local currency using SAP standard exchange rates)

41. SAP S/4HANA CLOUD FOR ENTERPRISE CONTRACT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

41.1. Usage Metric: Record. In lieu of the definition in Section 1, Record is each individual data object managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

41.2. Additional Terms and Conditions

All "Legal Transactions" in status 'On Track', 'Pending', 'Open Issues' are counted as Records.

42. SAP CENTRAL FINANCE TRANSACTION REPLICATION BY INSIGHTSOFTWARE FOR SAP PRIVATE EDITION, TAILORED OPTION

42.1. Usage Metric: Revenues. In lieu of the definition in Section 1, "Revenues" mean the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

42.1.1. For SAP Customer Experience branded products, Revenue is the calculation of Customer's and its Affiliates' total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns.

42.1.2. For Insurance, Revenue is the same as "Premiums."

42.1.3. For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management."

42.1.4. For Other Banks, Revenues are the sum of Customer's gross interest income and noninterest income (i.e., provisions, service charges, trading income) as stated on Customer's Income Statement.

42.1.5. For Public Sector, Revenues are the same as "Total Annual Budgets." Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

42.2. Block size: €1 billion (converted to local currency using SAP standard exchange rates)

43. SAP ELECTRONIC INVOICING F. BRAZIL (NFE - INBOUND) FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

43.1. Usage Metric: Spend Volumes. In lieu of the definition in Section 1, "Spend Volumes" mean the company's annual expenditures for the procurement of all direct and indirect goods and services.

43.1.1. For SAP Electronic Invoicing for Brazil (NFE-Inbound), only Spend Volumes in Brazil are to be considered.

43.1.2. For Public Sector entities, Public Sector Spend Budgets may be used instead. Public Sector spend budget is the figure, published annually, that documents an organization's procurement budget for all direct and indirect goods and services.

43.2. Block size: € 520,000 (converted to local currency using SAP standard exchange rates)

43.3. Additional Terms and Conditions

43.3.1. Includes SAP BusinessObjects Enterprise as Runtime Software.

43.3.2. Includes SAP Crystal Reports, SAP BusinessObjects Enterprise as Runtime Software.

43.3.3. Includes Runtime Software of SAP Lumira Server which excludes the following rights:

43.3.3.1. Creation of a new Lumira document using Lumira Server; and

43.3.3.2. Modification of existing Lumira documents using Lumira Server.

44. SAP ELECTRONIC INVOICING F. BRAZIL (NFE - OUTBOUND) FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

44.1. Usage Metric: Revenues. In lieu of the definition in Section 1, "Revenues" mean the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes.

44.1.1. For SAP Customer Experience branded products, Revenue is the calculation of Customer's and its Affiliates' total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns.

44.1.2. For Insurance, Revenue is the same as "Premiums."

44.1.3. For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management."

44.1.4. For Other Banks, Revenues are the sum of Customer's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Customer's Income Statement.

44.1.5. For Public Sector, Revenues are the same as "Total Annual Budgets."

44.1.6. For SAP Electronic Invoicing for Brazil (NFE), only the revenues generated by the company or legal entity located in Brazil need to be considered.

44.2. Block size: €7.8 million (converted to local currency using SAP standard exchange rates)

44.2.1. Additional Terms and Conditions

44.2.2. Includes SAP BusinessObjects Enterprise as Runtime Software.

44.2.3. Includes SAP Crystal Reports, SAP BusinessObjects Enterprise as Runtime Software.

44.2.4. Includes Runtime Software of SAP Lumira Server which excludes the following rights:

44.2.4.1. Creation of a new Lumira document using Lumira Server; and

44.2.4.2. Modification of existing Lumira documents using Lumira Server.

45. SAP CENTRAL FINANCE MASTER DATA HARMONIZATION BY INSIGHTSOFTWARE FOR S/4HANA PRIVATE EDITION, TAILORED OPTION

45.1. Usage Metric: Revenues. In lieu of the definition in Section 1, "Revenues" mean the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

45.1.1. For SAP Customer Experience branded products, Revenue is the calculation of Customer's and its Affiliates' total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns.

45.1.2. For Insurance, Revenue is the same as "Premiums."

45.1.3. For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management."

45.1.4. For Other Banks, Revenues are the sum of Customer's gross interest income and noninterest income (i.e., provisions, service charges, trading income) as stated on Customer's Income Statement.

45.1.5. For Public Sector, Revenues are the same as "Total Annual Budgets."

45.2. Block size: €1 billion (converted to local currency using SAP standard exchange rates)

46. SAP S/4HANA CLOUD FOR FINANCIAL POSTING GATEWAY, PRIVATE EDITION, TAILORED OPTION

- 46.1. Usage Metric: Document. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software, and for this Subscription Software, accounting documents are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 46.2. Block size: 1,000,000
- 46.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution. This Subscription Software is restricted to customers who are not in the financial services industry.

DIGITAL SUPPLY CHAIN

47. SAP MANUFACTURING EXECUTION CLOUD, PRIVATE EDITION, TAILORED OPTION

- 47.1. Usage Metric: Resource. In lieu of the definition in Section 1, a Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

48. SAP S/4HANA CLOUD FOR CARD MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 48.1. Usage Metric: Items. In lieu of the definition in Section 1, "Items" mean the number of active cards stored in the system.
- 48.2. Block size: 50,000
- 48.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

49. SAP S/4HANA CLOUD FOR PAYMENT CENTRALIZATION, PRIVATE EDITION, TAILORED OPTION

- 49.1. Usage Metric: Transactions. In lieu of the definition in Section 1, "Transactions" are messages, jobs, or tasks processed by the Subscription Software.
- 49.2. Block Size: 10,000

50. SAP S/4HANA CLOUD FOR TRANSPORTATION CHARGE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 50.1. Usage Metric: Spend. The definition in Section 1 is supplemented as follows: For this Subscription Software, only freight spend, which includes all costs incurred in transporting products, is counted.
- 50.2. Block size: €2,5 million (converted to local currency using SAP standard exchange rates)
- 50.3. Additional Terms and Conditions

This package includes "SAP Event Management on SAP S/4HANA," but use of SAP Event Management on SAP S/4HANA is limited to transportation processes covered by SAP Transportation Management, such as the tracking of freight orders and freight units.

51. SAP S/4HANA CLOUD FOR TRANSPORTATION PLANNING & EXECUTION, PRIVATE EDITION, TAILORED OPTION

- 51.1. Usage Metric: Spend. The definition in Section 1 is supplemented as follows: For this Subscription Software, only freight spend, which includes all costs incurred in transporting products, is counted.
- 51.2. Block size: €2,5 million (converted to local currency using SAP standard exchange rates)
- 51.3. Additional Terms and Conditions:

This package includes "SAP Event Management on SAP S/4HANA," but use of SAP Event Management on SAP S/4HANA is limited to transportation processes covered by SAP Transportation Management, such as the tracking of freight orders and freight units.

52. SAP S/4HANA CLOUD, TRANSPORTATION MANAGEMENT FOR T&L, PRIVATE EDITION, TAILORED OPTION

- 52.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

- 52.2. Block size: €2,5 million (converted to local currency using SAP standard exchange rates)
- 52.3. Additional Terms and Conditions
- 52.3.1. Business Partners may provide information to or view information in SAP Transportation Management for T&L, cloud edition as part of the planning, execution or settlement of freight within SAP TM. Business Partners do not require an FUE license. This includes any user necessary for SAP Gateway access.
- 52.3.2. This package includes “SAP Event Management on SAP S/4HANA,” but use of SAP Event Management on SAP S/4HANA is limited to transportation processes covered by SAP Transportation Management, such as the tracking of freight orders and freight units.
- 53. SAP EVENT MANAGEMENT ON SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 53.1. Usage Metric: Document. In lieu of the definition in Section 1, a Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 53.2. Block size: 100,000
- 54. SAP S/4HANA CLOUD, SUPPLY CHAIN FOR EXTENDED WAREHOUSE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 54.1. Usage Metric: Document. The definition in Section 1 is supplemented with the following: For:
 - 54.1.1. Shipper scenario items are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery.
 - 54.1.2. Transit Warehousing scenario - In transit warehousing delivery line items are not used. For the transit warehousing scenario, Items are the packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process.
- 54.2. Block size: 600,000
- 55. SAP S/4HANA CLOUD SUPPLY CHAIN FOR EXTENDED SERVICE PARTS PLANNING, PRIVATE EDITION, TAILORED OPTION**
- 55.1. Usage Metric: Revenues. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 55.1.1. Block size: € 250 million (converted to local currency using SAP standard exchange rates)
- 56. SAP PRODUCT AND PROCESS GOVERNANCE BY BDF FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 56.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 57. SAP S/4HANA CLOUD FOR ENVIRONMENT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 57.1. Usage Metric: Record. The definition in Section 1 is supplemented as follows: For this Subscription Software, unique EHS locations are counted. EHS locations are central master data objects identifying a real place, virtual space or object organized in a hierarchy to represent where a location exists spatially or functionally in a company.
- 58. SAP S/4HANA CLOUD FOR HEALTH AND SAFETY MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 58.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: Users are measured as individuals with an active profile in the Subscription Software and whose data is processed in the Subscription Software. For clarification, a single User with multiple contracts or roles such as concurrent employment or global assignments shall be counted as one User.
- 58.2. Block size: 100

59. SAP S/4HANA CLOUD FOR INCIDENT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

59.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted.

59.2. Block size: 100

60. SAP S/4HANA CLOUD, ENTERPRISE PORTFOLIO AND PROJECT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION, PROFESSIONAL

60.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

61. SAP S/4HANA CLOUD, ENTERPRISE PORTFOLIO AND PROJECT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION, STANDARD

61.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

61.2. Additional Terms and Conditions

SAP S/4HANA Cloud for Enterprise Portfolio and Project Management, private edition, tailored option, standard edition includes right to view project and portfolio information, use analytical capabilities, approve projects, phases and decision points, fill out questionnaires, provide input for financial and capacity planning, view and confirm assigned tasks and report project efforts. In addition, Users are allowed to use cross project views and review commercial information of projects, create and manage project risks and project activities related to project risk, issue and change management.

62. SAP S/4HANA CLOUD FOR ADVANCED VARIANT CONFIGURATION, PRIVATE EDITION, TAILORED OPTION, PROFESSIONAL VERSION

62.1.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

63. SAP S/4HANA CLOUD FOR ADVANCED VARIANT CONFIGURATION, PRIVATE EDITION, TAILORED OPTION, STANDARD VERSION

63.1.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

63.1.2. Additional Terms and Conditions

Includes rights to configure e.g. sales orders using the SAP Fiori-based advanced configurator for materials using configuration profiles of mode "Advanced Variant Configuration" and create material variants for materials using configuration profiles of mode "Advanced Variant Configuration".

64. SAP S/4HANA CLOUD FOR EXTENDED PLANNING, PRIVATE EDITION, TAILORED OPTION

64.1. Usage Metric: Revenue

64.2. Block size: €250 million (converted to local currency using SAP standard exchange rates)

65. SAP S/4HANA CLOUD FOR R&D FOR ENTERPRISE PRODUCT FORMULATION, PRIVATE EDITION, TAILORED OPTION

65.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

66. SAP S/4HANA CLOUD FOR R&D FOR ENTERPRISE PRODUCT ENGINEERING, PRIVATE EDITION, TAILORED OPTION

66.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

66.2. This Subscription Software includes on-premise components that need to be downloaded and installed by the Customer as described in Documentation. The System Availability Service Level does not apply to this component.

Customer may only use the on-premise components during the Subscription Term. Use of SAP 3D Visual Enterprise Generator is limited to 1 core of usage. Use of collaborative product development and product structure synchronization functionality is limited to discrete industry product development functionality.

67. SAP S/4HANA CLOUD FOR MANUFACTURING FOR PLANNING AND SCHEDULING, PRIVATE EDITION, TAILORED OPTION

67.1. Usage Metric: Cost of Goods Sold. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

67.2. Block size: €100 million (converted to local currency using SAP standard exchange rates)

68. SAP S/4HANA CLOUD FOR MANUFACTURING FOR PRODUCTION ENGINEERING AND OPERATIONS, PRIVATE EDITION, TAILORED OPTION

68.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

69. S/4HANA CLOUD FOR MANUFACTURING LOGISTICS, PRIVATE EDITION, TAILORED OPTION

69.1. Usage Metric: Document. The definition in Section 1 is supplemented as follows: For:

69.2. Shipper scenario items are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery. Transit Warehousing scenario - In transit warehousing delivery line items are not used. For the transit warehousing scenario, Items are the packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process.

69.3. Block size: 600,000

70. SAP ENGINEERING CONTROL CENTER FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION, PROFESSIONAL EDITION

70.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

71. SAP ENGINEERING CONTROL CENTER FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION, STANDARD EDITION

71.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

72. SAP WORK CLEARANCE MANAGEMENT FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

72.1. Usage Metric: Resource. In lieu of the definition in Section 1, a Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

72.2. Block size: 80,000

73. SAP SPATIAL ASSET MANAGEMENT FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

73.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

74. SAP S/4HANA CLOUD FOR ADVANCED AVAILABLE-TO-PROMISE, PRIVATE EDITION, TAILORED OPTION

74.1. Usage Metric: Revenue. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

74.2. Block size: €250 million (converted to local currency using SAP standard exchange rates)

75. SAP S/4HANA CLOUD FOR PRODUCT COMPLIANCE, PRIVATE EDITION, TAILORED OPTION

75.1. Usage Metric: Revenue. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

- 75.2. Block size: €50 million (converted to local currency using SAP standard exchange rates)
- 76. SAP S/4HANA CLOUD FOR MANAGEMENT OF CHANGE, PRIVATE EDITION, TAILORED OPTION**
- 76.1. Usage Metric: User
- 76.2. Block size: 100
- 77. SAP COMMODITY MANAGEMENT FOR PHYSICAL CONTRACTS FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 77.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 77.2. Block size: €10 million (converted to local currency using SAP standard exchange rates)
- 78. SAP INCENTIVE ADMINISTRATION BY VISTEX FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 78.1. Usage Metric: Revenues. The definition in Section 1 is supplemented as follows: The Usage Metric is based only on Revenues managed through the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 78.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 79. SAP PAYBACKS AND CHARGEBACKS BY VISTEX FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 79.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 79.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 80. SAP PROMOTIONS AND AGREEMENTS BY VISTEX FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 80.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 80.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 81. SAP DATA MAINTENANCE BY VISTEX, PRICING OPTION FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 81.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 81.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 82. SAP DATA MAINTENANCE BY VISTEX, RESOURCES OPTION FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 82.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 82.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 83. SAP S/4HANA CLOUD FOR RIGHTS AND ROYALTY MANAGEMENT BY VISTEX, PRIVATE EDITION, TAILORED OPTION**
- 83.1. Usage Metric: Revenue & Expense. In lieu of the definition in Section 1, Revenue & Expense is the total amount of revenue and expenses processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 83.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 84. SAP MANUFACTURING INTEGRATION AND INTELLIGENCE FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 84.1. Usage Metric: Resource. In lieu of the definition in Section 1, Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term
- 85. SAP CONVERGENT MEDIATION BY DIGITALROUTE CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 85.1. Usage Metric: Revenue & Expense. In lieu of the definition in Section 1, Revenue & Expense is the total amount of revenue and expenses processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 85.2. Block size: € 50 million (converted to local currency using SAP standard exchange rates)
- 86. SAP PRODUCT DATA MANAGEMENT INTEGRATION TO SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 86.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 86.2. Additional Terms and Conditions
- 86.2.1. This solution is limited to the following language versions:
- 86.2.1.1. Available Log-On Languages: English
- 86.2.1.2. Available Documentation Languages: English
- 87. SAP INFORMATION LIFECYCLE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 87.1. Usage Metric: Connection. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 87.2. Additional Terms and Conditions: This Subscription Software includes a restricted runtime license of SAP Landscape Transformation Replication Server ("SLT"). This Subscription Software includes a restricted runtime license of 4 cores of SAP IQ to be used solely as a data store for ILM.
- 88. SAP ENTERPRISE PROJECT CONNECTION FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 88.1. Usage Metric: Flat Fee
- 89. SAP S/4HANA CLOUD FOR LAST MILE DISTRIBUTION, PRIVATE EDITION, TAILORED OPTION**
- 89.1. Usage Metric: Transactions. In lieu of the definition in Section 1, "Transactions" means the number of annual store or customer visits performed by field sales or delivery personnel (e.g., delivery drivers, van sellers, merchandisers) as maintained by the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 89.1.1. Block size: 100,000
- 90. SAP BUSINESS PROCESS INTEGRATION FOR TEAMCENTER TO SAP S/4HANA PRIVATE EDITION, TAILORED OPTION**
- 90.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP.
- 91. SAP PRODUCT DATA MANAGEMENT INTEGRATION TO TEAMCENTER, PRIVATE EDITION, TAILORED OPTION**
- 91.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 92. SAP PRODUCT DATA MANAGEMENT INTEGRATION TO PTC WINDCHILL, PRIVATE EDITION, TAILORED OPTION**
- 92.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 93. SAP PRODUCT DATA MANAGEMENT INTEGRATION TO 3DEXPERIENCE, PRIVATE EDITION, TAILORED OPTION**
- 93.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 94. GLOBAL BATCH TRACEABILITY PRIVATE EDITION, TAILORED OPTION**
- 94.1. Usage Metric: Document. For the Shipper scenario, documents are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery For the Transit Warehousing scenario, documents are the packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 95. SAP S/4HANA CLOUD SUPPLY CHAIN FOR SUPPLY & DEMAND SEGMENTATION, PRIVATE EDITION, TAILORED OPTION**
- 95.1. Usage Metric: Object. The definition in Section 1 is supplemented as follows: only objects linked to the segmentation field in material master are considered. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 95.2. Block size: 20
- 96. SAP S/4HANA CLOUD FOR TRANSPORTATION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 96.1. Usage Metric: Spend. The definition in Section 1 is supplemented as follows: only freight spend, which includes all costs incurred in transporting products, is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 96.2. Block size: 2,500,000
- 97. SAP PRODUCT LIFECYCLE COSTING PRIVATE EDITION, TAILORED OPTION**
- 97.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 98. SAP ADVANCED PLANNING AND OPTIMIZATION, PRIVATE EDITION, TAILORED OPTION**
- 98.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 99. PLM SYSTEM INTEGRATION FOR SAP S/4HANA, PRIVATE CLOUD EDITION, TAILORED OPTION**
- 99.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 100. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR NX, PRIVATE EDITION, TAILORED OPTION**
- 100.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 101. SAP TEAMCENTER BY SIEMENS, LIBRARY MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 101.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 102. SAP TEAMCENTER BY SIEMENS, PARAMETER MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 102.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 103. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL3 CONSUMER, PRIVATE EDITION, TAILORED OPTION**
- 103.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 104. SAP TEAMCENTER BY SIEMENS, PACKAGING & ARTWORK, PRIVATE EDITION, TAILORED OPTION**
- 104.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 105. SAP TEAMCENTER BY SIEMENS, VISUALIZATION STANDARD, PRIVATE EDITION, TAILORED OPTION**
- 105.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 106. SAP TEAMCENTER BY SIEMENS, BRAND MANAGEMENT USER, PRIVATE EDITION, TAILORED OPTION**
- 106.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 107. SAP TEAMCENTER BY SIEMENS, GATEWAY FOR ENTERPRISE APPLICATIONS, PRIVATE EDITION, TAILORED OPTION**
- 107.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 108. SAP TEAMCENTER BY SIEMENS, SOLIDWORKS ENTERPRISE EDITION INTEGRATION, PRIVATE EDITION, TAILORED OPTION**
- 108.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 109. SAP TEAMCENTER BY SIEMENS, INTEGRATED MATERIAL MGMT, PRIVATE EDITION, TAILORED OPTION**
- 109.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 110. SAP TEAMCENTER BY SIEMENS, AS-BUILT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 110.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 111. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR AUTOCAD ELECTRICAL, PRIVATE EDITION, TAILORED OPTION**
- 111.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 112. SAP TEAMCENTER BY SIEMENS, JT BI-DIRECTIONAL TRANSLATOR FOR CATIA V5, PRIVATE EDITION, TAILORED OPTION**
- 112.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 113. SAP TEAMCENTER BY SIEMENS, JT IMPORT FOR CATIA V5, PRIVATE EDITION, TAILORED OPTION**
- 113.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 114. SAP TEAMCENTER BY SIEMENS, OPEN SDK, PRIVATE EDITION, TAILORED OPTION**
- 114.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 115. SAP TEAMCENTER BY SIEMENS, PARTITIONS, PRIVATE EDITION, TAILORED OPTION**
- 115.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 116. SAP TEAMCENTER BY SIEMENS, CLASSIFICATION, PRIVATE EDITION, TAILORED OPTION**
- 116.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 117. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR INVENTOR, PRIVATE EDITION, TAILORED OPTION**
- 117.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 118. SAP TEAMCENTER BY SIEMENS, ADVANCED BOM ROLLUP, PRIVATE EDITION, TAILORED OPTION**
- 118.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 119. SAP TEAMCENTER BY SIEMENS, AUTHOR, PRIVATE EDITION, TAILORED OPTION**
- 119.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 120. SAP TEAMCENTER BY SIEMENS, OCCASIONAL AUTHOR, PRIVATE EDITION, TAILORED OPTION**
- 120.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 121. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR CREO, PRIVATE EDITION, TAILORED OPTION**
- 121.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 122. SAP TEAMCENTER BY SIEMENS, CHANGE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 122.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 123. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR SOLIDWORKS, PRIVATE EDITION, TAILORED OPTION**
- 123.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 124. SAP TEAMCENTER BY SIEMENS, ADV PRODUCT CONFIGURATOR-LEVEL 1 SOLVER, PRIVATE EDITION, TAILORED OPTION**
- 124.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 125. SAP TEAMCENTER BY SIEMENS, GATEWAY FOR EDA LIBRARY, PRIVATE EDITION, TAILORED OPTION**
- 125.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 126. SAP TEAMCENTER BY SIEMENS, ENGINEERING PRODUCT CONFIGURATOR AUTHOR, PRIVATE EDITION, TAILORED OPTION**
- 126.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 127. SAP TEAMCENTER BY SIEMENS, GATEWAY FOR EDA, PRIVATE EDITION, TAILORED OPTION**
- 127.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 128. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL2 CONSUMER, PRIVATE EDITION, TAILORED OPTION**
- 128.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 129. SAP TEAMCENTER BY SIEMENS, SMART DISCOVERY, PRIVATE EDITION, TAILORED OPTION**
- 129.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 130. SAP TEAMCENTER BY SIEMENS, PROGRAM PLANNING, PRIVATE EDITION, TAILORED OPTION**
- 130.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 131. SAP TEAMCENTER BY SIEMENS, CONTENT MANAGEMENT S1000D, PRIVATE EDITION, TAILORED OPTION**
- 131.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 132. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL 3 ADVANCED, PRIVATE EDITION, TAILORED OPTION**
- 132.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 133. SAP TEAMCENTER BY SIEMENS, PARTNER CONNECT, PRIVATE EDITION, TAILORED OPTION**
- 133.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 134. SAP TEAMCENTER BY SIEMENS, SYSTEMS ENGINEERING, PRIVATE EDITION, TAILORED OPTION**
- 134.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 135. SAP TEAMCENTER BY SIEMENS, VERIFICATION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 135.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 136. SAP TEAMCENTER BY SIEMENS, CONSUMER, PRIVATE EDITION, TAILORED OPTION**
- 136.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 137. SAP TEAMCENTER BY SIEMENS, MULTI STRUCTURE FOUNDATION, PRIVATE EDITION, TAILORED OPTION**
- 137.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 138. SAP TEAMCENTER BY SIEMENS, ENGINEERING PRODUCT CONFIGURATOR-LV2, PRIVATE EDITION, TAILORED OPTION**
- 138.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 139. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL1 UNIT, PRIVATE EDITION, TAILORED OPTION**
- 139.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 140. SAP TEAMCENTER BY SIEMENS, AI FOR CLASSIFICATION, PRIVATE EDITION, TAILORED OPTION**
- 140.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

- 141. SAP TEAMCENTER BY SIEMENS, CONTEXT MANAGER, PRIVATE EDITION, TAILORED OPTION**
- 141.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 142. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL1 CONSUMER, PRIVATE EDITION, TAILORED OPTION**
- 142.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 143. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR AUTOCAD, PRIVATE EDITION, TAILORED OPTION**
- 143.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 144. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR MENTOR PADS, PRIVATE EDITION, TAILORED OPTION**
- 144.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 145. SAP TEAMCENTER BY SIEMENS, REQUIREMENTS MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 145.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 146. SAP TEAMCENTER BY SIEMENS, SCHEDULE MANAGER, PRIVATE EDITION, TAILORED OPTION**
- 146.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 147. SAP TEAMCENTER BY SIEMENS, STEP AP203-214 TRANS, PRIVATE EDITION, TAILORED OPTION**
- 147.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 148. SAP TEAMCENTER BY SIEMENS, CONTENT MANAGEMENT USER, PRIVATE EDITION, TAILORED OPTION**
- 148.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 149. SAP TEAMCENTER BY SIEMENS, VISUALIZATION MOCKUP, PRIVATE EDITION, TAILORED OPTION**
- 149.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 150. SAP TEAMCENTER BY SIEMENS, GATEWAY FOR PLM SYSTEM INTEGRATION, PRIVATE EDITION, TAILORED OPTION**
- 150.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 151. SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR CATIA, PRIVATE EDITION, TAILORED OPTION**
- 151.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 152. SAP TEAMCENTER BY SIEMENS, RAPID START FOR ALTIUM DESIGNER, PRIVATE EDITION, TAILORED OPTION**
- 152.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

153. SAP TEAMCENTER BY SIEMENS, RELATIONSHIP BROWSER, PRIVATE EDITION, TAILORED OPTION

153.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

154. SAP TEAMCENTER BY SIEMENS, EBOM LEVEL2 VARIANT, PRIVATE EDITION, TAILORED OPTION

154.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

155. SAP TEAMCENTER BY SIEMENS, SERVICE PLANNING, PRIVATE EDITION, TAILORED OPTION

155.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

156. SAP TEAMCENTER BY SIEMENS, SIMULATION AUTHOR, PRIVATE EDITION, TAILORED OPTION

156.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

157. SAP TEAMCENTER BY SIEMENS, SEMI LIFECYCLE MANAGEMENT NPI, PRIVATE EDITION, TAILORED OPTION

157.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

158. SAP TEAMCENTER BY SIEMENS, SYSTEMS MODELER, PRIVATE EDITION, TAILORED OPTION

158.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

159. SAP TEAMCENTER BY SIEMENS, VISUALIZATION PROFESSIONAL, PRIVATE ED, TAILORED OPTION

159.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

PROCUREMENT

160. SAP S/4HANA CLOUD FOR CENTRAL PROCUREMENT, PRIVATE EDITION, TAILORED OPTION

160.1. Usage Metric: Spend. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

160.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)

HUMAN EXPERIENCE MANAGEMENT

161. SAP PAYROLL CLOUD, PRIVATE EDITION, TAILORED OPTION

161.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

161.2. Additional Terms and Conditions

SAP Payroll Cloud, private edition, tailored option includes display use rights.

162. SAP CORE HUMAN CAPITAL MANAGEMENT CLOUD, PRIVATE EDITION, TAILORED OPTION

162.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

162.2. Additional Terms and Conditions

SAP Core Human Capital Management Cloud, private edition, tailored option includes display use rights.

163. SAP TIME TRACKING CLOUD, PRIVATE EDITION, TAILORED OPTION

163.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

163.2. Additional Terms and Conditions

SAP Time Tracking Cloud, private edition, tailored option includes display use rights.

164. SAP S/4HANA SALES FOR INCENTIVE AND COMMISSION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

164.1. Usage Metric: Contacts

164.2. Additional Terms and Conditions

Does not include agent portfolio assignment, liability management, actual commissioning and cancellation reserves, portfolio and liability transfer processes.

ENTERPRISE INFORMATION MANAGEMENT

165. SAP S/4HANA CLOUD FOR MASTER DATA GOVERNANCE CLOUD, PRIVATE EDITION, TAILORED OPTION

165.1. Usage Metric: Object. In lieu of the definition in Section 1, an Object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

165.2. Block size: 5,000

165.3. Maximum Usage: 1,000 Blocks

165.4. Additional Terms and Conditions

There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.

166. SAP MASTER DATA GOVERNANCE APPLICATION, ENTERPRISE ASSET MANAGEMENT EXTENSION BY UTOPIA FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

166.1. Usage Metric: Object. In lieu of the definition in Section 1, an object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

166.2. Block size: 5,000

167. SAP MASTER DATA GOVERNANCE, RETAIL AND FASHION MGMT EXT. BY UTOPIA ON SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

167.1. Usage Metric: Object. In lieu of the definition in Section 1, an object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

167.2. Block size: 5,000

168. SAP ASSET INFORMATION WORKBENCH BY UTOPIA FOR S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

168.1. Usage Metric: Object. In lieu of the definition in Section 1, an object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

168.2. Block size: 5,000

- 169. SAP EXTENDED ENTERPRISE CONTENT MANAGEMENT BY OPENTEXT FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 169.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.
- 170. SAP EXTENDED ECM BY OPENTEXT, LIMITED ACCESS OPTION FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 170.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.
- 171. SAP EXTENDED ECM BY OPENTEXT, ADD-ON FOR CAPITAL PROJECTS AND OPERATIONS FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 171.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.
- 172. SAP ARCHIVING AND DOCUMENT ACCESS BY OPENTEXT FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 172.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.
- 173. SAP ARCHIVING AND DOCUMENT ACCESS BY OPENTEXT, LIMITED ACCESS OPTION FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 173.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.
- 174. SAP INVOICE MANAGEMENT BY OPENTEXT FOR SAP S/4HANA, PRIVATE EDITION, TAILORED OPTION**
- 174.1. Usage Metric: Document. In lieu of the definition in Section 1, a Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 174.2. Block size: 1000
- 175. SAP INFORMATION CAPTURE BY OPENTEXT, PRIVATE EDITION, TAILORED OPTION**
- 175.1. Usage Metric: Documents
- 175.2. Block size: 1000
- 176. SAP DATA SERVICES ENTERPRISE, PRIVATE EDITION, TAILORED OPTION**
- 176.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

177. SAP POWERDESIGNER ENTERPRISE ARCHITECT PRIVATE EDITION, TAILORED OPTION

177.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

177.2. Additional Term and Conditions:

Includes SAP SQL Anywhere database, which may only be used as the metadata repository for PowerDesigner (where licensed) and for SQL language parsing.

178. SAP CODE VULNERABILITY ANALYZER, PRIVATE EDITION, TAILORED OPTION

178.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

OIL AND GAS

179. SAP S/4HANA CLOUD FOR OIL AND GAS HYDROCARBON MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

179.1. Usage Metric: Ton. The Usage Metric entitlement in the Order Form is based on a daily entitlement.

179.2. Block size: 1,000

180. SAP S/4HANA CLOUD FOR OIL AND GAS HYDROCARBON SUPPLY AND PRIMARY DISTRIBUTION, PRIVATE EDITION, TAILORED OPTION

180.1. Usage Metric: Ton. The Usage Metric entitlement in the Order Form is based on a daily entitlement.

180.2. Block size: 1,000

181. SAP S/4HANA CLOUD FOR OIL AND GAS UPSTREAM CONTRACTS MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

181.1. Usage Metric: Spend. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

181.2. Block size: 37,500,000

182. SAP S/4HANA CLOUD FOR OIL AND GAS UPSTREAM HYDROCARBON ACCOUNTING AND MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

182.1. Usage Metric: Ton. The Usage Metric entitlement in the Order Form is based on a daily entitlement.

182.2. Block size: 1,000

183. SAP S/4HANA CLOUD FOR OIL AND GAS SECONDARY DISTRIBUTION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

183.1. Usage Metric: Ton. The Usage Metric entitlement in the Order Form is based on a daily entitlement.

183.2. Block size: 1,000

184. SAP S/4HANA CLOUD FOR OIL AND GAS RETAIL FUEL NETWORK OPERATIONS, PRIVATE EDITION, TAILORED OPTION

184.1. Usage Metric: Ton. The Usage Metric entitlement in the Order Form is based on a daily entitlement.

184.2. Block size: 1,000

185. SAP S/4HANA CLOUD FOR FIELD EQUIPMENT AND MATERIAL LOGISTICS PLANNING AND EXECUTION, PRIVATE EDITION, TAILORED OPTION

185.1. Usage Metric: Transaction. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

185.2. Block size: 10,000

INSURANCE

- 186. SAP S/4HANA CLOUD FOR INSURANCE COLLECTIONS AND DISBURSEMENTS, PRIVATE EDITION, TAILORED OPTION**
- 186.1. Usage Metric: Revenue. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates.
- 186.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 187. SAP S/4HANA CLOUD FOR INSURANCE CLAIMS MANAGEMENT, PRIVATE EDITION, TAILORED OPTION**
- 187.1. Usage Metric: Revenue. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates.
- 187.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 187.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 188. SAP S/4HANA CLOUD FOR INSURANCE INCENTIVES AND COMMISSIONS, PRIVATE EDITION, TAILORED OPTION**
- 188.1. Usage Metric: Revenue. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates.
- 188.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 188.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 189. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION INSURANCE OPTION, CORE PROCESSES**
- 189.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 189.2. Block Size: €100 million (converted to local currency using SAP standard exchange rates)
- 189.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 190. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION INSURANCE OPTION, VALUATION AND DISCLOSURE ADD-ON**
- 190.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 190.2. Block Size: €100 million (converted to local currency using SAP standard exchange rates)
- 190.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 191. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION INSURANCE OPTION, SIMULATION ADD-ON**
- 191.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 191.2. Block Size: €100 million (converted to local currency using SAP standard exchange rates)
- 191.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 192. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION INSURANCE OPTION, FINANCIAL INSTRUMENTS ADD-ON**
- 192.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 192.2. Block Size: €100 million (converted to local currency using SAP standard exchange rates)
- 192.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

- 193. SAP S/4HANA FOR POLICY MANAGEMENT, NON-LIFE OPTION, CORE PROCESSES, PRIVATE EDITION, TAILORED OPTION**
- 193.1. Usage Metric: Premiums
 - 193.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 193.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 194. SAP S/4HANA FOR POLICY MANAGEMENT, NON-LIFE OPTION, QUOTATION AND UNDERWRITING ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 194.1. Usage Metric: Premiums
 - 194.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 194.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 195. SAP S/4HANA FOR POLICY MANAGEMENT, NON-LIFE OPTION, PRODUCT LIFECYCLE ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 195.1. Usage Metric: Premiums
 - 195.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 195.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 196. SAP S/4HANA FOR POLICY MANAGEMENT, NON-LIFE OPTION, GROUP ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 196.1. Usage Metric: Premiums
 - 196.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 196.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 197. SAP S/4HANA FOR POLICY MANAGEMENT, LIFE AND PENSION OPTION, CORE PROCESSES, PRIVATE EDITION, TAILORED OPTION**
- 197.1. Usage Metric: Premiums
 - 197.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 197.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 198. SAP S/4HANA FOR POLICY MANAGEMENT, LIFE AND PENSION OPTION, QUOTATION AND UNDERWRITING ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 198.1. Usage Metric: Premiums
 - 198.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 198.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 199. SAP S/4HANA FOR POLICY MANAGEMENT, LIFE AND PENSION OPTION, GROUP ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 199.1. Usage Metric: Premiums
 - 199.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 199.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.
- 200. SAP S/4HANA FOR POLICY MANAGEMENT, LIFE AND PENSION OPTION, POLICY LOANS ADD-ON, PRIVATE EDITION, TAILORED OPTION**
- 200.1. Usage Metric: Premiums
 - 200.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)
 - 200.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

201. SAP S/4HANA CLOUD FOR REINSURANCE ASSUMED RISKS, PRIVATE EDITION, TAILORED OPTION, INSURANCE OPTION

- 201.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 201.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 201.3. Additional Terms and Conditions: This Subscription Software provides usage rights to administer reinsurance contracts, process reinsurance claims, and apply technical reinsurance accounting and reinsurance statistics, such as ACORD Standards for Data Exchange, for the following lines of business: (1) Property and Casualty, and (2) Life and Health.

202. SAP S/4HANA CLOUD FOR REINSURANCE CEDED RISKS, PRIVATE EDITION, TAILORED OPTION, INSURANCE OPTION

- 202.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 202.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 202.3. Additional Terms and Conditions: This Subscription Software provides usage rights to administer reinsurance contracts, process reinsurance claims, and apply technical reinsurance accounting and reinsurance statistics for the following lines of business: (1) Property and Casualty, and (2) Life and Health.

203. SAP S/4HANA CLOUD FOR INSURANCE COLLECTIONS AND DISBURSEMENTS FOR REINSURANCE, PRIVATE EDITION, TAILORED OPTION

- 203.1. Usage Metric: Revenue. For this Subscription Software, premiums are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 203.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)
- 203.3. Additional Terms and Conditions: The usage is restricted to the context of reinsurance management.

BANKING

204. SAP S/4HANA CLOUD FOR TRANSACTIONAL BANKING, PRIVATE EDITION, TAILORED OPTION, NATURAL PERSON OPTION

- 204.1. Usage Metric: Contracts
- 204.2. Block size: 1,000
- 204.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

205. SAP S/4HANA CLOUD FOR TRANSACTIONAL BANKING, PRIVATE EDITION, TAILORED OPTION, LEGAL PERSON OPTION

- 205.1. Usage Metric: Contracts
- 205.2. Block size: 1,000
- 205.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

206. SAP S/4HANA CLOUD FOR TRANSACTIONAL BANKING, PRIVATE EDITION, TAILORED OPTION, GERMAN MORTGAGE LOANS OPTION

- 206.1. Usage Metric: Contracts
- 206.2. Block size: 1,000
- 206.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

207. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION BANKING OPTION, CORE PROCESSES

- 207.1. Usage Metric: Document. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

207.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)

207.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

208. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION BANKING OPTION, VALUATION ADD-ON

208.1. Usage Metric: Document. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

208.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)

208.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

209. SAP S/4HANA CLOUD FOR FINANCIAL PRODUCTS SUBLEDGER, PRIVATE EDITION, TAILORED OPTION BANKING OPTION, CONTROLLING AND DISCLOSURE ADD-ON

209.1. Usage Metric: Document. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

209.2. Block Size: €1 million (converted to local currency using SAP standard exchange rates)

209.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

210. SAP S/4HANA BANKING FOR COMPLEX LOANS, PRIVATE EDITION, TAILORED OPTION

210.1. Usage Metric: Contracts

210.2. Block Size: 1,000

210.3. Additional Terms and Conditions: This Subscription Software is a Pioneer solution.

211. SAP RESERVE FOR BAD DEBTS FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

211.1. Usage Metric: Document. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software, and for this Subscription Software, contracts are counted. The Usage Metric entitlement in the Order Form is based on a monthly entitlement.

211.2. Block size: 10,000

AUTOMOTIVE

212. S/4HANA CLOUD FOR VEHICLE SALES MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

212.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, the total number of vehicles and finished goods is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

212.2. Block size: 10,000

DEFENSE & SECURITY

213. S/4HANA DEFENSE & SECURITY PRIVATE EDITION, TAILORED OPTION

213.1. Usage Metric: Employees. For this Subscription Software, the definition in Section 1 is supplemented as follows: Employees are the numbers of full-time equivalents (FTE) employed in the organization – including military and civilian personnel & reserve. They are calculated as: $\text{Weighted Size} = \text{Military Personnel} \times 1.0 + \text{Reserve} \times 0.5 + \text{Civilian} \times 0.5$. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

UTILITIES

214. S/4HANA CLOUD FOR WATER UTILITIES, PRIVATE EDITION, TAILORED OPTION

214.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

214.2. Block size: 1,000

215. S/4HANA CLOUD FOR ENERGY UTILITIES, PRIVATE EDITION, TAILORED OPTION

215.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

215.2. Block size: 1,000

216. SAP S/4HANA CLOUD FOR UTILITIES CUSTOMER ENGAGEMENT, PRIVATE EDITION, TAILORED OPTION

216.1. Usage Metric: Point of Delivery. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

216.2. Block size: 1,000

217. SAP S/4HANA CLOUD FOR WASTE AND RECYCLING, PRIVATE EDITION, TAILORED OPTION, ENVIRONMENTAL SERVICES ADD-ON BY PROLOGA

217.1. Usage Metric: Documents. In lieu of the definition in Section 1, "Documents" mean uniquely identified objects processed by the Subscription Software in a contract year. The Usage Metric entitlement in the Order Form is based on a yearly entitlement. For this Subscription Software, Documents are:

- (a) Records that represent a day order for waste disposals and/or;
- (b) Additional disposal documents processed by the solution..

217.2. Block size: 1000

218. SAP S/4HANA UTILITIES EXTENSIONS FOR METER TO CASH PROCESSES BY PROLOGA, PRIVATE EDITION, TAILORED OPTION

218.1. Usage Metric: Capacity Unit. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

CONSUMER PRODUCTS

219. SAP FARM MANAGEMENT BY VISTEX FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

219.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

219.2. Block size: € 10 million (converted to local currency using SAP standard exchange rates)

220. SAP GROWER MANAGEMENT BY VISTEX FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

220.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

220.2. Block size: € 10 million (converted to local currency using SAP standard exchange rates)

221. SAP S/4HANA CLOUD FOR MEAT AND FISH MANAGEMENT BY MSG, PRIVATE EDITION, TAILORED OPTION

221.1. Usage Metric: Ton. The definition in Section 1 is supplemented as follows: the total aggregated weight of meat and fish that are processed through livestock operations, procurement, and production is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

221.2. Block size: 300

222. SAP S/4HANA CLOUD FOR DAIRY MANAGEMENT BY MSG, PRIVATE EDITION, TAILORED OPTION

222.1. Usage Metric: Ton. The definition in Section 1 is supplemented as follows: total aggregated weight of milk and dairy raw materials processed through planning, production and controlling is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

222.2. Block size: 1,200

223. SAP S/4HANA CLOUD FOR LIVESTOCK PROCUREMENT, PRIVATE EDITION, TAILORED OPTION

223.1. Usage Metric: Ton. In lieu of the definition in Section 1, For this Subscription Software, the live weight is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

223.2. Block size: 300

223.3. Additional Terms: This Subscription Software includes SAP Agricultural Contract Management for S/4HANA as Runtime Software.

RETAIL

224. SAP FORECASTING AND REPLENISHMENT CLOUD, PRIVATE EDITION, TAILORED OPTION

224.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

224.2. Block size: 1,000

225. SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

225.1. Usage Metric: Transaction. In lieu of the definition in Section 1, a Transaction is any message, job, action, response, and/or task processed via the Subscription Software. For this Subscription Software, the points of sale transactions across all stores are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

225.2. Block size: 10,000

225.3. Additional Terms and Conditions

225.3.1. Customer shall purchase from SAP system (memory) extensions where increased storage is required based on the use of SAP Customer Activity Repository Cloud as a platform for other solutions such as (by way of example Iowa only) SAP Assortment Planning, SAP Allocation Management, SAP Promotion Management, and/or SAP Replenishment Planning or use of SAP Customer Activity Repository Cloud as a platform to run an integrated forecasting engine.

226. SAP PROMOTION MANAGEMENT FOR SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

226.1. Usage Metric: Active User. The definition in Section 1 is supplemented as follows: for this Subscription Software, individuals who create and/or change the following objects: Offer, vendor fund, campaign, event and any area template, block template or content template, are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

227. SAP ASSORTMENT PLANNING FOR SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

227.1. Usage Metric: Active User. The definition in Section 1 is supplemented as follows: for this Subscription Software, individuals who create and/or change an assortment list or an option plan, are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

228. SAP MERCHANDISE PLANNING FOR SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

228.1. Usage Metric: Active User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

229. SAP ALLOCATION MANAGEMENT FOR SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

229.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

229.2. Block size: 1,000

229.3. Additional Terms and Conditions

229.3.1. This solution is limited to the following languages versions:

229.3.1.1. Available Log-On Languages: Czech, English, German, Chinese, Danish, Finnish, French, Italian, Spanish, Japanese, Norwegian, Portuguese, Russian, Swedish, Polish, Turkish, Bulgarian, Romanian, Serbian (Latin), Slovak

229.3.1.2. Available Documentation Languages: English

230. SAP REPLENISHMENT PLANNING FOR SAP CUSTOMER ACTIVITY REPOSITORY CLOUD, PRIVATE EDITION, TAILORED OPTION

230.1. Usage Metric: Object. Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

230.2. Block size: 1,000

231. SAP CUSTOMER ACTIVITY REPOSITORY, OMNICHANNEL PRICE AND PROMOTION SERVICE, PRIVATE EDITION, TAILORED OPTION

231.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, the number of products available for sale to customers is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

231.2. Block size: 1,000

232. SAP S/4HANA CLOUD FOR FASHION AND VERTICAL BUSINESS, PRIVATE EDITION, TAILORED OPTION

232.1. Usage Metric: Flat Fee. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

233. SAP S/4HANA CLOUD FOR RETAIL MERCHANDISE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

233.1. Usage Metric: Flat Fee. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

234. SAP S/4HANA CLOUD FOUNDATION FOR RETAIL AND FASHION, PRIVATE EDITION, TAILORED OPTION

234.1. Usage Metric: Document. In lieu of the definition in Section 1, Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, documents are purchase orders, sales orders, production orders and point-of-sale billing documents. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

234.2. Block size: 12,000

235. SAP S/4HANA FOR AGREEMENT PROFITABILITY AND NEGOTIATION BY GICOM PRIVATE EDITION, TAILORED OPTION

235.1. Usage Metric: Revenue & Expense. In lieu of the definition in Section 1, Revenue & Expense is the total amount of revenue and expenses processed via the Subscription Software. For this Subscription Software, sales and

purchasing volumes realized with external business partners are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

- 235.2. Block size: € 100,000,000 (converted to local currency using SAP standard exchange rates)

HIGHER EDUCATION AND RESEARCH

236. SAP S/4HANA CLOUD FOR STUDENT LIFECYCLE MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 236.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 236.2. Block size: 100

PUBLIC SECTOR

237. SAP S/4HANA CLOUD, FOR BEHAVIORAL INSIGHTS, PRIVATE EDITION, TAILORED OPTION

- 237.1. Usage Metric: Contacts. The definition in Section 1 is supplemented as follows: For this Subscription Software, Contacts are the total number of legal entities processed by the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 237.2. Block size: 10,000

238. SAP S/4HANA CLOUD FOR PUBLIC SECTOR FOR TAX, BENEFITS AND PAYMENT PROCESSING, PRIVATE EDITION, TAILORED OPTION

- 238.1. Usage Metric: Contact. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 238.2. Block size: 10,000

239. SAP BUDGETING AND PLANNING FOR PUBLIC SECTOR, ADD-ON FOR S/4HANA PRIVATE EDITION, TAILORED OPTION

- 239.1. Usage Metric: Total annual budget
- 239.2. Block size: €100 million (converted to local currency using SAP standard exchange rates)
- 239.3. Additional Terms and Conditions

Includes the following Runtime Software: SAP Business Planning and Consolidation, version for SAP NetWeaver (planning only).

ANALYTICS

240. SAP BUSINESSOBJECTS BUSINESS INTELLIGENCE, PRIVATE CLOUD EDITION, TAILORED OPTION, STANDARD USER

- 240.1. Usage Metric: Users
- 240.2. Explanation of Usage Metric: Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

241. SAP BUSINESSOBJECTS BUSINESS INTELLIGENCE, PRIVATE CLOUD EDITION, TAILORED OPTION, CONNECTION

- 241.1. Usage Metric: Connection. In lieu of the definition in Section 1, Connection is a linkage between the Subscription Software and another system/technology. For this Subscription Software, the maximum number of sessions accessing the Subscription Software at any one time are counted as Connections. A session starts with a login and ends with a logoff/ time-out. The number of sessions accessing each Deployment must be limited by corresponding license key mechanisms. The maximum number of sessions enabled on a Deployment by such limitations may not exceed the usage metric limit for the number of Connections assigned to that Deployment for such licensed Subscription Software. The aggregate number of sessions enabled on all Deployments may not exceed the usage metric limitation of Connections. Users in deployments with an unlimited number of sessions

require a subscription to SAP BusinessObjects Business Intelligence, private cloud edition, tailored option, standard user. There is no license limit on number of processors or servers used. Customer may not utilize any program or system to cache or queue report requests. SAP BusinessObjects Business Intelligence, private cloud edition, tailored option users accessing any Deployment using a Connection license may be entered into the SAP NetWeaver BW system for the purposes of maintaining security. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

241.2. Additional Terms and Conditions

241.2.1. The following use rights are not available with Connection usage metric:

241.2.1.1.1. Use of Business View Manager, Report Conversion Tool, Universe Design Tool, Web Service Query Tool, Information Design Tool, Translation Management Tool, Data Federation Administration Tool, Central Management Console, and/or Central Configuration Manager

241.2.1.1.2. Use of the Crystal Reports desktop client, and/or Crystal Reports for Enterprise desktop client

241.2.1.1.3. Use of the Web Intelligence Rich Client

242. SAP BW/4HANA CLOUD, BASE PACKAGE, PRIVATE EDITION, TAILORED OPTION

242.1. Usage Metric: Entitlements Package. In lieu of the definition in Section 1, Entitlements Package is a set of defined entitlements, as set forth in the respective Product Supplement.

243. SAP BUSINESS PLANNING AND CONSOLIDATION STANDARD EDITION FOR SAP BW/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

243.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

243.2. Additional Terms and Conditions

243.2.1. This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software.

243.2.2. Use is limited to (i) direct input and/or editing of quantitative and qualitative data into the application; (ii) execution of existing reports or creation of reports on existing data structures; (iii) execution of changes to workflow tasks; and (iv) viewing data, except that users accessing the package through an interface are limited to viewing data only. The consolidation functionality is limited to running controls on data submitted by Users. Planning functionality is limited to performing planning tasks only on existing models.

244. SAP BUSINESS PLANNING AND CONSOLIDATION STANDARD EDITION FOR SAP BW/4HANA CLOUD (PLANNING ONLY), PRIVATE EDITION, TAILORED OPTION

244.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

244.2. Additional Terms and Conditions

244.2.1. This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software.

244.2.2. Use is limited to (i) direct input and/or editing of quantitative and qualitative data into the application; (ii) execution of existing reports or creation of reports on existing data structures; (iii) execution of changes to workflow tasks; and (iv) viewing data, except that users accessing the package through an interface are limited to viewing data only. The consolidation functionality is limited to running controls on data submitted by Users. Planning functionality is limited to performing planning tasks only on existing models.

245. SAP BUSINESS PLANNING AND CONSOLIDATION PROFESSIONAL EDITION FOR SAP BW/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

245.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

245.2. Additional Terms and Conditions

- 245.2.1. This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software.
- 245.2.2. With the professional edition, you can operate master data, reports, and process- and workflows. It allows you to define allocation and consolidation rules and gives you control over models or consolidation definitions. It also gives you the right to execute administrative and user-related tasks. The User gains additional planning and consolidation functions/rights.
- 245.2.3. This package may be used solely for the creation and calculation of budget, plan, or forecast data, including the calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

246. SAP BUSINESS PLANNING AND CONSOLIDATION PROFESSIONAL EDITION FOR SAP BW/4HANA CLOUD (PLANNING ONLY), PRIVATE EDITION, TAILORED OPTION

- 246.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 246.2. Additional Terms and Conditions:
 - 246.2.1. This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software.
 - 246.2.2. With the professional edition, you can operate master data, reports, and process- and workflows. It allows you to define allocation and consolidation rules and gives you control over models or consolidation definitions. It also gives you the right to execute administrative and user-related tasks. The user gains additional planning and consolidation functions/rights.
 - 246.2.3. This package may be used solely for the creation and calculation of budget, plan, or forecast data, including the calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

247. SAP BW/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

- 247.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

248. SAP BW NETWEAVER CLOUD, PRIVATE EDITION, TAILORED OPTION

- 248.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

249. SAP PROFITABILITY AND PERFORMANCE MANAGEMENT CLOUD, PRIVATE EDITION, TAILORED OPTION

- 249.1. Usage Metric: Gigabyte. The definition in Section is supplemented as follows: for this Subscription Software, memory capacity is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

MIDDLEWARE

250. SAP APPLICATION INTERFACE FRAMEWORK, PRIVATE EDITION, TAILORED OPTION

- 250.1. Usage Metric: Transaction. In lieu of the definition in Section 1, a Transaction is any message, job, action, response, and/or task processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

250.2. Block size: 1,000,000

251. SAP LANDSCAPE TRANSFORMATION REPLICATION SERVER, PRIVATE EDITION, TAILORED OPTION

251.1. Usage Metric: Tenant. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

251.2. Additional Terms and Conditions

This package is provisioned on an ASE database.

252. SAP PROCESS ORCHESTRATION PRIVATE EDITION, TAILORED OPTION

252.1. Usage Metric: Cores

253. SAP NETWEAVER FOUNDATION FOR THIRD PARTY APPLICATIONS, CORE BASED PRIVATE EDITION, TAILORED OPTION

253.1. Usage Metric: Cores

253.2. Additional Terms and Conditions

253.2.1. The SAP NetWeaver Foundation for Third Party Applications license grants the Customer, in addition to the SAP NetWeaver Foundation runtime license, the right to Use the SAP NetWeaver Foundation for Third Party Applications Software with:

253.2.1.1. Add-Ons to the SAP application that access the information contained in the database of the SAP applications(*); and

253.2.1.2. third party applications that access the information contained in the database of the SAP applications.

253.2.2. Important Notices

253.2.2.1. Add-Ons and third-party applications that solely contain functionality for system administration, monitoring and management do not require a license for SAP NetWeaver Foundation for Third Party Applications.

253.2.2.2. Access to the information contained in a database (including but not limited to Oracle and/or Microsoft databases) may require Full Use licenses for that database. It is Customer's responsibility to secure all appropriate rights from any applicable licensor(s).

253.2.2.3. Mixing Core-base and user-based license metrics for SAP NetWeaver Foundation for Third Party Applications is not permitted. Customers must decide the first time they purchase or license SAP NetWeaver Foundation for Third Party Applications which license metric (user-based or Core-based) they will use.

(*) Customer's Developer Users may use the tools included in SAP NetWeaver Foundation for Third Party Applications license for the development of these Add-Ons described above.

254. SAP NETWEAVER FOUNDATION FOR THIRD PARTY APPLICATIONS, USER BASED PRIVATE EDITION, TAILORED OPTION

254.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP

254.2. Additional Terms and Conditions

254.2.1. The SAP NetWeaver Foundation for Third Party Applications license grants the Customer, in addition to the SAP NetWeaver Foundation runtime license, the right to Use the SAP NetWeaver Foundation for Third Party Applications Software with:

254.2.1.1. Add-Ons to the SAP application that access the information contained in the database of the SAP applications(*); and

254.2.1.2. third party applications that access the information contained in the database of the SAP applications.

254.2.2. Important Notices

254.2.2.1. Add-Ons and third-party applications that solely contain functionality for system administration, monitoring and management do not require a license for SAP NetWeaver Foundation for Third Party Applications.

254.2.2.2. Access to the information contained in a database (including but not limited to Oracle and/or Microsoft databases) may require Full Use licenses for that database. It is Customer's responsibility to secure all appropriate rights from any applicable licensor(s).

254.2.2.3. Mixing Core-base and user-based license metrics for SAP NetWeaver Foundation for Third Party Applications is not permitted. Customers must decide the first time they purchase or license SAP NetWeaver Foundation for Third Party Applications which license metric (user-based or Core-based) they will use.

(*) Customer's Developer Users may Use the tools included in SAP NetWeaver Foundation for Third Party Applications license for the development of these Add-Ons described above.

255. SAP NETWEAVER OPENHUB PRIVATE EDITION, TAILORED OPTION

255.1. Usage Metric: Installations

255.2. Additional Terms and Conditions

For purposes of SAP Netweaver OpenHub, "SAP BW" means the SAP Business Warehouse functionality included in SAP ERP, and does not include other Business Warehouse products such as SAP BW4/HANA. With this license, data may be exported out of SAP BW into non-SAP software applications in an asynchronous, non-real-time manner. Once data is asynchronously extracted to non-SAP software, there are no additional license fees or SAP Named Users required, provided the use of such data does not result in any updates to and/or trigger any processing capabilities of any licensed Software. For the purposes of this Section, "asynchronous extraction" means downloading data in bulk (i.e., not in response to a real-time Named User or system-generated reporting query) for analytical purposes. Notwithstanding anything to the contrary, provided Customer also has a valid license for SAP Digital Access, humans may Use SAP BW through non-SAP software to export data out of SAP BW in a real time manner without the need to be licensed as a "Named User" of SAP ERP, and (b) non-humans (e.g. bots, sensors, chips, devices, etc.) may Use SAP BW directly or through non-SAP software to export data out of SAP BW in a non-real-time or real time manner without the need to be licensed as "Named User(s)" of SAP ERP.

256. SAP INTERACTIVE FORMS BY ADOBE PRIVATE EDITION, TAILORED OPTION

256.1. Usage Metric: Users. The definition in Section 1 is supplemented as follows: A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is (i) on vacation, (ii) is absent due to sickness, (iii) has their employment terminated, (iv) is moved to a new job function which no longer requires them to use the applicable packages, or (v) is subject to a condition that is otherwise agreed by SAP.

257. SAP INTELLIGENT BUSINESS OPERATIONS BUNDLE PRIVATE EDITION, TAILORED OPTION

257.1. Usage Metric: Cores

257.2. Additional Terms and Conditions

257.2.1. Includes the rights to use SAP Process Orchestration, SAP HANA Streaming Analytics Option and SAP HANA Operational Process Intelligence Option. Use of SAP HANA Streaming Analytics shall be solely limited to interacting with other Software components included in SAP Intelligent Business Operations bundle. Use of SAP HANA Operational Process Intelligence Option is restricted to:

257.2.1.1. data from the included SAP Process Orchestration, and SAP HANA Streaming Analytics Software; and

257.2.1.2. data from SAP ERP or SAP S/4HANA applications, if licensed separately by the Customer. Each 1 Core license of SAP Intelligent Business Operations bundle includes the rights to 1 Concurrent Session of SAP PowerDesigner EnterpriseArchitect. The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Intelligent Business Operations bundle may be installed and Used, excluding SAP HANA Operational Process Intelligence Option and SAP PowerDesigner EnterpriseArchitect which do not count against total Cores.

258. FOCUSED RUN FOR SAP SOLUTION MANAGER, PERPETUAL OPTION PRIVATE EDITION, TAILORED OPTION

258.1. Usage Metric: GB of Memory

259. SAP OPENHUB FOR S/4 HANA PRIVATE EDITION, TAILORED OPTION

259.1. Usage Metric: Installations

259.2. Additional Terms and Conditions

259.2.1. For purposes of SAP OpenHub for S/4HANA, "SAP BW" means the SAP Business Warehouse functionality included in SAP RISE with SAP S/4HANA Cloud, private edition, tailored option, and does not include other Business Warehouse products such as SAP BW4/HANA. With this license, data may be exported out of SAP BW into non-SAP software applications in an asynchronous, non-real-time manner. Once data is asynchronously extracted to non-SAP software, there are no additional license fees or SAP Named Users required, provided the use of such data does not result in any updates to and/or trigger any processing capabilities of any licensed Software. For the purposes of this Section, "asynchronous extraction" means downloading data in bulk (i.e. not in response to a real-time Named User or system-generated reporting query) for analytical purposes. Notwithstanding anything to the contrary, provided Customer also has a valid license for SAP S/4HANA Digital Access:

259.2.1.1. humans may Use SAP BW through non-SAP software to export data out of SAP BW in a real time manner without the need to be licensed as a "Named User" or "Users" of SAP RISE with SAP S/4HANA Cloud, private edition, tailored option; and

259.2.1.2. non-humans (e.g. bots, sensors, chips, devices, etc.) may Use SAP BW directly or through non-SAP software to export data out of SAP BW in a non-real-time or real time manner without the need to be licensed as "Named User(s)" or "User(s)" of SAP RISE with SAP S/4HANA Cloud, private edition, tailored option.

DATABASES & DATA MANAGEMENT

260. SAP ADAPTIVE SERVER PLATFORM PRIVATE EDITION, TAILORED OPTION

260.1. Usage Metric: Cores

260.2. Additional Terms and Conditions

260.3. The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Subscription Software included in SAP Adaptive Server Platform ("ASP") may be installed and used. SAP ASP includes SAP Adaptive Server Enterprise ("SAP ASE"), SAP IQ, and SAP Replication Server.

261. SAP ADAPTIVE SERVER PLATFORM, DATABASE ALWAYS-ON OPTION PRIVATE EDITION, TAILORED OPTION

261.1. Usage Metric: Cores

262. SAP ADAPTIVE SERVER PLATFORM, WORKLOAD ANALYZER OPTION PRIVATE EDITION, TAILORED OPTION

262.1. Usage Metric: Cores

263. SAP HANA, ACTIVE/ACTIVE READ-ENABLED OPTION PRIVATE EDITION, TAILORED OPTION

263.1. Usage Metric: GB of Memory

263.2. Block size: 64 GB

263.3. Additional Terms and Conditions

SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario. Customer must license an equal number of SAP HANA active/active read-enabled units to correspond to the number of SAP HANA units associated with the primary SAP HANA, EE Cloud private edition, tailored option instance.

264. SAP HANA, ACTIVE/ACTIVE READ-ENABLED OPTION FOR HANA RUNTIME, PRIVATE EDITION, TAILORED OPTION

264.1. Usage Metric: HSAV

264.2. Additional Terms and Conditions

SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario.

NATIVE HANA

265. SAP PREDICTIVE MAINTENANCE AND SERVICE, ADD-ON FOR UTILITIES PRIVATE EDITION, TAILORED OPTION

265.1. Usage Metric: GB of Memory

265.2. Block size: 64 GB

266. SAP PREDICTIVE MAINTENANCE AND SERVICES, ON-PREMISE EDITION PRIVATE EDITION, TAILORED OPTION

266.1. Usage Metric: GB of Memory

266.2. Block size: 64 GB

267. SAP QUOTATION AND UNDERWRITING FOR INSURANCE PRIVATE EDITION, TAILORED OPTION

267.1. Usage Metric: Premiums

267.2. Block size: €1 million (converted to local currency using SAP standard exchange rates)

NON-STANDARD

268. SAP CORPORATE SERIALIZATION PRIVATE EDITION, TAILORED OPTION

268.1. Usage Metric: Document. In lieu of the definition in Section 1, a Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

268.2. Block size: 1,000,000

269. SAP COMMODITY MANAGEMENT, OPTION FOR DEAL CAPTURE FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

269.1. Usage Metric: Revenues. In lieu of the definition in Section 1, "Revenues" mean the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes.

269.1.1. For SAP Customer Experience branded products, Revenue is the calculation of Customer's and its Affiliates' total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns.

269.1.2. For Insurance, Revenue is the same as "Premiums."

269.1.3. For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management."

269.1.4. For Other Banks, Revenues are the sum of Customer's gross interest income and noninterest income (i.e., provisions, service charges, trading income) as stated on Customer's Income Statement.

269.1.5. For Public Sector, Revenues are the same as "Total Annual Budgets."

269.2. Block size: €10 million (converted to local currency using SAP standard exchange rates)

270. SAP TREASURY AND RISK MANAGEMENT, IMPAIRMENT ACCOUNTING EXTENSION PRIVATE EDITION, TAILORED OPTION

- 270.1. Usage Metric: Assets under Management. In lieu of the definition in Section 1, Assets Under Management is the total value of all assets managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 270.2. Block size: € 1 billion (converted to local currency using SAP standard exchange rates)

FOCUSED BUSINESS SOLUTIONS

- 270.3. **Special support:** The Subscription Software set forth in this section are identified as a Focused Business Solution ("FBS Software"), and special support strategy and conditions apply. SAP Support for FBS Software shall be provided in accordance with the applicable SAP Support terms as amended by the then current support strategy and conditions found at <https://support.sap.com/fbs> (inclusive of any successor site(s) made known by SAP, the "Strategy & Conditions Site").

Strategy & Conditions Site: The Strategy & Conditions Site is hereby amended to include the following terms:

- 270.4. FBS Software requires, as a prerequisite to its use and installation, a specific version (e.g. release, service level pack, and/or enhancement pack) of certain SAP Subscription Software (the "Base Software"), which is identified on the Strategy & Conditions Site and must be separately subscribed to and installed by Customer.

In the future, should SAP elect, in its sole and exclusive discretion, to make new release(s) of FBS Software commercially available as part of SAP Support, such new release(s) may (a) differ functionally, (b) have different supported language(s) and/or (c) have different Base Software requirements from prior FBS Software release(s).

Mainstream and extended maintenance dates for FBS Software are targets, and therefore subject to change by SAP.

In no event will maintenance or extended maintenance for any FBS Software release be provided following the expiration or termination of mainstream or extended (as applicable) maintenance on the underlying Base Software.

271. SAP AGRICULTURAL CONTRACT MANAGEMENT FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

- 271.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 271.2. Block size: €10 million (converted to local currency using SAP standard exchange rates)
- 271.3. Additional Terms and Conditions
- 271.3.1. This solution is limited to the following language versions:

271.3.1.1. Available Log-On Languages: English, Portuguese, German, French, Spanish, Finnish, Danish, Swedish, Lithuanian, Polish, Slovak, Russian

271.3.1.2. Available Documentation Languages: English, Portuguese, German, French, Spanish, Finnish, Danish, Swedish, Lithuanian, Polish, Slovak, Russian

272. SAP S/4HANA CLOUD BULK TRANSPORTATION EXTENSION FOR SAP AGRICULTURAL CONTRACT MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 272.1. Usage Metric: Revenue. In lieu of the definition in Section 1, Revenue is the total amount of revenue processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 272.2. Block size: € 10 million (converted to local currency using SAP standard exchange rates)
- 272.3. Additional Terms and Conditions
- 272.3.1. This solution is limited to the following language versions:

272.3.1.1. Available Log-On Languages: Danish, German, English, Spanish, Finish, French, Lithuanian, Polish, Portuguese, Russian, Slovak, Swedish

272.3.1.2. Available Documentation Languages: English

273. SAP S/4HANA FOR ASSET RETIREMENT OBLIGATION MANAGEMENT, PRIVATE EDITION, TAILORED OPTION

- 273.1. Usage Metric: Spend. The definition in Section 1 is supplemented as follows: For this Subscription Software, the future value of the cost estimations, for every active asset retirement obligation, is counted. If the Customer is using more than one accounting principle, the maximum of these values will be used. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 273.2. Block size: € 100 million (converted to local currency using SAP standard exchange rates)
- 273.3. Maximum Usage: 35 Blocks
- 273.4. Additional Terms and Conditions
- 273.4.1. There is no additional fee for Customer's use in excess of the Maximum Usage, however, Customer must subscribe to additional system sizing as necessary to support Customer's usage.

274. SAP ADVANCED TRACK AND TRACE FOR PHARMACEUTICALS ON SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

- 274.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
- 274.2. Block size: 12,000,000
- 274.3. Maximum Usage: 500 blocks
- 274.4. Where Customer reaches the Maximum Usage, Customer will not be charged for any use in excess of the Maximum Usage. However, SAP may request that Customer subscribe to additional infrastructure or other SAP services as applicable to address Customer's increased usage."

275. SAP S/4HANA CLOUD FOR EEG BILLING OF GERMAN ELECTRICITY, PRIVATE EDITION, TAILORED OPTION

- 275.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 275.2. Block size: 1,000
- 275.3. Additional Terms and Conditions
- 275.3.1. This solution is limited to the following language versions:
 - 275.3.1.1. Available Log-On languages: English, German
 - 275.3.1.2. Available Documentation Languages: German

276. SAP S/4HANA CLOUD FOR INTELLIGENT METERING OF GERMAN ENERGY, PRIVATE EDITION, TAILORED OPTION

- 276.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 276.2. Block size: 1,000
- 276.3. Additional Terms and Conditions
- 276.3.1. This solution is limited to the following language versions:
 - 276.3.1.1. Available Log-On languages: English, German
 - 276.3.1.2. Available Documentation Languages: English, German

277. SAP S/4HANA CLOUD, UTILITIES MASTER DATA UPDATES OPTION FOR GERMANY, PRIVATE EDITION, TAILORED OPTION

277.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

277.2. Block size: 1,000

277.3. Additional Terms and Conditions

277.3.1. This solution is limited to the following language versions:

277.3.1.1. Available Log-On Languages: English, German

277.3.1.2. Available Documentation Languages: English, German

278. SAP S/4HANA CLOUD FOR ASSET MANAGEMENT FOR RESOURCE SCHEDULING, PRIVATE EDITION, TAILORED OPTION

278.1. Usage Metric: Resource. In lieu of the definition in Section 1, a Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

278.2. Additional Terms and Conditions

278.2.1. This solution is limited to the following language versions:

278.2.1.1. Available Log-On Languages: Chinese, Czech, Danish, Dutch, English, Finnish, French, German, Hungarian, Italian, Japanese, Korean, Norwegian, Polish, Portuguese, Romanian, Russian, Spanish, Swedish, Turkish

278.2.1.2. Available Documentation Languages: English, German

279. SAP S/4HANA CLOUD, FOR SOLUTION SALES CONFIGURATION, PRIVATE EDITION, TAILORED OPTION

279.1. Usage Metric: User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

279.2. Additional Terms and Conditions

279.3. This solution is limited to the following language versions:

279.3.1.1. Available Log-On Languages: English

279.3.1.2. Available Documentation Languages: English

280. SAP S/4HANA CLOUD FOR UI DATA PROTECTION LOGGING, PRIVATE EDITION, TAILORED OPTION

280.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, individuals with unique active profiles are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

280.2. Block size: 100

280.3. Additional Terms and Conditions

280.3.1. This solution is limited to the following language versions:

280.3.1.1. Available Log-On languages: English

280.3.1.2. Available Documentation Languages: English

281. SAP S/4HANA CLOUD FOR UI DATA PROTECTION MASKING, PRIVATE EDITION, TAILORED OPTION

281.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: for this Subscription Software, individuals with unique active profiles are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

281.2. Block size: 100

281.3. Additional Terms and Conditions

281.3.1. This solution is limited to the following language versions:

281.3.1.1. Available Log-On languages: English

281.3.1.2. Available Documentation Languages: English

282. SAP YARD LOGISTICS FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

282.1. Usage Metric: Object. In lieu of the definition in Section 1, Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, the number of transportation units entering or leaving the yard are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

282.2. Block size: 5,000

282.3. Additional Terms and Conditions

282.3.1. This solution is limited to the following language versions:

282.3.1.1. Available Log-On Languages: English, German, Russian, Portuguese, Spanish, Japanese

282.3.1.2. Available Documentation Languages: English, German

283. SAP TRANSPORTATION RESOURCE PLANNING FOR T&L PRIVATE EDITION, TAILORED OPTION

283.1. Usage Metric: Revenues. In lieu of the definition in Section 1, "Revenues" mean the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes.

283.1.1. For SAP Customer Experience branded products, Revenue is the calculation of Customer's and its Affiliates' total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns.

283.1.2. For Insurance, Revenue is the same as "Premiums".

283.1.3. For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management".

283.1.4. For Other Banks, Revenues are the sum of Customer's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Customer's Income Statement.

283.1.5. For Public Sector, Revenues are the same as "Total Annual Budgets".

283.2. Block size: €2.5 million (converted to local currency using SAP standard exchange rates)

REPEATABLE CUSTOM SOLUTIONS

283.3. **Prerequisite to use:** The Subscription Software set forth in this section are identified as Repeatable Custom Solution ("RCS Software"), and RCS Software requires, as a prerequisite to its use and installation, a specific version (such as release, service level pack, and/or enhancement pack) of certain SAP Subscription Software (the "Base Software") which is identified by SAP, along with specific use conditions under <https://support.sap.com/rcs> (the "RCS Strategy & Conditions Site") and/or the Documentation. Special support strategy and conditions apply for RCS Software. SAP and Customer agree that Support for RCS Software shall be provided as set forth in the applicable SAP Product Specific Support Schedule for RCS found at the RCS Strategy & Conditions site.

Not standard software: RCS Software is not SAP standard software and in its current state an RCS Software may not meet all SAP standards including but not limited to language or country version, available version, supported operating systems, or database. Customer must fully test the RCS Software before using it in live operation. The standard language in which the RCS Software and its Documentation will be provided is English. SAP reserves the right to release individual versions of the RCS Software or its Documentation in additional languages. SAP has no

obligation to transfer any functionality licensed under this agreement into SAP's standard software, nor shall SAP be obliged to make the RCS Software compatible with new releases or versions of the Base Software.

284. SAP TRANSPORTATION MANAGEMENT, ORDER TO CASH FOR CONTAINER SHIPPING LINERS FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

284.1. Usage Metric: Document. In lieu of the definition in Section 1, a Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, Documents are contracted booking items. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

284.2. Block size: €2.5 million (converted to local currency using SAP standard exchange rates)

285. SAP TRANSPORTATION MANAGEMENT, LEAD TO AGREEMENT FOR CONTAINER SHIPPING LINERS FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

285.1. Usage Metric: Document. In lieu of the definition in Section 1, a Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, Documents are contracted items in customer agreements. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

285.2. Block size: € 2.5 million (converted to local currency using SAP standard exchange rates)

286. SAP TRANSPORTATION MANAGEMENT, NETWORK AND OPERATIONS FOR CONTAINER SHIPPING LINERS FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

286.1. Usage Metric: Object. In lieu of the definition in Section 1, an Object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

286.2. Block size: € 2.5 million (converted to local currency using SAP standard exchange rates)

287. SAP EXTENDED WAREHOUSE MANAGEMENT, INDUSTRY ADD-ON FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION

287.1. Usage Metric: Items. The definition in Section 1 is supplemented with the following: For:

287.1.1. Shipper scenario items are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery. The average per day is based on the active days over the period of 1 year;

287.1.2. Transit Warehousing scenario - In transit warehousing delivery line items are not used. For the transit warehousing scenario, Items are the packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process. The average per day is based on the active days over the period of 1 year.

287.2. Block size: 5,000

287.3. Additional Terms and Conditions

287.3.1. This solution is limited to the following language versions:

287.3.1.1. Available Log-On Languages: English, Dutch, French, German

287.3.1.2. Available Documentation Languages: English

287.3.2. To report support incidents please use message component: XX-PROJ-CDP-584

288. SAP S/4HANA FOR EXTENDED WAREHOUSE MANAGEMENT, EXPLOSIVES MANAGEMENT EDITION PRIVATE EDITION, TAILORED OPTION

288.1. Usage Metric: Items. In lieu of the definition in Section 1, "Items" mean entities managed in the Subscription Software.

288.1.1. Shipper Scenario - Items are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are

the unique material codes irrespective of quantity shipped under that delivery. The average per day is based on the active days over the period of one year.

288.1.2. Transit Warehousing scenario - In transit warehousing delivery line items are not used. For the transit warehousing scenario, Items are the packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process. The average per day is based on the active days over the period of one year.

288.2. Block size: 5,000

289. SAP S/4HANA CLOUD FOR GERMAN UTILITIES BILLING ENHANCEMENTS, PRIVATE EDITION, TAILORED OPTION

289.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, a Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

289.2. Block size: 1,000

289.3. Additional Terms and Conditions:

289.3.1. This solution is limited to the following language versions:

289.3.1.1. Available Log-On languages: English, German

289.3.1.2. Available Documentation Languages: English, German

289.3.2. To report support incidents please use message component: IS-U-LIB-DE-BE

290. INTERCOMPANY DATA EXCHANGE FOR SWISS ELECTRICITY AND GAS UTILITIES FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

290.1. Usage Metric: Point of Delivery. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term. The definition in Section 1 is supplemented as follows: For the sectors below the following division categories of the SAP Utilities system need to be considered:

Energy:

- (a) Electricity
- (b) Gas
- (c) District heating
- (d) Waste Management
- (e) Mutual help
- (f) For all sectors

Electricity:

- () Electricity

Water:

- () Water
- (a) Waste Water

Utilities or no division named:

- () Electricity
- (a) Gas
- (b) District heating
- (c) Water
- (d) Waste Water
- (e) Waste Management

- (f) Mutual help
 - (g) For all sectors
- 290.2. Block size: 1,000
- 291. SAP S/4HANA CLOUD FOR MARKET PROCESS MANAGEMENT FOR UTILITIES, PRIVATE EDITION, TAILORED OPTION**
- 291.1. Usage Metric: Point of Delivery. In lieu of the definition in Section 1, Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 291.2. Block size: 1,000
- 291.3. Additional Terms and Conditions
- 291.3.1. This solution is limited to the following language versions:
- 291.3.1.1. Available Log-On languages: English, German
 - 291.3.1.2. Available Documentation Languages: English, German
- 291.3.2. To report support incidents please use message component: XX-PROJ-CDP-578
- 292. SAP EHS MANAGEMENT FOR OCCUPATIONAL HEALTH FOR SAP S/4HANA CLOUD, PRIVATE EDITION, TAILORED OPTION**
- 292.1. Usage Metric: User. The definition in Section 1 is supplemented as follows: For this Subscription Software, individuals with an active profile in the Subscription Software and whose data is processed in the Subscription Software are counted. For clarification, a single User with multiple contracts or roles such as concurrent employment or global assignments shall be counted as one User. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
- 292.2. Block size: 100
- 292.3. Additional Terms and Conditions
- 292.3.1. This solution is limited to the following language versions:
- 292.3.1.1. Available Log-On Languages: English, German, French, Italian, Spanish, Russian, Portuguese, Chinese
 - 292.3.1.2. Available Documentation Languages: English, German
- 292.3.2. To report support incidents please use message component: EHS-SUS-OH
- 293. PREPAYMENT FOR UTILITIES FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION**
- 293.1. Usage Metric: Contracts. In lieu of the definition in Section 1, "Contracts" mean the contracts (used in all functions including procurement, sales, legal, partner management, HR, real estate, and all other functions of the organization.) the company plans to address within the application.
- 293.1.1. For Utility Industry, Contracts are agreements between a utility company and a business partner to provide services to the business partner. Thereby a separate contract has to be set up for each service provided, for which the utility company has a legal contract with its customer (e. g. a utility company provides a business partner with electricity, area lighting, gas, and district heating, thus four separate contracts have to be set-up). All contracts stored in the system with an ending date later or equal to the system date are taken into consideration.
- For the sectors below the following division categories of the SAP Utilities system need to be considered:
- Energy:
- (a) Electricity
 - (b) Gas
 - (c) District heating
 - (d) Waste Management

- (e) Mutual help
- (f) For all sectors

Water:

- () Water
- (a) Waste Water

For prepayment for utilities for SAP S/4HANA, Contracts contain all utility contracts which are operated via prepayment.

293.1.2. For Banking Industry, Contracts are made by a bank with natural persons (retail) or legal persons (commercial). A contract can be e.g., an account, a term deposit, a loan, an OTC-derivative, an FX forward, a money market transaction or a position in exchange-traded instruments. Accounts and loans managed in external systems, included in a master contract, part of a collateral agreement or set-up for tax calculation are to be taken into account. In the context of refinancing, only managed contracts classified as available assets are to be licensed.

Contracts include:

- (a) Loans or mortgage products
- (b) Deposits, savings or current accounts (including internal accounts)
- (c) Derivatives, which are financial instruments whose value is based on another security
- (d) Securities transactions, e.g., spot plus forward deals, money marked/foreign exchange transactions, etc.
- (e) Contracts for leasing are operational, finance, capital leases, hire purchases, loans and/or other contracts are processed in the solution
- (f) Contracts for refinancing can additionally be credit cards, drawings in a syndicate loan or trade receivables.

293.2. Block size: 1,000

294. REAL ESTATE DEVELOPMENT LIFECYCLE MANAGEMENT FOR SAP S/4HANA PRIVATE EDITION, TAILORED OPTION

294.1. Usage Metric: Flat Fee. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

SAP ERP, private edition tailored option Service Description Guide

General

This Service Description Guide applies only to the SAP ERP, private edition, tailored option services to which Customer is subscribed. Any documents referenced herein are available upon request. For the avoidance of doubt, all non-productive development ("DEV"), testing, and quality assurance ("QA") may only be conducted in non-production environments.

SAP reserves the right to reasonably limit the use of the services set forth in the Roles and Responsibilities Documentation (made available to you upon request or on the SAP website) initiated via a service request if Customer's use is unreasonably excessive. If any such limitation is imposed, Customer's usage shall be reviewed and assessed with Customer.

The Subscription Software to which Customer is subscribed is subject to the Release Strategy, available at <https://support.sap.com/releasestrategy>. Customers must use a version or release of the Subscription Software, which is covered by Mainstream Maintenance or Extended Maintenance, if applicable. Customer acknowledges and agrees that certain versions or releases of the Subscription Software may only be available until an earlier date than 2030 or even 2027. Details on availability and support of such versions or releases are included and updated as per the Release Strategy.

All references to "Licensee" in this Service Description Guide shall mean "Customer."

This Service Description Guide was last updated on November 13, 2023. It is effective between Customer and SAP as of the effective date of the ordering document.

SAP HANA Runtime

SAP HANA, runtime is a runtime database licensed for use with certain SAP ERP, private edition, tailored option packages ("HANA Runtime"). All SAP ERP, private edition, tailored option packages licensed with HANA Runtime are subject to the following terms. HANA Runtime and the additional Subscription Software components included in HANA Runtime may only be used in conjunction with Customer's use of SAP ERP, private edition, tailored option packages. HANA Runtime includes the limited use of the following additional Subscription Software components as set forth herein: (i) SAP HANA Platform; (ii) SAP ASE and MaxDB databases; (iii) SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components); (iv) SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud; (v) SAP HANA Rules Framework; (vi) SAP HANA, data privacy option; (vii) SAP HANA, predictive option; (viii) SAP HANA, spatial and graph option; (ix) SAP HANA, search and text option; (x) SAP HANA, Smart Data Quality ("SDQ"); (xi) SAP Smart Data Integration ("SDI"); and (xii) SAP HANA, native storage extension.

SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA Runtime must be performed via the SAP ERP, private edition, tailored option Cloud Service. Data Access used in HANA Runtime must be performed via the SAP ERP, private edition, tailored option Cloud Service. Use of SDI is limited solely to loading data into HANA Runtime or the SAP ERP, private edition, tailored option Cloud Service. Data may be loaded from an appropriately licensed Data Source via SDI or via SAP ERP, private edition, tailored option Cloud Service interfaces. SDI may also be used with Smart Data Access in a data federation scenario. Notwithstanding anything to the contrary, data may not be distributed from one SAP ERP, private edition, tailored option package to another at the HANA database level.

SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud includes a runtime license of SAP IQ. Use of SAP IQ is limited solely for use with SAP BW NetWeaver Cloud, private edition, tailored option or SAP BW/4HANA Cloud, private edition, tailored option. This runtime license of SAP IQ is also available for use as a cold store for data tiering optimization in SAP BW/4HANA Cloud.

Customer may export data, using licensed SAP tools, to be used solely within one or more of the following: (i) SAP HANA, enterprise edition; (ii) SAP HANA, standard edition; (iii) SAP Cloud Platform, SAP HANA service; (iv) SAP HANA Cloud; (v) SAP HANA, EE Cloud; and/or (vi) SAP Datasphere.

Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the HANA Runtime database instance. All reporting must be performed via the SAP ERP, private edition, tailored option Cloud Service or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP business intelligence ("SAP BI") tools or non-SAP business intelligence tools that are certified by SAP, as set forth in the SAP Certified Solutions Directory available at

https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020.

HANA Runtime includes the optional, limited use of the following on-premise components: SAP Data Integrator ("DI") and SAP Landscape Transformation replication server ("SLT"). Use of DI and SLT is limited solely to loading data into HANA Runtime or the SAP ERP, private edition, tailored option Cloud Service.

SAP HANA Runtime for BW

SAP HANA, runtime for SAP BW is a runtime database licensed for use with SAP BW/4HANA Cloud, private edition, tailored option and SAP BW NetWeaver Cloud, private edition, tailored option packages ("HANA Runtime for BW"). SAP BW/4HANA Cloud, private edition, tailored option and SAP BW NetWeaver Cloud, private edition, tailored option packages licensed with HANA Runtime for BW are subject to the following terms. HANA Runtime for BW and the additional Subscription Software components included in HANA Runtime for BW may only be used in conjunction with Customer's use of SAP BW/4HANA Cloud, private edition, tailored option and/or SAP BW NetWeaver Cloud, private edition, tailored option packages.

HANA Runtime for BW includes the limited use of the following additional Subscription Software components as set forth herein:

- (i) SAP HANA Platform;
- (ii) SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- (iii) SAP HANA Rules Framework;
- (iv) SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud;
- (iv) SAP HANA, native storage extension.

SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation in-house and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA Runtime for BW must be performed via the SAP BW/4HANA Cloud, private edition, tailored option or SAP BW NetWeaver Cloud, private edition, tailored option Cloud Service.

SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud includes a runtime license of SAP IQ. Use of SAP IQ is limited solely for use with SAP BW NetWeaver Cloud, private edition, tailored option or SAP BW/4HANA Cloud, private edition, tailored option. This runtime license of SAP IQ is also available for use as a cold store for data tiering optimization in SAP BW/4HANA Cloud.

Customer may export data, using licensed SAP tools, to be used solely within one or more of the following:

- (i) SAP HANA, enterprise edition;
- (ii) SAP HANA, standard edition;
- (iii) SAP Cloud Platform, SAP HANA service;
- (iv) SAP HANA Cloud;
- (v) SAP HANA, EE Cloud; and/or
- (vi) SAP Datasphere.

Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the HANA Runtime for BW database instance. All reporting must be performed via the SAP S/4HANA Cloud, private edition, tailored option Cloud Service or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP business intelligence ("SAP BI") tools or non-SAP business intelligence tools that are certified by SAP, as set forth in the SAP Certified Solutions Directory available at https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020.

CORE

SAP ERP, priv ed, tailored op

Usage Metric	Full Use Equivalent (FUE)																									
Explanation of Usage Metric	Full Use Equivalent is the aggregation method by which Customer may allocate individuals access to the Subscription Software in accordance with the ratios set forth below. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term. 1 FUE = 0.50 SAP ERP, Developer Access 1 FUE = 1 SAP ERP Cloud for advanced use 1 FUE = 5 SAP ERP Cloud for core use 1 FUE = 30 SAP ERP Cloud for self-service use Customer may allocate each FUE to any one of the use types and may change the allocation during the subscription term. A Full Usage Equivalent cannot be divided between or among different use types. ERP Cloud for self-service use For ERP Cloud for self-service use, Authorized Users (as defined in the GTC) are permitted to use the following solution capabilities of SAP ERP, priv ed, tailored op: <table><tr><td>Maintenance Execution (ERP)</td></tr><tr><td>Maintenance Demand Processing (ERP)</td></tr><tr><td>Travel management (ERP)</td></tr><tr><td>Time Sheet (ERP)</td></tr><tr><td>Organizational Structure Management (ERP)</td></tr><tr><td>Material requirements planning (ERP)</td></tr><tr><td>Production Execution (ERP)</td></tr><tr><td>Production Control (ERP)</td></tr><tr><td>Self-Service Requisitioning</td></tr><tr><td>Goods Movement (ERP)</td></tr><tr><td>Delivery Management (ERP)</td></tr><tr><td>Physical Inventory</td></tr><tr><td>Warehouse Management (ERP)</td></tr><tr><td>Transportation Management (ERP)</td></tr><tr><td>Available to Promise (ERP)</td></tr><tr><td>Batch Management (ERP)</td></tr><tr><td>Serial Number Management (ERP)</td></tr><tr><td>Handling Unit Management (ERP)</td></tr></table> The ERP Cloud for self-service use also covers display use rights and approval use rights for all solution capabilities of ERP, priv ed, tailored op. ERP Cloud for core use For ERP Cloud for core use, Authorized Users (as defined in the GTC) are permitted to use the following solution capabilities of SAP ERP, priv ed, tailored op: <table><tr><td>Maintenance Planning (ERP)</td></tr><tr><td>Maintenance Execution (ERP)</td></tr><tr><td>Maintenance Demand Processing (ERP)</td></tr><tr><td>Travel management (ERP)</td></tr><tr><td>Time Sheet (ERP)</td></tr><tr><td>Organizational Structure Management (ERP)</td></tr><tr><td>Sales and Operations Production Planning (ERP)</td></tr></table>	Maintenance Execution (ERP)	Maintenance Demand Processing (ERP)	Travel management (ERP)	Time Sheet (ERP)	Organizational Structure Management (ERP)	Material requirements planning (ERP)	Production Execution (ERP)	Production Control (ERP)	Self-Service Requisitioning	Goods Movement (ERP)	Delivery Management (ERP)	Physical Inventory	Warehouse Management (ERP)	Transportation Management (ERP)	Available to Promise (ERP)	Batch Management (ERP)	Serial Number Management (ERP)	Handling Unit Management (ERP)	Maintenance Planning (ERP)	Maintenance Execution (ERP)	Maintenance Demand Processing (ERP)	Travel management (ERP)	Time Sheet (ERP)	Organizational Structure Management (ERP)	Sales and Operations Production Planning (ERP)
Maintenance Execution (ERP)																										
Maintenance Demand Processing (ERP)																										
Travel management (ERP)																										
Time Sheet (ERP)																										
Organizational Structure Management (ERP)																										
Material requirements planning (ERP)																										
Production Execution (ERP)																										
Production Control (ERP)																										
Self-Service Requisitioning																										
Goods Movement (ERP)																										
Delivery Management (ERP)																										
Physical Inventory																										
Warehouse Management (ERP)																										
Transportation Management (ERP)																										
Available to Promise (ERP)																										
Batch Management (ERP)																										
Serial Number Management (ERP)																										
Handling Unit Management (ERP)																										
Maintenance Planning (ERP)																										
Maintenance Execution (ERP)																										
Maintenance Demand Processing (ERP)																										
Travel management (ERP)																										
Time Sheet (ERP)																										
Organizational Structure Management (ERP)																										
Sales and Operations Production Planning (ERP)																										

Material requirements planning (ERP)
Capacity Planning
Production BOM Management
Recipe/Routing Management
Production Execution (ERP)
Just-In-Time Processing (ERP)
Kanban
Production Control (ERP)
Repetitive Manufacturing (ERP)
Subcontracting (ERP)
External Processing (ERP)
Quality Planning (ERP)
Quality Improvement (ERP)
Quality Inspection (ERP)
Product Development Foundation (ERP)
Project Financials Control (ERP)
Project Logistics Control (ERP)
Variant Configuration (ERP)
Foreign Trade (ERP)
Claims, Returns and Refund Management (ERP)
Price Management (ERP)
Sales Quotation Management (ERP)
Sales Rebates Management (ERP)
Sales Monitoring and Analytics (ERP)
Sales Master Data Management (ERP)
Sales Contract Management (ERP)
Sales Order Management and Processing
Sales Billing (ERP)
In-House Repair (ERP)
Complaints management (ERP)
Service Parts Warehousing (ERP)
Warranty Management (ERP)
Service Contract Management (ERP)
Service Request Management (ERP)
Service Order Management (ERP)
Service Fulfillment (ERP)
Service Billing (ERP)
Self-Service Requisitioning
Goods Movement (ERP)
Delivery Management (ERP)
Inventory Analytics and Control (ERP)
Returnable Packaging Logistics
Empties Management
Physical Inventory

	<table><tr><td>Warehouse Management (ERP)</td></tr><tr><td>Transportation Management (ERP)</td></tr><tr><td>Available to Promise (ERP)</td></tr><tr><td>Batch Management (ERP)</td></tr><tr><td>Serial Number Management (ERP)</td></tr><tr><td>Handling Unit Management (ERP)</td></tr></table> The ERP Cloud for core use also covers display use rights and approval use rights for all solution capabilities of ERP, priv ed, tailored op. ERP Cloud for advanced use For ERP Cloud for advanced use, Authorized Users (as defined in the GTC) are permitted to use all solution capabilities of SAP ERP, priv ed, tailored op, inclusive of display and approval use rights. SAP Developer Access <table><tr><td>Use is allowed by the number of individuals included in the licensed level (usage metric limitation) who are authorized to access the development tools provided with the licensed ERP Enterprise Management Software for the purpose of making ABAP Addons to any ERP Cloud, priv ed, tailored op packages.</td></tr></table>	Warehouse Management (ERP)	Transportation Management (ERP)	Available to Promise (ERP)	Batch Management (ERP)	Serial Number Management (ERP)	Handling Unit Management (ERP)	Use is allowed by the number of individuals included in the licensed level (usage metric limitation) who are authorized to access the development tools provided with the licensed ERP Enterprise Management Software for the purpose of making ABAP Addons to any ERP Cloud, priv ed, tailored op packages.
Warehouse Management (ERP)								
Transportation Management (ERP)								
Available to Promise (ERP)								
Batch Management (ERP)								
Serial Number Management (ERP)								
Handling Unit Management (ERP)								
Use is allowed by the number of individuals included in the licensed level (usage metric limitation) who are authorized to access the development tools provided with the licensed ERP Enterprise Management Software for the purpose of making ABAP Addons to any ERP Cloud, priv ed, tailored op packages.								
Block size	1 FUE							
Additional Terms & Conditions	SAP ERP, priv ed, tailored op includes includes use rights to the following software components, subject to infrastructure being licensed separately: SAP Cloud Connector (installed on a separate server, available on customer request), SAP Data Services Agent (installed on a separate server, available on customer request)*, SAP Web Dispatcher (installed on a separate server) SAP Data Provisioning Agent (installed on a separate server, available on customer request). SAP Analytics Cloud Agent (installed on a separate server, available on customer request).* <i>*Customer is required to obtain a subscription to the associated SAP Subscription Software</i> Cloud Feature(s). SAP ERP Cloud, priv ed, tailored op includes limited use of the following Cloud Feature(s), which may only be used in conjunction with the Cloud Service, subject to the infrastructure being licensed separately: <u>Forms as a Service by Adobe.</u> Customer may make up to 2,000,000 Forms Requests per year in Forms as a Service by Adobe for no additional fee. A single Form Request is counted for each document with up to five (5) pages created using this Cloud Feature. The number of Form Requests for a document created with more than five (5) pages is calculated by dividing the total pages of the document by five (5). If the result of the calculation is not a whole number, the remainder shall be counted as a single Form Request. Form Requests for which a number of pages cannot be determined (e.g., digital signature request) are counted as a single Form Request. A contract year is a 12-month period beginning on the first day of the Subscription Term or its annual anniversary. For the avoidance of doubt, (i) Cloud Features are provisioned on the SAP Cloud Platform or other multi-tenant cloud platform in a separate cloud instance/environment and in a different data center location, from ERP, priv ed, tailored op Systems, (ii) Cloud Features do not include the same service elements that apply to the ERP, priv ed, tailored op Systems and (iii) the Service Level Agreement does not apply to Cloud Features. Additionally, this package includes SAP NetWeaver.							

	Central User Administration. Where Customer has multiple systems, Customer shall utilize Central User Administration to monitor and maintain individual user IDs consistently across those systems. Alternatively, Customer shall manually monitor user IDs across its various systems. Customer shall remain within the Usage Metric and volume limitations indicated in the Order Form and any use outside of this scope as a result of duplicated individual user IDs may subject Customer to additional fees. Single Sign-On: ERP, private edition, tailored option supports authentication/single sign-on features integrated with the Customer's existing Microsoft Active Directory. If the Customer is using SAP GUI, Secure Login Client has to be activated for use with SAP GUI to enable the integration.
--	---

SAP ERP, Digital Access, private edition, tailored option

Usage Metric	Document
Explanation of Usage Metric	Document is a record of commercial transactional data managed via the Cloud Service. For this Cloud Service, the types of records that are counted as Documents are set forth below. The Usage Metric entitlement in the Order Form is based on a yearly entitlement. Sales Document means: (i) a line item record that represents the material and/or service being sold or quoted; and/or (ii) a record that represents an individual order/release against a scheduling agreement which indicates the material and/or service being sold. Purchase Document means: (i) a line item record that represents the material and/or service being ordered or requested; and/or (ii) a record that represents the release against a scheduling agreement which indicates the material and/or service being procured. Invoice Document means: a line item record that represents the material and/or service being billed. For SAP ERP Cloud, Digital Access only, an Invoice Document shall also include a line item record that represents a description of the material being purchased, including the material name, number and quantity of the material. Manufacturing Document is: (i) a record which represents the production-related details associated with manufacturing a material, including: the type, quantity and color of what to produce, when to produce it, where to produce it and/or other distinguishing characteristics; and/or (ii) a record that represents a confirmation which indicates the status of the processing activities associated with manufacturing orders. Material Document means: a line item record that represents a specific material being received, issued or transferred to, from or within a storage location or plant. Quality Management Document means: (i) a record that represents the details of a nonconformance being reported including the information required for problem solving; and/or (ii) a record that represents results of an inspection. For SAP ERP Cloud Digital Access edition only, a Quality Management Document shall also include a record that represents the details of a nonconformance. Service & Maintenance Document means: (i) a record that represents the details of work to be performed including the information needed to plan, execute and bill for a service or maintenance request; and/or (ii) a record that represents the details of a problem being reported including the information required for problem solving; and/or (iii) a record that represents the status of the processing associated with service orders and maintenance orders; and/or (iv) a record that represents a claim by a customer for repair or replacement or compensation for under - performance, pursuant to terms in a warranty document. Financial Document means a record that represents accounting information in a financial journal Time Management Document means: (i) a record that represents an employee's time worked and assigned to business related objects; and/or (ii) a record that represents deviations from an employee's assigned work schedule and/or pay rate.

Block size	1000
Additional Terms and Conditions	This Service grants (a) humans a right to use SAP ERP for Enterprise Management, priv ed, tailored op (“SAP ERP Cloud, priv ed, tailored op”) through Non-SAP Application(s) that is/are directly integrated to SAP ERP Cloud, priv ed, tailored op without the need to be licensed as a “FUE” (b) non-humans (e.g. bots, sensors, chips, devices, etc.) a license to Use SAP ERP Cloud, priv ed, tailored op directly or through Non-SAP Application(s) that is/are directly integrated to SAP ERP Cloud, priv ed, tailored op and without the need to be licensed as a FUE. Solely for purposes of SAP ERP Digital Access: • SAP ERP Cloud, priv ed, tailored op shall not include SAP Business Warehouse Software. • “Non-SAP Application(s)” means: (a) any technologies for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors (excluding when used solely as a Connectivity App between an SAP Application and SAP ERP Cloud, priv ed, tailored op and further excluding when used as a User Interface for SAP ERP Cloud, priv ed, tailored op); and/or (b) SAP Technology Solutions. • “User Interface(s)” means any technology that (a) Customer owns and/or for which Customer has secured appropriate rights to use and (b) is used to develop/manage user interaction features and characteristics for SAP ERP Cloud, priv ed, tailored op. For the avoidance of doubt, User Interfaces for SAP ERP Cloud, priv ed, tailored op shall be deemed part of SAP ERP Cloud, priv ed, tailored op and therefore require human users using SAP ERP Cloud, priv ed, tailored op via such User Interfaces to have a “Named User” and/or “User” license for SAP ERP Cloud, priv ed, tailored op, as applicable. • “SAP Technology Solution(s)” means SAP NetWeaver Foundation for Third Party Applications, SAP Business Technology Platform (excluding when used solely as a Connectivity App between an SAP Application and SAP ERP Cloud, priv ed, tailored op), SAP Signavio Solutions and SAP Process Insights [including any renamed and/or successor versions of any of the foregoing made generally available by SAP (if any)]. • “Connectivity App(s)” means any integration technology whose primary function is to directly connect disparate applications to enable the direct communication and/or management of data between such disparate applications by/through such integration technology. • “SAP Application(s)” means all Packages (i.e. all Software and Third-Party Software) licensed under an SAP agreement and/or SAP Cloud Services for which Customer has a valid subscription, excluding SAP Technology Solutions and all database Packages. All Digital Access of SAP ERP Cloud, priv ed, tailored op will be subscribed based exclusively upon the number of Documents created annually by such Digital Access of SAP ERP Cloud, priv ed, tailored op. Each Document shall count as one (1) Document, except for Material Documents and Financial Documents which shall each count as two tenths (0.2) of a Document. However, where the automated processing in SAP ERP Cloud, priv ed, tailored op of a Document from one Document Type results in the subsequent creation in SAP ERP Cloud, priv ed, tailored op of one or more additional Documents of different Document Type(s), such additional Documents shall not be counted. Where a Non-SAP Application is connected to SAP ERP Cloud, priv ed, tailored op via a Connectivity App, such Non-SAP Application is still deemed directly integrated to SAP ERP Cloud, priv ed, tailored op for purposes of this provision. Any humans and/or non-humans Using SAP ERP Cloud, priv ed, tailored op through application(s) that is/are integrated to a Non-SAP Application that is directly integrated to SAP ERP Cloud, priv ed, tailored op do not need to be licensed as a “FUE”.

SAP ERP for Application Interface Framework, priv ed, tailored op

Usage Metric	Transaction
Explanation of Usage Metric	Transaction is any message, job, action, response, and/or task processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	1,000,000

Usage Metric	Gigabyte
Explanation of Usage Metric	Gigabyte is the amount of capacity in the Subscription Software. For this Subscription Software, memory capacity is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	256
Additional Terms & Conditions	SAP HANA, EE Cloud, priv ed, tailored op ("HANA Enterprise") is an SAP HANA database. Required number of blocks is based on system size. "Data Sources" means any software product(s) and/or database instance(s) for which a user has secured an appropriate license. HANA Enterprise may be used with an unlimited number of Data Sources, subject to the applicable usage metric limitation. HANA Enterprise includes the following Runtime Software: (1) SAP HANA Operation Process Intelligence (2) SAP HANA Data Warehousing Foundation (3) SAP HANA, information management option (4) SAP HANA, data privacy option (5) SAP HANA, spatial and graph option (6) SAP HANA, predictive option (7) SAP HANA, search and text option (8) SAP HANA native storage extension (Use of HANA Native Storage Extension Buffer Cache component is subject to the applicable usage metric limitation) (9) SAP ASE and MaxDB databases (10) SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud A user may use Smart Data Access to query data from any data sources, provided a user's subscription to HANA Enterprise has been appropriately sized for all such data that is queried and joined with other data sources via Smart Data Access. SAP ASE and MaxDB databases are runtime databases limited solely for use with SAP S/4HANA Cloud, private edition, tailored option packages. SAP Near-line storage for SAP BW NetWeaver Cloud and SAP BW/4HANA Cloud includes a runtime license of SAP IQ. Use of SAP IQ is limited solely for use with SAP BW NetWeaver Cloud, private ed, tailored option or SAP BW/4HANA Cloud, private ed, tailored option. This runtime license of SAP IQ is also available for use as a cold store for data tiering optimization in SAP BW/4HANA Cloud. SAP HANA, information management option includes SAP HANA Smart Data Integration and Smart Data Quality. Use of SAP HANA, data privacy option is limited solely to the SAP HANA Data Masking Engine, SAP HANA Data Anonymization Engine, Column Encryption, and Shared SAP Business Application Authorizations. Use of SAP HANA, predictive option is limited solely to the HANA PAL/R engine, Automated Predictive Library (APL), and TensorFlow integration. Use of SAP HANA, search and text option is limited solely to the SAP HANA Search Engine and Text Analysis Engine. Use of SAP HANA, spatial and graph option is limited solely to the SAP HANA Spatial Engine and Graph Engine. Use of SAP HANA Spatial Engine is governed by the following HERE "MAP DATA BY HERE" terms: The data ("Data") is provided for Licensee's internal use only and not for resale. It is protected by copyright, and is subject to the following terms and conditions which are agreed to by you, on the one hand, HERE and HERE Suppliers on the other hand. © 2008 HERE. All rights reserved. The Data for areas of Canada includes information taken with permission from Canadian authorities, including: © Her Majesty the Queen in Right of Canada, © Queen's Printer for Ontario, © Canada Post Corporation, GeoBase© Department of Natural Resources Canada HERE holds a non-exclusive license from the United States Postal Service® to publish and sell ZIP+4® information. ©United States Postal Service® 2008. Prices are not established, controlled or approved by the United States Postal Service®. The following trademarks and registrations are owned by the USPS: United States Postal Service, USPS, and ZIP+4. Scope of Use. Licensee agrees to use this Data together with SAP Applications solely for your internal business operations purposes for which Licensee was licensed, and not for service bureau, time-sharing or other similar purposes. Accordingly, but subject to the restrictions set forth in the following paragraphs, Licensee may copy this Data only as necessary for Licensee's business use to (i) view it, and (ii) save it, provided that Licensee does not remove any copyright notices that appear and do not modify the Data in any way. Licensee agrees not to otherwise reproduce copy, modify, decompile, disassemble or reverse engineer any portion of this Data, and may not transfer or distribute it in any form except to your affiliates, for any purpose, except to the extent permitted by mandatory laws. Multi-disc sets may only be transferred or sold as a complete set as provided by SAP and not as a subset thereof. Restrictions. Except where Licensee has been specifically licensed to do so by SAP, and without limiting the preceding paragraph, Licensee may not (a) use this Data with any products, systems, or applications installed or otherwise connected to or in communication with vehicles, capable of vehicle

	navigation, positioning, dispatch, real time route guidance, fleet management or similar applications; or (b) with or in communication with any positioning devices or any mobile or wireless-connected electronic or computer devices, including without limitation cellular phones, palmtop and handheld computers, pagers, and personal digital assistants or PDAs. Warning. The Data may contain inaccurate or incomplete information due to the passage of time, changing circumstances, sources used and the nature of collecting comprehensive geographic data, any of which may lead to incorrect results. No Warranty. This Data is provided to you "as is," and Licensee agrees to use it at its own risk. HERE and HERE SUPPLIERS make no guarantees, representations or warranties of any kind, express or implied, arising by law or otherwise, including but not limited to, content, quality, accuracy, completeness, effectiveness, reliability, fitness for a particular purpose, usefulness, use or results to be obtained from this Data, or that the Data or server will be uninterrupted or error-free. Disclaimer of Warranty: HERE and HERE SUPPLIERS DISCLAIM ANY WARRANTIES, EXPRESS OR IMPLIED, OF QUALITY, PERFORMANCE, MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. Some States, Territories and Countries do not allow certain warranty exclusions, so to that extent the above exclusion may not apply to you. Disclaimer of Liability: HERE and HERE SUPPLIERS SHALL NOT BE LIABLE: IN RESPECT OF ANY CLAIM, DEMAND OR ACTION, IRRESPECTIVE OF THE NATURE OF THE CAUSE OF THE CLAIM, DEMAND OR ACTION ALLEGING ANY LOSS, INJURY OR DAMAGES, DIRECT OR INDIRECT, WHICH MAY RESULT FROM THE USE OR POSSESSION OF THE INFORMATION; OR FOR ANY LOSS OF PROFIT, REVENUE, CONTRACTS OR SAVINGS, OR ANY OTHER DIRECT, INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF LICENCEE'S USE OF OR INABILITY TO USE THIS INFORMATION, ANY DEFECT IN THE INFORMATION, OR THE BREACH OF THESE TERMS OR CONDITIONS, WHETHER IN AN ACTION IN CONTRACT OR TORT OR BASED ON A WARRANTY, EVEN IF CLIENT OR ITS LICENSORS HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. Some States, Territories and Countries do not allow certain liability exclusions or damages limitations, so to that extent the above may not apply to Licensee. Indemnification: Licensee shall indemnify and save harmless HERE and HERE Suppliers, including Her Majesty The Queen, The Canada Post and the Department of Natural Resources Canada, and their officers, employees and agent: from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data. Government End Users. If the Data is being acquired by or on behalf of the United States government or any other entity seeking or applying rights similar to those customarily claimed by the United States government, the Data is a "commercial item" as that term is defined at 48 C.F.R. ("FAR") 2.101, is licensed in accordance with these Pass Through Terms, and each copy of Data delivered or otherwise furnished shall be marked and embedded as appropriate with the following "Notice of Use," and shall be treated in accordance with such Notice: Notice of Use Contractor (Manufacturer/ Supplier) Name: HERE Contractor (Manufacturer/Supplier) Address: 425 W. Randolph Street, Chicago, Illinois 60606 This Data is a commercial item as defined in FAR 2.101 and is subject to these End-User Term under which this Data was provided. © 2008 HERE – All rights reserved. The Data may include or reflect data of licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada. Such data is licensed on an "as is" basis. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, make no guarantees, representations or warranties respecting such data, either express or implied, arising bylaw or otherwise, including but not limited to, effectiveness, completeness, accuracy or fitness for a particular purpose. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in respect of any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action alleging any loss, injury or damages, direct or indirect, which may result from the use or possession of the data or the Data. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in any way for loss of revenues or contracts, or any other consequential loss of any kind resulting from any defect in the data or the Data. End User shall indemnify and save harmless the licensors, including Her Majesty the Queen, the Canada Post and the Department of Natural Resources Canada, and their officers, employees and agents from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data. If Data for additional countries is included or distributed in connection with software products of SAP, or if Licensee uses data from relevant countries the following supplier terms/copyright notices shall be included in the Licensee Terms as applicable: <table> <tr> <td>Territory</td><td>Notice</td></tr> <tr> <td>Australia</td><td>"Copyright. Based on data provided under license from PSMA Australia Limited (www.psama.com.au)."</td></tr> <tr> <td>Austria</td><td>"© Bundesamt für Eich- und Vermessungswesen"</td></tr> <tr> <td>Croatia, Cyprus, Estonia, Latvia, Lithuania, Moldova, Poland, Slovenia and/or Ukraine</td><td>"© EuroGeographics"</td></tr> <tr> <td>France</td><td></td></tr> <tr> <td>Germany</td><td>The following notice must appear on all copies of the Data, and may also appear on packaging: "source: © IGN 2009 – BD TOPO ©" "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen" or "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen."</td></tr> <tr> <td>Great Britain</td><td>"Based upon Crown Copyright material."</td></tr> <tr> <td>Greece</td><td>"Copyright Geomatics Ltd."</td></tr> <tr> <td>Hungary</td><td>"Copyright © 2003; Top-Map Ltd."</td></tr> <tr> <td>Italy</td><td>"La Banca Dati Italiana è stata prodotta usando quale riferimento anche cartografia numerica ed al tratto prodotta e fornita dalla Regione Toscana."</td></tr> <tr> <td>Norway</td><td>"Copyright © 2000; Norwegian Mapping Authority"</td></tr> <tr> <td>Portugal</td><td>"Source: IgeoE – Portugal"</td></tr> <tr> <td>Spain</td><td>"Información geográfica propiedad del CNIG"</td></tr> <tr> <td>Sweden</td><td>"Based upon electronic data □ National Land Survey Sweden."</td></tr> <tr> <td>Switzerland</td><td>"Topografische Grundlage: □ Bundesamt für Landestopographie."</td></tr> </table>	Territory	Notice	Australia	"Copyright. Based on data provided under license from PSMA Australia Limited (www.psama.com.au)."	Austria	"© Bundesamt für Eich- und Vermessungswesen"	Croatia, Cyprus, Estonia, Latvia, Lithuania, Moldova, Poland, Slovenia and/or Ukraine	"© EuroGeographics"	France		Germany	The following notice must appear on all copies of the Data, and may also appear on packaging: "source: © IGN 2009 – BD TOPO ©" "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen" or "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen."	Great Britain	"Based upon Crown Copyright material."	Greece	"Copyright Geomatics Ltd."	Hungary	"Copyright © 2003; Top-Map Ltd."	Italy	"La Banca Dati Italiana è stata prodotta usando quale riferimento anche cartografia numerica ed al tratto prodotta e fornita dalla Regione Toscana."	Norway	"Copyright © 2000; Norwegian Mapping Authority"	Portugal	"Source: IgeoE – Portugal"	Spain	"Información geográfica propiedad del CNIG"	Sweden	"Based upon electronic data □ National Land Survey Sweden."	Switzerland	"Topografische Grundlage: □ Bundesamt für Landestopographie."
Territory	Notice																														
Australia	"Copyright. Based on data provided under license from PSMA Australia Limited (www.psama.com.au)."																														
Austria	"© Bundesamt für Eich- und Vermessungswesen"																														
Croatia, Cyprus, Estonia, Latvia, Lithuania, Moldova, Poland, Slovenia and/or Ukraine	"© EuroGeographics"																														
France																															
Germany	The following notice must appear on all copies of the Data, and may also appear on packaging: "source: © IGN 2009 – BD TOPO ©" "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen" or "Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen."																														
Great Britain	"Based upon Crown Copyright material."																														
Greece	"Copyright Geomatics Ltd."																														
Hungary	"Copyright © 2003; Top-Map Ltd."																														
Italy	"La Banca Dati Italiana è stata prodotta usando quale riferimento anche cartografia numerica ed al tratto prodotta e fornita dalla Regione Toscana."																														
Norway	"Copyright © 2000; Norwegian Mapping Authority"																														
Portugal	"Source: IgeoE – Portugal"																														
Spain	"Información geográfica propiedad del CNIG"																														
Sweden	"Based upon electronic data □ National Land Survey Sweden."																														
Switzerland	"Topografische Grundlage: □ Bundesamt für Landestopographie."																														

SAP ERP, limited runtime edition priv ed, tailored op

Usage Metric	Flat Fee
Explanation of Usage Metric	Flat fees are fixed package license fees for the Subscription Software.
Block size	1
Additional Term and Conditions	May only be used to the extent necessary to operate other Subscription Software licensed by Customer under the Agreement, provided SAP Documentation indicates such other Subscription Software e technically requires the functions of SAP ERP, limited runtime edition priv ed tailored op in order to operate such other Subscription Software. Use of SAP ERP, limited runtime edition priv ed tailored op does not require a Named User license. SAP ERP, limited runtime edition priv ed tailored option is only available to S/4HANA Software Customers.

SAP ERP Foundation Starter priv ed, tailored op

Usage Metric	SAP ERP Foundation Starter
Explanation of Usage Metric	SAP ERP Foundation Starter comprises SAP ERP and five (5) SAP Professional Users.
Block size	1

HIGHER EDUCATION AND RESEARCH

SAP Educational Services for Higher Education and Research, priv ed, tailored op

Usage Metric	Students
Explanation of Usage Metric	Students are defined as: a) full-time registered students e.g. students who are registered for a full course load for the current academic year at the institution; and/or. b) equivalents of full-time registered students (for example, a part-time student could represent a fraction of a full-time student).
Block size	1

FINANCE

SAP Document and Reporting Compliance, priv ed, tailored op

Usage Metric	Document
Explanation of Usage Metric	Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	10,000

SAP Add-on for Polish SAF-T regulatory requirements, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	For this Subscription Software, each company code and country combination is counted as an individual object. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	5

SAP Global Trade Services, edition for HANA, private cloud edition, tailored option

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP ERP for financial shared service framework, priv ed, tailored op

Usage Metric	Transaction
Explanation of Usage Metric	Transaction is any message, job, action, response, and/or task processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

Block size	10,000
-------------------	--------

SAP ERP for Real Estate Management , priv ed, tailored op, residential property management option

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, rental units are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1000

SAP ERP for access control, priv ed, tailored op

Usage Metric	Resource
Explanation of Usage Metric	Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	100

SAP ERP for business integrity screening, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenue is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if (a) the data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and (b) the Revenues of the subset of entities can be separately verified.
Block size	€100 million (converted to local currency using SAP standard exchange rates)
Additional Terms & Conditions	Customer is allowed to create new tables and new views (database views, analytical views, projection views, attribute views, calculation views, etc.) on the database as long as they are used in the context of the SAP Business Integrity Screening for ERP, private cloud edition solution (e.g. to setup rules which access these tables/views).

SAP ERP for contract accounting and invoicing, priv ed, tailored op

Usage Metric	Revenue And Expense
Explanation of Usage Metric	Revenue and Expense is the total amount of revenue and expenses processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	€50 million (converted to local currency using SAP standard exchange rates)

SAP Extended Single Sign-on, priv ed, tailored op

Usage Metric	Flat Fee
Explanation of Usage Metric	Flat Fee is a fixed fee for the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Process Control, *priv ed, tailored op*

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Risk Management, *priv ed, tailored op*

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Audit Management, *priv ed, tailored op*

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP Electronic Invoicing f. Brazil (NFE - Inbound) *priv ed, tailored op*

Usage Metric	Spend Volumes
Explanation of Usage Metric	Spend volumes are the company's annual expenditures for the procurement of all direct and indirect goods and services. For SAP Electronic Invoicing for Brazil (NFE-Inbound), only Spend Volumes in Brazil are to be considered. For Public Sector entities, Public Sector Spend Budgets may be used instead. Public sector spend budget is the figure, published annually, that documents an organization's procurement budget for all direct and indirect goods and services.
Block size	520,000 € (converted to local currency using SAP standard exchange rates)
Additional Term and Conditions	Includes SAP BusinessObjects Enterprise as Runtime Software. Includes SAP Crystal Reports, SAP BusinessObjects Enterprise as Runtime Software. Includes Runtime Software of SAP Lumira Server which excludes the following rights: (a) Creation of a new Lumira document using Lumira Server and; (b) Modification of existing Lumira documents using Lumira Server

SAP Electronic Invoicing f. Brazil (NFE - Outbound) priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee's and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12 month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as "Premiums" For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management" For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets" For SAP Electronic Invoicing for Brazil (NFE), only the revenues generated by the company or legal entity located in Brazil need to be considered.
Block size	€7.8 million (converted to local currency using SAP standard exchange rates)
Additional Term and Conditions	Includes SAP BusinessObjects Enterprise as Runtime Software. Includes SAP Crystal Reports, SAP BusinessObjects Enterprise as Runtime Software. Includes Runtime Software of SAP Lumira Server which excludes the following rights: (a) Creation of a new Lumira document using Lumira Server and; (b) Modification of existing Lumira documents using Lumira Server

SAP Disclosure Management, professional edition priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. For SAP Business Intelligence (BI), there is no license limit on the number of processors or servers used. Users are identified at logon and do not consume a Concurrent Session license. Concurrent Session licenses and Users can be purchased in combination for a Deployment. Licensee may not utilize any program or system to cache or queue report requests. SAP BI users may be entered into the SAP NetWeaver BW system for the purposes of maintaining security. This metric does not replace the overall SAP Named User licensing requirement. For SAP Contact Center, Users represent agents and/or supervisors who work in a contact center environment and handle incoming contacts through multiple communication e-channels (such as email, chat, SMS and fax) and/or use supervisor tools to supervise contact center agents with e-channel user capability. In the context of voice-channel, Users represent agents who work in a contact center environment and handle incoming contacts through voice channel and office telephony only or handle outbound campaign calls only. In addition, each port in Interactive Voice Recognition system is also considered a User and should be counted as additional Users. For SAP Digital Asset Management by OpenText, limited access option Users are limited to search, browse, view and download assets. For SAP Identity Management and SAP Single Sign-On, Users are individuals whose credentials and/or user information is managed by the functionality of the Subscription Software. For SAP Real Estate Management, Users are individuals who manage office, retail and industrial properties and similar portfolios. It is applied for both owned and operated

	space, and includes commercial as well as corporate real estate management.
Block size	1

[SAP Enterprise Threat Detection priv ed, tailored op](#)

Usage Metric	Monitored Users
Explanation of Usage Metric	Users, monitored are employees, contract workers or other individuals whose credentials, permissions, privileges and/or other user information will be monitored, protected or evaluated by the Subscription Software, or are authorized to use the reporting console. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

[SAP Identity Management, priv ed, tailored op](#)

Usage Metric	Monitored Individuals
Explanation of Usage Metric	Monitored Individuals are unique individuals being managed by the Subscription Software or who use the reporting console of the Subscription Software.
Block size	100

[SAP Tax Declaration Framework for Brazil priv ed, tailored op](#)

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, each company code and country combination is counted as an individual object. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

EXTENDED SUPPLY CHAIN

[SAP Engineering Control Center for ERP, priv ed, tailored op, professional edition](#)

Usage Metric	Active User
Explanation of Usage Metric	Active User is any individual who accesses the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

[SAP Convergent Mediation by DigitalRoute Cloud, priv ed, tailored op](#)

Usage Metric	Revenue And Expense
Explanation of Usage Metric	Revenue and Expense is the total amount of revenue and expenses processed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.

Block size	50,000,000
-------------------	------------

SAP Manufacturing Integration and Intelligence, small plants priv ed, tailored op

Usage Metric	Plants
Explanation of Usage Metric	Plants are physical sites owned by or operated by an enterprise supported by the Subscription Software. For the purpose of determining the size and usage scenario of plants the following definitions apply: • Small plants are plants with up to 500 employees. Employees per plant are all employees and contractors working in the plant. • Midsize plants are plants with 501 up to 5,000 employees. Employees per plant are all employees and contractors working in the plant. • Large plants are plants with more than 5,000 employees. Employees per plant are all employees and contractors working in the plant.
Block size	1
Additional Term and Conditions	Embedded Analytics: Where Customer holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Agreement to: a) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s); and b) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports, and Lumira storyboards embedded with such licensed Package(s) (collectively "Embedded Analytics Limited Use Right"). Packages That Include Embedded Analytics Limited Use Right: • SAP ERP • SAP SCM • SAP Transportation Management • SAP Extended Warehouse Management • SAP SRM • SAP CRM • SAP Environment, Health and Safet • SAP Manufacturing Integration and Intelligence

SAP Manufacturing Integration and Intelligence, medium plants priv ed, tailored op

Usage Metric	Plants
Explanation of Usage Metric	Plants are physical sites owned by or operated by an enterprise supported by the Subscription Software. For the purpose of determining the size and usage scenario of plants the following definitions apply: • Small plants are plants with up to 500 employees. Employees per plant are all employees and contractors working in the plant. • Midsize plants are plants with 501 up to 5,000 employees. Employees per plant are all employees and contractors working in the plant. • Large plants are plants with more than 5,000 employees. Employees per plant are all employees and contractors working in the plant.
Block size	1
Additional Term and Conditions	Embedded Analytics: Where Customer holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Agreement to: a) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s); and b) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports,

and Lumira storyboards embedded with such licensed Package(s) (collectively "Embedded Analytics Limited Use Right"). Packages That Include Embedded Analytics Limited Use Right:
• SAP ERP • SAP SCM • SAP Transportation Management • SAP Extended Warehouse Management • SAP SRM • SAP CRM • SAP Environment, Health and Safety • SAP Manufacturing Integration and Intelligence

SAP Manufacturing Integration and Intelligence, large plants priv ed, tailored op

Usage Metric	Plants
Explanation of Usage Metric	Plants are physical sites owned by or operated by an enterprise supported by the Subscription Software. For the purpose of determining the size and usage scenario of plants the following definitions apply: • Small plants are plants with up to 500 employees. Employees per plant are all employees and contractors working in the plant. • Midsize plants are plants with 501 up to 5,000 employees. Employees per plant are all employees and contractors working in the plant. • Large plants are plants with more than 5,000 employees. Employees per plant are all employees and contractors working in the plant.
Block size	1
Additional Term and Conditions	Embedded Analytics: Where Customer holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Agreement to: a) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s); and b) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports, and Lumira storyboards embedded with such licensed Package(s) (collectively "Embedded Analytics Limited Use Right"). Packages That Include Embedded Analytics Limited Use Right: • SAP ERP • SAP SCM • SAP Transportation Management • SAP Extended Warehouse Management • SAP SRM • SAP CRM • SAP Environment, Health and Safety • SAP Manufacturing Integration and Intelligence

SAP Manufacturing Execution Cloud, priv ed, tailored op

Usage Metric	Resource
Explanation of Usage Metric	Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP ERP for Transportation Charge Management, priv ed, tailored op

Usage Metric	Freight Spend
Explanation of Usage Metric	Freight Spend is the annual freight costs incurred in transporting products; i.e., all the transportation costs, including labor, involved in moving goods to and from a plant/distribution center/warehouse, including payments to logistics companies for their services and any cost incurred by a company for the use and maintenance of its own fleet of vehicles.
Block size	€2.5 million (converted to local currency using SAP standard exchange rates)

SAP ERP for Transportation Planning & Execution, priv ed, tailored op

Usage Metric	Freight Spend
Explanation of Usage Metric	Freight Spend is the annual freight costs incurred in transporting products; i.e., all the transportation costs, including labor, involved in moving goods to and from a plant/distribution center/warehouse, including payments to logistics companies for their services and any cost incurred by a company for the use and maintenance of its own fleet of vehicles.
Block size	€2.5 million (converted to local currency using SAP standard exchange rates)

SAP ERP for Transportation Management for T&L, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenues is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if (a) the data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and (b) the Revenues of the subset of entities can be separately verified.
Block size	€2.5 million (converted to local currency using SAP standard exchange rates)
Additional Terms & Conditions	Business Partners may provide information to or view information in SAP Transportation Management for T&L, cloud edition as part of the planning, execution or settlement of freight within SAP TM. Business Partners do not require an FUE license. This includes any user necessary for SAP Gateway access.

SAP ERP for Supply Chain for extended warehouse management, priv ed, tailored op

Usage Metric	Items
---------------------	-------

Explanation of Usage Metric	Items represent the average number of Items (as defined below) per day based on the number of active days, managed in the Subscription Software during a contract year. A contract year is a 12-month period beginning on the first day of the Subscription Term or its annual anniversary. For shipper scenario, Items are delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery. For the transit warehousing scenario, Items are the packaging items (handling units) moved through the system from origin to destination. The packaging items are counted only once in this process. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	5,000

SAP ERP for environment management, priv ed, tailored op,
SAP ERP for health and safety management, priv ed, tailored op,
SAP ERP for incident management, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. For this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	100

SAP Engineering Control Center for SAP ERP, priv ed, tailored op, professional edition

Usage Metric	Active User
Explanation of Usage Metric	Active User is any individual who accesses the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to PTC Creo priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to CATIA V5 priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to NX priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to SolidEdge priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to Inventor priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to EPLAN priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires

	them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP.
Block size	1

SAP Engineering Control Center interface to ECAD priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to AutoCAD priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Engineering Control Center Interface to SolidWorks priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP ERP for product compliance, priv ed, tailored op

Usage Metric	Revenue
---------------------	---------

Explanation of Usage Metric	Revenue is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if (a) the data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and (b) the Revenues of the subset of entities can be separately verified.
Block size	€50 million (converted to local currency using SAP standard exchange rates)

SAP Core Human Capital Management Cloud, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. For this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms and Conditions	SAP Core Human Capital Management Cloud, priv ed, tailored op includes display use rights.

SAP Time Tracking Cloud, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. For this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms and Conditions	SAP Time Tracking Cloud, priv ed, tailored op includes display use rights.

SAP Payroll Cloud, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. For this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	500
Additional Terms and Conditions	SAP Payroll, priv ed, tailored op includes display use rights.

SAP Learning Cloud, priv ed, tailored op

Usage Metric	User
---------------------	------

Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. For this Subscription Software, an individual with a unique active profile and whose data is processed by the Subscription Software is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	500
Additional Terms and Conditions	SAP Learning Cloud, priv ed, tailored op includes display use rights.

SAP Incentive Administration by Vistex for SAP ERP, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenue is the total amount of revenue processed via the Subscription Software.
Block size	50,000,000

SAP Paybacks and Chargebacks by Vistex for SAP ERP, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	50,000,000

SAP Data Maintenance by Vistex pricing option for SAP ERP, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	50,000,000

SAP Data Maintenance by Vistex resources option for SAP ERP, priv ed, tailored op

Usage Metric	Revenue
Explanation of Usage Metric	Revenue is the total amount of revenue processed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	50,000,000

SAP Extended Manufacturing priv ed, tailored op

Usage Metric	Cost of Goods Sold
Explanation of Usage Metric	Costs of goods sold are all expenses directly associated with the production of goods or services the company sells (such as material, labor, overhead, and depreciation) annually. It does not include selling, general and administrative expenses or research & development. If cost of goods sold is unknown, then it shall be equal to 70% of total company revenue. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	€500 million (converted to local currency using SAP standard exchange rates)

SAP Supply Network Collaboration priv ed, tailored op

Usage Metric	Cost of Goods Sold
Explanation of Usage Metric	Costs of goods sold are all expenses directly associated with the production of goods or services the company sells (such as material, labor, overhead, and depreciation) annually. It does not include selling, general and administrative expenses or research & development. If cost of goods sold is unknown, then it shall be equal to 70% of total company revenue.
Block size	€500 million (converted to local currency using SAP standard exchange rates)

Global Batch Traceability priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee's and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12 month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as "Premiums" For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management" For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets". The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	€250 million (converted to local currency using SAP standard exchange rates)

SAP product data management integration to PTC Windchill priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP product data management integration to 3DEXPERIENCE priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP product data management integration to Teamcenter priv ed, tailored op

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Demand Signal Management, version for SAP BW/4HANA priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee's and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12 month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as "Premiums" For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management" For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets"
Block size	€500 million (converted to local currency using SAP standard exchange rates)

SAP Supply Network Planning, priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For Insurance, Revenues are the same as "Premiums" For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management" For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets" For SAP Configure, Price, and Quote (SAP CPQ), Revenues are the calculation of Licensee's and its Affiliates total annual sales revenues for products or services, which were generated using the SAP CPQ software less VAT, delivery and any returns.
Block size	€ 500,000,000 million (converted to local currency using SAP standard exchange rates)

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR NX, PRIV EDITION, TAILORED OPTION

Usage Metric	Users
---------------------	-------

Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, LIBRARY MANAGEMENT, PRIV EDITION, TAILORED OPTION

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, PARAMETER MANAGEMENT, PRIV EDITION, TAILORED OPTION

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL3 CONSUMER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, PACKAGING & ARTWORK, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, VISUALIZATION STANDARD, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, BRAND MANAGEMENT USER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, GATEWAY FOR ENTERPRISE APPLICATIONS, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SOLIDWORKS ENTERPRISE EDITION INTEGRATION, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATED MATERIAL MGMT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, AS-BUILT MANAGEMENT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR AUTOCAD ELECTRICAL, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, JT BI-DIRECTIONAL TRANSLATOR FOR CATIA V5, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, JT IMPORT FOR CATIA V5, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.

Block size	1
-------------------	---

SAP TEAMCENTER BY SIEMENS, OPEN SDK, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, PARTITIONS, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CLASSIFICATION, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR INVENTOR, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, ADVANCED BOM ROLLUP, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, AUTHOR, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, OCCASIONAL AUTHOR, PRIV ED, TAILORED OP

Usage Metric	Users
---------------------	-------

Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR CREO, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CHANGE MANAGEMENT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR SOLIDWORKS, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, ADV PRODUCT CONFIGURATOR-LEVEL 1 SOLVER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, GATEWAY FOR EDA LIBRARY, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, ENGINEERING PRODUCT CONFIGURATOR AUTHOR, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, GATEWAY FOR EDA, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL2 CONSUMER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SMART DISCOVERY, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, PROGRAM PLANNING, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CONTENT MANAGEMENT S1000D, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL 3 ADVANCED, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, PARTNER CONNECT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.

Block size	1
-------------------	---

SAP TEAMCENTER BY SIEMENS, SYSTEMS ENGINEERING, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, VERIFICATION MANAGEMENT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CONSUMER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, MULTI STRUCTURE FOUNDATION, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, ENGINEERING PRODUCT CONFIGURATOR-LV2, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL1 UNIT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, AI FOR CLASSIFICATION, PRIV ED, TAILORED OP

Usage Metric	Users
---------------------	-------

Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CONTEXT MANAGER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL1 CONSUMER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR AUTOCAD, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR MENTOR PADS, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, REQUIREMENTS MANAGEMENT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SCHEDULE MANAGER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, STEP AP203-214 TRANS, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, CONTENT MANAGEMENT USER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, VISUALIZATION MOCKUP, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, GATEWAY FOR PLM SYSTEM INTEGRATION, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, INTEGRATION FOR CATIA, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, RAPID START FOR ALTIUM DESIGNER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, RELATIONSHIP BROWSER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, EBOM LEVEL2 VARIANT, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SERVICE PLANNING, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SIMULATION AUTHOR, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SEMI LIFECYCLE MANAGEMENT NPI, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, SYSTEMS MODELER, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP TEAMCENTER BY SIEMENS, VISUALIZATION PROFESSIONAL, PRIV ED, TAILORED OP

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software.
Block size	1

SAP Product Lifecycle Management for Digital Products priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes.

	For the following packages, only the revenues associated with the business or division which the capabilities of the package will be applied against need to be considered: For Insurance, Revenues are the same as "Premiums".
Block size	€1 million (converted to local currency using SAP standard exchange rates)
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

PROCUREMENT

SAP Extended Procurement [priv ed, tailored op](#)

Usage Metric	Spend Volumes
Explanation of Usage Metric	Spend volumes are the company's annual expenditures for the procurement of all direct and indirect goods and services. For Public Sector entities, Public Sector Spend Budgets may be used instead. Public sector spend budget is the figure, published annually, that documents an organization's procurement budget for all direct and indirect goods and services.
Block size	€1 million (converted to local currency using SAP standard exchange rates)

SAP Extended Procurement, Public Sector and Regulated Industries extension [priv ed, tailored op](#)

Usage Metric	Spend Volumes
Explanation of Usage Metric	Spend volumes are the company's annual expenditures for the procurement of all direct and indirect goods and services. For Public Sector entities, Public Sector Spend Budgets may be used instead. Public sector spend budget is the figure, published annually, that documents an organization's procurement budget for all direct and indirect goods and services.
Block size	€1 million (converted to local currency using SAP standard exchange rates)

SAP Supplier Lifecycle Management, [priv ed, tailored op](#)

Usage Metric	Spend Volumes
Explanation of Usage Metric	Spend Volumes are the company's annual expenditures for the procurement of all direct and indirect goods and services.
Block size	€ 1 million (converted to local currency using SAP standard exchange rates)

Enterprise Information Management

SAP Invoice Management by OpenText for SAP ERP, [priv ed, tailored option](#)

Usage Metric	Document
Explanation of Usage Metric	Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	1000

SAP Extended Enterprise Content Management by OpenText, [priv ed, tailored option](#)

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Extended ECM by OpenText, limited access option, priv ed, tailored option

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP ERP for master data governance, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	5000

SAP Data Services, enterprise edition, priv ed, tailored op

Usage Metric	Tenants
Explanation of Usage Metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP PowerDesigner EnterpriseArchitect priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Term and Conditions	Includes SAP SQL Anywhere database, which may only be Used as the metadata repository for PowerDesigner (where licensed) and for SQL language parsing.

SAP Code Vulnerability Analyzer, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Information Lifecycle Management, priv ed, tailored op

Usage Metric	Connection
---------------------	------------

Explanation of Usage Metric	Connection is a linkage between the Subscription Software and another system/technology. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

OIL AND GAS

SAP Upstream Field Activity Management by OIS priv ed, tailored op

Usage Metric	BOEPD
Explanation of Usage Metric	Barrel of Oil Equivalent per Day (BOEPD) is a unit of measure used in the oil and gas industry that allows aggregating the produced, scheduled or sold quantities of hydrocarbons from both conventional and unconventional sources over the prior 12 month consecutive months.
Block size	10,000

INSURANCE

SAP ERP for insurance claims management, priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	"Revenues" is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if: a) The data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and; b) The revenues of the subset of entities can be separately verified.
Block size	€1 million (converted to local currency using SAP standard exchange rates)
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

SAP ERP for insurance incentives and commissions, priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	"Revenues" is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if: a) The data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and;

	b) The revenues of the subset of entities can be separately verified.
Block size	€1 million (converted to local currency using SAP standard exchange rates)
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

SAP ERP for insurance collections and disbursements, priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	"Revenues" is the total annual revenue that the Customer, its corporate group and affiliates receive from all business activities including revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. If Customer is an insurance company, Revenues means the annual total gross premiums of Customer, its corporate group and affiliates. If Customer is a public sector organization, Revenues means the total annual budget of the organization. Customer's Revenues may be based on a subset of entities that comprise Customer's corporate group if: a) The data being processed using the Subscription Software is limited to the data directly associated with the subset of entities whose Revenues is used to calculate fees specified in the Order Form and; b) The revenues of the subset of entities can be separately verified.
Block size	€1 million (converted to local currency using SAP standard exchange rates)

BANKING

SAP ERP for transactional banking, priv ed, tailored op, natural person option

Usage Metric	Contracts
Explanation of Usage Metric	"Contracts" are individual legal agreements, between a company and its customers for services provided, which are managed by the Subscription Software.
Block size	1,000
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

SAP ERP for transactional banking, priv ed, tailored op, legal person option

Usage Metric	Contracts
Explanation of Usage Metric	"Contracts" are individual legal agreements, between a company and its customers for services provided, which are managed by the Subscription Software.
Block size	1,000
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

SAP ERP for transactional banking, priv ed, tailored op, German mortgage loans option

Usage Metric	Contracts
Explanation of Usage Metric	"Contracts" are individual legal agreements, between a company and its customers for services provided, which are managed by the Subscription Software.

Block size	1,000
Additional Term and Conditions	This Subscription Software is a Pioneer solution.

HEALTH CARE

[SAP Ambulatory Care Management for HC priv ed, tailored op](#)

Usage Metric	Outpatient days
Explanation of Usage Metric	Outpatient days is the sum of the days in which patients have been treated as outpatients in a one year period. One outpatient day is counted when one patient is treated as an outpatient in one calendar day, independently of the quantity of work done on that day and on how the work was documented in the SAP system (in one or more outpatient cases, and, within cases, as one or more visit movements).
Block size	10,000

[SAP Patient Management for HC priv ed, tailored op](#)

Usage Metric	Patients treated
Explanation of Usage Metric	Patients treated are those treated in one calendar year in the institutions supported by the SAP system. Patients are only counted once, no matter how many times they are treated in the hospital within the year.
Block size	10,000

[SAP Patient Management for Switzerland, private edition, tailored op](#)

Usage Metric	Outpatient days
Explanation of Usage Metric	Outpatient days is the sum of the days in which patients have been treated as outpatients in a 1-year period. One outpatient day is counted when one patient is treated as an outpatient in one calendar day, independently of the quantity of work done on that day or how the work was documented in the SAP system (in one or more outpatient cases, and, within cases, as one or more visit movements).
Block size	10,000

[Cerner i.s.h.med from SAP, core bundle, priv ed, tailored op](#)

Usage Metric	Patients Treated
Explanation of Usage Metric	Patients Treated are those treated in one calendar year in the institutions supported by the SAP system. Patients are only counted once, no matter how many times they are treated in the hospital within the year.
Block size	10,000

UTILITIES

[SAP ERP for energy utilities, priv ed, tailored op](#)

Usage Metric	Point Of Delivery
Explanation of Usage Metric	Point of Delivery is the active metering point where a utility service is supplied or determined, as managed via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1000

RETAIL

SAP Forecasting and Replenishment Cloud, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000 Products

SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	Transaction
Explanation of Usage Metric	Transaction is any message, job, action, response, and/or task processed via the Subscription Software. For this Subscription Software, the points of sale transactions across all stores are counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	10,000

SAP Promotion Management for SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	Active User
Explanation of Usage Metric	Active User is any individual who accesses the Subscription Software. For this Subscription Software, individuals who create and/or change the following objects: Offer, vendor fund, campaign, event and any area template, block template or content template, are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Assortment Planning for SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	Active User
Explanation of Usage Metric	Active User is any individual who accesses the Subscription Software. For this Subscription Software, individuals who create and/or change an assortment list or an option plan, are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Merchandise Planning for SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Replenishment Planning for SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000 Product Location Combinations

SAP ERP for Merchandising for Retail priv ed, tailored op

Usage Metric	Flat Fee
Explanation of Usage Metric	Flat Fee is a fixed fee for the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP ERP foundation for retail and fashion, priv ed, tailored op

Usage Metric	Document
Explanation of Usage Metric	Document is a record of commercial transactional data managed via the Subscription Software. For this Subscription Software, documents are purchase orders, sales orders, production orders and point-of-sale billing documents. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	12,000

SAP Loss Prevention by Fujitsu priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee's and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12 month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as "Premiums" For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management" For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets".
Block size	€ 1 million (converted to local currency using SAP standard exchange rates)

CUSTOMER EXPERIENCE

SAP CRM Service, private edition, tailored option

Usage Metric	Users
Explanation of Usage Metric	Users are individuals who Use the Subscription Software. A "User" included in the Metric count cannot be assigned to more than one individual.
Block size	1
Additional Term and Conditions	<u>Embedded Analytics:</u> Where Licensee holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Agreement to (i) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s) and (ii) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports, and Lumira storyboards embedded with such licensed Package(s) (collectively "Embedded Analytics Limited Use Right"). Packages That Include Embedded Analytics Limited Use Right: • SAP ERP • SAP SCM • SAP Transportation Management • SAP Extended Warehouse Management • SAP SRM • SAP CRM • SAP Environment, Health and Safety • SAP Manufacturing Integration and Intelligence Use of the following CEC Packages does not require a Named User license: • SAP CRM Sales • SAP CRM Service • SAP CRM Marketing • SAP CRM Loyalty Management • SAP Sales and Service Order Execution for B2C • SAP Sales and Service Order Execution for B2B & B2C • SAP Contact Center • SAP Trade Promotion Planning and Management • SAP Advanced Analytics for Trade Management • SAP Customer Business Planning • SAP Configure, Price and Quote for product configuration • SAP Configure, Price and Quote for solution sales configuration • Desktop Connection for SAP CRM – enterprise edition <u>SAP CRM Sales; SAP CRM Service; SAP CRM Marketing:</u> Use of SAP CRM Sales, SAP CRM Service and SAP CRM Marketing packages is limited to Licensee and its affiliates/subsidiaries. <u>SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; SAP CRM Marketing, Limited Access:</u>

Licensing of SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; or SAP CRM Marketing, Limited Access allows Licensee's Business Partners to access the SAP CRM Sales; SAP CRM Service; or SAP CRM Marketing package respectively, in accordance with the terms of the Agreement.

SAP CRM Sales, private edition, tailored option

Usage Metric	Users
Explanation of Usage Metric	Users are individuals who Use the Subscription Software. A "User" included in the Metric count cannot be assigned to more than one individual.
Block size	1
Additional Term and Conditions	<u>Embedded Analytics:</u> Where Licensee holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Agreement to (i) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s) and (ii) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports, and Lumira storyboards embedded with such licensed Package(s) (collectively "Embedded Analytics Limited Use Right"). Packages That Include Embedded Analytics Limited Use Right: • SAP ERP • SAP SCM • SAP Transportation Management • SAP Extended Warehouse Management • SAP SRM • SAP CRM • SAP Environment, Health and Safety • SAP Manufacturing Integration and Intelligence Use of the following CEC Packages does not require a Named User license: • SAP CRM Sales • SAP CRM Service • SAP CRM Marketing • SAP CRM Loyalty Management • SAP Sales and Service Order Execution for B2C • SAP Sales and Service Order Execution for B2B & B2C • SAP Contact Center • SAP Trade Promotion Planning and Management • SAP Advanced Analytics for Trade Management • SAP Customer Business Planning • SAP Configure, Price and Quote for product configuration • SAP Configure, Price and Quote for solution sales configuration • Desktop Connection for SAP CRM – enterprise edition <u>SAP CRM Sales; SAP CRM Service; SAP CRM Marketing:</u> Use of SAP CRM Sales, SAP CRM Service and SAP CRM Marketing packages is limited to Licensee and its affiliates/subsidiaries. <u>SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; SAP CRM Marketing, Limited Access:</u>

Licensing of SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; or SAP CRM Marketing, Limited Access allows Licensee's Business Partners to access the SAP CRM Sales; SAP CRM Service; or SAP CRM Marketing package respectively, in accordance with the terms of the Agreement.

ANALYTICS

SAP BW/4HANA Cloud, base package, private edition

Usage Metric	Entitlements Package
Explanation of Usage Metric	Entitlements Package is a set of defined entitlements, as set forth in the respective Product Supplement, Service Description Guide or Service Use Description.
Block size	1

SAP BW/4HANA Cloud, priv ed, tailored op

Usage Metric	Tenant
Explanation of Usage Metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

SAP BW NetWeaver Cloud, priv ed, tailored op

Usage Metric	Tenant
Explanation of Usage Metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.

SAP BusinessObjects Business Intelligence, private cloud edition, tailored option, standard user

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP BusinessObjects Business Intelligence, private cloud edition, tailored option, connection

Usage Metric	Connection
---------------------	------------

Explanation of Usage Metric	Connection is a linkage between the Subscription Software and another system/technology. For this Subscription Software, the maximum number of sessions accessing the Subscription Software at any one time are counted as Connections. A session starts with a logon and ends with a logoff/ time-out. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term. The number of sessions accessing each Deployment must be limited by corresponding license key mechanisms. The maximum number of sessions enabled on a Deployment by such limitations may not exceed the usage metric limit for the number of Connections assigned to that Deployment for such licensed Subscription Software. The aggregate number of sessions enabled on all Deployments may not exceed the usage metric limitation of Connections. Users in deployments with an unlimited number of sessions require a subscription to SAP BusinessObjects Business Intelligence, private cloud edition, tailored option, standard user. There is no license limit on number of processors or servers used. Customer may not utilize any program or system to cache or queue report requests. SAP BusinessObjects Business Intelligence, private cloud edition, tailored option users accessing any Deployment using a Connection license may be entered into the SAP NetWeaver BW system for the purposes of maintaining security.
Block size	1
Additional Terms & Conditions	The following use rights are not available with Connection usage metric: • Use of Business View Manager, Report Conversion Tool, Universe Design Tool, Web Service Query Tool, Information Design Tool, Translation Management Tool, Data Federation Administration Tool, Central Management Console, and/or Central Configuration Manager • Use of the Crystal Reports desktop client, and/or Crystal Reports for Enterprise desktop client • Use of the Web Intelligence Rich Client

SAP Profitability and Performance Management Cloud, private edition, tailored option

Usage Metric	Gigabyte
Explanation of Usage Metric	Gigabyte is the amount of capacity in the Subscription Software. For this Subscription Software, memory capacity is counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Business Planning and Consolidation standard edition for SAP NetWeaver Cloud, private edition, tailored option

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms and Conditions	

	This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software. Use is limited to (i) direct input and/or editing of quantitative and qualitative data into the application; (ii) execution of existing reports or creation of reports on existing data structures; (iii) execution of changes to workflow tasks; and (iv) viewing data, except that Users accessing the package through an interface are limited to viewing data only. The consolidation functionality is limited to running controls on data submitted by Users. Planning functionality is limited to performing planning tasks only on existing models.
--	---

SAP Business Planning and Consolidation standard edition for SAP NetWeaver Cloud (planning only), priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms and Conditions	This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software. Use is limited to (i) direct input and/or editing of quantitative and qualitative data into the application; (ii) execution of existing reports or creation of reports on existing data structures; (iii) execution of changes to workflow tasks; and (iv) viewing data, except that Users accessing the package through an interface are limited to viewing data only. The consolidation functionality is limited to running controls on data submitted by Users. Planning functionality is limited to performing planning tasks only on existing models.

SAP Business Planning and Consolidation professional edition for SAP NetWeaver Cloud, priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms & Conditions	This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software. With the professional edition, you can operate master data, reports, and process- and workflows. It allows you to define allocation and consolidation rules and gives you control over models or consolidation definitions. It also gives you the right to execute administrative and user-related tasks. The User gains additional planning and consolidation functions/rights. This package may be used solely for the creation and calculation of budget, plan, or forecast data, including the calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

SAP Business Planning and Consolidation professional edition for SAP NetWeaver Cloud (planning only), priv ed, tailored op

Usage Metric	User
Explanation of Usage Metric	User is any individual authorized to access the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms & Conditions	This Subscription Software is to be subscribed to whenever data extraction to third party systems is required; however, use cases involving data extraction in the form of static reports (i.e., pdf) do not require a subscription to this Subscription Software. With the professional edition, you can operate master data, reports, and process- and workflows. It allows you to define allocation and consolidation rules and gives you control over models or consolidation definitions. It also gives you the right to execute administrative and user-related tasks. The user gains additional planning and consolidation functions/rights. This package may be used solely for the creation and calculation of budget, plan, or forecast data, including the calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

MIDDLEWARE

[SAP Landscape Transformation Replication Server, priv ed, tailored op](#)

Usage Metric	Tenant
Explanation of Usage Metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

[SAP NetWeaver Foundation for Third Party Applications, user based priv ed, tailored op](#)

Usage Metric	Users
Explanation of Usage Metric	Users are individuals authorized to access the Subscription Software. A User included in the Metric count cannot be assigned to more than one individual. However, a User assignment may be transferred from one individual to another, but only if the individual to which the User was assigned is: (i) is on vacation; (ii) is absent due to sickness; (iii) has their employment terminated; (iv) is moved into a new job function which no longer requires them to Use the applicable Package(s); or (v) is subject to a condition that is otherwise agreed by SAP.
Block size	1
Additional Term and Conditions	The SAP NetWeaver Foundation for Third Party Applications license grants the Customer, in addition to the SAP NetWeaver Foundation runtime license, the right to Use the SAP NetWeaver Foundation for Third Party Applications Software with: (a) Add-Ons to the SAP application that access the information contained in the database of the SAP applications(*); and (b) third party applications that access the information contained in the database of the SAP applications. Important Notices: Add-Ons and third-party applications that solely contain functionality for system administration, monitoring and management do not require a license for SAP NetWeaver Foundation for Third Party Applications.

Access to the information contained in a database (including but not limited to Oracle and/or Microsoft databases) may require full use licenses for that database. It is Customer's responsibility to secure all appropriate rights from any applicable licensor(s).

(*) Customer's Developer Users may Use the tools included in SAP NetWeaver Foundation for Third Party Applications license for the development of these Add-Ons described above. Mixing Core-base and user-based license metrics for SAP NetWeaver Foundation for Third Party Applications is not permitted. Customers must decide the first time they purchase or license SAP NetWeaver Foundation for Third Party Applications which license metric (user-based or Core-based) they will use.

Focused Run for SAP Solution Manager, perpetual option priv ed, tailored op

Usage Metric	GB of Memory
Explanation of Usage Metric	Gigabytes of memories are the total amount of memory that may be used by the Subscription Software, as measured in gigabytes.
Block size	1 GB

DATABASES & DATA MANAGEMENT

SAP Adaptive Server Platform priv ed, tailored op

Usage Metric	Cores
Explanation of Usage Metric	Cores are the number of cores in CPUs that are available for use by the licensed Subscription Software. The number of Core licenses must be an integer. When counting physical Cores, each Core of a physical CPU that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is considered and counted. When counting virtual Cores, each virtual Core that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is counted. If the licensed Subscription Software will run in a pure virtual environment, physical Cores will not be counted. For purposes of clarification, "Core" as defined in this metric definition is different from "core" as referenced in the metric definition for any other Subscription Software licensed on a CPU basis (if any), and therefore is not applicable in that context.
Block size	1
Additional Term and Conditions	The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Adaptive Server Platform ("ASP") may be installed and Used. SAP ASP includes the following Software: SAP Adaptive Server Enterprise ("SAP ASE"), SAP IQ, and SAP Replication Server.

SAP Adaptive Server Platform, Database Always-on Option priv ed, tailored op

Usage Metric	Cores
Explanation of Usage Metric	Cores are the number of cores in CPUs that are available for use by the licensed Subscription Software. The number of Core licenses must be an integer. When counting physical Cores, each Core of a physical CPU that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is considered and counted. When counting virtual Cores, each virtual Core that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is counted. If the licensed Subscription Software will run in a pure virtual environment, physical Cores will not be counted. For purposes of clarification, "Core" as defined in this metric definition is different from "core" as referenced in the metric definition for any other Subscription Software licensed on a CPU basis (if any), and therefore is not applicable in that context.
Block size	1

SAP Adaptive Server Platform, Workload Analyzer Option priv ed, tailored op

Usage Metric	Cores
Explanation of Usage Metric	Cores are the number of cores in CPUs that are available for use by the licensed Subscription Software . The number of Core licenses must be an integer. When counting physical Cores, each Core of a physical CPU that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is considered and counted. When counting virtual Cores, each virtual Core that runs at least parts of the licensed Subscription Software, including those that are temporarily assigned or scheduled to cover peak processing, is counted. If the licensed Subscription Software will run in a pure virtual environment, physical Cores will not be counted. For purposes of clarification, “Core” as defined in this metric definition is different from “core” as referenced in the metric definition for any other Subscription Software licensed on a CPU basis (if any), and therefore is not applicable in that context.
Block size	1

SAP HANA, active/active read-enabled option priv ed, tailored op

Usage Metric	GB of Memory
Explanation of Usage Metric	Gigabytes of memories are the total amount of memory that may be used by the Subscription Software, as measured in gigabytes.
Block size	64 GB
Additional Term and Conditions	SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario. Customer must license an equal number of SAP HANA active/active read-enabled units to correspond to the number of SAP HANA units associated with the primary SAP HANA, EE Cloud priv ed, tailored op instance.

SAP HANA, active/active read-enabled option for HANA runtime, priv ed, tailored op

Usage Metric	HSAV
Explanation of Usage Metric	HANA SAP Application Value (HSAV) is the sum of prices for licensed Subscription Software, excluding those items identified in the list of prices and conditions that do not contribute to the HANA SAP Application Value.
Block size	1
Additional Term and Conditions	SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario.

NATIVE HANA

SAP Quotation and Underwriting for Insurance priv ed, tailored op

Usage Metric	Premiums
Explanation of Usage Metric	Premiums of the insurance company, which uses the product, is the total gross premiums as disclosed in the latest annual statement of the legal entity in a fiscal year. If the Customer does not disclose a comprehensive annual statement, the Customer must report the respective information to SAP on an annual basis. If Customer does not disclose the information publicly, Customer must deliver and explain it to SAP. If the product shall be licensed only for a subdivision of the insurance company the respective license contract requires an explicit definition.
Block size	€1 million (converted to local currency using SAP standard exchange rates)

Additional Terms and Conditions	This is Subscription Software is a Pioneer solution.
--	--

NON-STANDARD

SAP Bank Communication Management, option for multisystem payment consolidation priv ed, tailored op

Usage Metric	Flat Fee
Explanation of Usage Metric	Flat fees are fixed package license fees for the Subscription Software.
Block size	1

card management priv ed, tailored op

Usage Metric	Items
Explanation of Usage Metric	Items represent entities managed in the Subscription Software. For card management and SAP S/4HANA for card management, Items are the number of active cards stored in the system.
Block size	50,000
Additional Term and Conditions	This Subscription Software is a Pioneer solution. This Subscription Software includes the following Runtime Software: Transactional Banking, Retail Banking; SAP Payment Engine, all to be used only in conjunction with card management.

FOCUSED BUSINESS SOLUTIONS

Special support: The Subscription Software set forth in this section are identified as a Focused Business Solution ("FBS Software"), and special support strategy and conditions apply. SAP Support for FBS Software shall be provided in accordance with the applicable SAP Support terms as amended by the then current support strategy and conditions found at <https://support.sap.com/fbs> (inclusive of any successor site(s) made known by SAP, the "Strategy & Conditions Site").

Strategy & Conditions Site: The Strategy & Conditions Site is hereby amended to include the following terms:

- FBS Software requires, as a prerequisite to its use and installation, a specific version (e.g. release, service level pack, and/or enhancement pack) of certain SAP Subscription Software (the "Base Software"), which is identified on the Strategy & Conditions Site and must be separately subscribed to and installed by Customer.
- In the future, should SAP elect, in its sole and exclusive discretion, to make new release(s) of FBS Software commercially available as part of SAP Support, such new release(s) may (a) differ functionally, (b) have different supported language(s) and/or (c) have different Base Software requirements from prior FBS Software release(s).
- Mainstream and extended maintenance dates for FBS Software are targets, and therefore subject to change by SAP.
- In no event will maintenance or extended maintenance for any FBS Software release be provided following the expiration or termination of mainstream or extended (as applicable) maintenance on the underlying Base Software.

SAP Asset Retirement Obligation Management priv ed, tailored op

Usage Metric	Asset Retirement Obligation Cost Estimations
Explanation of Usage Metric	Asset retirement obligation cost estimations are the volume of the cost estimations which are handled in the solution. The cost estimation volume is equal to the total of the settlement values (expected costs at the estimated retirement date) of all cost estimation items of the cost estimation plans of all asset retirement obligations, which are handled by SAP Asset Retirement Obligation Management priv ed tailored option. If the customer is using more than one accounting principle, the cost estimation volume is calculated separately for every accounting principle. The maximum of these values will be used for pricing. The cost estimation volume is determined based on the volume, which is valid at the fiscal year end date. Only asset retirement obligations, which are active at this date, will be considered.

Block size	€100 million (converted to local currency using SAP standard exchange rates)
-------------------	--

SAP Corporate Serialization priv ed, tailored op

Usage Metric	Document
Explanation of Usage Metric	Document is a record of commercial transactional data managed via the Subscription Software. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	100,000

SAP Forecasting and Replenishment Cloud, add-on for fresh products, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000 Product
Additional Term and Conditions	This solution is limited to the following language versions: Available Log-On Languages: Danish, Dutch, English, German, Spanish, Swedish, French Available Documentation Languages: English

SAP GTS, identity-based preference processing priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee's and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as "Premiums." For National Central Banks / Federal Reserve Banks, Revenues are the same as "Assets under Management." For Other Banks, Revenues are the sum of Licensee's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee's Income Statement. For Public Sector, Revenues are the same as "Total Annual Budgets."
Block size	€500 million (converted to local currency using SAP standard exchange rates)

SAP Multiresource Scheduling for SAP ERP, priv ed, tailored op

Usage Metric	Resource
Explanation of Usage Metric	Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms & Conditions	If Customer purchases a subscription to SAP ERP, disaster recovery, priv ed, tailored op package, disaster recovery services are not offered for this service.

SAP Manufacturing Integration and Intelligence for SAP S/4HANA Cloud, priv ed, tailored op

Usage Metric	Resource
Explanation of Usage Metric	Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms & Conditions	If Customer purchases a subscription to SAP ERP, disaster recovery, priv ed, tailored op package, disaster recovery services are not offered for this service.

SAP Product and Process Governance by BDF, priv ed, tailored op

Usage Metric	Active User
Explanation of Usage Metric	Active User is any individual who accesses the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1
Additional Terms & Conditions	If Customer purchases a subscription to SAP ERP, disaster recovery, priv ed, tailored op package, disaster recovery services are not offered for this service.

SAP Work Clearance Management for SAP ERP, priv ed, tailored op

Usage Metric	Resource
Explanation of Usage Metric	Resource is any authorized individual or physical asset accessing, being managed and/or monitored via the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	80,000
Additional Terms & Conditions	If Customer purchases a subscription to SAP ERP, disaster recovery, priv ed, tailored op package, disaster recovery services are not offered for this service.

SAP Customer Activity Repository Cloud, omnichannel price and promotion service, private edition

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, the number of products available for sale to customers is counted. The Usage Metric entitlement in the Order Form is based on a yearly entitlement.
Block size	1,000
Additional Terms & Conditions	This solution is limited to the following languages versions: Available Log-On Languages: English, German, Chinese, French, Hindi, Indonesian, Italian, Japanese, Korean, Portuguese, Russian, Spanish Available Documentation Languages: English

SAP Product Lifecycle Costing priv ed, tailored op

Usage Metric	Tenant
Explanation of Usage Metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Allocation Management for SAP Customer Activity Repository Cloud, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. For this Subscription Software, all processed products in all locations are counted. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000
Additional Terms & Conditions	This solution is limited to the following languages versions: Available Log-On Languages: Czech, English, German, Chinese, Danish, Finnish, French, Italian, Spanish, Japanese, Norwegian, Portuguese, Russian, Swedish, Polish, Turkish, Bulgarian, Romanian, Serbian (Latin), Slovak Available Documentation Languages: English

REPEATABLE CUSTOM SOLUTIONS

Prerequisite to use: The Subscription Software set forth in this section are identified as Repeatable Custom Solution (“RCS Software”), and RCS Software requires, as a prerequisite to its use and installation, a specific version (such as release, service level pack, and/or enhancement pack) of certain SAP Subscription Software (the “Base Software”) which is identified by SAP, along with specific use conditions under <https://support.sap.com/rcs> (the “RCS Strategy & Conditions Site”) and/or the Documentation. Special support strategy and conditions apply for RCS Software. SAP and Customer agree that Support for RCS Software shall be provided as set forth in the applicable SAP Product Specific Support Schedule for RCS found at the RCS Strategy & Conditions site.

Not standard software: RCS Software is not SAP standard software and in its current state an RCS Software may not meet all SAP standards including but not limited to language or country version, available version, supported operating systems, or database. Customer must fully test the RCS Software before using it in live operation. The standard language in which the RCS Software and its Documentation will be provided is English. SAP reserves the right to release individual versions of the RCS Software or its Documentation in additional languages. SAP has no obligation to transfer any functionality licensed under this agreement into SAP’s standard software, nor shall SAP be obliged to make the RCS Software compatible with new releases or versions of the Base Software.

Advanced simulation for supply network planning priv ed, tailored op

Usage Metric	Revenues
Explanation of Usage Metric	Revenues are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenues exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes. For SAP Customer Experience branded products, Revenue is the calculation of Licensee’s and its Affiliates total annual sales revenue for products or services that are purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12-month period, less VAT, delivery and any returns. For Insurance, Revenue are the same as “Premiums.” For National Central Banks / Federal Reserve Banks, Revenues are the same as “Assets under Management.” For Other Banks, Revenues are the sum of Licensee’s gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Licensee’s Income Statement. For Public Sector, Revenues are the same as “Total Annual Budgets”.
Block size	€ 500 million (converted to local currency using SAP standard exchange rates)

SAP ERP connector for SAP Cash Application priv ed, tailored op

Usage Metric	Transactions
Explanation of Usage Metric	Transactions are the total maximum number of documents and line items processed by the Cash Application priv ed tailored option per year. One transaction is either one payment advice file (pdf) or one bank statement line item or one lockbox line item.

Block size	10,000
-------------------	--------

advanced data synchronization framework priv ed, tailored op

Usage Metric	Flat Fee
Explanation of Usage Metric	Flat fees are fixed fees for the Subscription Software.
Block size	1

SAP add-on for Polish SAF-T regulatory requirements, priv ed, tailored op

Usage Metric	Object
Explanation of Usage Metric	Object is a data object, representing any physical object, managed via the Subscription Software. None. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	5
Additional Terms and Conditions	This Subscription Software includes an on-premise component that can be downloaded and installed by the Customer. The System Availability Service Level does not apply to this component. Customer may only use the on-premise components during the Subscription Term.

UI data protection masking priv ed, tailored op

Usage Metric	Employees
Explanation of Usage Metric	Employees are individuals, working for a company or legal entity that is licensing the functionality of the package, regardless of employment status (e.g. part time, full time, leave of absence or contract worker). Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000

UI data protection logging priv ed, tailored op

Usage Metric	Employees
Explanation of Usage Metric	Employees are individuals, working for a company or legal entity that is subscribing to the functionality of the package, regardless of employment status (e.g. part time, full time, leave of absence or contract worker). Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1,000

SAP Advanced Planning and Optimization, priv ed, tailored op

Usage metric	Tenant
Explanation of usage metric	Tenant is a customer-specific instance of the Subscription Software. Unless otherwise indicated herein, the Usage Metric entitlement in the Order Form is retained throughout the Subscription Term.
Block size	1

SAP Cloud Application Services Supplemental Terms and Conditions

This Supplement is part of an Agreement for SAP Cloud Services between SAP and Customer and applies only to the SAP Cloud Application Services for SAP HANA Enterprise Cloud, Advanced Edition ("HEC Advanced Edition"); RISE with SAP S/4HANA Cloud, private edition; SAP ERP, private cloud edition; RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option ("CAS" or "Cloud Service") to which Customer is subscribed. Any documents referenced in this Supplement are available upon request. For the purposes of this Supplement, "Private Cloud Edition Services" shall collectively refer to RISE with SAP S/4HANA Cloud, private edition and SAP ERP, private cloud edition, and "Tailored Option Services" shall collectively refer to RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option.

1. CLOUD SERVICE

- 1.1. The following CAS for HEC Advanced Edition, Private Cloud Edition Services, and Tailored Option Services are available: (i) SAP Cloud Application Services packages which are fixed scope packages ("CAS Package(s)"), and (ii) SAP Cloud Application Services for customer specific scope ("Customer Specific CAS"). The Usage Metric/scope for each CAS Package are set forth in Section 2 below, and the Usage Metrics/scope for Customer Specific CAS are set forth in the Order Form for HEC Advanced Edition and Tailored Option Services, and in the respective Customer Specific CAS order form for Private Cloud Edition Services.
- 1.2. The services and scope for the CAS services are described in the Service Description Documentation for HEC Advanced Edition and Tailored Option Services, and in the CAS Service Description Guide for the Private Cloud Edition Services.

2. CAS PACKAGES

The Usage Metric for the CAS Packages is a Package. The scope and services included in a Package for each of the CAS Packages are set forth below.

CAS Package	Scope for one Package
SAP Cloud Application Services for application operations	Up to 24 Tickets/year (A Ticket is the electronic documentation of any support request addressed by Customer to SAP. Each Ticket is identified by a number at the point of time it is created. The Ticket number will be the single reference to the Customer's request.)
SAP Cloud Application Services for release version upgrades	1 system landscape
SAP Cloud Application Services for application monitoring	Up to 40 service elements
SAP Cloud Application Services for regression testing	200 transactions/units of Fiori 1 regression test cycle/year
SAP Cloud Application Services for cloud integration testing	Up to 10 integration flows prior to every update by SAP to SAP Cloud
SAP Cloud Application Services for data volume optimization	1 productive S/4HANA system
SAP Cloud Application Services for application security updates	1 productive system
SAP Cloud Application Services for SAP BTP core operations	1 BTP Global Account and 3 Subaccounts

CAS Package	Scope for one Package
SAP Cloud Application Services for core performance management	1 productive S/4HANA or ERP system
SAP Cloud Application Services for utilities measurement concept management	1 BTP Global Account and 2 Subaccounts
SAP Cloud Application Services for core operations for SAP Cloud ALM	1 SAP Cloud ALM tenant
SAP Cloud Application Services for data quality optimization	1 productive S/4HANA system
SAP Cloud Application Services for application operations for SAP Teamcenter by Siemens	Up to 24 Tickets/year (A Ticket is the electronic documentation of any support request addressed by Customer to SAP. Each Ticket is given a number at the point of time it is created. The Ticket number will be the single reference to the Customer's request.)
SAP Cloud Application Services for SAP Pioneer technical operations	1 system landscape

3. ADDITIONAL TERMS

- 3.1. All CAS services are provided remotely and in English only.
- 3.2. SAP's provision of the Cloud Services is subject to Customer's reasonable cooperation and providing necessary information, authorizations and qualified resources for such activities, and Customer's prompt performance of its responsibilities set forth in the Agreement and the Documentation.
- 3.3. If SAP requires productive access in order to deliver CAS services, Customer agrees to promptly create a temporary administrative user in the relevant client of the SAP System or relevant tenant of the SAP solution. The temporary administrative user will be auditable and identifiable within the SAP environment.



SAP Applications and Technology Platform on-premise Solutions



SAP List of Prices and Conditions

SAP Software and Support

2023/4 version October 2023

Not a valid pricelist.

Convenience

Translation of the German language

SAP List of Prices and Condition Software and Support.

The German original is authoritative.

PART 1 PRICES	4
PART 2 SOFTWARE USE RIGHTS.....	7
PREAMBLE.....	7
LICENSING PRINCIPLES AND RULES OF USE	7
METRICS	15
EXHIBIT 1- LEGACY SBOP SOFTWARE.....	21
EXHIBIT 2 - NAMED USER METRICS AND PACKAGE METRICS	22
EXHIBIT 3 - PACKAGE RESTRICTIONS	47
EXHIBIT 4 - PASS THROUGH TERMS FOR THIRD PARTY DATABASES	96
EXHIBIT 5- PASS THROUGH TERMS FOR DIRECTORIES	157
EXHIBIT 6 – SAP BUSINESS ONE SOFTWARE	196
PART 3 SAP MAINTENANCE AND SUPPORT	201
1.1. Maintenance Phases	202
1.2. SAP Enterprise Support.....	203
1.3. SAP Product Support for Large Enterprises	216
1.4. SAP Standard Support	226
1.5. SAP Standard Support for SAP Business One	233

PART 1 PRICES

Part 1 of this document contains provisions on prices and part 2 and 3 contain the conditions for the license and support of standard software.

This present document incorporates in its Part 1 "Prices" by reference the following documents, as detailed below.

The SAP List of Prices and Conditions Software and Support (for direct sales) for SAP Applications and Technology Platform on-premise Solutions consists of the following documents

This present document incorporating:

SAP Price list (Part for SAP Applications and Technology Platform on-premise Solutions) (SAP Confidential).

This present document together with the document named above form the SAP List of Prices and Conditions SAP Software and Support for SAP Applications and Technology Platform on premise Solutions (Direct Sales).

The SAP List of Prices and Conditions Software and Support (for direct sales) for SAP Business One consists of the following documents:

This present document incorporating:

SAP Price List (Part for SAP Business One) (SAP Confidential).

This present document together with the document named above form the SAP List of Prices and Conditions SAP Software and Support for SAP Business One.

1. PRICE CALCULATION

1.1 The contract price is defined as the total list price minus standard volume discounts. It is calculated as follows:

Determine the SAP Application Value (SAV) by adding list prices of SAV-relevant price list items

The SAP Application Value is determined separately for discountable and non-discountable price list items. It excludes all price list items that do not contribute to the SAP Application Value (non-SAV items).

If a database is licensed, calculate the database price by applying the appropriate percentage to the SAP Application Value

The database price is determined separately for discountable and non-discountable price list items.

For SAP Business One the following will apply instead: The respective Database Price will be calculated based on the sum per User/per Core and is not discountable.

Determine list price for items that do not contribute to the SAP Application Value (sub-total non-SAV items)

The list price subtotal for items that do not contribute to the SAP Application Value is determined separately for discountable and non-discountable price list items.

Determine total list price

Add discountable and non-discountable part of the SAP Application Value, discountable and non-discountable portion of the database price, as well as discountable and non-discountable subtotal of price list items that do not contribute to the SAP Application Value.

Determine standard volume discount percentage based on total list price

Determine relevant discount percentage from volume schedule

Determine contract price

Apply standard volume discount to discountable part of total list price and add the result to the non-discountable part of total list price.

For SAP Business, the following will apply:

The Volume discount (which will be calculated according to the SAP Price List for SAP Business One) cannot be applied in conjunction with any other discount offered by SAP. If the customer is receiving a corporate discount, the volume discount is replaced by the corporate discount.

The corporate discount is defined as the discount customers may receive according to the conditions of their existing contract.

1.2 Further Special Conditions for SAP Business One

1.2.1 Minimum license requirement

The contract price (in the following of this chapter also named “total contract value”) of an initial purchase needs to exceed EUR 100,000, with the contract price defined as list price minus volume or corporate discounts, calculated according to the SAP price list for SAP Business One, current from time.

The total contract value of subsequent purchases needs to exceed EUR 15,000.

1.2.2 Support for SAP Business One

Customers using SAP Business One are only eligible to order the special SAP Standard Support for SAP Business One, according the conditions of the SAP Price list Business One.

1.3 Software Rental

The monthly fee for rental is expressed as a percentage of the corresponding remuneration for the corresponding license purchase contract. It depends on the minimum period of validity.

Rental fees paid cannot be set off against the price in a subsequent software purchase.

Rental Period	Monthly Rental Fee Enterprise Support	Monthly Rental Fee Standard Support	Monthly Rental Fee Product Support for Large Enterprises
12 months (initially committed rental period)	6.5 %	6.0%	5,9%
36 months (initially committed rental period)	5%	4.5%	4,4%

IMPORTANT NOTE: Availability of rental contracts is restricted in the following countries.

Chile, China, Croatia, Hong Kong, Hungary, Ireland, Singapore, Switzerland, Taiwan

For a detailed description of the scope of SAP Standard Support, SAP Enterprise Support, and SAP Product Support for Large Enterprises and their prerequisites, see Part 3.

PART 2 SOFTWARE USE RIGHTS

This part of the document contains the conditions for the licensing of the software, that are incorporated into the contractual agreements.

PREAMBLE

The terms on SAP Software use Rights set forth in this use document (**“use Terms”**) apply to any Named Users and Packages licensed pursuant to the Software Agreement referencing use this present document use. . Each capitalized term referenced in these use Terms shall have the meaning given it in the Software Agreement or in the document “Standard Software License and Support, General Terms and Conditions SAP Deutschland SE & Co KG” (GTC). Terms or restrictions applicable to a component also apply when that component is included/embedded with another Package.

LICENSING PRINCIPLES AND RULES OF USE

1. DEFINITIONS

1.1 each SAP Software (in the context of this document called **“Software”** or **“SAP Software”**) and/or Third Party Software (both as defined in the GTC) product licensed pursuant to the Software Agreement referencing use this present document may be referred to as a **“Software Package”** (when referencing only Software) or **“Third Party Software Package”** (when referencing only Third Party Software) or **“Package”** (when referencing both Software and Third Party Software);

1.2 **“Licensed level”** means:

when referenced in the context of a Named User, the quantity of Metric for which each individual Named User category and type is licensed -and-

when referenced in the context of a Package, the quantity of Metric for which each individual Package is licensed; and

1.3 **“Metric”** means:

when referenced in the context of a Named User, the individual Named User category and type (and corresponding Named User definition setting for such Named User's Use rights) as further described in Section **Error! Reference source not found.**; and

when referenced in the context of a Package, the individual business metric corresponding with each Package as further described in Section **Error! Reference source not found.**

1.4 **“Named User”** means any individual authorized by Customer to Use a Package, including without limitation employees of its Affiliates or its Business Partners.

1.5 **“Named User License”** means the Metric and Licensed Level applicable to each Named User.

- 1.6 **“Order Form”** shall mean the order document for the Named Users and Packages licensed under the Agreement, including order documents placed directly with SAP or through an authorized reseller, distributor, OEM or other authorized partner of SAP.
- 1.7 **“Package License”** means the Metric and Licensed Level applicable to each Package; a Package License for any Package referenced in Exhibit 3 shall include, and be subject to, the specific terms and Use rules applicable to such Package.
- 1.8 **“Use”** means to activate the processing capabilities of the Software, load, execute, access, employ the Software, or display information resulting from such capabilities. Use may occur by way of an interface delivered with or as a part of the Software, a Customer or third-party interface, or another intermediary system.

2. STANDARD LICENSE PRINCIPLES AND RULES OF USE

2.1. Named User License & Package License Required

Except as otherwise specifically provided in 3.2, 5.3 and 7 the use of any Package requires both a Named User License and a Package License. Customer needs to hold a Named User License for any individual accessing any Package, and such Named User License shall define the extent to which such individual may use the Package, such use of the Package in all cases being further subject to the Package License. Named User Licenses cannot be assigned to more than 1 individual.

2.2 Named User Exception

2.2.1 Where data is exported from any licensed Software (excluding all SAP Business Warehouse Software and/or third party databases) to Non-SAP Application(s) pursuant to a predefined query that

- a) was created by an individual licensed to Use the Software from which the data is being exported and
- b) runs automatically on a scheduled basis,

the use of such data by Non-SAP Application(s) or their users does not require a license hereunder provided such use does not result in any updates to or trigger any processing capabilities of any licensed Software. “Non-SAP Application(s)” means any technologies, other than licensed Software, for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, or any of their Affiliates or distributors.

2.3 Named User Exception

Individuals licensed as SAP Business One users who Use the SAP Business One Software which interfaces to a separate Customer SAP ERP installation are not required to be licensed as SAP Named Users under Customer’s Software Contract with SAP or an authorized SAP affiliate for such SAP ERP System.

2.4 Additional Named User Rules for SBOP and Legacy SBOP Software Not Licensed For Standalone Use

2.4.1 **“SBOP”** and **“Legacy SBOP”** shall mean any Software identified as SBOP or Legacy SBOP, respectively in these Use Terms. Unless otherwise specifically set forth herein, all references to “SBOP” shall be deemed to include any licensed Software identified under any Software Agreement as “Legacy SBOP”; however, references to “Legacy SBOP” shall only mean any licensed Software specifically identified as “Legacy SBOP” on Exhibit

Any licensed Legacy SBOP may only be used by individuals licensed as a Developer User, Business Expert User, Business Analytics Professional User, BI Limited User, or Business Information User, and such use shall be in accordance with each individual's respective Named User type (and subject to the applicable Licensed Level(s) for such Software).

2.5 Runtime Software

2.5.1 Licensed Package(s) may utilize limited functionality of other Packages, for which Customer does not hold a license ("Runtime Software"). Until Customer has expressly licensed the Runtime Software, Customer's use of such Runtime Software is limited to access by and through the licensed Package(s), and any permitted Modifications thereto for the sole purpose of enabling performance of the licensed Package(s) and integrating data from licensed SAP Software as specified in the Documentation. In the event Customers Uses a Package to build or operate a custom developed or third party application, additional licenses may be required.

2.6 Country or Language Versions and Availability Restrictions

2.6.1 There are no applicable country/language specific versions licensed by Customer from SAP unless otherwise specifically stated in a Software Agreement. Packages may be subject to availability restrictions. Information about such restrictions including country availability, supported languages, supported operating systems and databases may be provided through the Product Availability Matrix (PAM) published at <https://support.sap.com/pam> or otherwise included in the Documentation.

2.7 Internet Connectivity

2.7.1 Some Packages require connection to the internet in order to properly function. Customer is responsible for obtaining internet connectivity and SAP will not be responsible for loss of functionality due to failure of internet connectivity.

2.8 Third Party Web Services

2.8.1 Some Packages enable connection to Third Party Web Services. For the purposes of these Use Terms, "**Third Party Web Services**" means

- a) any and all web services made available by third parties (other than SAP, SAP SE or any of their affiliated companies) that are accessible through or enabled by the Software or SAP Materials, and
- b) any and all application programming interfaces, web service definition files, and other materials made available by or on behalf of such third party web service providers to facilitate the access to and use of such web services.

Examples of Third Party Web Services include: Facebook, Evernote, Twitter, Google Maps and other such services

2.8.2 The following terms apply to all Third Party Web Services

- a) Customer is solely responsible for obtaining all account and authentication credentials required to access or use the Third Party Web Service's API or the Third Party Web Service.

- b) Use of the Third Party Web Service's API is subject to Customer's acceptance of the Third Party Web Service's terms and conditions, which must be obtained from the Third Party Web Service provider. SAP is not a party to the agreement between the Customer and the Third Party Web Service provider.
- c) The Third Party Web Service's API and the Third Party Web Service are excluded from SAP support obligations.
- d) The Third Party Web Service's API and the Third Party Web Service are excluded from all SAP representation, warranties, indemnifications.
- e) Customer expressly agrees to indemnify SAP, its officers, employees, agents and subcontractors from and against all claims, liabilities, losses, damages and costs (including reasonable attorney fees) suffered by SAP arising from the use of any Third Party Web Services by Customer or its Affiliates.
- f) SAP may throttle, suspend or terminate the Customer's access to the Third Party Web Service's API through the Product if Customer violates or causes SAP to violate Third Party Web Service provider's terms of service or other applicable Third Party Web Service provider agreements or policies (including, without limitation, exceeding any data or usage limits).

2.9 **Operating Power Stations and Means of Mass Transportation**

Software may not be used for process control in power stations or for control or monitoring of means of mass transportation.

2.10 **Add-Ons and Modifications**

"Add-on" means any development that adds new and independent functionality, but is not a Modification (defined below), and that uses APIs.

"API" means application programming interfaces or other code that allow other software products to communicate with or call on the Software or Cloud Service (for example, SAP Enterprise Services, BAPIs, Idocs, RFCs and ABAP calls or other user exits).

"Modification" means any development that (i) changes the delivered source code or metadata; or (ii) uses APIs but does not add new and independent functionality and only customizes, enhances, or changes existing functionality of the Software or Cloud Service. For clarification: customizing and parametrization of Software or Cloud Service is not considered a Modification but allowed within the contractually agreed Use.

"contractual" means provided to Customer in performance of a Software Agreement.

Customer may Use any API or tools contained in the contractual SAP Software or otherwise obtained from SAP in order to develop or use Modifications or Add-Ons, subject to Customer's fulfilling its obligations set forth in this section 1.2.8 in relation to Modifications and/or Add-Ons. For clarification: Any Modifications or Add-Ons developed by SAP or any of the SAP Affiliates on behalf of End User or as a product are exclusively subject to the provisions of the respective agreement and not subject to the provisions of this section 1.2.8 below.

- a) Except as otherwise agreed and except as expressly required by law or expressly permitted in this section 1.2.8 Customer shall not create, use, or make available to any third party any Modification of or Add-On to the contractual SAP Software.

Modifications may only be made in relation to contractual SAP Software delivered by SAP in source code.

- b) End User is responsible for any deficiencies in the running, security or performance of the contractual SAP Software and other programs, and in communications between the contractual SAP Software and other programs ("Deficiencies") caused by Modifications or Add-Ons to the contractual SAP Software. SAP points out that Add-Ons to and even minor Modification of the contractual SAP Software may lead to unpredictable and significant Deficiencies. Such Deficiencies may also arise because of an Add-On or Modification not being compatible with later versions of contractual Software. SAP is entitled to change the SAP Software, APIs, or both without care for the compatibility of any Modification or Add-On that End User uses with any later version of the SAP Software.
- c) In addition, SAP is neither responsible for Deficiencies caused by Modifications or Add-Ons to the contractual SAP Software nor obliged to provide remedies under warranty or other obligations in relation to Deficiencies caused by Modifications or Add-Ons to the contractual Software. SAP is not obliged to provide any contractually agreed SAP Support services if and to the extent, the provision of such SAP Support is aggravated because of Modifications or Add-Ons to the contractual SAP Software. SAP recommends that End User registers via SAP's registration procedure at <http://support.sap.com/sscr> such Modifications or Add-Ons in order to help SAP to identify the reason for possible support issues.
- d) These Modifications and Add-Ons must be used only together with the contractual Software and only in accordance with the license to use the Software granted in the Software Contract. SAP retains the right to develop its own Modifications or Add-ons to the SAP Software but SAP is not entitled to copy Customer's software code. Modifications or Add-Ons must not (and subject to other limitations set forth herein):
 - i) Modifications or Add-Ons, or
 - ii) other functionality of the SAP Software accessed by such Modifications or Add-Ons.

2.11 Import / Export

Any software (including patches, fixes, updates, upgrades and new versions of software), documentation, services and/or materials (altogether referred to as "Items") delivered by SAP under this Agreement are subject to the export and import control laws of various countries, including, without limitation, the laws of the United States, the EU, Ireland and Germany.

Customer acknowledges that the delivery of any Items by SAP may be subject to the prior obtaining of export and/or import authorizations from the competent authorities and that this process may considerably delay or prevent the delivery and/or impact SAP's ability to provide maintenance and support.

Customer shall support SAP in obtaining any required authorization by providing information and/or declarations, e.g. End Use Certificates, as may be requested by SAP.

Customer shall be responsible for complying with all applicable governmental regulations of the country where Customer is registered, and any foreign countries with respect to the use of the Items by Customer and/or its Affiliates.

At Customer's request, SAP shall provide Customer

- a) with the export control classification numbers of any Items delivered under this Agreement, in accordance with the EU Dual Use Regulation 428/2009/EC, as amended by Regulation 388/2012/EU; and
- b) the US Export Administration Regulation; and
- c) technical information as may required by Customer for the purpose of export and import licensing procedures in other countries; provided that SAP may refuse the provisioning of such information:

where it is not readily available to SAP; and or

where SAP believes, in its sole discretion, that disclosure of such information may put SAP's or any of SAP's licensors' intellectual property and/or trade secrets at risk.

Customer agrees that it will not submit the Items to any government agency for licensing consideration or other regulatory approval without the prior written consent of SAP, and will not export the Items to countries, persons or entities prohibited by the laws of Germany, the EU, the US and other applicable export laws, trade sanctions and embargoes.

3. EXCEPTIONAL LICENSE PRINCIPLES AND RULES OF USE FOR SPECIAL LICENSE SCENARIOS

3.1. This Section 3 applies to the following special license scenarios ("**Special License Scenarios**"), and prevails over any contradicting terms in Section 2.

3.2 Standalone Use

3.2.1 Software is licensed for Standalone use if identified as such in the applicable Software Agreement. "**Standalone Use**" means the Software (and any corresponding Third Party Software) identified as Standalone Use that may only be Used with any other Software or Third Party Software with the same Standalone Use designation in the applicable Software Agreement from SAP, or an authorized reseller, distributor or other authorized partner of SAP or non-SAP branded software licensed from third parties.

3.2.2 For avoidance of doubt, all Software licensed under a Restricted License or by an SAP acquired entity prior to its legal integration with a successive SAP entity is deemed licensed for Standalone Use only.

3.3 Standalone Use of Legacy SBOP Software

3.3.1 Use of Legacy SBOP licensed for Standalone Use does require a Named User License in addition to the Package License for the actual Legacy SBOP, SBOP Software licensed from any resellers, distributors, OEMs or other third parties may be Used solely for Standalone Use, unless otherwise agreed by SAP in writing in the applicable Software Contract.

The only Named User types authorized to use Legacy SBOP licensed for Standalone Use are SAP Application Standalone Business Analytics Professional User, SAP Application Standalone BI Limited User, or SAP Application BI Viewer User, and such use shall be in accordance with each individual's respective Named User type (and subject to the applicable Licensed Level(s) for such Software).

3.4 **Restricted License**

- 3.4.1 If Customer acquired the Software bundled or otherwise provided in combination with or for use with a third party product ("**OEM Application**") from a third party, Customer has acquired a Restricted License. Customer may use each licensed copy of the Software only in conjunction with the OEM Application with which it was provided. Accessing data that is not specifically created or necessary to enable the functionalities of the OEM Application is in violation of this license. If the OEM Application requires the use of a data mart or data warehouse, the OEM Application may be used with the data mart or data warehouse only to access data created or necessary to enable the functionalities of the OEM Application. Restricted Licenses may not be combined with unrestricted licenses.

3.5 **Subscription License**

Unless otherwise agreed in writing , if the Software is licensed on a subscription basis, Customer is granted a non-exclusive and non-transferable license to use the Software for a month term, renewable annually at Licensor's then current rate or such other term as mutually agreed in writing by the parties.

3.6 **Development License**

- 3.6.1 Unless otherwise agreed in writing , if Customer receives a development license, Customer may use the number and type of licenses acquired only to develop or test such developments. A development license cannot be used in or transferred to a production environment.

3.7 **Update License**

Unless otherwise agreed in writing , if Customer receives the Software as an update to a previously licensed product, Customer's license to use the Software is limited to the aggregate number of licenses Customer has acquired for the previous product. If Customer chooses to use the Software and the previous product simultaneously, the aggregate number of licenses used to access the Software and the previous product may not exceed the aggregate number of licenses Customer acquired for the previous product.

3.8 **N.A.**

3.9 **N.A.**

3.10 **SAP Business One Software**

- 3.10.1 Additional terms and conditions related to the licensing of SAP Business One Software, including applicable Metrics and Package restrictions, are stated in Exhibit 6. Use of third party database products with SAP Business One may be subject to additional terms and conditions required by SAP's suppliers. as set forth in Exhibit 4(Pass-Through Terms for Third Party Databases).

3.11. Packages with a Maximum List Price

- 3.11.1. Some Packages have a maximum list price, which is reached once the Customer has licensed the maximum amount of sales units for that Package. Upon licensing the maximum amount of units, the Customer is granted by SAP a non-transferable right to use more than the licensed amount of units without further payment requirement.

4. SYSTEM AUDIT AND MEASUREMENT / ADDITIONAL LICENSES

“**contractual**” in Section 4.1 means provided to Customer in performance of a Software Agreement.

- 4.1 Customer must give SAP prior written notice of any use of the contractual SAP Software outside the contractually permitted use. It requires its own contract with SAP with regard to the additional license required (“Additional License”). The Additional License is subject to the provisions of the LPC in force at the time of the execution of the Additional License.

SAP is permitted to audit the usage of the licensed SAP Software (in general once a year) by system measurement in accordance with SAP standard procedures (described under 4.3). Customer will conduct the measurement itself using the unaltered tools and self-declaration forms provided by SAP for that purpose. The self-declaration form is to be completed independently of technical measurement function modules. The result of the measurement is to be transmitted online via the respective interfaces from Customer’s system(s) to SAP, or in a machine-readable format. Applying the multi-client concept for user classification shall only be permitted on an exceptional basis and is subject to prior approval by SAP in written form.

SAP is permitted to conduct the audit remotely if Customer refuses to conduct the measurement itself, or if it does not produce meaningful results and there are reasonable grounds to suspect a breach or infringement by Customer. In exceptional cases, SAP is permitted to conduct the audit at Customer’s installations if Customer refuses to allow the remote audit or if it does not produce meaningful results and there are reasonable grounds to suspect a breach or infringement by Customer. Customer must cooperate reasonably with SAP in the conduct of audits remotely and at Customer’s installation and must, among other things, afford SAP insight into its systems to the required extent. SAP will give Customer reasonable prior notice of an audit to be conducted at Customer’s installation. SAP will have reasonable regard to the interests of Customer’s confidentiality and to the protection of Customer’s business operations from compromise. If an audit reveals any breach by Customer, Customer must bear the reasonable expense to SAP of conducting the audit.

- 4.2 If it becomes apparent in an audit or otherwise that Customer has used the contractual SAP Software outside the Software Agreement, SAP and Customer will execute an Additional License. In those circumstances, SAP reserves the right not to give any agreed discount except the quantity discount in the LPC. Section 4.1 sentences 2 and 3, apply. SAP reserves the right to claim damages and to claim late payment interest.
- 4.3 The then current Documentation for the Standard procedures for verification is provided by SAP under:

<https://support.sap.com/keys-systems-installations/measurement/information/Documentation.html>

METRICS

5. NAMED USER PRINCIPLES AND METRICS

5.1. Named User Principles

5.1.1 Except as otherwise specifically provided, only appropriately licensed Named Users may use a Package, and such use shall be subject to the Named User License, the "Package License", and the Software Agreement, unless otherwise set forth in Exhibit 3. The transfer of a Named User License from 1 individual to another may only be done if the individual to which the Named User License is assigned:

- a) is on vacation;
- b) is absent due to sickness;
- c) has their employment terminated,
- d) is moved into a new job function which no longer requires them to use any Packages or
- e) is subject to a condition that is otherwise agreed by SAP.

5.1.2 Important Note for Customer's with contracts from June 2014 and earlier. Such Customer's may have licensed 1 of the following previous user types: mySAP.com Users, SAP Business Suite Users, SAP ERP Users, Individual SAP solutions Users. Such Customers do not have the right to license SAP Named Users.

5.1.3 Customers that have already licensed one or several of the above user types and/or SAP Application Users are permitted to license additional quantities of the same user types, SAP BA&T Users. The preceding regulations do not apply for Limited Professional Users.

5.2 Named User Metric – Categories, Types and Corresponding Definitions

5.2.1 Named User Metrics, including categories, types and corresponding definitions, are stated in Exhibit 2.

Named User Exceptions

5.3.1 Suppliers:

When accessing the following SAP Software Packages, suppliers do not require Named User licenses:

- a) SAP Advanced Trade Management Analytics,
- b) SAP Advanced Trade Management Analytics, version for SAP BW/4HANA,
- c) SAP Customer Business Planning,
- d) SAP Customer Business Planning, version for SAP BW/4HANA,
- e) SAP Extended Sourcing,
- f) SAP Extended Procurement,
- g) SAP Supplier Self Services,
- h) SAP Supplier Lifecycle Management,
- i) SAP SRM Rapid Deployment Edition,

- j) SAP Supplier Collaboration,
- k) SAP Customer Collaboration,
- l) SAP Outsourced Manufacturing,
- m) SAP Trade Promotion Planning and Management,
- n) SAP Trade Promotion Planning and Management, version for SAP BW/4HANA,
- o) SAP Subcontractor Management for Consumer Products,
- p) SAP Procurement for Public Sector,
- q) SAP Supplier Relationship Management & Logistics for Health Care.

5.3.2 **Business Partners:** When accessing the following SAP Software Packages, Business Partners do not require Named User Licenses

- a) SAP Contract Lifecycle Management

5.3.3 **Employees:** When accessing the following SAP Software Packages, Employees do not require Named User Licenses:

- a) SAP IT Service Desk Operation.

5.3.4 **Appraisers:** When accessing the following SAP Software Package(s), appraisers do not require Named User Licenses:

- a) SAP Supplier Lifecycle Management

5.3.5 **Consumers/orConstituents:** Individuals who are not employees of Customer or Customer's Business Partners and who purchase or receive goods and/or services from Customer do not require Named User licenses unless otherwise regulated.

6. PACKAGE PRINCIPLES AND METRICS

6.1 Package Principles

6.1.1 Each Package is licensed based upon the Metric applicable to it, and in no case may use of a Package exceed the License Level for which the Package is licensed.

6.2 Package Metrics – Types and Corresponding Definitions

6.2.1 Package Metrics, including types and corresponding definitions, are stated in Exhibit 2.

7. PACKAGE SPECIFIC TERMS / USE RULES

7.1 Package Licenses

7.1.1 A Package License for any Package referenced in Exhibit 3 shall include, and be subject to, the specific terms and Use rules applicable to such Package as outlined in Exhibit 3.

7.2 Applicability

7.2.1 This Section 7.2 applies to any **Third Party Software Package** (including, without limitation, databases) as well as for Third Party Software as part of a Package, both licensed pursuant to a Software Agreement respectively and control over any conflicting terms set forth in the GTC, subject to the following exception: The provisions herein on SAP's liability for Third Party Software are not applicable. The relevant provisions of the GTC apply exclusively. All Third Party Software Packages are restricted for use solely in conjunction with the particular Package intended by SAP to be used therewith or with

which SAP provides the Third Party Software Package, and Third Party Software Packages may not be used with any other Package, or on an individual basis. Unless otherwise specifically provided in Section 7 of the Use Terms, any use of the Third Party Software Packages (whether productive or non-productive) shall count against the Licensed Level for any applicable Metric.

7.3 Exceptions from GTC for Third Party Software Packages

7.3.1 Section Modification / Add-on of the GTC shall not apply to any Third Party Software Packages unless otherwise set forth. Customer shall not make Modifications or Add-ons to Third Party Software Packages, or otherwise modify Third Party Software Packages unless expressly authorized by SAP in writing.

7.4 Limitation of Liability

7.4.1 ANYTHING TO THE CONTRARY HEREIN NOTWITHSTANDING, WITH RESPECT TO ANY AND ALL CLAIMS AND DAMAGES OF ANY KIND OR NATURE IN ANY WAY ARISING FROM OR RELATED TO THE THIRD PARTY SOFTWARE LICENSED PURSUANT TO AN SOFTWARE AGREEMENT REFERENCING THESE USE TERMS, UNDER NO CIRCUMSTANCES SHALL SAP OR ITS LICENSORS BE LIABLE TO EACH OTHER OR ANY OTHER PERSON OR ENTITY FOR AN AMOUNT OF DAMAGES IN EXCESS OF THE PAID LICENSE FEES FOR THE APPLICABLE THIRD PARTY SOFTWARE DIRECTLY CAUSING THE DAMAGES OR BE LIABLE IN ANY AMOUNT FOR SPECIAL, INCIDENTAL, CONSEQUENTIAL, OR INDIRECT DAMAGES, LOSS OF GOOD WILL OR BUSINESS PROFITS, WORK STOPPAGE, DATA LOSS, COMPUTER FAILURE OR MALFUNCTION, OR EXEMPLARY OR PUNITIVE DAMAGES.

8. DATABASES

8.1 Runtime Databases

8.1.1 If a **runtime database** is licensed and the Software Agreement does not exclude any Packages licensed thereunder from such runtime database license Customer may only use the runtime database licensed pursuant to a Software Agreement referencing Use Terms in conjunction with its use of the Packages licensed pursuant to such Software Agreement. In the event Customer Uses the licensed runtime database other than as specified in this paragraph, a full use license, including programming tools, must be licensed directly from an authorized vendor.

8.1.2 If a runtime database is licensed and the Software Agreement excludes certain Software Packages licensed thereunder from such runtime database license ("**Excluded Components**"), Customer may only Use the runtime database licensed pursuant an Software Agreement referencing use this present document in conjunction with its use of the Packages licensed pursuant to such Software Agreement that are not Excluded Components. In the event Customer Uses the licensed runtime database other than as specified in this paragraph, a full use license, including programming tools, must be licensed directly from an authorized vendor.

8.1.2.1 The Excluded Components may require a database product.

8.1.2.2 Neither the Software Agreement nor the Software Agreement contain a license to use any database product, even where integrated or pre-installed as part of the Excluded Components;

- 8.1.2.3 Each database product is subject to its respective vendor license agreement;
- 8.1.2.4 SAP makes no representations or warranties as to the terms of any license or the operation of any database product obtained directly from a third party vendor; and Customer
- 8.1.2.5 Customer is responsible for support and maintenance of any database product obtained from a third party vendor, and SAP has no responsibility in this regard.

8.1.3 If a runtime database is not licensed:

8.1.3.1 The Packages licensed pursuant to an Order Form referencing these Use Terms may require a database product. Neither the Software Agreement nor the Software Agreement contain a license to use any database product, even where integrated or pre-installed as part of such Software and/or third party software;

8.1.3.3 Each database product is subject to its respective vendor license agreement;

8.1.3.4 SAP makes no representations or warranties as to the terms of any license or the operation of any database product obtained directly from a third party vendor; and Customer

8.1.3.5 Customer is responsible for support and maintenance of any database product obtained from a third party vendor, and SAP has no responsibility in this regard.

9. DATABASE DEPLOYMENT AND COMMUNICATION RIGHTS AND RESTRICTIONS (SEGREGATED DATABASE LANDSCAPE):

9.1 The following shall apply where Customer:

- a) licenses third party runtime database a “**TPD**” for Use with some, but not all, SAP Software Packages(s) or Named User(s) that are SAV relevant for such TPD; or
- b) licenses a TPD and any Package(s) having S/4 HANA in the Package name or otherwise identified in the Agreement as an S/4 HANA Package.

9.2 Notwithstanding anything to the contrary in the Agreement, where some of the Software and third party software (excluding “TPD” licensed under the Agreement (“SW”) is licensed for Use with a TPD also licensed under the Agreement, and some SW is not licensed for Use with such TPD, the following deployment and communication rights and restrictions shall apply:

9.2.1 Deployment Rights & Restrictions

- a) As referenced herein, “**Technical Installation**” means a deployment of SW running on a unique database instance. Subject to any applicable SAP database license fees and (terms for S/4HANA Packages) in these Use Rights, SW licensed for Use with such TPD can be deployed in any of the following “**Installation Types**”:
 - i. “**Type 1 Installation**” means any Technical Installation upon which all SW deployed is licensed for Use with, and is running on, such TPD;
 - ii. “**Type 2 Installation**” means any Technical Installation upon which all SW deployed is licensed for Use with, but is not running on, such TPD; and,
 - iii. “**Type 3 Installation**” means any Technical Installation upon which none of the SW, or only a portion of the SW, deployed is licensed for Use with such TPD, and therefore a TPD is not deployed or running.

- b) SW not licensed for Use with a TPD can only be deployed in Type 3 Installations and is subject to any applicable SAP database license fees. The Technical Installation(s) for each Installation Type must be separate from the Technical Installation(s) used for other Installation Types.

9.2.2 Installation Communication Rights and Restrictions

- a) Between Type 1 Installation and Type 2 Installation: Bi-directional communication (including data transfers) shall be permitted between SW or TPD in Type 1 Installations and SW in Type 2 Installations.
- b) Between Type 1 Installation and Type 3 Installation:
 - (iv) Database Level Communication: Communication (including data transfers) at the database level shall be limited to a one-time productive transfer of data **“Initial Data Load”** directly from TPD in Type 1 Installation to SAP HANA Software in Type 3 Installation. For purposes of clarification, unlimited transfers of data directly from TPD in Type 1 Installation to SAP HANA Software in a separate, non-productive Type 3 Installation shall be permitted prior to conclusion of the Initial Data Load.
 - (v) Application Level API Communication: Bi-directional communication (including data transfers) occurring via “Application Level APIs” is permitted. **“Application Level APIs”** mean those application programming interfaces delivered as part of the licensed SW, excluding all application programming interfaces/technologies when such interfaces/technologies are used to communicate with or replicate data at a database level.
- c) Between Type 2 Installation and Type 3 Installation:
 - (vi) SAP HANA Level Communication: Communication (including data transfers) at the SAP HANA Software level shall be limited to one-way transfers of data directly from SW in Type 3 Installations to SAP HANA Software in Type 2 Installations.
 - (vii) Application Level API Communication: Bi-directional communication (including data transfers) occurring via Application Level APIs is permitted.
- d) Other than those database level communication (including data transfer) rights permitted above, all communication (including data transfers) between any technology and any TPD must occur exclusively through Application Level APIs and not directly with such TPD.

10. STANDALONE USE FOR THIRD PARTY DATABASES

- 10.1 If a Software Agreement referencing these Use Terms includes a Standalone Use restriction:
 - 10.1.1 The Packages licensed pursuant to an Software Agreement referencing use this present document may require a database product.
 - 10.1.2 Neither the Software Agreement nor the Software Agreement contain a license to use any database product, even where integrated or pre-installed as part of such Software and/or third party software;
 - 10.1.3 Each database product is subject to its respective vendor license agreement;
 - 10.1.4 SAP makes no representations or warranties as to the terms of any license or the operation of any database product obtained directly from a third party vendorCustomer

10.1.5 Customer is responsible for support and maintenance of any database product obtained from a third party vendor, and SAP has no responsibility in this regard.

11. PASS-THROUGH TERMS

11.1 Use of third party database products and directories may be subject to additional terms and conditions required by SAP's suppliers. as set forth in the "Supplementary Products" section of Exhibit 3, in Exhibit 4, "Pass-Through Terms for Third Party Databases" and in Exhibit 5 "Pass-Through Terms for Directories".

12. OPEN SOURCE SOFTWARE

Applicable specific conditions related to certain open source products made available by SAP are part of the applicable product documentation and apply to Customer's use of any such open source products. The definition of open source can be found under www.opensource.org/.

13. SAP BEST PRACTICES

13.1 Software Packages may be delivered with settings and master data that have been pre-configured to address generalized requirements of a specific industry sector or country ("**SAP Best Practices**").

13.2 It is Customer's responsibility to determine the feasibility of using SAP Best Practices as a basis for its own customizations and parameterizations of the SAP Software in a productive environment.

14. SAP TOOLS

14.1 The Software, particularly the ABAP Workbench and SAP NetWeaver, contains software tools. Customer may only use these tools to program Modifications or to create Add-ons to the SAP software in accordance with the Software Agreement. The tools may not be transferred, either in whole or in part, into modified or created software.

15. FUNCTION MODULES

15.1 The Software may contain function modules, which are stored in a function library. Some of these function modules carry a release indicator for transfer into modified or newly created software. Only these function modules may be transferred by the Customer into Modifications or Add-ons to the software. The function modules may not be modified or decompiled unless otherwise permitted under the Software Agreement.

EXHIBIT 1- LEGACY SBOP SOFTWARE

Legacy SBOP

Business Intelligence
SAP BusinessObjects BI Starter Package
SAP BusinessObjects BI Package (CPU)
SAP BusinessObjects BI Package (user)

EXHIBIT 2 - NAMED USER METRICS AND PACKAGE METRICS

1. SAP NAMED USER – CROSS LINE OF BUSINESS

- 1.1 **SAP Developer User** is a Named User authorized to access the development tools provided with the licensed Software for the purpose of making Modifications and/or Add-ons to the licensed Software. The SAP Developer User also includes the rights granted under the SAP Employee User.
- 1.2 SAP Learning User is a Named User solely authorized to access the specified learning solutions on SAP's price list, provided that the Customer has licensed those learning solutions.
- 1.3 **SAP Professional User** is a Named User authorized to perform operational related and system administration / management roles supported by the licensed Software (excluding SBOP) and also includes the rights granted under the the SAP Project User, SAP Logistics User, SAP Industry Portfolio User, SAP Retail User, SAP Worker User and SAP Business Partner User.
- 1.4 **SAP Project User** is a Named User authorized to perform 1 or more of the following roles supported by the licensed Software (excluding SBOP):
- a) project management, including project-related resource management, project-related creation, change and display of quotation, order and billing in SAP ERP, accounting on individual projects, creation of project-related purchase requests, purchase orders and service entry sheets,
 - b) product and project related reporting,
 - c) managing project-related revenues and expenses
 - d) viewing Accounts Receivable (A/R) General Ledger (G/L) postings,
 - e) controlling access and releasing product data and recipes in collaborative product development scenarios,
 - f) viewing and approving changes through engineering records,
 - g) managing change through engineering records,
 - h) collaborating in cFolders and,
 - i) interfaces to 3rd party authorized authoring tools.

The SAP Project User also includes the rights granted under the SAP Manager Self-Service User.

2. SAP NAMED USER – LINE OF BUSINESS

- 2.1 **SAP Employee User** is a Named User authorized to perform the following roles supported by the licensed Software (excluding SBOP), all solely for such individual's own purpose and not for or on behalf of other individuals:
- a) Use (excluding the right to modify and/or customize) standard and interactive reports related to those SAP Employee User's tasks listed in this definition only, and delivered with the licensed Software,
 - b) travel planning / expense reporting self-services,

- c) perform procurement self-services, and
- d) room reservation self-services.

The SAP Employee User also includes the rights granted under the SAP Learning User and the SAP Employee Self-Service User.

2.2 **SAP Employee Self-Service User** is a Named User authorized to perform the HR self-services role of

- a) Employee time and attendance entry,
- b) employee appraisals,
- c) talent and skill profiles, and
- d) profile match up supported by the licensed Software (excluding SBOP), all solely for such individual's own purpose and not for or on behalf of other individuals.
- e) The SAP ESS User also includes the rights granted under the SAP Employee Self-Service Core User.

2.3 **SAP Employee Self-Service Core User** is a Named User authorized to perform the following HR self-services roles supported by the licensed Software (excluding SBOP), all solely for such individual's own purpose and not for or on behalf of other individuals:

- a) employee records maintenance,
- b) employee directory,
- c) benefits and payment,
- d) leave management and
- e) E-Recruiting.

Further, an SAP Employee Self-Service (ESS) Core User is also authorized to access "Non-SAP Content" that resides on Customer's "SAP Portal", so long as accessing such Non-SAP Content does not require or result in any Use of the licensed Software (beyond access to such Non-SAP Content as it resides on Customer's SAP Portal). As used in this ESS Core User definition,

- i. "Non-SAP Content" means information created through no Use of the licensed Software and
- ii. "SAP Portal" means any portal created by Customer Using SAP Enterprise Portal Software (as provided with the licensed SAP NetWeaver Software) which provides appropriately licensed Named Users a common access point by which to Use licensed SAP Software.

2.4 **SAP Logistics User** is a Named User solely authorized to perform the following tasks for the applicable licensed Software (excluding SBOP):

- a) **Transportation Management:** To look up a freight contract, tracking a certain shipment and similar activities, update master data (rates, lanes, locations), manage transportation request entries, transportation planning, responding to RFP (request for proposal) for viewing and confirmation of events, charge calculation verification and similar activities.
- b) **Warehousing:** To confirm goods receipts and put away, deconsolidate goods upon receipt, pick at pick points, manage stock movements including replenishment, perform

production staging and enter physical inventory counts, packing, or confirming VAS (value added services) and perform scheduling activities for dock door appointments. The SAP Logistics Users may access the Software through radio frequency mobile devices.

- c) **Track and Trace:** To view a serialized and/or any tracked object, such as querying its current or past location or ascertaining product genealogy; to access product traceability solutions, to report goods movement or view traceability reports, To view the status of defined supply chain events, expected or unexpected, e.g. delayed shipment of a sales order, change to a purchase order confirmation and to perform confirmation of or changes to supply chain events, e.g. update a change to a production order date or quantity.
- d) **Direct Store Delivery:** To support capabilities in the Logistics Execution - Direct Store Delivery backend that enables specific Direct Store Delivery functionality for: Master Data; Deal Conditions; Visit Control; Transportation Planning; Vehicle Space Optimization; Loading Confirmation; Output Control; Reload; Stock Visibility; Route Accounting.
- e) **Yard Logistics:** To confirm arrival and departure of transports, plan yard activities, perform pick-up planning, execute movements in the yard, perform washing and other additional activities, docking and undocking at gates, record measurements, manage stock in the yard and perform scheduling activities for dock door appointments.

For Customer employees, the SAP Logistics User also includes the rights granted under the SAP Employee User

2.5 **SAP Worker User** is a Named User working in Customer's production facilities or as a maintenance worker who is solely authorized to perform 1 or more of the following roles supported by the licensed Software (excluding SBOP):

- a) display work instructions, and document activities and operations,
- b) confirm goods receipts, goods issues, stock movements and completion confirmations into maintenance work orders,
- c) enter production order confirmations,
- d) record product or production information, e.g. quality inspection results or plant/process/equipment data,
- e) enter production issues and related service requests,
- f) submit purchase requisitions for tools, spare parts for production equipment, etc.
- g) confirm maintenance notifications,
- h) enter service requests and service entry sheet,
- i) any maintenance activities, reporting or dash-boarding related to the items set forth above.

The SAP Worker User also includes the rights granted under the SAP Employee User.

2.6 **SAP Business Partner User** is a Named User who is an employee of a Business Partner accessing the licensed Software (excluding SBOP) solely to perform operational related tasks within standard business-to-business scenarios.

2.7 **SAP Manager Self-Service User** is a Named User authorized to perform 1 or more of the following manager self-services roles:

- a) request administrative changes using processes and forms contained within Human Capital Management,
- b) create requisition requests and candidate assessments,
- c) perform talent assessments and appraisals,
- d) plan and approve compensation,
- e) view budget overviews,
- f) organize project management tasks,
- g) perform planning tasks,
- h) approve travel requests and expenses, and
- i) perform HR and procurement workflow tasks related to the manager's direct report or business unit/department.

These roles must be directly related to the employees and business unit/department for which the manager is responsible, supported by the licensed Software (excluding SBOP), and related to Human Capital Management only. The SAP Manager Self-Service User also includes the rights granted under the SAP Employee User.

3. SAP NAMED USER – INDUSTRY

- 3.1 SAP Industry Portfolio User is a Named User solely authorized to access the specified industry packages on SAP's price list, provided that Customer has licensed those packages. The SAP Industry Portfolio User is not entitled to access other SAP solutions or solution components. The SAP Industry Portfolio User also includes the rights granted under the SAP Employee User.
- 3.2 Customer must license External business partners in the Insurance industry collaborating with the Customer as SAP Industry Portfolio Users. Those business partners are not entitled to access other SAP solutions or solution components besides the specified industry packages.
- 3.3 **SAP Retail User** is a Named User working in Customer's retail store as an associate who is solely authorized to perform non-managerial retail store / point-of-sale related roles supported by the licensed Software (excluding SBOP) and also includes the rights granted under the SAP Employee User.

4. SAP NAMED USER - PLATFORM USER

- 4.1 **SAP Platform User** is a Named User authorized to Use licensed Software through a separate SAP, Partner, or Customer application that connects to and/or communicates with SAP Software through published SAP application programming interfaces. License requirements for Netweaver products and / or Third Party Software remain unaffected.

License requirements for Netweaver products and/or Third Party Software remain unaffected.

Remaining Metrics

Remaining Metrics – A

5. ASSETS

5.1 **Assets** are master records defined for pieces of equipment that the Customer has identified in their system, as being critical to their operations that will be modelled and monitored by the software. An equipment master record can be configured as a single item (e.g. a crane), or as a “multi-part equipment” (which could have, e.g., 100 drilling machines in inventory), in both cases only 1 equipment master record is counted for pricing.

5.2 **Assets under management** of the insurance company which uses the product is the sum of all relevant financial assets as disclosed in the latest annual statement of the insurance company in a fiscal year.

If Customer does not disclose a comprehensive annual statement, Customer must report the respective information to SAP on an annual basis..

If the product is licensed only for a subdivision of the insurance company the respective license contract requires an explicit definition.

For non-Insurance companies, the revenue of the company is used as the basis for the calculation of the price.

Remaining Metrics – B

6. BARREL OF OIL EQUIVALENT PER DAY (BOEPD)

6.1 **Barrel of Oil Equivalent per Day (BOEPD)** is a unit of measure used in the oil and gas industry that allows aggregating the produced, scheduled or sold quantities of hydrocarbons from both conventional and unconventional sources over the prior 12 month consecutive months.

7. BUDGETS

7.1 Total annual budgets are the total annual public sector budgets of the SAP Customer (i.e. agency, institution, program or department) based on current budget period.

8. BUSINESS PARTNERS

8.1 **Business Partners** are natural persons, a group of persons, juridical persons who have any kind of a business relationship with a company or a public sector agency. The number of Business Partners counted for pricing the solution is limited to the context of the Software being licensed.

8.1.1 For online application submission management: Business partners is defined as: Business partners is defined as:

- For banking customers as the number of customers with financial transactional data within the last 2 years.
- For insurance customers as the number of insureds
- For Public Sector customers as citizens

Remaining Metrics - C

9. CASH FLOWS

9.1 **Cash flows** are the total number of cash flow transactions (payment or receipt) processed by the application per day. (Note that for receipts there would usually be 2 cash flow transactions, i.e. expected receipt and actual receipt). The max. number of cash flows per day is the basis for the measurement.

10. CONTACTS

Contacts are number of unique records of customers, prospects, employees, business partners, constituents and/or commission recipients processed within the Software.

11. CONTRACTS

11.1 **Contracts** are the contracts (used in all functions including procurement, sales, legal, partner management, HR, real estate, and all other functions of the organization.) the company plans to address within the application

11.1.1 For Utility Industry: Contracts are agreements between a utility company and a business partner to provide services to the business partner. Thereby a separate contract has to be set up for each service provided, for which the utility company has a legal contract with its customer (e. g. a utility company provides a business partner with electricity, area lighting, gas, and district heating, thus four separate contracts have to be set-up). All contracts stored in the system with an ending date later or equal to the system date are taken into consideration.

For the sectors below the following division categories of the SAP Utilities system need to be considered:

Energy:

- Electricity
- Gas
- District heating
- Waste Management
- Mutual help
- For all sectors

Water:

- Water
- Waste Water

11.1.2 For prepayment for utilities for SAP S/4 HANA:

Contracts contain all utility contracts which are operated via prepayment.

11.1.3 For Banking Industry:

Contracts are made by a bank with natural persons (retail) or legal persons (commercial). A contract can be e.g. an account, a term deposit, a loan, an OTC-derivative, an FX forward, a money market transaction or a position in exchange-traded

instruments. Accounts and loans managed in external systems, included in a master contract, part of a collateral agreement or set-up for tax calculation are to be taken into account. In the context of refinancing, only managed contracts classified as available assets are to be licensed.

Contracts include:

- loans or mortgage products
- deposits, savings or current accounts (including internal accounts)
- Derivatives, which are financial instruments whose value is based on another security
- Securities transactions, e.g. spot plus forward deals, money marked/foreign exchange transactions, etc.
- Contracts for leasing are operational, finance, capital leases, hire purchases, loans and/or other contracts which are processed in the solution
- Contracts for refinancing can additionally be credit cards, drawings in a syndicate loan or trade receivables.

11.1.4 For SAP S/4HANA for financial products subledger, banking option

Contracts are agreements between a bank with a natural or legal person. Contracts may be included in a master contract or be part of a collateral agreement. Measurement process depends on the financial instrument of the banking business:

- a) Loans or mortgage products, (time) deposits, (internal) accounts such as cash accounts or checking accounts; derivatives traded OTC such as swaps, forward deals, money marked/foreign exchange transactions, securities traded OTC such as bonds, that are received by or transmitted through the application are counted per contract.
- b) Exchange traded financial instruments (shares, bonds, futures, options, warrants) related to such securities, that are received by or transmitted through the application are counted by applying a factor of 0.2 to convert the number of transactions into the number of contracts (5 transactions equate to 1 contract).
- c) Imported subledger documents are counted by applying a factor of 0.2 to convert the number of subledger documents into the number of contracts (5 imported subledger documents equate to 1 contract).

12. CORES

12.1 **Cores** are the number of cores in CPUs that are available for use by the licensed software. The number of Core licenses must be an integer. When counting physical Cores, each Core of a physical CPU that runs at least parts of the licensed software, including those that are temporarily assigned or scheduled to cover peak processing, is considered and counted.

When counting virtual Core's, each virtual Core that runs at least parts of the licensed software, including those that are temporarily assigned or scheduled to cover peak processing, is counted.

If the licensed Software will run in a pure virtual environment, physical Cores will not be counted. For purposes of clarification, "Core" as defined in this metric definition is different

from “core” as referenced in the metric definition for any Software licensed on a CPU basis (if any), and therefore is not applicable in that context.

13. COSTS

13.1 **Asset retirement obligation cost estimations** are the volume of the cost estimations which are handled in the solution. The cost estimation volume is equal to the total of the settlement values (expected costs at the estimated retirement date) of all cost estimation items of the cost estimation plans of all asset retirement obligations, which are handled by SAP Asset Retirement Obligation Management.

If the Customer is using more than 1 accounting principle, the cost estimation volume is calculated separately for every accounting principle. The maximum of these values will be used for pricing. The cost estimation volume is determined based on the volume, which is valid at the fiscal year end date. Only asset retirement obligations, which are active at this date, will be considered.

13.2 **Costs of goods sold** are all expenses directly associated with the production of goods or services the company sells (such as material, labor, overhead, and depreciation) annually. It does not include selling, general and administrative expenses or research & development. If cost of goods sold is unknown, then it shall be equal to 70% of total company revenue.

13.2.1 For Service Parts Planning:

“**Costs of goods sold**” refers to the inventory value for the service parts business.

Remaining Metrics – D

14. DATABASE SIZES

14.1 **Gigabyte database sizes** are database sizes of the productive systems and are calculated individually for each system (i.e., each ERP, BI and CRM system).

14.2 **1.5 Terabyte accumulated database sizes** are the database sizes of all productive SAP systems where the Customer uses SAP Landscape Transformation.

15. DEPLOYMENTS

15.1 Deployments are single installations of the system repository component within the SAP BusinessObjects BI Platform Software (for which Licensee must obtain a license), or the Crystal Reports runtime engine (for which Licensee must obtain a license). When the multi-tenancy feature of the BI Platform is enabled, each individual tenant is considered a separate deployment for licensing purposes.

16. CUSTOMERDEVICES

16.1 **Devices** are all pieces of equipment or hardware for which a unique account is managed by the Software, including but not limited to: a gateway, terminal, point of sale terminal, notebook, handheld, tablet, PDA, smartphone, internet connected television, scale devices, devices installed in a vehicle (on-board units) or other networked devices.

16.1.1.1 For SAP Customer Checkout:

Devices are devices, or mobile devices for mobile point of sales applications or mobile devices for merchandise applications or scale devices for scale applications.

17. DOCUMENTS

17.1 **Documents** are single instances of the output data files generated by the product annually.

17.2 **For SAP solutions by OpenText:**

Documents are single instances of the data file processed by the product annually as counted by the solution. Examples of documents are: invoices, sales orders, order confirmations and remittance advices.

17.3. **For SAP S/4HANA for waste and recycling, environmental services add-on by PROLOGA:**

Documents: that represent a day order for waste disposals, additional disposal documents and yearly municipal billing documents are counted.

17.4. **For SAP S/4HANA Utilities extensions for meter to cash processes by PROLOGA, SAP counts the following as Documents:**

- a) "Points of Delivery" (PoDs) related to gas installations whereas 5.000 PoDs represent 1 Document;
- b) "Meter Reading documents" downloaded to mobile order management whereas 100.000 Meter Reading documents represent 1 Document;
- c) Received "Nominations" whereas 2.500 Nominations represent 1 Document;
- d) "Shippers" (Marketers) assigned in the system whereas 10 Shippers represent 1 Document.

17.5 **Documents for SAP Digital Access and/or Documents for SAP S/4HANA Digital Access** (Documents are defined below and categorized within the following Document Types):

17.5.1 **Sales Document is:**

- a) a line item record that represents the material and/or service being sold or quoted; and/or
- b) a record that represents an individual order/release against a scheduling agreement which indicates the material and/or service being sold.

17.5.2 **Purchase Document is:**

- a) a line item record that represent the material and/or service being ordered or requested; and/or
- b) a record that represents the release against a scheduling agreement which indicates the material and/or service being procured.

17.5.3 **Invoice Document** is a line item record that represents the material and/or service being billed. For SAP S/4HANA Digital Access only, an Invoice Document shall also include a line item record that represents a description of the material being purchased, including the material name, number and quantity of the material.

17.5.4 **Manufacturing Document is:**

- a) a record which represents the production-related details associated with manufacturing a material, including: the type, quantity and color of what to produce, when to produce it, where to produce it and/or other distinguishing characteristics; and/or
- b) a record that represents a confirmation which indicates the status of the processing activities associated with manufacturing orders.

17.5.5 **Material Document** is a line item record that represents a specific material being received, issued or transferred to, from or within a storage location or plant.

17.5.6 **Quality Management Document is:**

- a) a record that represents the details of a nonconformance being reported including the information required for problem solving; and/or
- b) a record that represents results of an inspection.

For S/4HANA Digital Access only, a Quality Management Document shall also include a record that represents the details of a nonconformance.

17.5.7 **Service & Maintenance Document is:**

- a) a record that represents the details of work to be performed including the information needed to plan, execute and bill for a service or maintenance request; and/or
- b) a record that represents the details of a problem being reported including the information required for problem solving; and/or
- c) a record that represents the status of the processing associated with service orders and maintenance orders; and/or
- d) a record that represents a claim by a customer for repair or replacement or compensation for under-performance, pursuant to terms in a warranty/quarantee document.

17.5.8 **Financial Document** is a line item record that represents accounting information in a financial journal.

17.5.9 **Time Management Document is:**

- a) a record that represents an employee's time worked and assigned to business related objects; and/or
- b) a record that represents deviations from an employee's assigned work schedule and/or pay rate.

17.6. **For SAP Document and Reporting Compliance, on-premise edition:**

Documents mean electronic documents created, transmitted or received by or through the product annually. Examples of documents are: customer invoice, vendor invoice, credit memo, purchase order, dispatch advice, transport document, transport registration request, invoice registration request, document summary, tax certificate, tax report.

17.7. For SAP Extended Warehouse Management: SAP S/4HANA Supply Chain for extended warehouse management and SAP S/4HANA for manufacturing logistics Documents are:

- a) For the Shipper scenario, documents are annual delivery line items. A delivery is the documentation for a shipment sent to/from a warehouse location to/from a destination (customer, vendor or other plant/location). The items of the delivery are the unique material codes irrespective of quantity shipped under that delivery.
- b) For the Transit Warehousing scenario, documents are the annual packaging items (Handling Units) moved through the system from origin to destination. The packaging items are counted only once in this process.

Remaining Metrics - E

18. EMPLOYEES

18.1 **Employees** are individuals, working for a company or legal entity that is licensing the functionality of the package as well as individuals working for their Affiliates regardless of employment status (e.g. part time, full time, leave of absence or contract worker).

18.1.1. For payroll processing purposes, retirees are included in the metric count as long as they are processed in the system.

18.1.2. For HCM solutions, employees are included in the metric count as long as they are processed in the system.

18.1.3 For SAP S/4 HANA Defense & Security

Employees are the numbers of full time equivalents (**FTE**) employed in the organization – including military and civilian personnel & reserve. They are calculated as

Weighted Size = Military Personnel x 1.0 + Reserve x 0.5 + Civilian x 0.5

19. ENTITIES

19.1 **Entities** are the total number of legal entities that have to be incorporated into the financial account closing activity.

19.2 For SAP Document and Reporting Compliance for S/4 HANA: Entities mean the number of all company codes in a reporting country for which the solution generates or receives electronic documents or reports within a contract year. Each company code and country code combination is counted as an individual entity.

Remaining Metrics - F

20. FLAT FEE

20.1 Flat fee is the fixed package license fee for the software.

Customer

Remaining Metrics - G

21. GIGABYTES

21.1 **Gigabytes** (GB) refer to the storage capacity equivalent to 10243 bytes.

Remaining Metrics - H

Remaining Metrics - I

22. INSTALLATIONS

22.1 **Installations** are instances of the software installed at a designated device.

23. INSTANCES

23.1 **Instances** are unique connections to a single specified application or technology type.

24. ITEMS

24.1 **Items** represent entities managed in the Software.

24.1.1 For card management and SAP S/4 HANA for card management

Items are the number of active cards stored in the system per calendar year.

24.1.2 For SAP S/4HANA for accounting integration

Items are the number of contracted items, assets and services in a year.

24.1.3 For SAP Event Management on SAP S/4 HANA:

Items are entities tracked in the system on an annual basis.

24.1.4 For Yard Logistics; and SAP Yard Logistics for SAP S/4 HANA

Items are the number of transportation units (trucks, trailer, container, railcars, vessel, etc.) in both inbound or outbound shipments in a year.

Remaining Metrics - J

Remaining Metrics - K

Remaining Metrics - L

Remaining Metrics – M

25. MEMORY

Gigabytes of memory are the total amount of memory that may be used by the Software, as measured in gigabytes.

Remaining Metrics - N

Remaining Metrics - O

26. OBJECTS

Master data objects are all unique records stored or managed in the Software.

- 26.1.1 For SAP Enterprise Master Data Management; and SAP Enterprise Master Data Governance for SAP S/4HANA: Master data objects are all master data objects stored in the SAP NetWeaver Master Data Management system, plus the total number of all master data objects stored in the SAP Master Data Governance system.
- 26.1.2 For SAP Master Data Governance, Consumers: Master data objects are active consumer type customer objects stored in the SAP Master Data Governance system. A consumer is a natural person or a group of persons (e.g. household) that has any kind of business relationship with a company, including, but not limited to, B2C customers, B2C contacts, and citizens. Customer may Use SAP Master Data Governance, Consumers to store additional business partners if the partners represent B2C consumers. Customer may not Use SAP Master Data Governance, Consumers to store additional business partners if the partners represent B2B customers.
- 26.1.3 For SAP Master Data Governance, Custom: Master data objects are master data objects stored in custom-build "Master Data Governance" systems that are not of type financials, suppliers, customers or materials. This is the sum of all user defined object of type things (articles, contract, location, asset, equipment, contract, etc.). A user defined object is created using the Master Data Governance framework.
- 26.1.4 For SAP Master Data Governance, Customers: Master data objects are active B2B customer objects stored in the SAP Master Data Governance system. Customer may Use SAP Master Data Governance, Customers to store additional business partners if the partners represent B2B customers. Customer may not Use SAP Master Data Governance, Customers to store additional business partners if the partners represent B2C customers.
- 26.1.5 For SAP Master Data Governance, enterprise asset management ext by Utopia: Master data objects are master data objects stored in SAP EAM.
- 26.1.6 For SAP Master Data Governance, Financials: Master data objects are the sum of financial objects (including, but not limited to, group accounts, operational accounts, cost elements, companies, profit centers and, cost centers with hierarchy nodes, consolidation groups and units, financial statement items) stored in the SAP Master Data Governance system. For avoidance of doubt, the financial accounts are only counted once, even if the accounts are used in multiple charts of accounts or financial statement versions. For example, if the company is reporting externally in US GAAP as well as IAS, each account is only counted once, not twice.
- 26.1.7 For SAP Master Data Governance, Product: Master data objects are active material objects (materials, products) stored in the SAP Master Data Governance system. Customer may not Use SAP Master Data Governance, Product to store articles.
- 26.1.8 For SAP Master Data Governance, retail and fashion management ext by Utopia: Master data objects are the sum of all single articles, generic articles (excluding variants) as well as sets, lots and displays, which get put under the governance of the solution.
- 26.1.9 For SAP Master Data Governance, Supplier: Master data objects are active supplier objects (vendors) stored in the SAP Master Data Governance system.
- 26.1.10 For SAP S/4HANA Cloud for contract, lease and real estate management: Master data objects are active real estate objects of type: contract; land; building or space.

27. OUTPATIENT DAYS

- 27.1 **Outpatient days** is the sum of the days in which patients have been treated as outpatients in a 1 year period. 1 outpatient day is counted when 1 patient is treated as an outpatient in 1 calendar day, independently of the quantity of work done on that day and on how the work was documented in the SAP system (in 1 or more outpatient cases, and, within cases, as 1 or more visit movements).

Remaining Metrics - P

28. PATIENT

- 28.1 **Patient care days** are the relevant number of patient care days reached by the Customer in a calendar year is the corresponding statistic according to the annual H+ member directory "H+ Die Spitäler der Schweiz".
- 28.2 **Patients treated** are those treated in 1 calendar year in the institutions supported by the SAP system. Patients are only counted once, no matter how many times they are treated in the hospital within the year.

29. PLANTS

- 29.1 **Plants** are physical sites owned by or operated by an enterprise supported by the Software.
- **Small plants** are plants with up to 500 employees. Employees per plant are all employees and contractors working in the plant.
 - **Midsize plants** are plants with 501 up to 5.000 employees. Employees per plant are all employees and contractors working in the plant.
 - **Large plants** are plants with more than 5.000 employees. Employees per plant are all employees and contractors working in the plant.

30. POINT OF DELIVERY

- 30.1 **Point of Delivery** is the active metering point where a utility service is supplied or determined:

Energy:

- Electricity
- Gas
- District heating
- Waste Management
- Mutual help
- For all sectors

Electricity:

- Electricity

Water:

- Water
- Waste Water

Utilities or no division named:

- Electricity
- Gas
- District heating
- Water
- Waste Water
- Waste Management
- Mutual help
- For all sectors

31. PREMIUMS

- 31.1 **Premiums** of the insurance company, which uses the product, is the total gross premiums as disclosed in the latest annual statement of the insurance company in a fiscal year. If the customer does not disclose a comprehensive annual statement, the Customer must the respective information to SAP.
If the Customer does not disclose the information publicly, Customer must deliver and explain it to SAP
If the product shall be licensed only for a subdivision of the insurance company the respective license contract requires an explicit definition.

- 31.1.1 For Reinsurance Management Solutions (SAP Reinsurance Management Foundation for Insurance and SAP Reinsurance Risk Manager);
Premiums reflect the “Ceded Premiums” in case of passive and “Assumed Premiums” in case of active Re-Insurance Business. In case the Customer uses the solution for Ceded AND Assumed business the sum of both shall apply.

32. PRICES

- 32.1 **Contract price** is the net value of the license contract. Contract price for partners is defined as the amount the Partner has to pay for SAP and Third Party Software to SAP. So, the Contract price for Partners is calculated based on the price recommended by manufacturer minus all partner discounts.
- 32.2 **BSI U.S.** payroll tax processing contract price is the net value of the BSI U.S. payroll tax processing software license.

33. PRODUCTS

- 33.1 **Products** are the annual total of number of vehicles and finished goods (for VMS/DBM) or Vehicles and Parts (for sequenced manufacturing) in the context of Automotive Solutions.

Remaining Metrics - Q

Remaining Metrics - R

34. RECORDS

34.1 **Records** are the average number of items managed by the application over the prior 12 months.

34.1.1 For SAP S/4HANA Enterprise Contract Management

Records are uniquely identified objects that are active and maintained within the software. All “Legal Transactions” in status ‘On Track’, ‘Pending’, ‘Open Issues’ are counted as Records.

34.1.2 For SAP Financial Database for Banking, SAP Credit Risk Management for Banking, and SAP Regulatory Reporting by iBS:

Records represent the number of financial products (such as loans or deposits) including over the counter products, and standardized exchange traded securities (e.g. shares, listed options, bonds). This is also true when processing takes place on aggregated level. If financial products don't apply, records represents the number of the processed objects.

34.2 Master records are 1 contractual relationship between the company and an employee whose payroll is being calculated.

35. RESOURCES

35.1 **Resources** are unique individuals or non-human resources (system, equipment, tool, instrument, machine, vehicle, room, regulatory or government agency/body, industry standard, framework, and/or corporate policy, etc.) that are managed by or within the Software.

36. REVENUES

36.1 **Revenues** are the annual incomes that a company receives from its normal business activities and other revenues from interests, dividends, royalties or other sources. Revenue exclude indirect taxes such as VAT, Excise Duty or any similar sales related taxes.

36.1.1 For the following packages, only the revenues associated with the business or division which the capabilities of the package will be applied against need to be considered:

SAP Advanced Trade Management Analytics, SAP Advanced Trade Management Analytics, version for SAP BW/4HANA; SAP Customer Business Planning, SAP Customer Business Planning, version for SAP BW/4HANA; SAP Trade Promotion Planning and Management, SAP Trade Promotion Planning and Management, version for SAP BW/4HANA; SAP Dairy Management by msg for SAP S/4HANA; SAP Meat and Fish Management by msg for SAP S/4 HANA; SAP Allocation Management, add-on for SAP Customer Activity Repository, SAP Assortment Planning, add-on for SAP Customer Activity Repository; SAP Customer Activity Repository; SAP Customer Activity Repository, omnichannel price and promotion service; SAP Forecasting and Replenishment; SAP Forecasting and Replenishment, fresh product add-on; SAP Merchandising for Retail; SAP Merchandise Planning, add-on for SAP Customer Activity Repository; SAP

Promotion Management, add-on for SAP Customer Activity Repository, SAP Replenishment Planning, add-on for SAP Customer Activity Repository; SAP S/4HANA for fashion and vertical business, SAP S/4HANA Retail for merchandise management..

36.1.2 For SAP Configure, Price, and Quote (SAP CPQ)

Revenues are the calculation of Customer's and its Affiliates total annual sales revenues for products or services, which were generated using the SAP CPQ software less VAT, delivery and any returns.

36.1.3 For SAP Customer Profitability Analytics,

Only the revenues analyzed within the Software need to be considered.

36.1.4 For SAP ERP, add-on for Polish SAF-T regulatory requirements: Only the revenues generated by the company or legal entity located in Poland need to be considered.

36.1.5 For SAP Customer Experience branded products

Revenue is the calculation of Customer's and its Affiliates total annual sales revenue for products or services that can be purchased through the SAP Customer Experience platforms (including SAP Customer Experience powered websites and other SAP Customer Experience powered channels such as web stores, mobile, In-Store module, Contact Center module, etc.) by customers (B2B and B2C) in each trailing 12 month period, less VAT, delivery and any returns.

36.1.6 For Insurance:

Revenue are the same as "Premiums".

36.1.7 For National Central Banks / Federal Reserve Banks

Revenues are the same as "Assets under Management".

36.1.8 For Other Banks:

Revenues are the sum of Customer's gross interest income and noninterest income (i.e. provisions, service charges, trading income) as stated on Customer's Income Statement.

36.1.9 For SAP Product Lifecycle Costing

Only the revenues need to be considered associated with the business or division, which the capabilities of SAP Product Lifecycle Costing will be applied against.

36.1.10 For Public Sector

Revenues are the same as "Total Annual Budgets".

36.1.11 For SAP Tax Declaration Framework for Brazil

only the revenues generated in Brazil are relevant.

37. REVENUE AND EXPENSES

Revenues and Expenses are the sum of annual revenues received and annual expenses paid (commissions, royalties, revenue shares etc.) processed within the Software.

Revenues are the sum of annual monetary amounts invoiced by Customer and its Affiliates to third parties for services provided (or to be provided) by Customer and/or its Affiliates to such third parties and processed through the SAP solution. **“Expenses”** are the sum of budgeted annual expenses (commissions, royalties, revenue shares etc.) for services performed (or to be performed) by Customer or its Affiliates for Customer’s and/or its Affiliates own organization(s) that are processed through the SAP solution.

37.1.1 For SAP Collaborative Project Management und SAP Portfolio and Project Management: **Revenues and Expenses** is related to the projects managed within the software and is defined as:

- Revenues: the sum of annual revenues received for revenue-generating external projects
- Expenses: the sum of budgeted annual expenses for internal projects.

37.1.2 S/4HANA for rights and royalty management by Vistex:

Revenues and Expenses are the sum of the annual revenues received and annual expenses paid (license fees, royalties, revenue share, etc.) in the context of the software. Revenues and expenses include financial validation for deals, which are implemented in SAP S/4HANA for rights and royalty management by Vistex but do not result in an incoming payment e.g. barter deal.

Remaining Metrics-S

38. SERVER

- 38.1 Servers are physical computers, cases, boxes or blades that house the CPUs running the software product. Multiple virtual machines on the same physical box are allowed and do not require additional licenses.

39. SESSIONS

- 39.1 Concurrent sessions are the aggregated numbers of sessions accessing the licensed Software at any 1 time. A session refers to the time between logon and logoff or time out where a unique user, application or platform accesses the licensed Software either directly or indirectly via the custom application. The number of sessions accessing each Deployment must be limited by corresponding license key mechanisms. The maximum number of sessions enabled on a Deployment by such limitations may not exceed the Licensed Level for the number of Concurrent Sessions assigned to that Deployment for such licensed Software product. The aggregate number of licensed sessions enabled on all Deployments may not exceed the Licensed Level of Concurrent Sessions. Users in deployments with an unlimited number of sessions require a Named User License for the licensed Software product. There is no license limit on number of processors or servers used. Customer may not utilize any program or system to cache or queue report requests. SAP BusinessObjects BI users accessing any Deployment using a Concurrent Session license may be entered into the SAP NetWeaver BW system for the purposes of maintaining security.

40. SPENDS

- 40.1 **Spend volumes** are the company's annual expenditures for the procurement of all direct and indirect goods and services.
- 40.1.1 For Public Sector entities: Public Sector Spend Budgets may be used instead. Public sector spend budget is the figure, published annually, that documents an organization's procurement budget for all direct and indirect goods and services.
- 40.1.2. For SAP S/4 HANA oil and gas for upstream contracts management, Spend Volume is the total annual spend related to all joint ventures managed by the software.
- 40.2 **Freight Spend** is the annual freight costs incurred in transporting products; i.e., all the transportation costs, including labour, involved in moving goods to and from a plant/distribution center/warehouse, including payments to logistics companies for their services and any cost incurred by a company for the use and maintenance of its own fleet of vehicles.

41. STUDENTS

- 41.1 **Students** are defined as:
- a) full-time registered students e.g. students who are registered for a full course load for the current academic year at the institution and/or

b) equivalents of full-time registered students (for example, a part-time student could represent a fraction of a full-time student).

42. SUBSCRIPTIONS

42.1 Annual subscriptions are periodic recurring fees that are payable every calendar or fiscal year for the right to use software or services during that calendar or fiscal year. This fee is payable each calendar or fiscal year whether or not the software or service has been used during that year.

43. SYSTEMS

43.1 Managed systems are all systems with a unique system identifier or a cloud service that are controlled, managed, monitored, scanned, or retired by the software and include all production and non-production usage types.

43.1.1 For SAP Information Lifecycle Management

Only Customer's productive use systems managed by SAP Information Lifecycle Management must be counted in the Licensed Quantity.

Remaining Metrics – T

44. TONS

44.1 Tons are a measure of the total weight in 1000 kilogram units, of goods managed by the system.

44.1.1 For Sap S/4HANA livestock procurement: the annual live weight is counted.

44.1.2 For all Oil & Gas items produced, scheduled, shipped or sold quantities of hydrocarbons and other bulk materials from both conventional and unconventional sources are counted as per day (i. e. “tons/day”).

45. TRANSACTIONS

45.1.1 For SAP Application Interface Framework:

Transactions consist of everything processed or monitored in SAP Application Interface Framework, e.g. all Application to Application (A2A), Business to Business (B2B), Business to Consumer (B2C), Business to Government (B2G) and Internet of Things (IoT) messages that are processed and monitored in the SAP AIF solution. The number of transactions is counted per year.

45.1.2 For SAP Archiving and Document Access by OpenText, external access option and SAP Archiving and Document Access by OpenText, external access option for SAP S/4HANA

Transactions are the annual volume of downloads (including view or print) of documents that are stored by the OpenText Solution. This metric applies only to individuals external to the Customer’s organization (i.e. other than employee, contract worker and outsourcer).

45.1.3 For SAP Document Presentment by OpenText, SAP Document Presentment by OpenText, add-on for business correspond

Transactions are single instances of a business document that is created, processed, printed or manipulated in some way by the products (e.g. letter, email, PDF, fax, SMS).

45.1.4 For SAP Billing, charging

Transactions are defined as pricing outputs where 1 input can generate 1 or several pricing outputs. Transactions are counted as those on the peak load day as measured within the prior 12 months.

45.1.5 For SAP S/4 HANA Banking for payment centralization

Transactions are single payment transaction within a payment order. A payment order can have 1 ordering party item and multiple recipient party items. The number of transactions is counted per year.

45.1.6 For SAP S/4HANA for legal content

Transactions are folders/cases with a unique number created during an Agreement contract year, under which legal content is managed.

45.1.7 For SAP Shared Service Framework

Transactions are defined as the number of shared service framework service requests created per year.

45.1.8 For last mile distribution component for SAP Direct Distribution

Transactions are defined as the number of annual store or customer visits performed by field sales or delivery personnel (e.g. delivery drivers, van sellers, merchandisers) as maintained by the Software.

45.1.9 For SAP ERP connector for SAP Cash Application: **Transactions** are the total maximum number of documents and line items processed by the Cash Application per year. 1 transaction is either: 1 payment advice file (pdf); 1 bank statement line item; or 1 lockbox line item.

45.1.10. For SAP S/4 HANA Oil & Gas for field equipment and material logistics planning and execution: Transactions are the total initiated field equipment and material supply and return processes for relevant plants during a contract year.

Remaining Metrics – U

46. UNITS

Rental units are rental objects that are managed with SAP Real Estate Management.

47. USERS

47.1 Users are individuals who Use the Software.

A “User” included in the Metric count cannot be assigned to more than 1 individual. However, a User assignment may be transferred from 1 individual to another, but only if the individual to which the User was assigned is:

- a) is on vacation;
- b) is absent due to sickness;
- c) has their employment terminated;
- d) is moved into a new job function which no longer requires them to Use the applicable Package(s); or
- e) is subject to a condition that is otherwise agreed by SAP.

47.1.2 For SAP Business Intelligence (BI):

There is no license limit on how many individuals are working concurrently with the Software. There is no license limit on number of processors or servers used. Named Users are identified at logon and do not consume a Concurrent Session license. Concurrent Session licenses and Users can be purchased in combination for a Deployment. Customer may not utilize any program or system to cache or queue report requests. SAP BI users may be entered into the SAP NetWeaver BW system for the purposes of maintaining security. This metric does not replace the overall SAP Named User licensing requirement.

47.1.3 For SAP Contact Center: Users represent agents and/or supervisors who work in a contact center environment and handle incoming contacts through multiple communication e-channels (like email, chat, SMS and fax) and/or use supervisor tools to supervise contact center agents with e-channel user capability.

47.1.4 In the context of voice channel: Users represent agents who work in a contact center environment and handle incoming contacts through voice channel and office telephony only or handle outbound campaign calls only. In addition, each port in Interactive Voice Recognition system is also considered a user and should be counted as additional users.

47.1.5 For SAP Digital Asset Management by OpenText, limited access option Users are limited to search, browse, view and download assets.

47.1.6 For SAP Identity Management and SAP Single Sign-On:

Users are individuals whose credentials and/or user information is managed by the functionality of the licensed Software.

- 47.1.7 For SAP Real Estate Management: Users are individuals who manage office, retail and industrial properties and similar portfolios. It is applied for both, owned and operated space, and includes commercial as well as corporate real estate management.
- 47.2 **Active users** are the numbers individuals that access the Cloud Service at any time during a calendar month.
- 47.3 **Monitored Users** are individuals: 1) whose information or credentials are monitored by the Software; and/or 2) who use the reporting console.
- 47.4 **Virtual users** are users simulated in the software to test the load on the SAP system.

Remaining Metrics – V

48. VALUES

- 48.1 **SAP Application Value (SAV)** is the sum of list prices for Named Users, External Community Members, (pan-industry and industry specific) Software Engines and Supplementary Products, excluding those items identified in the list of prices and conditions that do not contribute to the SAP Application Value.
- 48.2 **HANA SAP Application Value (HSAV)** is the sum of prices for licensed SAP Software and Third Party Software, excluding those SAP Software and Third Party Software identified in the list of prices and conditions that do not contribute to the HANA SAP Application Value. For the purposes of this definition, “price” can refer to

Existing installed base

“Price” is defined as the net value for previously licensed HSAV relevant SAP and Third Party Software. The net value of the SAP and Third Party Software is derived from the applicable software contract(s) for the HSAV relevant SAP Software and Third Party Software as follows: The net value for previously licensed HSAV relevant SAP and Third Party Software will be calculated based on the respective list price less volume discounts less (in case) special discounts. For clarification purposes: However, any migration discount or credit e.g. will not be deducted from the list price.

Net New & Subsequent Purchases

“Price” is defined as the list price for HSAV relevant Software and Third Party Software licensed in the current Order Form. In this case the calculated HANA Limited Runtime Edition fee will be discounted by the average deal discount of the current order form for internal recalculation purposes. The HANA Limited Runtime Edition fee is not further discountable after applying the average deal discount. SAP HANA products still are non-discountable.

Remaining Metrics - W

None listed.

Remaining Metrics - X

None listed.

Remaining Metrics - Y

None listed.

Remaining Metrics - Z

None listed.

EXHIBIT 3 - PACKAGE RESTRICTIONS

1. Sap Business Suite and Enterprise Foundation

1.1 Embedded Analytics

Where Customer holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals licensed as SAP Professional or Limited Professional Users under the Software Agreement to

- a) view, interact and refresh Crystal Reports, Dashboards content and Lumira storyboards embedded with such licensed Package(s) and
- b) Use the SAP BI Platform and/or SAP Lumira Server, as delivered with such licensed Package(s), solely to enable the viewing, interacting and refreshing of the Crystal Reports and Lumira storyboards content embedded with such licensed Package(s) (collectively "**Embedded Analytics Limited Use Right**").

Packages That Include Embedded Analytics Limited Use Right:

- SAP ERP
- SAP SCM
- SAP Transportation Management
- SAP Extended Warehouse Management
- SAP SRM
- SAP CRM
- SAP Environment, Health and Safety
- SAP Manufacturing Integration and Intelligence
- Embedded SAP BusinessObjects Enterprise

1.2 Embedded SAP BusinessObjects Enterprise

Where Customer holds a valid Package License for any of the below Package(s), such Package License shall include the right for individuals to view, interact, refresh and modify the content embedded with such licensed Package(s).

Packages That Include Embedded SAP BusinessObjects Enterprise:

- SAP Contact Center
- SAP Identity Management

1.3 SAP Human Capital Management

Usage of any integration software and content provided with the SAP HCM software and applicable to an integration between SAP HCM and SuccessFactors' Business Execution Software ("BizX") is permitted only with SAP HCM and a valid, current contract for SuccessFactors BizX.

2. S/4HANA PACKAGES

2.1 General terms for S/4 HANA Packages

S/4HANA Packages shall only be deployed on a SAP HANA database installation (collectively “**S/4HANA Installation**”). Only S/4 HANA Packages (and no other Software) shall be deployed on a S/4HANA Installation.

For clarity, the preceding sentence only applies to software licensed from SAP, its affiliates and or its authorized distributors and resellers.

- S/4HANA Packages are not licensed for Use with any third party runtime database.
- For the avoidance of doubt, the “Deployment and Communication Rights and Restrictions” set forth in this SUR apply to S/4HANA Packages.

2.2 SAP S/4HANA Compatibility Packs

“**S/4HANA Compatibility Pack**” shall mean an S/4HANA compatible copy of the Software shown in the “Classical Solution” column of the Matrix (the list of applicable Software located at the following link:

https://help.sap.com/doc/pdfac0fa9551dd88809f10000000b441570/1511%20000/en-US/MATRIX_OP1511.pdf

The S/4HANA Compatibility Pack may be Used by Customer as, and in accordance with the terms of, an S/4HANA Package. Such Use is further subject to the following:

- a) Customer must have a license to Use :
 - such Software in the Classical Solution column of the Matrix and
 - the prerequisite shown on the Matrix.
- b) So long as the Software in the Classical Solution Column of the Matrix is licensed solely for Use and deployment of the applicable S/4 HANA Compatibility Pack on an S/4HANA Installation, no Named User licenses are required for such Classical Solution. S/4HANA Compatibility Packs may only be Used until the applicable expiration date shown on the Matrix.

2.3 S/4HANA Enterprise Management

Customer has a license for SAP ERP in order to have the right to Use the ERP Compatibility Pack.

S/4HANA Enterprise Management includes the following Runtime Software: SAP GTS, Trade Preferences (version 11.0) and SAP Information Lifecycle Management (“**ILM**”). Classification required to support Trade Preferences may be used in context of this usage right at no additional charge for an on-premise implementation with the exception of the following functionalities: Entering Vendor-Based LTSDs in the Web UI, Uploading Preference Rules, Rule Set for Agreements other than with EU and USMCA-based concepts, Preference Determination for Configurable Bills of Material, Pan-Eur-Med-Cumulation, and Identity-Based Preference Processing. Use of ILM is limited solely to SAP ILM Retention Manager and ILM Store components only for

- a) storing and archiving files to filesystem, Hadoop, HANA, and IQ,

- b) blocking and deleting personal data within a specified time period or at the end of a specified time period.

2.4 **S/4HANA Enterprise Management for Professional use**

Use is allowed by the number of individuals included in the Licensed Level who are authorized to use all of such individual's operational, system administration and management roles supported by the Software for Customer's internal business purposes.

2.5 **S/4HANA Enterprise Management for Functional use**

includes the rights associated with S/4HANA Enterprise Management for Productivity use.

Use is allowed by the number of individuals included in the Licensed Level:

- a) who are employees of Customer's Business Partners authorized to perform any role supported by the Software in accordance with the license grant set forth in the GTC or Software License Agreement, or
- b) who are employees of Customer authorized to use the following Solution Capabilities supported by the Software:
 - Supply Chain (Goods Movement, Inventory Analytics & Control, Returnable Packaging Logistics, Warehouse Management, Delivery Management, Available to Promise, Transportation Management, Physical Inventory Handling, Handling Unit Management, Batch Management, Serial Number Management, Business Process Scheduling)
 - Manufacturing (Material Requirements Planning, External Processing, Production Execution, Outsourced Manufacturing, Just-in-time Manufacturing, Kanban, Production Control, Repetitive Manufacturing, Quality Planning, Quality Improvement, Quality Inspection, Manufacturing Analytics, Capacity Planning, Discrete Manufacturing, Process Manufacturing, Product Structure, Production Infrastructure, Production Processes, Production Scheduling)
 - Asset Management (Maintenance Planning, Maintenance Execution, Maintenance Demand Processing)
 - R&D (Project Financial Controls, Project Logistics Control, Variant Configuration, Product Development Foundation)
 - Service (Warranty Management, Service Request Management, Service Order Management, Service Fulfilment, Service Billing , Customer Engagement, Service Contract Management, Service Parts Fulfillment, Service Monitoring and Analytics, Service and Maintenance Plan, Technical Assets, Structures and History, In-House Repair Service Task Lists and Catalogs, Complaints Management, Service Execution, Service Planning and Dispatching, Service Parts Warehousing, Periodic Billing Prodeses).
 - Sales (Sales Quotation Management, Sales Contract Management, Sales Order Management and Processing, Price Management, Incentive and Commissions Management, Opportunity Management, Sales Lead Management, Activity Management, Account and Contact Management, Sales Master Data Management, Sales Billing, Solution Billing, Sales Rebates Management, Claims, Returns and Refund Management, Sales Monitoring and Analytics, Solution Portfolio Management, Solution Quotation Management, Sales Planning and Monitoring)

- Human Resources (Organizational Structure Management, Time Sheet Management, Reimbursement Management)
- Sourcing and Procurement (Self-Service Requisitioning, Advance Management, Corporate Card Management, Expense Reporting, Travel Booking Management, Travel and Expense Analytics)
- Display Use Rights
- Approval Use Rights

2.6 **S/4HANA Enterprise Management for Productivity use:**

Use is allowed by the number of individuals included in the Licensed Level who are employees of Customer authorized to use the following Solution Capabilities supported by the Software:

- Supply Chain (Goods Movement, Warehouse Management, Delivery Management, Available to Promise, Transportation Management, Physical Inventory Handling, Handling Unit Management, Batch Management, Serial Number Management, Business Process Scheduling)
- Service (Service Execution)
- Asset Management (Maintenance Demand Processing, Maintenance Execution)
- Manufacturing (Material Requirements Planning, Production Execution, Production Control)
- Human Resources (Organizational Structure Management, Time Sheet Management Reimbursement Management)
- Sourcing and Procurement (Self-Service Requisitioning, Advance Management, Corporate Card Management, Expense Reporting, Travel Booking Management, Travel and Expense Analytics)
- Display Use Rights
- Approval Use Rights

2.7 **S/4 HANA Developer access:**

Use is allowed by the number of individuals included in the Licensed Level who are authorized to access the development tools provided with the licensed S/4HANA Enterprise Management Software for the purpose of making ABAP Modifications and/or Add-ons to any S/4HANA Packages.

2.8 **S/4HANA Central Finance, central finance foundation (“S/4HANA Central Finance”):**

includes the following Runtime Software: SAP Application Interface Framework.

2.9 **SAP S/4 HANA Incentive and Commission Management:**

does not include agent portfolio assignment, liability management, actual commissioning and cancellation reserves, portfolio and liability transfer processes.

2.10 **SAP S/4 HANA for subscription billing:**

If SAP S/4 HANA for subscription billing shall be Used for, or in support of, billing or revenue share calculation for pre-paid telecommunications products, services or systems in the Restricted Countries or to remotely support prepaid telecommunication systems in

the Restricted Countries then prerequisite for such Use is, that Customer obtains a license from Freedom Wireless permitting such Use. The Restricted Countries are Australia, Brazil, Canada, China, Israel, Japan, South Korea, Mexico and the United States. SAP shall assume no responsibility or liability of any kind, which arises out of Customer's failure to obtain a license from Freedom Wireless permitting such Use.

SAP Billing, CRM component is required for the use of SAP S/4 HANA for subscription billing and should be deployed on a separate installation from S/4 HANA installation. The included convergent charging functionality in SAP Billing, CRM component may only be used if SAP S/4 HANA for subscription billing is licensed.

- 2.11 SAP S/4HANA for energy utilities meter data management and operations, SAP S/4HANA for energy utilities bill-to-cash management, SAP S/4HANA for water utilities meter data management and operations, SAP S/4HANA for water utilities bill-to-cash management: The Software includes mobile components that can solely be used:

- a) as a runtime for SAP S/4HANA for energy utilities meter data management and operations and/or SAP S/4HANA for energy utilities bill-to-cash management and/or SAP S/4HANA for water utilities meter data management and operations and/or SAP S/4HANA for water utilities bill-to-cash management, and
- b) for customers' extensions and enhancements to SAP S/4HANA for energy utilities meter data management and operations and/or SAP S/4HANA for energy utilities bill-to-cash management and/or SAP S/4HANA for water utilities meter data management and operations and/or SAP S/4HANA for water utilities bill-to-cash management.

The SAP Multichannel Foundation for Utilities includes any users necessary for SAP Gateway access.

- 2.12 **SAP S/4HANA Enterprise Portfolio and Project Management, professional:**

includes runtime functionality of planning application kit, SAP Lumira Designer and SAP Lumira Server.

- 2.13 **SAP S/4HANA Enterprise Portfolio and Project Management, standard:**

includes right to view project and portfolio information, use analytical capabilities, approve projects, phases and decision points, fill out questionnaires, provide input for financial and capacity planning, view and confirm assigned tasks and report project efforts. It also includes runtime functionality of Planning Application Kit, SAP Lumira Designer and SAP Lumira, server.

- 2.14 **SAP S/4HANA for O&G secondary distribution management:**

SAP S/4HANA for O&G secondary distribution management includes a license of the industry package "SAP S/4HANA Oil & Gas for hydrocarbon management" for up to 50,000 BOEPD sold. When licensed with SAP S/4HANA for O&G retail fuel network operations, the total license of the industry package "SAP S/4HANA Oil & Gas for hydrocarbon management" remains up to 50,000 BOEPD sold.

- 2.15 **SAP S/4 HANA for O&G retail fuel network operations:**

SAP S/4HANA for O&G retail fuel network operations includes a license of the industry package "SAP S/4HANA Oil & Gas for hydrocarbon management" for up to 50,000 BOEPD sold. When licensed with SAP S/4HANA for O&G secondary distribution

management, the total license of the industry package "SAP S/4HANA Oil & Gas for hydrocarbon management" remains up to 50,000 BOEPD sold.

2.16 SAP S/4HANA Finance for treasury and risk management:

Use of SAP S/4HANA Finance for treasury and risk management is limited to a maximum of one 100 active, investment-related security classes in the securities area*. In case a larger number of security classes are required, SAP Financial Asset Management for Insurance must be licensed.

*In the SAP system each security (e.g. stocks) is a class. The class data includes all the structure characteristics of a security. Since the creation of transactions and the management of positions in the transaction manager are based on product types, each class needs to be assigned to a product type.

2.17 SAP S/4HANA for financial asset management provides usage rights to administrate securities-, money market-, foreign exchange- and derivative instruments and performs corresponding subledger accounting activities according several legislations in parallel. Loans Management and Statutory Reporting is not included in the solution and has to be licensed as separate add-ons.

2.18 SAP S/4HANA for financial asset management, loans add-on provides usage rights to administrate loans for the purpose of insurance asset management or corporate treasury. It performs corresponding subledger accounting activities according several legislations in parallel.

SAP S/4HANA Cloud for financial asset management, private edition does not provide use rights for banking business.

2.19 SAP S/4HANA for financial asset management, statutory reporting add-on provides generic tools for insurance companies to use as a basis for fulfilling the relevant country-specific legal requirements for financial asset management. It also provides the content required to comply with specific requirements laid down by the German regulatory authority (BaFin).

2.20 SAP Business Integrity Screening for S/4HANA:

Customer is allowed to create new tables and new views (database views, analytical views, projection views, attribute views, calculation views, etc.) on the database as long as they are used in the context of the SAP Business Integrity Screening for S/4HANA solution (e.g. to setup rules which access these tables/views).

2.21 SAP S/4HANA R&D for Enterprise Product Engineering:

Use of collaborative product development and product structure synchronization functionality is limited to product development functionality. Use of SAP 3D Visual Enterprise Generator is limited to 1 core of usage .

2.22 SAP S/4HANA R&D for Enterprise Product Formulation:

standard includes rights to view, track status and release master data objects including change records, master recipes, document information records and bills of material. In addition, users can view objects created in recipe development including specifications, recipes and any attached documents.

2.23 SAP Knowledge Accelerator Bundle for S/4HANA:

may be used to meet Customer's employee training needs and may not be used by or on behalf of any third party. Notwithstanding any other provision of the Training Schedule, User license metrics of Knowledge Acceleration may not be transferred to other individuals, even if the original user is no longer permitted access to Knowledge Acceleration. If an individual is no longer employed by Customer, Customer may transfer such individual's User license count to another user.

2.24 Sales and Service Order Execution for B2B and B2C for S/4HANA:

is licensed for Use to place and process Orders in licensed SAP S/4HANA Enterprise Management Software through licensed SAP Cloud Business Technology Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

2.25 Sales and Service Order Execution for B2C for S/4HANA

is licensed for Use by Consumers to place and process Orders in licensed SAP S/4HANA Enterprise Management Software through licensed SAP Business Technology Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

2.26 Purchase Order Execution for S/4HANA:

is licensed for Use to create and process Purchase Orders in licensed SAP S/4HANA Enterprise Management Software through licensed SAP Business Technology Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

2.27 SAP S/4HANA Oil & Gas for upstream hydrocarbon accounting and management:

Use of the Runtime Software SAP Manufacturing Integration and Intelligence is restricted to upstream production, scheduling, allocation, and maintenance only.

2.28 SAP S/4 HANA Oil & Gas for upstream contracts management:

Upstream Contracts Management and Upstream Oil and Gas, which include Joint Venture Accounting functionality, also include limited use rights for SAP Document and Reporting Compliance. The license to use SAP Document and Reporting Compliance is limited to use within the reporting scope of Upstream Contracts Management and Upstream Oil and Gas licenses. Any use beyond the reporting scope of Upstream Contracts Management and Upstream Oil and Gas requires SAP Document and Reporting Compliance to be fully licensed separately.

2.29 SAP Tax, Benefits, and Payment Processing for Public Sector for S/4HANA:

includes any users necessary for SAP Gateway access. To implement the solution Customer must also license SAP Tax, Benefits, and Payment Processing for Public Sector for CRM and deploy it on a separate installation from the S/4 HANA installation.

Use is restricted to the usage of following capabilities of SAP CRM: Application processing, Debt and enforcement management, Benefit and deduction decision making, Enrollment and declaration processing, Case management, Grantor front-office processes, Financial customer care and dispute management

2.30 **SAP Tax Compliance for S/4HANA**

includes the following Runtime Software:

- SAP Lumira Discovery
- SAP BusinessObjects Enterprise, limited to 5 Users per block of Licensed Metric for the Software

2.31 **SAP Business Partner Screening for S/4HANA:**

includes the following Runtime Software:

SAP Lumira Discovery

2.32 **SAP S/4HANA for Advanced Variant Configuration, standard:**

includes rights to configure e.g. sales orders using the SAP Fiori-based advanced configurator for materials using configuration profiles of mode “Advanced Variant Configuration” and create material variants for materials using configuration profiles of mode “Advanced Variant Configuration”.

2.33 **SAP OpenHub for S/4HANA:**

For purposes of SAP OpenHub for S/4HANA, “**SAP BW**” means the SAP Business small functionality included in SAP S/4HANA Enterprise Management, and does not include other Business Warehouse products such as SAP BW4/HANA. With this license, data may be exported out of SAP BW into non-SAP software applications in an asynchronous, non-real-time manner. Once data is asynchronously extracted to non-SAP software, there are no additional license fees or SAP Named Users required, provided the use of such data does not result in any updates to and/or trigger any processing capabilities of any licensed Software. For the purposes of this Section, “asynchronous extraction” means downloading data in bulk (i.e. not in response to a real-time Named User or system-generated reporting Query) for analytical purposes. Notwithstanding anything to the contrary, provided Customer also has a valid license for SAP S/4HANA Digital Access,

- a) humans may Use SAP BW through non-SAP software to export data out of SAP BW in a real time manner without the need to be licensed as a “Named User” or “Users” of SAP S/4HANA Enterprise Management, and
- b) non-humans (e.g. bots, sensors, chips, devices, etc.) may Use SAP BW directly or through non-SAP software to export data out of SAP BW in a non-real-time or real time manner without the need to be licensed as “Named User(s)” or “User(s)” of SAP S/4HANA Enterprise Management.

2.34 **SAP S/4HANA, supply chain integration add-on for SAP Integrated Business Planning**

may only be used to facilitate the integration of SAP S/4HANA with other SAP Software.

- 2.35 **PLM system integration for SAP S/4HANA** is included in SAP S/4HANA and may only be used to integrate with SAP Enterprise Product Development. Usage of PLM system integration for SAP S/4HANA with other systems requires separate licensing.
- 2.36 **SAP S/4HANA Digital Access:**
- 2.36.1 This Package grants
- a) humans a license to Use S/4HANA Enterprise Management (“S/4 EM”) through Non-SAP Application(s) that is/are directly integrated to S/4 EM without the need to be licensed as a “Named User” and/or “User” of S/4 EM and
 - b) non-humans (e.g. bots, sensors, chips, devices, etc.) a license to Use S/4 EM directly or through Non-SAP Application(s) that is/are directly integrated to S/4 EM and without the need to be licensed as a “Named User” and/or “User” of S/4 EM (collectively, “Digital Access of S/4 EM”).
- 2.36.2 **Solely for purposes of SAP S/4HANA Digital Access:**
- a) S/4 EM shall not include SAP Business Warehouse Software.
 - b) S/4 EM shall include SAP ERP Foundation Starter S/4HANA Compatibility Pack for the period in which Customer otherwise has the right to Use such Compatibility Pack under this Agreement.
 - c) **“Non-SAP Application(s)”** means:
 - i. any technologies Customer owns and/or for which Customer has secured an appropriate license/subscription from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors (excluding when used solely as a Connectivity App between an SAP Application and S/4 EM, and further excluding when used as a User Interface for S/4 EM); and/or
 - ii. SAP Technology Solutions.
 - d) **“User Interface(s)”** means any technologies that
 - iii. Customer owns and/or for which Customer has secured an appropriate license/subscription and
 - iv. is/are used to develop/manage user interaction features and characteristics for S/4 EM.
- 2.36.3 Solely for clarity regarding S/4 EM licensing requirements under a contract, User Interfaces for S/4 EM shall be deemed part of S/4 EM and therefore require human users Using S/4 EM via such User Interfaces to have a “Named User” and/or “User” license for S/4 EM, as applicable.
- a) **“SAP Technology Solution(s)”** means SAP NetWeaver Foundation for Third Party Applications, SAP Business Technology Platform (excluding when used solely as a Connectivity App between an SAP Application and S/4 EM), SAP Signavio Solutions and SAP Process Insights (including any renamed, prior and/or successor versions of any of the foregoing made generally available by SAP if any, but excluding when any of the foregoing are used as a User Interface for S/4 EM).
 - b) **“Connectivity App(s)”** means any integration technology whose primary function is to directly connect disparate applications to enable the direct communication and/or management of data between such disparate applications by/through such integration technology.

c) **“SAP Application(s)”** means all Packages (i.e. all Software and Third Party Software) licensed under a Software Contract and/or SAP cloud services for which Customer has a valid subscription, excluding User Interfaces for S/4 EM, SAP Technology Solutions and all database Packages.

2.36.4 All Digital Access of S/4 EM will be licensed based exclusively upon the number of Documents created annually by such Digital Access of S/4 EM. Documents are unique records (i.e. unique digital line-items/objects) as defined in the respective “Document Definitions” in the Metric for the “Documents for SAP S/4HANA Digital Access” in this List of Prices and Conditions (PKL). Each Document shall count as (1) Document, except for Material Documents and Financial Documents which shall each count as (0.2) of a Document. However, where the automated processing in S/4 EM of a Document from 1 Document Type results in the subsequent creation in SAP S/4 EM of 1 or more additional Documents of different Document Type(s), such additional Documents shall not be counted.

2.36.5 Where a Non-SAP Application is connected to S/4 EM via a Connectivity App, such Non-SAP Application is still deemed directly integrated to S/4 EM for purposes of this provision. Any humans and/or non-humans Using S/4 EM through application(s) that is/are integrated to a Non-SAP Application that is directly integrated to S/4 EM do not need to be licensed as a “Named User” and/or “User” of S/4 EM.

2.37 SAP S/4HANA for financial products subledger, banking option:

Use of SAP S/4HANA for financial products subledger, banking option is limited to functionality and processes for subledger accounting for financial instruments.

2.38 SAP S/4HANA for financial products subledger, insurance option, standard edition:

Use of SAP S/4HANA for financial products subledger, insurance option, standard edition includes the functionality and processes for the subledger accounting for insurance contracts only. The software component “SAP Profitability and Performance Management” is not included this version.

2.39 SAP Assurance and Compliance Software (ACS) for S/4HANA (included Applications: Business Integrity Screening, Tax Compliance & Audit Management:

Data replication from another source system leveraging a third party database requires a full-use license for that source database. A runtime database license sold by SAP is not sufficient.

2.40 S/4HANA Insurance for policy management, standard edition: The software components msg Product Manager Quattro and the Auto add-on by msg are not included in this version.

2.41 SAP S/4HANA for card management:

includes the following Runtime Software: SAP Transactional Banking for SAP S/4HANA, natural person option; SAP S/4HANA Banking for payment centralization; all to be used only in conjunction with SAP S/4HANA for card management.

2.42 SAP S/4HANA, financial posting gateway:

addresses cross-industry use cases leveraging master data entities, process steps and calculation methodologies of SAP S/4HANA for financial products subledger, insurance option.

SAP S/4HANA, financial posting gateway allows the user to configure and run processes leveraging the following steps only:

- a) Process Step “Register” for Contracts, Portfolios, Business Transactions and SAP S/4HANA Business Partner Data
- b) Process Step “Accrue” leveraging delivered Target Values
- c) Process Step “Defer” leveraging delivered Target Values and straight-line deferral
- d) Process Step “Value FX” for FX conversions, based on Market Rates in the corresponding tables
- e) Process Step “Classify” for business events that lead to an accounting change
- f) Process Step “Carryforward” as part of the year-end closing activities
- g) Process Step “Adjust” for manual adjustment
- h) Process Step “Split Revenue” for Allocations
- i) Processing of Imported Subledger Documents for enrichment and additional handling
- j) General Ledger Connector
- k) Data Load Layer

2.43 SAP S/4HANA for manufacturing logistics

includes Runtime Software of SAP S/4HANA Supply Chain for extended warehouse management (EWM) and SAP S/4HANA Supply Chain for Transportation Planning & Execution. Use of SAP S/4HANA Supply Chain for Transportation Planning & Execution is limited to shuttle functionality and inbound cargo registration (ICR) functionality.

2.44. SAP S/4HANA Supply Chain for Transportation Charge Management;

SAP S/4HANA Supply Chain for Transportation Planning & Execution; and SAP Transportation Management for T&L on SAP S/4HANA: These packages include SAP Event Management on SAP S/4HANA, but use of SAP Event Management on SAP S/4HANA is limited to transportation processes covered by SAP Transportation Management, such as the tracking of freight orders and freight units

3. S/4HANA THIRD PARTY RESELLING:

3.1 SAP Archiving and Document Access by OpenText for SAP S/4HANA:

Use is defined as access by employees and contractors who directly use the SAP Software components e.g. enterprise scan, business process views, full text search, etc. and/or store or retrieve documents on the OpenText Archive Server. Support for Data archiving and access of archived data as well as support for SAP Information Lifecycle Management is included for the licensed entity as long as the Customer has licensed the minimum number of Document Access users.

3.2 SAP Archiving and Document Access by OpenText, limited access option for SAP S/4HANA, SAP Extended ECM by OpenText, limited access option for SAP S/4HANA

Each of Customer's Users are limited to 52 Login Days per year. A "Login Day" means a day with 1 or more logins to the software by such user.

4. ERP

4.1 Purchase Order Execution:

Purchase Order Execution ("**POE**") is licensed for Use (excluding by employees of Customer) to create and process Purchase Orders in licensed ERP Software through licensed SAP Business Technology Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Use of POE does not require a Named User license. Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

4.2 Sales and Service Order Execution for B2B and B2C:

Sales and Service Order Execution for B2B and B2C ("SOE B2B/C") is licensed for Use (excluding by employees of Customer) to place and process Orders in licensed ERP Software through licensed SAP Business Technology Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Use of SOE B2B/C does not require a Named User license. "Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

4.3 Sales and Service Order Execution for B2C:

Sales and Service Order Execution for B2C ("SOE B2C") is licensed for Use by Consumers to place and process Orders in licensed ERP Software through licensed SAP Cloud Platform (inclusive of any authorized applications running thereupon) and/or Non-SAP Application(s). Use of SOE B2C does not require a Named User license. "Non-SAP Application(s)" means any technologies, other than licensed Package(s), for which Customer has secured an appropriate license from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors.

4.4 SAP Digital Access:

This Package grants humans a license to Use SAP ERP ("**ERP**") through Non-SAP Application(s) that is/are directly integrated to ERP without the need to be licensed as a "Named User" of ERP and non-humans (e.g. bots, sensors, chips, devices, etc.) a license to Use ERP directly or through Non-SAP Application(s) that is/are directly integrated to ERP and without the need to be licensed as a "Named User" of ERP (collectively, "Digital Access of ERP").

4.4.1 Solely for purposes of SAP Digital Access:

- a) ERP shall not include SAP Business Warehouse Software.
- b) "**Non-SAP Application(s)**" means:
 - i. any technologies Customer owns and/or for which Customer has secured an appropriate license/subscription from an entity other than SAP, SAP SE, and/or any of its/their subsidiaries and/or distributors (excluding when used solely as a Connectivity

App between an SAP Application and ERP); and further excluding when used as a User Interface for ERP; and/or

ii. SAP Technology Solutions.

c) **“User Interface(s)”** means any technologies that

iii. Customer owns and/or for which Customer has secured an appropriate license/subscription and is/are

iv. used to develop/manage user interaction features and characteristics for ERP. Solely for clarity regarding ERP licensing requirements under a contract, User Interfaces for ERP shall be deemed part of ERP and therefore require human users Using ERP via such User Interfaces to have a “Named User” and/or “User” license for ERP, as applicable.

d) **“SAP Technology Solution(s)”** means SAP NetWeaver Foundation for Third Party Applications, SAP Business Technology Platform (excluding when used solely as a Connectivity App between an SAP Application and ERP), SAP Signavio Solutions and SAP Process Insights (including any renamed, prior and/or successor versions of any of the foregoing made generally available by SAP if any but excluding when any of the foregoing are used as a User Interface for ERP).

e) **“Connectivity App(s)”** means any integration technology whose primary function is to directly connect disparate applications to enable the direct communication and/or management of data between such disparate applications by/through such integration technology.

f) **“SAP Application(s)”** means all Packages (i.e. all Software and Third Party Software) licensed under a Software Contract and/or SAP cloud services for which Customer has a valid subscription, excluding User Interfaces for ERP, SAP Technology Solutions and all database Packages.

4.4.2 All Digital Access of ERP will be licensed based exclusively upon the number of Documents created annually by such Digital Access of ERP. Documents are unique records (i.e. unique digital line-items/objects) as defined in the respective “Document Definitions” in the Metric for the “Documents for SAP Digital Access” in this List of Prices and Conditions (PKL). Each Document shall count as (1) Document, except for Material Documents and Financial Documents which shall each count as (0.2) of a Document. However, where the automated processing in ERP of a Document from Document Type results in the subsequent creation in ERP of or more additional Documents of different Document Type(s), such additional Documents shall not be counted.

4.4.3 Where a Non-SAP Application is connected to ERP via a Connectivity App, such Non-SAP Application is still deemed directly integrated to ERP for purposes of this provision. Any humans and/or non-humans Using ERP through application(s) that is/are integrated to a Non-SAP Application that is directly integrated to ERP do not need to be licensed as a “Named User” of ERP.

4.5 **SAP Enterprise Risk and Compliance Management, risk management and Bank Communication Management:**

may require an additional component downloaded from a third party mobile application store. Each additional component is subject to its respective license agreement.

4.6 **SAP Treasury and Risk Management:**

Use of SAP Treasury and Risk Management is limited to a maximum of a hundred (100) active, investment-related security classes in the securities area*. In case a larger number of security classes are required, the Industry Package SAP Financial Asset Management for Insurance has to be licensed.

*In the SAP system each security (e.g. stocks) is a class. The class data includes all the structure characteristics of a security. Since the creation of transactions and the management of positions in the transaction manager are based on product types, each class needs to be assigned to a product type.

4.7 SAP (EHS Management, Environment, Health and Safety; SAP EHS Management, Product Safety; SAP EHS Management, Product and REACH compliance

SAP only warrants the functional scope of the aforementioned products. However, SAP does not warrant or guarantee regulatory compliance of these products. Implementation of these products in accordance with regulatory compliance requirements is within the responsibility of Customer.

SAP also provides for free publicly available information to support business processes of calculations and reporting, herein called content, within the EHS Management, Environment, Health, and Safety software product. SAP does not warrant the accuracy of this content or that Customer will obtain any specific results from the use of the content. SAP only warrants that SAP has used reasonable business care in collecting and compiling the content. SAP does not provide any support Services for this content, especially SAP is not obliged to provide any updates for such content.

4.8 SAP EHS Management, Environment, Health and Safety

Customer/Individuals who utilize the incident management functionality of SAP EHS Management, Environment, Health and Safety solely to enter data for initial incident reporting and to provide data for incident investigations license a Named User license. Such data entry may occur asynchronously (off-line) via the Adobe Interactive Form tool, synchronously (on-line) by direct interaction with the SAP system, or via mobile devices. This exception applies only to incident management data entry use, and does not apply to any other uses of the incident management functionality or any other functionality of SAP EHS Management including incident processing, investigation, and performance and regulatory reporting. SAP EHS Management, environment, health, and safety does not include rights to SAP EHS Management, Product Safety and SAP EHS Management, Product REACH and Compliance.

The SAP EHS Management, Environment, Health and Safety may require an additional component downloaded from a third party mobile application store. Each additional component is subject to its respective license agreement. The SAP EHS Management, Environment, Health and Safety includes mobile platform functionality.

4.9 SAP Quality Issue Management

Customer need not for individuals who Use SAP Quality Issue Management solely to enter data for initial incident reporting and to provide data for incident investigations (open and close incidents) license Named User licenses. Such data entry may occur asynchronously (off-line) via the Adobe Interactive Form tool, synchronously (on-line) by direct interaction with the SAP system, or via mobile devices. This exception applies only to incident management data entry use, and does not apply to any other uses of the

incident management functionality or any other functionality of SAP Quality Issue Management.

4.10 SAP Management of Change

A named user license is not required for employees, contractors, and business partner users that interact with SAP Management of Change solely to create a change request. This exception applies only change request creation, and does not apply to the use of any other functionality of SAP Management of Change including approvals.

5. LINE OF BUSINESS

5.1 Track & Trace and Extended Warehouse Management:

Customer need not license for Business Partners of Customer accessing Track & Trace and Extended Warehouse Management solutions solely to view the tracking status and report event messages a SAP Named User license.

5.2 SAP Transportation Management/SAP Transportation Management for T&L:

External users provide or view information to SAP Transportation Management/SAP Transportation Management for T&L as part of the planning, execution or settlement of freight within SAP TM. External users include Customers, vendors, employees of business partners or drivers employed by the Customer. External users do not require a SAP Named User License. This includes any user necessary for SAP Gateway access.

5.3 SAP Manufacturing Execution (ME):

includes SAP Manufacturing Integration and Intelligence (MII) as Runtime Software solely for use in integrating ME to Customer's SAP system.

5.4 SAP Customer Engagement and Commerce (CEC):

5.4.1 Customer need not to license Named User license for Use of the following CEC Packages:

- a) SAP CRM Sales
- b) SAP CRM Service
- c) SAP CRM Marketing
- d) SAP CRM Loyalty Management
- e) SAP Sales and Service Order Execution for B2C
- f) SAP Sales and Service Order Execution for B2B & B2C
- g) SAP Contact Center
- h) SAP Trade Promotion Planning and Management
- i) SAP Advanced Analytics for Trade Management
- j) SAP Customer Business Planning
- k) SAP Configure, Price and Quote for product configuration
- l) SAP Configure, Price and Quote for solution sales configuration
- m) Desktop Connection for SAP CRM – enterprise edition

5.4.2 Use of the following SAP Billing related Packages does not require a Named User license:

- a) SAP Billing

- b) SAP Billing, charging
- c) SAP Billing, invoicing
- d) SAP Billing, customer financials
- e) SAP Billing, flexible solution billing
- f) SAP Billing, mediation by DigitalRoute

5.4.3 Use of the following SAP Packages does not require a Named User license:

- a) SAP Digital Documents by OpenText, first 200 units
- b) SAP Digital Asset Management by OpenText
- c) SAP Digital Asset Management by OpenText, limited access option
- d) SAP CRM Sales; SAP CRM Service; SAP CRM Marketing

5.5 SAP CRM Sales; SAP CRM Service; SAP CRM Marketing:

Use of SAP CRM Sales, SAP CRM Service and SAP CRM Marketing packages is limited to use by Customer only to run Customer's and its Affiliate internal business operations.

5.6 SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; SAP CRM Marketing, Limited Access:

Licensing of SAP CRM Sales, Limited Access; SAP CRM Service, Limited Access; or SAP CRM Marketing, Limited Access allows 'sCustomer Business Partners to access the SAP CRM Sales; SAP CRM Service; or SAP CRM Marketing package respectively, in accordance with the terms of the Software Agreement.

5.7 SAP Billing, charging; SAP Billing:

If SAP Billing, charging and SAP Billing Software included in the referenced products is Used for, or in support of, billing or revenue share calculation for pre-paid telecommunications products, services or systems in the Restricted Countries or to remotely support prepaid telecommunication systems in the Restricted Countries then Customer shall be obliged to obtain a license from Freedom Wireless permitting such Use. The Restricted Countries are Australia, Brazil, Canada, China, Israel, Japan, South Korea, Mexico and the United States. Failure to obtain a license from Freedom Wireless permitting such use shall void and release SAP from all related warranties, including without limitation any warranties and/or indemnities with respect to non-infringement of intellectual property rights to the fullest extent provided by applicable law.

5.8 SAP Enterprise Product Engineering Package:

Use of collaborative product development and product structure synchronization functionality is limited to product development functionality. Use of SAP 3D Visual Enterprise Generator is limited to 1 core of usage. Any Use in excess of the foregoing will require licensing of the full use version of SAP 3D Visual Enterprise Generator.

5.9 SAP Enterprise Product Formulation Package:

Use of collaborative product development and product structure synchronization functionality is limited to recipe development functionality.

5.10 SAP Yard Logistics:

includes Runtime Software of SAP's Extended Warehouse Management (EWM) for sole Use with SAP Yard Logistics. Use of SAP Extended Warehouse Management excludes Use of processes based on inbound or outbound deliveries, material flow system related functionality, as well as stock-keeping processes (other than Transportation Unit and Yard related processes).

5.11 SAP ERP, supply chain integration add-on for SAP Integrated Business Planning:

may only be used to facilitate the integration of ERP with other SAP Software. PLM system integration for SAP ERP is included in SAP ERP and may only be used to integrate with SAP Enterprise Product Development. Usage of PLM system integration for SAP ERP with other systems requires separate licensing.

5.12 SAP Extended Sourcing and SAP Contracts Lifecycle Management:

includes the following Runtime Software: SAP BusinessObjects Enterprise, to be used only in conjunction with SAP Extended Sourcing and SAP Contracts Lifecycle Management.

5.13 SAP Enterprise Portfolio and Project Management, standard:

includes right to view project and portfolio information, use analytical capabilities, approve projects, phases and decision points, fill out questionnaires, provide input for financial and capacity planning, view and confirm assigned tasks and report project efforts. It also includes runtime functionality of Planning Application Kit, SAP Lumira Designer and SAP Lumira, Server.

5.14 SAP Enterprise Portfolio and Project Management, professional:

includes runtime functionality of Planning Application Kit, SAP Lumira Designer and SAP Lumira, Server.

5.15 SAP Visual Enterprise:

SAP 3D Visual Enterprise Generator, *SAP 3D Visual Enterprise View Edition Generator and Optional Add-Ons*. The SAP Visual Enterprise Software (f/k/a Right Hemisphere) licensed hereunder may include certain third party open source and/or other free download components (collectively, the "Free Download Components"). Please refer to <http://www.righthemisphere.com/oslicenses.html> for certain notices relating to the Free Download Components. Notwithstanding anything to the contrary, an individual accessing any licensed SAP Visual Enterprise Software solely to view output files therefrom shall not be required to hold an SAP Named User license. SAP Visual Enterprise Viewer software is made available to Customers of licensed Visual Enterprise Generator, Visual Enterprise Access and/or Visual Enterprise Author software at no additional license fee.

5.16 SAP Contact Center

includes the following Runtime Software: SAP BusinessObjects Web Intelligence and SAP Lumira Server which excludes the following rights:

- a) Creation of a new Lumira document using Lumira Server
- b) modification of existing Lumira documents using Lumira Server

5.17 SAP ERP limited runtime edition

may only be Used to the extent necessary to operate other Software licensed by Customer under the Agreement, provided SAP Documentation indicates such other Software technically requires the functions of SAP ERP in order to operate such other Software. Use of SAP ERP limited runtime edition does not require a Named User license. SAP ERP limited runtime edition is only available to S/4HANA Software Customer's.

5.18. SAP Enable Now:

PDF, Microsoft Word, Microsoft PowerPoint documents or MP4 videos created with and exported from the Software can be utilized provided but such utilization doesn't use the Software in any way.

6. INDUSTRY PORTFOLIO

6.1 SAP Tax, Benefits, and Payment processing for Public sector:

includes any user necessary for SAP Gateway access.

A Named User License for Tax, Benefits, and Payment Processing for Public Sector is not needed for external users representing the contact (e. g. taxpayer or tax accountants on behalf of the taxpayer accessing the system for online filing and payments), unless they are working on behalf of the Customer (e. g. a job assessor...)

6.2 Regulatory Reporting by iBS, Accounts; Regulatory Reporting by iBS, Derivatives; Regulatory Reporting by iBS, PIC/S Cashflow; Regulatory Reporting by iBS, Retail Cashflow:

Licensed iBS software may only be Used to support Customer's German, Austrian and/or Swiss business operations.

6.3 SAP Business Integrity Screening:

includes the following Runtime Software: (i) SAP Lumira Discovery and (ii) read-only access to Automated Predictive Libraries (APL) and Predictive Analytics Integrator (PAI). When the Software is used with Limited HANA Runtime, HANA Studio and WEB IDE may be used for application specific data modeling, including, but not limited to, table creation and extensions.

6.4 Cerner i.s.h.med from SAP, core bundle:

may not be deployed in, or used or accessed by any individuals located in: Afghanistan, Albania, Algeria, Monaco, South Sudan, Sweden, or the United States of America.

6.5 SAP Budgeting for Public Sector:

includes the following Runtime Software: SAP Business Planning and Consolidation version for SAP NetWeaver (planning only).

6.6 SAP Mobile Inclusive Banking, SAP Omnichannel Banking, digital legal person option, SAP Omnichannel Banking, digital natural person option

The referenced Mobile Apps includes mobile platform functionality for use with the Mobile Apps.

SAP Customer Profitability Analytics

a) includes the following Runtime Software: read-only access to:

- b) Automated Predictive Libraries (APL); and
- c) Predictive Analytics Integrator (PAI).

6.8 **Card management:**

includes the following Runtime Software: Transactional Banking, Retail Banking; SAP Payment Engine, all to be used only in conjunction with card management.

6.9 **The SAP Predictive Maintenance and Service, add on for utilities:**

is not designed to process personal data.

6.10 **SAP S/4HANA livestock procurement:** includes the following Runtime Software: SAP Agricultural Contract Management for S/4HANA.

7. **THIRD PARTY RESELLING**

7.1 **SAP LoadRunner by Micro Focus (“LR”):**

Customer’s use of the LR software is limited solely to testing or monitoring pre-production SAP Software (including any and all software required to operate the particular SAP Software, further including the SAP Software’s associated operating systems, databases, application servers, etc) only in quality assurance and similar non-production environments, and may only be used on a single server.

7.2 **SAP Archiving and Document Access by OpenText (“DA”):**

Use is defined as access by employees and contractors who use the SAP Software components e.g. enterprise scan, business process views, full text search, etc. and/or store or retrieve documents on the OpenText Archive Server. Support for data archiving and access of archived data as well as support for SAP Information Lifecycle Management is included for the licensed entity as long as Customer has licensed the minimum number of SAP Document Access by Open Text users.

7.3 **SAP SuccessFactors Extended Enterprise Management by OpenText:**

is limited for use in the context of SAP SuccessFactors and HR scenarios/employee related-documents

7.4 **SAP Extended ECM for Government by OpenText (“xECM for Government** is limited to use by government entities. For this purpose, ‘government’ means the governing body of a political unit such as a nation, state or community. It is the body that establishes or administers laws or regulations and exercises the political direction and control of the affairs of the political unit. It excludes any organization that provides goods or services that are offered by the private sector in any western democratic country, such as utilities, banks, mining, and also excludes any quasi-governmental or quasi-public corporations or entities. xECM for Government contains a limited use license of SAP Document Presentment by OpenText (“DP”), SAP Document Presentment by OpenText, add on for business correspondence (“DP add-on”), and SAP OCR functionality that must only be used in conjunction with the xECM for Government solution. Broader usage of these components requires separate additional licensing. DP and DP add-on are limited to 100,000 transactions per year. The OCR functionality is an optional component that is compatible only with Microsoft SQL Server Database, and is limited to 1,000,000 pages per year. When Customer’s licenses Software for internal users according to this metric,

the license includes the right for individuals/citizens external to the Customer's organization (i.e. other than employee, contract worker and outsourcer), to upload or download content/documents that are stored by the OpenText Solution, but such use is restricted to use directly related to the governmental use authorized above. Use in any other capacity by individuals/citizens external to the Customer's organization is prohibited.

7.5 SAP Archiving and Document Access by OpenText, Limited Access option, SAP Extended ECM by OpenText, Limited Access option:

Each of Customer's Users are limited to 52 Login Days per year. A "Login Day" means a day with 1 or more logins to the software by such user.

7.6 BSI U.S. Payroll Tax Processing :

The BSI software is licensed for use in conjunction with the payroll functionality contained in the SAP Payroll Software, which must be separately licensed. In addition, the license for the BSI software is limited for use on a single Platform at a time (with the exception of a Platform migration period as BSI may allow). For purposes herein, the term "Platform" shall mean a single BSI Supported Configuration of the following: a single database, single server, single client software, and single operating system. For purposes herein, "BSI Supported Configuration" shall mean a configuration for which BSI makes support available for SAP Customer's of the BSI software. The BSI software license does not include a license to use any third party database, server, client software, or operating system. If Customer wishes to change the Platform: (i) Customer shall provide SAP written notice of the same and complete a Platform Change form (in a format acceptable to BSI); and (ii) SAP shall allow such change to the extent and under the conditions BSI generally makes available to SAP, including without limitation Customer's payment of any platform change fees that apply. Special maintenance agreement required.

7.7 SAP Enterprise Asset Management, S/4HANA add-on for MRO by HCL, base package:

includes 100 professional and 400 standard users.

8. SAP NetWeaver

8.1 General terms applicable to use of SAP Netweaver

8.1.1 Adapters are only available with a SAP NetWeaver PI license and are licensed for a defined release of a backend system or protocol. Maintenance for adapters covers the support of connectivity to a backend system or compliance to a protocol specification at that given release at the time of licensing. It is within SAP's sole discretion to extend the use rights of an adapter (either partly or fully) to a higher release of the respective backend system or protocol. This applies to change of version of protocols as well.

8.1.2 Provided Customer has licensed an SAP software component based on SAP NetWeaver, Customer shall have rights to SAP Fiori and SAP Screen Personas. SAP Fiori and SAP Screen Personas software usage rights are included in the respective SAP NetWeaver Software components to the extent of Customer's licensed use rights for such SAP prerequisite components.

8.1.3 Provided Customer has licensed an SAP software component based on SAP NetWeaver, Customer shall have rights to Use the following Runtime Software: SAP Information Lifecycle Management (“**ILM**”). Use is limited to SAP ILM and ILM Store components only for

- a) storing and archiving files to filesystem, Hadoop, HANA, and IQ,
- b) blocking and deleting personal data within a specified time period or at the end of a specified time period. This runtime license excludes use of any other capabilities of SAP Information Lifecycle Management.

8.1.4 **SAP NetWeaver Foundation Runtime License:**

An application-specific runtime license of SAP NetWeaver Foundation is included with all Software Package licenses provided that SAP NetWeaver is delivered with the software. This runtime license grants the Customer the right to Use SAP NetWeaver Foundation only with

- a) the licensed SAP application (including customization),
- b) Modifications
- c) Add-Ons to the SAP application that do not access the information contained in the database of the SAP applications, and
- d) third party applications that do not access the information contained in the database of the SAP applications.

Customer’s Developer Users may Use the tools included in SAP NetWeaver Foundation runtime license only for the development of these Modifications and Add-Ons described above. Customer’s Use of the Planning Application Kit to develop planning applications that leverage in-memory processing of core planning functions requires a separate license for the applicable version of SAP Business Planning and Consolidation.

8.2 **SAP NetWeaver OpenHub:**

For purposes of SAP Netweaver OpenHub, “**SAP BW**” means the SAP Business Warehouse functionality included in SAP ERP, and does not include other Business Warehouse products such as SAP BW4/HANA. With this license, data may be exported out of SAP BW into non-SAP software applications in an asynchronous, non real-time manner. Once data is asynchronously extracted to non-SAP software, there are no additional license fees for SAP Named Users required, provided the use of such data does not result in any updates to and/or trigger any processing capabilities of any licensed Software. For the purposes of this Section “asynchronous extraction” means downloading data in bulk (i.e., not in response to a real-time Named User or system-generated reporting query) for analytical purposes. Notwithstanding anything to the contrary, provided Customer also has a valid license for SAP Digital Access, humans may Use SAP BW through non-SAP software to export data out of SAP BW in a real time manner without the need to be licensed as a “Named User” of SAP ERP, and (b) non-humans (e.g. bots, sensors, chips, devices, etc.) may Use SAP BW directly or through non-SAP software to export data out of SAP BW in a non-real-time or real time manner without the need to be licensed as “Named User(s)” of SAP ERP.

8.3 **SAP Enterprise Master Data Management:**

For all Enterprise Master Data Management scenarios based on SAP NetWeaver Master Data Management products, a SAP Professional Named User license is required for users maintaining MDM data.

Since MDM may be deployed at ERP/ECC and share the same persistency layer it's critical to distinguish active and inactive records. The license only assumes charging for the former and the latter may come in a few flavors:

- a) If an object is marked for deletion in ERP/ECC before MDM is deployed then it is considered inactive and not counted for the license blocks.
- b) If an object is marked for deletion in ERP/ECC after MDM is deployed then it is considered active and counted for the license blocks.
- c) If a Customer developed a custom solution for the "other" domain and loads some data to MDM then prior to loading the Customer should create a definition of inactive records and specify what field(s) mark such records. The marked for deletion objects are not counted for the license blocks. If there is no such a definition then all the objects are considered active.
- d) If an object is physically deleted from MDM or archived then it is not counted for the license blocks.

8.4 SAP Identity Management:

may be used by Customer to integrate Customer's SAP applications as part of an application-specific runtime license of SAP NetWeaver Foundation. Customer is allowed to use SAP Lumira Discovery Runtime Software.

8.5 SAP Process Orchestration, Edge edition premier option:

includes the rights to use SAP Process Orchestration and SAP Data Integrator, Edge edition. Each 1 Core license of SAP Process Orchestration, Edge edition premier option includes the rights to 1 Concurrent Session of SAP PowerDesigner EnterpriseArchitect, fifty (50) Users of SAP Single Sign-On and 50 Users of SAP Identity Management. The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Process Orchestration, Edge edition, premier option may be installed and Used, excluding SAP Sybase PowerDesigner EnterpriseArchitect, SAP Single Sign-On, and SAP Identity Management which do not count against total Cores. The Use of SAP Process Orchestration, Edge edition, premier option is limited to a maximum of 8 Cores.

8.6 SAP Process Orchestration, Edge edition, standard option:

includes the rights to use SAP Process Orchestration. Each one (1) Core license of SAP Process Orchestration, Edge edition, standard option includes the rights to one (1) Concurrent Session of SAP PowerDesigner EnterpriseArchitect. The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Process Orchestration, Edge edition, standard option may be installed and Used, excluding SAP PowerDesigner EnterpriseArchitect which does not count against total Cores. The Use of SAP Process Orchestration, Edge edition, standard option is limited to a maximum of 8 Cores.

8.7 SAP Landscape Management:

Customer acknowledges and agrees that it is Customer's responsibility to ensure that it has all necessary third party license rights required to clone and/or copy an environment using this software, and Customer has obtained and will maintain all such license rights necessary to use the functionality described herein, including without limitation the license right to operate the target system landscape after cloning and/or copying. Without limiting the materiality of other provisions of the Software Agreement, the parties agree that any violation by Customer of third party license rights in this respect will be a material breach of the Software Agreement. Licenses for SAP Landscape Management must be assigned to a specific SAP system id, and can only be reassigned to a different system id once in a 1-month period.

8.8 SAP Enterprise Threat Detection:

includes a limited runtime license for SAP HANA Streaming Analytics

8.9 SAP Intelligent Business Operations bundle:

includes the rights to use SAP Process Orchestration, SAP HANA Streaming Analytics Option and SAP HANA Operational Process Intelligence Option. Use of SAP HANA Streaming Analytics shall be solely limited to interacting with other Software components included in SAP Intelligent Business Operations bundle. Use of SAP HANA Operational Process Intelligence Option is restricted to

- a) data from the included SAP Process Orchestration and SAP HANA Streaming Analytics Software, and
- b) data from SAP ERP or SAP S/4HANA applications, if licensed separately by the Customer. Each 1 Core license of SAP Intelligent Business Operations bundle includes the rights to 1 Concurrent Session of SAP PowerDesigner EnterpriseArchitect. The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Intelligent Business Operations bundle may be installed and Used, excluding SAP HANA Operational Process Intelligence Option and SAP PowerDesigner EnterpriseArchitect which do not count against total Cores.

8.10 SAP Information Lifecycle Management ("ILM"):

includes a restricted runtime license of SAP Landscape Transformation, Replication Server ("SLT") ILM includes a restricted runtime license of 4 cores of SAP IQ to be used solely as a data store for ILM.

8.11 Productivity Apps:

Productivity Apps are any Customer owned/licensed application, provided such apps:

- a) are only used by an individual to support 1 or more of the following self service functions on behalf of himself or herself (predefined reports, travel planning, expense reporting, procurement, room reservation, employee time, employee attendance, employee records maintenance, employee directory, employee benefits, employee appraisals, employee talent and skills profiles) (the "Self Service Functions"); and
- b) any interfacing of such apps with the Software and/or Third party Software licensed under the Software Contract is limited to the extent necessary to support the Self Service Functions. Important Notice: The Use of Productivity Apps may require licenses for NetWeaver Foundation for Third Party Applications. A direct access to a

database (including but not limited to Oracle and/or Microsoft databases) or the information contained therein may require Full Use licenses for that database. It is Customer's responsibility to secure all appropriate rights from any applicable licensor(s).

8.12 SAP NetWeaver Foundation for Third Party Applications:

8.12.1 The SAP NetWeaver Foundation for Third Party Applications license grants the Customer, in addition to the SAP NetWeaver Foundation runtime license, the right to Use the SAP NetWeaver Foundation for Third Party Applications Software with

- a) Add-Ons to the SAP application that access the information contained in the database of the SAP applications , and
- b) third party applications that access the information contained in the database of the SAP applications.

Important Notices:

8.12.2 Add-Ons and third party applications that solely contain functionality for system administration, monitoring and management do not require a license for SAP NetWeaver Foundation for Third Party Applications.

8.12.3 Access to the information contained in a database (including but not limited to Oracle and/or Microsoft databases) may require Full Use licenses for that database. It is Customer's responsibility to secure all appropriate rights from any applicable licensor(s).

8.12.4 (*)Customer's Developer Users may Use the tools included in SAP NetWeaver Foundation for Third Party Applications license for the development of these Add-Ons described above.

8.12.5 Mixing Core-base and user-based license metrics for SAP NetWeaver Foundation for Third Party Applications is not permitted. Customer's must decide the first time they purchase or license SAP NetWeaver Foundation for Third Party Applications which license metric (user-based or Core-based) they will use.

9. SAP BUSINESS OBJECTS

9.1 Non-Productive Use:

Customer may Use the SAP BusinessObjects Software on an unlimited number Non-Productive Installations, provided the number of Users or Concurrent Sessions on any individual Non-Productive Installation does not exceed the total number of licensed Users or Concurrent Sessions. Non-Productive Installation means installations such as development, test, and disaster recovery which are not used in a productive manner.

10. SAP BUSINESSOBJECTS BUSINESS INTELLIGENCE SOLUTIONS

10.1 SAP BusinessObjects Business Intelligence:

10.1.1 SAP Business Objects Enterprise (user), and SAP BusinessObjects Enterprise (CS) include 1 Concurrent Session license of SAP PowerDesigner EnterpriseArchitect and the following Runtime Software:

- a) SAP BusinessObjects BI SDK - the use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited

without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

- b) SAP IQ which can be deployed on multiple instances, so long as total number of cores deployed across all instances does not exceed 8 cores.
- c) Data Integrator (DI) which may be deployed on multiple instances, so long as total number of cores deployed across all instances does not exceed 8 Cores, and the DI instances are not clustered. Use of the Data Integrator runtime (i) does not include Text Data Processing and (ii) may only load data into 1 target datastore.

10.1.2 SAP BusinessObjects Web Intelligence (user), and SAP BusinessObjects Web Intelligence (CS) include runtime license to use SAP BusinessObjects BI SDK. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

10.1.3. SAP BusinessObjects Business Intelligence, standard user and SAP BusinessObjects Business Intelligence, concurrent sessions include the following Runtime Software:

- a) SAP BusinessObjects BI SDK - the use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

10.1.4 For a single Deployment of SAP BusinessObjects BI platform only 1 edition can be used: either SAP BusinessObjects Enterprise, or SAP BusinessObjects Web Intelligence or SAP BusinessObjects Business Intelligence model.

10.1.5 Limitations for SAP BusinessObjects Enterprise (user) and SAP BusinessObjects Web Intelligence (user) and SAP BusinessObjects Business Intelligence, standard user: 1 User can create a maximum of 10 simultaneous sessions.

10.1.6 Limitations for SAP BusinessObjects Enterprise (CS): The following Use rights are not available with the Concurrent Session license:

- a) Use of Business View Manager, Report Conversion Tool, Universe Design Tool, Web Service Query Tool, Information Design Tool, Translation Management Tool, Data Federation Administration Tool, Central Management Console, and/or Central Configuration Manager
- b) Use of the Crystal Reports desktop client, and/or Crystal Reports for Enterprise desktop client
- c) Use of the Web Intelligence Rich Client
- d) Use of the SAP Lumira desktop client and
- e) Use of Analysis edition for Microsoft Office with the SAP NetWeaver platform

10.1.7 Limitations for SAP BusinessObjects Web Intelligence (CS): The following Use rights are not available with the Concurrent Session license.

- a) Use of Business View Manager, Report Conversion Tool, Universe Design Tool, Web Service Query Tool, Information Design Tool, Translation Management Tool, Data Federation Administration Tool, Central Management Console, and/or Central Configuration Manager
- b) Use of the Web Intelligence Rich Client

10.1.8. Limitations for SAP BusinessObjects Business Intelligence, concurrent sessions: The following rights are not available with the Concurrent Session license:

- a) Use of Business View Manager, Report Conversion Tool, Universe Design Tool, Web Service Query Tool, Information Design Tool, Translation Management Tool, Data Federation Administration Tool, Central Management Console, and/or Central Configuration Manager;
- b) Use of the Crystal Reports desktop client, and/or Crystal Reports for Enterprise desktop client;
- c) Use of the Web Intelligence Rich Client; and
- d) Use of Analysis edition for Microsoft Office with the SAP NetWeaver platform.

10.1.9 Oracle OLAP Data Provider for SAP BusinessObjects BI (OODP). Customer's license rights for SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence include a runtime license for the OODP. Customer's Use of the OODP Runtime Software is limited solely to connecting SAP BusinessObjects BI software both directly and indirectly to Oracle OLAP Data. It cannot be used to provide data to non-SAP products or those outside the BI and Predictive Analytics Suite.

10.1.10 SQL Anywhere. Customer's license rights for SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence include a runtime license for the SQL Anywhere database.

11. SAP ENTERPRISE INFORMATION MANAGEMENT SOLUTIONS

11.1 SAP Enterprise Information Management (EIM) Packages:

The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in the EIM packages may be installed and Used. Directories are not included and must be licensed separately.

11.2 SAP Data Services:

includes a restricted runtime license for 4 Core licenses of SAP Information Steward as Runtime Software. Use of such SAP Information Steward Runtime Software is limited to Cleansing Package Builder and the Basic and Advanced Profiling capabilities. These profiling capabilities do not include the ability to write data quality rules and create scorecards in SAP Information Steward.

11.3 SAP Data Services, enterprise edition:

SAP PowerDesigner EnterpriseArchitect does not count against total Cores. SAP Data Services, enterprise edition includes 10 Concurrent Sessions of SAP PowerDesigner EnterpriseArchitect.

11.4 SAP Data Integrator, premium edition:

SAP PowerDesigner EnterpriseArchitect does not count against total Cores. SAP Data Integrator, premium edition includes 5 Concurrent Sessions of SAP PowerDesigner EnterpriseArchitect.

12. SAP ENTERPRISE PERFORMANCE MANAGEMENT

12.1 Enterprise Performance Management Professional Edition Packages

12.1.1 The Enterprise Performance Management Professional Edition Packages ("EPM Professional Ed.") include the following:

- a) SAP Business Planning & Consolidation, version for SAP Netweaver, professional edition
- b) SAP Business Planning & Consolidation version for SAP NetWeaver (planning only), professional edition

12.1.2 The Enterprise Performance Management Standard Edition Packages ("EPM Standard Ed.") includes the following:

- a) SAP Business Planning & Consolidation, version for SAP NetWeaver, standard edition
- b) SAP Business Planning & Consolidation, version for SAP NetWeaver (planning only), standard edition

12.1.3 EPM Standard Ed and EPM Professional Ed packages are to be licensed whenever data extraction to third party systems is required, with the exception of use cases involving data extraction in the form of static reports (i.e. PDF), where no license is needed.

12.1.4 The EPM Standard Ed. and EPM Professional Ed. include the following Runtime Software:

- a) SAP BusinessObjects Business Intelligence Platform which is limited to use of the following:
- b) use of the Central Management Server ("CMS") to authenticate and/or authorize users for the applications;
- c) use of the Central Management Console ("CMC") to administer user rights and privileges as they pertain to the applications.

12.2 Enterprise Performance Management Standard Edition Packages:

Use is limited to

- a) direct input and/or editing of quantitative and qualitative data into the application;
- b) execution of existing reports or creation of reports on existing data structures;
- c) execution of changes to workflow tasks; and
- d) viewing data, except that users accessing the package through an interface are limited to viewing data only. Consolidation functionality is limited to running controls on data submitted by Licensed users. Planning functionality is limited to performing planning tasks only on existing models.

12.3 SAP Business Planning and Consolidation, version for SAP NetWeaver (planning only) only:

may be used solely for the creation and calculation of budget, plan, or forecast data (forward looking data). The calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

12.4 SAP Business Planning and Consolidation, version for SAP BW/4HANA and SAP Business Planning and Consolidation, version for SAP BW/4HANA (planning only):

12.4.1 include the following Runtime Software:

- a) SAP BW/4HANA
- b) SAP Business Planning and Consolidation, version for SAP NetWeaver which can be deployed only in an SAP S/4HANA deployment

12.4.2 SAP Business Planning and Consolidation, version for SAP BW/4HANA and SAP Business Planning and Consolidation, version for SAP BW/4HANA (planning only) are to be licensed whenever data extraction to third party systems is required, with the exception of use cases involving data extraction in the form of static reports (i.e. PDF), where no license or needed.

12.5 SAP Business Planning and Consolidation, version for SAP BW/4HANA, Standard Ed. and SAP Business Planning and Consolidation, version for SAP BW/4HANA (planning only), Standard Ed:

Use is limited to:

- a) direct input and/or editing of quantitative and qualitative data into the application;
- b) execution of existing reports or creation of reports on existing data structures;
- c) execution of changes to workflow tasks; and
- d) viewing data, except that users accessing the package through an interface are limited to viewing data only. Consolidation functionality is limited to running controls on data submitted by Licensed users. Planning functionality is limited to performing planning tasks only on existing models.

12.6 SAP Planning and Consolidation, version for SAP BW/4HANA license (planning only):

may be used solely for the creation and calculation of budget, plan, or forecast data. The calculation and reporting of the consolidated financial results of a group of companies or for separate financial statement reporting where the application is being used to calculate and report investments at equity, applying generally accepted accounting concepts related to accounting for business combinations and / or equity accounting for investments is not permitted.

13. SAP GOVERNANCE, RISK AND COMPLIANCE SOLUTIONS

13.1 SAP Governance, Risk and Compliance Solutions:

13.1.1 The following SAP Governance, Risk and Compliance (GRC) solutions include SAP BusinessObjects Enterprise as Runtime Software.

- SAP Process Control

- SAP Risk Management
- SAP Enterprise Risk and Compliance Management,
- SAP GTS (all editions)
- SAP Process Control for S/4HANA
- SAP Risk Management for S/4HANA
- SAP Enterprise Risk and Compliance Management
- SAP GTS (all editions)

13.1.2 The following SAP Governance, Risk and Compliance (GRC) solutions include SAP Crystal Reports, SAP BusinessObjects Enterprise as Runtime Software:

- SAP Process Control
- SAP Risk Management
- SAP Enterprise Risk and Compliance Management
- SAP GTS (all editions)
- SAP Process Control for S/4HANA
- SAP Risk Management for S/4HANA
- SAP Enterprise Risk and Compliance Management
- SAP GTS (all editions)
- SAP Access Control
- SAP Access Control for S/4HANA
- SAP Tax Compliance
- SAP Tax Compliance for SAP S/4HANA

13.1.3 The following SAP Governance, Risk and Compliance (GRC) solutions are limited (regardless of how many blocks of GRC are licensed) to 10 Users of the Following Runtime Software: SAP BusinessObjects Enterprise as Runtime Software:

- i. SAP Access Control
- ii. SAP Access Control for S/4 HANA

13.1.4 The following SAP Governance, Risk and Compliance (GRC) solutions include the following Runtime Software:

- i. SAP Lumira Discovery.
- ii. SAP Identity Management

13.1.5 The following SAP Governance, Risk and Compliance (GRC) solutions include Runtime Software of SAP Lumira Server which excludes the following rights: (i) Creation of a new Lumira document using Lumira Server and (ii) Modification of existing Lumira documents using Lumira Server:

- SAP Process Control
- SAP Risk Management
- SAP Process Control for S/4HANA
- SAP Risk Management for S/4HANA

- SAP GTS, Export
- SAP GTS, Import
- SAP GTS, Trade Preferences
- SAP GTS, Bundle
-
- SAP Audit Management
- SAP Business Integrity Screening
- SAP Business Integrity Screening for S/4HANA
- SAP Audit Management for S/4HANA
- SAP GTS, processing trade in China
- SAP Enterprise Risk and Compliance Management

13.2 SAP Tax Compliance, SAP Tax Compliance for S/4 HANA:

SAP Tax Compliance includes the following Runtime Software:

- SAP Lumira Discovery
- SAP BusinessObjects Enterprise limited to five Users per block of Licensed Metric for the Software
- read-only access to Automated Predictive Libraries (APL) and Predictive Analytics Integrator (PAI)

13.3 SAP Business Partner Screening, SAP Business Partner Screening for S/4 HANA:

SAP Business Partner Screening includes the following Runtime Software:

- SAP Lumira Discovery

14. SAP BUSINESSOBJECTS SOLUTIONS FOR SMEE

14.1 SAP Data Services, Edge edition and Data Integrator, Edge edition (Edge EIM Solutions):

The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Data Services Edge edition may be installed and Used Directories are not included in any of the Edge EIM Solutions and must be licensed separately. Each deployment of any of the Edge SAP EIM Solutions is limited to a single server, with a minimum of 4 Cores and a maximum of 8 Cores.

14.2 SAP BusinessObjects BI, Edge edition (BI Edge):

14.2.1 Each Deployment of SAP BusinessObjects BI, Edge edition (BI Edge) has maximum limits of 100 named users and 50 Concurrent Sessions on a single server. SAP BusinessObjects BI, Edge edition can be installed on a separate server solely for the purpose of using with SAP Lumira Server. The license includes the following Runtime Software:

- a) SAP IQ and
- b) Data Integrator both of which may be deployed on the same server as the SAP BI Edge platform, or on a separate server up to a maximum of 8 cores in the case of SAP

IQ or a maximum of 8 Cores in the case of Data Integrator. The license also includes 1 Concurrent Session license of SAP PowerDesigner DataArchitect Edge Edition.

14.2.2 Use of the Data Integrator runtime may only load data into 1 target datastore.

14.2.3 Use of SAP IQ Runtime Software is limited to access by and through the SAP BI Edge platform. The only allowed exception is data in SAP IQ Runtime Software may be accessed by SAP Analytics Cloud.

14.2.4 Certain functions of BI Edge are only supported with a User license metric, not with a Concurrent Session license (refer to “Concurrent Session Limitations” in Section 10.1.6). The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

14.3. SAP BusinessObjects Business Intelligence, Edge edition:

14.3.1. Each deployment of SAP BusinessObjects Business Intelligence, Edge edition has maximum limits of 100 named users and 50 Concurrent Sessions on a single server.

14.3.2. Certain functions of SAP BusinessObjects Business Intelligence, Edge edition are only supported with a User license metric, not with a Concurrent Session license (refer to “Concurrent Session Limitations” in Section 10.1.8). The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

14.4 SAP BW/4HANA

includes the following Runtime Software: SAP Landscape Transformation, enterprise edition.

15. SAP CRYSTAL

15.1 Use Rights for All SAP Crystal Products

15.1.1 Definitions

15.1.1.1 “**SAP Crystal Software**” is defined to be the following products: SAP Crystal Reports, SAP Crystal Server, SAP Crystal Reports Server and SAP Crystal Dashboard Design

15.1.1.2 “**Desktop SAP Crystal software**” is defined to be all SAP Crystal products except for SAP Crystal Server and SAP Crystal Reports Server.

15.1.1.3 “**Connected Presentation**” means any SWF file created with SAP Crystal Dashboard Design that refresh, publish, push or otherwise change data contained in such SWF file (or SWF file exported to other supported file formats (e.g., PDF, AIR, PPT)),

15.1.2 **SAP Crystal Software Usage** Customer may use SAP Crystal software to deliver training and consulting services for such SAP Crystal software, provided that each individual

receiving the benefits of the training or consulting services has acquired a license separately to use the applicable SAP Crystal Software.

15.1.3 Desktop SAP Crystal Software Usage: With the exception of Connected Presentations, and subject to Section 7.2.8, Customer may distribute the output files (e.g. PDF, SWF, XLF, WID or RPT file format) generated by the Desktop SAP Crystal software to third parties provided that Customer complies with the following requirements:

- a) the output files reside outside of the Software and do not Use the Software;
- b) Customer remains solely responsible for support, technical or other assistance, required or requested by anyone receiving such output files;
- c) Customer does not use the name, logo, or trademark of Licensor, or the Software, without prior written permission from SAP;
- d) Customer will defend, indemnify and hold SAP harmless against any claims or liabilities arising out of the use, reproduction or distribution of output files;
- e) Customer shall secure the end user's ("End User") consent to terms substantially similar to the terms set forth in Section 15.2.7.

15.1.4. Training Workstation License for Desktop SAP Crystal software: When Desktop SAP Crystal software is used on a workstation that is used exclusively for training, the license applies to the workstation and not the named user using the Software. 1 license is required per training workstation.

15.1.5. Use of Screenshots and wordmarks for SAP Crystal software. Customer may reproduce and distribute screen shots and wordmarks for SAP Crystal software in documents or media provided that:

- a) The document or media isn't for commercial training material or third party training material and/or for-profit training material.
- b) Customer's use may not be obscene or pornographic, and Customer may not be disparaging, defamatory, or libelous to SAP, any of its software, or any other person or entity.
- c) Customer's use may not directly or indirectly imply SAP sponsorship, affiliation, or endorsement of Customer's product or service.
- d) Customer may not use the screen shot in a comparative advertisement
- e) Customer may not alter the screen shot in any way except to resize or crop the screen shot.
- f) Customer may not include portions of a screen shot in other product user interface.
- g) Customer may not use screen shots that contain third-party content unless Customer has obtained the express permission from the third-party.
- h) Customer must include the following copyright attribution statement: "SAP product screen shot(s) reprinted with permission from SAP."
- i) If Customer's use includes references to a SAP Software, Customer must use the full name of the Software.
- j) Customer may not use a screen shot that contains an image of an identifiable individual unless Customer has obtained permission from the individual.

15.2 SAP Crystal Reports runtime product

15.2.1 Scope:

This section applies to the runtime product included in SAP Crystal Reports 2008, Crystal Reports XI, SAP Crystal Reports for Visual Studio 2010, and SAP Crystal Reports for Eclipse.

15.2.2 Definitions:

15.2.2.1 **“Client Application”** means an application developed by Customer that a) utilizes the Runtime Product, b) is installed fully on an end user’s machine, with all report processing local to that machine, and c) adds significant and primary functionality to the Runtime Product.

15.2.2.2 **“Internal Installation”** or **“Internally Install”** means installing into production Client Applications and/or Server Applications on 1 or more computers within Customer’s company or organization only in connection with Customer’s internal business purposes.

15.2.2.3 **“Distribution”** or **“Distribute”** means selling, leasing, licensing or redistributing Client Applications and/or Server Applications to third party end users external to Customer’s company or organization.

15.2.2.4 **“Runtime Product”** means the version specific files and application program interfaces (APIs) specified in the RUNTIME.TXT file provided with SAP Crystal Reports 2008, SAP Crystal Reports for Eclipse 2.0, and SAP Crystal Reports for Visual Studio 2010.

15.2.2.5 **“Server Application”** means an application developed by Customer that a) utilizes the Runtime Product, b) allows more than 1 user to Use the Runtime Product through any middle tier application(s), and c) adds significant and primary functionality to the Runtime Product. A Client Application installed in a Windows terminal server environment (e.g. Citrix or Microsoft Remote Desktop Platform) is a Server Application.

15.2.3 Usage

Customer may install and use a single copy of the Runtime Product to develop Client Applications and Server Applications. The Distribution and Internal Installation terms and conditions differ based on the type of applications Customer develops, as described in the following sections.

15.2.4 Internal Installation of Client Applications and Server Applications:

Licensor grants Customer a personal, nonexclusive, limited license to Internally Install the Runtime Product with Client Applications and Server Applications.

15.2.5 Distribution of Client Applications:

Subject to Customer’s compliance with all of the terms herein, including without limitation section 15.2.7, Licensor grants Customer a personal, nonexclusive, limited license to Distribute Client Applications.

15.2.6 Distribution of Server Applications:

Subject to Customer’s compliance with all of the terms herein, including without limitation section 15.2.7, Licensor grants Customer a personal, nonexclusive limited license to Distribute Server Applications to third parties provided that the Customer has acquired a

licensed copy of Crystal Reports for each Deployment of a Server Application that is Distributed, and the version of the Runtime Product utilized by such Server Application is the same version as Customer's licensed copy of Crystal Reports.

15.2.7 Runtime Product Distribution Requirements

If Customer distributes the Runtime Product to third parties pursuant to sections 15.2.5 or 15.2.6, Customer shall comply with the following requirements:

- a) Customer remains solely responsible for support, service, upgrades, and technical or other assistance, required or requested by anyone receiving such Runtime Product copies or sample applications;
- b) Customer does not use the name, logo, or trademark of Licensor, or the Software, without prior written permission from SAP;
- c) Customer will defend, indemnify and hold SAP harmless against any claims or liabilities arising out of the use, reproduction or distribution of Runtime Product or the associated application;
- d) Customer shall not distribute the Runtime Product with any general-purpose report writing, data analysis or report delivery product or any other product that performs the same or similar functions as SAP's product offerings; and
- e) Customer shall secure the end user's ("End User") consent to terms substantially similar to the following:
 - i. End User agrees not to modify, disassemble, decompile, translate, adapt or reverse-engineer the Runtime Product or the report file (.RPT) format;
 - ii. End User agrees not to distribute the Runtime Product to any third party or use the Runtime Product on a rental or timesharing basis or to operate a service bureau facility for the benefit of third-parties;
 - iii. End User agrees not to use the Runtime Product to create for distribution a product that is generally competitive with SAP's product offerings;
 - iv. End User agrees not to use the Runtime Product to create for distribution a product that converts the report file (.RPT) format to an alternative report file format used by any general-purpose report writing, data analysis or report delivery product that is not the property of SAP;

15.2.8 SAP AND ITS SUPPLIERS DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NONINFRINGEMENT OF THIRD PARTY RIGHTS. SAP AND ITS SUPPLIERS SHALL HAVE NO LIABILITY WHATSOEVER FOR ANY DIRECT, INDIRECT, CONSEQUENTIAL, INCIDENTAL, PUNITIVE, COVER OR OTHER DAMAGES ARISING UNDER THIS SOFTWARE AGREEMENT OR IN CONNECTION WITH THE APPLICATION OR RUNTIME PRODUCT.

15.3 SAP Crystal Server

15.3.1 Scope:

This section applies to SAP Crystal Reports Server and SAP Crystal Server. Throughout this section, the term 'SAP Crystal Server' shall be defined to include both products.

15.3.2 Usage:

SAP Crystal Reports which contain SWF files created by SAP Crystal Dashboard Design that access data exclusively with the Crystal Reports connector can be viewed by users with either User or CAL licenses. Customer may use SAP Crystal Server's mobile features or functionalities.

15.3.3 Restrictions:

For each Deployment, SAP Crystal Server may be installed and used only on a single Server. Customer may not attempt to cluster the system across multiple live Servers. Customer cannot use SAP Crystal Server to access data in SAP applications with the exception of SAP Business One.

The following content can only be viewed using User licenses:

- SAP Crystal Reports
- SAP Crystal Dashboard Design (SAP Crystal Server 2016 only)
- SAP BusinessObjects Explorer (SAP Crystal Server 2011 and 2016 only)

15.3.3.2 The following content can only be viewed using CSBL licenses:

- SAP Crystal Reports
- SAP Crystal Dashboard Design (SAP Crystal Server 2016 only)
- SAP BusinessObjects Explorer (SAP Crystal Server 2016 only)

15.3.3.3 The following integration kits are not licensed for use with SAP Crystal Server:

- SAP BusinessObjects Integration for PeopleSoft Enterprise
- SAP BusinessObjects Integration for JDE EnterpriseOne
- SAP BusinessObjects Integration for Siebel
- SAP BusinessObjects Integration for Oracle E-Business Suite
- SAP BusinessObjects Integration for SAP

15.3.3.4 The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of connecting data accessed via SAP BusinessObjects semantic layers or documents with third party products is prohibited without the written consent of SAP. The use of any SAP BusinessObjects BI SDK in any commercial software product for the purposes of converting SAP BusinessObjects content or metadata to third party products is not allowed.

15.4 SAP Crystal Reports Server OEM Embedded:

SAP Crystal Reports Server OEM Embedded ("CRSE") may only be installed and used on a single Server whether the Software is licensed on a User or Server basis. Customer may not attempt to cluster the system across multiple live Servers. Customer cannot use CRSE to access data in SAP applications.

Supplementary Products

16. DIRECTORIES

16.1 Additional license conditions:

Following are additional license conditions for content/reference data (address data, geo data etc.) provided in Data Quality and Data Services products ("Directories")

- 16.1.1 Directories, any related documentation and any intellectual property rights therein at all times remain the property of SAP and its third party suppliers (as the case may be);
- 16.1.2 Customer's are not permitted to resell the data. Directories shall not be used within a service bureau environment. In selected cases, the use by an affiliate will require a separate license (see all specific directory restrictions in the "Pass Through Terms for Directories" attached hereto as Exhibit 5 which constitute a part of the terms and conditions of Customer's use of such Directories).
- 16.1.3 Directories may only be used together with the SAP Data Quality and/or Data Services Products; a perpetual license for the SAP Data Quality and Data Services Products is a prerequisite for using Directories";
- 16.1.4 Directories may not be used for creating a mailing list, database or other derivative work but may be used to cleanse an existing mailing list or database of an End User;
- 16.1.5 Directories will be updated from time to time: only the current version of an Directory may be used;
- 16.1.6 SAP may use a software utility mechanism in Directories that imposes time limitations to prevent the use of outdated Directories;
- 16.1.7 SAP's third party suppliers shall have no liability to End User or any third party as a result of End User's use of the Directories or any services you receive related to the use of the Directories;
- 16.1.8 Content updates will not be provided by SAP hereunder, except to the extent the Directories' third party supplier(s) makes content updates available to SAP, no content updates will be provided by SAP hereunder. In no case shall any SAP maintenance or support be provided for the Directories licensed herein.
- 16.1.9 A third-party supplier for Directories may elect to terminate SAP's right to distribute Directories or to provide updates during the term of your subscription, in which case Customer's sole remedy will be to receive a refund of fees for the portion of the subscription for which Customer is unable to use such Directories, unless otherwise stated in the Pass-Through Terms.
- 16.1.10 Directories may only be leveraged during the term in which they are licensed.

16.2. Licensing Information:

- 16.2.1 Directories are sold on an annual subscription model basis, therefore no annual maintenance fee is to be charged and, except to the extent the Directories content source makes content updates available to SAP, no SAP maintenance or support is provided for these products.

- 16.2.2 Subscription fees may include charges from domestic or international postal authorities or other data providers.
- 16.2.3 The Initial Term of this shall be 12 calendar months from the Effective Date of the “Initial Term”.
- 16.2.4 Automatic renewals occur on an annual basis, subject to availability of the licensed Directory on the then current SAP List of Prices and Conditions. Automatic renewals will be processed and invoiced according to the then current pricing and terms. After the Initial Term, this subscription license may be terminated by either party with 90 days written notice prior to the start of the following Renewal Term. Any termination must be in writing to the affected party and will be effective at the end of the then-current Initial/Renewal Term during which the termination notice is received by SAP.
- 16.2.5 If an End User chooses not to renew their annual subscription for any Directory, then they must cease use of the Directory at the end of the Term. All copies of the Directories must be deleted and removed from productive use with SAP Data Quality solutions.
- 16.2.6 Vendor Required Documentation and SAP Directory Questionnaires: SAP’s third-party data providers have robust and strict licensing models that require SAP to validate End User use cases and terms, as well as to provide proof of such validation during annual audits of SAP by these vendors. Therefore, for some Directories, including but not limited to UK and Australia Address Directories, SAP requires End Users to complete a Questionnaire prior to licensing the correct Directory options. The Questionnaires include country and licensing-model specific questions, and must be completed and submitted to SAP annually, for the purpose of record-keeping and storage by SAP Legal and may be reviewed (in redacted and anonymized form) by data vendors during audits. SAP Account Executives can provide Questionnaires to End Users. SAP cannot license customers, nor complete the renewal of their annual Directory subscriptions without these valid completed Questionnaires.

16.3 Limitation of liability:

In no event shall SAP’s total liability for damages of any kind or nature in any way arising from or related to the licensed Directories exceed an amount equal to the annual Subscription Fee paid in the (12) month period prior to the date of the claim.

17. Database And Technology Portfolio Products (Excluding HANA)

Earlier Versions

Product versions marked as “Earlier Versions” on SAP Service Marketplace may only be downloaded and/or used by Customer’s who are or previously were Sybase Customer and who have or previously had licensed the particular earlier version of software that they wish to download and/or use.

17.1 SAP ASE Runtime Edition:

("ASE") is a runtime database licensed for use by individuals solely in conjunction with their use of applicable Software and/or Third Party Software licensed by Customer from SAP. NetWeaver-based third party add-on’s can be run under applicable SAP NetWeaver Foundation for Third Party Applications license. SAP ASE runtime database includes a limited runtime license of MaxDB database, subject to these provisions. For purposes of

clarification, see the applicable Software and/or Third Party Software Documentation for information regarding release(s) / version(s) supported on the SAP ASE and MaxDB runtime database. SAP ASE runtime database includes replication functionality to be used solely for disaster recovery purposes.

17.2 SAP Adaptive Server Platform

The total number of Cores licensed represents the maximum total cumulative Cores on which all of the Software included in SAP Adaptive Server Platform ("ASP") may be installed and Used. SAP ASP includes the following Software: SAP Adaptive Server Enterprise ("**SAP ASE**"), SAP IQ, and SAP Replication Server.

17.3. SAP PowerDesigner DataArchitect, Edge edition and SAP PowerDesigner EnterpriseArchitect

Includes SAP SQL Anywhere database, which may only be Used as the metadata repository for PowerDesigner (where licensed) and for SQL language parsing.

17.4 SAP Data Intelligence

includes a runtime license of SAP Landscape Transformation Replication Server ("SAP SLT"). Use of SAP SLT is limited solely for replication scenarios into SAP Data Intelligence and to enabling data integration between SAP Business Suite applications and SAP Data Intelligence.

18. SAP MOBILE

18.1. Earlier Version:

Product versions marked as "Earlier Versions" on SAP Service Marketplace may only be downloaded and/or used by Customer's who are or previously were Sybase customers and who have or previously had licensed the particular earlier version of software that they wish to download and/or use.

18.2. Mobile enabled:

SAP Software that is mobile enabled may require an additional component downloaded from a third party mobile application store.

18.3. The SAP Enterprise Integration for Mobile Apps Software:

may require an additional component downloaded from a third party mobile application store. Each additional component is subject to its respective license agreement. The licensed SAP Enterprise Integration for Mobile Apps includes usage of mobile platform components for use with the Package.

19. SAP HANA

19.1. Definitions:

19.1.1 "Data Sources"

means any software product(s) and/or database instance(s) for which Customer has secured an appropriate license.

19.2 SAP HANA, enterprise edition:

19.2.1 may be Used with an unlimited number of Data Sources, and such Use is subject to the applicable Licensed Level. SAP HANA enterprise edition includes the following Runtime Software:

- a) SAP HANA Operation Process Intelligence
- b) SAP HANA Data Warehousing Foundation
- c) SAP HANA , information management option
- d) SAP HANA , data replication option
- e) SAP HANA , data privacy option
- f) SAP HANA spatial and graph option
- g) SAP HANA predictive option
- h) SAP HANA search and text option
- i) SAP HANA , streaming analytics option
- j) SAP NetWeaver OpenHub
- k) SAP OpenHub for S/4HANA
- l) SAP HANA native storage extension (Use of HANA Native Storage Extension Buffer Cache component is subject to the applicable Licensed Level)
- m) SAP ASE and MaxDB databases
- n) SAP Near-line storage for SAP BW and SAP BW/4HANA
- o) SAP Business Warehouse Accelerator
- p) SAP IQ database

19.2.2 Customer may use Smart Data Access to query data from any data sources, provided that Customer's license for SAP HANA enterprise edition has been appropriately sized for all such data that is queried and joined with other data sources via Smart Data Access. Named User licenses will not be required solely for the one way read-only Smart Data Access to SAP Software and/or Third Party Software.

19.2.3 SAP ASE and Max DB databases are runtime databases limited solely for Use in conjunction with Customer's Use of Software and/or Third Party Software, and solely to the extent such Software components are licensed by Customer in accordance with the terms herein. The total number of Cores across all machines on which SAP ASE database may be installed and Used must not exceed 1 Core per 64GB of memory in the HANA system. ASE runtime database includes replication functionality to be used solely for disaster recovery purposes.

19.2.4 SAP IQ database is a runtime database. Use of SAP IQ database is limited to 1 Core per 256GB of memory in the HANA Customer system Customer Use SAP IQ is limited to access by and through SAP HANA , enterprise edition.

19.2.5 Use of SAP HANA Spatial Engine is also governed by the HERE MAP DATA BY HERE directory terms, which can be located in Section 7 of Exhibit 5 to Schedule 3 of Part 2 of this document.

19.3 **Deploying multiple SAP HANA tenants:**

If Customer has licensed more than 1 SAP HANA edition, then each SAP HANA edition license type may only be deployed in its own unique HANA tenant database within a

HANA system. Use of System Database and Cockpit tenants on a HANA system is limited solely to administration tasks.

19.4 SAP HANA, runtime Edition for SAP NetWeaver BW ("HANA Runtime for BW") licensed by HANA SAP Application Value:

HANA Runtime for BW is a database licensed solely to support Customer's Use of SAP Business Warehouse (SAP BW) and Use is limited to communications between SAP BW and HANA Runtime for BW.

The HANA Runtime for BW license includes the following Runtime Software:

- a) SAP HANA Platform;
- b) SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- c) SAP Business Warehouse Accelerator;
- d) SAP Near-line storage for SAP BW (NLS for BW);
- e) SAP HANA Rules Framework;
- f) SAP HANA native storage extension.

19.4.2 HANA Runtime for BW may support an unlimited number of Data Sources and unlimited use of SAP Business Warehouse Accelerator, subject to the applicable Licensed Level. SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the SAP BW instance. All reporting must be performed via the SAP BW Software or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP BI tools or non-SAP BI tools that are certified by SAP, as set forth on https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#!/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020.

19.4.3 NLS for BW includes a runtime license of: SAP IQ solely for Use with SAP BW.

19.4.4 All data modeling, loading, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA Runtime for BW must be performed via SAP BW Software.

19.4.5 Customer may export data, using licensed SAP tools, solely to be used within 1 or more of the following:

- a) SAP HANA, enterprise edition
- b) SAP HANA, standard edition
- c) SAP Cloud Platform, SAP HANA service
- d) SAP HANA Cloud
- e) SAP Datasphere

19.4.6 In the event that Customer's additional licensing of SAP Software or Third Party Software changes the HANA SAP Application Value, Customer shall be obliged to license the respective additional quantity of HANA Runtime for BW.

19.5 SAP HANA, Limited Runtime edition for Applications HANA Apps Only ("Limited HANA Runtime"):

is licensed solely for Use with any of the Customer's SAP HANA Related Apps below, and solely to the extent such SAP HANA Related Apps are licensed by Customer in accordance with the terms herein. SAP HANA Related Apps may be used with an appropriately licensed SAP Business Warehouse (BW) instance. Use of BW is limited to the context of the SAP HANA Related App for reporting and analysis.

19.5.1 SAP HANA Related Apps:

- a) SAP Advanced Trade Management Analytics, version for SAP BW/4HANA
- b) SAP Customer Business Planning, version for SAP BW/4HANA
- c) SAP Trade Promotion Planning and Management, version for SAP BW/4HANA
- d) SAP Innovation Management
- e) SAP Intelligent Business Operations bundle
- f) SAP Demand Signal Management, version for SAP BW/4HANA
- g) SAP Enterprise Threat Detection
- h) SAP Customer Activity Repository
- i) SAP Allocation Management , add-on for SAP Customer Activity Repository
- j) SAP Assortment Planning, add-on for SAP Customer Activity Repository
- k) SAP Merchandise Planning, add-on for SAP Customer Activity Repository
- l) SAP Promotion Management, add-on for SAP Customer Activity Repository
- m) SAP Tax Declaration Framework for Brazil
- n) SAP Loss Prevention by Fujitsu
- o) SAP Audit Management
- p) SAP Product Lifecycle Costing
- q) SAP Tax Compliance
- r) SAP Business Partner Screening
- s) SAP Transportation Resource Planning
- t) SAP Transportation Resource Planning for T&L
- u) SAP Tax Intelligence and Management by All Tax, IRPJ CSLL ISS Trabalhista
- v) SAP Sales Insights for Retail
- w) retail promotion analyzer

19.5.2 Runtime Software Rights. The Limited HANA Runtime license includes the following Runtime Software:

- a) SAP HANA Platform;
- b) SAP Data Integrator ("DI");
- c) SAP Smart Data Integration ("SDI");
- d) SAP Landscape Transformation replication server ("SLT");
- e) SAP ASE and MaxDB databases;
- f) SAP HANA Warehousing Foundation (limited) solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- g) SAP Business Warehouse Accelerator;

- h) SAP Near-line storage for SAP BW (NLS for BW)
- i) SAP HANA Rules Framework
- j) SAP HANA, data privacy option.
- k) SAP HANA predictive option;
- l) SAP HANA spatial and graph option;
- m) SAP HANA search and text option;
- n) SAP HANA Smart Data Quality ("SDQ");
- o) SAP HANA native storage extension.

19.5.3 SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in Limited HANA Runtime must be performed via the SAP HANA Related Apps. Use of DI, SDI and SLT is limited solely to loading data into Limited HANA Runtime or SAP HANA Related Apps. Data may be loaded from an appropriately licensed Data Source via DI, SDI or SLT or via SAP HANA Related App interfaces. SDI may also be used with Smart Data Access in a data federation scenario. Notwithstanding anything to the contrary, SAP HANA Related Apps is not allowed to distribute data from tables residing in Limited HANA Runtime licensed for other Software.

19.5.4 Customer may export data, using licensed SAP tools, solely to be used within 1 or more of the following:

- a) SAP HANA, enterprise edition
- b) SAP HANA, standard edition
- c) SAP Cloud Platform, SAP HANA service
- d) SAP HANA Cloud
- e) SAP Datasphere

19.5.5 Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the Limited HANA Runtime database instance. All reporting must be performed via the SAP HANA Related App or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP BI tools or non-SAP BI tools that are certified by SAP, as set forth on

https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020.

19.5.6 NLS for BW includes a runtime license of SAP IQ solely for Use with SAP BW.

19.5.7 **SAP BusinessObjects Enterprise and SAP Business Intelligence on Limited HANA Runtime:**

When used as a runtime database for SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence, Limited HANA Runtime may be used

- a) as a database for the Central Management Server (CMS) repository,
- b) as an audit database for the BI Platform, and
- c) as a platform by the SAP BusinessObjects Design Studio runtime for SAP HANA component.

- 19.5.8 ASE runtime database includes replication functionality to be used solely for disaster recovery purposes.
- 19.5.9 The license fee Limited HANA Runtime is calculated on the basis of the HANA SAP Application Value for Customer's. Customer shall pay additional license fees for Limited HANA Runtime in the event Customer's HANA SAP Application Value for the SAP HANA Related Apps increases.
- 19.5.10 Customer acknowledges that Customer may have to install a Limited HANA Runtime-compatible release of the HANA Related App in order to enable certain business functions or provide configuration as described above. Future releases of Limited HANA Runtime developed for Use with SAP HANA Related Apps may not be compatible with current releases and may not be available via the respective SAP Support offering. Technical migration from SAP HANA Related Apps to another release of the SAP HANA Related App to be used separately from Limited HANA Runtime database and/or to another database offering may not be possible.
- 19.6 SAP HANA data privacy option:**
- Use is limited solely to the SAP HANA Data Masking Engine, SAP HANA Data Anonymization Engine, Column Encryption, and Shared SAP Business Application Authorizations.
- 19.7 SAP HANA information management option:**
- Includes SAP HANA Smart Data Integration and Smart Data Quality.
- 19.8 SAP HANA predictive option:**
- Use is limited solely to the HANA PAL/R engine, Automated Predictive Library (APL) and TensorFlow integration.
- 19.9 SAP HANA data replication option:**
- Includes the following Runtime Software: SAP Data Integrator, SAP Landscape Transformation Replication Server ("SLT"), and SAP SQL Anywhere Advanced Edition. Use of such Runtime Software shall be limited solely to extracting data from Data Sources into SAP HANA or between multiple HANA database instances. Use of SAP SQL Anywhere Advanced Edition shall be limited solely to exchanging data between Data Sources and SAP HANA.
- 19.10 SAP HANA search and text option:**
- Use is limited solely to the SAP HANA Search Engine and Text Analysis Engine.
- 19.11 SAP HANA spatial and graph option:**
- Use is limited solely to the SAP HANA Spatial Engine and Graph Engine. Use of SAP HANA Spatial Engine is also governed by the 7 MAP DATA BY HERE directory terms, which can be located in Section 7 of Exhibit 5 to Schedule 3 of Part 2 of this document.
- 19.12 SAP HANA streaming analytics option:**
- The total number of cores across all machines on which SAP HANA Streaming Analytics may be installed and Used must not exceed 8 cores per 64GB of memory in the HANA system. Streaming Lite is included and can be integrated with SAP HANA Streaming Analytics project.

19.13 **SAP HANA , active/active read-enabled option:**

SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario. Customer must license an equal number of SAP HANA active/active read-enabled units to correspond to the number of SAP HANA units associated with the primary SAP HANA instance.

19.14 **SAP HANA, active/active read-enabled option for HANA runtime:**

SAP HANA use is limited to read operations only on the secondary, in SAP HANA system replication scenario. Customer shall pay additional license fees for SAP HANA active/active read-enabled option for HANA runtime in the event Customer's HANA SAP Application Value increases.

19.15 **SAP Near-line storage for SAP BW and SAP BW/4 HANA:**

SAP Near-line storage for SAP BW and SAP BW/4 HANA includes a runtime license of SAP IQ. Use of SAP IQ is limited to a maximum of 32 cores, solely for Use with SAP BW or SAP BW/4 HANA. This runtime license of SAP IQ is also available for Use as a cold store for data tiering optimization in SAP BW/4HANA.

19.16 **SAP HANA runtime edition for applications and SAP BW licensed by HANA SAP Application Value:**

SAP HANA runtime edition for applications and SAP BW is a runtime database ("HANA REAB") licensed for Use in conjunction with Customer's Use of Software and/or Third Party Software, and solely to the extent such Software components are licensed by Customer ("HANA REAB Supported Software") in accordance with the terms herein.

19.16.1 **REAB Runtime Software Rights:**

The HANA REAB license includes the following Runtime Software:

- a) SAP HANA Platform;
- b) SAP Data Integrator ("DI");
- c) SAP Smart Data Integration ("SDI");
- d) SAP Landscape Transformation replication server ("SLT");
- e) SAP ASE and MaxDB databases;
- f) SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- g) SAP Business Warehouse Accelerator;
- h) SAP Near-line storage for SAP BW and SAP BW/4HANA;
- i) SAP HANA Rules Framework;
- j) SAP HANA data privacy option.
- k) SAP HANA predictive option;
- l) SAP HANA spatial and graph option;
- m) SAP HANA search and text option;
- n) SAP HANA Smart Data Quality ("SDQ");
- o) SAP HANA native storage extension.

19.16.2 SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA REAB must be performed via the HANA REAB Supported Software. Use of DI, SDI and SLT is limited solely to loading data into HANA REAB or HANA REAB Supported Software. Data may be loaded from an appropriately licensed Data Source via DI, SDI or SLT or via HANA REAB Supported Software interfaces. SDI may also be used with Smart Data Access in a data federation scenario. Notwithstanding anything to the contrary, HANA REAB Supported Software is not allowed to distribute data from tables residing in HANA REAB licensed for other Software. For example, SAP Data Services licensed with HANA REAB is not allowed to distribute data from HANA REAB licensed for SAP S/4HANA

19.16.3 Customer may export data, using licensed SAP tools, solely to be used within 1 or more of the following:

- a) SAP HANA, enterprise edition
- b) SAP HANA, standard edition
- c) SAP Cloud Platform, SAP HANA service
- d) SAP HANA Cloud
- e) SAP Datasphere

19.16.4 Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the HANA REAB database instance. All reporting must be performed via the HANA REAB Supported Software or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP BI tools or non-SAP BI tools that are certified by SAP, as set forth on

https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020.

19.16.5 **SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence on REAB:** When used as a runtime database for SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence, HANA REAB may be used:

- a) as a database for the Central Management Server (CMS) repository,
- b) as an audit database for the BI Platform, and
- c) as a platform by the SAP BusinessObjects Design Studio runtime for SAP HANA component.

19.16.6 ASE runtime database includes replication functionality to be used solely for disaster recovery purposes.

19.16.7 The license fee for HANA REAB is calculated on the basis of the HANA SAP Application Value for Customer's HANA REAB Supported Software. Customer shall pay additional license fees for HANA REAB in the event Customer's HANA SAP Application Value increases.

19.16.8 SAP points out that Customer may have to install a HANA REAB-compatible release of the HANA REAB Supported Software in order to enable certain business functions or provide configuration as described above. Future releases of HANA REAB developed for

Use with HANA REAB Supported Software may not be compatible with current releases and may not be available via the respective SAP Support offering. Technical migration from HANA REAB Supported Software to another release of the Software and/or Third Party Software as used separately from HANA REAB and/or to another database offering may not be possible.

19.17 SAP HANA runtime edition for applications and SAP BW-Partial licensed by HANA SAP Application Value (“HANA REAB-Partial”):

The license fee for HANA REAB-Partial is calculated on the basis of the HANA SAP Application Value for Customer’s HANA REAB Supported Software (defined below).

19.17.1 HANA REAB-Partial licensed for Use in conjunction with Customer’s Use of Software and/or Third Party Software, and solely to the extent such Software components are licensed by Customer (“HANA REAB Supported Software”) in accordance with the terms herein.

19.17.2 HANA REAB- Partial Runtime Software Rights. The HANA REAB-Partial license includes the following Runtime Software:

- a) SAP HANA Platform;
- b) SAP Data Integrator (“DI”);
- c) SAP Smart Data Integration (“SDI”);
- d) SAP Landscape Transformation replication server (“SLT”);
- e) SAP ASE and MaxDB databases;
- f) SAP HANA Data Warehousing Foundation (limited solely to Data Distribution Optimizer and Data Lifecycle Manager components);
- g) SAP Business Warehouse Accelerator;
- h) SAP Near-line storage for SAP BW and SAP BW/4HANA;
- i) SAP HANA Rules Framework;
- j) SAP HANA data privacy option.
- k) SAP HANA predictive option;
- l) SAP HANA spatial and graph option;
- m) SAP HANA search and text option;
- n) SAP HANA Smart Data Quality (“SDQ”);
- o) SAP HANA native storage extension.

19.17.3 SAP HANA Platform includes the HANA Studio, Cockpit and Web IDE components. All data modeling, distribution, creation and extension of data structures, including tables and virtual tables via Smart Data Access used in HANA REAB-Partial must be performed via the HANA REAB Supported Software. Use of DI, SDI and SLT is limited solely to loading data into HANA REAB-Partial or HANA REAB Supported Software. Data may be loaded from an appropriately licensed Data Source via DI, SDI or SLT or via HANA REAB Supported Software interfaces. SDI may also be used with Smart Data Access in a data federation scenario. Notwithstanding anything to the contrary, HANA REAB Supported Software is not allowed to distribute data from tables residing in HANA REAB-Partial licensed for other Software. For example, SAP Data Services licensed with HANA REAB-

Partial is not allowed to distribute data from HANA REAB-Partial licensed for SAP S/4HANA.

19.17.4 Customer may export data, using licensed SAP tools, solely to be used within one or more of the following:

- a) SAP HANA, enterprise edition
- b) SAP HANA, standard edition
- c) SAP Cloud Platform, SAP HANA service
- d) SAP HANA Cloud
- e) SAP Datasphere

19.17.5 Use of the SAP HANA Studio, Cockpit and Web IDE components is limited solely to administering, monitoring and creating custom views for the HANA REAB-Partial database instance. All reporting must be performed via the HANA REAB Supported Software or via custom views created using HANA Studio or Web IDE. Such custom views may be accessed by SAP BI tools or non-SAP BI tools, that are certified by SAP, as set forth on

https://www.sap.com/dmc/exp/2013_09_adpd/enEN/#/solutions?filters=v:326;v:405;v:352;v:86a26c34-126d-4a6d-a3c5-6c73deca1020

19.17.6 **SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence on REAB-Partial:**

When used as a runtime database for SAP BusinessObjects Enterprise and SAP BusinessObjects Business Intelligence, HANA REAB-Partial may be used

- a) as a database for the Central Management Server (CMS) repository,
- b) as an audit database for the BI Platform,
- c) as a platform by the SAP BusinessObjects Design Studio runtime for SAP HANA component.

19.17.7 ASE runtime database includes replication functionality to be used solely for disaster recovery purposes.

19.17.8 Customer may have to install a HANA REAB-Partial-compatible release of the HANA REAB Supported Software in order to enable certain business functions or provide configuration as described above. Future releases of HANA REAB-Partial developed for Use with HANA REAB Supported Software may not be compatible with current releases and may not be available via the respective SAP Support offering. Technical migration from HANA REAB Supported Software to another release of the Software and/or Third Party Software as used separately from HANA REAB-Partial and/or to another database offering may not be possible.

19.18 **Terms of use for Twitter API contained within SAP HANA, enterprise edition; SAP HANA, runtime edition for applications and SAP BW; and SAP HANA, information management option:**

The following shall apply to SAP HANA, enterprise edition; SAP HANA, runtime edition for applications and SAP BW; and SAP HANA, information management option: Use of the

Twitter API is subject to the Third Party Web Service terms contained in Part 2, Section 0 subsection 2.8 of these Use Terms.

19.19 **SAP HANA Cold Data Tiering:**

Includes SAP Data Intelligence components which may solely be used for SAP HANA cold data tiering scenarios. Use is limited to data transfers between SAP HANA and SAP Data Intelligence distributed runtime (Vora) or Vora supported sources. Access and querying of cold tiered data is allowed via the primary HANA system only.

19.20 **SAP HANA Client Software:**

Customer may market and sublicense the HANA Client Software only for use in conjunction with Customer's own products. Any Third Party Products contained in or provided with the HANA Client Software may only be used as part of the HANA Client Software. Customer must not charge any third party a fee or any other form of consideration for access to, or use of, the HANA Client Software. Customer may not install files, as set forth at <https://wiki.scn.sap.com/wiki/display/SAPHANA/SAP+HANA+Client+redistributable+files>, into the HANA Client Software default install path.

20 **Focused Business Solutions.**

Special support: If licensed Software is identified as a Focused Business Solution ("FBS Software"), special support strategy and conditions apply. SAP Support for FBS Software shall be provided in accordance with the applicable SAP Support terms as amended by the then current support strategy and conditions found at <https://support.sap.com/fbs> (inclusive of any successor site(s) made known by SAP, the "Strategy & Conditions Site").

Strategy & Conditions Site: The Strategy & Conditions Site is hereby amended to include the following terms:

12.2.1 FBS Software requires, as a prerequisite to its Use and installation, a specific version (e.g. release, service level pack, and/or enhancement pack) of certain SAP Software (the "Base Software"), which is identified on the Strategy & Conditions Site and must be separately licensed and installed by Customer.

12.2.2 In the future, should SAP elect, in its sole and exclusive discretion, to make new release(s) of FBS Software commercially available as part of SAP Support, such new release(s) may (a) differ functionally, (b) have different supported language(s) and/or (c) have different Base Software requirements from prior FBS Software release(s).

12.2.3 Mainstream and extended maintenance dates for FBS Software are targets, and therefore subject to change by SAP.

12.2.4 In no event will maintenance or extended maintenance for any FBS Software release be provided following the expiration or termination of mainstream or extended (as applicable) maintenance on the underlying Base Software.

21 **Repeatable Custom Solution ("RCS") Software.**

Prerequisite to use: The RCS requires, as a prerequisite to its Use and installation, a specific version (such as release, service level pack, and/or enhancement pack) of certain SAP Software (the "Base Software") which is identified by SAP, along with specific Use conditions under <https://support.sap.com/rcs> (the "RCS Strategy & Conditions Site") and/or the Documentation. Special support strategy and conditions apply for RCS Software. SAP and Customer agree that Support for RCS Software shall be provided as

set forth in the applicable SAP Product Specific Support Schedule for RCS found at the RCS Strategy & Conditions site.

Not standard software: RCS is not SAP standard software and in its current state a RCS may not meet all SAP standards including but not limited to language or country version, available version, supported operating systems, or database. Customer must fully test the RCS before using it in live operation. The standard language in which the RCS and its Documentation will be provided is English. SAP reserves the right to release individual versions of the RCS or its Documentation in additional languages. SAP has no obligation to transfer any functionality licensed under this agreement into SAP's standard software, nor shall SAP be obliged to make the RCS compatible with new releases or versions of the Base Software.

EXHIBIT 4 - PASS THROUGH TERMS FOR THIRD PARTY DATABASES

SAP may deliver SAP software containing a database product where the end user is not entitled to use the database unless he/she has acquired the requisite number of licenses from the database vendor or its authorized distributor. Such deliveries are reported to the database vendor.

Conditions for the use of ORACLE® Database Software when licensed from SAP

1. COPYRIGHT

- 1.1. The comprehensive copyright to Oracle software is the sole property of the Oracle Corporation, Redwood Shores, CA, USA.
- 1.2. Third party database applications for system administration, monitoring and management may directly access the Oracle database.
- 1.3. The customer shall only use the Oracle software in connection with the SAP Software and only for the purposes of its own internal data processing which includes access of third party user such as contractor, supply chain vendor or supplier, customer, or third party individual authorized by the customer. It is allowed to customize the SAP software or to create additional functionality, new applications, or to support third party database applications which only interface with them (example: via RFC, BAPI) Third party database applications or new functionality or new applications which may directly access the Oracle database or indirectly access information contained therein are not allowed.
- 1.4. The customer shall assign the Oracle software only to wholly owned or majority owned subsidiaries. Assignment to competitors of Oracle is prohibited.
- 1.5. In view of its limited rights of use, the customer shall neither modify, decompile nor reverse engineer the Oracle software except and to the extent that it is expressly permitted by applicable law.
- 1.6. The Oracle software may only be used in the country or countries for which the customer has acquired a license. The customer hereby undertakes to adhere to all regulations of the US Department of Commerce and the American export authorities.
- 1.7. The use of Oracle software for the planning, production, control or monitoring of nuclear power stations, air traffic, means of mass transportation or medical equipment is not permitted, unless such use is limited to commercial or purely administrative applications.
- 1.8. The customer is not entitled to receive the source code for the Oracle software.

2. OTHER CONDITIONS

- 2.1. The publication of benchmark tests for the Oracle software is not permitted.

Conditions for the Use of the Microsoft SQL-Server Enterprise Edition

Conditions for the Use of the Microsoft SQL-Server when licensed by SAP

IMPORTANT NOTE: These “Conditions for the Use of the Microsoft SQL-Server when licensed by SAP” apply to Microsoft SQL Server Enterprise Edition version 2014 (or subsequent versions) not only for new licenses but also for any prior licenses of Microsoft SQL-Server Enterprise Edition licensed under an agreement with any SAP entity or SAP authorized reseller.

For the purpose of this Section **“Integrated Application”** shall be defined as SAP software integrating the Microsoft SQL Server Database.

The Microsoft SQL Server Database may contain the following software:

“Server Software” provides services or functionality on your server (your computers capable of running the Server Software are “Servers”);

“Client Software” allows an electronic device (**“Device”**) to access or utilize the Server Software.

1. OVERVIEW

1.1. **Software.** The software includes

- server software, and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

1.2. **License Model.** The software is licensed by SAP based on the Unified Solution and the number of users of that Unified Solution.

1.3. **Licensing Terminology.**

- **Instance.** You may create an “instance” of the software by executing the software’s setup or install procedure. You also create an instance of the software by duplicating an existing instance. References to the “software” in this agreement include “instances” of the software.
- **Run an Instance.** You “run an instance” of the software by loading it into memory and executing 1 or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
- **Operating System Environment (“OSE”).** An “operating system environment” or “OSE” is

all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights; and

Instances of applications, if any, configured to run on the operating system instance or part identified above.

A physical hardware system can have either or both of the following:

- 1 physical operating system environment;
- 1 or more virtual operating system environments.
- A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware

virtualization software or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment.

- A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system.
- **Server:** A "server" is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate server.
- **Server Farm:** A "server farm" is any data center or group of data centers owned by you and under your day-to-day operational control.
- **Unified Solution.** A "Unified Solution" means a software application licensed to you by SAP, which includes the software licensed under this agreement, adds significant and primary functionality to such software, and may include software acquired from a third party delivered and licensed by SAP.

2. USE RIGHTS.

Your rights to use the software are set forth in the license granted by SAP to you to use the Unified Solution at specific site(s), to run your internal business operations (including back up and passive disaster recovery), and to provide internal training and testing for such internal business operations, unless and until such license expires or is terminated.

3. ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.

3.1 Runtime-Restricted Use Software. The software is "Runtime-Restricted Use" software; as such, it may only be used to run the Unified Solution and only as part of the Unified Solution. The software may not be used either

- i. to develop any new software applications;
- ii. in conjunction with any software applications, databases or tables other than those contained in the Unified Solution; and/or
- iii. as a standalone software application.

The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables. For clarity, you may use tools provided as part of the Unified Solution to create new tables during the Unified Solution set up and/or customization so long as the resulting tables will only be used with and/or as part of the Unified Solution itself.

3.2 SQL Server Reporting Services Map Report Item. Power View and SQL Reporting Services Map Item both include use of Bing Maps. You may only use the content provided through Bing Maps, including geocodes, within Power View or SQL Reporting Services Map Item. Your use of Bing Maps is also governed by the Bing Maps End User Terms of Use available at go.microsoft.com/?linkid=9710837 and the Bing Maps Privacy Statement available at go.microsoft.com/fwlink/?LinkID=248686.

3.3 Use of Software Within and Across Server Farms. You may use the software on servers located within and across your server farm if and for so long as the software is only used with and as a part of the Unified Solution.

3.4 Outsourcing Company. You may enter into an agreement with a third party that provides operational services or support services to you, including but not limited to network

management, application management, or data center management services (including operation, maintenance and control of server hardware in a data center (“outsourcing company”) to install or cause to be installed the Unified Solution on servers owned, operated, maintained and controlled by the outsourcing company, provided that:

- i. except for Microsoft Azure, all such server hardware on which the Unified Solution has been installed is and, for the period of time the Unified Solution is installed on such server hardware, remains physically dedicated to you for your own use and
- ii. you have entered into to a written agreement that protects the Unified Solutions and the software on commercially reasonable terms.

Regardless of the physical location of the server hardware containing the software, you remain fully responsible for all of your obligations under this agreement, including any unauthorized use or distribution of the software that results from any act or omission of the outsourcing company. The outsourcing company must agree to the terms of this agreement in a signed writing. You may only grant the outsourcing company access to the software in order to perform operational and/or support services (including but not limited to software maintenance, patch updating, integration, etc.) for you, and the outsourcing company may not access or use the software for any other purpose.

3.5 Virtualization. With respect to any server for which you have acquired the requisite licenses, you may run any number of instances of the server software in any number of physical and/or virtual OSEs whether on servers within your server farm or on servers owned and managed by an outsourcing company pursuant to Section 3.4 (above).

3.6 Fail-over Server. You may create and maintain passive fail-over instances in a separate OSE for temporary support on a server other than your production server, whether on servers within your server farm or on servers owned and managed by an outsourcing company pursuant to Section 3.4 (above).

3.7 Microsoft Azure

“Qualified license” means a valid support agreement to include Embedded Maintenance with SAP

Subject to a valid support agreement “Qualified License” End User may consume the Microsoft Azure Data Services identified in the table below in the indicated ratios.

Qualified License	Microsoft Azure Data Service	Ratio of Qualified Licenses to Azure v Cores
SQL Server Enterprise	SQL Server Enterprise Virtual Machines	Right to use the software as set forth in the license granted by SAP to you to use the Unified Solution.

End Users will not be charged for the usage of a SQL Server Enterprise Virtual Machines but must still pay for the applicable fees of compute (i.e., the base rate), storage, and back-up, as well as I/O associated with their use of the services (as applicable).

4. THIRD PARTY NOTICES.

The software may include third party code, that Microsoft, not the third party, licenses to you under the terms set forth in this agreement. Notices, if any, for any third party code are included for your information only. Additionally, any third party scripts, linked to, called or referenced from this software, are licensed to you by the third parties that own such code, not by Microsoft, see ASP.NET Ajax CDN Terms of Use: www.asp.net/ajaxlibrary/CDN.ashx that program.

5. INTERNET-BASED SERVICES.

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

6. BENCHMARK TESTING.

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Microsoft .NET Framework (see below).

7. NET FRAMEWORK SOFTWARE

The software contains Microsoft .NET Framework software. This software is part of Windows. The license terms for Windows apply to your use of the .NET Framework software.

8. MICROSOFT .NET FRAMEWORK BENCHMARK TESTING

The software includes 1 or more components of the .NET Framework (“NET Components”). You may conduct internal benchmark testing of those components. You may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at go.microsoft.com/fwlink/?LinkID=66406. Notwithstanding any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at go.microsoft.com/fwlink/?LinkID=66406.

9. SCOPE OF LICENSE

The software is licensed, not sold. Unless applicable law gives you more rights, SAP and Microsoft reserve all other rights not expressly granted under this agreement, whether by implication, estoppel or otherwise. In doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software, including any application programming interfaces included in the software, for others to copy;

- share or otherwise distribute documents, text or images created using the software Data Mapping Services features;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.

You also may not remove, minimize, block or modify any logos, trademarks, copyright, digital watermarks, or other notices of Microsoft or its suppliers that are included in the software, including any content made available to you through the software.

Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

10. BACKUP COPY

You may make 1 backup copy of the software media. You may use it only to create instances of the software.

11. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

12. NOT FOR RESALE SOFTWARE

You may not sell software marked as “NFR” or “Not for Resale.”

13. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit

14. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it and this agreement directly to another end user as part of a transfer of the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered to you by or on behalf of the SAP solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The first user may not retain any instances of the software unless that user also retains another license for the software.

15. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

16. ENTIRE AGREEMENT

This agreement and the terms for supplements, updates, Internet-based services that you use, are the entire agreement for the software.

17. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the SAP from whom you

acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

18. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. SAP HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON SAP TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

19. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE SAP AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

20. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

21. FOR AUSTRALIA ONLY

In this paragraph, "goods" refers to the software for which Microsoft provides the express warranty. Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure. Goods presented for repair may be replaced by refurbished goods of the same type rather than being replaced. Refurbished parts may be used to repair the goods.

Microsoft, SQL Server and Windows are registered trademarks of Microsoft Corporation in the United States and/or other countries.

Conditions for the Use of the Microsoft SQL-Server when previously licensed by Microsoft or Microsoft Distributor

The SAP software containing a copy of the Microsoft SQL-Server, which has been integrated or installed as a component of this SAP software. All Microsoft products are subject to the terms of the Microsoft License Agreement with end users which is included in the software package or the license agreements shipped with the Microsoft SQL-Server. An exception hereto is that the functionality of a Microsoft product as an

integrated part of an SAP solution can differ from the functionality of a non-integrated Microsoft product. All inquiries relating to the functionality or performance of the SAP solution with Microsoft products should therefore be addressed to SAP and not to Microsoft. The SAP product does not contain a license for the integrated Microsoft product. You are therefore not entitled to use the copy of the Microsoft SQL-Server contained in this product and you will not receive a license for such use unless you have acquired or otherwise have at your disposal the same number of client/server licenses as user licenses acquired for the SAP software. By concluding this contract with SAP you represent and warrant that you have previously acquired a Microsoft license for SQL-Server end users and to conclude a corresponding license agreement.

When SAP delivers an updated version of the SAP software containing an updated version of the integrated Microsoft product, the end user is not entitled to use the updated version of the Microsoft product unless he/she has acquired the requisite number of client/server licenses from an authorized Microsoft distributor.

Conditions for Use of Third Party Databases with SAP Business One Software

Deployment of SQL Server 2012 and newer:

a) Outsourcing Company.

You may enter into an agreement with a third party that provides operational services or support services to you, including but not limited to network management, application management, or data center management services (including operation, maintenance and control of server hardware in a data center ("outsourcing company") to install or cause to be installed the Unified Solution on servers owned, operated, maintained and controlled by the outsourcing company provided that:

- i. except for Microsoft Azure, all such server hardware on which the Unified Solution has been installed is and, for the period of time the Unified Solution is installed on such server hardware, remains physically dedicated to you for your own use and
- ii. you have entered into to a written agreement that protects the Unified Solutions and the software on commercially reasonable terms.

Regardless of the physical location of the server hardware containing the software, you remain fully responsible for all of your obligations under this agreement, including any unauthorized use or distribution of the software that results from any act or omission of the outsourcing company. The outsourcing company must agree to the terms of this agreement in a signed writing. You may only grant the outsourcing company access to the software in order to perform operational and/or support services (including but not limited to software maintenance, patch updating, integration, etc.) for you, and the outsourcing company may not access or use the software for any other purpose.

b) Microsoft Azure

"Qualified license" means a valid support agreement to include Embedded Maintenance with SAP.

Subject to a valid support agreement "Qualified License" End User may consume the Microsoft Azure Data Services identified in the table below in the indicated ratios.

If an End user wishes to use Azure Hybrid Benefit for SQL Server to consume two or more Microsoft Azure Data Services, one or more Licenses must be allocated for each service.

Qualified License	Microsoft Azure Data Service	Ratio of Qualified Licenses to Azure vCores
SQL Server Standard	SQL Server Standard Virtual Machines	<i>Right to use the software as set forth in the license granted by SAP to you to use the Unified Solution.</i>

End Users will not be charged for the usage of a Microsoft Azure Data Service, but they must still pay for the applicable of compute (i.e., the base rate), storage, and back-up, as well as I/O associated with their use of the services (as applicable). End Users may supplement workloads running under Azure Hybrid Benefit for SQL Server with fully metered Azure services.

End User may not concurrently allocate a License to Azure Hybrid Benefit for SQL Server and assign the same License to a Server dedicated to its use, except on a one-time basis, for a period not to exceed 180 days, to allow End User to migrate those workloads to Azure.

End User may reassign Licenses allocated for use with Azure Hybrid Benefit for SQL Server to a Server dedicated to End User provided Licenses must remain allocated for use under this benefit for a minimum of 90 days after a workload is migrated.

Fail-over Rights

When allocating SQL Server Licenses for use with SQL Server Virtual Machines under the Azure Hybrid Benefit for SQL Server, End User may also run passive fail-over Instances on Microsoft Azure in anticipation of a fail-over event. The number of licenses that otherwise would be required to run the passive fail-over Instances must not exceed the number of Licenses required to run the corresponding SQL Server Virtual Machine under the Azure Hybrid Benefit.

Conditions for the Use of Microsoft® SQL Server™ 2017, Standard Edition (Core-based Runtime and Server CAL Runtime) Software

IMPORTANT NOTE: These “Conditions for the Use of the Microsoft SQL Server 2017, Standard Edition” apply to Microsoft SQL Server Standard Edition version 2017 (or subsequent versions) not only for new licenses but also for any prior licenses of Microsoft SQL-Server Standard Edition licensed under an agreement with any SAP entity or SAP authorized reseller.

These license terms are an agreement between the licensor of the software application or suite of applications with which you acquired the Microsoft software (“Licensor”) and you. Please read them. They apply to the software named above, which includes the media on which you received it, if any. The terms also apply to any Microsoft

- updates,

- supplements, and
- Internet-based services

for this software, unless other terms accompany those items. If so, those terms apply. Microsoft Corporation or one of its affiliates (collectively, “**Microsoft**”) has licensed the software to the Licensor.

IF YOU COMPLY WITH THESE LICENSE TERMS, YOU HAVE THE RIGHTS BELOW FOR EACH SERVER YOU PROPERLY LICENSE.

1. OVERVIEW.

1.1. **Software:** The software includes

- server software, and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

1.2. **License Model:** The software is licensed based on either the:

- **Core License Model** – the number of physical and/or virtual cores in the server; or
- **Server + Client** – the number of operating system environments (OSEs) in which the server software is run, and the number of devices and users that access instances of server software.

1.3. **Licensing Terminology**

- **Instance.** You create an “instance” of the software by executing the software’s setup or install procedure. You also create an instance of the software by duplicating an existing instance. References to the “software” in this agreement include “instances” of the software.
- **Run an Instance.** You “run an instance” of the software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
- **Operating System Environment (“OSE”).** An “operating system environment” or “OSE” is
 - a) all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights; and
 - b) instances of applications, if any, configured to run on the operating system instance or parts identified above.

A physical hardware system can have either or both of the following: one physical operating system environment;

- one or more virtual operating system environments.
- A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software or to provide hardware virtualization services (e.g. Microsoft virtualization

technology or similar technologies) is considered part of the physical operating system environment.

- A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system.
- **Server:** A server is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Physical Core:** A physical core is a core in a physical processor. A physical processor consists of one or more physical cores.
- **Hardware Thread:** A hardware thread is either a physical core or a hyper-thread in a physical processor.
- **Virtual Core:** A virtual core is the unit of processing power in a virtual (or otherwise emulated) hardware system. A virtual core is the virtual representation of one or more hardware threads. Virtual OSEs use one or more virtual cores.
- **Assigning a License:** To assign a license is to designate that license to a server, device or user as indicated below.

2. USE RIGHTS FOR CORE LICENSE MODEL.

2.1. **Licensing a Server:** Before you run instances of the server software on a server, you must determine the number of software licenses required and assign those licenses to that server as described below.

2.2. **Determining the Number of Licenses Required:** You have two license options:

- a) **Physical Cores on a Server.** You may license based on all of the physical cores on the server. If you choose this option, the number of licenses required equals the number of physical cores on the server subject to a minimum of four licenses per processor.
- b) **Individual Virtual OSE.** You may license based on the virtual OSEs within the server in which you run the server software. If you choose this option, for each virtual OSE in which you run the server software, you need a number licenses equal to the number of virtual cores in the virtual OSE, subject to a minimum requirement of four licenses per virtual OSE. In addition, if any of these virtual cores is at any time mapped to more than one hardware thread, you need a license for each additional hardware thread mapped to that virtual core. Those licenses count toward the minimum requirement of four licenses per virtual OSE.

2.3. **Assigning the Required Number of Licenses to the Server.**

- a) **Initial Assignment.** After you determine the number of software licenses required for a server, you must assign that number of licenses to that server. The server to which a license is assigned is considered the “licensed server” for such license. You may not assign a license to more than one server. A hardware partition or blade is considered a separate server.
- b) **Reassignment.** You may reassign a license, but not within 90 days of its last assignment. You may reassign a license sooner if you retire the licensed server to which the license is assigned due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

- 2.4. Running Instances of the Server Software. Your right to run instances of the server ^ software depends on the option chosen to determine the number of software licenses required:
- a) Physical Cores on a Server. For each server to which you have assigned the required number of licenses as provided in Section 2.2(a), you may run on the licensed server any number of instances of the server software in the physical OSE.
 - a. Individual Virtual OSEs. For each virtual OSE for which you have assigned the required number of licenses as provided in section 2.2(b), you have the right to run any number of instances of the software in that virtual OSE.
- 2.5 Running Instances of the Additional Software. You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices so long as the additional software is used only in conjunction with the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered by or on behalf of the Licensor. You may use the additional software only with the server software directly, or indirectly through other additional software.
- Documentation Components
 - Data Quality Client
 - Client Connectivity SDK
 - Client Quality Connectivity
 - Client Tools SDK
 - Client Tools Backwards Compatibility
 - Client Tools Connectivity
 - Distributed Replay Client
 - Distributed Replay Controller
- 2.6. Creating and Storing Instances on Your Servers or Storage Media. You have the additional rights listed below for each software license you acquire.
- a) You may create any number of instances of the server software and additional software.
 - b) You may store instances of the server software and additional software on any of your servers or storage media.
 - c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).
- 2.7 No Client Access Licenses (CALs) Required for Access. Under this core license model, you do not need CALs for users or devices to access your instances of the server software.

3. USE RIGHTS FOR SERVER + CLIENT ACCESS LICENSE MODEL

- 3.1. Runtime-Restricted Use Software. Runtime-Restricted Use Software. The software is “Runtime-Restricted Use” software; as such, it may only be used to run the integrated

software turnkey application or suite of applications delivered to you by or on behalf of the Licensor (the “Unified Solution”) solely as part of the Unified Solution. The software may not be used either

- a) to develop any new software applications,
- b) in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or
- c) as a standalone software application.

The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables.

3.2. Assigning the License to the Server.

- a) Initial Assignment. Before you run any instance of the server software under a software license, you must assign that license to one of your servers. That server is considered the “licensed server” for such license. You may not assign the same license to more than one server, but you may assign other software licenses to the same server. A hardware partition or blade is considered to be a separate server.
- b) Reassignment. You may reassign a software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

3.3 **Running Instances of the Server Software.** For each software license you assign to the server, you may run any number of instances of the server software in one physical or virtual OSE on the licensed server at a time.

3.4 **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices so long as the additional software is used only in conjunction with the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered by or on behalf of the Licensor. You may use the additional software only with the server software directly, or indirectly through other additional software.

- Documentation Components
- Data Quality Client
- Client Connectivity SDK
- Client Quality Connectivity
- Client Tools SDK
- Client Tools Backwards Compatibility
- Client Tools Connectivity
- Distributed Replay Client
- Distributed Replay Controller

3.5 **Creating and Storing Instances on Your Servers or Storage Media.** You have the additional rights listed below for each software license you acquire.

- a) You may create any number of instances of the server software and additional software.
- b) You may store instances of the server software and additional software on any of your servers or storage media.
- c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).

3.6 **Client Access Licenses (CALs).**

- a) **Initial Assignment of CALs.** You must acquire and assign a SQL Server 2017 CAL to each device or user that accesses your instances of the server software directly or indirectly. A hardware partition or blade is considered to be a separate device.
 - You do not need CALs for any of your servers licensed to run instances of the server software.
 - You do not need CALs for up to two devices or users to access your instances of the server software only to administer those instances.
 - Your CALs permit access to your instances of earlier versions, but not later versions, of the server software. If you are accessing instances of an earlier version, you may also use CALs corresponding to that version.
- b) **Types of CALs.** There are two types of CALs: one for devices and one for users. Each device CAL permits one device, used by any user, to access instances of the server software on your licensed servers. Each user CAL permits one user, using any device, to access instances of the server software on your licensed servers. You may use a combination of device and user CALs.
- c) **Reassignment of CALs.** You may
 - permanently reassign your device CAL from one device to another, or your user CAL from one user to another; or
 - temporarily reassign your device CAL to a loaner device while the first device is out of service, or your user CAL to a temporary worker while the user is absent.

4. **ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.**

- 4.1. **SQL Server Platform Selection:** SQL Server Licenses are platform agnostic, and permit deployment and use on Windows or Linux platforms.
- 4.2. **Alternative Versions and Editions:** In place of any permitted instance, you may create, store and use an instance of any earlier version, lower edition or an earlier version of a lower edition.
 - This agreement applies to your use of these other versions or editions in this manner. If the earlier version or edition includes components not covered in this agreement, the terms that are associated with those components in the earlier version or edition apply to your use of them. Microsoft is not obligated to supply any prior or different versions or editions of the software to you.

- The software may include more than one version, such as 32-bit and 64-bit. For each instance of the software that you are permitted to create, store and run, you may use either version.

4.3. **Maximum Instances:** The software or your hardware may limit the number of instances of the server software that can run in physical or virtual OSEs on the server.

4.4. **Multiplexing:** Hardware or software you use to

- pool connections,
- reroute information, or
- reduce the number of devices or users that directly access or use the software (sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

4.5. **No Separation of Server Software:** You may not separate the server software for use in more than one OSE under a single license, unless expressly permitted. This applies even if the OSEs are on the same physical hardware system.

4.6. **SQL Server Reporting Services Map Report Item:** Reporting Services Map Item includes use of Bing Maps. You may only use the content provided through Bing Maps, including geocodes, within Reporting Services Map Item. Your use of Bing Maps is also governed by the Bing Maps End User Terms of Use available at <http://go.microsoft.com/?linkid=9710837> and the Bing Maps Privacy Statement available at <http://go.microsoft.com/fwlink/?LinkID=248686>.

4.7. **Included Microsoft Programs:** The software includes other Microsoft programs listed at <http://go.microsoft.com/fwlink/?LinkID=298186>. Microsoft is making these programs available to you as a convenience only and these programs are licensed and supported under their own separate terms and policies. You may only use these programs in conjunction with the software licensed here. If you do not agree to the license terms for these programs, you may not use them.

5. THIRD PARTY NOTICES

The software may include third party components with separate legal notices or governed by other agreements, as may be described in the ThirdPartyNotices file accompanying the software. Even if such components are governed by other agreements, the disclaimers and the limitations on and exclusions of damages below also apply.

6. PRODUCT KEYS

The software requires a key to install or access it. You are responsible for use of the keys assigned to you. You may not share the keys with third parties. You may not use keys assigned to third parties.

7. INTERNET-BASED SERVICES

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

8. BENCHMARK TESTING

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software.

9. .NET FRAMEWORK SOFTWARE

The software contains Microsoft .NET Framework software. This software is part of Windows. The license terms for Windows apply to your use of the .NET Framework software.

10. CANADA

You may stop receiving updates by turning off the automatic update feature or by turning off Internet access. Refer to the product documentation to learn how to turn off updates for your specific device or software.

11. SCOPE OF LICENSE

- The software is licensed, not sold. unless applicable law gives you more rights, licensor and microsoft reserve all other rights not expressly granted under this agreement, whether by implication, estoppel or otherwise. in doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. you may not work around any technical limitations in the software; reverse engineer, decompile or disassemble the software, or otherwise attempt to derive the source code for the software except, and only to the extent:
 - i. permitted by applicable law, despite this limitation; or
- required to debug changes to any libraries licensed under the GNU Lesser Public License that are included with and linked to by the software; make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation; publish the software, including any application programming interfaces included in the software, for others to copy; share or otherwise distribute documents, text or images created using the software Data Mapping Services features;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.
- You also may not remove, minimize, block or modify any logos, trademarks, copyright, digital watermarks, or other notices of Microsoft or its suppliers that are included in the software, including any content made available to you through the software;
- Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

12. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

13. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

14. NOT FOR RESALE SOFTWARE.

You may not sell software marked as “NFR” or “Not for Resale.”

15. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

16. PROOF OF LICENSE

If you acquired the software on a disc or other media, a genuine Microsoft Proof of License label with a genuine copy of the software identifies licensed software. To be valid, this label must appear on Microsoft packaging and may not be transferred separately. If you receive the label separately, it is invalid. You should keep the packaging that has the label on it to prove that you are licensed to use the software. To identify genuine Microsoft software, see www.howtotell.com.

17. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it and this agreement directly to another end user as part of a transfer of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The first user may not retain any instances of the software unless that user also retains another license for the software.

The provisions of this section do not apply if you acquired the software as a consumer in Germany or in any of the countries listed on this site (aka.ms/transfer), in which case any transfer of the software to a third party, and the right to use it, must comply with applicable law.

18. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software.

These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

19. ENTIRE AGREEMENT

This agreement (including the warranty below), and the terms for supplements, updates, Internet-based services and support services that you use, are the entire agreement for the software and support services.

20. APPLICABLE LAW

- 20.1. **United States:** If you acquired the software in the United States, Washington state law governs the interpretation of this agreement and applies to claims for breach of it, regardless of conflict of laws principles. The laws of the state where you live govern all other claims, including claims under state consumer protection laws, unfair competition laws, and in tort.
- 20.2. **Outside the United States:** If you acquired the software in any other country, the laws of that country apply.

21. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the party from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

22. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

NO WARRANTIES BY MICROSOFT. YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER

- a) THE SOFTWARE; OR
- b) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT. MICROSOFT DOES NOT PROVIDE AN IMPLIED WARRANTY OF MERCHANTABILITY OR ANY OTHER EXPRESS OR IMPLIED WARRANTY.

NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL

DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

Conditions for the Use of Microsoft® SQL Server™ 2014, Standard Edition (Core-based Runtime and Server CAL Runtime) Software

IMPORTANT NOTE: These “Conditions for the Use of the Microsoft SQL Server 2014, Standard Edition” apply to Microsoft SQL Server Standard Edition version 2014 (or subsequent versions) not only for new licenses but also for any prior licenses of Microsoft SQL-Server Standard Edition licensed under an agreement with any SAP entity or SAP authorized reseller.

These license terms are an agreement between the licensor of the software application or suite of applications with which you acquired the Microsoft software (“Licensor”) and you. Please read them. They apply to the software named above, which includes the media on which you received it, if any. The terms also apply to any Microsoft

- updates,
- supplements, and
- Internet-based services

for this software, unless other terms accompany those items. If so, those terms apply. Microsoft Corporation or one of its affiliates (collectively, “Microsoft”) has licensed the software to the Licensor.

BY USING THE SOFTWARE, YOU ACCEPT THESE TERMS. IF YOU DO NOT ACCEPT THEM, DO NOT USE THE SOFTWARE. INSTEAD, RETURN IT TO PLACE OF PURCHASE FOR A REFUND OR CREDIT.

These terms supersede any electronic terms which may be contained within the software. If any of the terms contained within the software conflict with these terms, these terms will control.

IMPORTANT NOTICE: AUTOMATIC UPDATES TO PREVIOUS VERSIONS OF SQL SERVER. If this software is installed on servers or devices running any supported editions of SQL Server prior to SQL Server 2014 (or components of any of them) this software will automatically update and replace certain files or features within those editions with files from this software. This feature cannot be switched off. Removal of these files may cause errors in the software and the original files may not be recoverable. By installing this software on a server or device that is running such editions you consent to these updates in all such editions and copies of SQL Server (including components of any of them) running on that server or device.

IF YOU COMPLY WITH THESE LICENSE TERMS, YOU HAVE THE RIGHTS BELOW FOR EACH SERVER YOU PROPERLY LICENSE.

1. OVERVIEW.

1.1. **Software.** The software includes

- server software, and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

1.2. **License Model.** The software is licensed based on either the:

- **Core License Model** – the number of physical and/or virtual cores in the server; or
- **Server + Client** – the number of operating system environments (OSEs) in which the server software is run, and the number of devices and users that access instances of server software.

1.3. **Licensing Terminology.**

- **Instance.** You create an “instance” of the software by executing the software’s setup or install procedure. You also create an instance of the software by duplicating an existing instance. References to the “software” in this agreement include “instances” of the software.
- **Run an Instance.** You “run an instance” of the software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
- **Operating System Environment (“OSE”):** An “operating system environment” or “OSE” is
 - a) all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights; and
 - b) instances of applications, if any, configured to run on the operating system instance or parts identified above.

A physical hardware system can have either or both of the following:

- one physical operating system environment;
- one or more virtual operating system environments.
- A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment.
- A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system.
- **Server:** A server is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Physical Core:** A physical core is a core in a physical processor. A physical processor consists of one or more physical cores.

- **Hardware Thread:** A hardware thread is either a physical core or a hyper-thread in a physical processor.
- **Virtual Core:** A virtual core is the unit of processing power in a virtual (or otherwise emulated) hardware system. A virtual core is the virtual representation of one or more hardware threads. Virtual OSEs use one or more virtual cores.
- **Assigning a License:** To assign a license is to designate that license to a server, device or user as indicated below.
- **Core Factor:** The core factor is a numerical value associated with a specific physical processor for purposes of determining the number of licenses required to license all of the physical cores on a server.

2. USE RIGHTS FOR CORE LICENSE MODEL.

2.1 **Licensing a Server:** Before you run instances of the server software on a server, you must determine the number of software licenses required and assign those licenses to that server as described below.

2.2 **Determining the Number of Licenses Required:** You have two license options:

a) **Physical Cores on a Server:** You may license based on all of the physical cores on the server. If you choose this option, the number of licenses required equals the number of physical cores on the server multiplied by the applicable core factor located at go.microsoft.com/fwlink/?LinkID=229882.

b) **Individual Virtual OSE:** You may license based on the virtual OSEs within the server in which you run the server software. If you choose this option, for each virtual OSE in which you run the server software, you need a number licenses equal to the number of virtual cores in the virtual OSE, subject to a minimum requirement of four licenses per virtual OSE. In addition, if any of these virtual cores is at any time mapped to more than one hardware thread, you need a license for each additional hardware thread mapped to that virtual core. Those licenses count toward the minimum requirement of four licenses per virtual OSE.

2.3 **Assigning the Required Number of Licenses to the Server**

a) **Initial Assignment:** After you determine the number of software licenses required for a server, you must assign that number of licenses to that server. The server to which a license is assigned is considered the “licensed server” for such license. You may not assign a license to more than one server. A hardware partition or blade is considered a separate server.

b) **Reassignment:** You may reassign a license, but not within 90 days of its last assignment. You may reassign a license sooner if you retire the licensed server to which the license is assigned due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

2.4 **Running Instances of the Server Software.** Your right to run instances of the server software depends on the option chosen to determine the number of software licenses required:

- a) Physical Cores on a Server. For each server to which you have assigned the required number of licenses as provided in Section 2.2(a), you may run on the licensed server any number of instances of the server software in the physical OSE.
 - b) Individual Virtual OSEs. For each virtual OSE for which you have assigned the required number of licenses as provided in section 2.2(b), you have the right to run any number of instances of the software in that virtual OSE.
- 2.5 Running Instances of the Additional Software. You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.
- Client Tools Connectivity
 - Documentation Components
- 2.6 **Creating and Storing Instances on Your Servers or Storage Media.** You have the additional rights listed below for each software license you acquire.
- a) You may create any number of instances of the server software and additional software. You may store instances of the server software and additional software on any of your servers or storage media.
 - b) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).
- 2.7 No Client Access Licenses (CALs) Required for Access: Under this core license model, you do not need CALs for users or devices to access your instances of the server software.

3. USE RIGHTS FOR SERVER + CLIENT ACCESS LICENSE MODEL

3.1 Assigning the License to the Server:

- a) **Initial Assignment:** Before you run any instance of the server software under a software license, you must assign that license to one of your servers. That server is considered the “licensed server” for such license. You may not assign the same license to more than one server, but you may assign other software licenses to the same server. A hardware partition or blade is considered to be a separate server.
- b) **Reassignment:** You may reassign a software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

3.2 **Running Instances of the Server Software:** For each software license you assign to the server, you may run any number of instances of the server software in one physical or virtual OSE on the licensed server at a time.

3.3 **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on

any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.

- Client Tools Connectivity
- Documentation Components

3.4 Creating and Storing Instances on Your Servers or Storage Media: You have the additional rights listed below for each software license you acquire.

- a) You may create any number of instances of the server software and additional software.
- b) You may store instances of the server software and additional software on any of your servers or storage media.
- c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).

3.5 Client Access Licenses (CALs).

a) **Initial Assignment of CALs.** You must acquire and assign a SQL Server 2014 CAL to each device or user that accesses your instances of the server software directly or indirectly. A hardware partition or blade is considered to be a separate device.

- You do not need CALs for any of your servers licensed to run instances of the server software.
- You do not need CALs for up to two devices or users to access your instances of the server software only to administer those instances.
- Your CALs permit access to your instances of earlier versions, but not later versions, of the server software. If you are accessing instances of an earlier version, you may also use CALs corresponding to that version.

b) **Types of CALs.** There are two types of CALs: one for devices and one for users. Each device CAL permits one device, used by any user, to access instances of the server software on your licensed servers. Each user CAL permits one user, using any device, to access instances of the server software on your licensed servers. You may use a combination of device and user CALs.

c) **Reassignment of CALs.** You may

- permanently reassign your device CAL from one device to another, or your user CAL from one user to another; or
- temporarily reassign your device CAL to a loaner device while the first device is out of service, or your user CAL to a temporary worker while the user is absent.

4. ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.

4.1 Maximum Instances. The software or your hardware may limit the number of instances of the server software that can run in physical or virtual OSEs on the server.

4.2 Multiplexing. Hardware or software you use to

- pool connections,
- reroute information, or

- reduce the number of devices or users that directly access or use the software

(sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

- 4.3 **No Separation of Server Software.** You may not separate the server software for use in more than one OSE under a single license, unless expressly permitted. This applies even if the OSEs are on the same physical hardware system.
- 4.4 **SQL Server Reporting Services Map Report Item.** Power View and SQL Reporting Services Map Item both include use of Bing Maps. You may only use the content provided through Bing Maps, including geocodes, within Power View or SQL Reporting Services Map Item. Your use of Bing Maps is also governed by the Bing Maps End User Terms of Use available at go.microsoft.com/?linkid=9710837 and the Bing Maps Privacy Statement available at go.microsoft.com/fwlink/?LinkID=248686.
- 4.5 **Included Microsoft Programs.** The software includes other Microsoft programs listed at go.microsoft.com/fwlink/?LinkID=298186. Microsoft is making these programs available to you as a convenience only and these programs are licensed and supported under their own separate terms and policies. You may only use these programs in conjunction with the software licensed here. If you do not agree to the license terms for these programs, you may not use them.
- 4.6 **Runtime-Restricted Use Software.** The software is “Runtime-Restricted Use” software; as such, it may only be used to run the Unified Solution and only as part of the Unified Solution. The software may not be used either (i) to develop any new software applications, (ii) in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or (iii) as a standalone software application. The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables. For clarity, you may use tools provided as part of the Unified Solution to create new tables during the Unified Solution set up and/or customization so long as the resulting tables will only be used with and/or as part of the Unified Solution itself.
- 4.7 **Use of Software Within and Across Server Farms.** You may use the software on servers located within and across your server farm if and for so long as the software is only used with and as a part of the Unified Solution.
- 4.8 **Outsourcing Company.** You may enter into an agreement with a third party that provides operational services or support services to you, including but not limited to network management, application management, or data center management services (including operation, maintenance and control of server hardware in a data center (“outsourcing company”) to install or cause to be installed the Unified Solution on servers owned, operated, maintained and controlled by the outsourcing company, provided that: (i) all such server hardware on which the Unified Solution has been installed is and continuously remains physically dedicated to running the Unified Solution solely for the benefit and use by you and (ii) you have entered into to a written agreement that protects the Unified Solutions and the software on commercially reasonable terms. Regardless of the physical location of the server hardware containing the software, you remain fully responsible for all of your obligations under this agreement, including any unauthorized use or distribution of the software that results from any act or omission of the outsourcing

company. The outsourcing company must agree to the terms of this agreement in a signed writing. You may only grant the outsourcing company access to the software in order to perform operational and/or support services (including but not limited to software maintenance, patch updating, integration, etc.) for you, and the outsourcing company may not access or use the software for any other purpose.

5. THIRD PARTY NOTICES.

The software may include third party code, that Microsoft, not the third party, licenses to you under the terms set forth in this agreement. Notices, if any, for any third party code are included for your information only. Additionally, any third party scripts, linked to, called or referenced from this software, are licensed to you by the third parties that own such code, not by Microsoft, see ASP.NET Ajax CDN Terms of Use: www.asp.net/ajaxlibrary/CDN.ashx.

6. INTERNET-BASED SERVICES.

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

7. BENCHMARK TESTING.

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Microsoft .NET Framework (see below).

8. NET FRAMEWORK SOFTWARE.

The software contains Microsoft .NET Framework software. This software is part of Windows. The license terms for Windows apply to your use of the .NET Framework software

9. MICROSOFT .NET FRAMEWORK BENCHMARK TESTING

The software includes one or more components of the .NET Framework (“**.NET Components**”). You may conduct internal benchmark testing of those components. You may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at go.microsoft.com/fwlink/?LinkID=66406. Notwithstanding any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at go.microsoft.com/fwlink/?LinkID=66406.

10. SCOPE OF LICENSE.

The software is licensed, not sold. Unless applicable law gives you more rights, Licensor and Microsoft reserve all other rights not expressly granted under this agreement, whether by implication, estoppel or otherwise. In doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software, including any application programming interfaces included in the software, for others to copy;
- share or otherwise distribute documents, text or images created using the software Data Mapping Services features;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.
- You also may not remove, minimize, block or modify any logos, trademarks, copyright, digital watermarks, or other notices of Microsoft or its suppliers that are included in the software, including any content made available to you through the software;
- Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

11. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

12. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

13. NOT FOR RESALE SOFTWARE.

You may not sell software marked as “NFR” or “Not for Resale.”

14. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

15. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it and this agreement directly to another end user as part of a transfer of the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered to you by or on behalf of the Licensor solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The first user may not retain any instances of the software unless that user also retains another license for the software.

16. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

17. ENTIRE AGREEMENT

This agreement and the terms for supplements, updates, Internet-based services that you use, are the entire agreement for the software.

18. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the Licensor from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

19. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

20. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

21. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

22. FOR AUSTRALIA ONLY

In this paragraph, “goods” refers to the software for which Microsoft provides the express warranty. Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure. Goods presented for repair may be replaced by refurbished goods of the same type rather than being replaced. Refurbished parts may be used to repair the goods.

Microsoft, SQL Server and Windows are registered trademarks of Microsoft Corporation in the United States and/or other countries.

Microsoft© SQL Server 2008™, Standard Edition (Server Proc Runtime) Software

These license terms are an agreement between the licensor of the software application or suite of applications with which you acquired the Microsoft software (“**Licensor**”) and you. Please read them. They apply to the software named above, which includes the media on which you received it, if any. The terms also apply to any Microsoft

- updates,
- supplements, and
- Internet-based services

for this software, unless other terms accompany those items. If so, those terms apply. Microsoft Corporation or one of its affiliates (collectively, “**Microsoft**”) has licensed the software to Licensor.

BY USING THE SOFTWARE, YOU ACCEPT THESE TERMS. IF YOU DO NOT ACCEPT THEM, DO NOT USE THE SOFTWARE. INSTEAD, RETURN IT TO THE PLACE OF PURCHASE FOR A REFUND OR CREDIT.

These terms supersede any electronic terms which may be contained within the software. If any of the terms contained within the software conflict with these terms, these terms will control.

1. OVERVIEW.

a) **Software:** The software includes

- server software; and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

b) **License Model:** The software is licensed based on

- the number of physical and virtual processors used by operating system environments in which you run instances of the server software.

c) **Licensing Terminology.**

- **Instance:** You create an “instance” of software by executing the software’s setup or install procedure. You also create an instance of software by duplicating an existing instance. References to software in this agreement include “instances” of the software.
- **Run an Instance:** You “run an instance” of software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
- **Operating System Environment:**
- An “operating system environment” is
- all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights, and
- instances of applications, if any, configured to run on the operating system instance or parts identified above.
- There are two types of operating system environments, physical and virtual. A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software (e.g. Microsoft Virtual Server or similar technologies) or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment. A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system. A physical hardware system can have either or both of the following:
- one physical operating system environment
- one or more virtual operating system environments.
- **Server:** A “server” is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Physical and Virtual Processors:** A physical processor is a processor in a physical hardware system. Physical operating system environments use physical processors. A virtual processor is a processor in a virtual (or otherwise emulated) hardware system. Virtual operating system environments use virtual processors. A virtual processor is considered to have the same number of threads and cores as each physical processor on the underlying physical hardware system.

- **Assigning a License:** To “assign a license” means simply to designate that license to one server.

2. USE RIGHTS.

- a) **Licensing a Server.** Before you run instances of the server software on a server, you must determine the required number of software licenses and assign those licenses to that server as described below.
 - i. Determining the Number of Licenses Required:
 - ii. You must first determine the number of software licenses you need. The total number of software licenses required for a server equals the sum of the software licenses required under (a) and (b) below.
- b) To run instances of the server software in the physical operating system environment on a server, you need a software license for each physical processor that the physical operating system environment uses.
- c) To run instances of the server software in virtual operating system environments on a server, you need a software license for each virtual processor that each of those virtual operating system environments uses. If a virtual operating system environment uses a fraction of a virtual processor, the fraction counts as a full virtual processor.
- d) **Assigning the Required Number of Licenses to the Server.**
 - iii. After you determine the number of software licenses you need for a server, you must assign that number of software licenses to that server. That server is the licensed server for all of those licenses. You may not assign the same license to more than one server. A hardware partition or blade is considered to be a separate server.
 - iv. You may reassign the software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.
- e) **Running Instances of the Server Software:** For each server to which you have assigned the required number of software licenses, you may run, at any one time, any number of instances of the server software in physical and virtual operating system environments on the licensed server. However, the total number of physical and virtual processors used by those operating system environments cannot exceed the number of software licenses assigned to that server.
- f) **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of additional software listed below in physical or virtual operating system environments on any number of devices so long as the additional software is used only in conjunction with the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered by or on behalf of the Licensor. You may use additional software only with the server software directly or indirectly through other additional software.
 - Business Intelligence Development Studio
 - Client Tools Backward Compatibility

- Client Tools Connectivity
- Client Tools Software Development Kit
- Management Studio
- Microsoft Sync Framework

SQL Server 2008 Books Online

g) **Runtime-Restricted Use Software:** The software is “Runtime-Restricted Use” software; as such, it may only be used to run the Unified Solution solely as part of the Unified Solution. The software may not be used either

- to develop any new software applications,
- in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or
- as a standalone software application.

The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables.

h) **Creating and Storing Instances on Your Servers or Storage Media** You have the additional rights below for each software license you acquire.

- You may create any number of instances of the server software and additional software.
- You may store instances of the server software and additional software on any of your servers or storage media.
- You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).

i) **No Client Access Licenses (CALs) Required for Access.** You do not need CALs for the other devices to access your instances of the server software.

3. **ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.**

a) **Maximum Instances:** The software or your hardware may limit the number of instances of the server software that can run in physical or virtual operating system environments on the server.

b) **Multiplexing:** Hardware or software you use to

- pool connections,
- reroute information, and
- reduce the number of devices or users that directly access or use the software, or
- reduce the number of devices or users the software directly manages,
- (sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

c) **Included Microsoft Programs:** The software contains other Microsoft programs. The license terms with those programs apply to your use of them.

- d) **No Separation of Server Software:** You may not separate the server software for use in more than one operating system environment under a single license, unless expressly permitted. This applies even if the operating system environments are on the same physical hardware system.
- e) **Fail-over Server:** For any operating system environment in which you run instances of the server software, you may run up to the same number of passive fail-over instances in a separate operating system environment for temporary support. The number of processors used in that separate operating system environment must not exceed the number of processors used in the corresponding operating system environment in which the active instances are running. You may run the passive fail-over instances on a server other than the licensed server.

4. INTERNET-BASED SERVICES

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

5. MICROSOFT .NET FRAMEWORK AND POWERSHELL SOFTWARE

The software contains Microsoft .NET Framework and PowerShell software. These software components are part of Windows.

6. BENCHMARK TESTING

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Windows components. For Microsoft .NET Framework see below.

7. MICROSOFT .NET FRAMEWORK

The software includes one or more components of the .NET Framework (".NET Components"). You may conduct internal benchmark testing of those components. You may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at <http://go.microsoft.com/fwlink/?LinkID=66406>. Notwithstanding any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at <http://go.microsoft.com/fwlink/?LinkID=66406>.

8. SCOPE OF LICENSE

The software is licensed, not sold. This agreement only gives you some rights to use the software. Licensor and Microsoft reserve all other rights. Unless applicable law gives you more rights despite this limitation, you may use the software only as expressly permitted in this agreement. In doing so, you must comply with any technical limitations in the

software that only allow you to use it in certain ways. For more information, see www.microsoft.com/licensing/userights.

You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software for others to copy;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.

Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

9. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

10. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

11. NOT FOR RESALE SOFTWARE

You may not sell software marked as “NFR” or “Not for Resale.”

12. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

13. TRANSFER TO ANOTHER DEVICE

You may uninstall the software and install it on another device for your use solely as part of the Unified Solution. You may not do so to share this license between devices to reduce the number of licenses you need.

14. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it, this agreement, and CALs, directly to another end user as part of a transfer of the Unified Solution delivered to you by or on behalf of the Licensor solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The first user may not retain any instances of the software unless that user also retains another license for the software.

15. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

16. ENTIRE AGREEMENT

This agreement, and the terms for supplements, updates, and Internet-based services that you use, are the entire agreement for the software.

17. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the Licensor from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

18. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

19. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

20. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

Microsoft and SQL Server are registered trademarks of Microsoft Corporation in the United States and/or other countries.

MICROSOFT® SQL SERVER™ 2008, STANDARD EDITION (SERVER CAL RUNTIME) SOFTWARE

These license terms are an agreement between the licensor of the software application or suite of applications with which you acquired the Microsoft software ("Licensor") and you. Please read them. They apply to the software named above, which includes the media on which you received it, if any. The terms also apply to any Microsoft

- updates,
- supplements, and
- Internet-based services

for this software, unless other terms accompany those items. If so, those terms apply. Microsoft Corporation or one of its affiliates (collectively, "Microsoft") has licensed the software to Licensor.

BY USING THE SOFTWARE, YOU ACCEPT THESE TERMS. IF YOU DO NOT ACCEPT THEM, DO NOT USE THE SOFTWARE. INSTEAD, RETURN IT TO THE PLACE OF PURCHASE FOR A REFUND OR CREDIT.

These terms supersede any electronic terms which may be contained within the software. If any of the terms contained within the software conflict with these terms, these terms will control.

IF YOU COMPLY WITH THESE LICENSE TERMS, YOU HAVE THE RIGHTS BELOW FOR EACH SOFTWARE LICENSE YOU ACQUIRE.

1. OVERVIEW

- a) **Software.** The software includes
 - server software; and
 - additional software that may only be used with the server software directly, or indirectly through other additional software.
- b) **License Model.** The software is licensed based on
 - the number of instances of server software that you run; and
 - the number of devices and users that access instances of server software.
- c) **Licensing Terminology:**
 - Instance: You create an “instance” of software by executing the software’s setup or install procedure. You also create an instance of software by duplicating an existing instance. References to software in this agreement include “instances” of the software.
 - Run an Instance: You “run an instance” of software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
 - Operating System Environment:
 - An “operating system environment” is
 - all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights, and
 - instances of applications, if any, configured to run on the operating system instance or parts identified above.

There are two types of operating system environments, physical and virtual. A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software (e.g. Microsoft Virtual Server or similar technologies) or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment. A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system. A physical hardware system can have either or both of the following:

- one physical operating system environment

- one or more virtual operating system environments.
- **Server:** A “server” is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Assigning a License:** To “assign a license” means simply to designate that license to one device or user.

2. USE RIGHTS.

a. Assigning the License to the Server.

- Before you run any instance of the server software under a software license, you must assign that license to one of your servers. That server is the licensed server for that particular license. You may assign other software licenses to the same server, but you may not assign the same license to more than one server. A hardware partition or blade is considered to be a separate server.
- You may reassign a software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

b) **Running Instances of the Server Software.** You may run any number of instances of the server software in one physical or virtual operating system environment on the licensed server at a time.

c) **Running Instances of the Additional Software.** You may run or otherwise use any number of instances of additional software listed below in physical or virtual operating system environments on any number of devices solely to support your use of the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered by or on behalf of the Licensor. You may use additional software only with the server software directly or indirectly through other additional software.

- Business Intelligence Development Studio
- Client Tools Backward Compatibility
- Client Tools Connectivity
- Client Tools Software Development Kit
- Management Studio
- Microsoft Sync Framework
- SQL Server 2008 Books Online

d) **Creating and Storing Instances on Your Servers or Storage Media:** You have the additional rights below for each software license you acquire.

- You may create any number of instances of the server software and additional software.
- You may store instances of the server software and additional software on any of your servers or storage media.

- You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).
- e) Included Microsoft Programs: The software contains other Microsoft programs. The license terms with those programs apply to your use of them.

3. ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.

a. Client Access Licenses (CALs)

i. You must acquire and assign a SQL Server 2008 CAL to each device or user that accesses your instances of the server software directly or indirectly. A hardware partition or blade is considered to be a separate device.

- You may not access instances of the server software under Workgroup Edition CALs.
- You may use your Windows Small Business Server ("SBS") 2008 CAL Suite for Premium Users or Devices instead of SQL Server 2008 CALs to access your instances of the server software within an SBS 2008 domain.
- You may use your Windows Essential Business Server ("EBS") 2008 CAL Suite for Premium Users or Devices instead of SQL Server 2008 CALs to access your instances of the server software within an EBS domain.
- You do not need CALs for any of your servers licensed to run instances of the server software.
- You do not need CALs for up to two devices or users to access your instances of the server software only to administer those instances.
- Your CALs permit access to your instances of earlier versions, but not later versions, of the server software. If you are accessing instances of an earlier version, you may also use CALs corresponding to that version.

ii. **Types of CALs:** There are two types of CALs: one for devices and one for users. Each device CAL permits one device, used by any user, to access instances of the server software on your licensed servers. Each user CAL permits one user, using any device, to access instances of the server software on your licensed servers. You may use a combination of device and user CALs.

iii. **Reassignment of CALs:** You may

- permanently reassign your device CAL from one device to another, or your user CAL from one user to another; or
- temporarily reassign your device CAL to a loaner device while the first device is out of service, or your user CAL to a temporary worker while the user is absent.

b) **Runtime-Restricted Use Software:** The software is "Runtime-Restricted Use" software; as such, it may only be used in conjunction with the Unified Solution. The software may not be used either

- iii. to develop any new software applications,
- iv. in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or

- v. as a standalone software application. The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables.

A CAL permits you to access instances of only the Runtime-Restricted User version of the server software licensed and delivered to you as part of the Unified Solution, in accordance with the other terms of the agreement.

- c) **Maximum Instances:** The software or your hardware may limit the number of instances of the server software that can run in physical or virtual operating system environments on the server.

- d) **Multiplexing:** Hardware or software you use to

- pool connections,
- reroute information, and
- reduce the number of devices or users that directly access or use the software, or
- reduce the number of devices or users the software directly manages.

(sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

- e) **No Separation of Server Software:** You may not separate the server software for use in more than one operating system environment under a single license, unless expressly permitted. This applies even if the operating system environments are on the same physical hardware system.

- f) **Fail-over Server:** For any operating system environment in which you run instances of the server software, you may run up to the same number of passive fail-over instances in a separate operating system environment for temporary support. You may run the passive fail-over instances on a server other than the licensed server.

4. INTERNET-BASED SERVICES

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

5. NET FRAMEWORK AND POWERSHELL SOFTWARE

The software contains Microsoft .NET Framework and PowerShell software. These software components are part of Windows.

6. BENCHMARK TESTING

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Windows components. For Microsoft .NET Framework see below.

7. MICROSOFT .NET FRAMEWORK

The software includes one or more components of the .NET Framework (“.NET Components”). You may conduct internal benchmark testing of those components. You

may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at <http://go.microsoft.com/fwlink/?LinkID=66406>. Notwithstanding any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at <http://go.microsoft.com/fwlink/?LinkID=66406>.

8. SCOPE OF LICENSE.

The software is licensed, not sold. This agreement only gives you some rights to use the software. Licensors and Microsoft reserve all other rights. Unless applicable law gives you more rights despite this limitation, you may use the software only as expressly permitted in this agreement. In doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. For more information, see www.microsoft.com/licensing/userights.

You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software for others to copy;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.

Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

9. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

10. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

11. NOT FOR RESALE SOFTWARE

You may not sell software marked as “NFR” or “Not for Resale.”

12. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

13. TRANSFER TO ANOTHER DEVICE

You may uninstall the software and install it on another device for your use solely as part of the Unified Solution. You may not do so to share this license between devices to reduce the number of licenses you need.

14. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it, this agreement, and CALs, directly to another end user as part of a transfer of the Unified Solution delivered to you by or on behalf of the Licensor solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The first user may not retain any instances of the software unless that user also retains another license for the software.

15. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

16. ENTIRE AGREEMENT

This agreement, and the terms for supplements, updates, and Internet-based services that you use, are the entire agreement for the software.

17. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the Licensor from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

18. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

19. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

20. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

Microsoft and SQL Server are registered trademarks of Microsoft Corporation in the United States and/or other countries.

Microsoft® SQL Server™ 2012, Standard Edition (Server CAL Runtime) Software

1. OVERVIEW

1.1. Software The software includes

- server software, and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

1.2. License Model The software is licensed based on either the:

- **Core License Model** – the number of physical and/or virtual cores in the server; or
- **Server + Client** – the number of instances of server software that you run, and the number of devices and users that access instances of server software.

1.3. Licensing Terminology

- **Instance.** You create an “instance” of the software by executing the software’s setup or install procedure. You also create an instance of the software by duplicating an existing instance. References to the “software” in this agreement include “instances” of the software.
- **Run an Instance** You “run an instance” of the software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to be running (whether or not its instructions continue to execute) until it is removed from memory.
- **Operating System Environment (“OSE”)** An “operating system environment” or “OSE” is
 - i. all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights; and
 - ii. instances of applications, if any, configured to run on the operating system instance or parts identified above.

A physical hardware system can have either or both of the following:

- one physical operating system environment;
- one or more virtual operating system environments.

A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment.

A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system.

- **Server:** A server is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Physical Core:** A physical core is a core in a physical processor. A physical processor consists of one or more physical cores.
- **Hardware Thread:** A hardware thread is either a physical core or a hyper-thread in a physical processor.
- **Virtual Core:** A virtual core is the unit of processing power in a virtual (or otherwise emulated) hardware system. A virtual core is the virtual representation of one or more hardware threads. Virtual OSEs use one or more virtual cores.
- **Assigning a License:** To assign a license is to designate that license to a server, device or user as indicated below.
- **Core Factor** The core factor is a numerical value associated with a specific physical processor for purposes of determining the number of licenses required to license all of the physical cores on a server.

2. USE RIGHTS FOR CORE LICENSE MODEL:

2.1 Licensing a Server Before you run instances of the server software on a server, you must determine the number of software licenses required and assign those licenses to that server as described below.

2.2 Determining the Number of Licenses Required: You have two license options:

- a) **Physical Cores on a Server.** You may license based on all of the physical cores on the server. If you choose this option, the number of licenses required equals the number of physical cores on the server multiplied by the applicable core factor located at <http://go.microsoft.com/fwlink/?LinkID=229882>.
- b) **Individual Virtual OSE.** You may license based on the virtual OSEs within the server in which you run the server software. If you choose this option, for each virtual OSE in which you run the server software, you need a number licenses equal to the number of virtual cores in the virtual OSE, subject to a minimum requirement of four licenses per virtual OSE. In addition, if any of these virtual cores is at any time mapped to more than one hardware thread, you need a license for each additional hardware thread mapped to that virtual core. Those licenses count toward the minimum requirement of four licenses per virtual OSE.

2.3 Assigning the Required Number of Licenses to the Server:

Initial Assignment. After you determine the number of software licenses required for a server, you must assign that number of licenses to that server. The server to which a license is assigned is considered the “licensed server” for such license. You may not assign a license to more than one server. A hardware partition or blade is considered a separate server.

Reassignment. You may reassign a license, but not within 90 days of its last assignment. You may reassign a license sooner if you retire the licensed server to which the license is assigned due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

2.4 Running Instances of the Server Software: Your right to run instances of the server software depends on the option chosen to determine the number of software licenses required:

- a) **Physical Cores on a Server.** For each server to which you have assigned the required number of licenses as provided in Section 2.2(a), you may run on the licensed server any number of instances of the server software in the physical OSE.
- b) **Individual Virtual OSEs.** For each virtual OSE for which you have assigned the required number of licenses as provided in section 2.2(b) , you have the right to run any number of instances of the software in that virtual OSE.

2.5 Running Instances of the Additional Software: You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.

- Business Intelligence Development Studio
- Client Tools Backward Compatibility

- Client Tools Connectivity
- Client Tools SDK
- Data Quality Client
- Data Quality Services
- Distributed Replay Client
- Distributed Replay Controller
- Management Tools - Basic
- Management Tools - Complete
- Reporting Services – SharePoint
- Reporting Services Add-in for SharePoint Products
- Master Data Services
- Sync Framework
- SQL Client Connectivity SDK
- SQL Server 2012 Books Online

2.6 **Creating and Storing Instances on Your Servers or Storage Media.** You have the additional rights listed below for each software license you acquire.

- a) You may create any number of instances of the server software and additional software.
- b) You may store instances of the server software and additional software on any of your servers or storage media.
- c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).

2.7 **No Client Access Licenses (CALs) Required for Access.** Under this core license model, you do not need CALs for users or devices to access your instances of the server software.

3. **USE RIGHTS FOR SERVER + CLIENT ACCESS LICENSE MODEL**

3.1 Assigning the License to the Server.

- a) **Initial Assignment.** Before you run any instance of the server software under a software license, you must assign that license to one of your servers. That server is considered the “licensed server” for such license. You may not assign the same license to more than one server, but you may assign other software licenses to the same server. A hardware partition or blade is considered to be a separate server.
- b) **Reassignment.** You may reassign a software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

- 3.2 **Running Instances of the Server Software:** For each software license you assign to the server, you may run any number of instances of the server software in one physical or virtual OSE on the licensed server at a time.
- 3.3 **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.
- Business Intelligence Development Studio
 - Client Tools Backward Compatibility
 - Client Tools Connectivity
 - Client Tools SDK
 - Data Quality Client
 - Data Quality Services
 - Distributed Replay Client
 - Distributed Replay Controller
 - Management Tools - Basic
 - Management Tools - Complete
 - Reporting Services – SharePoint
 - Reporting Services Add-in for SharePoint Products
 - Master Data Services
 - Sync Framework
 - SQL Client Connectivity SDK
 - SQL Server 2012 Books Online
- 3.4 **Creating and Storing Instances on Your Servers or Storage Media:** You have the additional rights listed below for each software license you acquire.
- a) You may create any number of instances of the server software and additional software.
 - b) You may store instances of the server software and additional software on any of your servers or storage media.
 - c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).
- 3.5 **Client Access Licenses (CALs)**
- a) Initial Assignment of CALs:
 - b) Initial Assignment of CALs: You must acquire and assign a SQL Server 2012 CAL to each device or user that accesses your instances of the server software directly or indirectly. A hardware partition or blade is considered to be a separate device.
- You do not need CALs for any of your servers licensed to run instances of the server software.

- You do not need CALs for up to two devices or users to access your instances of the server software only to administer those instances.
- Your CALs permit access to your instances of earlier versions, but not later versions, of the server software. If you are accessing instances of an earlier version, you may also use CALs corresponding to that version.

c) **Types of CALs:** There are two types of CALs: one for devices and one for users. Each device CAL permits one device, used by any user, to access instances of the server software on your licensed servers. Each user CAL permits one user, using any device, to access instances of the server software on your licensed servers. You may use a combination of device and user CALs.

d) **Reassignment of CALs:** You may

- permanently reassign your device CAL from one device to another, or your user CAL from one user to another; or
- temporarily reassign your device CAL to a loaner device while the first device is out of service, or your user CAL to a temporary worker while the user is absent.

3.6 **Runtime-Restricted Use Software:** The software is “Runtime-Restricted Use” software; as such, it may only be used in conjunction with the Unified Solution. The software may not be used either

- i. to develop any new software applications,
- ii. in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or
- iii. as a standalone software application. The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables. A CAL permits you to access instances of only the Runtime-Restricted User version of the server software licensed and delivered to you as part of the Unified Solution, in accordance with the other terms of the agreement.

4. **ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS.**

4.1 **Alternative Versions**

The software may include more than one version, such as 32-bit and 64-bit. For each instance of the software that you are permitted to create, store and run, you may use either version.

4.2 **Maximum Instances.** The software or your hardware may limit the number of instances of the server software that can run in physical or virtual OSEs on the server.

4.3 **Multiplexing.** Hardware or software you use to

- pool connections,
- reroute information, or
- reduce the number of devices or users that directly access or use the software

(sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

- 4.4 **No Separation of Server Software.** You may not separate the server software for use in more than one OSE under a single license, unless expressly permitted. This applies even if the OSEs are on the same physical hardware system.
- 4.5 **Fail-over Server.** For any OSE in which you run instances of the server software, you may run up to the same number of passive fail-over instances in a separate OSE for temporary support. You may run the passive fail-over instances on a server other than the licensed server. However, if you have licensed the server software under section 2.2(a) and the OSE in which you run the passive fail-over instances is on a separate server, the number of physical cores on the separate server must not exceed the number of physical cores on the licensed server and the core factor for the physical processors in that server must be the same or lower than the core factor for the physical processors in the licensed server. If you have licensed the server software under section 2.2(b), the number of hardware threads used in that separate OSE must not exceed the number of hardware threads used in the corresponding OSE in which the active instances run.
- 4.6 **SQL Server Reporting Services Map Report Item:** The software may include features that retrieve content such as maps, images and other data through the Bing Maps (or successor branded) application programming interface (the “Bing Maps APIs”). The purpose of these features is to create reports displaying data on top of maps, aerial and hybrid imagery. If these features are included, you may use them to create and view dynamic or static documents. This may be done only in conjunction with and through methods and means of access integrated in the software. You may not otherwise copy, store, archive, or create a database of the content available through the Bing Maps APIs. You may not use the following for any purpose even if they are available through the Bing Maps APIs:
- Bing Maps APIs to provide sensor based guidance/routing, or
 - any Road Traffic Data or Bird’s Eye Imagery (or associated metadata).
- Your use of the Bing Maps APIs and associated content is also subject to the additional terms and conditions at go.microsoft.com/fwlink/?LinkId=21969.
- 4.7 **Included Microsoft Programs:** The software includes other Microsoft programs listed at <http://go.microsoft.com/fwlink/?LinkId=231864>, which are licensed under the terms and conditions associated with them. You may only use these programs in conjunction with the software licensed here. If you do not accept the license terms associated with a program, you may not use that program.

5. INTERNET-BASED SERVICES:

Microsoft provides internet-based services with the software. it may change or cancel them at any time.

6. BENCHMARK TESTING

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Microsoft .NET Framework (see below).

7. .NET FRAMEWORK SOFTWARE

The software contains Microsoft .NET Framework software. This software is part of Windows. The license terms for Windows apply to your use of the .NET Framework software

8. MICROSOFT .NET FRAMEWORK BENCHMARK TESTING:

The software includes one or more components of the .NET Framework (".NET Components"). You may conduct internal benchmark testing of those components. You may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at go.microsoft.com/fwlink/?LinkID=66406. Notwithstanding any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at go.microsoft.com/fwlink/?LinkID=66406.

9. SCOPE OF LICENSE

The software is licensed, not sold. This agreement only gives you some rights to use the software. Licensor and Microsoft reserve all other rights. Unless applicable law gives you more rights despite this limitation, you may use the software only as expressly permitted in this agreement. In doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software, including any application programming interfaces included in the software, for others to copy;
- share or otherwise distribute documents, text or images created using the software Data Mapping Services features;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.

You also may not remove, minimize, block or modify any logos, trademarks, copyright, digital watermarks, or other notices of Microsoft or its suppliers that are included in the software, including any content made available to you through the software;

Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

10. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

11. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

12. NOT FOR RESALE SOFTWARE

You may not sell software marked as “NFR” or “Not for Resale.”

13. ACADEMIC EDITION SOFTWARE

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

14. PROOF OF LICENSE

If you acquired the software on a disc or other media, a genuine Microsoft Proof of License label with a genuine copy of the software identifies licensed software. To be valid, this label must appear on Microsoft packaging and may not be transferred separately. If you receive the label separately, it is invalid. You should keep the packaging that has the label on it to prove that you are licensed to use the software. To identify genuine Microsoft software, see www.howtotell.com.

15. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it and this agreement directly to another end user as part of a transfer of the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered to you by or on behalf of the Licensor solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The transfer must include the software and the Proof of License label. The first user may not retain any instances of the software unless that user also retains another license for the software.

16. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

17. ENTIRE AGREEMENT

This agreement and the terms for supplements, updates, Internet-based services that you use, are the entire agreement for the software.

18. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the Licensor from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

19. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

20. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

21. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

22. FOR AUSTRALIA ONLY

REFERENCES TO “LIMITED WARRANTY” ARE REFERENCES TO THE EXPRESS WARRANTY PROVIDED BY MICROSOFT. THIS WARRANTY IS GIVEN IN ADDITION TO OTHER RIGHTS AND REMEDIES YOU MAY HAVE UNDER LAW, INCLUDING YOUR RIGHTS AND REMEDIES IN ACCORDANCE WITH THE STATUTORY GUARANTEES UNDER THE AUSTRALIAN CONSUMER LAW.

If the Australian Consumer Law applies to your purchase, the following applies to you: Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure.

Microsoft® SQL Server™ 2012, Standard Edition (Core-based Runtime) Software

1. OVERVIEW.

1.1. **Software:** The software includes

- server software, and
- additional software that may only be used with the server software directly, or indirectly through other additional software.

1.2. **License Model:** The software is licensed based on either the:

- **Core License Model** – the number of physical and/or virtual cores in the server; or
- **Server + Client** – the number of instances of server software that you run, and the number of devices and users that access instances of server software.

1.3. **Licensing Terminology:**

- **Instance.** You create an “instance” of the software by executing the software’s setup or install procedure. You also create an instance of the software by duplicating an existing instance. References to the “software” in this agreement include “instances” of the software.
- **Run an Instance:** You “run an instance” of the software by loading it into memory and executing one or more of its instructions. Once running, an instance is considered to

be running (whether or not its instructions continue to execute) until it is removed from memory.

- **Operating System Environment (“OSE”):** An “operating system environment” or “OSE” is

- i.all or part of an operating system instance, or all or part of a virtual (or otherwise emulated) operating system instance which enables separate machine identity (primary computer name or similar unique identifier) or separate administrative rights; and
- ii.instances of applications, if any, configured to run on the operating system instance or parts identified above.

A physical hardware system can have either or both of the following:

- one physical operating system environment;
- one or more virtual operating system environments.

A physical operating system environment is configured to run directly on a physical hardware system. The operating system instance used to run hardware virtualization software or to provide hardware virtualization services (e.g. Microsoft virtualization technology or similar technologies) is considered part of the physical operating system environment.

A virtual operating system environment is configured to run on a virtual (or otherwise emulated) hardware system.

- **Server.** A server is a physical hardware system capable of running server software. A hardware partition or blade is considered to be a separate physical hardware system.
- **Physical Core.** A physical core is a core in a physical processor. A physical processor consists of one or more physical cores.
- **Hardware Thread.** A hardware thread is either a physical core or a hyper-thread in a physical processor.
- **Virtual Core.** A virtual core is the unit of processing power in a virtual (or otherwise emulated) hardware system. A virtual core is the virtual representation of one or more hardware threads. Virtual OSEs use one or more virtual cores.
- **Assigning a License.** To assign a license is to designate that license to a server, device or user as indicated below.
- **Core Factor.** The core factor is a numerical value associated with a specific physical processor for purposes of determining the number of licenses required to license all of the physical cores on a server.

2. USE RIGHTS FOR CORE LICENSE MODEL

2.1. **Licensing a Server.** Before you run instances of the server software on a server, you must determine the number of software licenses required and assign those licenses to that server as described below.

2.2. **Determining the Number of Licenses Required:** You have two license options:

- a) **Physical Cores on a Server.** You may license based on all of the physical cores on the server. If you choose this option, the number of licenses required equals the number of

physical cores on the server multiplied by the applicable core factor located at <http://go.microsoft.com/fwlink/?LinkID=229882>.

- b) Individual Virtual OSE. You may license based on the virtual OSEs within the server in which you run the server software. If you choose this option, for each virtual OSE in which you run the server software, you need a number licenses equal to the number of virtual cores in the virtual OSE, subject to a minimum requirement of four licenses per virtual OSE. In addition, if any of these virtual cores is at any time mapped to more than one hardware thread, you need a license for each additional hardware thread mapped to that virtual core. Those licenses count toward the minimum requirement of four licenses per virtual OSE.

2.3. **Assigning the Required Number of Licenses to the Server:**

Initial Assignment. After you determine the number of software licenses required for a server, you must assign that number of licenses to that server. The server to which a license is assigned is considered the “licensed server” for such license. You may not assign a license to more than one server. A hardware partition or blade is considered a separate server.

Reassignment. You may reassign a license, but not within 90 days of its last assignment. You may reassign a license sooner if you retire the licensed server to which the license is assigned due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

2.4. **Running Instances of the Server Software:** Your right to run instances of the server software depends on the option chosen to determine the number of software licenses required:

- a) Physical Cores on a Server. For each server to which you have assigned the required number of licenses as provided in Section 2.2(a), you may run on the licensed server any number of instances of the server software in the physical OSE.
- b) Individual Virtual OSEs. For each virtual OSE for which you have assigned the required number of licenses as provided in section 2.2(b) , you have the right to run any number of instances of the software in that virtual OSE.

2.5. **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.

- Business Intelligence Development Studio
- Client Tools Backward Compatibility
- Client Tools Connectivity
- Client Tools SDK
- Data Quality Client
- Data Quality Services
- Distributed Replay Client
- Distributed Replay Controller
- Management Tools - Basic

- Management Tools - Complete
- Reporting Services – SharePoint
- Reporting Services Add-in for SharePoint Products
- Master Data Services
- Sync Framework
- SQL Client Connectivity SDK
- SQL Server 2012 Books Online

2.6. **Creating and Storing Instances on Your Servers or Storage Media:** You have the additional rights listed below for each software license you acquire.

- a) You may create any number of instances of the server software and additional software.
- b) You may store instances of the server software and additional software on any of your servers or storage media.
- c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).

2.7. **No Client Access Licenses (CALs) Required for Access:** Under this core license model, you do not need CALs for users or devices to access your instances of the server software.

2.8. **Runtime-Restricted Use Software:** The software is “Runtime-Restricted Use” software; as such, it may only be used to run the Unified Solution solely as part of the Unified Solution. The software may not be used either (i) to develop any new software applications, (ii) in conjunction with any software applications, databases or tables other than those contained in the Unified Solution, and/or (iii) as a standalone software application. The foregoing provision, however, does not prohibit you from using a tool to run queries or reports from existing tables.

3. **USE RIGHTS FOR SERVER + CLIENT ACCESS LICENSE MODEL**

3.1. **Assigning the License to the Server:**

- a) **Initial Assignment:** Before you run any instance of the server software under a software license, you must assign that license to one of your servers. That server is considered the “licensed server” for such license. You may not assign the same license to more than one server, but you may assign other software licenses to the same server. A hardware partition or blade is considered to be a separate server.
- b) **Reassignment:** You may reassign a software license, but not within 90 days of the last assignment. You may reassign a software license sooner if you retire the licensed server due to permanent hardware failure. If you reassign a license, the server to which you reassign the license becomes the new licensed server for that license.

- 3.2. **Running Instances of the Server Software:** For each software license you assign to the server, you may run any number of instances of the server software in one physical or virtual OSE on the licensed server at a time.
- 3.3. **Running Instances of the Additional Software:** You may run or otherwise use any number of instances of the additional software listed below in physical or virtual OSEs on any number of devices. You may use the additional software only with the server software directly, or indirectly through other additional software.
- Business Intelligence Development Studio
 - Client Tools Backward Compatibility
 - Client Tools Connectivity
 - Client Tools SDK
 - Data Quality Client
 - Data Quality Services
 - Distributed Replay Client
 - Distributed Replay Controller
 - Management Tools - Basic
 - Management Tools - Complete
 - Reporting Services – SharePoint
 - Reporting Services Add-in for SharePoint Products
 - Master Data Services
 - Sync Framework
 - SQL Client Connectivity SDK
 - SQL Server 2012 Books Online
- 3.4. **Creating and Storing Instances on Your Servers or Storage Media:** You have the additional rights listed below for each software license you acquire.
- a) You may create any number of instances of the server software and additional software.
 - b) You may store instances of the server software and additional software on any of your servers or storage media.
 - c) You may create and store instances of the server software and additional software solely to exercise your right to run instances of the server software under any of your software licenses as described (e.g., you may not distribute instances to third parties).
- 3.5. **Client Access Licenses (CALs):**
- a) **Initial Assignment of CALs:** You must acquire and assign a SQL Server 2012 CAL to each device or user that accesses your instances of the server software directly or indirectly. A hardware partition or blade is considered to be a separate device.
 - You do not need CALs for any of your servers licensed to run instances of the server software.

- You do not need CALs for up to two devices or users to access your instances of the server software only to administer those instances.
- Your CALs permit access to your instances of earlier versions, but not later versions, of the server software. If you are accessing instances of an earlier version, you may also use CALs corresponding to that version.

b) Types of CALs: There are two types of CALs: one for devices and one for users. Each device CAL permits one device, used by any user, to access instances of the server software on your licensed servers. Each user CAL permits one user, using any device, to access instances of the server software on your licensed servers. You may use a combination of device and user CALs.

c) Reassignment of CALs: You may

- permanently reassign your device CAL from one device to another, or your user CAL from one user to another; or
- temporarily reassign your device CAL to a loaner device while the first device is out of service, or your user CAL to a temporary worker while the user is absent.

4. ADDITIONAL LICENSING REQUIREMENTS AND/OR USE RIGHTS

4.1. Alternative Versions:

The software may include more than one version, such as 32-bit and 64-bit. For each instance of the software that you are permitted to create, store and run, you may use either version.

4.2. Maximum Instances: The software or your hardware may limit the number of instances of the server software that can run in physical or virtual OSEs on the server.

4.3. Multiplexing: Hardware or software you use to

- pool connections,
- reroute information, or
- reduce the number of devices or users that directly access or use the software

(sometimes referred to as “multiplexing” or “pooling”), does not reduce the number of licenses of any type that you need.

4.4. No Separation of Server Software: You may not separate the server software for use in more than one OSE under a single license, unless expressly permitted. This applies even if the OSEs are on the same physical hardware system.

4.5. Fail-over Server: For any OSE in which you run instances of the server software, you may run up to the same number of passive fail-over instances in a separate OSE for temporary support. You may run the passive fail-over instances on a server other than the licensed server. However, if you have licensed the server software under section 2.2(a) and the OSE in which you run the passive fail-over instances is on a separate server, the number of physical cores on the separate server must not exceed the number of physical cores on the licensed server and the core factor for the physical processors in that server must be the same or lower than the core factor for the physical processors in the licensed server. If you have licensed the server software under section 2.2(b), the number of

hardware threads used in that separate OSE must not exceed the number of hardware threads used in the corresponding OSE in which the active instances run.

- 4.6. **SQL Server Reporting Services Map Report Item:** The software may include features that retrieve content such as maps, images and other data through the Bing Maps (or successor branded) application programming interface (the “Bing Maps APIs”). The purpose of these features is to create reports displaying data on top of maps, aerial and hybrid imagery. If these features are included, you may use them to create and view dynamic or static documents. This may be done only in conjunction with and through methods and means of access integrated in the software. You may not otherwise copy, store, archive, or create a database of the content available through the Bing Maps APIs. You may not use the following for any purpose even if they are available through the Bing Maps APIs:

Bing Maps APIs to provide sensor based guidance/routing, or
any Road Traffic Data or Bird’s Eye Imagery (or associated metadata).

Your use of the Bing Maps APIs and associated content is also subject to the additional terms and conditions at go.microsoft.com/fwlink/?LinkId=21969.

- 4.7. **Included Microsoft Programs:** The software includes other Microsoft programs listed at <http://go.microsoft.com/fwlink/?LinkId=231864>, which are licensed under the terms and conditions associated with them. You may only use these programs in conjunction with the software licensed here. If you do not accept the license terms associated with a program, you may not use that program.

5. INTERNET-BASED SERVICES:

Microsoft provides Internet-based services with the software. It may change or cancel them at any time.

6. BENCHMARK TESTING

You must obtain Microsoft's prior written approval to disclose to a third party the results of any benchmark test of the software. However, this does not apply to the Microsoft .NET Framework (see below).

7. .NET FRAMEWORK SOFTWARE

The software contains Microsoft .NET Framework software. This software is part of Windows. The license terms for Windows apply to your use of the .NET Framework software

8. MICROSOFT .NET FRAMEWORK BENCHMARK TESTING:

The software includes one or more components of the .NET Framework (“.NET Components”). You may conduct internal benchmark testing of those components. You may disclose the results of any benchmark test of those components, provided that you comply with the conditions set forth at go.microsoft.com/fwlink/?LinkId=66406. Notwithstanding

any other agreement you may have with Microsoft, if you disclose such benchmark test results, Microsoft shall have the right to disclose the results of benchmark tests it conducts of your products that compete with the applicable .NET Component, provided it complies with the same conditions set forth at go.microsoft.com/fwlink/?LinkID=66406.

9. SCOPE OF LICENSE

The software is licensed, not sold. This agreement only gives you some rights to use the software. Licensor and Microsoft reserve all other rights. Unless applicable law gives you more rights despite this limitation, you may use the software only as expressly permitted in this agreement. In doing so, you must comply with any technical limitations in the software that only allow you to use it in certain ways. You may not

- work around any technical limitations in the software;
- reverse engineer, decompile or disassemble the software, except and only to the extent that applicable law expressly permits, despite this limitation;
- make more copies of the software than specified in this agreement or allowed by applicable law, despite this limitation;
- publish the software, including any application programming interfaces included in the software, for others to copy;
- share or otherwise distribute documents, text or images created using the software Data Mapping Services features;
- rent, lease or lend the software; or
- use the software for commercial software hosting services.

You also may not remove, minimize, block or modify any logos, trademarks, copyright, digital watermarks, or other notices of Microsoft or its suppliers that are included in the software, including any content made available to you through the software;

Rights to access the software on any device do not give you any right to implement Microsoft patents or other Microsoft intellectual property in software or devices that access that device.

10. BACKUP COPY

You may make one backup copy of the software media. You may use it only to create instances of the software.

11. DOCUMENTATION

Any person that has valid access to your computer or internal network may copy and use the documentation for your internal, reference purposes.

12. NOT FOR RESALE SOFTWARE:

You may not sell software marked as “NFR” or “Not for Resale.”

13. ACADEMIC EDITION SOFTWARE:

You must be a “Qualified Educational User” to use software marked as “Academic Edition” or “AE.” If you do not know whether you are a Qualified Educational User, visit www.microsoft.com/education or contact the Microsoft affiliate serving your country.

14. PROOF OF LICENSE

If you acquired the software on a disc or other media, a genuine Microsoft Proof of License label with a genuine copy of the software identifies licensed software. To be valid, this label must appear on Microsoft packaging and may not be transferred separately. If you receive the label separately, it is invalid. You should keep the packaging that has the label on it to prove that you are licensed to use the software. To identify genuine Microsoft software, see www.howtotell.com.

15. TRANSFER TO A THIRD PARTY

The first user of the software may transfer it and this agreement directly to another end user as part of a transfer of the integrated software turnkey application or suite of applications (the “Unified Solution”) delivered to you by or on behalf of the Licensor solely as part of the Unified Solution. Before the transfer, that end user must agree that this agreement applies to the transfer and use of the software. The transfer must include the software and the Proof of License label. The first user may not retain any instances of the software unless that user also retains another license for the software.

16. EXPORT RESTRICTIONS

The software is subject to United States export laws and regulations. You must comply with all domestic and international export laws and regulations that apply to the software. These laws include restrictions on destinations, end users and end use. For additional information, see www.microsoft.com/exporting.

17. ENTIRE AGREEMENT

This agreement and the terms for supplements, updates, Internet-based services that you use, are the entire agreement for the software.

18. LEGAL EFFECT

This agreement describes certain legal rights. You may have other rights under the laws of your state or country. You may also have rights with respect to the Licensor from whom you acquired the software. This agreement does not change your rights under the laws of your state or country if the laws of your state or country do not permit it to do so.

19. NOT FAULT TOLERANT

THE SOFTWARE IS NOT FAULT TOLERANT. LICENSOR HAS INDEPENDENTLY DETERMINED HOW TO USE THE SOFTWARE IN THE INTEGRATED SOFTWARE APPLICATION OR SUITE OF APPLICATIONS THAT IT IS LICENSING TO YOU, AND MICROSOFT HAS RELIED ON LICENSOR TO CONDUCT SUFFICIENT TESTING TO DETERMINE THAT THE SOFTWARE IS SUITABLE FOR SUCH USE.

20. NO WARRANTIES BY MICROSOFT

YOU AGREE THAT IF YOU HAVE RECEIVED ANY WARRANTIES WITH REGARD TO EITHER (A) THE SOFTWARE, OR (B) THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, THEN THOSE WARRANTIES ARE PROVIDED SOLELY BY THE LICENSOR AND DO NOT ORIGINATE FROM, AND ARE NOT BINDING ON, MICROSOFT.

21. NO LIABILITY OF MICROSOFT FOR CERTAIN DAMAGES

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MICROSOFT SHALL HAVE NO LIABILITY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL OR INCIDENTAL DAMAGES ARISING FROM OR IN CONNECTION WITH THE USE OR PERFORMANCE OF THE SOFTWARE OR THE SOFTWARE APPLICATION OR SUITE OF APPLICATIONS WITH WHICH YOU ACQUIRED THE SOFTWARE, INCLUDING WITHOUT LIMITATION, PENALTIES IMPOSED BY GOVERNMENT. THIS LIMITATION WILL APPLY EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL MICROSOFT BE LIABLE FOR ANY AMOUNT IN EXCESS OF TWO HUNDRED FIFTY U.S. DOLLARS (US\$250.00).

22. FOR AUSTRALIA ONLY

References to “Limited Warranty” are references to the express warranty provided by Microsoft. This warranty is given in addition to other rights and remedies you may have under law, including your rights and remedies in accordance with the statutory guarantees under the Australian Consumer Law.

If the Australian Consumer Law applies to your purchase, the following applies to you: Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure.

EXHIBIT 5- PASS THROUGH TERMS FOR DIRECTORIES

COPYRIGHT NOTICES FOR ADDRESS DIRECTORIES:

Country	Vendor	Copyright Notice
Australia	Australia Post	© Copyright the Australian Postal Corporation 2023. All rights reserved. No part of this document may be reproduced, adapted or transmitted in any form or by any means without the express written permission of Australia Post.
All World; Bulgaria; Czech Republic; Denmark; Estonia; Faroe Islands; Greenland; Hungary; Latvia; Lithuania; Mexico; Poland; Russia; Slovakia	UPU	©UPU, 2023. All rights reserved. Requests for permission to reproduce this document for other purposes should be addressed to: Universal Postal Union Standards Programme P.O. Box 312 3000 BERNE 15 SWITZERLAND Tel: + 41 31 350 3111 Fax: + 41 31 350 3110 E-mail: standards@upu.int
Argentina; Chile; China; Colombia;Ecuador; Japan; Mexico; all Geocoding	HERE	© 2023 HERE

Directories by HERE		
Austria	Österreichische Post	Copyright © Österreichische Post AG – All rights reserved.
Belgium	Bisnode	This Bisnode Street reference file (referred to in the contract as “street” and “neighborhood”) is the exclusive property of Bisnode Belgium NV. You acknowledge that Bisnode Belgium is the owner of all copyrights related to this file, and agree that copyright cannot be disputed . These copyrights concern the file itself , the information contained therein , the derivatives, and the use of documents as the primary documents delivered.
Brazil	DataMotion	Datamotion.com.br © Copyright 2023 Data Motion Tecnologia e Serviços LTDA
Canada	Canada Post	© 2023 Canada Post Corporation
Finland	Itella	© Posti Group Corporation
France	Mediapost	© MEDIAPOST 2023
Germany	Deutsche Post Direkt	© Deutsche Post Direkt GmbH DATAFACTORY STREETCODE © 2023 Deutsche Post AG
Hungary	Magyar Posta	© 2023 Magyar Posta Zrt.
India; Geocoding India	MapMyIndia	© Copyright 2023. CE Info Systems Pvt. Ltd. All Rights Reserved.
Ireland; Hong Kong; Macau; Singapore; Taiwan; Turkey; and all Geocoding directories by TomTom	TomTom	Copyright © 2023 TomTom International VB. All rights reserved.
Luxemburg	Post Luxemburg	© POST Group 2023

Netherlands	Cendris	Unless expressly otherwise agreed between the Parties, the intellectual property rights (including any copyrights) to all products made available to the client under an agreement (including any software, data and databases) will remain in the possession of PostNL Data Solutions and will not be transferred to the client.
New Zealand	New Zealand Post	© NZ POST - Commercial In Confidence © New Zealand Post 2023
Norway	Bring	Copyright © Posten Norge AS
Portugal	CTT Correios de Portugal	© 2023 CTT Correios de Portugal
South Korea	Ministry of the Interior and Safety (MOIS)	Copyright © 2023 MOIS. All rights reserved.
Spain	DeyDe	®2023 DEYDE Calidad de Datos. All rights reserved.
Sweden	Postnummernservice	© 2023 POSTNUMMERNSERVICE NORDEN. ALL RIGHTS RESERVED.
Switzerland	Schweizerische Post	© Die Schweizerische Post AG
UK	Royal Mail	© Royal Mail Group Ltd 2023. All rights reserved
United States; US National Directory; AIS Main Contract; USPS Cert. Address Directory – LacsLink; DPV; SuiteLink; RDI; National Change of Address	United States Postal Service	Copyright © 2023 USPS. All Rights Reserved

AUSTRALIA ADDRESS DIRECTORY (AUSTRALIAN POSTAL CORPORATION):

1. Interpretation

1.1. Definitions

- **“Agreement”** means this agreement for the supply and license of the Solution to the End User, and includes the Schedules.
- **“Australia Post”** means the Australian Postal Corporation, including, where permitted by context, all of the Australia Post’s officers, employees, agents and contractors.
- **“Australia Post Data”** means each data set which is supplied and licensed to the Licensor by Australia Post, and licensed by the Licensor to the End User, as specified in each Schedule.
- **“Business Day”** means a day other than a Saturday, Sunday or gazetted public holiday in Victoria, Australia or an Australia Post authorised holiday.
- **“Claim”** means any allegation, debt, cause of action, liability, claim, proceeding, suit or demand of any nature howsoever arising and whether present or future, fixed or unascertained, actual or contingent, whether at Law, in equity, under statute or otherwise.
- **“Corporate Group”** means a group of Single Legal Entities consisting of the Corporate Group Owner and up to nine nominated Subsidiaries (as defined in the Corporates Act) of the Corporate Group Owner.
- **“Corporate Group Owner”** means a Single Legal Entity that is the Holding Company (as defined in the Corporations Act) of each of the other entities of the Corporate Group.
- **“Corporations Act”** means the Corporations Act 2001 (Cth).
- **“End User”** means a Single Legal Entity or Corporate Group Owner authorised to use the Solution granted by the Licensor in accordance with this Agreement.
- **“Intellectual Property Rights”** means all intellectual property rights including current and future registered and unregistered rights in respect of copyright, designs, circuit layouts, trademarks, know-how, confidential information, patents, inventions, domain names and discoveries and all other intellectual property as defined in article 2 of the convention establishing the World Intellectual Property Organisation 1967.
- **“Loss”** means any damage, loss, cost and expense (including legal and other professional advisors’ costs and expenses) suffered by a party.
- **“Material Term”** means clauses 3.1.c), 3.1.d) and 4 of this Agreement.
- **“Permitted Purpose”** means the permitted purpose as defined in the relevant Schedule.

- **“Personal Information”** has the meaning given in the Privacy Act 1988 (Cth) (as amended).
- **“Privacy Law”** means all Commonwealth, State and Territory legislation, principles, industry codes and policies relating to the collection, use, disclosure, storage or granting of access rights to the Personal Information including, but not limited to the Privacy Act 1988 (as amended from time to time).
- **“Prohibited Purpose”** means each of the prohibited purposes as defined in the relevant Schedule.
- **“Related Body Corporate”** has the meaning in the Corporations Act.
- **“Representative”** of a party includes an employee, agent, officer, director, adviser, contractor or sub-contractor of that party or of a Related Body Corporate of that party.
- **“Single Legal Entity”** means an individual person, body corporate or other legal entity and for the purposes of the government means an individual Agency as defined under the Financial Management and Accountability Act 1997 or an individual Commonwealth authority or company under the Commonwealth Authorities and Companies Act 1997.
- **“Solution”** means the Licensor’s solution (including software, products and / or services) which incorporates, reproduces, embodies or utilises the Australia Post Data or its derivative works, and licensed to the End User under this End User Agreement.
- **“Subsidiary”** has the meaning given in the Corporations Act.

2. LICENCE

- 2.1. Licensor grants to the End User a non-exclusive, non-transferable, revocable licence for the term of this Agreement to use the Solution solely for the Permitted Purposes in respect of each applicable Schedule in accordance with the terms and conditions set out in this Agreement and the applicable Schedule, subject to any conditions and restrictions specified in the Permitted Purpose.
- 2.2. If a Schedule includes other terms and conditions, then those terms and conditions will apply, but only in respect of that Schedule.
- 2.3. Any rights not specifically granted to the End User under this Agreement are reserved to the extent permitted by law. Without limiting the previous sentence, the End User must not use the Solution for any Prohibited Purpose. To the extent that a particular purpose falls within the definition of both a Permitted Purpose and a Prohibited Purpose in a Schedule, such purpose is considered a Prohibited Purpose for the purposes of that Schedule.
- 2.4. For the avoidance of doubt, the End User shall not:
 - a) reproduce, copy, modify, amend, assign, distribute, transfer, sub-license, reverse assemble or reverse compile, merge or otherwise deal with, exploit or commercialise the whole or any part of the Australia Post Data (or directly or indirectly allow or cause a third party to do the same) including by using the Australia Post Data to derive other solutions (including software, products and/or services) unless expressly stated otherwise in this Agreement; and

- b) create a Product (as defined below) or other derivative works from the Australia Post Data to commercialise as their own, unless that Product is solely for one of the End User's Permitted Purpose. "Product" means anything produced by End User which consists of, incorporates or is created using any part of the Australia Post Data and which may be produced in any form, including any device, solution, software or database and which may be in written form or produced electronically.
- 2.5. This clause 237 (and the Prohibited Purposes) do not prevent the End User from disclosing Australia Post Data to the extent that it is required by law to disclose the Australia Post Data, provided that the End User use all reasonable and legal means to minimise the extent of disclosure, and require the recipient to keep the Australia Post Data confidential.

3. WARRANTIES AND ACKNOWLEDGEMENTS

- 3.1. The End User represents and warrants that:
- a) it has full capacity, power and authority to enter into this Agreement;
 - b) it will fully and completely comply with all of the terms and conditions of this Agreement);
 - c) it will only use the Solution for the Permitted Purposes and in accordance with the terms and conditions set out in this Agreement;
 - d) it will not use the Solution for any Prohibited Purpose;
 - e) it will not make any representation, statement or promise in respect of Australia Post, and has no authority to do so; and
 - f) it has not relied on any representation made by Australia Post in entering into the Agreement.
- 3.2. Without limiting clause 3.1, the End User acknowledges and agree that to the extent permitted by law:
- a) Australia Post does not make any representation or warranty as to the accuracy, content, completeness or operation of the Australia Post Data or to them being virus free.
 - b) the Australia Post Data is not complete and it may contain errors, and
 - c) the Australia Post Data may include data sourced from third parties. The End User agrees to comply with any third party terms and conditions which the End User is notified apply to the third party data referenced in this Agreement.

4. CONFIDENTIALITY AND SECURITY

- 4.1. The End User must ensure that while the Solution is in its possession or control:
- a) it provides proper and secure storage for the Solution; and
 - b) use the same level of security to protect the Solution that it uses to protect its own confidential information (but no less than the level of security a reasonable person would take to protect the confidential information);

- c) it takes all reasonable steps to ensure that the Solution is protected at all times from unauthorised access, misuse, damage or destruction.
- 4.2. The provisions of clause 4 apply to all forms of media upon which the Solution is kept or transmitted.
- 4.3. The End User will ensure that all copies of the Solution are dealt with in accordance with the Licensor's or Australia Post's reasonable directions.
- 4.4. This clause 4 will survive termination or expiry of the Agreement.

5. PRIVACY

- 5.1. The parties acknowledge that while the Solution may not, on its own, constitute Personal Information, its use may result in the identity of individuals being reasonably ascertainable.
- 5.2. The End User agrees:
 - a) that it is responsible for ensuring that its exercise of rights under this Agreement and the use of the Solution do not infringe any Privacy Law;
 - b) to use or disclose Personal Information obtained during the course of this Agreement only for the purposes of this Agreement;
 - c) to take all reasonable measures to ensure that Personal Information in its possession or control in connection with this Agreement is protected against loss and unauthorised access, use, modification, or disclosure;
 - d) not to do any act or engage in any practice that would breach any Privacy Law;
 - e) to immediately notify the Licensor if the End User becomes aware of a breach or possible breach of any of the obligations contained in, or referred to in, this clause whether by the End User, its Related Body Corporate or any of its Representatives;
 - f) to cooperate with any reasonable demands or inquiries made by Australia Post on the basis of the exercise of the functions of the Office of the Australian Information Commissioner (OAIC) under Privacy Law or the Postal Industry Ombudsman under the Australian Postal Corporation Act 1989;
 - g) to ensure that any person who has access to any Personal Information is made aware of, and undertakes in writing, to observe Privacy Law and other obligations referred to in this clause;
 - h) to comply, as far as practicable, with any policy guidelines issued by the OAIC from time to time relating to the handling of Personal Information; and
 - i) to comply with any direction given by Australia Post to observe any recommendation of the OAIC or the Postal Industry Ombudsman relating to acts or practices of the End User that the OAIC or the Postal Industry Ombudsman consider to be in breach of the obligations in this clause.
- 5.3. This clause 5 will survive termination or expiry of the Agreement.

6. INTELLECTUAL PROPERTY RIGHTS

- 6.1. The End User agrees that all Intellectual Property Rights in the Australia Post Data are and shall remain the sole property of Australia Post or its licensors.
- 6.2. The End User must notify the Licensor as soon as practicable if it becomes aware of any actual, suspected or anticipated infringement of Intellectual Property Rights in the Solution or in the Australia Post Data.
- 6.3. The End User must render all reasonable assistance to the Licensor and/or Australia Post in relation to any actual, suspected or anticipated infringement referred to in clause 6.2.
- 6.4. If a third party makes a Claim against the End User alleging that the Solution infringes the Intellectual Property Rights of the third party, the End User must immediately allow the Licensor (or Australia Post, if Australia Post directs) the right to control the defence of the claim and any related settlement negotiations.
- 6.5. This clause 6 will survive termination or expiry of the Agreement.

7. AUDIT

- 7.1. End User shall provide Australia Post and/or its agents reasonable accompanied access upon reasonable prior notice, during 9am and 5pm on a Business Day, to its premises, accounts and records relevant to the Agreement, for the purpose of verifying and monitoring the End User's obligations under the Agreement (the "Audit") and shall provide all reasonable cooperation and assistance in relation to the Audit.
- 7.2. If it is identified (through the Audit or otherwise) that the End User has not complied with an obligation under this Agreement, then without limiting any other rights or remedies, upon the request of Licensor, the End User will promptly take all necessary steps to rectify and / or remedy such non-compliance.
- 7.3. The cost of any Audit carried out under clause 7.1 shall be borne by Australia Post unless the Audit reveals a material breach by the End User of its obligation under this Agreement, in which case Australia Post shall be entitled to be reimbursed by the End User for all reasonable costs of the Audit (including any agent's fees) and the End User shall so reimburse Australia Post within twenty (20) Business Days of such request.
- 7.4. For the avoidance of doubt, a "material breach" for the purposes of this clause 7 includes, without limitation, any breach of clause 6 in respect of Australia Post's Intellectual Property Rights, or any breach of this Agreement.
- 7.5. Where the End User does not grant access to Australia Post and/or any of its agents for the purposes of an Audit in accordance with this clause 7 then the End User must pay Australia Post all reasonable costs incurred by Australia Post in connection with such attempted Audit within twenty (20) Business Days of the date of Australia Post's invoice in respect of the same, and Australia Post may by written notice immediately suspend the supply and the End User's use of the Solution.

8. LIABILITY

Australia Post not liable

- 8.1. To the extent permitted by law, Australia Post is not liable to the End User for any Claim or Loss whatsoever suffered, or that may be suffered as a result of or in connection with this Agreement, and the End User releases Australia Post irrevocably releases and discharges Australia Post from all such Claims and Losses.
- 8.2. Clause 8.1 will not apply to any Claim or Loss suffered by the End User arising out of any fraud or wilful misconduct of Australia Post.
- 8.3. Without limiting clause 8.1, to the extent permitted by law, Australia Post will not be liable to the End User for any loss of profit, revenue or business, indirect, consequential, special or incidental Loss suffered or incurred by the End User arising out of or in connection with this Agreement, whether in contract, tort, equity or otherwise. This exclusion applies even if those Losses may reasonably be supposed to have been in contemplation of both parties as a probable result of any breach at the time they entered into this Agreement.

8.4 Indemnity

8.5. The End User must defend and indemnify each of the Licensor and Australia Post and its Representatives (those indemnified) from and against all Losses suffered or incurred by and of those indemnified to the extent that those Losses are suffered as a result of, whether directly or indirectly, of:

- a) any breach of a Material Term by the End User or its Representatives;
- b) any unlawful act by the End User or its Representative in connection with this Agreement;
- c) any illness, injury or death to any person arising out of or in connection with the performance of this Agreement to the extent caused or contributed to by the negligent or wrongful act or omission of the End User or its Representative; or
- d) any loss or damage to any property of any person, arising out of or in connection with the performance of this Agreement to the extent caused or contributed to by the negligent or wrongful act or omission of the End User or its Representative,

except to the extent that the Loss is directly caused by the negligence, fraud or wilful misconduct or wrongful act or omission of those indemnified.

8.6. This clause 8 will survive termination or expiry of the Agreement.

9. SUSPENSION AND TERMINATION

- 9.1. The Licensor may limit, suspend or terminate the End User's rights under this Agreement any time upon notice when, and for the duration of the period during which:
- a) the End User contravenes (or is believed on reasonable grounds to be in possible contravention of) any law of the Commonwealth or of a State or Territory;
 - b) the End User breaches the terms of the Agreement and the breach is not remedied within 14 days after receipt of notice from the Licensor specifying the breach and its intention to terminate the Agreement by reason of such breach; or
 - c) the End User commits a material breach of the Agreement which is not capable of remedy; or
 - d) in the reasonable opinion of the Licensor, the End User is acting in a manner or providing a Solution which has the effect or potential to damage the reputation of

Australia Post which is not remedied within 14 days after receipt of notice from Australia Post or the Licensor specifying the issues; or

e) the licensed right granted by Australia Post to the Licensor for the licensing of the Australia Post Data has been suspended or terminated.

9.2. The End User acknowledges that the Licensor may exercise its rights under clause 9.1 in accordance with the directions of Australia Post.

9.3. The termination, surrender or expiry of this Agreement for any reason will not extinguish or otherwise affect:

a) any rights of either party against the other which accrued before the termination, surrender or expiry and which remain unsatisfied; or

b) any other provisions of this Agreement which are expressly stated to, or which by their nature, survive termination, surrender or expiry of this Agreement.

9.4. If this Agreement is surrendered, terminated or expires, for any reason whatsoever, then the following provision of this clause will apply notwithstanding such surrender, termination or expiry the End User must cease using the Solution and the Australia Post Data and undertakes that it will destroy all copies, reproductions or adaptations of the Solution and Australia Post Data, or any part thereof made, held or controlled by it and, promptly upon written request from the Licensor, deliver a statutory declaration sworn by an authorised representative of the End User confirming that all copies, reproductions or adaptations of the Solution and Australia Post Data, and any part thereof, have been destroyed.

10. VARIATION

10.1. Pursuant to the agreement between the Licensor and Australia Post under which the Licensor is granted a licence to the Australia Post Data, Australia Post reserves the right to vary the terms of that agreement from time to time in certain circumstances. To the extent that those variations require a corresponding variation to the terms of this Agreement, the Licensor may do so, provided that the Licensor gives the End User reasonable prior written notice of such variation (having regard to the period of notice received by the Licensor). The End User undertakes to do all things (including executing and entering into such amendment or restatement deed) as reasonably required by the Licensor to formalise and give effect to any and all variations made by the Licensor under this clause 10.1.

11. CHANGES IN LEGISLATION

11.1. Notwithstanding any other provision of this Agreement, the End User acknowledges and agrees that Australia Post and / or the Licensor must comply with any future legislation and / or Government policy which imposes binding restrictions or limitations on Australia Post's or the Licensor's use of the Australia Post Data, including any restrictions or limitations relating to the supply of Australia Post Data or elements thereof to any person, and the terms of this Agreement, and the End User's agreements with any other parties, will be varied accordingly.

12. Corporate Group Owner

- 12.1. This clause 12 applies if the End User is a Corporate Group Owner.
- 12.2. The Corporate Group for the purposes of this Agreement consists of entities identified in writing as Corporate Group entities. Customer to identify the entities (up to 10 in total, including the Corporate Group Owner) forming the Corporate Group.
- 12.3. The End User must ensure, and warrants that:
 - a) each entity of the Corporate Group is a Subsidiary of the End User at all times during the term of this Agreement; and
 - b) each entity of the Corporate Group is a Single Legal Entity.
- 12.4. The End User may permit any or all members of the Corporate Group to enjoy the benefit of the licence granted to the End User under clause 2, subject to the following conditions:
 - a) the End User must ensure that all of the Corporate Group members comply with this Agreement, and do not do or omit to do anything that, if done by the End User, would be a breach of this Agreement;
 - b) the End User is responsible for all acts and omissions of the Corporate Group members as if they were acts and omissions of the End User; and
 - c) all uses of the Solution and Australia Post Data by the Corporate Group members are deemed to be uses by the End User.

13. RELATIONSHIP WITH AUSTRALIA POST

the Licensor holds the benefit of all of the provisions of this Agreement that refer to Australia Post on trust for the benefit of itself and Australia Post, and the Licensor may reasonably enforce those provisions on behalf of Australia Post.

14. GENERAL

- 14.1. The End User shall not, without the Licensor's prior written consent which may be provided or withheld in its absolute discretion, assign or sub-contract any of its rights and obligations under this Agreement.
- 14.2. The Licensor holds the benefit of all of the provisions of this Agreement that refer to Australia Post on trust for the benefit of itself and Australia Post, and the Licensor may enforce those provisions on behalf of Australia Post.
- 14.3. The Agreement is governed by the law in Victoria, Australia and each party submits to the non-exclusive jurisdiction of the courts of Victoria, Australia and courts of appeal from them.

Austria ADDRESS DIRECTORY (Österreichische Post):

This product cannot be used by Customers who conduct business in address publishing and service providing.

Customers are only allowed to use the product for own internal purposes. This product cannot be used by Customers who conduct business in address publishing and service providing. If a Customer conducts business in that area, Customer is responsible for obtaining a valid license directly from the provider.

Customers are only allowed to use the product for own internal validation purposes. Customers are not allowed to use the data to provide any services to any other legal entity. If Customer wishes to provide services to any other legal entity,

Customer is responsible for obtaining a valid license directly from the provider. Any use within another legal entity requires a separate license.

1. CANADA (CANADA POST)

1.1. **Customer** acknowledges that under the Agreement of which this Software Use Rights document Exhibit 5 forms an integral part (hereinafter referred to as the "Agreement"), **Customer** has been licensed to use SAP's product, **Authorized Value Added Products**, as the base for developing a further enhanced value-added product (the "Enhanced Value-added Product") for the purposes of

- a) sublicensing the Enhanced Value-added Product to users who shall have no further sublicensing or distribution rights, or
- b) providing value-added services using the Enhanced Value-added Product that cannot be provided by **Authorized Value Added Products**; or

both (a) and (b). **Customer** further acknowledges that the data components of **Authorized Value Added Products**, or the data in the files required in order to use **Authorized Value Added Products**, were acquired by SAP from third parties and that, relative to those third party data suppliers, SAP is a Customer and **Customer** is a SubCustomer (hereinafter such data components or data files referred to as the "Licensed Content").

One such third party supplier is Canada Post Corporation ("Canada Post") who has granted SAP certain rights with respect to certain Canada Post Data (the "CP Licensed Data") under which SAP may include the CP Licensed Data, in whole or in part, in the Licensed Content and distribute the same to its SubCustomers of the Enhanced Value-added Product subject to the SubCustomers (in this case **Customer's**) prior agreement to the terms and conditions set out in these Minimum Protective Terms.

1.2. **Customer** acknowledges that Canada Post is the owner of the copyright in the Canada Post Data. **Customer** acknowledges that it is only licensed to use the CP Licensed Data in conjunction with **Authorized Value Added Products** and the Enhanced Value-added Product. **Customer** acknowledges that it may only grant rights to third parties to use the CP Licensed Product in conjunction with the Enhanced Value-added Product. Without limiting the generality of the preceding sentence, **Customer** has no right to distribute any CP Licensed Data on a stand-alone basis or for the purposes of use with any product other than the Enhanced Value-added Product.

1.3. **Customer** acknowledges, and agrees to provide notice to parties to whom it distributes the Enhanced Value-added Product, that the damages that Canada Post may incur as a result of parties using out-of-date data for mail preparation include costs that Canada Post

will incur in processing and delivering that mail. Such costs include, but are not limited to, the costs incurred by Canada Post

- i. for the manual readdressing and resorting of mail that was diverted from the normal automated mail processing stream because it was addressed with an invalid address, or the Postal Code^{OM} element of the address was invalid, or
- ii. if the mail was delivered to the wrong address as a result of having been addressed with an invalid address, or as a result of the Postal Code^{OM} element of the address being invalid, the cost of the original sorting, processing and delivery of the mail as well as the extra costs incurred for the manual readdressing and resorting of the mail.

(Postal Code is an official mark of Canada Post.)

1.4. In order to reduce the risk of Canada Post suffering damages as a result of out-of-date data being used for mail preparation and given that CP Licensed Data will be distributed as a component of the Licensed Content, **Customer** agrees

- a) not to distribute the Licensed Content until after **Customer** has put in place safeguards to reduce the risk of "data scraping" or "bulk downloads of data"; **Customer** agrees to keep abreast of developments in technology and to update the safeguards in place to further reduce such risks as improved technology becomes available from time to time, and
- b) to ensure that the parties to whom the CP Licensed Data is distributed, whether as a component of the Enhanced Value-added Product or as a, or component of a, data file, to be used in conjunction with an Enhanced Value-added Product, are informed that the same is not to be used for mail preparation purposes and that this prohibition applies, without limitation, to each of the following:
 - i. addressing mail;
 - ii. presorting addressed mail;
 - iii. preparing unaddressed mail by householder count for delivery.

1.5. **Customer** also acknowledges that if it develops any product that uses data for which the original source of that data is Canada Post, which product is intended to be used for any of the purposes listed in clause 4(b)(i), (ii) or (iii), **Customer** has no right to use or distribute such a product or to offer any services in relation to such a product unless **Customer** has a then current right to do so under a written agreement signed by both **Customer** and Canada Post.

1.6. **Customer** agrees to include

- a) in the hard copy or electronic copy of the license agreements, which **Customer** represents will accompany all copies of the Enhanced Value-added Product and of the Licensed Content distributed by **Customer** that contain CP Licensed Data, and
- b) on the start-up screen of the Enhanced Value-added Product and in the terms and conditions of use posted on any website by which a user may access the Enhanced Value-added Product,

a notice stating that the Enhanced Value-added Product contains data copied under license from Canada Post Corporation and indicating the date of the Canada Post Corporation data file (or the date of the earliest Canada Post Corporation data file, if more than one) from which the data was copied. Where the language of the **Customer** product

or service is French, **Customer** shall use the French version of the *pro forma* notice that is set out further on below, but if the product or service is in a language other than English or French, **Customer** shall include the equivalent notice but in the relevant language. Each such notice shall be tailored with the appropriate information by replacing the "[Insert...]" / « [Indiquez...] » « [Insérez...] » instructions with the information contemplated:

"This [Insert appropriate reference to medium, i.e. diskette, tape, etc.] contains data copied under license from Canada Post Corporation. The Canada Post Corporation file from which this data was copied is dated [Insert date]."

French version of the *pro forma* notice

"[Indiquez le support approprié, c'est-à-dire « Cette disquette », « Cette bande magnétique », etc.] contient des données qui ont été reproduites avec l'autorisation de la Société canadienne des postes. Le fichier de la Société canadienne des postes d'où proviennent ces données est daté du [Insérez la date]."

- 1.7. **Customer** acknowledges that the CP Licensed Data is licensed to **Customer** on an "as is" basis and that Canada Post makes no guarantees, representations or warranties respecting the CP Licensed Data, either expressed or implied, arising by law or otherwise, including but not limited to, effectiveness, completeness, accuracy or fitness for a particular purpose. **Customer** will include a provision in its terms of use requiring a user of the CP Licensed Data to acknowledge that the CP Licensed Data is licensed on an "as is" basis and that Canada Post makes no guarantees, representations or warranties respecting the CP Licensed Data, either expressed or implied, arising by law or otherwise, including but not limited to, effectiveness, completeness, accuracy or fitness for a particular purpose.
- 1.8. Neither SAP nor Canada Post shall be liable in respect of any claims whatsoever alleging any loss, injury or damages, direct or indirect, which may result from **Customer's**, or any of its user's, possession or use of the CP Licensed Data. Neither SAP nor Canada Post shall be liable in any way for loss of revenue or contracts, or any other consequential loss of any kind resulting from any defect in the CP Licensed Data.
- 1.9. **Customer** shall indemnify Canada Post and its officers, employees and agents from all claims whatsoever alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of **Customer's** possession or use of the Licensed Content. **Customer** will include a provision in its terms of use requiring a user of the CP Licensed Data to indemnify Canada Post and its officers, employees and agents from all claims whatsoever alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of such user's possession or use of the CP Licensed Data.

2. FINLAND

Service Description and Terms of Use for Finland POSTAL CODE SERVICES provided through Itella

Effective: January 1, 2013

2.1. SERVICES

The services consist of the postal code system and basic and changed information contained by domestic address files in a fixed format.

2.2. TERMS OF USE FOR THE SERVICES

The following terms of use for the service apply.

2.3. USING THE SERVICES

The information provided is always based on the information included in Itella's postal code system. The system data is based on information provided for Itella by municipalities and postal code information updated by Itella. Itella does not check the information received from municipalities.

Itella delivers the information available to self-service channels.

2.4. THE CUSTOMER'S RESPONSIBILITIES

The customer is responsible for retrieving the postal code material, unpacking packaged files, handling and using the material, and updating its systems.

The customer is responsible for ensuring that, upon any disclosure of the material to third parties, the recipient also receives the updated service description and terms of use.

2.5. ITELLA'S RESPONSIBILITIES

Itella is responsible for offering updated information available for retrieval on time as set out in the service description, unless otherwise stated later in this section. Itella is not responsible for damage caused by delayed, altered, or lost data due to equipment failure, communications or system disruptions, or other similar reasons.

Itella does not guarantee that the information is fully faultless. There may be errors in the information caused by recurring changes or the party reporting the changes. Itella is not responsible for errors in information that were not caused by Itella's negligence.

Itella is not responsible for any information user obligations towards third parties.

Itella is not responsible for the uninterrupted availability of service channels or the updating frequency of the information.

2.6. LIMITATION OF THE SERVICES

In the services, information about Åland Islands is only at a postal code level without any street data.

The services contain information about public postal codes.

3. FRANCE ADDRESS DIRECTORY (MEDIAPOST):

Customer is not allowed to use the data to provide commercial services or any other services to any third party. Customer is only allowed to use the data for its own internal validation purposes. Customer is only permitted to have the data hosted on 1 site. Breach of these limitations will lead to additional license fees and/or penalties.

4. GERMANY ADDRESS DIRECTORY (DEUTSCHE POST DIREKT):

Customer's are not allowed to use the data to provide any services to any other third party. Customer's are especially not allowed to distribute the product any further. Customer's are only allowed to use the data for own internal validation purposes. Customer's are not allowed to use the data to provide any services to any other legal entity. If Customer wishes to provide services to any other legal entity, Customer is responsible for obtaining a valid license directly from the provider. Any use within another legal entity requires a separate license. Customer's are not allowed to distribute the product any further.

5. HERE MAP DATA BY HERE (HERE):

The data ("Data") is provided for Customer's internal use only and not for resale. It is protected by copyright, and is subject to the following terms and conditions which are agreed to by you, on the one hand, HERE and HERE Suppliers on the other hand.

© 2008 HERE. All rights reserved.

The Data for areas of Canada includes information taken with permission from Canadian authorities, including: © Her Majesty the Queen in Right of Canada, © Queen's Printer for Ontario, © Canada Post Corporation, GeoBase© Department of Natural Resources Canada

HERE holds a non-exclusive license from the United States Postal Service® to publish and sell ZIP+4® information.

©United States Postal Service® 2008. Prices are not established, controlled or approved by the United States Postal Service®. The following trademarks and registrations are owned by the USPS: United States Postal Service, USPS, and ZIP+4.

- i. Scope of Use. Customer agrees to use this Data together with SAP Applications solely for your internal business operations purposes for which Customer was licensed, and not for service bureau, time-sharing or other similar purposes. Accordingly, but subject to the restrictions set forth in the following paragraphs, Customer may copy this Data only as necessary for Customer's business use to
- ii. view it, and save it, provided that Customer does not remove any copyright notices that appear and do not modify the Data in any way. Customer agrees not to otherwise reproduce copy, modify, decompile, disassemble or reverse engineer any portion of this Data, and may not transfer or distribute it in any form except to your affiliates, for any purpose, except to the extent permitted by mandatory laws. Multi-disc sets may only be transferred or sold as a complete set as provided by SAP and not as a subset thereof.

Restrictions. Except where Customer has been specifically licensed to do so by SAP, and without limiting the preceding paragraph, Customer may not

- a) use this Data with any products, systems, or applications installed or otherwise connected to or in communication with vehicles, capable of vehicle navigation, positioning, dispatch, real time route guidance, fleet management or similar applications; or

- b) with or in communication with any positioning devices or any mobile or wireless-connected electronic or computer devices, including without limitation cellular phones, palmtop and handheld computers, pagers, and personal digital assistants or PDAs.

Warning. The Data may contain inaccurate or incomplete information due to the passage of time, changing circumstances, sources used and the nature of collecting comprehensive geographic data, any of which may lead to incorrect results.

No Warranty. This Data is provided to you “as is,” and Customer agrees to use it at its own risk. HERE and HERE SUPPLIERS make no guarantees, representations or warranties of any kind, express or implied, arising by law or otherwise, including but not limited to, content, quality, accuracy, completeness, effectiveness, reliability, fitness for a particular purpose, usefulness, use or results to be obtained from this Data, or that the Data or server will be uninterrupted or error-free.

Disclaimer of Warranty: HERE and HERE SUPPLIERS DISCLAIM ANY WARRANTIES, EXPRESS OR IMPLIED, OF QUALITY, PERFORMANCE, MERCHANTABILITY, AND FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. Some States, Territories and Countries do not allow certain warranty exclusions, so to that extent the above exclusion may not apply to you.

Disclaimer of Liability: HERE and HERE SUPPLIERS SHALL NOT BE LIABLE: IN RESPECT OF ANY CLAIM, DEMAND OR ACTION, IRRESPECTIVE OF THE NATURE OF THE CAUSE OF THE CLAIM, DEMAND OR ACTION ALLEGING ANY LOSS, INJURY OR DAMAGES, DIRECT OR INDIRECT, WHICH MAY RESULT FROM THE USE OR POSSESSION OF THE INFORMATION; OR FOR ANY LOSS OF PROFIT, REVENUE, CONTRACTS OR SAVINGS, OR ANY OTHER DIRECT, INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF LICENCEE’S USE OF OR INABILITY TO USE THIS INFORMATION, ANY DEFECT IN THE INFORMATION, OR THE BREACH OF THESE TERMS OR CONDITIONS, WHETHER IN AN ACTION IN CONTRACT OR TORT OR BASED ON A WARRANTY, EVEN IF CLIENT OR ITS LICENSORS HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. Some States, Territories and Countries do not allow certain liability exclusions or damages limitations, so to that extent the above may not apply to Customer.

Indemnification: Customer shall indemnify and save harmless HERE and HERE Suppliers, including Her Majesty The Queen, The Canada Post and the Department of Natural Resources Canada, and their officers, employees and agent: from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data.

Government End Users: If the Data is being acquired by or on behalf of the United States government or any other entity seeking or applying rights similar to those customarily claimed by the United States government, the Data is a “commercial item” as that term is defined at 48 C.F.R. (“FAR”) 2.101, is licensed in accordance with these Pass Through Terms, and each copy of Data delivered or otherwise furnished shall be marked and embedded as appropriate with the following “Notice of Use,” and shall be treated in accordance with such Notice:

Notice of Use

Contractor (Manufacturer/ Supplier) Name: HERE

Contractor (Manufacturer/Supplier) Address: 425 W. Randolph Street, Chicago, Illinois 60606

This Data is a commercial item as defined in FAR 2.101 and is subject to these End-User Term under which this Data was provided.

© 2008 HERE – All rights reserved.

The Data may include or reflect data of licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada. Such data is licensed on an "as is" basis. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, make no guarantees, representations or warranties respecting such data, either express or implied, arising bylaw or otherwise, including but not limited to, effectiveness, completeness, accuracy or fitness for a particular purpose.

The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in respect of any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action alleging any loss, injury or damages, direct or indirect, which may result from the use or possession of the data or the Data. The licensors, including Her Majesty, Canada Post and the Department of Natural Resources Canada, shall not be liable in any way for loss of revenues or contracts, or any other consequential loss of any kind resulting from any defect in the data or the Data.

End User shall indemnify and save harmless the licensors, including Her Majesty the Queen, the Canada Post and the Department of Natural Resources Canada, and their officers, employees and agents from and against any claim, demand or action, irrespective of the nature of the cause of the claim, demand or action, alleging loss, costs, expenses, damages or injuries (including injuries resulting in death) arising out of the use or possession of the data or the Data.

If Data for additional countries is included or distributed in connection with software products of SAP, or if Customer uses data from relevant countries the following supplier terms/copyright notices shall be included in the Customer Terms as applicable:

Territory**Notice**

Australia	"Copyright. Based on data provided under license from PSMA Australia Limited (www.pasma.com.au)."
Austria	"© Bundesamt für Eich- und Vermessungswesen"
Croatia, Cyprus, Estonia, Latvia, Lithuania, Moldova, Poland, Slovenia and/or Ukraine	"© EuroGeographics"
France	The following notice must appear on all copies of the Data, and may also appear on packaging: "source: © IGN 2009 – BD TOPO ®"
Germany	"Die Grundlagendaten wurden mit Genehmigung der zuständigen Behörden entnommen" or "Die Grundlagendaten wurden mit Genehmigung der zustaendigen Behoerden entnommen."
Great Britain	"Based upon Crown Copyright material."
Greece	"Copyright Geomatics Ltd."
Hungary	"Copyright © 2003; Top-Map Ltd."
Italy	"La Banca Dati Italiana è stata prodotta usando quale riferimento anche cartografia numerica ed al tratto prodotta e fornita dalla Regione Toscana."
Norway	"Copyright © 2000; Norwegian Mapping Authority"
Portugal	"Source: IgeoE – Portugal"
Spain	"Información geográfica propiedad del CNIG"
Sweden	"Based upon electronic data □ National Land Survey Sweden."
Switzerland	"Topografische Grundlage: □ Bundesamt für Landestopographie."

MEXICO:

The terms and conditions of the data provider HERE listed under Section 7 of this Exhibit 5, "HERE map data by HERE (HERE)" apply as Pass Through Terms for the Directory of Mexico.

NETHERLANDS (CENDRIS):

For the purposes of these Netherlands Address Directory third party pass-through terms, “End User or Corporate End User” shall mean the purchaser of the Package (whether directly through an SAP company or through a reseller), being the legal entity that enters into a software license agreement with an SAP company or a reseller for its own internal use and/or its Affiliates internal use of the Package; “Postcode Table and Supplementary Products” shall mean the file with all the cities/towns, streets and postcodes in the Netherlands, along with the corresponding house numbers or series of house numbers; and “Additional Products” shall mean products supporting the use of the Postcode Table.

End User is only permitted to use the Package for internal use.

End User is not permitted to deliver the Postcode and Address File and/or Additional Products (irrespective of whether they are integrated into the Package) to third parties.

NEW ZEALAND (NEW ZEALAND POST):

This section contains the terms and conditions specified by New Zealand Post in respect of use of New Zealand Post’s Postal Address File as part of the software supplied to you by SAP. Definitions used in this section apply exclusively to this section. In the case of conflict between the defined terms in this section and defined terms in the main body of the Use Rights document, the defined terms in this section shall take precedence solely in relation to use of New Zealand Post’s Postal Address File.

1. DEFINITIONS

In this section:

- **Data** means the Postal Address File, as more particularly described at www.nzpost.co.nz/sendright, as such description is amended from time to time.
 - **Documentation** means any user and technical documentation supplied by New Zealand Post with the Data to enable SAP, End Users or any of their personnel to use the Data, and any confidential information of New Zealand Post.
 - **End User** means any person to whom Data is permitted to be distributed, sold or made available by SAP.
 - **Intellectual Property Rights** includes copyright and all rights conferred under statute, common law or equity in relation to inventions (including patents), registered or unregistered trade marks, registered or unregistered designs, circuit layouts, databases, confidential information, know-how, and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields anywhere in the world, together with all right, interest or licence in or to any of the foregoing.
 - **Incorporated Software** means the software providing the address data services supplied to the End User by SAP which incorporates the Data.
 - **Licensor** means New Zealand Post Limited, at Wellington NZ.
- i. The End User (and any of its agents and sub-contractors) may only use Data in accordance with the terms of this section, for the End User’s internal purposes, and only as part of or in combination with the Incorporated Software and/or any related services provided to it by SAP. The End User must procure that any agents or sub-contractors to whom the Data is provided comply with the terms of this Agreement.

- ii. The End User agrees that the Data and the Documentation and all Intellectual Property Rights and other rights in the Data and the Documentation from time to time remain the property of New Zealand Post and its licensors (as the case may be).
- iii. The End User must not remove or tamper with any disclaimer or copyright notice attached to or used in relation to Data.
- iv. The End User has no right to use any of the trade marks, business names or logos of New Zealand Post unless expressly stated otherwise in any sub-licence granted to the End User by the SAP within the terms of any licence granted by New Zealand Post to SAP.
 - i. The End User must not at any time (a) copy, reproduce, publish, sell, let, modify, extract or otherwise part with possession of the whole or any part of the Data or relay or disseminate the same to any other party; (b) other than as permitted under (i) above, provide the Data to (or allow the provision of the Data to, or access to the Data of) any agents or sub-contractors of the End User without the prior written consent of New Zealand Post; or (c) sub-licence all or any part of the Data to any person, or purport or attempt to do so, in each case, unless expressly permitted otherwise by New Zealand Post in writing.
 - ii. The End User may make a reasonable number of back-up copies of the Data for security purposes. The End User may only use such back-up copies for archive retention and retrieval purposes, and only during the term of the licence.
 - iii. If any licence under which a third party grants to New Zealand Post the right to incorporate the third party's material in the Data is terminated, the licence to the End User in respect of that material terminates and the End User must, at New Zealand Post's request, remove the same material from any copies of any Data held by the End User within 90 days.
 - iv. The End User must not make any statement or claim relating to the Data being approved, recommended or endorsed by New Zealand Post or do anything similar or imply that such is the case, unless New Zealand Post has expressly given its prior written consent to the form and content of such claim.
 - v. The End User must comply with the requirements of the Privacy Act 1993 and any other applicable law or regulations relevant to its possession or use of Data.
 - vi. The End User must ensure that its personnel, agents and sub-contractors comply with the above terms as if they were SAP.
 - vii. The End User acknowledges that New Zealand Post has made no warranty that the Data will be free from errors, omissions, inaccuracies, viruses or other destructive code, or that the Data will be fit for the End User's purpose or for use in any specific technical environment.
 - viii. On receipt of an update to any Data (including as part of any update of the Incorporated Software) (such updates each being an "Update"), the End User must as soon as practicable cease use of any previous version of the Data (and must in any event cease such use by the end of the term of the licence) and commence use of the Update.
 - ix. The End User's right to use each Update shall terminate six months after the date on which such Update was released by New Zealand Post. Early termination of SAP's licence from New Zealand Post shall not affect the End User's right to use any Data

provided that such early termination was not caused by or connected with any act or omission of the End User.

- x. The End User must keep the confidential information of New Zealand Post, including the Data, confidential.
- xi. The End User acknowledges and agrees that Land Information New Zealand ("LINZ") and the Crown hold absolutely and exclusively certain material which has been licensed to New Zealand Post and incorporated into the Data, and that LINZ and the Crown do not assign any copyright or other intellectual property rights in such material either to New Zealand Post, SAP or the End User. The End User further acknowledges and agrees that LINZ and the Crown shall not, in any circumstances, be liable for any loss or damage (even if LINZ or the Crown has been advised of the possibility of such loss or damage, and including, without limitation, any direct loss, indirect loss, consequential loss, loss of profits, business interruption loss or loss of data) suffered by the End User or any other person in connection with this Agreement. In the event that any exclusion of the liability of LINZ or the Crown set out in this clause is inapplicable, or is held unenforceable, the liability of each of LINZ and the Crown under or in connection with this Agreement, or arising out of any use, reproduction, modification, or creation of compilations or derivative works of or from the Data (by the End User or any other person), whether that liability arises in tort (including negligence), equity or any other basis, shall be limited to the fees paid by New Zealand Post for the material incorporated in the Data which gave rise to the loss or damage, exclusive of GST. For the purposes of the Contracts (Privity) Act 1982, this clause confers a benefit on, and is enforceable by, LINZ and the Crown.
- xii. The End User agrees and represents that it is acquiring the Data and any Documentation for the purposes of a business and that the Consumer Guarantees Act 1993 (New Zealand) does not apply.
- xiii.xviii. The End User must indemnify New Zealand Post and keep New Zealand Post indemnified against any claim, proceeding, damage, liability, loss, cost or expense (including legal costs on a solicitor and own client basis), whether arising in contract, tort (including for negligence) or otherwise, arising out of or in connection with any breach by the End User of any of the above terms or the use of the Data by the End User or any other person who has obtained the Data from an End User. The End User's total aggregate liability to New Zealand Post under this clause xvii shall not exceed \$250,000.
- xiv. New Zealand Post must have rights to enforce the above terms for the purposes of the Contracts (Privity) Act 1982, and is entitled to terminate the End User's right to use any Data if the End User breaches any of those terms.

SPAIN (DEYDE):

Customer acknowledges that the DEYDE-STREETFILES, which are used in the Spain Address Directory within all versions of Data Services and Data Quality Management, are the intellectual property of DEYDE.

Switzerland Address Directory (Schweizerische Post):

Customer's are not allowed to extract any data provided. Customer's are only allowed to use the product for own validation purposes. Customer's are not allowed to use the data to provide any services to any other legal entity. Any use within another

TOM TOM:

Third Party Restrictions

- a) Additional provisions for MultiNet® data of Norway. End User is prohibited from using the MultiNet® data of Norway to create commercial general purpose printed or digital maps, which are similar to the basic national products of the Norwegian Mapping Authority.
- b) Additional Provisions with respect to the data for China: End User agrees that any Licensed Product which contains data of China may be subject to additional terms and conditions which shall be provided to End User when available to TomTom. China data may not be exported from China.
- c) Additional Provisions with respect to the data for India: End User agrees that any Licensed Product which contains data of India may be subject to additional terms and conditions which shall be provided to End User when available to TomTom.
- d) Additional Provisions with respect to the data for Korea: End User agrees that any Licensed Product which contains data of Korea may be subject to additional terms and conditions which shall be provided to Customer when available to TomTom. Korea data may not be exported from Korea.
- e) As of the Effective Date, the following restriction applies to the Licensed TomTom Products: The 6-digit alpha/numeric Canadian Postal Codes contained in any Licensed Product cannot be used for bulk mailing of items through the Canadian postal system. Furthermore, the 6-digit alpha/numeric Canadian Postal Codes must be wholly contained in the Authorized Application and shall not be extractable. Canadian Postal Codes cannot be displayed or used for postal code look-up on the Internet, nor can they be extracted or exported from any application to be utilized in the creation of any other data set or application. Notwithstanding the above, an End User may optionally correct or derive Canadian Postal Codes using the Value Added Products, but only as part of the address information for locations (e.g.: of delivery points and depots) that have been set up in the Value Added Product, and optionally extract data for fleet management purposes.
- f) Additional provisions with respect to the Premium Points of Interest North America Licensed Product: It is expressly prohibited to use the Premium Points of Interest North America for
 - telephone call routing related applications;
 - screen pop applications,
 - CD-ROM director of other derivative directory product;
 - verification services;
 - caller name services; and
 - online marketing lead verification services.

Following restrictions will apply to usage of the Brand Icon component:

- g) End User agrees that the use of the Brand Icon component is subject to the terms and conditions set forth in this Agreement and that there may be additional third party terms, conditions and restrictions to which the use of the Brand Icon component will be subject and which will be provided to the End User from time to time in the product release notes.

Additional End User provisions:

- h) End User shall not use the Authorized Application to create (or assist in the creation of) a digital map database. A “digital map database” means a database of geospatial data containing the following information and attributes: (x) road geometry and street names; or (y) routing attributes that enable turn-by-turn navigation on such road geometry; or (z) latitude and longitude of individual addresses and house number ranges.
- i) End User shall not use the Authorized Application to provide competitive information about TomTom or its products to third parties.
- j) The Authorized Application may not be used for in-flight navigation.
- k) In the event that any End User is a government entity, include language which is substantially the same as the following:
- l) U.S. GOVERNMENT RIGHTS. If End User is an agency, department, or other entity of the United States Government, or funded in whole or in part by the United States Government, then use, duplication, reproduction, release, modification, disclosure or transfer of this commercial product and accompanying documentation, is restricted in accordance with the LIMITED or RESTRICTED rights as described in any applicable DFARS or FAR. In case of conflict between any of the FAR and/or DFARS that may apply to the Licensed Product, the construction that provides greater limitations on the Government’s rights shall control. Contractor/manufacturer is TomTom North America, Inc., 11 Lafayette Street, Lebanon, NH 03766-1445. Phone: 603.643. 0330. The Licensed TomTom Products are © 2006-201_ by TomTom. ALL RIGHTS RESERVED. For purpose of any public disclosure provision under any federal, state or local law, it is agreed that the Licensed TomTom Products are a trade secret and a proprietary commercial product and not subject to disclosure.
- m) If End User is an agency, department, or other entity of any State government, the United States Government or any other public entity or funded in whole or in part by the United States Government, then End User hereby agrees to protect the Licensed TomTom Products from public disclosure and to consider the Licensed TomTom Products exempt from any statute, law, regulation, or code, including any Sunshine Act, Public Records Act, Freedom of Information Act, or equivalent, which permits public access and/or reproduction or use of the Licensed TomTom Products. In the event that such exemption is challenged under any such laws, this agreement shall be considered breached and any and all right to retain any copies or to use of the Licensed TomTom Products shall be terminated and considered immediately null and void. Any copies of the Licensed TomTom Products held by Customer shall immediately be destroyed. If any court of competent jurisdiction considers this clause void and unenforceable, in whole or in part, for any reason, this agreement shall be considered terminated and null and void, in its entirety, and any and all copies of the Licensed TomTom Products shall immediately be destroyed.

Additional Licensed Product Provisions and Details

- n) Additional Provisions with respect to the MultiNet® data of Norway only. Customer is prohibited from using the MultiNet® data of Norway to create general purpose printed or digital maps, which are similar to the basic national products of the Norwegian Mapping Authority. (Any Authorized Application of the MultiNet® data of Norway shall be regarded as similar to the basic national products of the Norwegian Mapping Authority if such Authorized Application has a regional or national coverage, and at the same time has a content, scale and format that are similar to the basic national products of the Norwegian Mapping Authority.)
- o) Additional Provisions with respect to the data for China: Customer agrees that any Licensed Product which contains data of China may be subject to additional terms and conditions which shall be provided to Customer when available to TomTom. China data may not be exported from China.
- p) Additional Provisions with respect to the data for India: Customer agrees that any Licensed Product which contains data of India may be subject to additional terms and conditions which shall be provided to Customer when available to TomTom.
- q) Additional Provisions with respect to the data for Korea: Customer agrees that any Licensed Product which contains data of Korea may be subject to additional terms and conditions which shall be provided to Customer when available to TomTom. Korea data may not be exported from Korea. Data cannot be shipped to End Users in an open format (such as ESRI shapefile).
- r) As of the Effective Date, the following restriction applies to the Licensed TomTom Products: The 6-digit alpha/numeric Canadian Postal Codes contained in any Licensed Product cannot be used for bulk mailing of items through the Canadian postal system. Furthermore, the 6-digit alpha/numeric Canadian Postal Codes must be wholly contained in the Authorized Application and shall not be extractable. Canadian Postal Codes cannot be displayed or used for postal code look-up on the Internet, nor can they be extracted or exported from any application to be utilized in the creation of any other data set or application. Notwithstanding the above, an End User may optionally correct or derive Canadian Postal Codes using the Value Added Products, but only as part of the address information for locations (e.g.: of delivery points and depots) that have been set up in the Value Added Product, and optionally extract data for fleet management purposes.
- s) Additional provisions with respect to the Premium Points of Interest North America Licensed Product: It is expressly prohibited to use the Premium Points of Interest North America for
 - a) telephone call routing related applications;
 - b) screen pop applications,
 - c) CD-ROM director of other derivative directory product;
 - d) verification services;
 - e) caller name services; and
 - f) online marketing lead verification services.

The Local Points of Interest North America cannot be licensed to the following companies, their commonly owned companies or aliases: Acxiom, Accudata, Allant, Alliance Data, eBeureau, Equifax, Experian, Knowledgebase Marketing, ChoicePoint, Harte-Hanks, Infutor, Donnelley Marketing, infoGroup, Trans Union, Transaction Network Services, and LexisNexis.

Following restrictions will apply to usage of the Brand Icon component:

- t) Customer agrees that the use of the Brand Icon component is subject to the terms and conditions set forth in this Agreement and that there may be additional third party terms, conditions and restrictions to which the use of the Brand Icon component will be subject and which will be provided to the End User from time to time in the product release notes.
- u) Copyright Notices. Customer shall conspicuously display each applicable then current copyright notice for the Licensed TomTom Products in accordance with Article 10.5 “Intellectual Property (rights) notice” for each Authorized Application that is based upon:

3. MULTINET®.

As Of The Effective Date, The Copyright Notice Is: “Data Source © <Current Year> Tomtom”; And, In Addition, “Based On”:

- a) MultiNet® data of Austria. As of the Effective Date, the copyright notice is: “© BEV, GZ 1368/2003.”
- b) MultiNet® data of Denmark. As of the Effective Date, the copyright notice is: “© DAV, violation of these copyrights shall cause legal proceedings.”
- c) MultiNet® data of France. As of the Effective Date, the copyright notice is: [for an Authorized Application for Navigation Units: “© IGN France.”] / [for an Authorized Application for Geographic Information Systems: “Georoute © IGN France.”] / [for an Authorized Application for navigational products: “Michelin data © Michelin 20__”]
- d) MultiNet® data of Indonesia. As of the Effective Date, the copyright notice is: “® Base data Bakosurtanal”.
- e) MultiNet® data of Great Britain. As of the Effective Date, the copyright is: “Contains Ordnance Survey data © Crown copyright and database right [current year]” and “Contains Royal Mail data © Royal Mail copyright and database right [current year]”
- f) MultiNet® data of Northern Ireland. As of the Effective Date, the copyright notice is: “Ordnance Survey of Northern Ireland.”
- g) MultiNet® data of Norway. As of the Effective Date, the copyright notice is: “© Norwegian Mapping Authority, Public Roads Administration / © Mapsolutions.”
- h) MultiNet® data of Russia: As of the Effective Date, the copyright notice is: “© Roskartographia”
- i) MultiNet® data of Switzerland. As of the Effective Date, the copyright notice is: “© Swisstopo.”
- j) MultiNet® data of The Netherlands. As of the Effective Date, the copyright notice is: “Topografische ondergrond Copyright © dienst voor het kadaster en de openbare registers, Apeldoorn 2013.”

4. MultiNet□ North America:

As of the Effective Date, the copyright notice is: “© 2006 – 2013_ TomTom. All rights reserved. This material is proprietary and the subject of copyright protection and other intellectual property rights owned or licensed to TomTom. TomTom is an authorized user of selected Statistics Canada computer files and distributor of derived information products under Agreement number 6776. The product is sourced in part from Statistics Canada computer files, including 2010 Road Network File (RNF), 92-500-G and 2006 Census Population and Dwelling Count Highlight Tables, 97-550-XWE2006002. The product includes information copied with permission from Canadian authorities, including © Canada Post Corporation, GeoBase®, and Department of Natural Resources Canada, All rights reserved. The use of this material is subject to the terms of a License Agreement. You will be held liable for any unauthorized copying or disclosure of this material.”

5. MULTINET□ POST:

As of the Effective Date, the copyright notice is: “© 2006 – 2013_ TomTom. All rights reserved. This material is proprietary and the subject of copyright protection and other intellectual property rights owned or licensed to TomTom. The product includes information copied with permission from Canadian authorities, including © Canada Post Corporation, All rights reserved. The use of this material is subject to the terms of a License Agreement. You will be held liable for any unauthorized copying or disclosure of this material.”

6. PREMIUM POINTS OF INTEREST NORTH AMERICA:

As of the Effective Date, the copyright notice is: “© 2006-2013 TomTom. All rights reserved. This material is proprietary and the subject of copyright protection, database right protection and other intellectual property rights owned by TomTom or its suppliers. Portions of the POI database contained in Local Points of Interest North America have been provided by Localeze. The use of this material is subject to the terms of a license agreement. Any unauthorized copying or disclosure of this material will lead to criminal and civil liabilities.”

UK (ROYAL MAIL)

PREAMBLE

The following terms constitute the end user licence agreement for PAF® Data.

Public Sector entities operating within the United Kingdom must also enter into a direct Public Sector Licence agreement with Royal Mail. SAP will require Customer to provide evidence of such a valid licence.

Corporate Group licences are available by also entering into a direct licence agreement with Royal Mail. SAP will require Costumer to provide evidence of such a valid licence.

The End User agrees to notify Solution Provider and/or Third Party Solution Providers immediately about any licensing changes and/or exceeding of the licensed category.

DEFINITIONS AND INTERPRETATION

In this Licence the following terms have the following meanings:

Bureau Customer	a customer for a Bureau Service
Bureau Services	a service comprising the Data Cleansing of a Customer Database and the supply of the resulting Cleansed Customer Database back to the relevant customer
Customer Database	a database of an End User's customer
Data Cleansing	the processing of existing data records using PAF® Data: (a) including validating, reformatting, correcting or appending additional data to those records, and (b) including the use of PAF® Data within address capture applications, but (c) not including Data Extraction (whether carried out by an address capture application or otherwise), and Cleansed shall be read accordingly
End User	a single legal entity who a Customer may permit to use PAF® Data through its Users in accordance with this Licence
End User Terms	the terms set out in the Licence
Extracted Data	data generated as a result of Data Extraction
Licence	these terms made up of the "Preamble" section, "Definitions and Interpretation" section and the "Licence Terms" section
PAF® Data	Royal Mail's database known as PAF®, and including the database known as the "Alias File"
Solution	a product or service or other solution which benefits from or includes PAF® Data (including the provision of PAF® Data itself), in whatever form, however produced or distributed and whether or not including other functionality, services, software or data
Substantially All Database	a database which on its own or as part of another database comprises all or substantially all the addresses in the United Kingdom or any of England, Wales, Scotland or Northern Ireland
User	an individual authorised by an End User to use a Solution

LICENCE TERMS

1. END USERS' PERMITTED USE OF SOLUTIONS

End Users may freely use PAF® Data in Solutions in accordance with these End User Terms.

2. CONDITIONS OF USE

- a) End Users must not make copies of PAF® Data except as permitted by these End User Terms or reasonably necessary for back-up, security, business continuity and system testing purposes.
- b) End Users may use PAF® Data for Data Extraction but Extracted Data:
 - i. may only be accessed by Users, and
 - ii. must not be supplied or any access to it provided to any third party.
- c) End Users may provide Cleansed data to third parties provided that:
 - iii. where that supply is a Bureau Service, the End User and the Bureau Customers comply with the restrictions in Schedule 4, and
 - iv. if such databases are Substantially All Databases:
 - . such databases are not represented or held out as a master, original or comprehensive address database or other similar description,
 - . the access is provided in the course of the End User's normal data supply or routine business activities and is not carried on as a business in its own right, and
 - . the provision includes a prominent notice that the relevant Cleansed data has been cleansed against PAF® Data.
- d) End Users must not permit access to, display or communicate to the public any Solutions, except for the purposes of capturing or confirming address details of third parties.
- e) Except as set out in these End User Terms, End Users must not:
 - transfer, assign, sell or license Solutions or their use to any other person,
- v. use Solutions to create a product or service distributed or sold to any third party which relies on any use of PAF® Data, including copying, looking up or enquiring, publishing, searching, analysing, modifying and reformatting, or
- vi. copy, reproduce, extract, reutilise or publish Solutions or any of them.

3. SUBCONTRACTING

End Users may provide PAF® Data to their subcontractors who may use it to the extent necessary for:

- b) the provision of information technology services to the End User, or
- c) acting on behalf of the End User

in each case for the End User's own business purposes and not those of the sub-contractor and provided that each such sub-contractor agrees to observe the restrictions on use of PAF® Data contained in these End User Terms and that the End User is responsible for any breaches of those terms by such sub-contractor.

4. PERSONAL RIGHTS

End User rights are personal, limited and non-transferable.

5. ROYAL MAIL'S IPR NOTICE

The End User acknowledges that Royal Mail is the owner of the intellectual property rights in PAF® Data and the PAF® brand and it does not acquire and is not granted any rights to use those intellectual property rights other than as set out in these End User Terms.

6. CESSATION OF USE OF PAF® DATA

End Users must cease use of PAF® Data if their right to use PAF® Data is terminated and also destroy any copies of PAF® Data they hold.

7. PAF® USE BY USERS

End Users must ensure that:

- a) these End User Terms bind their Users,
- b) only their Users exercise the use rights of Solutions and PAF® Data granted to End Users further to these End User Terms, and
- c) in the event of termination or expiry of End Users' rights to use Solutions and PAF® Data, the rights of Users to use them also terminate.

USA – USPS SUBLICENSE AGREEMENTS

1. LIMITS ON USE OF DATA

- 1.1 USPS Certified Address Directory Option for DPV and Lacslink.** In the event Customer activates the locking features of the Software and wishes to unlock such features, Customer agrees to provide certain information relating to the list owner, locking record details and the origin of the locking record including but not limited to the type of list, owner of list if rented and other tracking information as requested by the Licensor or the USPS.

2. GEOGRAPHIC SPECIFIC RESTRICTIONS

- a) USPS products may only be sold in the US and are not available outside of the US.
- b) US NATIONAL DIRECTORY PRODUCTS MAY BE SOLD GLOBALLY.
- c) SPECIALIZED PRODUCTS SUCH AS LACSLINK, SUITELINK, NCOALINK, DPV, USPS DELIVERY SEQUENCE FILE – DSF2 AND RDI MAY ONLY BE SOLD TO US PERSONS OR ENTITIES FOR USE WITHIN THE US.

THE NCOALINK INTERFACE CAN ONLY BE SOLD TO PERSONS WHO ARE AUTHORIZED BY THE USPS TO PURCHASE NCOALINK DATA. (NOTE: WE ONLY SELL THE NCOALINK INTERFACE AND CUSTOMERS MUST OBTAIN THE NCOALINK DATA DIRECTLY FROM THE USPS AND MUST BE CERTIFIED TO PURCHASE SUCH DATA BY THE USPS.)

USPS SuiteLink:

Customer`s right to use the CASS Certified Interface and the SuiteLink Product shall be strictly limited to use only within the United States of America;

Customer`s right to use the CASS Certified Interface and the SuiteLink Product shall be strictly limited to improving business delivery addresses in multi-occupation buildings for use on letters, flats, postcards, packages, leaflets, magazines, postcards, advertisements, books, and other printed material, and any other item that will be delivered by USPS.

Customer`s have no right to sublicense, sell or otherwise distribute, reproduce, perform, or prepare derivative works of the Interface or the SuiteLink Product.

Customer acknowledges that:

- a) the CASS Certified Interface and the SuiteLink Product under license from USPS;
- b) You are a SubCustomer under SAP`s license from USPS and obtain from Licensor no broader right than permitted under SAP's license agreement with USPS;

You shall be strictly limited to using the CASS Certified Interface and the SuiteLink Product only as a component of SAP`s Data Quality or Data Services products.

USPS NCOALINK

Customer has no rights as to the NCOALink Interface under this agreement beyond using it as a component of Licensors' Data Quality and Data Services products in conjunction with the NCOALink data product to update a list, system, group or other collection of *at least 100* unique names and addresses (herein "Mailing Lists") used for addressing letters, flats, postcards, packages, leaflets, magazines, advertisements, books and other printed material, and any other deliverable item handled by the United States Postal Service (herein "Deliverables") for delivery by the United States Postal Service (herein "USPS").

Customer has no right to develop or use any NCOALink product, service, interface, or any related item or technology to compile or maintain a list or collection of names and addresses or addresses only of new movers or to create other products or data bases or collections of information concerning new movers, histories of address changes, lists or histories of residents, or other informational or data sources based upon information received from or through the NCOALink data or technology for the purpose of renting, selling, transferring, disclosing, making available or otherwise providing such information to an entity unrelated to Customer.

For the purposes of communicating with addressees on Customer's Mailing Lists and for the purpose of record-keeping, however, Customer is permitted to retain updated addresses so long as not used in violation of paragraph 2 above, for individuals and entities with whom Customer has or had a business relationship, in connection with which Customer will use the updated address; however, these updated addresses may only be used by Customer and Customer may use them only for carrying out your organizational purposes in connection with that individual or entity and may not transfer, disclose, license or distribute to, or be used by any other entity or individual whatsoever.

No proprietary Mailing List that contains both old and corresponding updated address records, or any service product or system of lists that can be used to link old and corresponding updated address records, if updated by use of NCOALink, shall be rented, sold, transferred, disclosed, made available, or otherwise provided, in whole or in part to your customers or any other individual or entity.

Customer's right to use the NCOALink Interface is strictly limited to use only within the United States, its territories, and possessions.

As to the Interface, Customer has the right only to update Mailing Lists used to prepare Deliverables that will be deposited with the USPS.

Customer has no right to sublicense, sell, assign, or otherwise transfer rights in, reproduce, perform, attempt to improve, reverse engineer, modify or otherwise change, or prepare derivative works of the Interface. Any attempt to sublicense, sell, assign, or otherwise transfer rights in, or otherwise distribute the Interface shall be void.

CustomerCustomer acknowledges that:

- a) USPS owns the NCOALink data, technology, and system in its entirety including that used in the development of the Interface;
- b) USPS owns and retains rights in the trademark of NCOALink and in the registered trademarks UNITED STATES POSTAL SERVICE®, POSTAL SERVICE ®, US POSTAL SERVICE®, AND USPS® ;

- c) SAP is providing the Interface as a component of its products to Customer solely for use with the NCOALink Product under a nonexclusive, limited distribution license from USPS; and
- d) the rights Customer obtains in this license are derived from SAP's agreement with USPS and you obtain from SAP no broader right than SAP obtains from USPS, except as to Customer's specific right to use the NCOALink Interface to access the NCOALink data.

Customer is strictly limited to using the Interface only as a component of SAP's Data Quality and Data Services products.

Customer acknowledges and agrees that Customer has no right to sublicense, sell, distribute, reproduce, or display USPS trademarks or sell the Interface or other products under USPS's trademarks.

DPV SUBLICENSE AGREEMENT

This Sublicense Agreement ("Sublicense") between SAP and Customer, its subsidiaries and affiliates, current and future ("SubCustomer") sets forth additional terms required by the United States Postal Service ("USPS") regarding SubCustomer use of the DPV option with other SAP CASS certified software.

For purposes of this Sublicense, Delivery Point Validation ("DPV") means the new USPS proprietary technology product designed to help mailers validate the accuracy of address data, right down to the physical delivery point. The DPV process cannot assign a ZIP+4 Code nor will it respond to a non-ZIP+4 coded address.

1. SubCustomer understands that the USPS provides the DPV Product through special licensing in order to protect the USPS' proprietary intellectual property and its compliance with restrictions of Title 39 USC § 412.
2. SubCustomer acknowledges that the address information contained within the DPV Product is subject to Title 39 USC § 412. SubCustomer shall take all steps necessary to secure the DPV Product in a manner that fully complies with Section 412 constraints prohibiting the disclosure of address lists.
3. SubCustomer acknowledges that the DPV Product is confidential and the proprietary property of the USPS. SubCustomer further acknowledges that the USPS represents that it is the sole owner of copyrights and other proprietary rights in the DPV Product.
4. SubCustomer shall not use the DPV Product technology to artificially compile a list of delivery points not already in SubCustomer's possession or to create other derivative products based upon information received from or through the DPV Product technology.
5. No proprietary SubCustomer address list(s) or service products or other system of records that contain(s) address attributes updated through DPV processing shall be rented, sold, distributed or otherwise provided in whole or in part to any third party for any purpose containing address attributes derived from DPV processing. SubCustomer may not use the DPV technology to artificially generate address records or to create mailing lists.
6. The DPV Product processing requires SubCustomer to have access to address information that appears on mail pieces. To ensure the confidentiality of this address information, no employee or former employee of SubCustomer may, at any time, disclose to any third party any address information obtained in the performance of this agreement. SubCustomer agrees to control and restrict access to address information to persons who need it to perform work under this agreement and prohibit the unauthorized reproduction of this information. Due to the sensitive nature of the confidential and proprietary information contained in the DPV Product, SubCustomer acknowledges that unauthorized use and/or disclosure of the DPV will irreparably harm the USPS' intellectual property. Therefore, SubCustomer (i) agrees to reimburse the USPS for any unauthorized use and/or disclosure at a rate of treble (3 times) the current annual fee charged to SubCustomer hereunder; and (ii) consents to such injunctive or other equitable relief as a court of competent jurisdiction may deem proper.

7. BOTH SAP AND THE USPS SHALL NOT BE LIABLE FOR ANY DESIGN, PERFORMANCE OR OTHER FAULT OR INADEQUACY OF DPV, OR FOR DAMAGES OF ANY KIND ARISING OUT OF OR IN ANY WAY RELATED TO OR CONNECTED WITH SUCH FAULT OR INADEQUACY. IN NO EVENT SHALL SAP'S OR THE USPS' LIABILITY TO SUBCUSTOMER UNDER THIS AGREEMENT, IF ANY, EXCEED THE PRO RATA PORTION OF THE ANNUAL LICENSE FEE FOR DPV.
8. SAP agrees to hold harmless, defend and indemnify SubCustomer for infringement of any U.S. copyright, trademark, or service mark in the DPV provided to SubCustomer under this Agreement. The foregoing obligation shall not apply unless SAP shall have been informed within five (5) calendar days by SubCustomer of the suit or action alleging such infringement and shall have been given such opportunity as is afforded by applicable laws, rules, or regulations to participate in the defense thereof. In addition, SubCustomer agrees to hold harmless, defend and indemnify SAP and the USPS and its officers, agents, representatives, and employees from all claims, losses, damage, actions, causes of action, expenses, and/or liability resulting from, brought for, or on account of any injury or damage received or sustained by any person, persons or property growing out of, occurring, or attributable to SubCustomer's performance under or related to this agreement, resulting in whole or in part from any breach of this Agreement or from the negligence or intentional misconduct, including any unauthorized disclosure or misuse of DPV Product, including data derived from DPV, by SubCustomer, or any employee, agent, or representative of SubCustomer.
9. SubCustomer acknowledges that the USPS reserves the right to stop DPV processing in the USPS' sole discretion. SAP will not be liable or responsible for any decision the USPS makes in canceling SubCustomer's Sublicense, including, but not limited to, arbitrating the cancellation decision on behalf of the customer. In the event the USPS cancels SubCustomer's DPV processing, (i) SubCustomer shall not be entitled to any refund or credit from SAP; and, (ii) SAP will discontinue shipping DPV directories to SubCustomer.
10. SubCustomer agrees that the USPS or its designated representatives, on an announced or unannounced basis, shall have the right to visit and examine SubCustomer's sites. USPS or its designated representatives shall have the right examine, on or off SubCustomer's premises, SubCustomer's computer systems, processing files, documents, administrative records, and other materials to ensure SubCustomer's compliance with the provisions of this agreement.
11. SubCustomer further agrees that the USPS or its authorized representatives will, until three (3) years after final payment under this agreement, have access to and the right to examine any directly pertinent books, documents, papers, records or other materials of SubCustomer involving transactions related to this agreement.
12. SubCustomer shall not export the DPV Product outside of the United States or its territories without prior written approval of the USPS.
13. This Sublicense shall be governed by the federal laws of the United States of America, or, when no such law is applicable, then by the laws of the State of New York as interpreted by the United States Court of Appeals for the Second Circuit.

14. This Sublicense shall not be transferable, in whole or in part. The rights and obligations of SubCustomer shall be terminated immediately in the event of a dissolution, merger, buy-out, or transfer of any kind of the assets of SubCustomer.
15. All obligations of SubCustomer referred to in this Sublicense inure to the benefit of USPS.

USPS LACSLINK SOFTWARE SUBLICENSE

This Sublicense Agreement (“SubCustomer”) between SAP and Customer, its subsidiaries and affiliates, current and future (“SubCustomer”) sets forth additional terms required by the United States Postal Service (“USPS”) regarding SubCustomer’s use of the LACSLink option with other CASS certified software.

1. For purposes of this document, the following terms shall be defined as set forth below:
 - “USPS” means the United States Postal Service.
 - “Deliverables” means letters, flats, postcards, packages, leaflets, magazines, postcards, advertisements, books, and other printed material, and any other item delivered by USPS.
 - “Interface” means one or more SAP interfaces developed for use with the LACSLink Product. “LACSLink Product” means the confidential and proprietary database concerning the conversion of existing addresses to their new or update or replacement address or the like, provided by USPS in a highly and uniquely secured environment.
2. SubCustomer’s right to use the Interface shall be strictly limited to use only within the geographic boundaries governed by the United States, its territories, and possessions, and only for updating addresses and mailing lists used to prepare Deliverables for deposit with USPS in conformance with USPS requirements.

SubCustomer shall have no right to sublicense, sell or otherwise distribute, reproduce, perform, or prepare derivative works of the Interface. SubCustomer hereby acknowledges that:

 - USPS owns the LACSLink Product and USPS marks;
 - SAP provides the SAP product in part under license from USPS;
 - SubCustomer is a **Customer** under SAP’s license from USPS and obtains from SAP no broader right than granted to SAP in such license from USPS;
 - **SubCustomer** shall be strictly limited to using the Interface only as a component of the SAP product; and **SubCustomer** agrees that it does not have a right to sublicense, distribute, reproduce, perform, display, or sell the Interface or USPS’s marks.
3. BOTH SAP AND THE USPS SHALL NOT BE LIABLE FOR ANY DESIGN, PERFORMANCE OR OTHER FAULT OR INADEQUACY OF LACSLink, OR FOR DAMAGES OF ANY KIND ARISING OUT OF OR IN ANY WAY RELATED TO OR CONNECTED WITH SUCH FAULT OR INADEQUACY. IN NO EVENT SHALL SAP’S OR THE USPS’ LIABILITY TO SUBCUSTOMER UNDER THIS AGREEMENT, IF ANY, EXCEED THE PRO RATA PORTION OF THE ANNUAL LICENSE FEE FOR LACSLink BASED ON THE EFFECTIVE DATE OF CANCELLATION WITHIN THIRTY (30) CALENDAR DAYS OF THE DATE OF CANCELLATION.

4. SAP agrees to hold harmless, defend and indemnify SubCustomer for infringement of any U.S. copyright, trademark, or service mark in the LACSLink Product provided to SubCustomer under this Agreement. The foregoing obligation shall not apply unless SAP shall have been informed within five (5) calendar days by SubCustomer of the suit or action alleging such infringement and shall have been given such opportunity as is afforded by applicable laws, rules, or regulations to participate in the defense thereof. In addition, SubCustomer agrees to hold harmless, defend and indemnify SAP and the USPS and its officers, agents, representatives, and employees from all claims, losses, damage, actions, causes of action, expenses, and/or liability resulting from, brought for, or on account of any injury or damage received or sustained by any person, persons or property growing out of, occurring, or attributable to SubCustomer's performance under or related to this agreement, resulting in whole or in part from any breach of this Agreement or from the negligence or intentional misconduct, including any unauthorized disclosure or misuse of LACSLink Product, including data derived from LACSLink Product, by SubCustomer, or any employee, agent, or representative of SubCustomer.
 - a. SubCustomer acknowledges that the USPS reserves the right to stop LACSLink Product processing in the USPS' sole discretion. SAP will not be liable or responsible for any decision the USPS makes in canceling SubCustomer's Sublicense, including, but not limited to, arbitrating the cancellation decision on behalf of the customer. In the event the USPS cancels SubCustomer's LACSLink Product processing:
 - a) SubCustomer shall not be entitled to any refund or credit from SAP; and
 - b) SAP will discontinue shipping LACSLink Product directories to SubCustomer.
6. SubCustomer agrees that the USPS or its designated representatives, on an announced or unannounced basis, shall have the right to visit and examine SubCustomer's sites. USPS or its designated representatives shall have the right to examine, on or off SubCustomer's premises, SubCustomer's computer systems, processing files, documents, administrative records, and other materials to ensure SubCustomer's compliance with the provisions of this agreement.
7. SubCustomer further agrees that the USPS or its authorized representatives will, until three (3) years after final payment under this agreement, have access to and the right to examine any directly pertinent books, documents, papers, records or other materials of SubCustomer involving transactions related to this agreement.
8. SubCustomer shall not export the LACSLink Product outside of the United States or its territories without prior written approval of the USPS.
9. This Sublicense shall be governed by the federal laws of the United States of America, or, when no such law is applicable, then by the laws of the State of New York as interpreted by the United States Court of Appeals for the Second Circuit.
10. This Sublicense shall not be transferable, in whole or in part. The rights and obligations of SubCustomer shall be terminated immediately in the event of a dissolution, merger, buy-out, or transfer of any kind of the assets of SubCustomer.
11. All obligations of SubCustomer referred to in this Sublicense inure to the benefit of USPS.

DSF2 INTERFACE (USPS DELIVERY SEQUENCE FILE - DSF2)

SubCustomer has no rights as to the DSF2 Interface under this agreement beyond using it in conjunction with the DSF2 data product to update a list, system, group or other collection of addresses (herein "Mailing Lists") used for addressing letters, flats, postcards, packages, leaflets, magazines, advertisements, books and other printed material, and any other deliverable item handled by the United States Postal Service (herein "Deliverables") for delivery by the United States Postal Service (herein "USPS").

SubCustomer right to use the DSF2 Interface is strictly limited to use only within the United States, its territories, and possessions.

As to the Interface, SubCustomer has the right only to sequence and/or update Mailing Lists used to prepare Deliverables that will be deposited with the USPS.

SubCustomer has no right to sublicense, sell, assign, or otherwise transfer rights in, reproduce, perform, attempt to improve, reverse engineer, modify or otherwise change, or prepare derivative works of the Interface. Any attempt to sublicense, sell, assign, or otherwise transfer rights in, or otherwise distribute the Interface shall be void.

SubCustomer acknowledges

- a) that USPS owns the DSF2 data, technology, and system in its entirety including that used in the development of the Interface;
- b) that USPS owns and retains rights in the trademark of DSF2 and in the registered trademarks UNITED STATES POSTAL SERVICE®, POSTAL SERVICE ®, US POSTAL SERVICE®, AND USPS® ;
- c) that Customer is providing the Interface to SubCustomer solely for use with the DSF2 Product under a nonexclusive, limited distribution license from USPS; and
- d) that the rights SubCustomer obtains in this license are derived from Customer's agreement with USPS and SubCustomer obtains from Customer no broader right than Customer obtains from USPS, except as to SubCustomer's specific right to use the DSF2 Interface to access the DSF2 data.

SubCustomer is strictly limited to using the Interface only with the DSF2 Product; and

SubCustomer acknowledges and agrees that SubCustomer has no right to sublicense, sell, distribute, reproduce, or display USPS trademarks or sell the Interface or other products under USPS's trademarks.

EXHIBIT 6 – SAP BUSINESS ONE SOFTWARE

PREAMBLE

The minimum license requirements for an SAP Business One system is 1 SAP Business One Starterpackage User or 1 SAP Business One Professional User.

- As part of SAP Business One software SAP provides preconfigured SAP Crystal Reports and SAP Crystal Dashboards. Such reports and dashboards are available without additional license fee (see SAP Crystal Versions for SAP Business One).
- SAP Business One software requires a database. Such data base can be licensed via SAP, it's authorized reseller or direct via the database vendor or it's authorised reseller.
- All individuals using SAP Business One, also through reporting tools, require an SAP Business One license.

1. INTEGRATION FRAMEWORK FOR SAP SMES

- 1.1 **Integration Framework for SAP SMES** is part of the SAP Business One license, except for the Starter Package User.

2. SAP BUSINESS ONE STARTER PACKAGE USER

- 2.1 **Minimum license requirement:** 1 SAP Business One Starter Package User.
- 2.2 Maximum number of licenses is limited to a total of 5 for the sum of SAP Business One Starter Package Users and SAP Customer Checkout devices.
- 2.3 If Customer requires more than the maximum number of five (5) licenses, all SAP Business One Starter Package Users need to be licensed as SAP Business One Professional or Limited Professional User.
- 2.4 The SAP Business One Starter Package User can only be combined with "SAP Business One Indirect Access by non-employees" or "SAP Customer Checkout" and cannot be combined with any SAP Business One user type or product options.

3. SAP CRYSTAL VERSIONS FOR SAP BUSINESS ONE

- 3.1 SAP provides preconfigured SAP Crystal Reports and SAP Crystal Dashboards as a part of SAP Business One.
- 3.2 Such reports and dashboards are available to all SAP Business One Named Users without additional license fee.
- 3.3 A single SAP Business One system includes 1 user for SAP Crystal Reports, without additional license fee.

- 3.4 SAP Crystal product versions for SAP Business One
- a) are restricted for Use with the SAP Business One application data;
 - b) are further subject to the terms and conditions applicable to SAP Crystal as stated in the List of Prices and Conditions for SAP Software and Support; and
 - c) cannot be in deployed in a standalone environment.

- 3.5 SAP Crystal Reports, version for the SAP Business One application :
- provides a single user license that grants access rights to use SAP Crystal Reports, version for SAP Business One. Prerequisite: Customer has to purchase 1 Professional User or 1 Limited User or one Indirect access User for each option licensed.

4. SAP BUSINESS ONE INDIRECT ACCESS, BY NON-EMPLOYEES

- 4.1 SAP Business One Indirect Access by Non-employees is an Instance authorized to access Business One via its application programming interfaces only. It cannot access any of the user interfaces (desktop and mobile) developed by SAP. It cannot be used by employees and contingent workers (including Statement of work-based consultants, independent contractors; freelancers, other outsourced and non-permanent workers who are hired on a per-project basis) . Those users are required to license a B1 named user license for their use. The SAP Application(s) and their required instances can be used without additional license fee. For the purpose of this Section, "SAP Application(s)" means all Packages (i.e. all Software and Third Party Software) licensed under the a Software Contract and/or SAP cloud services for which Costumer has a valid subscription, excluding SAP Technology Solutions and all database Packages.

5. SAP CUSTOMER CHECKOUT SAP

Customer Checkout is a Point Of Sales solution. No prerequisite.

6. SAP BUSINESS ONE NAMED USER

- 6.1 A **SAP Business One Professional User** is a Named User who performs operational related roles supported by the SAP Business One Software. The SAP Business One Professional User license is needed to administer an SAP Business One system work with production and Material Resource Planning (MRP) and use the SAP Business One Software Development Kit (SDK). The SAP Business One Professional User includes the rights granted under a SAP Business One Mobile Application User, SAP Business One Limited CRM User, SAP Business One Limited Financial User, SAP Business One Limited Logistic User and SAP Business One Indirect Access User license.
- 6.2 **SAP Business One Limited User** is a Named User who has access rights to the SAP Business One functionality to support operational processing and information requirements in a specific role. Each Limited User can be requested as one of these roles: CRM, Financial or Logistic. The SAP Business One Limited User license includes the rights granted under a SAP Business One Mobile Application User, SAP Business One Indirect Access User license.

- 6.3. **SAP Business One Limited to SAP Business One Professional User** is a Named User authorized to perform SAP Business One Professional User related roles supported by the licensed Software if such Named User is also an individual licensed from SAP as an SAP Business One Limited User and both are licensed for the same runtime database, if any. If receiving maintenance under the maintenance agreement, Customer must be subscribed to and fully paid on maintenance for both this User and the underlying SAP Business One Limited User for so long as Customer continues to receive maintenance under the maintenance agreement. This allow the upgrade from: SAP Business One Limited CRM User to SAP Business One Professional User; SAP Business One Limited Financial User to SAP Business One Professional User; SAP Business One Limited Logistic User to SAP Business One Professional User; SAP Business One Limited to SAP Business One Professional User; SAP Business One CRM Sales User to SAP Business One Professional User; SAP Business One CRM Service User to SAP Business One Professional User.
- 6.4. **SAP Business One Mobile Application User** is a Named User who has access rights to the 'SAP Business One Sales or SAP Business One Service mobile application only. The SAP Business One Mobile Application User license includes the rights granted under an SAP Business One Indirect Access User license.
- 6.5. **SAP Business One Indirect Access, user-based** is a Named User authorized to access Business One via its application programming interfaces only. It cannot access any of the user interfaces (desktop and mobile) developed by SAP.
- 6.6. **SAP Business One Starter Package User** is a Named User who performs operational related roles supported by the SAP Business One Starter Package Software. The SAP Business One Starter Package User license includes the rights granted under a SAP Business One Mobile Application User and SAP Business One, Indirect Access User license. The SAP Business One Starter Package User license does not include the rights granted under a SAP Business One Professional User.
- 6.7. **SAP Business One Starter Package to SAP Business One Professional User** is a Named User authorized to perform SAP Business One Professional User related roles supported by the licensed Software provided such Named User is also an User licensed from SAP as an SAP Business One Starter Package User and both such Users are licensed for the same runtime database, if any. If receiving maintenance under the maintenance agreement, Customer must be subscribed to and fully paid on maintenance for both this User and the underlying SAP Business One Starter Package User for so long as Customer continues to receive maintenance under the maintenance agreement.
- 6.8. **SAP Business One Starter Package to SAP Business One Limited User** is a Named User authorized to perform SAP Business One Limited User related roles supported by the licensed Software provided such Named User is also an User licensed from SAP as an SAP Business One Starter Package User and both such Users are licensed for the same runtime database, if any. If receiving maintenance under the maintenance agreement, Customer must be subscribed to and fully paid on maintenance for both this User and the underlying SAP Business One Starter Package User for so long as Customer continues to receive maintenance under the maintenance agreement.

7. SAP BUSINESS ONE METRICS

- 7.1 **“Contract price”** is the net value of the Software Agreement. Contract price for partners is defined as the amount the Partner has to pay for SAP and Third Party Software to SAP. So, the Contract price for Partners is calculated based on the price recommended by manufacturer minus all partner discounts.
- 7.2 **“Devices”** are any piece of equipment or hardware and include but are not limited to: a workstation, terminal, point of sale terminal, notebook, handheld, tablet, PDA, smartphone, internet connected television, scale devices, devices installed in a vehicle (on-board units) or other networked devices. The application itself defines the type of devices that are used and therefore counted for the price list item (e.g., SAP SQL Anywhere database for Use with SAP POS for Retail devices are defined as those devices accessing data from SQL Anywhere database or e. g. SAP Mobile Order Management devices are all devices installed as on-board units in a vehicle).
- 7.3 **“Gigabytes of memory”** are the total amount of memory that may be used by the Software, as measured in gigabytes.
- 7.4 **“Instances”** are unique connections to a single specified application or technology type.
- 7.5 **“MSRP (Manufacturer Suggested Reselling Price)”** is the list price minus volume discount.
- 7.8. **“Users”** are individuals who Use the Software.

8. PRODUCT SPECIFIC TERMS FOR BUSINESS ONE SOFTWARE

8.1 SAP Business One Engine for SAP HANA

- 8.1.1. CustomerSAP Business One, version for SAP HANA Engine is a runtime restricted license database for SAP Business One and SAP Business One Add-ons, including SAP Business Add-ons created by SAP partners or SAP Business One Add-ons created by Customer. Customer shall only use the SAP Business One, version for SAP HANA Engine in connection with SAP Business One Software and SAP Business One Add-ons and only for the purposes of its own internal data processing which includes access of third party user authorized by Customer such as contractors, supply chain vendors or suppliers, customers, or third party individuals authorized by Customer. Any access to the SAP Business One, version for SAP HANA Engine, including but not limited to data loading, modeling, reporting and distribution, must take place via SAP Business One or SAP Business One Add-ons.
- 8.1.2. The SAP Business One, version for SAP HANA Engine includes a runtime license of HANA Studio, Cockpit and Web IDE and access is solely to administer and manage the SAP Business One, version for SAP HANA Engine, or for system administration tasks and data modeling for reporting requirements. The SAP Business One, version for SAP HANA Engine cannot be deployed on the same system as any other SAP HANA

software. The SAP Business One, version for SAP HANA Engine is licensed for addressable RAM memory and can only run on SAP certified hardware and with the supported operating system(s).

8.1.3. The SAP Business One, version for SAP HANA Engine includes a runtime license for all the SAP HANA components included in the package SAP HANA, 2.0 Enterprise Edition for SAP Business One.

8.1.4 The SAP Business One, version for SAP HANA engine includes use rights to perform analytics content provided by the licensed SAP Business One Analytics software used solely in conjunction with SAP Business One.

**Support for SAP Business One is subject to conclusion of a support agreement.

9. LOCALIZATIONS

9.1. Licenses for SAP Business One software can be used on any of the localizations supported by SAP Business One software. However, for SAP Business One software licensed after 01.01.2010, the license key will be issued 'per localization'. By default the localization of the requested software country version will be released. Each licensed Named User can only access the localization for which the license key was issued. Employees that require access to two or more localizations will require two or more Named User licenses.

10. FAIL-OVER SYSTEMS

10.1 For any operating system environment in which Customer runs systems of SAP Business One software, Customer may run up to the same number of passive fail-over systems of SAP Business One software in a separate operating system environment for temporary support. Customer may run the passive fail-over installation of SAP Business One software on a hardware server other than the licensed hardware server.

11. TEST SYSTEMS

11.1 The Customer is entitled to run 1 SAP Business One software system for internal testing purposes. For such Customertest system, Customer may use the same users which Customer has licensed for productive use of SAP Business One software.

PART 3 SAP MAINTENANCE AND SUPPORT

This part of the document contains the conditions for the SAP Support provided for the software as referenced in the contractual agreements.

Maintenance Phases and Support Offerings

In order to receive support the Customer needs to define a central point of contact for contract processing with SAP (including license audit, billing, order processing, user master and installation data management).

SAP offers different Maintenance Phases for a particular software release. The scope of SAP Support for a specific software release depends upon the maintenance phase applicable to that specific release. Since SAP's software licensing is release-independent, the relevant maintenance phase depends only on the actually implemented release of the software but not on the underlying software license. The maintenance phases described below apply for SAP Business Suite as well as SAP NetWeaver. For the SAP BusinessObjects portfolio and within product bundles, different maintenance phases may apply.

The following section 1.1 distinguishes 3 maintenance phases: Mainstream Maintenance, Extended Maintenance and Customer-specific Maintenance. They apply for SAP Business Suite as well as SAP NetWeaver. For the SAP BusinessObjects portfolio, different maintenance phases may apply. For the purposes of this section 1.1, "SAP Support" is referring to SAP Enterprise Support, SAP Product Support for Large Enterprises and SAP Standard Support, subject to the contractual agreement.

Access to SAP Support Advisory Center and Remote Services, e.g. Continuous Quality Checks , Knowledge Transfer Sessions and Guided Self Services (each as applicable under the respective service description) will only be provided subject to Customer's establishment of a mission critical deployment by certification of its Customer COE.

SAP Solution Manager Enterprise Edition is available to all SAP Support customers to the extent stated in the applicable service description, but currently does currently interface only with selected SAP Business Objects portfolio products. Customers of SAP Support will be required to install Solution Manager and utilize its capabilities (at a minimum, remote support component in the case of Customers using only SAP BusinessObjects portfolio products) in the event at least one licensed SAP BusinessObjects portfolio product is supported by SAP Solution Manager Enterprise Edition.

Customer must choose one of the SAP Support models (SAP Enterprise Support, SAP PSLE or SAP Standard Support) for its entire SAP landscape. Mixed SAP landscapes, i. e. SAP landscapes that are supported under different SAP Support models, are not permitted. Until the execution of a holistic agreement for one of the SAP Support models

for Customer's entire SAP landscape in case of a mixed SAP landscape, only SAP Enterprise Support can be agreed on for additional licenses.

The prices for the respective SAP Support model, that are in principle applicable at the time of a contract conclusion, are provided in the document „SAP Price List (Part for SAP Applications and Technology Platform on-premise Solutions, SAP Business One)“ referenced to herein. In individual cases, these prices may differ, in particular if Software was previously under SAP Support and increases of the SAP Support Fee have already taken place. Prices will be communicated by SAP on request in individual cases.

1.1. Maintenance Phases

1.1.1. Mainstream Maintenance

Mainstream Maintenance is the first maintenance phase for a release, starting with SAP's release to customer date. During Mainstream Maintenance, Customer receives the full scope of SAP Support features as defined in the respective sections. Mainstream Maintenance is covered by the SAP Support Agreement.

1.1.2. Extended Maintenance

After the end of the Mainstream Maintenance period, SAP offers Extended Maintenance for selected releases of SAP software. During the Extended Maintenance phase, the scope of SAP Support conforms usually to the scope during Mainstream Maintenance. For some releases some restrictions may apply, that is, the scope of SAP Support may be reduced or different.

The duration and the scope of Extended Maintenance are specified individually for each release. For detailed information on the availability, scope and restrictions of Extended Maintenance please check <https://support.sap.com/en/release-upgrade-maintenance/maintenance-information/maintenance-strategy/maintenance-phases.html>.

Extended Maintenance is an optional offering and requires a separate, additional contract on top of the SAP Support Agreement, if not expressly stated otherwise in this document. Pricing for Extended Maintenance is available upon request.

1.1.3. Customerspecific Maintenance

When the Mainstream Maintenance period ends and no Extended Maintenance is offered, or when the Mainstream Maintenance period ends and the Customer does not take advantage of an existing Extended Maintenance offering, or when the Extended Maintenance period ends, or when the Customer's Extended Maintenance contract expires, a release enters into Customerspecific Maintenance.

During this phase, the Customer receives support services as in the Mainstream Maintenance phase with some restrictions, that is, the scope of SAP Support is reduced. For detailed information please refer to

<https://support.sap.com/release-upgrade-maintenance/maintenance-strategy/phases/customer-specific.html> . Customerspecific Maintenance is covered by the SAP Support Agreement.

For more information, please refer to <https://support.sap.com/releasestrategy>

1.2. SAP Enterprise Support

1.2.1. Definitions

The following definitions only apply to the Section 1.2.

- **“Calendar Quarter”** means the three-months'-period, ending on March 31, June 30, September 30, or December 31 respectively of any given calendar year.
- **“Enterprise Support Solutions”** shall mean all software for which SAP provides SAP Enterprise Support, excluding software to which special support agreements apply exclusively.
- **“Go-Live”** marks the point in time from when, after implementation of the Enterprise Support Solutions or an upgrade of the Enterprise Support Solutions, the Enterprise Support Solutions can be used by Customer for processing real data in live operation mode and for running Customer's internal business processes as contractually agreed.
- **“Customer Solutions”** shall mean Enterprise Support Solutions and any other software licensed by Customer from third parties .
- **“Customer IT Solution(s)”** shall mean Customer Solution(s) and hardware systems supported by Customer's IT team.
- **“Production System”** shall mean a live SAP system used for running Customer's internal business processes and where Customer's data is recorded.
- **“SAP Software Solution(s)”** shall mean a group of one or multiple Production Systems running Customer Solutions and focusing on a specific functional aspect of Customer's internal business processes. Details and examples can be found on SAP's Customer Support Website (as specified in SAP Note 1324027 or any future SAP Note that replaces SAP Note 1324027).
- **“Service Session”** shall mean a sequence of support activities and tasks carried out remotely to collect further information by interview or by analysis of a Production System resulting in a list of recommendations. A Service Session could run manually, as a self-service or fully automated.
- **“Top Issues”** shall mean software issues and/or failures identified and prioritized jointly by SAP and Customer in accordance with SAP standards which (i) endanger Go-Live of a pre-production system or (ii) have a significant business impact on a Production System.
- **“Local Office Time”** shall mean regular working hours (8.00 a.m. to 6.00 p.m. CEST) during regular working days, in accordance with the applicable public holidays observed by SAP's registered office and December 24 and 31. With regard to SAP Enterprise Support only, both parties can mutually agree upon a different registered office of one of SAP's affiliates to apply and serve as reference for the Local Office Time.
- **“SAP's Customer Support Website”** shall mean SAP's customer facing support website under <http://support.sap.com/>.

1.2.2 Scope of SAP Enterprise Support

SAP Enterprise Support currently includes:

Continuous Improvement and Innovation

- New software releases of the licensed Enterprise Support Solutions, as well as tools and procedures for upgrades.
- Support packages - correction packages to reduce the effort of implementing single corrections. Support packages may also contain corrections to adapt existing functionality to changed legal and regulatory requirements.
- For releases of the SAP Business Suite 7 core applications (starting with SAP ERP 6.0 and with releases of SAP CRM 7.0, SAP SCM 7.0, SAP SRM 7.0 and SAP PLM 7.0 shipped in 2008), SAP may provide enhanced functionality and/or innovation through enhancement packages or by other means as available. During mainstream maintenance for an SAP core application release, SAP 's current practice is to provide one enhancement package or other update per calendar year.
- Technology updates to support third party operating systems and databases. Details on SAP's release strategy and recommendations for technology updates for SAP's enhancement packages can be found on the SAP Support Website.
- Available ABAP source code for SAP software applications and additionally released and supported function modules.
- Software change management, such as changed configuration settings or Enterprise Support Solutions upgrades, is supported, currently with content, tools and information material.
- SAP provides Customer with up to five days remote support services per calendar year from SAP solution architects
- to assist Customer in evaluating the innovation capabilities of the latest SAP enhancement package and how it may be deployed for Customer's business process requirements.
- to give Customer guidance in form of knowledge transfer sessions, weighted one day, for defined SAP software/applications or Global Support Backbone components; currently content and session schedules are stated at <http://support.sap.com/enterprisesupport>. Scheduling, availability and delivery methodology is at SAP's discretion.
- SAP gives Customer access to guided self-services as part of SAP Solution Manager Enterprise Edition, helping the Customer to optimize technical solution management of selected Enterprise Support Solutions.
- Configuration guidelines and content for Enterprise Support Solutions is usually shipped via SAP Solution Manager Enterprise Edition.
- Best practices for SAP System Administration and SAP Solution Operations for Enterprise Support Solutions.
- SAP configuration and operation content is supported as part of Enterprise Support Solutions.

- Content, tools and process descriptions for SAP Application Lifecycle Management are part of the SAP Solution Manager Enterprise Edition, the Enterprise Support Solutions and/or the applicable Documentation for the Enterprise Support Solutions

Advanced Support for Enhancement Packages and other SAP Software Updates

SAP offers special remote checks delivered by SAP solution experts to analyze planned or existing modifications and identify possible conflicts between Customer custom code and enhancement packages and other Enterprise Support Solutions updates. Each check is conducted for one specific modification in one of Customer's core business process steps. Customer is entitled to receive two out of the following services per calendar year per SAP Software Solution.

- **Modification Justification:** Based on Customer's provision of SAP required documentation of the scope and design of a planned or existing custom modification in SAP Solution Manager Enterprise Edition, SAP identifies standard functionality of Enterprise Support Solutions which may fulfill the Customer's requirements (for details see <http://support.sap.com/>).
- **Custom Code Maintainability:** Based on Customer's provision of SAP required documentation of the scope and design of a planned or existing custom modification in SAP Solution Manager Enterprise Edition, SAP identifies which user exits and services may be available to separate custom code from SAP code.

Global Support Backbone

- SAP's Customer Support Website – the website with SAP's knowledge database and SAP's extranet for knowledge transfer on which SAP makes available content and services to Customer's and partners of SAP only.
- SAP Notes on SAP's Customer Support Website document software malfunctions and contain information on how to remedy, avoid and bypass errors. SAP Notes may contain coding corrections that Customer's can implement into their SAP system. SAP Notes also document related issues, Customer questions, and recommended solutions (e.g. customizing settings).
- SAP Note Assistant - a tool to install specific corrections and improvements to SAP components.
- SAP Solution Manager Enterprise Edition – as described in Section 1.2.6.

Mission Critical Support

- Global incident handling by SAP for problems related to Enterprise Support Solutions, including Service Level Agreements for Initial Reaction Time and Corrective Action (for more information refer to Section 1.2.3).
- SAP Support Advisory Center – as described in Section 1.2.4
- Continuous Quality Checks – as described in Section 1.2.5

- Global 24x7 root cause analysis and escalation procedures in accordance with section 1.2.3 below.
- Root Cause Analysis for Custom Code: For Customer custom code built with the SAP development workbench, SAP provides mission-critical support root-cause analysis, according to the Global Message Handling Process and Service Level Agreement stated in Section 1.2.3 applicable for priority “very high” and priority “high” messages. If the Customer custom code is documented according to SAP’s then-current standards (for details see <http://support.sap.com/supportstandards>) SAP may provide guidance to assist Customer in issue resolution

Other Components, Methodologies, Content and Community Participation

- Monitoring components and agents for systems to help monitor available resources and collect system status information of the Enterprise Support Solutions (e.g. Early Watch Alert)
- Process descriptions and process content that may be used as preconfigured test templates and test cases via the SAP Solution Manager Enterprise Edition. In addition the SAP Solution Manager Enterprise Edition assists Customer’s testing activities
- Content and supplementary tools designed to help increase efficiency, in particular for implementations.
- Tools and content for SAP Application Lifecycle Management (shipped via SAP Solution Manager Enterprise Edition and/or the Enterprise Support Solutions and/or the applicable Documentation for Enterprise Support Solutions and/or SAP’s Customer Support Website):
 - Tools for implementation, configuration, testing, operations and system administration
 - Best practices, guidelines, methodologies, process descriptions and process content. This content supports the usage of the tools for SAP Application Lifecycle Management.
- Access to guidelines via SAP’s Customer Support Website, which may include implementation and operations processes and content designed to help reduce costs and risks.
- Participation in SAP’s customer and partner community (via SAP’s Customer Support Website), which provides information about best business practices, service offerings, etc.

1.2.3. Global Incident Handling and Service Level Agreements (SLA)

When Customer reports malfunctions, SAP supports Customer by providing information on how to remedy, avoid and bypass errors. The main channel for such support will be the support infrastructure provided by SAP. Customer may send an incident at any time. All persons involved in the incident resolution process can access the status of the incident at any time. For further details on definition of incident priorities see SAP Note 67739.

In exceptional cases, Customer may also contact SAP by telephone. Contact details are provided in SAP Note 560499. SAP's support requires that License provide remote access as specified in Section 1.2.7.

The following Service Level Agreements ("SLA" or "SLAs") shall apply to all Customer incidents that SAP accepts as being Priority 1 or 2 and which fulfill the prerequisites specified herein. Such SLAs shall commence in the first full Calendar Quarter following the Effective Date of the Enterprise Support contract.

1.2.3.1. SLA for Initial Response Times

a) **Priority 1 Incidents ("Very High")**

SAP shall respond to Priority 1 incidents within one (1) hour of SAP's receipt (twenty-four hours a day, seven days a week) of such Priority 1 incidents. An incident is assigned Priority 1 if the problem has very serious consequences for normal business transactions and urgent, business critical work cannot be performed. This is generally caused by the following circumstances: complete system outage, malfunctions of central SAP functions in the Production System, or Top Issues, and for each circumstance a workaround is not available.

b) **Priority 2 Incidents ("High")**

SAP shall respond to Priority 2 incidents within four (4) hours of SAP's receipt during SAP's Local Office Time of such Priority 2 incidents. An incident is assigned Priority 2 if normal business transactions in a Production System are seriously affected and necessary tasks cannot be performed. This is caused by incorrect or inoperable functions in the SAP system that are required to perform such transactions or tasks.

1.2.3.2. SLA for Corrective Action Response Time for Priority 1 Incidents

SAP shall provide a solution, work around or action plan for resolution ("Corrective Action") of Customer's Priority 1 incident within four hours of SAP's receipt (twenty-four hours a day, seven days a week) of such Priority 1 incident ("SLA for Corrective Action"). In the event an action plan is submitted to Customer as a Corrective Action, such action plan shall include: (i) status of the resolution process; (ii) planned next steps, including identifying responsible SAP resources; (iii) required Customer actions to support the resolution process; (iv) to the extent possible, planned dates for SAP's actions; and (v) date and time for next status update from SAP. Subsequent status updates shall include a summary of the actions undertaken so far; planned next steps; and date and time for next status update.

The SLA for Corrective Action only refers to that part of the processing time when the incident is being processed at SAP ("Processing Time"). Processing Time does not include the time when the incident is on status "Customer Action" or "SAP Proposed Solution", whereas (a) the status Customer Action means the incident was handed over to Customer; and (b) the status SAP Proposed Solution means SAP has provided a Corrective Action as outlined herein. The SLA for Corrective Action shall be deemed met if within four hours of processing time: SAP proposes a solution, a workaround or an

action plan; or if SAP reduces the priority level of the incident after consulting with Customer.

1.2.3.3. Prerequisites and Exclusions

a) **Prerequisites**

The SLAs shall only apply when the following prerequisites are met for incidents:

- In all cases except for Root Cause Analysis for Custom Code under Section 1.2, incidents are related to releases of Enterprise Support Solutions which are classified by SAP with the shipment status “unrestricted shipment”;
- incidents are submitted by Customer in English via the SAP Solution Manager Enterprise Edition in accordance with SAP’s then current incident handling log-in procedure which contain the relevant details necessary (as specified in SAP Note 16018 or any future SAP Note which replaces SAP Note 16018) for SAP to take action on the reported incident;
- incidents are related to a product release of Enterprise Support Solutions which falls into Mainstream Maintenance or Extended Maintenance.

For Priority 1 incidents, especially without being limited to the following additional prerequisites must be fulfilled by Customer:

- The issue and its business impact are described in detail sufficient to allow SAP to assess the issue;
- Customer makes available for communications with SAP, twenty four (24) hours a day, seven (7) days a week, an English speaking contact person with training and knowledge sufficient to aid in the resolution of the Priority 1 incident consistent with Customer’s obligations hereunder; and
- A Customer contact person is provided for opening a remote connection to the system and to provide necessary log-on data to SAP.

b) **Exclusions**

For SAP Enterprise Support in particular the following types of Priority 1 incidents are excluded from the SLAs:

- Incidents regarding a release, version and/or functionalities of Enterprise Support Solutions developed specifically for Customer (including without limitation those developed by SAP Custom Development and/or by SAP subsidiaries) except for custom code built with the SAP development workbench;
- Incidents regarding country versions that are not part of the Enterprise Support Solutions and instead are realized as partner Add-ons, enhancements, or modifications is expressly excluded even if these country versions were created by SAP or an affiliate of SAP
- Support messages where the root cause is not a malfunction, but missing functionality (“development request”) or the support message is ascribed to a consulting request.

1.2.3.4. Service Level Credit

- a) SAP shall be deemed to have met its obligations pursuant to the SLAs as stated above by reacting within the allowed time frames in ninety-five percent (95%) of the aggregate cases for all SLAs within a Calendar Quarter. In the event Customer submits less than twenty (20) incidents (in the aggregate for all SLAs) pursuant to the SLAs stated above in any Calendar Quarter during the Enterprise Support term, Customer agrees that SAP shall be deemed to have met the obligations pursuant to the SLAs stated above if SAP has not exceeded the stated SLA time-frame in more than one incident during the applicable Calendar Quarter.
- b) Subject to section a. above, in the event that the timeframes for the SLA's are not met (each a "Failure"), the following rules and procedures shall apply:
- Customer shall inform SAP in writing of any alleged Failure;
 - SAP shall investigate any such claims and provide a written report in which SAP states whether Customer claim is justified;
 - Customer shall provide reasonable assistance to SAP in its efforts to correct any problems or processes inhibiting SAP's ability to reach the SLAs;
 - Except as otherwise provided in this section 1.2.3.4, if such a report shows SAP has committed a culpable noncompliance, Customer is entitled to liquidated damages corresponding to 0.25% of the agreed fee for SAP Enterprise Support for the Calendar Quarter in which the noncompliance occurred. Such liquidated damages are limited in total to 5% of the SAP Enterprise Support fee for the affected Calendar Quarter. These liquidated damages can only be applied as a Service Level Credit ("SLC") to be set off against the next SAP Enterprise Support Services annual maintenance fee. They will not be paid out.
 - The parties agree that this limitation reflects to the actual quantum of loss they would normally expect to arise out of a noncompliance. All other claims arising out of a noncompliance, including but not limited to claims for damages, are excluded except in respect of liability for gross negligence, intent, personal injury, and liability under the German Product Liability Act.
 - The Customer must notify SAP of any claims within one month after the end of the Calendar Quarter in which the noncompliance occurred by giving written reasoned notice of the claim.

1.2.4. SAP Support Advisory Center

For Priority 1 issues and Top Issues directly related to the Enterprise Support Solutions, SAP shall make available a global unit within SAP's support organization for mission critical support related requests (the "Support Advisory Center"). The Support Advisory Center will perform the following mission critical support tasks:

- Remote support for Top Issues – the Support Advisory Center will act as an additional escalation level, enabling 24X7 root cause analysis for problem identification;
- Continuous Quality Check service delivery planning in collaboration with Customer's IT, including scheduling and delivery coordination;

- Provide one SAP Enterprise Support report on request per calendar year;
 - Remote primary certification of the SAP Customer Center of Expertise if requested by Customer; and
 - Provide guidance in cases in which Continuous Quality Checks (as defined in Section 1.2.5 below), an action plan and/or written recommendations of SAP show a critical status (e.g. a red CQC report) of the Enterprise Support Solutions.

As preparation for the Continuous Quality Check delivery through SAP Solution Manager Enterprise Edition, Customer's Contact Person and SAP shall jointly perform one mandatory setup service ("Initial Assessment") for the Enterprise Support Solutions. The Initial Assessment shall be based upon SAP standards and documentation.

The designated SAP Support Advisory Center will be English speaking and available to Customer's Contact Person (as defined below) or its authorized representative twenty-four hours a day, seven days a week for mission critical support related requests. The available local or global dial-in numbers are shown in SAP Note 560499.

The Support Advisory Center is only responsible for the above mentioned mission critical support related tasks to the extent these tasks are directly related to issues or escalations regarding the Enterprise Support Solutions.

1.2.5. SAP Continuous Quality Check

In case of critical situations related to the SAP Software Solution (such as Go Live, upgrade, migration or Top Issues), SAP will provide at least one Continuous Quality Check (the "Continuous Quality Check" or "CQC") per calendar year for each SAP Software Solution.

The CQC may consist of one or more manual or automatic remote Service Sessions. SAP may deliver further CQC's in cases where vital alerts reported by SAP EarlyWatch Alert or in those cases where Customer and the SAP Advisory Center mutually agree that such a service is needed to handle a Top-Issue. Details, such as the exact type and priorities of a CQC and the tasks of SAP and cooperation duties of Customer, shall be mutually agreed upon between the parties. At the end of a CQC, SAP will provide Customer with an action plan and/or written recommendations.

SAP expressly states that all or part of the CQC sessions may be delivered by SAP and/or a certified SAP partner acting as SAP's subcontractor and based on SAP's CQC standards and methodologies. Customer agrees to provide appropriate resources, including but not limited to equipment, data, information, and appropriate and cooperative personnel, to facilitate the delivery of CQC's hereunder.

SAP finally states that SAP limits CQC re-scheduling to a maximum of three times per year. Re-scheduling must take place in any case at least 5 working days before the planned delivery date. If Customer fails to follow these guidelines, SAP is not obliged to deliver the yearly CQC to the Customer.

1.2.6. SAP Solution Manager Enterprise Edition under SAP Enterprise Support

1.2.6.1. Use of SAP Solution Manager Enterprise Edition (and its successors as provided by the respective Support contracts) shall be subject to the agreement on the provision and licensed use of the software and is provided for the following purposes only under SAP

Enterprise Support: (i) delivery of SAP Enterprise Support and (ii) application lifecycle management for CustomerIT Solutions. Such application lifecycle management is limited solely to the following purposes:

- implementation, configuration, testing, operations, continuous improvement and diagnostics;
- incident management (service desk), problem management and change request management as enabled using SAP CRM technology integrated in SAP Solution Manager Enterprise Edition.
- mobile application lifecycle management scenarios using SAP NetWeaver Gateway (or equivalent technology) integrated in SAP Solution Manager Enterprise Edition.
- management of application lifecycle management projects for CustomerIT Solutions using the project management functionality of SAP Project and Portfolio Management integrated in SAP Solution Manager Enterprise Edition. (However, the portfolio management functionality of SAP Project and Portfolio Management is not in scope of SAP Solution Manager Enterprise Edition and will need to be licensed separately by Customer.)
- administration, monitoring, reporting and business intelligence as enabled using SAP NetWeaver technology integrated in SAP Solution Manager Enterprise Edition. Business intelligence may also be performed provided the appropriate SAP BI software is licensed by CustomerCustomer as part of the Enterprise Support Solutions.

For application lifecycle management as outlined under section (ii) above, Customer does not require a separate Package license to SAP CRM.

1.2.6.2. Customer is entitled to use those SAP databases which are listed on SAP's Customer Support Website that are generally available to all SAP Customer's together with SAP Solution Manager. This runtime license is limited to the use of the relevant database as underlying database of the SAP Solution Manager and limited to the term of the SAP Enterprise Support contract.

1.2.6.3. SAP Solution Manager Enterprise Edition may not be used for purposes other than those stated above. Without limiting the foregoing restriction, Customer shall especially without limitation not use SAP Solution Manager Enterprise Edition for (i) CRM scenarios such as opportunity management, lead management, or trade promotion management, except as CRM scenarios are expressly stated in Section 1.2.6.1; (ii) SAP NetWeaver usage types other than those stated above; or (iii) application life-cycle management and in particular incident management (service desk) except for Customer IT Solutions; (iv) non-IT shared services capabilities, including without limitation HR, Finance or Procurement; (v) SAP Project and Portfolio Management including but not limited to portfolio management or project management other than management of application lifecycle management projects as described above in Section 1.2.6.1; (vi) SAP NetWeaver Gateway, except for the mobile application lifecycle management scenarios within the scope described above in Section 1.2.6.1.

1.2.6.4. SAP – in its sole discretion – may update from time to time on SAP's Customer Support Website under <http://support.sap.com/solutionmanager> the use cases for SAP Solution Manager Enterprise Edition under this section 1.2.6.

1.2.6.5. SAP Solution Manager Enterprise Edition shall only be used during the term of the Enterprise Support Agreement subject to the licensed rights for the Software and exclusively for Customer's SAP-related support purposes in support of Customer's

internal business operations. The right to use any SAP Solution Manager Enterprise Edition capabilities under SAP Enterprise Support other than those listed above is subject a separate written agreement with SAP, even if such capabilities are accessible through or related to SAP Solution Manager Enterprise Edition. Customer shall be entitled to allow any of its employees to use Web self services in the SAP Solution Manager Enterprise Edition during the term of the SAP Enterprise Support Agreement like creating support tickets, requesting support ticket status, ticket confirmation and change approvals directly related to Customer IT Solutions.

1.2.6.6. In the event Customer terminates SAP Enterprise Support and receives SAP Standard Support in accordance with section 1.2.10, Customer's use of SAP Solution Manager Enterprise Edition under SAP Enterprise Support shall cease. Thereafter, Customer's use of SAP Solution Manager Enterprise Edition shall be governed by the terms and conditions of the SAP Standard Support Agreement.

1.2.6.7. Use of SAP Solution Manager Enterprise Edition may not be offered by Customer as a service to third parties even if such third parties have licensed SAP software; provided, third parties authorized to access the SAP software under the software license agreement may have access to SAP Solution Manager Enterprise Edition solely for SAP-related support purposes in support of Customer's internal business operations under and in accordance with the terms of the Enterprise Support Agreement.

1.2.7 Customer's Responsibilities

SAP Enterprise Support Program Management

In order to receive SAP Enterprise Support hereunder, Customer shall designate a qualified English speaking contact within its SAP Customer Center of Expertise for the Support Advisory Center (the "Contact Person") and shall provide contact details (in particular e-mail address and telephone number) by means of which the Contact Person or the authorized representative of such Contact Person can be contacted at any time. Customer's Contact Person shall be Customer's authorized representative empowered to make necessary decisions for Customer or bring about such decision without undue delay.

Other Requirements

In order to receive SAP Enterprise Support hereunder, Customer must especially without being limited to:

- Hold all necessary licenses for the Customer Solutions;
- Continue to pay all Enterprise Support Service Fees as contractually agreed.
- Otherwise fulfill its obligations under the contracts for the provision and licensed use of Software and the Enterprise Support agreement.
- Provide and maintain remote access via a technical standard procedure as defined by SAP and grant SAP all necessary authorizations, in particular for remote analysis of issues as part of incident handling. Customer shall grant such remote access without restriction regarding the nationality of the SAP employee(s) who process incidents or the country in which they are located. SAP points out that failure to grant access may lead to delays in incident handling and the provision of corrections, or may render SAP unable to provide help in an efficient manner. The necessary software components must also be installed for support services. For more details, see SAP Note 91488.

- Establish and maintain an SAP certified Customer COE meeting the requirements specified in Section 1.2.8 below.
- Have installed, configured and be using productively, an SAP Solution Manager Enterprise Edition Software system, with the latest patch levels for Basis, and the latest SAP Solution Manager Enterprise Edition support packages.
- Activate SAP EarlyWatch Alert for the Production Systems and transmit data to Customer's productive SAP Solution Manager Enterprise Edition system. See SAP Note 1257308 for information on setting up this service.
- Perform the Initial Assessment as described in Section 1.2.4 and implement all the recommendations of SAP classified as mandatory.
- Establish a connection between Customer's SAP Solution Manager Enterprise Edition installation and SAP and a connection between the Enterprise Support Solutions and Customer's SAP Solution Manager Enterprise Edition installation.
- Customer shall maintain the solution landscape and core business processes in Customer's SAP Solution Manager Enterprise Edition system for all Production Systems and systems connected to the Production Systems. Customer shall document any implementation or upgrade projects in Customer's SAP Solution Manager Enterprise Edition system.
- To fully enable and activate the SAP Solution Manager Enterprise Edition, Customer shall adhere to the applicable documentation.
- Customer agrees to maintain adequate and current records of all modifications and, upon request, promptly provide such records to SAP.
- Customer shall submit all incidents via the then current SAP Support infrastructure as made available by SAP from time to time via updates, upgrades or Add-ons.
- Inform SAP without undue delay of any changes to Customer's installations and any other information relevant to the Enterprise Support Solutions.

1.2.8. Customer Center of Expertise

1.2.8.1. Role of the Customer Center of Expertise

In order to leverage the full potential value delivered as part of SAP Enterprise Support, Customer is required to establish a Customer Center of Expertise ("Customer Center of Expertise", or "Customer COE"). The Customer COE is designated by Customer as a central point of contact for interaction with the SAP Support organization.

As a permanent center of expertise, the Customer COE supports Customer's efficient implementation, innovation, operation and quality of business processes and systems related to the SAP Software Solution based on the Run SAP methodology provided by SAP. The Customer COE should cover all core business process operations. SAP recommends starting the implementation of the Customer COE as a project that runs in parallel with the functional and technical implementation projects.

1.2.8.2. Basic Functions of the Customer COE

The Customer COE must fulfill the following basic functions:

- Support Desk: Set-up and operation of a support desk with a sufficient number of support consultants for infrastructure/application platforms and the related applications during regular local working hours (at least 8 hours a day, 5 days (Monday through Friday) a week). Customer support process and skills will be jointly reviewed in the framework of the service planning process and the certification audit.
 - Contract administration: Contract and license processing in conjunction with SAP (license audit, maintenance billing, release order processing, user master and installation data management).
 - Coordination of innovation requests: Collection and coordination of development requests from the Customer and/or any of its affiliates provided such affiliates are entitled to use the Enterprise Support Solutions as contractually agreed. In this role the Customer COE shall also be empowered to function as an interface to SAP to take all action and decisions needed to avoid unnecessary modification of Enterprise Support Solutions and to ensure that planned modifications are in alignment with the SAP software and release strategy. In addition, the Customer COE shall coordinate the Customer's modification notifications.
 - Information management: Distribution of information (e.g. internal demonstrations, information events and marketing) about Enterprise Support Solutions and the Customer COE within the Customer group of affiliated companies.
- v) CQC planning and other remote services planning: Customer regularly engages in a service planning process with SAP. The service planning starts during the initial implementation and will then be continued regularly.

1.2.8.3. Customer COE Certification

Customer must establish a certified Customer COE upon the later to occur of the following: (i) within twelve (12) months after the Effective Date; or (ii) within six (6) months after Customer has started using at least one of the Enterprise Support Solutions in live mode for normal business operations. To obtain the then-current primary Customer COE certification or re-certification by SAP, the Customer COE undergoes an audit procedure. Detailed information on the initial certification and re-certification process and conditions, as well as information on the available certification levels, is available on SAP's Customer Support Website (<http://support.sap.com/ccoe>).

1.2.9. Verification

To check the compliance with the terms the contractual agreements, SAP shall be entitled to periodically monitor (at least once annually and in accordance with SAP standard procedures especially without being limited to) (i) the correctness of the information Customer provided and (ii) Customer's usage of the Solution Manager Enterprise Edition in accordance with the contractual regulations.

1.2.10 Selection of SAP Standard Support

Notwithstanding Customer's right of termination as set out in the SAP Enterprise Support Agreement and provided Customer is not in default of any obligations under the SAP Enterprise Support Agreement or its agreement for the provision and licensed use of the software, Customer may select SAP Standard Support as follows:

With respect to all agreements for support that are solely on a calendar year renewal basis, effective on the start of a new calendar year, subject to the Minimum Term of Customer's first agreement for SAP Enterprise Support; or

With respect to all agreements for support that are not solely on a calendar year renewal basis, effective on the start of the first renewal period in any calendar year that follows the Minimum Term of Customer's first agreement for SAP Enterprise Support.

Customer shall make such selection by giving to SAP three (3) months' written notice thereof. The notice is deemed to be given at the time it is received by SAP. All existing SAP Enterprise Support Agreements shall be terminated and replaced effective with the commencement of the SAP Standard Support agreement. Any such selection shall apply to all Enterprise Support Solutions and SAP and Customer shall execute an SAP Standard Support Agreement on SAP's then-current terms and conditions for SAP Standard Support, including without limitation pricing.

For the avoidance of any doubt, selection to enroll in another type of SAP Support Services by Customer pursuant to Support Services provisions stated herein shall strictly apply to all of Customer's SAP software.

So far as SAP offers maintenance service for it, all of Customer's SAP software must be covered by the maintenance service. Customer must always have all of its installations of the Software fully maintained or terminate the maintenance service completely. Partial termination of SAP Enterprise Support or partial selection of any one type of SAP Support Services by Customer is strictly prohibited.

1.2.11. Special Notice

- Failure to utilize SAP Enterprise Support provided by SAP may prevent SAP from being able to identify and assist in the correction of potential problems which, in turn, could result in unsatisfactory software performance for which SAP cannot be held responsible.
- SAP's provision of SAP Support for Third Party Software can require the use of support services provided by the vendor in question. If the vendor does not provide the support services required by SAP, SAP has the right to give reasonable notice of at least three months effective at the end of a calendar quarter of extraordinary and partial termination on the contractual relationship for maintenance for the Third Party Software concerned. Customer may be required to upgrade to more recent versions of its operating systems and databases to receive SAP Enterprise Support. If the respective vendor offers an extension of support for its product, SAP may offer such extension of support under a separate written agreement for an additional fee.
- In the event that Customer is entitled to receive one or more services per calendar year, (i) Customer shall not be entitled to receive such services in the first calendar year if the Effective Date the Enterprise Support agreement is after September 30 and (ii) Customer shall not be entitled to transfer a service to the next year if Customer has not utilized such service.
- SAP Enterprise Support is provided according to the current maintenance phases of SAP software releases as stated in <https://support.sap.com/releasestrategy>.

1.3. SAP Product Support for Large Enterprises

1.3.2 Definition

The following definitions only apply to this section 1.3:

- **“PSLE Solutions”** shall mean all software for which SAP provides SAP PSLE excluding software to which special support agreements apply exclusively.
- **“Go-Live”** marks the point in time from when, after implementation of Customer’s PSLE Solutions or an upgrade of PSLE Solutions, can be used by Customer for processing real data in live operation mode and for running Customer’s internal business processes in accordance with the software license agreement.
- **“Maintenance Base”** shall mean the sum of all maintenance base amounts in all on-premise software Order Forms between SAP and Customer .
- **“Customer Solution”** shall mean PSLE Solutions and any other software licensed by Customer from third parties.
- **“Customer IT Solution(s)”** shall mean Customer Solution(s) and hardware systems supported by Customer’s IT team.
- **“Production System”** shall mean a live SAP system used for running internal business processes and where Customer’s data is recorded.
- **“SAP Software Solution(s)”** shall mean a group of one or multiple Production Systems running Customer Solutions and focusing on a specific functional aspect of Customer’s internal business processes. Details and examples can be found on SAP’s Customer Support Website (as specified in SAP Note 1324027 or any future SAP Note that replaces SAP Note 1324027).
- **“SAP Support Services”** shall mean SAP Product Support for Large Enterprises (PSLE), SAP Enterprise Support, or SAP Standard Support.
- **“SAP’s Customer Support Website”** shall mean SAP’s customer facing support website under <http://support.sap.com/>.
- **“Top Issues”** shall mean software issues and/or failures identified and prioritized jointly by SAP and Customer in accordance with the SAP standards which (i) endanger the go-live of a pre-production system or (ii) have a significant business impact on a Customer’s core Production System.

1.3.2 Scope of SAP Product Support for Large Enterprises

SAP Product Support for Large Enterprises currently includes:

Continuous Improvement and Innovation

- New software releases of the licensed PSLE Solutions, as well as tools and procedures for upgrades.
- Support packages– correction packages to reduce the effort of implementing single corrections. Support packages may also contain corrections to adapt existing functionality to changed legal and regulatory requirements.
- For releases of the SAP Business Suite 7 core applications (starting with SAP ERP 6.0 and with releases of SAP CRM 7.0, SAP SCM 7.0, SAP SRM 7.0 and SAP PLM

7.0 shipped in 2008), SAP may provide enhanced functionality and/or innovation through enhancement packages or by other means as available. During mainstream maintenance for an SAP core application release, SAP's current practice is to provide one enhancement package or other update per calendar year.

- Technology updates to support third party operating systems and databases.
- Available ABAP source code for SAP software applications and additionally released and supported function modules.
- Software change management, such as changed configuration settings or PSLE Solution upgrades, is supported for example through content, tools and information material.
- SAP gives Customer access to guided self-services as part of SAP Solution Manager Enterprise Edition to support the technical solution management of particular PSLE Solutions.

Incident Handling

- SAP Notes on SAP's Customer Support Website document software malfunctions and contain information on how to remedy, avoid and bypass errors. SAP Notes may contain coding corrections that Customers can implement into their SAP system. SAP Notes also document related issues, customer questions and recommended solutions (e.g. customizing settings).
- SAP Note Assistant - a tool to install specific corrections and improvements to SAP components.
- Global incident handling by SAP for problems related to PSLE Solutions (for more information, see section 1.3.3).
- Global 24x7 escalation procedures.

Access to Services Content

- SAP shall provide Customer with access to SAP's remote services methodology. Customer may use this content to perform proactive support services for the PSLE Solutions.

SAP Product Support for Large Enterprises Roadmap Planning

- Up to two times per calendar year, Customer and SAP will perform a joint telephone conference to exchange information about Customer's current or planned global projects to implement or upgrade PSLE Solutions, to review Top-Issues and risk mitigation plans and to discuss quality assurance topics with regard to end-to-end operations of and support for Customer's SAP Software Solutions, and to generally align on collaboration between Customer and SAP in the area of support activities and delivery of SAP Product Support for Large Enterprises services for Customer's SAP Software Solutions.
- Customer can contact the Local Support Manager of SAP to request a scheduling of such telephone conference.

- If mutually agreed between Customer and SAP, such planning can also take place in the course of an onsite meeting at a mutually agreed location.
- SAP expressly states that a successful planning requires the support of Customer's Customer Center of Expertise.

SAP Solution Manager Enterprise Edition

For more information refer to section 1.3.4.

Other Components, Methodologies, Content, and Community Participation

- Monitoring components and agents for systems - to help monitor available resources and collect system status information of the PSLE Solutions (such as SAP EarlyWatch Alert)
- Process descriptions and process content that may be used as pre-configured test templates and test cases via the SAP Solution Manager Enterprise Edition. In addition the SAP Solution Manager Enterprise Edition assists Customer testing activities:
- Content and supplementary tools to help increase efficiency, in particular for implementations.
- Tools and content for SAP Application Lifecycle Management (shipped via SAP Solution Manager Enterprise Edition and/or the PSLE Solutions and/or the applicable Documentation for the PSLE Solutions and/or SAP's Customer Support Website)
- Tools for implementation, configuration, testing, operations and system administration
- Best practices, guidelines, methodologies, process descriptions and process content. This content supports the usage of the tools for SAP Application Lifecycle Management.
- Access to guidelines via SAP's Customer Support Website, which may include implementation and operations processes and content designed to help reduce costs and risks.
- Participation in SAP's customer and partner community (via SAP's Customer Support Website), which provides information about best business practices, service offerings, etc

1.3.3. Global Incident Handling

When Customer reports malfunctions, SAP supports Customer by providing information on how to remedy, avoid or bypass errors. The main channel for such support will be the support infrastructure provided by SAP. Customer may send an incident at any time. All persons involved in the incident resolution process can access the status of a submitted incident at any time.

In exceptional cases, Customer can also contact SAP by telephone. Contact details are provided in SAP Note 560499. SAP's support requires that Customer provides remote access as specified in section 1.3.5.

SAP will commence incident handling on errors of very high priority (for a definition of priorities, see SAP Note 67739) within 24 hours, 7 days a week provided that the following conditions are met:

- The error must be reported in English and
- Customer must have a suitably skilled English-speaking employee at hand so that Customer and SAP can communicate if SAP assigns the incident to an overseas SAP support center.

If these conditions are not met, SAP may not be able to start or continue the incident handling.

1.3.4. SAP Solution Manager Enterprise Edition under PSLE

1.3.4.1. Use of SAP Solution Manager Enterprise Edition (and its successors as provided by the respective Support contracts) shall be subject to the Software Agreement on the provision and licensed use of the Software and is used solely for the following purposes under SAP PSLE:

- a) Delivery of SAP PSLE;
- b) Application lifecycle management for Customer IT Solutions. Such application lifecycle management is limited solely to the following purposes:
 - Implementation, configuration, testing, operations, continuous improvement, and diagnosis
 - Incident management (Service Desk), problem management, and change request management, provided they are supported through the use of the SAP CRM technology that is integrated in SAP Solution Manager Enterprise Edition
 - mobile application lifecycle management scenarios using SAP NetWeaver Gateway (or equivalent technology) integrated in SAP Solution Manager Enterprise Edition
 - management of application lifecycle management projects for Customer IT Solutions using the project management functionality of SAP Project and Portfolio Management integrated in SAP Solution Manager Enterprise Edition. (However, the portfolio management functionality of SAP Project and Portfolio Management is not in scope of SAP Solution Manager Enterprise Edition and will need to be licensed separately by Customer.)
 - administration, monitoring, reporting and enterprise information services (Business Intelligence), provided they are supported through the use of the SAP NetWeaver technology that is integrated in SAP Solution Manager Enterprise Edition. Business Intelligence can also be carried out, provided Customer has licensed the corresponding SAP BI Software as part of the PSLE Solutions.

Customer does not require separate Package licenses for SAP CRM to use the application lifecycle management described in (ii) above.

1.3.4.2. Customer is entitled to use those SAP databases which are listed on SAP's Customer Support Website that are generally available to all SAP Customer together with SAP Solution Manager. This runtime license is limited to the use of the relevant database as

underlying database of the SAP Solution Manager and limited to the term of the SAP PSLE contract.

1.3.4.3.SAP Solution Manager Enterprise Edition may not be used for any other purposes than those stated herein. Independent of this restriction, Customer shall especially without limitation not use SAP Solution Manager Enterprise Edition for the following:

- a) SAP CRM scenarios such as opportunity management, lead management, or trade promotion management except as CRM scenarios are expressly stated in section 1.3.4.1.
- b) SAP NetWeaver usage types other than those stated above
- c) application lifecycle management and in particular, Incident Management (Service Desk), except for Customer IT Solutions
- d) non-IT shared services capabilities, including without limitation HR, Finance, or Procurement.
- e) SAP Project and Portfolio Management including but not limited to portfolio management or project management other than management of application lifecycle management projects as described above in Section 1.3.4.1
- f) SAP NetWeaver Gateway including but not limited to the SAP NetWeaver Gateway design time except the mobile application lifecycle management scenarios with the scope as described above in Section 1.3.4.1

1.3.4.3.SAP – in its sole discretion – may update the use cases for SAP Solution Manager Enterprise Edition exclusively at its own discretion on SAP's Customer Support Website under <http://support.sap.com/solutionmanager>.

1.3.4.5.SAP Solution Manager Enterprise Edition shall only be used during the term of the PSLE Agreement subject to the licensed rights for the Software and exclusively for Customer SAP- related support purposes in support of Customer internal business operations. The right to use any SAP Solution Manager Enterprise Edition capabilities under SAP PSLE other than those above is subject to a separate written agreement with SAP, even if such capabilities are accessible through or related to SAP Solution Manager Enterprise Edition. Customer shall be entitled to allow any of its employees to use Web self services in the SAP Solution Manager Enterprise Edition during the term of the SAP PSLE Agreement, like creating support tickets, requesting support ticket status, ticket confirmation and change approvals directly related to Customer IT Solutions.

1.3.4.6.In the event Customer terminates SAP PSLE and receives SAP Enterprise Support or SAP Standard Support in accordance with section 1.3.9, Customer use of SAP Solution Manager Enterprise Edition shall be governed by the terms and conditions of the SAP Enterprise Support Agreement or the SAP Standard Support Agreement as applicable.

1.3.4.6.Use of SAP Solution Manager Enterprise Edition may not be offered by Customer as a service to third parties, even if such third parties have licensed SAP software; provided, third parties authorized to access the SAP software under the software license agreement may have access to SAP Solution Manager Enterprise Edition solely for SAP-related support purposes in support of Customer internal business operations under and in accordance with the terms of the SAP PSLE Agreement.

1.3.5. Customer Responsibilities

SAP Product Support for Large Enterprises Program Management

In order to receive SAP Product Support for Large Enterprises services, Customer shall fulfill the following requirements:

Customer shall designate a qualified English speaking contact within its SAP Customer Center of Expertise (the "Contact Person") and shall provide contact details (in particular e-mail address and telephone number) by means of which the Contact Person or the authorized representative of such Contact Person can be contacted at any time. Customer Contact Person shall be Customer's authorized representative empowered to make necessary decisions for Customer or bring about such decision without undue delay.

1.3.5.1. Other Requirements

In order to receive SAP Product Support for Large Enterprises hereunder, Customer must:

- Hold all necessary licenses for the Customer Solution
- Continue to pay all SAP Product Support for Large Enterprise Service Fees as contractually agreed.
- Otherwise fulfil its obligations under the contracts for the provision and licensed use of the Software and the SAP PSLE agreement.
- Provide and maintain remote access via a technical standard procedure as defined by SAP and grant SAP all necessary authorizations, in particular for remote problem analysis as part of incident handling. Customer shall grant such remote access without restriction regarding the nationality of the SAP employee(s) who process support incidents or the country in which they are located. Customer acknowledges that failure to grant access may lead to delays in incident handling and the provision of corrections, or may render SAP unable to provide help in an efficient manner. The necessary software components must also be installed for support services. For more details, see SAP Note 91488.
- Establish and maintain an SAP certified Customer COE meeting the requirements specified in Section 1.3.6 below.
- Have installed, configured and be using productively, an SAP Solution Manager Enterprise Edition system, with the latest patch levels for Basis and the latest SAP Solution Manager Enterprise Edition support packages.
- Activate SAP EarlyWatch Alert for the Production Systems and transmit data to Customer's productive SAP Solution Manager Enterprise Edition system. See SAP Note 1257308 for information on setting up this service.
- Establish a connection between Customer's SAP Solution Manager Enterprise Edition installation and SAP and a connection between the PSLE Solutions and Customer's SAP Solution Manager Enterprise Edition installation.
- Customer shall maintain the solution landscape and core business processes in Customer's SAP Solution Manager Enterprise Edition system for all Production Systems and systems connected to the Production Systems. Customer shall document any implementation or upgrade projects in Customer's SAP Solution Manager Enterprise Edition system.
- To fully enable and activate the SAP Solution Manager Enterprise Edition, Customer shall follow all guidelines in the documentation.
- Customer agrees to maintain adequate and current records of all modifications and, if requested, promptly provide such records to SAP.

- Customer shall report all incidents by means of the current SAP Support infrastructure, which SAP makes available in the form of updates, upgrades, or Add-ons.
- Inform SAP without undue delay of any changes to Customer's installations and any other information relevant to the PSLE Solutions.

1.3.6. Customer Center of Expertise

1.3.6.1. Role of the Customer Center of Expertise

In order to leverage the full potential value delivered as part of SAP Product Support for Large Enterprises, Customer is required to establish a Customer Center of Expertise ("Customer Center of Expertise", or "Customer COE"). The Customer COE is designated by Customer as a central point of contact for interaction with the SAP support organization. As a permanent center of expertise, the Customer COE supports Customer's efficient implementation, innovation, operation and quality of business processes and systems related to the SAP Software Solution based on the Run SAP methodology provided by SAP. The Customer COE should cover all core business process operations. SAP recommends starting the implementation of the Customer COE as a project that runs in parallel with the functional and technical implementation projects.

1.3.6.2. Basic Functions of the Customer COE

The Customer COE must fulfill the following basic functions:

- Support Desk: Set-up and operation of a support desk with a sufficient number of support consultants for infrastructure/application platforms and the related applications during regular local working hours (at least 8 hours a day, 5 days (Monday through Friday) a week). Customer support process and skills will be jointly reviewed in the framework of the service planning process and the certification audit.
 - Contract administration: Contract and license processing in conjunction with SAP (license audit, maintenance billing, release order processing, user master and installation data management).
 - Coordination of innovation requests: Collection and coordination of development requests from Customer and/or affiliates provided such affiliates are entitled to use the PSLE Solutions as contractually agreed. In this role the Customer COE shall also be empowered to function as an interface to SAP to take all action and decisions needed to avoid unnecessary modification of PSLE Solutions and to ensure that planned modifications are in alignment with the SAP software and release strategy. The Customer COE shall also coordinate Customer's modification notification.
- w) Information management: Distribution of information (e.g. internal demonstrations, information events and marketing) about PSLE Solutions and the Customer COE within Customer's group of affiliated companies.

1.3.6.3. Customer COE Certification

If Customer has not established a certified Customer COE by the Effective Date of the PSLE contract, Customer must establish a certified Customer COE at the latest by the time one of the following two events occurs at the latest: (i) within twelve (12) months after the Effective Date of the PSLE contract; or (ii) at the latest six (6) months after Customer has gone live with at least one of the PSLE solutions in normal business operations. To

obtain the valid primary Customer COE certification (Primary Customer COE Certification) or re-certification (Re-Certification) by SAP, the Customer COE undergoes an audit procedure that covers the basic functions (primary certification). Customer has the option of obtaining an advanced certification of his Customer COE. Detailed information about the process and conditions for Primary Certification and Re-Certification as well as available certification levels are available on SAP's Customer Support Website (<http://support.sap.com/ccoe>).

1.3.7. Verification

To check the compliance with the contractually agreed terms, SAP shall be entitled to periodically monitor (at least once annually and in accordance with SAP standard procedures) (i) whether Customer is eligible to receive SAP Product Support for Large Enterprises; (ii) the correctness of the information provided by Customer; and (ii) Customer's usage of the Solution Manager Enterprise Edition in accordance with the contractual regulations. If at any point during the term of the SAP PSLE agreement SAP determines that Customer has fallen below either the Maintenance Threshold or License Threshold defined in Section 1.3.8, Section 1.3.8 shall apply accordingly.

1.3.8. Revenue Thresholds

- a) Customer shall be eligible to receive SAP Product Support for Large Enterprises from the date at which Customer informs SAP in writing about the meeting of both of the following criteria:

the aggregate of the overall yearly expenditure of Customer and all Customer Affiliates on the following exceeds or is equal to **€5,000,000** (the "Maintenance Threshold"):

- b) SAP Enterprise Support, whereas, for purposes of this paragraph, yearly expenditures shall be deemed to be the product of seventeen percent (17%) times the applicable Maintenance Base, irrespective of the then current SAP Enterprise Support Factor in effect,
- c) SAP Product Support for Large Enterprises (currently 17%) times the applicable Maintenance Base
- d) SAP Standard Support, for which, for the purposes of this paragraph, the annual fees are defined as follows: 17% of Maintenance Base for each contract, irrespective of the then current SAP Standard Support Factor in effect,
- e) Maintenance for software licensed from Business Objects; and
- f) MaxAttention; and
- g) SAP Preferred Care, on-premise edition for SAP Enterprise Support or SAP Preferred Care, on-premise edition for SAP Product Support for Large Enterprises whereas, for purposes of this paragraph, yearly expenditures shall be deemed to be the product of two percent (2%) times the applicable Maintenance Base.
- h) the Maintenance Base exceeds or is equal to **€30,000,000** (the "License Threshold").

SAP Cloud Services Fees Eligibility. If Customer has an active order form(s) or agreements for one or more eligible SAP on demand services listed on <http://support.sap.com/extensionpolicy> ("SAP Cloud Services") with SAP and/or with

affiliated company of SAP SE registered in the same country as SAP and the SAP Cloud Services term of each such agreement is not less than five (5) years, Customer may apply up to forty percent (40%) of Customer's annual SAP Cloud Services fees due under each such agreement toward meeting the Maintenance Threshold set forth in subsection (i) above.

During the term of the SAP PSLE agreement, Customer shall be responsible for informing SAP if Customer does not meet the Maintenance Threshold and/or the License Threshold. Upon Customer's request, SAP will assist Customer in this determination. If Customer falls below either or both of these thresholds, Customer shall inform SAP thereof immediately and from the date Customer falls below the Maintenance Threshold and/or the Customer Threshold, the following applies:

- a) The SAP PSLE Factor for Customer's and Customer's Affiliates' PSLE Solutions which has been contractually agreed between SAP and Customer is replaced by the then current SAP Enterprise Support Factor according to SAP's then current List of Prices and Conditions;
- b) The scope of SAP's support shall remain as defined in Section 1.3.2 above;
- c) The SAP PSLE Factor for any additional purchases of software licenses subsequent to falling below the Maintenance Threshold and/or the License Threshold will be the then-current SAP Enterprise Support Factor according to SAP's then current List of Prices and Conditions;

Customer may select SAP Enterprise Support or SAP Standard Support in accordance with SAP's then current terms and the provisions.

In either case, SAP and Customer shall execute a respective change agreement to this effect.

In addition, the following applies: If on the day of or prior to falling below the Maintenance Threshold or the License Threshold, Customer informs SAP that it is migrating to SAP Standard Support or SAP Enterprise Support, Customer is entitled to continue using SAP Product Support for Large Enterprises at the SAP PSLE Factor currently agreed with the Customer, until such time as the migration has been contractually agreed but in total only for a maximum of three (3) months, after which the factors specified in section b.(a) above will apply.

Customer is not eligible for SAP PSLE services:

- a) during the period between meeting the criteria under section a. and the date at which SAP receives written notice from Customer that Customer meets these criteria; and
- b) during the period between the date at which Customer falls below the criteria under section a. and the date at which Customer informs accordingly, in the case where Customer only informs SAP of its failure to meet the criteria after the date at which Customer fell short of these criteria.
- c) Customer shall not receive any refund, including, but not limited to, previously paid maintenance fees, e.g. fees paid for SAP Enterprise Support.

1.3.9. Selection of SAP Standard Support or SAP Enterprise Support

Notwithstanding Customer's right of termination as set out in the SAP PSLE Agreement and provided Customer is not in default of any obligations under the SAP PSLE Agreement or its agreement for the provision and licensed use of the software, Customer may select either SAP Enterprise Support or SAP Standard Support in accordance with the following provisions:

- Customer may select **SAP Enterprise Support** either (i) with respect to all agreements for support that are solely on a calendar year renewal basis effective on the beginning of any calendar month or (ii) with respect to all agreements for support that are not solely on a calendar year renewal basis, effective on any monthly anniversary of the renewal date of such agreement. Customer shall make such selection by giving to SAP three (3) months' written notice thereof. The notice is deemed to be given at the time it is received by SAP. All existing SAP PSLE Support agreements shall be terminated and replaced effective with the commencement of the SAP Enterprise Support agreement. Any such selection shall apply to all PSLE Solutions and SAP and Customer shall execute an SAP Enterprise Support agreement on SAP's then-current terms and conditions for SAP Enterprise Support, including without limitation pricing.
- Customer may select **SAP Standard Support** either (i) with respect to all agreements for support that are solely on a calendar year renewal basis, effective on the start of a new calendar year, subject to the Minimum Term of Customer's first agreement for SAP PSLE; or (ii) with respect to all agreements for support that are not solely on a calendar year renewal basis, effective on the start of the first renewal period in any calendar year that follows the Minimum Term of Customer's first agreement for SAP PSLE. Customer shall make such selection by giving to SAP three (3) months' written notice thereof. The notice is deemed to be given at the time it is received by SAP. All existing SAP PSLE Support agreements shall be terminated and replaced effective with the commencement of the SAP Standard Support agreement. Any such selection shall apply to all PSLE Solutions and SAP and Customer shall execute an SAP Standard Support agreement on SAP's then current terms and conditions for SAP Standard Support, including without limitation pricing.

For the avoidance of any doubt, selection to enroll in another type of SAP Support Services by Customer pursuant to Support Services selection provisions stated herein shall strictly apply to all of Customer's SAP software.

So far as SAP offers maintenance service for it, all of Customer's SAP software must be covered by the maintenance service. Customer must always have all of its installations of the Software fully maintained or terminate the maintenance service completely. Partial termination of SAP PSLE or partial selection of any one type of SAP Support Services by Customer is not permitted.

1.3.10. Special Notice

- Failure to utilize SAP Product Support for Large Enterprises provided by SAP may prevent SAP from being able to identify and assist in the correction of potential

problems which, in return could result in unsatisfactory software performance for which SAP cannot be held responsible.

- SAP's provision of SAP Support for Third Party Software can require the use of support services provided by the vendor in question. If the vendor does not provide the support services required by SAP, SAP has the right to give reasonable notice of at least three months effective at the end of a calendar quarter of extraordinary and partial termination on the contractual relationship for maintenance for the Third Party Software concerned. Customer may be required to upgrade to more recent versions of its operating systems and databases to receive SAP Product Support for Large Enterprises. If the respective vendor offers an extension of support for its product, SAP may offer such extension of support under a separate written agreement for an additional fee.
- SAP Product Support for Large Enterprises is provided according to the current maintenance phases of SAP software releases as stated in <http://support.sap.com/releasestrategy>.

1.4. SAP Standard Support

1.4.1 Definitions

The following definitions only apply to this section 1.4:

- **“Production System”** shall mean a live SAP system used for running Customer's internal business operations and where Customer's data is recorded.
- **“Service Session”** shall mean a sequence of support activities and tasks carried out remotely to collect further information by interview or by analysis of a Production System resulting in a list of recommendations. A Service Session could run manually, as a self service or fully automated.
- **“Standard Support Solutions”** shall mean all software for which SAP provides SAP Standard Support, excluding software to which special support agreements apply exclusively.
- **“SAP's Customer Support Website”** shall mean SAP's customer facing support website under <http://support.sap.com/>.

1.4.2. Scope of SAP Standard Support

SAP Standard Support currently includes:

Continuous Improvement and Innovation

- New software releases of the licensed Standard Support Solutions, as well as tools and procedures for upgrades.
- Support packages - correction packages to reduce the effort of implementing single corrections. Support packages may also contain corrections to adapt existing functionality to changed legal and regulatory requirements.
- For releases of the SAP Business Suite 7 core applications (starting with SAP ERP 6.0 and with releases of SAP CRM 7.0, SAP SCM 7.0, SAP SRM 7.0 and SAP PLM 7.0 shipped in 2008), SAP may provide enhanced functionality and/or

innovation through enhancement packages or by other means as available. During mainstream maintenance for an SAP core application release, SAP's current practice is to provide one enhancement package or other update per calendar year.

- Technology updates to support third party operating systems and databases.
- Technology updates to support third party operating systems and databases.
- Available ABAP source code for SAP software applications and additionally released and supported function modules.
- Software change management, such as changed configuration settings or Standard Support Solutions upgrades, is supported, currently for example with content, tools and information material.

Incident Handling

- SAP Notes on SAP's Customer Support Website document software malfunctions and contain information on how to remedy, avoid and bypass errors. SAP Notes may contain coding corrections that **Customers** can implement into their SAP system. SAP Notes also document related issues, customer questions, and recommended solutions (e.g. customizing settings).
- SAP Note Assistant - a tool to install specific corrections and improvements to SAP components.
- Global Incident handling by SAP for problems related to Standard Support Solutions. When **Customer** reports malfunctions, SAP supports **Customer** by providing information on how to remedy, avoid or bypass errors. The main channel for such support will be the support infrastructure provided by SAP. **Customer** may send an incident at any time. All persons involved in the incident resolution process can access the status of a submitted incident at any time. In exceptional cases, **Customer** may also contact SAP by telephone. Contact details are provided in SAP Note 560499. SAP's support requires that **Customer** provides remote access as specified in Section 1.4.3 . SAP will commence Incident handling on errors of very high priority (for a definition of priorities, see SAP Note 67739) within 24 hours, 7 days a week provided that the following conditions are met: (i) The error must be reported in English and (ii) **Customer** must have a suitably skilled English-speaking employee at hand so that **Customer** and SAP can communicate if SAP assigns the incident to an overseas SAP support center. If either or both of these conditions are not fulfilled, SAP may not be able to start Incident handling or to continue Incident handling until these conditions are fulfilled.
- Global 24x7 escalation procedures.

Remote Services

- SAP Standard Support currently includes a choice of one of the following remote services per live installation per calendar year:
- One GoingLive Check for e. g if the customer decides to implement new SAP software and use it productively;
- One GoingLive Upgrade Check for an upgrade to a higher release; or
- One GoingLive OS/DB Migration Check. This OS/DB Migration Check assists the Customer in preparing for a migration of an operating system or database. Migration is the responsibility of the Customer.
- In case of vital alerts reported by SAP EarlyWatch® Alert, up to two (2) SAP EarlyWatch® Checks may be performed per calendar year for a production system if required.
- A service can consist of one or more Service Sessions.
- In order to meet the requested delivery date for a remote service, the service has to be ordered at least two months in advance of the desired remote service delivery date. The right to services only exists for a specific installation and is not transferable to other installations.
- Further information and detail about individual SAP services can be found on SAP's Customer Support Website at <http://support.sap.com/standardsupport>.

SAP Solution Manager Enterprise Edition under SAP Standard Support

- Use of SAP Solution Manager Enterprise Edition (and any successor to SAP Solution Manager Enterprise Edition provided hereunder) shall be subject to the agreement on the provision and licensed use of the software and is for the following purposes only under SAP Standard Support: (i) delivery of SAP Standard Support, including delivery and installation, upgrade, and maintenance of Standard Support Solutions and (ii) re-active support upon request from **Customer**, including without limitation application of break fixes (e.g. patches, notes, etc.) and root cause analysis for Standard Support Solutions and (iii) management of Standard Support Solutions (including management of the integration, if available, of SAP Standard Support Solutions with SAP Cloud services) using only those scenarios which are defined on SAP's Customer Support Website under <http://support.sap.com/solutionmanager>. SAP in its sole discretion – may update from time to time on SAP's Customer Support Website under <http://support.sap.com/solutionmanager> the use cases for SAP Solution Manager Enterprise Edition under SAP Standard Support.
- SAP Solution Manager Enterprise Edition shall only be used for SAP Standard Support during the term of the Standard Support agreement subject to the licensed rights for the Software and exclusively for **Customer's** SAP-related support purposes in support of **Customer's** internal business operations. The right to use any SAP Solution Manager Enterprise Edition capabilities under SAP Standard Support other than those listed above is subject to a separate written agreement with SAP, even if such capabilities are accessible through or related to SAP Solution Manager Enterprise Edition. SAP Solution Manager must explicitly not be used for third party applications not licensed via SAP or any other components or IT assets operated in conjunction with SAP software

- In the event **Customer** terminates SAP Standard Support and receives SAP Enterprise Support in accordance with Section 1.4.6, **Customer's** use of SAP Solution Manager shall be governed by the terms and conditions of the SAP Enterprise Support Agreement.
- **Customer** is entitled to use those SAP databases which are listed on SAP's Customer Support Website that are generally available to all SAP **Customers** together with SAP Solution Manager. This runtime license is limited to the use of the relevant database as underlying database of the SAP Solution Manager and limited to the term of the Standard Support Agreement(s).

Other Components, Content and Community Participation

- Monitoring components and agents for systems to help monitor available resources and collect system status information of the Standard Support Solutions (e.g. SAP Early Watch Alert).
- Administrative integration of distributed systems through SAP Solution Manager Enterprise Edition for the purposes of Sap EarlyWatch Alert.
- Content and supplementary tools designed to help increase efficiency, in particular for implementations.
- Access to guidelines via SAP's Customer Support Website, which may include implementation and operations processes and content designed to help reduce costs and risks.
- Participation in SAP's customer and partner community (via SAP's Customer Support Website), which provides information about best business practices, service offerings, etc.

1.4.3. Customer's Responsibilities

SAP Standard Support Program Management

In order to receive SAP Standard Support hereunder, Customer shall designate a qualified English speaking contact within its Customer COE (the "Contact Person") and shall provide contact details (in particular e-mail address and telephone number) by means of which the Contact Person or the authorized representative of such Contact Person can be contacted at any time. Customer's Contact Person shall be Customer's authorized representative empowered to make necessary decisions for Customer or bring about such decision without undue delay.

Other Requirements

Furthermore, Customer must especially without being limited to:

- Hold all necessary licenses for the Standard Support Solutions.
- Continue to pay all Standard Support Service Fees as contractually agreed.
- Otherwise fulfill its obligations under the contracts for the provision and licensed use of Software and the Standard Support agreement.
- Provide and maintain remote access via a technical standard procedure as defined by SAP and grant SAP all necessary authorizations, in particular for remote analysis of

issues as part of incident handling. Customer shall grant such remote access without restriction regarding the nationality of the SAP employee(s) who process incidents or the country in which they are located. SAP points out that failure to grant access may lead to delays in incident handling and the provision of corrections, or may render SAP unable to provide help in an efficient manner. The necessary software components must also be installed for support services. For more details, see SAP Note 91488.

- Establish and maintain an SAP certified Customer COE meeting requirements specified in Section 1.4.4 below.
- Have installed, configured and be using productively, an SAP Solution Manager Enterprise Edition Software system, with the latest patch levels for Basis and the latest SAP Solution Manager Enterprise Edition support packages.
- Activate SAP EarlyWatch Alert for the Production Systems and transmit data to Customer's productive SAP Solution Manager Enterprise Edition system. See SAP Note 1257308 for information on setting up this service.
- Establish a connection between Customer's SAP Solution Manager Enterprise Edition installation and SAP and a connection between the Standard Support Solutions and Customer's SAP Solution Manager Enterprise Edition installation.
- Customer shall maintain the solution landscape and core business processes in Customer's SAP Solution Manager Enterprise Edition system at least for the Production Systems and systems connected to the Production Systems. Customer shall document any implementation or upgrade projects in Customer's SAP Solution Manager Enterprise Edition system.
- To fully enable and activate the SAP Solution Manager Enterprise Edition, Customer shall adhere to all guidelines in the applicable documentation.
- Customer agrees to maintain adequate and current records of all modifications and, if needed, promptly provide such records to SAP.
- Submit all incidents via the then current SAP support infrastructure as made available by SAP from time to time via updates, upgrades or Add-ons.
- Inform SAP without undue delay of any changes to Customer's installations and any other information relevant to the Standard Support Solutions.

1.4.4. Customer Center of Expertise

1.4.4.1. Role of the Customer COE

The Customer Center of Expertise ("Customer COE") is designated by Customer as a central point of contact for interaction with the SAP support organization. SAP recommends starting the implementation of the Customer COE as a project that runs in parallel with the functional and technical implementation projects.

1.4.4.2 Basic Functions of the Customer COE

The Customer COE must fulfill the following basic functions:

- Support Desk: Set-up and operation of a support desk with a sufficient number of support consultants for infrastructure/application platforms and the related applications during regular local working hours (at least 8 hours a day, 5 days (Monday through

Friday) a week). Customer support process and skills will be reviewed in the framework of the service planning process and the certification audit.

- Contract administration: Contract and license processing in conjunction with SAP (license audit, maintenance billing, release order processing, user master and installation data management).
- Coordination of innovation requests: Collection and coordination of development requests from the Customer and/or any of its affiliates provided such affiliates are entitled to use the Standard Support Solutions as contractually agreed. In this role the Customer COE shall also be empowered to function as an interface to SAP to take all action and decisions needed to avoid unnecessary modification of the Standard Support Solutions and to ensure that planned modifications are in alignment with the SAP software and release strategy. The Customer COE shall also coordinate Customer's modification notification and disclosure requirements.
- Information management: Distribution of information (e.g. internal demonstrations, information events and marketing) about Standard Support Solutions and the Customer COE within the Customer's group of affiliated companies.
- Remote Service Planning: coordination of remote service delivery with SAP

1.4.4.3. Customer COE Certification

If Customer does not already have a certified Customer COE upon the Effective Date, Customer must establish a certified Customer COE upon the later to occur of the following: (i) within twelve (12) months after the Effective Date, or (ii) within six (6) months after Customer has started using at least one of the Standard Support Solutions in live mode for normal business operations. To obtain the then-current primary Customer COE certification or re-certification by SAP, the Customer COE undergoes an audit procedure. Detailed information on the initial certification and re-certification process and conditions, as well as information on the available certification levels is available on SAP's Customer Support Website at <http://support.sap.com/ccoe>.

1.4.5. Fees for SAP Standard Support

SAP Standard Support Fees are agreed in the Support Agreements.

1.4.6. Verification

To check the compliance with the terms the contractual agreements, SAP shall be entitled to periodically monitor (at least once annually and in accordance with SAP standard procedures especially without being limited to:

the correctness of the information provided by Customer and

Customer's usage of the Solution Manager Enterprise Edition in accordance with in accordance with the contractual regulations.

1.4.7. Selection of SAP Enterprise Support

Notwithstanding Customer's right of termination as set out in the Standard Support Agreement and provided Customer is not in default of any obligations under the Standard Support Agreement or its agreement for the provision and licensed use of the software, Customer may select SAP Enterprise Support in accordance with the following provisions:

- with respect to all agreements for support that are solely on a calendar year renewal basis effective on the beginning of any calendar month, or
- with respect to all agreements for support that are not solely on a calendar year renewal basis, effective on the any monthly anniversary of the renewal date of such agreement.

Customer shall make such selection by giving to SAP three (3) months' written notice thereof. The notice is deemed to be given at the time it is received by SAP. All existing SAP Standard Support agreements shall be terminated and replaced effective with the commencement of the SAP Enterprise Support agreement. Any such selection shall apply to all Standard Support Solutions and SAP and Customer shall execute an SAP Enterprise Support agreement on SAP's then-current terms and conditions for SAP Enterprise Support, including without limitation pricing.

For the avoidance of any doubt, selection to enroll in another type of SAP Support Services by Customer pursuant to Support Services selection provisions stated herein shall strictly apply to all of Customer's SAP software.

So far as SAP offers maintenance service for it, all of Customer's SAP software must be covered by the maintenance service. Customer must always have all of its installations of the Software fully maintained or terminate the maintenance service completely. Partial termination of SAP Standard Support or partial selection of any one type of SAP Support Services by Customer is strictly prohibited.

1.4.8. Special Notice

- In the event that Customer is entitled to receive one or more services per calendar year, (i) Customer shall not be entitled to receive such services in the first calendar year if the Effective Date of the SAP Standard Support contract is after September 30 and (ii) Customer shall not be entitled to transfer a service to the next year if Customer has not utilized such service.
- Failure to utilize SAP Standard Support provided by SAP may prevent SAP from being able to identify and assist in the correction of potential problems which, in turn, could result in unsatisfactory software performance for which SAP cannot be held responsible.
- SAP's provision of SAP Support for Third Party Software can require the use of support services provided by the vendor in question. If the vendor does not provide the support services required by SAP, SAP has the right to give reasonable notice of at least three months effective at the end of a calendar quarter of extraordinary and partial termination on the contractual relationship for maintenance for the Third Party Software concerned. Customer may be required to upgrade to more recent versions of its operating systems and databases to receive SAP Standard Support. If the respective vendor offers an extension of support for its product, SAP may offer such extension of support under a separate written agreement for an additional fee. If the licensing agreement between SAP and a third party vendor is terminated, support for this vendor's Third Party Software will be provided through SAP according to the defined support processes until the end of the wind-down period agreed upon between SAP and the third party vendor. If the vendor does not provide the support services required by SAP any more, SAP has the right to give reasonable notice of at least three months

effective at the end of a calendar quarter of extraordinary and partial termination of the contractual relationship for support for the third party software concerned.

- SAP Standard Support is provided according to the current maintenance phases of SAP software releases as stated in <http://support.sap.com/releasestrategy>.

1.5. SAP Standard Support for SAP Business One

1.5.1 Definitions

“Production System” shall mean a live SAP system used for running Customer’s internal business operations and where Customer’s data is recorded.

“Service Session” shall mean a sequence of support activities and tasks carried out remotely to collect further information by interview or by analysis of a Production System resulting in a list of recommendations. A Service Session could run manually, as a self-service or fully automated.

1.5.2 Scope of SAP Standard Support for Business One

Customer may request and SAP shall provide, to such degree as SAP makes such services generally available in the Territory, SAP Standard Support services for SAP Business One. SAP Standard Support for SAP Business One currently includes:

Continuous Improvement and Innovation

- New software releases of the licensed Standard Support Solutions as well as tools and procedures for upgrades.
- Support packages - correction packages to reduce the effort of implementing single corrections. Support packages may also contain corrections to adapt existing functionality to changed legal and regulatory requirements.
- Technology updates to support third-party operating systems and databases.
- Remote support platform for SAP Business One (RSP) as collaborative infrastructure for the delivery of remote support and remote services.

Message Handling

- SAP Notes on the SAP Support Website document software malfunctions and contain information on how to remedy, avoid and bypass errors. SAP Notes may contain coding corrections that Customers can implement into their SAP system. SAP Notes also document related issues, Customer questions, and recommended solutions (e.g. customizing settings).
- Global message handling by SAP for problems related to Standard Support Solutions. When Customer reports malfunctions, SAP supports Customer by providing information on how to remedy, avoid or bypass errors. The main channel for such support will be the support infrastructure provided by SAP. Customer may send an error message at any time. All persons involved in the message solving process can access the status of the message at any time. In exceptional cases, Customer may also contact SAP by telephone. For such contact (and as otherwise provided) SAP requires that Customer provides remote access as specified in Section 1.5.3

- SAP will commence message handling on errors of very high priority (for a definition of priorities, see SAP Note 67739) within 24 hours, 7 days a week provided that the following conditions are met: (i) The error must be reported in English and (ii) Customer must have a suitably skilled English-speaking employee at hand so that Customer and SAP can communicate if SAP assigns the problem message to an overseas SAP support center. If either or both of these conditions are not fulfilled, SAP may not be able to start message handling or to continue message handling until these conditions are fulfilled.

Other Components, Methodologies, Content and Community Participation

- Monitoring components and agents for systems to monitor available resources and collect system status information of the Standard Support Solutions (e.g. RSP).
- Access to guidelines via the SAP Support Website, which may include implementation and operations processes and content designed to help reduce costs and risks.
- Participation in SAP's customer and partner community (via SAP Support Website), which provides information about best business practices, service offerings, etc.

1.5.3. Customer's Responsibilities

SAP Standard Support Program Management

In order to receive SAP Standard Support for SAP Business One hereunder, Customer shall designate a qualified English speaking contact within its SAP Customer Center of Expertise ("Customer COE") (the "Contact Person") and shall provide contact details (in particular e-mail address and telephone number) by means of which the Contact Person or the authorized representative of such Contact Person can be contacted at any time. Customer's Contact Person shall be Customer's authorized representative empowered to make necessary decisions for Customer or bring about such decision without undue delay.

Other Requirements

Customer must further satisfy the following requirements:

- Continue to pay all Standard Support Fees for SAP Standard Support for SAP Business One.
- Otherwise fulfill its obligations under the Software Agreements.
- Provide and maintain remote access via a technical standard procedure as defined by SAP and grant SAP all necessary authorizations, in particular for remote analysis of issues as part of message handling. Such remote access shall be granted without restriction regarding the nationality of the SAP employee(s) who process support messages or the country in which they are located. Customer acknowledges that failure to grant access may lead to delays in message handling and the provision of

corrections, or may render SAP unable to provide help in an efficient manner. The necessary software components must also be installed for support services.

- Make available to SAP Support organization a backup of the productive SAP Business One database whenever the processing of a support message requires in-house investigation. Partner is responsible to obtain the consent to a hand over from individuals whose personal data is stored in such database.
- Establish and maintain an SAP certified Customer COE meeting the requirements specified in Section 1.5.4.
- Activate RSP for the Production Systems and transmit data to SAP Backend systems.
- Submit all error messages via the then current SAP support infrastructure as made available by SAP from time to time via updates, upgrades or add-ons.
- Inform SAP without undue delay of any changes to Customer's installations and Named Users and all other information relevant to the Standard Support Solutions.

1.5.4. Customer Center of Expertise

1.5.4.1.Role of the Customer COE

The Customer COE is designated by Customer as a central point of contact for interaction with the SAP support organization. SAP recommends starting the implementation of the Customer COE as a project that runs in parallel with the functional and technical implementation projects.

1.5.4.2.Basic Functions of the Customer COE

The Customer COE must fulfill the following basic functions:

- Support Desk: Set-up and operation of a support desk with a sufficient number of support consultants for infrastructure/application platforms and the related applications during regular local working hours (at least 8 hours a day, 5 days (Monday through Friday) a week). Customer support process and skills will be reviewed in the framework of the certification audit.
- Contract administration: Contract and license processing in conjunction with SAP (license audit, maintenance billing, release order processing, user master and installation data management).
- Coordination of innovation requests: Collection and coordination of development requests from Customer and/or affiliates provided such affiliates are entitled to use the Standard Support Solutions under the Software Agreement. In this role the Customer COE shall also be empowered to function as an interface to SAP to take all action and decisions needed to avoid unnecessary customization of Standard Support Solutions and to ensure that planned customizations are in alignment with the SAP software and release strategy. Information management: Distribution of information (e.g. internal demonstrations, information events and marketing) about Standard Support Solutions and the Customer COE within Customer's organization.

1.5.4.3.Customer COE Certification

If Customer does not already have a certified Customer COE upon the Effective Date, Customer must establish a certified Customer COE upon the later to occur of the following:

- i. within twelve (12) months after the Effective Date, or
- ii. (ii) within six (6) months after Customer has started using at least one of the Standard Support Solutions in live mode for normal business operations. To obtain the then-current primary Customer COE certification or re-certification by SAP, the Customer COE undergoes an audit procedure.

For the avoidance of doubt the Customer COE for SAP Business One program is a product-specific program which meets the specific needs of the SAP Business One ecosystem, it is independent from other Customer COE programs offered by SAP for other customer groups and/or other SAP products. Detailed information on the initial certification and re-certification process and conditions, as well as information on the available certification levels is available on SAP Support Website at <https://support.sap.com/ccoe> .

1.5.5. Verification

To check the compliance with the terms of this Schedule, SAP shall be entitled to periodically monitor (at least once annually and in accordance with SAP standard procedures) (i) the correctness of the information provided by Customer.

1.5.6. Other Terms and Conditions

- So far as SAP offers maintenance service for it, all of Customer's SAP software must be covered by the maintenance service. Customer must always have all of its installations of the Software fully maintained or terminate the maintenance service completely. Partial termination of SAP Standard Support for SAP Business One or partial selection of any one type of SAP Support Services by Customer is strictly prohibited
- Failure to utilize sap standard support for sap business one provided by sap may prevent sap from being able to identify and assist in the correction of potential problems which, in turn, could result in unsatisfactory software performance for which sap cannot be held responsible.
- SAP's provision of SAP Support for Third Party Software can require the use of support services provided by the vendor in question. If the vendor does not provide the support services required by SAP, SAP has the right to give reasonable notice of at least three months effective at the end of a calendar quarter of extraordinary and partial termination on the contractual relationship for maintenance for the Third Party Software concerned. Customer may be required to upgrade to more recent versions of its operating systems and databases to receive SAP Standard Support for SAP Business One. If the respective vendor offers an extension of support for its product, SAP may offer such extension of support under a separate written agreement for an additional fee.
- SAP Standard Support is provided according to the current maintenance phases of SAP software releases as stated in <http://support.sap.com/releasestrategy>.

SERVICE LEVEL AGREEMENT FOR PRIVATE CLOUD EDITION SERVICES AND TAILORED OPTION SERVICES

This Service Level Agreement for RISE with SAP S/4HANA Cloud, private edition (formerly, SAP S/4HANA, private cloud edition); SAP ERP, private cloud edition (collectively, "Private Cloud Edition Services"); RISE with SAP S/4HANA Cloud, private edition, tailored option; and SAP ERP, private cloud edition, tailored option (collectively, "Tailored Option Services") (each, a "Cloud Service") sets forth the applicable Service Levels for Private Cloud Edition Services, Tailored Option Services, and Server Provisioning to which Customer has subscribed in an Order Form with SAP.

1. DEFINITIONS

Capitalized terms used in this document but not defined herein are defined in the Agreement.

- 1.1. **"Agreed Downtime"** means any downtime requested by SAP or Customer and mutually agreed by the parties.
- 1.2. **"Business Day"** means any days from Monday to Friday with the exception of the public holidays observed at Customer's primary access location designated in the Order Form.
- 1.3. **"Computing Environment"** means the data center facilities, servers, networking equipment, operating systems, and data storage mechanisms selected and used by SAP to provide the Cloud Service for the Customer, and includes the production Computing Environment ("**PRD**"), and any other Computing Environment used for non-production purposes ("**NON-PRD**"), as agreed in the Order Form.
- 1.4. **"Credit"** means the following, subject always to Section 5 of this Service Level Agreement:
 - 1.4.1. for Private Cloud Edition Services and Tailored Option Services, 2% of Monthly Service Fees for each 1% below the SA SLA; and
 - 1.4.2. for Server Provisioning (IaaS Basic), €1,500 per Month in aggregate for any and all instances below the SA SLA.
- 1.5. **"Downtime"** means the Total Minutes in the Month during which the Cloud Service (or Servers for Server Provisioning) does not respond to a request from SAP's Point of Demarcation for the data center providing the Cloud Service (or Server for Server Provisioning), excluding Excluded Downtime.
- 1.6. **"Emergency Downtime"** means downtime during emergency patch deployment and emergency operating system upgrades as described in the Supplement.
- 1.7. **"Excluded Downtime"** means the Total Minutes in the Month attributable to: Scheduled Downtime; Agreed Downtime; Emergency Downtime; downtime caused by factors outside of SAP's reasonable control such as unpredictable and unforeseeable events that could not have been avoided even if reasonable care had been exercised (see examples in Section 2); or downtime of a NON-PRD system caused by using the NON-PRD for failover/to repair to a PRD system.
- 1.8. **"Incident"** means unplanned interruptions or material reduction in service quality to the Computing Environment that is reported by Authorized Users.
- 1.9. **"Incident Reaction Time"** means the amount of time (e.g. in hours or minutes) between when the SAP Support Level 1 organization is notified of the Customer-reported Incident and the first action is taken by an SAP support person, familiar with the Customer's environment, to repair the Incident.
- 1.10. **"Local Time"** means the time zone in Customer's primary access location identified in the Order Form.
- 1.11. **"Month"** means a calendar month.
- 1.12. **"Monthly Service Fees"** means the monthly (or 1/12 of the annual fee) subscription fees paid for the affected Cloud Service which did not meet the SA SLA.
- 1.13. **"Scheduled Downtime"** means downtime scheduled at a mutually agreed time, as listed in the Order Form, or as described in the Supplement.
- 1.14. **"Subscription Software"** shall (i) have the meaning set forth in the Supplement for Tailored Option Services, and (ii) mean Cloud Services Software set forth in the Supplement for Private Cloud Edition Services.

1.15. **“System”** means one or more interrelated and interdependent components such as databases, servers, networks, load balancers, web dispatchers, tenants, etc. which when taken as a whole are used to operate a tier. Each combination of components used within each tier is equivalent to one System. System Availability Percentage is measured at the tier level. For Tailored Option Services, each System is identified by the Tier No. column in the System Setup Table in the Order Form, and for Private Cloud Edition Services, each System is identified by the system tier type as set forth in the Service Description Guide of the Supplement. For Server Provisioning, System as used herein means Server, as defined in the Order Form.

1.16. **“System Availability Percentage”** for each System is calculated and defined as follows:

$$= \left(\frac{\text{Total Minutes in the Month} - \text{Downtime}}{\text{Total Minutes in the Month}} \right) * 100$$

1.17. **“System Availability Service Level”** or **“SA SLA”** means the applicable System Availability Percentage specified below during each Month for the Computing Environment (and Server for Server Provisioning, if applicable) after System handover to the Customer:

1.17.1. 99.5% System Availability Percentage for PRD unless a higher System Availability Percentage is identified in the Supplement or Order Form;

1.17.2. 95.0% System Availability Percentage for NON-PRD unless a higher System Availability Percentage is identified in the Order Form; and

1.17.3. 99.5% System Availability Percentage for Server Provisioning.

1.18. **“Total Minutes in the Month”** are measured 24 hours at 7 days a week during a Month.

2. SYSTEM AVAILABILITY

2.1. The SA SLA shall not apply to Customer-provided software unless otherwise expressly set forth in the Order Form.

2.2. Downtime caused by factors outside of SAP’s reasonable control include, but is not limited to the following:

2.2.1. Customer’s failure to meet Customer’s responsibilities (including using a version or release of the Subscription Software on current maintenance) as set forth in the Agreement.

2.2.2. Downtime caused by Customer.

2.2.3. Interruptions as a result of requirements stipulated by a third-party manufacturer of the Customer-provided software.

2.2.4. Interruptions or shutdowns of the Computing Environment, or portions thereof (or Servers for Server Provisioning) resulting from the quality of the Customer-provided software and/or Customer’s customizations or modifications of the Customer-provided software, Subscription Software or Computing Environment (or Servers for Server Provisioning), unless this is the responsibility of SAP under this Agreement.

2.2.5. Restore times of user data (recovery of database data from a media backup) where SAP was not the root cause for the required restoration.

3. BACKUP AND COMPUTING ENVIRONMENT INCIDENT REACTION TIME

(not applicable to Server Provisioning)

Description	Computing Environment	Service Levels
Backup Frequency and retention period for Databases	PRD	Daily full backup and log file backup per SAP product standard. 30 days retention time. Backup of the PRD will be replicated to an alternate data center or location.
	NON-PRD	Weekly full backup and log file backup per SAP product standard. 14 days retention time. Backup of the NON-PRD will be replicated to an alternate data center or location.

Long Term Backup*	PRD and/or NON-PRD	Monthly full back up – 1 year retention time Quarterly full back up – 1 year retention time Yearly full back up – up to 5 years retention time
Backup Frequency and retention period for File systems	PRD	Monthly full backup and daily incremental. Two Months retention time. Backup of the PRD will be replicated to an alternate data center or location.
	NON-PRD	Monthly full backup and daily incremental. Two Months retention time. Backup of the NON-PRD will be replicated to an alternate data center or location.
Incident Reaction Time for Incident Management	Incident Priority Very High	20 minutes (7x24) and (i) resolution or (ii) workaround or (iii) action plan within 4hrs for PRD
	Incident Priority High	2 hours (7x24) for PRD 4 hours [Local Time on Business Days] for NON-PRD
	Incident Priority Medium	4 hours [Local Time on Business Days] for PRD and NON-PRD
	Incident Priority Low	1 Business Day for PRD and NON-PRD

*Applies if this optional service is purchased in an Order Form. The retention periods for Long Term Backup will end at the earlier of the retention time set forth herein or the end of Customer's Cloud Service subscription term.

- 3.1. **Incident Priorities.** The following priority levels apply to all Incidents (such priority to be assigned by Customer, and which may be re-assigned by SAP based on the criteria below and acting reasonably):
 - 3.1.1. **Very High:** An Incident should be categorized with the priority "Very High" if the incident reported has very serious consequences for normal business processes or IT processes related to core business processes, and urgent work cannot be performed. This is generally caused by the following circumstances:
 - 3.1.1.1. A PRD system is completely down.
 - 3.1.1.2. The imminent go-live or upgrade is jeopardized.
 - 3.1.1.3. The core business processes of Customer are seriously affected.
 - 3.1.1.4. A workaround is not available.
 - 3.1.1.5. The Incident requires immediate processing because the malfunction may cause serious losses.
 - 3.1.2. **High:** An Incident should be categorized with the priority "High" if normal business processes are seriously affected. Necessary tasks cannot be performed. This is caused by incorrect or inoperable functions in the Computing Environment that are required immediately. The Incident is to be processed as quickly as possible because a continuing malfunction can seriously disrupt the entire productive business flow.
 - 3.1.3. **Medium:** An Incident should be categorized with the priority "Medium" if normal business processes are affected. The problem is caused by incorrect or inoperable functions in the Computing Environment. A message should be categorized with the priority "Medium" if normal business transactions are affected.
 - 3.1.4. **Low:** An Incident should be categorized with the priority "Low" if the problem has little or no effect on normal business processes. The problem is caused by incorrect or inoperable functions in the Computing Environment that are not required daily, or are rarely used.

4. SERVICE LEVEL REPORTING

- 4.1. SAP shall track and report to Customer the Service Levels set forth herein in a monthly summary report.
- 4.2. In the event that one or more of the Service Levels set forth herein are not met, Customer may notify the assigned SAP account manager and request to analyze the Service Level metric statistics based on the monthly summary report provided by SAP.

- 4.3. SAP will then promptly:
 - 4.3.1. determine the root cause or possible root cause of the failure (if known) to meet the Service Level; and
 - 4.3.2. unless failure is excused, develop a corrective action plan, and submit such plan to Customer for written approval (which will not be unreasonably withheld or delayed) and, following Customer's written approval implement the plan in a reasonable period of time (and in accordance with any agreed timescales).
- 4.4. If applicable, SAP will provide the specific Credit as described in Section 5 below.
- 4.5. SAP will be relieved of its obligation to pay any applicable Credits and will not be in breach of the Service Level where the root cause analysis (as reasonably performed by SAP) indicates the failure to meet the relevant Service Level was caused by Customer and shall therefore be treated as Excluded Downtime. In the event that Customer disagrees with the root cause analysis, the parties will discuss the root cause analysis.

5. SERVICE LEVEL FAILURES

- 5.1. Service Credits
 - 5.1.1. If SAP fails to meet the applicable SA SLA, Customer is entitled to claim a Credit which is calculated as the sum of the Credits for NON-PRD, PRD and Server Provisioning (as applicable), for SAP's failure to meet the respective SA SLA. Claims for a Credit must be made in good faith through a documented submission of a support case within 30 Business Days after receipt of the monthly SA SLA report. Under no circumstances will the total maximum Credits:
 - 5.1.1.1. for any 1 Month, exceed an aggregate of 100% of the Monthly Service Fee for that Month across all SA SLAs; and
 - 5.1.1.2. for any given contract year, exceed in the aggregate an amount equal to one-third of the annual subscription fees paid for the affected Cloud Service for the contract year (or one third of the total subscription fees paid for the affected Cloud Service if the term as defined in the applicable Order Form is less than 1 year).
 - 5.1.2. When Customer's entitlement of the Credit is confirmed by SAP in writing (email permitted), SAP will apply such Credit to a future invoice relating to the Cloud Service or provide a refund if no future invoice is due under the Agreement.
 - 5.1.3. Customer acknowledges that the Credits are the sole and exclusive remedy for SAP's failure to meet the specified Service Level, except to the extent prohibited by applicable law.
 - 5.1.4. Customers who have not subscribed to the Cloud Service directly from SAP must claim the Credit from their applicable SAP partner.
- 5.2. Termination
 - 5.2.1. In the event of SAP fails to meet the SA SLA for PRD Computing Environment for 3 consecutive Months, Customer may terminate the applicable Order Form by providing SAP with written notice within 30 days of Customer's receipt of the respective summary monthly report. Termination shall become effective 1 Month after SAP's receipt of such notice (or any later date set out by Customer in its notice). For the avoidance of doubt, this termination right shall supersede any and all other termination provision in the GTC for failure to meet an SA SLA, and such termination right from the GTC shall not apply.

6. SERVICE REQUESTS

Customers may request specific tasks related to the Computing Environment via the SAP Service Request Platform ("Service Request"). To the extent Service Requests are distinct from an Incident, SAP will address Service Requests during the following hours of operations:

PRD	24x7 subject to Excluded Downtime
NON-PRD	24x5 (Business Days) subject to Excluded Downtime

The services are provided in English only.

DATA PROCESSING AGREEMENT FOR SAP CLOUD SERVICES

1. DEFINITIONS

- 1.1. **"Controller"** means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of Personal Data; for the purposes of this DPA, where Customer acts as processor for another controller, it shall in relation to SAP be deemed as additional and independent Controller with the respective controller rights and obligations under this DPA.
- 1.2. **"Data Protection Law"** means the applicable legislation protecting the fundamental rights and freedoms of persons and their right to privacy with regard to the processing of Personal Data under the Agreement.
- 1.3. **"Data Subject"** means an identified or identifiable natural person as defined by Data Protection Law.
- 1.4. **"EEA"** means the European Economic Area, namely the European Union Member States along with Iceland, Liechtenstein and Norway.
- 1.5. **"GDPR"** means the General Data Protection Regulation 2016/679.
- 1.6. **"My Trust Center"** means information available on the SAP support portal (see: <https://support.sap.com/en/my-support/trust-center.html>) or the SAP agreements website (see: <https://www.sap.com/about/trust-center/agreements.html>) or any subsequent website(s) made available by SAP to Customer.
- 1.7. **"New SCC Relevant Transfer"** means a transfer (or an onward transfer) to a Third Country of Personal Data that is either subject to GDPR or to applicable Data Protection Law and where any required adequacy means under GDPR or applicable Data Protection Law can be met by entering into the New Standard Contractual Clauses.
- 1.8. **"New Standard Contractual Clauses"** means the unchanged standard contractual clauses, published by the European Commission, reference 2021/914 or any subsequent final version thereof which shall automatically apply. To avoid doubt Modules 2 and 3 shall apply as set out in Section 8.
- 1.9. **"Personal Data"** means any information relating to a Data Subject which is protected under Data Protection Law. For the purposes of the DPA, it includes only personal data which is:
 - a) entered by Customer or its Authorized Users into or derived from their use of the Cloud Service; or
 - b) supplied to or accessed by SAP or its Subprocessors in order to provide support under the Agreement. Personal Data is a sub-set of Customer Data (as defined under the Agreement).
- 1.10. **"Personal Data Breach"** means a confirmed:
 - a) accidental or unlawful destruction, loss, alteration, unauthorized disclosure of or unauthorized third-party access to Personal Data; or
 - b) similar incident involving Personal Data, in each case for which a Controller is required under Data Protection Law to provide notice to competent data protection authorities or Data Subjects.
- 1.11. **"Processor"** means a natural or legal person, public authority, agency or other body which processes personal data on behalf of the controller, be it directly as processor of a controller or indirectly as subprocessor of a processor which processes personal data on behalf of the controller.
- 1.12. **"Schedule"** means the numbered Appendix with respect to the Standard Contractual Clauses (2010) and the numbered Annex with respect to the New Standard Contractual Clauses.
- 1.13. **"Standard Contractual Clauses (2010)"** means the Standard Contractual Clauses (processors) published by the European Commission, reference 2010/87/EU.
- 1.14. **"Subprocessor" or "sub-processor"** means SAP Affiliates, SAP SE, SAP SE Affiliates and third parties engaged by SAP, SAP SE or SAP SE's Affiliates in connection with the Cloud Service and which process Personal Data in accordance with this DPA.

1.15. **“Technical and Organizational Measures”** means the technical and organizational measures for the relevant Cloud Service published on My Trust Center (see: <https://www.sap.com/about/trust-center/agreements/cloud/cloud-services.html?search=Technical%20Organizational%20Measures>).

1.16. **“Third Country”** means any country, organization or territory not acknowledged by the European Union under Article 45 of GDPR as a safe country with an adequate level of data protection.

2. BACKGROUND

2.1. Purpose and Application

2.1.1. This document (**“DPA”**) is incorporated into the Agreement and forms part of a written (including in electronic form) contract between SAP and Customer.

2.1.2. This DPA applies to Personal Data processed by SAP and its Subprocessors in connection with its provision of the Cloud Service.

2.1.3. This DPA does not apply to non-production environments of the Cloud Service if such environments are made available by SAP. Customer shall not store Personal Data in such environments.

2.2. Structure

Schedules 1 and 2 are incorporated into and form part of this DPA. They set out the agreed subject-matter, the nature and purpose of the processing, the type of Personal Data, categories of data subjects (Schedule 1) and the applicable Technical and Organizational Measures (Schedule 2).

2.3. Governance

2.3.1. SAP acts as a Processor and Customer and those entities that it permits to use the Cloud Service act as Controllers under the DPA.

2.3.2. Customer acts as a single point of contact and shall obtain any relevant authorizations, consents and permissions for the processing of Personal Data in accordance with this DPA, including, where applicable approval by Controllers to use SAP as a Processor. Where authorizations, consent, instructions or permissions are provided by Customer these are provided not only on behalf of the Customer but also on behalf of any other Controller using the Cloud Service. Where SAP informs or gives notice to Customer, such information or notice is deemed received by those Controllers permitted by Customer to use the Cloud Service. Customer shall forward such information and notices to the relevant Controllers.

3. SECURITY OF PROCESSING

3.1. Applicability of the Technical and Organizational Measures

SAP has implemented and will apply the Technical and Organizational Measures. Customer has reviewed such measures and agrees that as to the Cloud Service selected by Customer in the Order Form the measures are appropriate taking into account the state of the art, the costs of implementation, nature, scope, context and purposes of the processing of Personal Data.

3.2. Changes

3.2.1. SAP applies the Technical and Organizational Measures to SAP's entire customer base hosted out of the same data center or receiving the same Cloud Service. SAP may change the Technical and Organizational Measures at any time without notice so long as it maintains a comparable or better level of security. Individual measures may be replaced by new measures that serve the same purpose without diminishing the security level protecting Personal Data.

3.2.2. SAP will publish updated versions of the Technical and Organizational Measures on My Trust Center and where available Customer may subscribe to receive e-mail notification of such updated versions.

4. SAP OBLIGATIONS

4.1. Instructions from Customer

SAP will process Personal Data only in accordance with documented instructions from Customer. The Agreement (including this DPA) constitutes such documented initial instructions and each use of the Cloud Service then constitutes further instructions. SAP will use reasonable efforts to follow any other Customer instructions, as long as they are required by Data Protection Law, technically feasible and do not require changes to the Cloud Service. If any of the before-mentioned exceptions apply, or SAP otherwise cannot comply with an instruction or is of the opinion that an instruction infringes Data Protection Law, SAP will immediately notify Customer (email permitted).

4.2. Processing on Legal Requirement

SAP may also process Personal Data where required to do so by applicable law. In such a case, SAP shall inform Customer of that legal requirement before processing unless that law prohibits such information on important grounds of public interest.

4.3. Personnel

To process Personal Data, SAP and its Subprocessors shall only grant access to authorized personnel who have committed themselves to confidentiality. SAP and its Subprocessors will regularly train personnel having access to Personal Data in applicable data security and data privacy measures.

4.4. Cooperation

4.4.1. At Customer's request, SAP will reasonably cooperate with Customer and Controllers in dealing with requests from Data Subjects or regulatory authorities regarding SAP's processing of Personal Data or any Personal Data Breach.

4.4.2. If SAP receives a request from a Data Subject in relation to the Personal Data processing hereunder, SAP will promptly notify Customer (where the Data Subject has provided information to identify the Customer) via e-mail and shall not respond to such request itself but instead ask the Data Subject to redirect its request to Customer.

4.4.3. In the event of a dispute with a Data Subject as it relates to SAP's processing of Personal Data under this DPA, the Parties shall keep each other informed and, where appropriate, reasonably co-operate with the aim of resolving the dispute amicably with the Data Subject.

4.4.4. SAP shall provide functionality for production systems that supports Customer's ability to correct, delete or anonymize Personal Data from a Cloud Service, or restrict its processing in line with Data Protection Law. Where such functionality is not provided, SAP will correct, delete or anonymize any Personal Data, or restrict its processing, in accordance with the Customer's instruction and Data Protection Law.

4.5. Personal Data Breach Notification

SAP will notify Customer without undue delay after becoming aware of any Personal Data Breach and provide reasonable information in its possession to assist Customer to meet Customer's obligations to report a Personal Data Breach as required under Data Protection Law. SAP may provide such information in phases as it becomes available. Such notification shall not be interpreted or construed as an admission of fault or liability by SAP.

4.6. Data Protection Impact Assessment

If, pursuant to Data Protection Law, Customer (or its Controllers) are required to perform a data protection impact assessment or prior consultation with a regulator, at Customer's request, SAP will provide such documents as are generally available for the Cloud Service (for example, this DPA, the Agreement, Audit Reports and Certifications). Any additional assistance shall be mutually agreed between the Parties.

5. DATA EXPORT AND DELETION

5.1. Export and Retrieval by Customer

During the Subscription Term and subject to the Agreement, Customer can access its Personal Data at any time. Customer may export and retrieve its Personal Data in a standard format. Export and retrieval may be subject to technical limitations, in which case SAP and Customer will find a reasonable method to allow Customer access to Personal Data.

5.2. Deletion

Before the Subscription Term expires, Customer may use SAP's self-service export tools (as available) to perform a final export of Personal Data from the Cloud Service (which shall constitute a "return" of Personal Data). At the end of the Subscription Term, Customer hereby instructs SAP to delete the Personal Data remaining on servers hosting the Cloud Service within a reasonable time period in line with Data Protection Law (not to exceed 6 months) unless applicable law requires retention.

6. CERTIFICATIONS AND AUDITS

6.1. Customer Audit

Customer or its independent third party auditor reasonably acceptable to SAP (which shall not include any third party auditors who are either a competitor of SAP or not suitably qualified or independent) may audit SAP's control environment and security practices relevant to Personal Data processed by SAP only if:

- a) SAP has not provided sufficient evidence of its compliance with the Technical and Organizational Measures that protect the production systems of the Cloud Service through providing either: (i) a certification as to compliance with ISO 27001 or other standards (scope as defined in the certificate); or (ii) a valid ISAE3402 or ISAE3000 or other SOC1-3 attestation report. Upon Customer's request audit reports or ISO certifications are available through the third party auditor or SAP;
- b) a Personal Data Breach has occurred;
- c) an audit is formally requested by Customer's data protection authority; or
- d) provided under mandatory Data Protection Law conferring Customer a direct audit right and provided that Customer shall only audit once in any 12 month period unless mandatory Data Protection Law requires more frequent audits.

6.2. Other Controller Audit

Any other Controller may assume Customer's rights under Section 6.1 only if it applies directly to the Controller and such audit is permitted and coordinated by Customer. Customer shall use all reasonable means to combine audits of multiple other Controllers to avoid multiple audits, unless the audit must be undertaken by the other Controller itself under Data Protection Law. If several Controllers whose Personal Data is processed by SAP on the basis of the Agreement require an audit, Customer shall use all reasonable means to combine the audits and to avoid multiple audits.

6.3. Scope of Audit

Customer shall provide at least 60 days advance notice of any audit unless mandatory Data Protection Law or a competent data protection authority requires shorter notice. The frequency and scope of any audits shall be mutually agreed between the parties acting reasonably and in good faith. Customer audits shall be limited in time to a maximum of 3 business days. Beyond such restrictions, the parties will use current certifications or other audit reports to avoid or minimize repetitive audits. Customer shall provide the results of any audit to SAP.

6.4. Cost of Audits

Customer shall bear the costs of any audit unless such audit reveals a material breach by SAP of this DPA, then SAP shall bear its own expenses of an audit. If an audit determines that SAP has breached its obligations under the DPA, SAP will promptly remedy the breach at its own cost.

7. SUBPROCESSORS

7.1. Permitted Use

SAP is granted a general authorization to subcontract the processing of Personal Data to Subprocessors, provided that:

- a) SAP or SAP SE on its behalf shall engage Subprocessors under a written (including in electronic form) contract consistent with the terms of this DPA in relation to the Subprocessor's processing of Personal Data. SAP shall be liable for any breaches by the Subprocessor in accordance with the terms of this Agreement;
- b) SAP will evaluate the security, privacy and confidentiality practices of a Subprocessor prior to selection to establish that it is capable of providing the level of protection of Personal Data required by this DPA; and
- c) SAP's list of Subprocessors in place on the effective date of the Agreement is published by SAP on My Trust Center or SAP will make it available to Customer upon request, including the name, address and role of each Subprocessor SAP uses to provide the Cloud Service.

7.2. New Subprocessors

SAP's use of Subprocessors is at its discretion, provided that:

- a) SAP will inform Customer in advance (by email or by posting on the My Trust Center) of any intended additions or replacements to the list of Subprocessors including name, address and role of the new Subprocessor; and
- b) Customer may object to such changes as set out in Section 7.3.

7.3. Objections to New Subprocessors

7.3.1. If Customer has a legitimate reason under Data Protection Law to object to the new Subprocessors' processing of Personal Data, Customer may terminate the Agreement (limited to the Cloud Service for which the new Subprocessor is intended to be used) on written notice to SAP. Such termination shall take effect at the time determined by the Customer which shall be no later than 30 days from the date of SAP's notice to Customer informing Customer of the new Subprocessor. If Customer does not terminate within this 30 day period, Customer is deemed to have accepted the new Subprocessor.

7.3.2. Within the 30 day period from the date of SAP's notice to Customer informing Customer of the new Subprocessor, Customer may request that the parties discuss in good faith a resolution to the objection. Such discussions shall not extend the period for termination and do not affect SAP's right to use the new Subprocessor(s) after the 30 day period.

7.3.3. Any termination under this Section 7.3 shall be deemed to be without fault by either party and shall be subject to the terms of the Agreement.

7.4. Emergency Replacement

SAP may replace a Subprocessor without advance notice where the reason for the change is outside of SAP's reasonable control and prompt replacement is required for security or other urgent reasons. In this case, SAP will inform Customer of the replacement Subprocessor as soon as possible following its appointment. Section 7.2 applies accordingly.

8. INTERNATIONAL PROCESSING

8.1. Conditions for International Processing

SAP shall be entitled to process Personal Data, including by using Subprocessors, in accordance with this DPA outside the country in which the Customer is located as permitted under Data Protection Law.

8.2. Applicability of the Standard Contractual Clauses (2010)

8.2.1. Where, for the period up to and including 26 September 2021, Personal Data of a Controller that is subject to GDPR is processed in a Third Country, or where Personal Data of a Swiss or United Kingdom based Controller

or another Controller is processed in a Third Country and such international processing requires an adequacy means under the laws of the country of the Controller and the required adequacy means can be met by entering into Standard Contractual Clauses (2010), then:

- a) SAP and Customer enter into the Standard Contractual Clauses (2010);
- b) Customer joins the Standard Contractual Clauses (2010) entered into by SAP or SAP SE and the Subprocessor as an independent owner of rights and obligations; or
- c) other Controllers whose use of the Cloud Services has been authorized by Customer under the Agreement may also enter into Standard Contractual Clauses (2010) with SAP or the relevant Subprocessors in the same manner as Customer in accordance with Section 8.2.1 a) and b) above. In such case, Customer will enter into the Standard Contractual Clauses (2010) on behalf of the other Controllers.

8.2.2. The Standard Contractual Clauses (2010) shall be governed by the law of the country in which the relevant Controller is established.

8.2.3. Where applicable Data Protection Law adopts the New Standard Contractual Clauses as meeting any required adequacy means as an alternative or update to the Standard Contractual Clauses (2010) then the New Standard Contractual Clauses shall apply in accordance with Section 8.3.

8.3. Applicability of New Standard Contractual Clauses

8.3.1. The following shall apply with effect from 27 September 2021 and shall solely apply in respect of New SCC Relevant Transfers:

8.3.1.1. Where SAP is not located in a Third Country and acts as a data exporter, SAP (or SAP SE on its behalf) has entered in to the New Standard Contractual Clauses with each Subprocessor as the data importer. Module 3 (Processor to Processor) of the New Standard Contractual Clauses shall apply to such New SCC Relevant Transfers.

8.3.1.2. Where SAP is located in a Third Country:

SAP and Customer hereby enter into the New Standard Contractual Clauses with Customer as the data exporter and SAP as the data importer which shall apply as follows:

- a) Module 2 (Controller to Processor) shall apply where Customer is a Controller; and
- b) Module 3 (Processor to Processor) shall apply where Customer is a Processor. Where Customer acts as Processor under Module 3 (Processor to Processor) of the New Standard Contractual Clauses, SAP acknowledges that Customer acts as Processor under the instructions of its Controller(s).

8.3.2. Other Controllers or Processors whose use of the Cloud Services has been authorized by Customer under the Agreement may also enter into the New Standard Contractual Clauses with SAP in the same manner as Customer in accordance with Section 8.3.1.2 above. In such case, Customer enters into the New Standard Contractual Clauses on behalf of the other Controllers or Processors.

8.3.3. With respect to a New SCC Relevant Transfer, on request from a Data Subject to the Customer, Customer may make a copy of Module 2 or 3 of the New Standard Contractual Clauses entered into between Customer and SAP (including the relevant Schedules), available to Data Subjects.

8.3.4. The governing law of the New Standard Contractual Clauses shall be the law of Germany.

8.4. Relation of the Standard Contractual Clauses to the Agreement

Nothing in the Agreement shall be construed to prevail over any conflicting clause of the Standard Contractual Clauses (2010) or the New Standard Contractual Clauses. For the avoidance of doubt, where this DPA further specifies audit and Subprocessor rules, such specifications also apply in relation to the Standard Contractual Clauses (2010) and the New Standard Contractual Clauses.

8.5. Third Party Beneficiary Right under the New Standard Contractual Clauses

- 8.5.1. Where Customer is located in a Third Country and acting as a data importer under Module 2 or Module 3 of the New Standard Contractual Clauses and SAP is acting as Customer's sub-processor under the applicable Module, the respective data exporter shall have the following third party beneficiary right:
- 8.5.2. In the event that Customer has factually disappeared, ceased to exist in law or has become insolvent (in all cases without a successor entity that has assumed the legal obligations of the Customer by contract or by operation of law), the respective data exporter shall have the right to terminate the affected Cloud Service solely to the extent that the data exporter's Personal Data is processed. In such event, the respective data exporter also instructs SAP to erase or return the Personal Data.

9. DOCUMENTATION; RECORDS OF PROCESSING

- 9.1. Each party is responsible for its compliance with its documentation requirements, in particular maintaining records of processing where required under Data Protection Law. Each party shall reasonably assist the other party in its documentation requirements, including providing the information the other party needs from it in a manner reasonably requested by the other party (such as using an electronic system), in order to enable the other party to comply with any obligations relating to maintaining records of processing.

Schedule 1 Description of the Processing

This Schedule 1 applies to describe the Processing of Personal Data for the purposes of the Standard Contractual Clauses (2010), New Standard Contractual Clauses and applicable Data Protection Law.

1. A. LIST OF PARTIES

- 1.1. Under the Standard Contractual Clauses (2010)

- 1.1.1. Data Exporter

The data exporter under the Standard Contractual Clauses (2010) is the Customer who subscribed to a Cloud Service that allows Authorized Users to enter, amend, use, delete or otherwise process Personal Data. Where the Customer allows other Controllers to also use the Cloud Service, these other Controllers are also data exporters.

- 1.1.2. Data Importer

SAP and its Subprocessors that provide and support the Cloud Service are data importers under the Standard Contractual Clauses (2010).

- 1.2. Under the New Standard Contractual Clauses

- 1.2.1. Module 2: Transfer Controller to Processor

Where SAP is located in a Third Country, Customer is the Controller and SAP is the Processor, then Customer is the data exporter and SAP is the data importer.

- 1.2.2. Module 3: Transfer Processor to Processor

Where SAP is located in a Third Country, Customer is a Processor and SAP is a Processor, then Customer is the data exporter and SAP is the data importer.

2. B. DESCRIPTION OF TRANSFER

- 2.1. Data Subjects

Unless provided otherwise by the data exporter, transferred Personal Data relates to the following categories of Data Subjects: employees, contractors, business partners or other individuals having Personal Data stored in the Cloud Service, transmitted to, made available to, accessed or otherwise processed by the data importer.

- 2.2. Data Categories

The transferred Personal Data concerns the following categories of data:

Customer determines the categories of data per Cloud Service subscribed. Customer can configure the data fields during implementation of the Cloud Service or as otherwise provided by the Cloud Service. The transferred Personal Data typically relates to the following categories of data: name, phone numbers, e-mail address, address data, system access / usage / authorization data, company name, contract data, invoice data, plus any application-specific data that Authorized Users enter into the Cloud Service and may include bank account data, credit or debit card data.

2.3. Special Data Categories (if agreed)

2.3.1. The transferred Personal Data may comprise special categories of personal data set out in the Agreement ("**Sensitive Data**"). SAP has taken Technical and Organizational Measures as set out in Schedule 2 to ensure a level of security appropriate to protect also Sensitive Data.

2.3.2. The transfer of Sensitive Data may trigger the application of the following additional restrictions or safeguards if necessary to take into consideration the nature of the data and the risk of varying likelihood and severity for the rights and freedoms of natural persons (if applicable):

- a) training of personnel;
- b) encryption of data in transit and at rest;
- c) system access logging and general data access logging.

2.3.3. In addition, the Cloud Services provide measures for handling of Sensitive Data as described in the Documentation.

2.4. Purposes of the data transfer and further processing; Nature of the processing

2.4.1. The transferred Personal Data is subject to the following basic processing activities:

- a) use of Personal Data to set up, operate, monitor and provide the Cloud Service (including operational and technical support);
- b) continuous improvement of service features and functionalities provided as part of the Cloud Service including automation, transaction processing and machine learning;
- c) provision of embedded Professional Services;
- d) communication to Authorized Users;
- e) storage of Personal Data in dedicated data centers (multi-tenant architecture);
- f) release, development and upload of any fixes or upgrades to the Cloud Service;
- g) back up and restoration of Personal Data stored in the Cloud Service;
- h) computer processing of Personal Data, including data transmission, data retrieval, data access;
- i) network access to allow Personal Data transfer;
- j) monitoring, troubleshooting and administering the underlying Cloud Service infrastructure and database;
- k) security monitoring, network-based intrusion detection support, penetration testing; and
- l) execution of instructions of Customer in accordance with the Agreement.

2.4.2. The purpose of the transfer is to provide and support the Cloud Service. SAP and its Subprocessors may support the Cloud Service data centers remotely. SAP and its Subprocessors provide support when a Customer submits a support ticket as further set out in the Agreement.

2.5. Additional description in respect of the New Standard Contractual Clauses:

2.5.1. Applicable Modules of the New Standard Contractual Clauses

- a) Module 2: Transfer Controller to Processor
- b) Module 3: Transfer Processor to Processor

2.5.2. For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

In respect of the New Standard Contractual Clauses, transfers to Subprocessors shall be on the same basis as set out in the DPA.

- 2.5.3. The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).

Transfers shall be made on a continuous basis.

- 2.5.4. The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period.

Personal Data shall be retained for the duration of the Agreement and subject to Section 5.2 of the DPA.

3. C. COMPETENT SUPERVISORY AUTHORITY

- 3.1. In respect of the New Standard Contractual Clauses:

- 3.1.1. Module 2: Transfer Controller to Processor

- 3.1.2. Module 3: Transfer Processor to Processor

- 3.2. Where Customer is the data exporter, the supervisory authority shall be the competent supervisory authority that has supervision over the Customer in accordance with Clause 13 of the New Standard Contractual Clauses.

Schedule 2 Technical and Organizational Measures

This Schedule 2 applies to describe the applicable technical and organizational measures for the purposes of the Standard Contractual Clauses (2010), New Standard Contractual Clauses and applicable Data Protection Law.

SAP will apply and maintain the Technical and Organizational Measures.

To the extent that the provisioning of the Cloud Service comprises New SCC Relevant Transfers, the Technical and Organizational Measures set out in Schedule 2 describe the measures and safeguards which have been taken to fully take into consideration the nature of the personal data and the risks involved. If local laws may affect the compliance with the clauses, this may trigger the application of additional safeguards applied during transmission and to the processing of the personal data in the country of destination (if applicable: encryption of data in transit, encryption of data at rest, anonymization, pseudonymization).



GENERAL TERMS AND CONDITIONS FOR CLOUD SERVICES („CLOUD GTC“)

APPLICABILITY

Except as otherwise agreed, these Cloud GTC apply when referenced by an agreement between SAP Deutschland SE & Co. KG (hereinafter “SAP”) and another company or public-law entity. They apply to precontractual relations accordingly.

1. DEFINITIONS

- 1.1. “**Affiliate**” means any legal entity to which SAP and/or SAP SE or Customer is affiliated within the meaning of the German Stock Corporation Act (AktG), section 15. Any legal entity will be considered an Affiliate as long as that requirement is fulfilled.
- 1.2. “**Authorized User**” means any individual at Customer, Customer's Affiliates, or Customer's and Customer's Affiliates' Business Partners, to whom Customer grants access authorization to use the Cloud Service.
- 1.3. “**Business Partner**” means a legal entity that requires use of a Cloud Service in connection with Customer's and its Affiliates' internal business operations, e. g. customers, distributors, service providers and/or suppliers of Customer and/or its Affiliates.
- 1.4. “**Cloud Service**” means any distinct, on-demand solution provided by SAP under an Order Form.
- 1.5. “**Confidential Information**” means all information which the disclosing party protects against unrestricted disclosure to others that is designated as confidential and/or internal and/or proprietary at the time of disclosure, or should reasonably be understood to be confidential at the time of disclosure given the nature of the information and/or the circumstances surrounding its disclosure. In any case, the following information is considered to be Confidential Information of Customer: the Customer Data, Customer marketing and business requirements, Customer implementation plans, and/ or Customer financial information; and Confidential Information of SAP: the Cloud Service, Documentation, SAP Materials and information regarding SAP research and development, product offerings, pricing and availability as well as the Agreement.
- 1.6. “**Customer Data**” means any content, materials, data and personal data that Authorized Users enter into the production system of a Cloud Service or derive from its use of and store in the Cloud Service (e. g. Customer-specific reports). Customer Data and its derivatives will not include SAP's Confidential Information.
- 1.7. “**Documentation**” means SAP's then-current technical and functional documentation, including any roles and responsibilities descriptions, relating to the Cloud Services which SAP makes available to Customer under the Agreement.
- 1.8. “**Export Laws**” means all applicable import, export control and sanctions laws, including without limitation, the laws of the United States, the EU, and Germany.
- 1.9. “**IP Rights**” (“Intellectual Property Rights”) means patents of any type or other title to or right in an invention, copyright, right of authorship, mark, design or other industrial right, and all rights to exploit or use it.
- 1.10. “**Order Form**” or “**Agreement**” means the contract between SAP and Customer for Cloud Services and (where applicable) related Professional Services, that references and incorporates these Cloud GTC and other documents .
- 1.11. “**Professional Services**” means implementation services, consulting services or other related services provided under an Order Form and may also be referred to in the Agreement as “Consulting Services”.
- 1.12. “**SAP Materials**” means any materials (including statistical reports) provided or made available by SAP in the course of performance under the Agreement, including in the delivery of any support or Professional Services to Customer. SAP Materials include materials created with Customer's cooperation, but do not include the

Customer Data, Customer Confidential Information or the Cloud Service. SAP Materials may also be referred to in the Agreement as "Cloud Materials".

1.13. **"SAP SE"** means SAP SE, the parent company of SAP.

1.14. **"Subscription Term"** means the initial subscription term and if applicable any renewal subscription term of the Order Form.

1.15. **"Taxes"** means all transactional taxes, levies and similar charges (and any related interest and penalties) such as federal, state or local sales tax, value added tax, goods and services tax, use tax, property tax, excise tax, service tax or similar taxes.

1.16. **"Usage Metric"** means the standard of measurement for determining the permitted use and calculating the fees due for a Cloud Service as set forth in an Order Form.

2. USAGE RIGHTS AND RESTRICTIONS

2.1. During the Subscription Term, SAP grants to Customer a non-exclusive and non-transferable right to use the Cloud Service (including its implementation and configuration), SAP Materials and Documentation solely for running Customer's and its Affiliates' internal business operations in accordance with the Agreement, in particular the terms of the product-specific Supplement, and the Documentation. Customer may use the Cloud Service world-wide, except Customer shall not use the Cloud Service from countries where such use is prohibited by Export Laws. Permitted uses and restrictions of the Cloud Service also apply to SAP Materials and Documentation.

2.2. Customer may permit Authorized Users to use the Cloud Service within the contractually agreed scope. Usage is limited in particular to the Usage Metrics and volumes stated in the Order Form. Access credentials for the Cloud Service may not be shared or used by more than one individual at a time, but may be transferred from one individual to another if the original user is no longer permitted to use the Cloud Service. Customer is responsible for the acts and omissions of its Authorized Users, Affiliates, and Business Partners as for its own acts and omissions. Customer is otherwise not allowed to make any Cloud Service or SAP Materials available to third parties.

2.3. Acceptable Use Policy. Customer shall not: (a) copy, translate, disassemble, decompile, make derivative works, reverse engineer or modify the Cloud Service or SAP Materials (except as permitted by mandatory law); (b) use the Cloud Service in breach of applicable law, in particular Customer will not enter, store or transfer any content or data on or via the Cloud Service that is unlawful or infringes any IP Rights; (c) circumvent or endanger the operation or security of the Cloud Service; or (d) remove SAP's copyright and authorship notices.

2.4. Customer will monitor the use of the Cloud Service and report to SAP in writing without undue delay any use that goes beyond what is contractually agreed, in particular in excess of the Usage Metrics and volume. In this case, Customer must sign an agreement with SAP that documents the additional use and additional fees. Such fees shall accrue from the date the excess use began. SAP may monitor use to verify compliance with Usage Metrics, volume and the Agreement.

2.5. If it is sufficiently probable that the continued use of the Cloud Service in breach of contract by the Authorized Users, or a third party using their access data may result in material harm to the Cloud Service, its users, other SAP customers, or the rights of third parties, in such a way that immediate action is required to avoid damages, SAP can temporarily limit or suspend Customer's use to the Cloud Service to prevent damages. SAP will notify Customer of the limitation or suspension without undue delay. If circumstances allow, Customer shall be informed in advance in writing or by email. SAP will limit the suspension or limitation in time and scope as reasonably possible under the circumstances.

2.6. The Cloud Service may include integrations with web services made available by third parties (other than SAP SE or its Affiliates) that are accessed through the Cloud Service and subject to terms and conditions with those third parties. These third party web services are not part of the Cloud Service and the Agreement does not apply to them, as SAP only provides technical access to these web services. SAP is not responsible for these web services.

2.7. Authorized Users may access certain Cloud Services through mobile applications obtained from third-party websites such as Android or Apple app stores. The use of mobile applications may be governed by the terms and conditions presented upon download/access to the mobile application and not by the terms of the Agreement. SAP is not responsible for these third party websites.

2.8. The Cloud Service may include on-premise components that can be downloaded and installed (including updates) by Customer. The SLA does not apply to these components. Customer may only use the on-premise components during the Subscription Term as applicable to the relevant Cloud Service.

3. SAP RESPONSIBILITIES AND DUTIES

3.1. SAP provides the Cloud Service as described in the Agreement. SAP provides support for the Cloud Service as referenced in the Order Form and (if agreed) the Professional Services. The quality and functionality of the agreed performance that SAP is obliged to provide is conclusively agreed in the Order Form and the documents referred to therein. SAP is not obliged to perform additional services or provide additional service features.

3.2. If Customer is provided with a free-of-charge Cloud Service, SAP shall provide no support for this Cloud Service and has no obligation to provide any particular service level. SAP may cease providing access to such free-of-charge Service at any time. This section 3.2 supersedes any conflicting term in these Cloud GTC.

3.3. SLA

3.3.1. Unless stated otherwise in the applicable product-specific Supplement, SAP will maintain an average monthly system availability for the production system of the Cloud Service as defined in the applicable service level agreement referenced in the Order Form ("SLA"). In the event of SAP's breach of the SLA Customer may claim a service credit as detailed in the SLA in the form of a contractual penalty ("Vertragsstrafe", German Civil Code section 339). Customer will follow SAP's posted credit claim procedure. Once the validity of the service credit is confirmed by SAP in writing (email permitted), the credit will be applied to a future invoice for the Cloud Service or Customer may request a refund for the amount of the credit if no future invoice is due. Service credits paid will be offset against any damages claims and any claims for wasted expenditures.

3.3.2. In the event SAP fails to meet the SLA (i) for 4 consecutive months, or (ii) for 5 or more months during any 12 months' period, or (iii) at a system availability level of at least 95% for 1 calendar month, Customer may terminate its subscriptions for the affected Cloud Service by providing SAP with written notice within 30 days after the failure. Termination will become effective at the end of the calendar month in which SAP received the termination notice.

3.4. SAP will implement and maintain appropriate technical and organizational measures to protect the personal data processed by SAP as part of the Cloud Service as described in the Data Processing Agreement incorporated into the Order Form in compliance with applicable data protection law.

3.5. Modifications

3.5.1. In order to be able to provide a standardized, evolving Cloud Service over time, SAP may improve or modify the Cloud Service (including support services, Maintenance Windows and Major Upgrade Windows). This includes the option to remove functionality from the Cloud Service where SAP either provides a functional equivalent or where this does not materially reduce key functionality of the Cloud Service. Use of functionality beyond the initial scope of the Cloud Service may be subject to Customer accepting additional terms.

3.5.2. SAP shall inform Customer of modifications to the Cloud Service with an adequate period in advance. SAP shall provide Customer 1 month's advance notice before changing its Maintenance and Major Upgrade Windows (unless such change is a reduction in the duration of the applicable Maintenance or Major Upgrade Windows) and support services.

3.5.3. If a modification materially impairs Customer's justified interests so that Customer can no longer reasonably be expected to adhere to the Agreement, Customer may terminate its subscription to the affected Cloud Service by providing written notice to SAP within 1 month of the respective SAP notice. If SAP does not receive timely notice, the modification takes effect.

4. CUSTOMER DATA AND PERSONAL DATA; CUSTOMER RESPONSIBILITIES AND DUTIES

- [4.1.](#) Customer is responsible for the Customer Data and entering it into the Cloud Service. Subject to section 11, Customer grants to SAP (including SAP SE, its Affiliates and subcontractors) a non-exclusive right to process and use Customer Data to provide and support the Cloud Service and as set out in the Agreement (including without limitation preparing backup copies and performing penetration tests).
- [4.2.](#) Customer will collect and maintain all personal data contained in the Customer Data in compliance with applicable data privacy and protection laws.
- [4.3.](#) Customer will maintain reasonable security standards for its Authorized Users' use of the Cloud Service. Customer will not conduct or authorize penetration tests of the Cloud Service without advance approval from SAP. Customer is solely responsible for determining the suitability of the Cloud Service for Customer's business processes and for complying with all applicable legal provisions regarding Customer Data and its use of the Cloud Service. Free of charge, Customer must provide the collaboration required in connection with the provision of the Cloud Service and the support, and – where agreed – Professional Services, including, for example, infrastructure and telecommunications equipment for Cloud Service access. SAP points out that Customer's collaboration is a necessary precondition for SAP's correct performance of its obligations. Customer bears all consequences and costs resulting from breach of its duties.
- [4.4.](#) During the Subscription Term, Customer can access its Customer Data at any time. Customer may export and retrieve its Customer Data in a standard format. Where export and retrieval are subject to technical limitations and prerequisites. upon request, SAP and Customer will find a reasonable method to allow Customer access to and export of Customer Data. Before the Subscription Term expires, Customer may use SAP's self-service export tools (as available) to perform a final export of Customer Data from the Cloud Service. Following the end of the Agreement, SAP will delete the Customer Data remaining on servers hosting the Cloud Service unless applicable law requires retention. Retained data is subject to the confidentiality provisions of the Agreement.

5. FEES AND TAXES

- [5.1.](#) Customer shall pay fees as stated in the Order Form. The recurring fee agreed in the Order Form applies for the Initial Subscription Term of the Cloud Services agreed therein. The fee applicable for a Renewal Term corresponds to the fees for the preceding Initial or Renewal Term, unless SAP increases the fees as follows:
- [5.1.1.](#) Subject as set out below, SAP may at its discretion adjust the recurring fees with effect from the start of a Renewal Term by giving two months' notice of the fee adjustment to Customer:
- [5.1.2.](#) The change applied to the fees must not be greater than the change in the index under section 5.1.3 below ("Discretionary Applicable Change"). For the first fee adjustment under the contract, the Discretionary Applicable Change is the change from the published index as it stood when the contract was concluded to the index as it had most recently been published when the fee adjustment notice was given. If the fee has already been adjusted in the past, the Discretionary Applicable Change is the change from the index that had been most recently published when the previous fee adjustment notice was given to the index that had most recently been published when the new fee adjustment notice is given.
- [5.1.3.](#) The index used to determine the Discretionary Applicable Change is the index of gross monthly salaries of full-time employees in Germany in the information technology services sector (currently published in the quarterly figures by the German Federal Statistics Office at "Fachserie 16, 2.2, J 62"). If that index is discontinued, the applicable index will be the index published that most closely reflects changes in average gross monthly earnings in that sector.
- [5.1.4.](#) The fee change is deemed to be agreed by the parties if the Cloud Services are renewed automatically for the renewal period unless Customer, by giving written notice at least one month prior to the expiration date of the preceding contractual term, terminates the Order Form with effect from the expiration of the relevant contractual term (extraordinary termination right). SAP will draw attention to this in the fee adjustment notice.
- [5.2.](#) No cash discounts shall be granted. Payments are due 14 calendar days from the date of the invoice. SAP may send invoices in electronic format. If Customer is still in default of payment after a reasonable extension period set by SAP has passed, SAP may suspend Customer's use of the applicable Cloud Service until

payment is made. SAP shall provide Customer with prior notice before any such suspension. Any fees not paid when due shall accrue interest at the applicable statutory interest rate. Customer is entitled to offset only claims that are uncontested or ordered by a court of law and to withhold payment or retain possession only to secure claims that are uncontested or ordered by a court of law.

[5.3.](#) All fees are subject to applicable Taxes, which will be charged in addition to fees under the Agreement.

6. TERM AND TERMINATION

[6.1.](#) The Subscription Term is as stated in the Order Form. Each Order Form initially runs for the Initial Subscription Term defined therein ("Initial Subscription Term"). At the end of the Initial Subscription Term, it automatically renews by the renewals defined therein (each a "Renewal Term"), unless the Order Form is terminated by one of the parties in accordance with section 6.2.

[6.2.](#) Ordinary termination of the Order Form is excluded during the Initial Subscription Term or any Renewal Term. Customer may terminate an Order Form by giving notice at least one month in advance of the expiration of the Initial Subscription Term or current Renewal Term. SAP may terminate an Order Form by giving notice at least six months prior to the expiration of the Initial Subscription Term or current Renewal Term. Extraordinary termination rights and the right to termination for just cause remain unaffected. SAP reserves the right to terminate for just cause in particular where Customer is repeatedly or seriously in breach of major contractual obligations (in particular in sections 2, 4, 11 and 12.2).

[6.3.](#) For termination by Customer or termination by SAP under section 12.2, Customer will be entitled to a pro-rata refund of prepaid fees for the period of time of termination to the end of the original term for the relevant Cloud Service, unless such refund is prohibited by Export Laws).

[6.4.](#) At the end of the Order Form:

[a\)](#) Customer's right to use the Cloud Service and all SAP Confidential Information will end,

[b\)](#) Confidential Information of the disclosing party will be retained, returned, or destroyed as required by the Agreement, subject to applicable law.

7. WARRANTIES BY SAP

[7.1.](#) SAP warrants, for the Subscription Term, that the Cloud Service meets the specifications agreed in the Supplement and the Documentation and that the Cloud Service, where used by Customer as contractually agreed, does not infringe any third-party right. SAP will remedy any defects as to quality and defects in title in the Cloud Service in accordance with section 7.4. If SAP has failed to remedy the defect at the end of an additional time period of a reasonable length set in writing by Customer, and the suitability of the Cloud Service is consequently reduced to a more than just insignificant degree, Customer has the right of termination, which must be communicated in writing. If the suitability of the Cloud Service for use in accordance with the Agreement is reduced to a more than just insignificant degree, Customer is entitled to reduce the remuneration by an appropriate amount. Section 9 (Limitation of Liability) applies for wasted expenditure and damage compensation due to defects. No-fault liability as provided in the German Civil Code, section 536a (1) Alt. 1 for defects that existed at the time of contract execution is excluded.

[7.2.](#) For Professional Services provided as works ("Werkleistung"), SAP warrants that the Professional Service corresponds to the agreed service description and where used by Customer as contractually agreed does not infringe any third-party right. SAP will remedy defects in accordance with section 7.4. If defects have not been remedied at the end of an additional time period of a reasonable length set by Customer in writing, Customer is entitled to reduce the payable remuneration in the Order Form for the Professional Service concerned by an appropriate amount or to withdraw from the Order Form with respect to the Professional Service. Section 9 (Limitation of Liability) applies for wasted expenditure and damage compensation.

[7.3.](#) If SAP fails to properly provide Professional Services which are not subject to acceptance, or if – with regard to Professional Services or the Cloud Service – SAP is otherwise in breach in an area other than liability for defects as to quality and defects in title, Customer must give notice of this failure or breach to SAP in writing and set an additional time period of a reasonable length, during which SAP has the opportunity to properly

perform its duty or otherwise remedy the situation. Section 9 (Limitation of Liability) applies for wasted expenditure and damage compensation .

7.4. SAP shall remedy defects in the Cloud Service and for those Professional Services that are subject to acceptance by providing Customer with either a Cloud Service or new Professional Service, that is free of defects or, at its election, by eliminating the defects. One of the ways SAP may eliminate a defect is to indicate to Customer a reasonable way to avoid the effect of the defect. In the event of defects in title, SAP shall elect to (i) procure for Customer the right to use the Cloud Service or Professional Service in accordance with the contract, or (ii) replace the Cloud Service or Professional Service or change it such that the accusation of breach no longer stands, whereby Customer's contractual use is not unreasonably impacted, or (iii) terminate the Order Form to this extent and reimburse the Customer's remuneration paid in advance for the term remaining after the date of termination, and to pay wasted expenditure and/or damages subject to the limitations of section 9 (Limitation of Liability).

7.5. Customer must give notice of every breach to SAP in writing without delay and with a detailed description of the reason. Warranty rights resulting from defects as to quality and defects in title in Professional Services subject to acceptance expire one year after acceptance. Warranties for the Cloud Service apply accordingly to the support services.

8. THIRD PARTY CLAIMS

If a third party claims that Customer's use of the Cloud Service or SAP Materials in accordance with the terms and conditions of the Agreement infringes its intellectual property rights, Customer must fully inform SAP in writing without delay. If Customer ceases to use the contractual Cloud Service or SAP Materials to mitigate loss or for other just reason, Customer must notify the third party that such cessation does not imply any recognition of the claimed infringement. Customer shall conduct court proceedings with the third party only with SAP's agreement or shall authorize SAP to assume sole conduct of the dispute. This applies mutatis mutandis in cases where a third party makes claims against SAP that are due to acts by Customer, the Authorized Users, or third-party provider access.

9. LIMITATION OF LIABILITY

9.1. SAP is liable in contract, tort, or otherwise for loss or wasted expenditure subject always as follows:

9.1.1. In cases of intent, SAP's liability extends to the full loss; in cases of gross negligence, liability is limited to the amount of foreseeable loss that would have been prevented through the exercise of due care; in cases of absence of a guaranteed quality, liability is limited to the amount of foreseeable loss that would have been prevented by the presence of the guaranteed quality.

9.1.2. In other cases, SAP is not liable except for breach of a major obligation (Kardinalpflicht) and only up to the limits in the following section 9.1.3. A breach of a major obligation in the meaning of this section 9.1.2 is assumed where the duty itself is a necessary prerequisite for the contractual performance, or where the breach of the relevant duty jeopardizes the purpose of the contract and where Customer could legitimately rely upon its fulfillment.

9.1.3. Liability in cases under section 9.1.2 is limited to EUR 100.000,00 per incident, and to a total per contract year of the greater of EUR 300.000 or the fee that was paid in the contract year for the Cloud Service (or respective Professional Service) concerned.

9.2. Contributory fault (e.g. breach of section 4 duties) may be claimed. The limits of liability in section 9.1 do not apply to personal injury liability or liability under the German Product Liability Act (Produkthaftungsgesetz).

9.3. All claims against SAP in contract, tort, or otherwise for loss or wasted anticipatory expenditure are barred after a period of one year. That period begins at the point in time specified in the German Civil Code, section 199 (1)). The foregoing provisions in this section notwithstanding, the time bar comes into effect not later than five years after the claim arises. The provisions in sentences 1 to 3 in this section 9.3 do not apply to liability for intent or gross negligence, liability for personal injury, or liability under the German Product Liability Act. The provisions in this section 9.3 do not affect the other time bar for claims arising out of defects as to quality and defects in title in section 7 (Warranties by SAP).

10. IP RIGHTS

10.1. Customer may only use the Cloud Services, Documentation and SAP Materials to the extent contractually agreed. As between Customer and SAP, all IP Rights therein, that are not expressly granted to Customer, are reserved to SAP, SAP SE, their Affiliates or licensors, including without limitation if those were created to address a requirement of or in collaboration with Customer.

10.2. Except as stated otherwise in the Agreement, Customer retains all rights in and related to the Customer Data as between Customer and SAP. SAP may use Customer-provided trademarks solely to provide and support the Cloud Service and any agreed Professional Services.

11. CONFIDENTIALITY

11.1. With respect to any Confidential Information of the disclosing party obtained prior to and in the course of the performance of the Agreement, the receiving party shall

a) maintain forever all Confidential Information in confidence, taking steps to protect the Confidential Information substantially similar to those steps that the receiving party takes to protect its own Confidential Information, which shall not be less than a reasonable standard of care;

b) disclose or reveal any Confidential Information to any third party only to the extent this is necessary to enable the receiving party to exercise its rights or perform its obligations under the Agreement, and who is under obligations of confidentiality substantially similar to those in section 11;

c) not use or reproduce any Confidential Information for any purpose outside the scope of the Agreement; and

d) where technically feasible, retain any and all confidential, internal, or proprietary notices or legends which appear on the original and on any reproductions.

11.2. The receiving party may disclose the disclosing party's Confidential Information to the extent legally required; provided, that the receiving party required to make such a disclosure uses reasonable efforts to give the disclosing party reasonable prior notice of such required disclosure (to the extent legally permitted) and provides reasonable assistance in contesting the required disclosure, at the request and cost of the disclosing party. The receiving party shall use commercially reasonable efforts to disclose only that portion of the Confidential Information which is legally requested to be disclosed and shall request that all Confidential Information that is so disclosed is accorded confidential treatment.

11.3. The restrictions on use or disclosure of Confidential Information will not apply to any Confidential Information that:

a) is independently developed by the receiving party without reference to the disclosing party's Confidential Information;

b) has become generally known or available to the public through no act or omission by the receiving party ;

c) at the time of disclosure, was known to the receiving party free of confidentiality restrictions;

d) is lawfully acquired free of restriction by the receiving party from a third party having the right to furnish such Confidential Information, or

e) the disclosing party agrees in writing is free of confidentiality restrictions.

11.4. Upon the disclosing party's request, the receiving party shall promptly destroy or return the disclosing party's Confidential Information, including copies and reproductions of it, unless applicable law requires its retention. In this case, the Confidential Information shall continue to be subject to section 11. Neither party shall use the name of the other party in publicity activities without the prior written consent of the other. However SAP may use Customer's name in customer listings (reference listings) or quarterly calls with its investors or, at times mutually agreeable to the parties, as part of SAP's marketing efforts (including reference calls and stories, press testimonials, site visits, SAPPHIRE participation). SAP may share information on Customer with SAP SE and its Affiliates for marketing and other business purposes. Insofar as this includes the provision and use

of contact information of Customer's contact persons, Customer will secure the appropriate permissions where necessary

12. MISCELLANEOUS

12.1. Amendments and additions to the Agreement and any contractually relevant notices as well as notices influencing a legal relation, such as termination notices, reminders, or notices to set time limits, require written form. The foregoing provision also applies to any waiver of the written-form requirement. The written form requirement can be met by exchange of letters or in the following electronic formats: facsimile transmission, SAP Store, DocuSign™ or any equivalent electronic process provided by SAP. Except in that respect, however, the provisions in the German Civil Code, section 127 (2) and (3) do not apply.

12.2. Export Laws / Trade Compliance

12.2.1. SAP and Customer shall comply with Export Laws in the performance of the Agreement. SAP Confidential Information is subject to Export Laws. Customer, its Affiliates, and Authorized Users shall not directly or indirectly export, re-export, release, or transfer SAP Confidential Information in violation of Export Laws. Customer is solely responsible for compliance with Export Laws related to Customer Data, including obtaining any required export authorizations for Customer Data. Customer shall not use the Cloud Service from Crimea/Sevastopol, Cuba, Iran, the People's Republic of Korea (North Korea) or Syria.

12.2.2. Upon SAP's request, Customer shall provide information and documents to support obtaining an export authorization. Upon written notice to Customer SAP may immediately terminate Customer's subscription to the affected Cloud Service if:

- a) the competent authority does not grant such export authorization within 18 months, or
- b) Export Laws prohibit SAP from providing the Cloud Service or Professional Services to Customer.

12.3. SAP may provide notice of modifications under section 3.5.2 via Documentation, release notes or publication. System notifications and information from SAP relating to the operation, hosting or support of the Cloud Service can also be provided within the Cloud Service, to the contact person named in the Order Form or made available via the SAP Support Portal.

12.4. Without SAP's prior written consent, subject to the provisions of the German Commercial Code (HGB) section 354a respectively, Customer may not assign, delegate or otherwise transfer the Agreement (or any of its rights or obligations) to any third parties. SAP may assign the Agreement to SAP SE or any of its Affiliates.

12.5. The Agreement and any claims (including any non-contractual claims) arising out of or in connection with this Agreement will be governed by the laws of Germany. The United Nations Convention on Contracts for the International Sale of Good and any conflicts of law principles will not apply.

12.6. If Customer is a merchant, a legal entity under public law, or separate fund under public law, the sole place of jurisdiction for all differences arising out of or in connection with the Agreement shall be Karlsruhe.